MANUAL OF BANGLADESH MILITARY LAW

PART – I

CHAPTER I

BANGLADESH MILITARY LAW – ITS ORIGIN AND EXTENT

(i) Introductory

1. Disciplinary Code of the pre-partition Indian Army.– The pre-partition Army of India was governed by the Indian Army Act, 1911 (VIII of 1911), the Indian Army (Suspension of Sentences) Act, 1920 (XX of 1920), the Indian Army Act Rules and certain notifications, orders etc., which, having been made in pursuance of the Indian Army Act by the authorities therein empowered to do so, had the force of law.

2. Disciplinary Code of Pakistan Army immediately after partition.– After the partition of India, by virtue of Section 18 of the Indian Independence Act, 1947 (10 & 11 Geo 6, Ch. 30), the Pakistan Army Continued to be governed by the Indian Army Act, 1911, the Indian Army (Suspension of Sentences) Act, 1920, etc., which, due to prolonged discussions over the changes proposed, to be made in the law, could not be replaced immediately by an Act of the Pakistan Legislature.

(ii) Present Code

3. Army Act, 1952.– The then Pakistan Legislature enacted the then Army Act, 1952 (XXXIX of 1952) which came into force on the 21st February, 1955 by Ministry of Defence Notification No. 149/55 of the same date. It repealed the Indian Army Act, 1911 and the Indian Army (Suspension of Sentences) Act, 1920 and several other enactments relating to the then Pakistan Army, which were enacted between the 15th August, 1947 and passage of that Act. After emergence of Bangladesh as an independent state comprising the territory of the then East Pakistan, the Army Act, 1952, the Army Act Rules, 1954, and notifications and orders issued under that Act continued to govern the Bangladesh Army as 'existing Law' until suitably amended and revised. The Army Act, 1952 and the Army Act Rules, 1954 have been adapted in Bangladesh after suitable amendments, which now contain the code of the Bangladesh Army.

*** The Pakistan Army Act, 1952 has been adapted in Bangladesh with necessary amendments by Ordinance No. VIII of 1978. The Pakistan Army Act Rules, 1954 have been adapted by Ministry of Defence Notification No. S. R. O. 135-L/81 Published in Dhaka Gazette Extra-ordinary on the 6th May, 1981.**

4. Persons permanently subject to Army Act.– We have now to consider what persons are made subject to this Code.

By sub-section (1) of Section 2 of the Act, the following persons are subject to all its provisions until duly retired, released, discharged, removed or dismissed from the service:

(a) Officers, junior commissioned officers, and warrant officers of the Bangladesh Army.

(b) Persons enrolled under the Act*.

5. Persons temporarily subject to Army Act.– It is obviously necessary that civilians who are employed with the Army, including those whose services are lent to the Army, *e.g.*, members of the Posts and Telegraphs Department, and civilians who accompany the army as newspaper correspondents, contractors, etc., should be amenable to military discipline in certain circumstances. Accordingly we find that, by Section 2(1)(c) thereof, the Act is also applied to:–

> "Persons not otherwise subject to this Act, who, on active service, in camp, on the march or at any frontier posts specified by the Government by notification in this behalf are employed by or are in the service of or are followers of or accompany any portion of the Bangladesh Army."

For the purposes of subjection to the Act, such civilians may be classified as officers, junior commissioned officers, warrant officers and non-commissioned officers, by a notification issued by the Government, or by the "direction" of an officer empowered by the Government to issue such a direction, under Section 3.

Such persons, however, cease to be subject to the Act as soon as they cease to be employed in the manner set out in Section 2(1)(c).

Persons subject to Naval and Air force law when seconded to army become subject to this Act to such extent as is specified by the Government *vide* Section 2(1)(b) thereof during the period of secondment. This provision has been made to facilitate trials of such persons under military law if they commit an offence during that period otherwise they had to be dealt with under Naval or Air force law as the case may be.

6. Other military bodies in Bangladesh.– The position of other military and semi-military bodies, such as the Bangladesh National Guard, the Frontier Militia, etc., has been defined in Chapter VIII.

CHAPTER II

OUTLINE OF THE ARMY ACT

(i) Application of the Act

1. Scheme of Chapter.– This Chapter is intended to give a general account of the Army Act, 1952, and to show its scope and purpose. Certain explanations of a general character, which would be out of place in the notes to particular sections, are also contained in it. For a detailed explanation of the Act reference should, however, be made to these notes.

2. Army Act Sections 2 and 3.– The first Chapter of the Army Act is concerned with the application of military law, certain matters connected with that application, and the definition of terms used in the Act. Persons subject to the Army Act under clause (a) or (b) of Section 2(1) remain so subject till retired, released, discharged, removed or dismissed from the service; those subject under clause (c) only so long as the conditions contemplated therein continue. The effect of such a notification as is referred to in Section 3 is that those who rank as officers, junior commissioned officers, warrant officers and non-commissioned officers must, in their relations to army law, be treated in the same way as those who hold corresponding ranks in the Army:– for instance a civil official who ranks as an officer can be tried by no military tribunal inferior to a general or a field general court martial. The status conferred is a personal one and does not give any command over others. Further information on this subject will be found in Chapter VIII.

3. Army Act Section 5.– Section 5 enables the provisions of the Army Act to be applied to any force (of military police, for instance) raised and maintained in Bangladesh by the Government, but which does not form part of the regular Bangladesh Army. It also enables Government to arrange for such application by providing suitable authorities and tribunals. Such a notification as is contemplated by this section might, for instance, provide that, as regards the force in respect of which it is issued, the functions of the Chief of Army Staff or the officer commanding a division should be exercised by some civil official, and those of a general court martial by some civil court or official. A force to which the Army Act is thus applied does not thereby become part of the regular army, nor subject to its tribunals. It merely adopts, as its code, a similar code to the code in force in that army.

4. . . . . . *

*** Section 6 omitted from the Act *vide* Ordinance, *ibid*.**

5. Army Act Section 7.– Section 7 empowers the Government to declare that any person or particular class of persons subject to the Act shall, with reference to any area, or with reference to all or any provisions of the Act, be deemed to be on "active service" within the meaning of Section 8(1). Once this has happened, civilians who are employed with, or are in the service of, or who follow or accompany such persons who are so declared to be on active service will become subject to military law under Section 2(1)(c) of the Act.

(ii) Definitions

6. Definitions.– All the definitions in Section 8 must be understood as being subject to the reservation in the opening clause of that section, *i.e.,* they are not to be read in the Act if "there is something repugnant in the subject or context". An instance of such a repugnance will be found in Section 117 sub-section (2) of the Act. "Officer" in this section cannot be used in the restricted sense indicated in sub-section (2), as such a meaning would be repugnant to the context, and must, therefore, be taken in its wider meaning of "official".

It will be noticed that, in some cases, terms are defined in Section 8 as "meaning" such and such and in others as "including" some other person or thing. In the former case the term defined is used as a synonym for a longer or more cumbrous expression, but the legal effect of the enactment would not be altered if the longer expression were used throughout instead of the shorter. The effect of those definitions, or parts of definitions, which declare that a term "includes" something else is somewhat different. Here the result is that wherever the law, as it stands, applies to the class of persons, or things, indicated by the first term, it will also apply to the class or classes who are "included", though the natural meaning of the English language might not indicate that it did apply to the latter. For instance, the words "Judge Advocate General" do not, as they stand, indicate a Deputy Judge Advocate General, but the explanation to Section 110 of the Army Act shows that, wherever, in that section a power or duty is conferred or imposed on the Judge Advocate General in Bangladesh Army a similar power or duty is conferred or imposed on the Deputy Judge Advocate General.

(iii) Enrolment and Attestation

7. Enrolment and attestation explained.– Everyone who is permanently subject to Bangladesh Army law (except officers, junior commissioned officers and warrant officers) is subject to that law by virtue of his "Enrolment". This process, and the subsequent attestation of certain enrolled persons, is described in Chapter II of the Army Act and in the Rules made by the Government under the powers therein conferred upon

them. The principle underlying these provisions is that no person should be permanently subjected to an exceptional and severe code, like that contained in the Army Act, without a definite act on his part, such act being susceptible of easy proof. "Enrolment" is, therefore, made a definite act recorded in a formal document, the enrolment paper, which is itself made legal evidence of the facts stated in it (*see* Army Act Section 115) and which shows clearly all the conditions of the bargain which the enrolled person has made with the State.

"Attestation" means the administration to the enrolled person of the oath or affirmation of military fidelity. It forms no part of the process of enrolment. The ceremony takes place when the candidate is fit for duty, or has completed a prescribed period of probation, and confers on the person admitted to it a certain status and the privilege of not being ordinarily dischargeable without reference, at least, to his Brigade Commander [*see* Section 8(10) and Rule 12]. Only attested persons can rise to non-commissioned rank in the Army. Enrolment under the Army Act is, as a rule, for general service though special conditions of enrolment can, if necessary, be "prescribed" to meet special cases. It has, therefore, been found possible to restrict attestation, which now includes the obligation to go wherever ordered by air, to combatants and those higher classes of non-combatants whom the Government of Bangladesh considers deserving of being treated on the footing of combatants. The enrolment paper referred to above contains an official record of the bargain made with the enrolled person on behalf of the State, and the conditions of that bargain cannot be altered except with the consent of the person concerned. An instance of such consent is when a man, on being trained in special duties, agrees to serve for longer than the term for which he has originally engaged. Such a variation of the conditions of service is, therefore, recorded on the man's enrolment paper and signed by him. No separate attestation document is required for the classes who are attested. The fact of attestation is, in each case, recorded on the enrolment paper and authenticated by the signature of the attesting officer.

(iv) Dismissal, Removal, Discharge, etc.

8. Dismissal, removal and discharge explained.– The Government may dismiss or remove from the service any person subject to the Army Act, including an officer. The Chief of Army Staff may dismiss or remove any person other than an officer. An officer having power to convene a district court martial, or any officer not below the rank of Lieutenant Colonel empowered by the Chief of Army Staff may dismiss or remove any person enrolled under the Act.

The Government may, similarly, retire or release any officer; while the retirement, release or discharge of persons other than officer may be authorised by the authorities specified in the Table annexed to Rule 12.

The principal points to note are that:-

(1) Retirement, release or discharge must, in every case, be authorised by the authority competent to do so; it cannot be authorised by any person "for" such authority;

(2) Retirement, release or discharge will take effect as provided in Rule 11; and

(3) In the case of an enrolled person, who is entitled under the conditions of enrolment to be retired, released or discharged, his retirement, release or discharge must be carried out with all convenient speed.

Dismissal under Section 16 or 17 of the Act, or as a court martial punishment, involves, under existing regulations, the loss of any pension or gratuity which the dismissed person may have earned.

The provisions of Section 152 of the Act, however, require to be considered, where a sentence of transportation or imprisonment which is combined with dismissal is suspended, or remitted, or where a sentence of imprisonment for less than three months which is combined with dismissal is put into execution and there is a former sentence under suspension.

Every person, other than an officer, who is dismissed, removed, retired, released or discharged, must be furnished by his commanding officer with a certificate of termination of service, on the date, if possible from which his services are terminated.

(v) Summary Reductions, Minor Punishments, etc.

9. Summary reductions, minor punishment, etc.– Chapter IV of the Act deals with the summary reduction of warrant officers and non-commissioned officers, and with punishments which are of a summary nature.

Under sub-section (1) of Section 21, the Chief of Army Staff may reduce a warrant officer to a lower grade or class, but NOT to non-commissioned rank. Similarly, the Chief of Army Staff or "an officer having power to convene a district court martial or an officer not below the rank of Lieutenant Colonel empowered by the Chief of Army Staff in this behalf," [substituted *vide* Amendment No. 1/11/67] may reduce to lower grade or

rank or to the ranks any non-commissioned officer and under Section 22 a commanding officer may order reversion of an acting non-commissioned officer to his substantive rank. Such reduction may, in each case, be ordered because the person concerned is unsuited to the position in which he is placed.

"Minor punishments" and officers who can award them, without the intervention of a court martial, have been set out in Rule 17 which has been framed under Section 23 of the Act.

(vi) Offences

10. Military and civil offences.– Chapter V of the Army Act contains the penal provisions of the Act– *i.e.,* it creates the offences punishable under the Act and provides the punishments for them.

The penal provisions under the Indian Army Act 1911 (VIII of 1911), were compressed into a relatively small number of sections, many of which contained too many sub-sections dealing with too many different types of offences. For instance, Section 39 of the Act of 1911 contained nine sub-sections each of which created offences differing in character from each of the others. Similarly Section 35 dealt with such widely different kinds of offences as extortion, ill-treatment of animals and losing of equipment by neglect. In the present Act, attempt has been made to eradicate these defects and the penal provisions have been spread over 36 sections. The offences have, however, been defined as far as possible in the same or nearly the same language as the offences in the old Act, for it was considered inadvisable to change the forms of expression with which the army had become used.

It is noteworthy that, unlike the Act of 1911 which provided the death penalty for a number of offences and made all other offences punishable with the same maximum punishment of imprisonment for fourteen years, regardless of the gravity or the circumstances of the offence, the present Act specifies punishments varying degrees of severity according to the inherent gravity of the offence and the circumstances in which it is committed, *e.g.*, whether committed on active service or not.

It must be remembered that Chapter IV of the Penal Code (General exceptions) applies to offences under special law (Army Act). The definitions of all these offences must, therefore, be read as subject to the above "General exceptions". Thus if a non-commissioned officer charged under Section 53 with striking a sepoy proves that he only did so in the exercise of his right of private defence, he will be entitled to an acquittal (*see* Penal Code Section 96). Similarly, if a person charged with any offence under the Army Act is proved to have committed it, while

incapable, by reason of his insanity or involuntary intoxication, of knowing the nature of his act or that it was either wrong or contrary to law he is entitled to the benefit of Section 84 or 85 of the Penal Code, as the case may be, and cannot be punished for what he has done. The Army Act, however, provides a special procedure for the disposal of persons found to have been insane at the time of committing the offence (*see* Section 130 of the Army Act).

(vii) Punishments

11. Scale of punishments.– With the exception of certain civil offences under Section 59(1)(a) of the Act, for which an obligatory punishment is provided (*e.g.*, death or transportation for life for murder), the penal sections of the Act provide that the court, subject of course, to the limits imposed by the Act upon its powers, may award a specified maximum punishment "or such less punishment as is in this Act mentioned", *i.e.,* in accordance with the scale laid down. If, for example, the maximum punishment assigned to the offence is rigorous imprisonment for two years, either detention, or any other punishment lower in the scale and appropriate to the rank of the offender can be awarded in its place. A maximum punishment is intended to be imposed only when the offence is the worst of its class, or is committed in circumstances which require an example to be made. As stated in the preceding para, an important distinction is made by the Act, in that, certain offences are punishable more severely when committed on active service than at other times. Instances of this distinction will be found in Sections 26, 28, 29, 32, 33, etc.

12. Combined punishments.– Under Section 62 of the Act two or more punishments included in the scale of punishments applicable to the rank of the offender may be awarded in combination. Thus an officer, junior commissioned officer, warrant officer or non-commissioned officer sentenced to forfeiture of service for promotion or of seniority of rank may also be sentenced to severe reprimand or reprimand and to stoppages; or a person below the rank of warrant officer sentenced to transportation or imprisonment may also be sentenced to be dismissed from the service, to forfeit all arrears of pay, etc., due to him and to stoppages. An officer, junior commissioned officer or warrant officer sentenced to transportation or imprisonment must also be sentenced to be dismissed from service. A non-commissioned officer sentenced to transportation, imprisonment, detention, field imprisonment or dismissal is deemed to be reduced to the ranks even a sentence of reduction is not awarded by the court.

(viii) Penal Deductions

13. Penal deductions.– Under Section 64 of the Army Act, the pay and allowances of officers, junior commissioned officers, warrant officers and non-commissioned officers is protected from deductions which are not authorised by or under the Act or under other law.

Section 65 of the Act lays down the circumstances in which "penal deductions" may be made from the pay and allowances of such person. Pay and Allowance Regulations provide for the cases in which pay and allowances are to be forfeited, within the limits of the section. Other deductions which are not penal may be made in accordance with the rules made under the Act, *e.g.*, as contribution towards an authorised benevolent fund, or in pursuance of another Statute.

A "penal" deduction is, strictly speaking, a deduction made as a penalty for an offence of which the accused has been convicted, and constitutes the whole or part of his punishment. The term has, however, acquired a somewhat specialised meaning and every deduction which is authorised in Section 65 is understood to be "penal", regardless of the common use of that word.

Section 66 of the Act allows the withholding wholly or partly of the pay and allowances of a person who is in custody or under suspension from duty on charge for an offence, while Section 67 provides that authorised deductions may be recovered from any public money due other than pension.

In addition to the deductions set out above, the Chief of Army Staff or other specified authority may order the withholding of pay pending inquiry into conduct as prisoner of war.

Section 69 provides for remission of the aforesaid deductions and Sections 70 and 71 enable specified authorities to make provision for dependents of prisoners of war.

(ix) Arrest and Proceedings before Trial

14. Custody of offenders and duty of commanding officer.– Section 73 provides that a person subject to the Act who is charged with an offence may be taken into custody in the manner therein specified. Section 74 provides that the charge against a person so taken into custody must be investigated within forty eight hours, unless investigation within that period in impracticable, but reason for delay in investigation must be reported to the convening authority. Section 75 requires delays in bringing

accused to trial by court martial to be reported to higher authority in the prescribed manner.

15. Arrest and capture of deserters by civil authorities.– Section 76 deals with the arrest by civil authorities of persons subject to the Act who are accused of any offence while Section 77 empowers the civil authorities to capture deserters, as to which *see* also Section 54 of the Code of Criminal Procedure, 1898.

16. Inquiry into absence of persons subject to the Act.– Section 78 requires that when a person subject to the Act has been absent for sixty days a court of inquiry shall, as soon as practicable, be assembled to inquire respecting his absence and deficiency, if any, of the Government property under his care including arms, ammunition etc.

(x) Appointment of Provost Marshals

17. Provost Marshals.– Section 79 empowers the Chief of Army Staff or any prescribed officer, to appoint Provost Marshals with assistants whose duties are to take charge of persons confined for offences, to preserve good order and to arrest those charged with offences, etc. It will be observed that, under sub-section (4) of the section, Provost Marshals of the Air and Naval forces have the same powers in respect of military personnel as military Provost Marshals enjoy.

(xi) Courts Martial

18. Preliminary note.– Chapter IX of the Army Act contains the principal provisions regarding the convening, composition and procedure of courts martial and certain provisions relating to jurisdiction and evidence. The remainder of the law on the subject will be found in the Statutory Rules framed under the Act.

For a general explanation of the constitution and practice of courts martial, *see* Chapter IV of Part I; for details, reference should be made to the Rules framed under the Act and Notes.

19. Description of courts martial.– There are four different kinds of courts martial known to military law, *viz.*,

a. General courts martial,

b. District courts martial,

c. Field General courts martial, and

d. Summary courts martial.

20. Summary courts martial.– The summary court martial is peculiar to the Army and has no counterpart in the Navy or Air Force. Having been first established in the late Indian Army as far back as 1869, it has been found to be the best means of promptly and effectively dealing with military offenders. This type of court has proved peculiarly suited to the Army and is now the tribunal by far the most frequently utilised for the trial of offenders.

It is to be noted, however, that while under the Indian Army Act, 1911, an officer holding a summary court martial could award imprisonment up to one year, he is, if below the rank of Major, now restricted to rigorous imprisonment up to three months – Proviso to Section 101.

(xii) Confirmation and Revision of Findings and Sentences

21. Preliminary Note.– Confirmation and revision of findings and sentences of courts martial and the remedy against such findings and sentences form the subject of Chapter X of the Act.

22. Confirmation of findings and sentences of general, district and field general courts martial.– Section 119 of the Act provides that no finding or sentence of general, district or field general court martial shall be valid without confirmation by the authorities, and in the manner specified in Sections 120 to 126 thereof.

23. Finding and sentence of summary court martial.– Under Section 127 of the Act, finding and sentence of summary court martial do not require confirmation, but when the officer holding the trial has less than five years service, he cannot, except on active service, carry out the sentence without the approval of the specified officer.

24. Substitution of valid for invalid finding or sentence.– Section 129 empowers specified authorities to substitute valid, for invalid findings or sentences.

25. Provisions for lunatics.– Section 130 specifies the procedure for dealing with a person who is, by reason of his insanity, incapable of making his defence when brought to trial or who was, at the time of committing the alleged offence, insane. The section follows generally the scheme of the corresponding provisions of the Code of Criminal Procedure.

26. Remedy against findings and sentences.– Section 131, which is new, provides the statutory remedy of challenging the finding or sentence of a court martial, while Section 132 empowers the Government,

the Chief of Army Staff or a prescribed officer, whether as the result of such a challenge or independently, to annul such finding or sentence.

Section 133, which is also a new provision, bars appeals to civil tribunals against findings or sentences of courts martial.

(xiii) Execution of Sentences

27. Execution of sentences and forms of committal warrants.– Chapter XI of the Act provides for the execution of sentences which have been duly passed and where necessary, confirmed. A sentence of death, whether by hanging or by being shot to death, is to be executed under the supervision of a military officer, but the condemned prisoner is to be detained in civil custody pending execution of the sentence.

A sentence of detention is to be undergone either in a detention barrack or in military custody, or partly in one and partly in the other, but not in prison (Section 138).

In case of sentence of imprisonment, which is not to be carried out in military custody under the first proviso to Section 136, all that is necessary is to arrange for the transmission of a prisoner to civil prison, under the proper form of committal warrant set out in Appendix Fourth to the Rules under the Act, after which the Prisoners' Act, 1900 (III of 1900), provides for the discipline of the prisoner and, if necessary, his transfer to other such prison or convict establishment.

Forms of warrants under Section 136 of the Act are set out in the Fourth Appendix to the Rules under the Act, as well as warrants for use under Section 141 when sentences, orders or warrants are set aside or varied. The last class of warrant brings the change, as it affects the prisoner, to the notice of the Superintendent of the civil prison where he is confined and provides for his release or the modification of the punishment to be inflicted upon him. There are several forms of warrants for use in different circumstances, and particular attention should, therefore, be paid to their contents to prevent the use of the wrong form.

(xiv) Pardons, Remissions and Suspension

28. Pardons, remissions and suspension.– Chapter XII of the Act deals with pardons, remissions and suspension of sentences. The special point to note is that the Indian Army (Suspension of Sentences) Act, 1920 (XX of 1920), has been repealed by Section 177(1) of the Army Act and all the provisions regarding suspension of sentences are now included in Chapter XII.

The power of suspension of sentence is a very valuable power and is useful especially when troops are engaged in military operations against an enemy and every man is required to give of his best. The authorities competent to exercise the power should not, however, hesitate to utilise it even during peace, if its exercise would be to the best advantage of the service and would save the offender from the "downward path".

(xv) Property of Deceased Persons, Deserters and Lunatics

29. Property of deceased persons, deserters and lunatics.– The procedure for the disposal of the property of deceased persons, deserters and lunatics forms the subject of Chapter XIII of the Act. Sections 153 to 156 deal with the disposal of the property of junior commissioned officers, warrant officers and enrolled persons, while Sections 157 to 165 deal with the disposal of the property of officers. It will be noted that while the property of persons other than officers is to be dealt with by the commanding officer, the property of officers can be dealt with only by a committee of adjustment, or on active service by a standing committee of adjustment, if one is appointed in the prescribed manner. See Sections 153(1), 158(1) and 165 of the Act.

Section 166 of the Act defines certain terms for the purposes of the entire Chapter.

(xvi) Other Provisions

30. Other provisions.– Chapter XIV deals with miscellaneous privileges enjoyed by person subject to the Act, *e.g.,* the privilege of complaint by aggrieved persons, the privilege of immunity from arrest of persons attending courts martial and from arrest for debt, and the privilege of claiming priority of hearing by courts of cases in which persons subject to the Act are concerned. See Sections 167 to 173 of the Act.

Sections 174 and 175 of this Chapter, however, provide for order for custody and disposal of property pending trial and order for disposal of property regarding which offence has been committed, respectively.

Chapter XV, Section 176 provides for the making by the Government of Rules for the carrying into effect the provisions of the Act. In addition to the matters specified in sub-section (2) of that section, the rules framed by the Government, entitled the Army Act Rules, provide also for matters, and specify persons, directed to be "prescribed" by other provisions of the Act.

Section 176A of the Act has empowered the Government to make regulations on matters not covered by the rule making power of the Government under Section 176.

CHAPTER III

ARREST : INVESTIGATION OF CHARGES

(i) Arrest

1. Military custody of person charged with offence.– Whenever any person subject to the Army Act is charged with an offence he may be taken into military custody, *see* Section 73, which means his arrest or confinement according to the usages of the service, but such a course is by no means obligatory; if the offence is not serious it may be investigated and disposed of without placing the offender in arrest.

2. Nature of arrest :– Officers and Junior Commissioned Officers.– In the case of an officer or junior commissioned officer, custody means "arrest"– either open or close; but, if circumstances require it, he may be placed under the charge of a guard, piquet, patrol sentry or provost marshal. Whether the arrest is open or close will depend upon the direction of the officer who ordered it. An officer or junior commissioned officer in close arrest is placed in charge of an 'escort' consisting of another (if possible, a senior) officer or junior commissioned officer, as the case may be, of the same rank. He must not leave his quarters or tent except to take such exercise under supervision as the medical officer thinks necessary. An officer or junior commissioned officer in open arrest may take exercise at stated periods within certain limits, which are usually the precincts of the regimental lines or camp; he must not, however, appear out of uniform, at any place of amusement or public resort, nor must he wear sash, sword, belt or spurs. An officer or junior commissioned officer placed under arrest should always be informed in writing of the nature of the arrest, which will be governed by the circumstances of the case; and any change in the nature of the arrest should be notified in writing to him.

3. Arrest, when ordered.– As a rule, a commanding officer will not place an officer or junior commissioned officer under arrest without investigation of the complain, or the circumstances tending to criminate him; though cases may occur in which it would be necessary to do so. He will always place under arrest an officer or junior commissioned officer against whom he decides to prefer a charge, and it is his duty to report each case of arrest without unnecessary delay to the proper superior authority.

4. Arrest, how ordered.– An officer or junior commissioned officer is put under arrest either directly by the officer who orders it, or more generally, by some subordinate carrying out his orders, *i.e.,* by the adjutant of the unit when the arrest is ordered by the commanding officer, and by

an officer of the staff when the arrest is ordered by the superior officer, and not through the channel of the commanding officer. An officer engaged in quarrel, affray or disorder may be arrested by a junior officer. The order of arrest may be verbal or written, the latter as being more formal being the preferable method, except where the offence is committed actually in the presence of the commanding or superior officer. On being put under arrest, an officer or junior commissioned officer is deprived of his sword.

5. Release from arrest.– The release of an officer or junior commissioned officer under arrest may be ordered by the authority who imposed the arrest, or the superior to whom it may have been reported; but, as a rule, except in cases of obvious error, the release should not be ordered without the sanction of the highest authority to whom the case may have been referred. An officer or junior commissioned officer released, except specifically without prejudice to re-arrest, will not again be arrested on the same charge unless some new and special circumstances have arisen.

6. Warrant and non-commissioned officers.– The rules which govern the custody of officers and junior commissioned officers apply also to a warrant or non-commissioned officer. If charged with a serious offence a warrant or non-commissioned officer will, as a rule, be placed under arrest forthwith; but in case of doubt as to the commission of the offence, the arrest may be delayed; and if the offence is not serious, it may be disposed of without previous arrest.

Persons subject to the Army Act under Section 2(1)(c) as officers, junior commissioned officers, warrant officers and non-commissioned officers may, when charged with an offence, be placed under arrest under the same conditions as persons holding these ranks.

7. Other persons.– A person below the rank of non-commissioned officer taken into military custody on a charge of having committed an offence is placed either under close arrest or under open arrest. Close arrest in the case of such a person means confinement in charge of a guard, piquet, patrol, sentry or provost marshal. He is not to be placed in close arrest unless confinement is necessary for his safe custody or the maintenance of discipline. For minor offences, such as absence from roll calls and other slight irregularities men are placed under open arrest. A person under open arrest will not quit the regimental lines, except on duty or with special permission, until his case is disposed of but he will attend parades and may be ordered to perform all duties.

8. Performance of duties while under close arrest.– Except on active service an offender, while under close arrest, is not to be required to

perform any duty other than personal routine duties, and as such, may be necessary to relieve him from the care of any cash, stores, etc., for which he is responsible, nor is he permitted to bear arms, except in an emergency by order of his commanding officer, or on the line of march. If, however, by error, he is ordered to perform any duty, his offence is not thereby condoned.

9. No right to demand trial.– Except in the circumstances mentioned in the Regulations, when it is proposed to award summarily to an officer, junior commissioned officer or warrant officer a punishment of forfeiture of service for the purpose of promotion or of seniority, a person subject to the Army Act has no right to demand a court martial. If he conceives himself wronged by the arrest, or otherwise, his remedy is a complaint in the manner prescribed in Sections 167 & 168 of the Act.

(ii) Investigation of Charges

10. Investigation of charges.– The charge against every person taken into military custody must be investigated without unnecessary delay. The commanding officer of the accused is responsible that the investigation is begun within forty-eight hours of the committal of the person being reported to him unless investigation within that period seems to him to be impracticable with due regard to the public service. Every case of a person being detained in custody beyond forty-eight hours, and the reason for the delay in disposing of the case, must be reported to superior authority (*see* Army Act Section 74).

11. In case of an officer.– There is some difference in procedure between the cases of officers and of other persons. In all cases the commanding officer is made responsible for deciding whether the charge ought to be dismissed or proceeded with, and in the latter event for taking the further necessary steps; but in the case of an officer there need not, unless the officer requires it, be a formal examination of witness and a recording of their evidence in the presence of the accused. If he likes, he can waive such formal investigation, *see* Army Act Rule 15, at the same time the commanding officer may hold one at his discretion. The case of an officer may be referred to a court of inquiry for investigation.

12. In the case of other persons.– Prior to the appearance before the commanding officer of an alleged offender, a preliminary investigation into his case is generally made by his squadron or company commander, or by the corresponding officer in other branches of the service. If the accused is not under arrest or confinement, or the case is not one which the

commanding officer has reserved for his own disposal, this officer may decide to deal with the case himself by awarding one of the minor punishments within his power or by dismissing it. Any case in which the accused is under arrest or confinement is dealt with by the commanding officer, unless the latter remits it to the squadron or company commander for disposal. Rule 13(1) of the Army Act Rules applies to this preliminary investigation equally with that before the commanding officer.

13. Duty of Officer conducting Investigation.– The manner in which the investigation of charges by a subordinate commander or commanding officer is to be carried out is regulated by Army Act Rules 13 to 15. This duty requires, deliberation and the exercise of temper and judgment, in the interest alike of discipline and of justice to the accused. The investigation must be conducted in the presence of the accused.

After the nature of the offence charged has been made known to the accused, the witnesses present on the spot who depose to the facts on which the charge is based are examined. The accused must have full liberty of cross-examination. The commanding officer, after hearing what is stated against the accused will, if he is of opinion that no offence at all, or no offence requiring notice, has been made out, at once dismiss the charge [*see* Army Act Rule 13(2)]. Otherwise, he must ask the accused what he has to say in his defence, and whether he has any witnesses to call, and will give him full opportunity both of making a statement and of supporting it by evidence. The commanding officer will then consider whether to dismiss the case, or to deal summarily with it himself, or, if the accused is below the rank of warrant officer, to order trial by summary court martial, or to adjourn the case for the purpose of having the evidence reduced to writing, with a view to trial by court martial, or, when the accused is an officer below the rank of Colonel or a junior commissioned officer or a warrant officer, summary disposal under Section 23 of the Act [*see* Army Act Rule 13(3)]. He cannot forthwith hold a summary court martial, unless the offence is one which a commanding officer can try without reference to superior authority, or, if the offence is one requiring such reference, he certifies that there is grave reason for immediate action and that such reference cannot be made without detriment to discipline (*see* Army Act Section 99). A summary of evidence and charge-sheet must accompany all references to superior authority.

14. Caution as to expressing opinion.– During the investigation, the officer conducting it must be careful not to let fall, before he disposes of the case, any expression of opinion as to the guilt of the accused, or one which might prejudice him at a subsequent trial. It may happen that officers who have been present at the investigation are detailed as

members of the court convened in consequence of it; therefore, nothing should be said or done which might, though unconsciously, bias their judgment beforehand. Conduct sheets should be examined by the commanding officer when, and not before, he has satisfied himself as to the guilt of the accused.

15. Adjournment for taking a summary of evidence.– Where a commanding officer adjourns the case for the purpose of having the evidence reduced to writing, the evidence of all material witnesses (whether called before the commanding officer or not) must be taken down in writing before the commanding officer or (as is usually the case) before some officer deputed by him, in the presence of the accused, who must be allowed to cross-examine them [Army Act Rule 13(4) & (5)]. The commanding officer can, if necessary, issue a summons requiring the attendance of a civilian witness [Army Act Section 109 & Rule 13(9)]. The witnesses cannot be sworn or affirmed. In certain cases a signed statement of evidence may be accepted – *e.g.,* where the attendance of a witness cannot be readily produced. In such a case the officer taking the summary must certify the reason for accepting a written statement.

When all the evidence for the prosecution has been taken, the accused, before he makes any statement, must be formally cautioned in the prescribed words [Army Act Rule 13(6)]. Any statement of the accused will be taken down, but he will not be cross-examined upon it.

16. Mode of taking summary.– Great care is necessary in taking a summary of evidence. The discrepancies not infrequently observable between the statements recorded in the summary of evidence and the evidence given before a court martial may often be traced rather to the hasty or careless preparation of the summary than to any prevarication or desire on the part of the witnesses to mislead. Moreover, a carelessly prepared summary of evidence may require reference between the convening officer and the commanding officer of the accused and be a cause of delay in bringing the accused to trial.

17. Remand of accused for trial by court martial.– When the summary of evidence has been taken, the commanding officer must consider it and finally determine whether or not to remand the accused for trial by court martial [Army Act Rule 14(1)]. It may be that on reading the evidence he will come to the conclusion that the case is one which ought to be disposed of summarily or even dismissed. If a court martial is ordered or applied for, it is a matter for discretion whether the accused need be kept in arrest or confinement until the charge is disposed of. It is the duty of the commanding officer on reading the summary of evidence to note

whether or not the evidence taken down in the summary corresponds with the evidence given at the inquiry before him. If the commanding officer decides to remand the accused for trial by court martial, he must next consider by what class of court he should be tried. As a rule, this will be a summary court martial, sanction being previously obtained where such sanction is necessary (Army Act Section 99). When applying for a general or district court martial or for sanction to hold a summary court martial, the summary of evidence and charge-sheet should be submitted with the application.

18. Use of summary of evidence.– The summary of evidence may be used for certain limited purposes at the trial, and also for the purpose of giving notice to the accused of the charge he will have to meet, and to the convening officer, president and judge advocate (if any) of the case to be tried. Either the summary itself or a copy must be laid before the court martial [Army Act Rule 32(1)].

(iii) Summary Powers of Commanding Officers

19. Powers of commanding officer.– Section 23 of the Army Act empowers the Government on the recommendation of the Chief of Army Staff, to prescribe the minor punishments to which persons subject to the Act shall be liable without the intervention of court martial and the officers by whom such punishments may be awarded. These minor punishments are set out in Army Act Rule 17.

There is no offence which a commanding officer is compelled by law or by rules to send before a court martial, and each case must be dealt with on its merits. But a commanding officer must not exercise his power arbitrarily and should not dispose summarily of a case which he is debarred by Section 99 of the Act from trying by summary court martial without reference to a superior authority, or any other case which deserves a more severe punishment than he is empowered to award summarily.

Except as provided by item V(a) of the Table annexed to Army Act Rule 17, a commanding officer has no power to punish an officer. The custom of the service, however, allows a commanding officer or any superior officer to reprove an officer for a minor breach of discipline not sufficiently serious to justify its being made the subject of a charge under the Act, either for trial by court martial or for summary disposal under Section 23 of the Army Act and Rule 17. Such a reproof is not a punishment but might have the effect of condoning the offence so as to debar a charge from being subsequently preferred against an officer, "if the condition contained in 'Explanation' to Army Act Rule 43(1) is fulfilled".

Commanding officers must, therefore, be careful not to administer such a reproof in cases where a superior authority might wish to take stronger disciplinary action.

20. Right of appeal from summary award.– There is no appeal from the award of a commanding officer, or other superior officer, but, as has been already mentioned, an officer, junior commissioned officer or warrant officer may, instead of submitting to a summary award of forfeiture of service for the purpose of promotion or seniority, elect to be tried by court martial. Other persons cannot demand a court martial; but if any person conceives himself wronged by the award he may make a complaint in the manner prescribed by the Act. Further, a punishment awarded by a commanding officer, which appears to be wholly or partly illegal, or too severe, can be cancelled, varied, or remitted by certain superior officers (Army Act Rule 18).

21. No trial after punishment by commanding officer.– Once an offender has been punished or the charge otherwise disposed of by his commanding officer or some other officer, he cannot be tried by court martial for the same offence; and similarly he cannot be subjected to a minor punishment, including a stoppage of pay, for any offence of which he has been acquitted or convicted by a court martial or a criminal court *(see* Section 90 of the Act).

When a commanding officer has awarded punishment, he cannot afterwards increase it. His award is complete when the man has left his presence.

(iv) Summary Awards by Superior Authority

22. Summary powers of superior Authority.– Officers below the rank of colonel, junior commissioned officers and warrant officers may be summarily dealt with by one of the superior authorities specified in Rule 17. Such officers, junior commissioned officers and warrant officers may be subjected to one or more of the following punishments:– forfeiture of service for promotion (in the case of those whose promotion depends on length of service) and forfeiture of seniority of rank for a period not exceeding twelve months, severe reprimand or reprimand and stoppages under Section 65(1)(d) or (2)(h). Awards which appear to be illegal or excessive can be reviewed by superior authority.

23. Hearing of charge.– When an officer, junior commissioned officer, or warrant officer is remanded for summary disposal of a charge against him by superior authority, a copy of the summary of evidence or (in the case of an officer where there is no summary of evidence) an abstract

of the evidence should be given to him not less than 24 hours before the trial.

The authority empowered to deal summarily with the charge must, unless he dismisses the charge, or unless the accused has consented in writing to dispense with the attendance of witnesses, hear the evidence in the presence of the accused, who will be given full opportunity to cross-examine any witness against him, and to call any witness and to make a statement in his defence. If the accused consents in writing, the above authority may deal with the case summarily after reading the summary or abstract of evidence. Evidence given before a court of inquiry is not admissible, and cannot be used as a summary or abstract of evidence, even with the consent of the accused.

24. Disposal of charges.– An authority can dispose of a case summarily, not only if asked to do so, but also if he is asked to convene a court martial for the trial of the offender. Even if he is asked to deal summarily, with the case, he can, if he thinks it desirable, convene a court martial. If on perusal of the summary (or abstract) of evidence and other documents he thinks fit, he can at once, without bringing the accused before him, either dismiss the case or order a court martial, or he can decide to hear the evidence with a view to dealing summarily with the case. After hearing the evidence, the authority can still dismiss the case or order a court martial, or he can deal summarily with it, but, if he proposes to award a punishment of forfeiture of seniority or service for promotion, the accused has the right to claim trial by court martial.

CHAPTER IV

COURTS MARTIAL

(i) Description of Courts Martial and How Convened

1. Description of courts martial.– A person subject to the Army Act [see Army Act Section 2(1)] who is to be tried by court martial may be brought before a summary court martial, a district court martial, or a general court martial. In certain circumstances, trial may be by field general court martial.

The summary court martial is the tribunal most frequently used in the Bangladesh Army, and is specially dealt with in paras 8, 19, and 93 to 104 of this chapter.

2. Distinction between district and general courts martial.– The difference between a district and a general court martial consists mainly in their composition and in the extent of punishment which each tribunal can award.

3. Order convening the court.– A district or a general court martial depends for its jurisdiction upon the order which calls it into being, namely, the convening order issued by a person authorised under the Army Act to convene it.

4. Convening of district court martial.– A district court martial may be convened by an officer authorised to convene a general court martial or by an officer who has received from such officer a warrant authorising him to convene district court martial (Army Act Section 82).

5. Convening of general court martial.– A general court martial may be convened by the Chief of Army Staff, Bangladesh Army or by an officer who has received from the Chief of Army Staff, Bangladesh Army a warrant authorising him to convene general courts martial (Army Act Section 81).

6. Forms of warrants.– The forms of the various court martial warrants at present in use are set out in Part IV of this Manual.

7. Powers conferred by warrant.– Any such warrant may contain any reservations or special provisions and may be wholly or partly revoked by a fresh warrant. It is normally addressed to an officer by the designation of his office, but sometimes, by name and gives authority to the officer on whom the command may devolve in his absence.

Where any person subject to the Army Act has been sentenced to death and in the case of an officer, transportation or imprisonment, or to be dismissed from the service the sentence can only be confirmed by the Chief of Army Staff, Bangladesh Army.

District court martial warrants contain no special provisions.

(ii) Jurisdiction

8. Jurisdiction of summary court martial.– A summary court martial cannot try an officer, a junior commissioned officer or a warrant officer or a person subject to the Act as such (Army Act Section 100). It has jurisdiction to try any offence under the Act (except such as can only be committed by an officer, junior commissioned officer or warrant officer), but in the case of certain offences the sanction of superior authority must be obtained unless immediate trial is considered by the commanding officer to be necessary (Army Act Section 99). Certain restrictions are also placed by Section 59 upon its powers to try cases of culpable homicide and rape; it cannot, of course try a case of murder.

A summary court martial cannot award a sentence higher than one year's rigorous imprisonment (Army Act Section 101), provided that an officer below the rank of Major shall not award more than three months.

9. Jurisdiction of district court martial.– A district court martial cannot try an officer, junior commissioned officer or warrant officer or a person subject to the Act as such. It has complete jurisdiction to try any offence except such as can only be committed by an officer, junior commissioned officer or warrant officer, though the same restrictions are placed by Section 59 upon its powers to try cases of culpable homicide and rape as are imposed upon a summary court martial.

A district court martial cannot award a sentence higher than two year's rigorous imprisonment; it cannot, therefore, try a case of murder where the only punishment which can be awarded is death or transportation for life (Army Act Section 98).

10. Jurisdiction of general court martial.– A general court martial can try any person subject to the Act. It has complete jurisdiction to try any offence, though the same restrictions are placed by Section 59 upon its powers to try cases of murder, culpable homicide and rape, as are imposed upon a summary and a district court martial. A general court martial can award any punishment authorised by the Act, including the punishments of death and transportation (Army Act Section 97).

11. No power to try persons already convicted, acquitted, etc.– A court martial cannot try or punish a person for any offence of which he has been already acquitted or convicted by a court martial or by a competent civil court or where the charge against him has been dismissed or the offence dealt with summarily by his commanding officer; or where a charge against an officer, junior commissioned officer or a warrant officer has been dismissed or the offence dealt with summarily by the authority authorised for the purpose (Army Act Section 90).

The prohibition does not apply where there has been no valid trial resulting in an acquittal or conviction, or in the case of an acquittal or conviction which requires confirmation, where the finding and sentence have not been confirmed; but a fresh trial should be ordered only in exceptional circumstances.

Pardon or condonation by competent military authority if held to be proved, will operate to prevent a person from being tried by court martial [Army Act Rule 43(i) and (ii).]

12. Time limit for trial.– An offence, other than mutiny, desertion or fraudulent enrolment, cannot be tried by court martial if three years have elapsed since the date of its commission.

In certain cases a person (other than an officer) cannot be tried even for desertion (other than desertion on active service) or for fraudulent enrolment, if three years have elapsed form the date of commission of the offence (Army Act Section 91).

A person who commits an offence while subject to the Act, but has since ceased to be so subject, remains liable to trial for such offence within six months of the cessation of such subjection, but this limitation does not apply to offences of desertion, fraudulent enrolment or offences mentioned in Section 31 (Army Act Section 92).

13. Place of trial.– An offence, wherever committed may be tried and punished at any place whatever (Army Act Section 93).

But for obvious reasons, a person subject to the Act cannot be tried in a foreign country, unless the laws of that country provide facilities for conducting the trial or punishing the offender, *e.g.,* to compel attendance of refractory witnesses or to execute sentences of imprisonment, etc.

(iii) Composition

14. District Court Martial.– A district court martial must be composed of at least three officers, each of whom must have held a commission for not less than two years (Army Act Section 86).

The members of the court may belong to the same corps or department as that to which the accused belongs, but where practicable they should belong to different corps or departments.

The president is appointed by order of authority who convenes the court and may be of any rank.

The members of the court may be mentioned by name in the convening order, or their rank and the unit to which they belong may alone be stated.

15. General Court Martial.– A general court martial must be composed of at least five officers, each of whom must have held a commission for not less than three years (Army Act Section 85).

The members of the court must, so far as is practicable, belong to different corps or department, and in no case shall the court be composed exclusively of officers of the corps or department to which the accused belongs (Army Act Rule 31).

The president is appointed by order of the authority who convenes the court (Army Act Section 102).

Four of the members must be of a rank not below that of Captain; an officer below that rank cannot be a member of the court for the trial of a field officer; and no officer junior in rank to an accused officer can serve as a member if officers of equal or superior rank are available [Army Act Section 85, and Rule 31(2) and (3)].

16. Disqualifications of officers.– Officers, who are eligible on account of the length of their commissioned service to act as members of courts martial, may nevertheless be disqualified from serving on a particular court martial. The following persons are disqualified in the case of a district or general court martial [see Army Act Rule 30(2)]:

(i) the convening officer;

(ii) the prosecutor;

(iii) a witness for the prosecution;

(iv) the commanding officer of the accused or an officer who investigated the charges before trial or took down the summary of evidence;

(v) the company, etc., commander who made preliminary enquiry into the case;

(vi) an officer who was a member of a court of inquiry into the matters on which charges against the accused are founded;

(vii) where the accused has been previously tried for the same offence, but the proceeding have not been confirmed, any officer who was a member of the court martial by which the offence was tried; and

(viii) an officer who has a personal interest in the case.

(iv) Duties of Convening Officer

17. Consideration of proposed charges and evidence.– An application for a general or district court martial should be accompanied by a summary or abstract of evidence, a charge-sheet and certain other documents stated on the form provided for such applications.

Before acceding to an application for a general or district court martial submitted by a commanding officer, the convening officer must consider the nature of the case, the statutory provisions and regulations applicable to it and, subject thereto, must use his discretion as to the mode of disposing of the application. He must satisfy himself that the charge submitted by the commanding officer discloses an offence under the Army Act and is properly framed in accordance with the Rules. He must also be satisfied that evidence sufficient to justify trial is disclosed in the summary or abstract of evidence; if he thinks that it does not, he should order the accused to be released; if he is in doubt, it is within his discretion to order the release of the accused or to refer the matter to superior authority [Army Act Rule 28(1)]. In any case he may direct the commanding officer to alter the form of the proposed charge in view of the evidence submitted; he may give directions that further evidence should be obtained; in a suitable case he may direct that the accused should be released without prejudice to his re-arrest when further evidence is forthcoming.

Where an accused person is to be arraigned on a serious charge, other charges in respect of minor offences may be dropped.

If the convening officer considers that a case should be disposed of summarily or by summary court martial instead of by a district or general court martial, he should take steps to effect this.

In all cases of indecency, fraud, theft (except ordinary theft) and civil offences, and in any case of doubt or where the case is to be tried by general court martial, the charge and summary of evidence have to be submitted to the Deputy Judge Advocate General.

18. Decision to try by court martial.– If the convening officer is of opinion that the case should be tried either by a district or a general court martial, he will, if the terms of the Warrant granted to him permit, convene the court martial; if the case is one for trial by a general court martial and he holds no warrant to convene such a court, he will refer the case to proper superior authority holding such warrant.

19. Type of court martial to be convened.– The powers of a summary court martial are sufficient to deal with all ordinary offences committed by persons below the rank of warrant officer. In the case of aggravated offences, however, a district or general court martial may properly be convened.

In forming his decision as to whether the case should be tried by district or general court martial (where the circumstances permit trial by either one or the other of these tribunals) the convening officer will have regard to various considerations, including the prevalence of the particular offence charged, the general state of discipline in the corps or division, the character of the accused, and, in some cases, the sentence which the court ought to be in a position to award, if the facts alleged should be proved.

A case should not, as a rule, be sent for trial unless there is reasonable probability that the accused person will be convicted. At the same time there may be cases where disgraceful charges have been preferred and where a court martial affords the only means to the accused of clearing his character.

20. Order for trial by court martial.– The convening officer, having settled or approved the charges on which the accused is to be tried, will insert upon the charge-sheet an order that they are to be tried by the description of court martial which he has decided to convene. It is within his power to direct charges to be inserted in different charge-sheets, upon each of which the accused will be separately tried as far as and including the finding; if there are separate charge-sheets the convening officer may direct that in the event of a conviction upon any one of them the accused need not be tried upon the others (Army Act Rule 66).

Each charge-sheet must be signed by the commanding officer of the accused and bear upon the face of it the convening officer's directions for trial *(see* Note to Army Act Rule 19).

(v) Preparation of Defence by Accused.

21. Full information to be given to accused.– As soon as practicable after an accused has been remanded for trial by a district or general court martial and at least 24 hours before he is brought up for trial, an officer must give to him a copy of the summary, or (if he is an officer and there is no summary of evidence) the abstract of evidence, and apprise him of his rights in connection with the preparation of his defence [Army Act Rule 23 (2)].

As soon as trial has been ordered, proper opportunity to prepare his defence must be afforded to the accused, who must be permitted to have free communication with any witnesses whom he may desire to call, and with any 'friend', defending officer or legal adviser whom he may wish to consult if they are available [Army Act Rule 23(1)].

As soon as practicable before he is arraigned for trial, an officer must hand to him a copy of the charge-sheet, and, if necessary, explain the charge-sheet and charges to him. The officer in question must also inform him of his rights in connection with the securing of witnesses on his behalf (Army Act Rule 24).

The accused, if charged jointly with any person whom he claims as a material witness for his defence, may apply to be tried separately from that person, and the convening officer may grant a separate trial if the nature of the charge permits (Army Act Rule 25).

The accused is entitled to have, if he desires it, a list of the officers who will form the court as soon as they have been detailed [Army Act Rule 24(3)]; he is not bound to give the prosecutor a list of his own witnesses (Army Act Rule 119).

22. Securing legal aid for defence and prosecution.– The accused may himself arrange for the services of counsel to represent him at his trial. If he intends to be represented by counsel, he must give notice to that effect, so that the convening officer may, if he considers it desirable, obtain the services of counsel on behalf of the prosecutor. If the accused does not intend to be so represented but counsel has been obtained on behalf of the prosecutor, the convening officer must take steps to inform the accused to that effect not less than seven days before the trial, so that the accused may himself obtain counsel for his defence, if he so desires (Army Act Rule 83). Similar notice should be given to the accused where the convening officer intends to appoint or apply for the services of an officer with legal qualifications to act as prosecutor at the trial.

23. Qualifications, duties, etc., of counsel and defending officer.– The qualifications of counsel *(i.e.,* barristers-at-law, pleaders, etc.,) are set out in the Rules, as are also their functions, rights and duties (Army Act Rules 82 to 87).

A defending officer has the same functions, rights and duties as counsel. The 'friend' of the accused can only act in an advisory capacity (Army Act Rule 81).

24. Assignment of defending officer for accused.– In order to ensure that an accused person is represented at his trial if he so desires, it is the duty of the officer referred to in paragraph 21 above, at the time he hands the summary of evidence to the accused, to ask him to state in writing if he wishes to have a defending officer assigned to him by the convening officer; if he does so wish, the convening officer must use his best endeavours to secure the services of a suitable officer [Army Act Rule 23 (2)].

(vi) Assembly of Court

25. Assembly of Court.– When a district or general court martial assembles at the time and place named in the convening order the members will take their seats according to their army rank (Army Act Rule 62). If a judge advocate has been appointed, he must be present, as should also be any waiting members detailed in the convening order to serve as members of the court if required.

The order convening the court, the charge-sheet and the summary (or abstract) of evidence will then be produced by the president, [Army Act Rule 32(1)] to whom they will have been forwarded previously by the convening officer [Army Act Rule 28(4)].

26. Inquiry as to composition of court.– The court will examine the convening order for the purpose of ascertaining whether the members who have taken their seats, the judge advocate (if any), and any waiting members present who may have been detailed are those mentioned in the order. If the members present are not actually named in order they must be of the actual ranks and belong to the actual units stated therein. The president is appointed by name (Army Act Section 102).

If the convening order appears on the face of it to be proper and to have been duly signed, the court will have fulfilled their first duty namely, that of satisfying themselves that they have been convened in accordance with the Army Act and Rules (Army Act Rule 32).

27. Inquiry as to legal minimum of members.– The court will next ascertain that the legal minimum of members required by the Army Act for a district or general court martial (as the case may be) has been detailed and is present (Army Act Sections 85 and 86). Where the membership of the court, as detailed in the convening order, is incomplete, waiting members, if there are any, and if they are eligible and qualified, must take the place of absentee members.

If the number of members detailed in the convening order exceeds the legal minimum, but some of them are absent at the assembly of the court, the court should ordinarily adjourn unless sufficient waiting members are available in place of the absentee members to make up the full number detailed in the convening order; but the court, in the interests of justice and for the good of the service, may proceed with the trial provided that the legal minimum is present. If the legal minimum is not present, the court must adjourn (Army Act Rule 29).

28. Inquiry as to eligibility and qualifications of members.– The court will then satisfy themselves that all the members are eligible and not disqualified under the Army Act and Rules [Army Act Rule 32(1)(iii)]. The eligibility of an officer depends on his status as an officer that is, on his being subject to military law or otherwise qualified to serve under the provisions of the Army Act and having held a commission for the required period. Disqualification is a personal question, and depends on his being, or having been in any manner, a party to the case. The grounds of ineligibility and disqualification are set out in paragraphs 14 to 16 above.

If the trial is by general court martial, the court must be satisfied that the members are of the required rank (Army Act Section 85).

29. Judge advocate.– Where a judge advocate has been appointed, the court should ascertain that he has been duly appointed and is not disqualified. The convening officer appoints the judge advocate, who must be an officer of the department of the Judge Advocate General, Bangladesh Army, if such an officer is available. A judge advocate must be appointed for every general court martial, and may be appointed for a district court martial (Army Act Section 103).

30. Powers of adjournment of court.– The court has wide discretionary powers of adjournment if not satisfied on any of the above matters, and circumstances may arise which render an adjournment, compulsory, *e.g.,* if the court is finally reduced below the legal minimum. Any adjournment and the reason, therefore, must be reported to the convening officer [(Army Act Rule 32(3)].

31. Amenability to jurisdiction.– Having ascertained the validity of their constitution the court will next consider whether the accused is amenable to their jurisdiction [Army Act Rule 33(1)(i)]. The subject of the jurisdiction of district and general court martial is dealt with in paragraphs 9 to 13 above.

32. Inquiry as to validity of charges.– Finally the court must be satisfied that each charge discloses an offence under the Army Act and is properly framed in accordance with the Rules; and is so explicit as to enable the accused readily to understand what he has to answer [(Army Act Rule 33(1)(ii)].

If not satisfied on the above matters, the court should report their opinion to the convening authority and may adjourn for the purpose [Army Act Rule 33(2)].

(vii) Opening of the Court

33. Appearance of accused, prosecutor, counsel, etc.– At the conclusion of the above preliminary proceedings the accused will be brought before the court; if he is an officer, he will be in the custody of an officer, if he is a junior commissioned officer, in the custody of junior commissioned officer; if he is a non-commissioned officer, in the custody of a non-commissioned officer; if he is a *sepoy* in the custody of an escort. If necessary, an escort may be employed in any case.

The prosecutor, who must be a person subject to military law, will take his place in court, and accommodation will be afforded for the defending officer, counsel or 'friend' of the accused.

It is customary, though not obligatory, for the witnesses to be present in court from the time when the accused is brought in until after the members have been sworn; they must then withdraw and should not, as a rule, be allowed to be in the court when not under examination.

34. Opening of court.– The court is now open, and the public, whether military or otherwise (including the press), may be admitted so far as accommodation permits. It may be closed at any time to enable the members to deliberate in private (Army Act Rule 67).

A court martial is an open court like other courts of justice, but it has inherent powers to sit in camera if such course is necessary for the administration of justice.

35. Objection by accused to members of court.– The convening order will next be read in full by the president or judge advocate (if any), and the members will answer to their names (Army Act Section 104 and Army Act Rule 35). The accused will be asked whether he objects to be tried by the president or any of the officers whose names have been read.

The Army Act and Rules contain elaborate provisions as to the mode of enquiring into and disposing of objections by or on behalf of the accused. If the president is himself successfully objected to the authority convening the court alone can appoint a new president, *vide* Section 102, subject to the same right of the accused to object. If, upon a successful objection to a member, no waiting member, who is eligible and qualified, is available to fill the vacancy, the court should normally adjourn, but may proceed with the trial in certain circumstances, provided that there is a legal minimum of members present (Army Act Section 104 and Army Act Rules 29 and 35).

Where, upon a successful objection to a member of the court, an adjournment is necessary, the convening officer can, if he pleases, convene a new court, as the trial of the accused is not considered to begin until the court are sworn [Army Act Rule 29(2)].

36. Swearing of court, judge advocate, etc.– As soon as the court is finally constituted, the president, members and judge advocate (if any) will be sworn or affirmed, all present in court standing. Officers attending under instruction, the short-hand writer and interpreter (if any) will also be sworn or affirmed at this stage, though a short-hand writer or interpreter may be sworn at any time during the trial (Army Act Rules 36, 37 and 76). The accused has a right of objection to a short-hand writer or interpreter [(Army Act Rule 76(3)], but not to the judge advocate or officers under instruction.

The court may be sworn at one time to try several accused persons in succession provided that such persons are present when the oath is taken and have been given an opportunity of objecting to members (Army Act Rule 75). The form of oath or affirmation and the manner of taking it by all persons required to be sworn or affirmed, and the persons who are to administer it are prescribed in the Rules. Provision is also made whereby an oath or affirmation may be taken in such form as the court ascertain to be binding on the person's conscience (Army Act Rule 36, 37, 38, 93 and 123).

37. Absence of members during trial.– A member of a court who has been absent during any part of the evidence ceases to be a member, and an officer cannot be added to a court martial after the accused has been arraigned.

(viii) Arraignment of Accused

38. Reading of charges.– As soon as the members, judge advocate (if any) and others have been sworn, the accused will be arraigned. Arraignment consists in the reading of each charge upon a charge-sheet separately to the accused and asking him whether he is guilty or not guilty of it (Army Act Rule 38). The judge advocate, or, where there is no judge advocate; the president conducts the arraignment.

If there are several charges on one charge-sheet, the accused may claim separate trial on each or any charge on the ground that unless so tried, he will be embarrassed in his defence (Army Act Rule 66).

If there are alternative charges upon one charge-sheet, and the accused pleads guilty to the first of such alternatives, the prosecutor may withdraw the other alternative charges before the accused is arraigned upon them; otherwise the accused will be arraigned upon all the charges whether they are alternative or not [Army Act Rule 42(1) and (3)].

If there is more than one charge-sheet, the court must not arraign the accused upon any subsequent charge-sheet until their finding upon the first charge-sheet has been arrived at [Army Act Rule 66 (1)].

The accused, if charged jointly with any person whom he claims as a material witness for his defence, may apply, if he has not already done so, to be tried separately from that person, and the court may grant separate trial if the nature of the charge permits (Army Act Rule 25).

39. Objection to charge.– Before pleading to any charge, the accused may object to the charge as not disclosing an offence under the Army Act or as not being in accordance with the Rules. If the court disallows the objection, the trial will proceed; if they allow it, they will or, if in doubt, they may adjourn to consult the convening officer, who may amend the charge and direct that the trial be proceeded with (Army Act Rule 39).

The court may always themselves amend a mistake in the charge-sheet so far as it relates to the name and description of the accused but not otherwise (Army Act Rule 40).

Apart from any objection by the accused, the court has power, before any witnesses are examined, to report their opinion as to any charge, which appears to them to be faulty, to the convening officer, who may either amend the charge or direct a new trial to be commenced [Army Act Rule 40(2)].

40. Plea to the jurisdiction.– The accused, before pleading to any charge, may offer a plea to the general jurisdiction of the court and give evidence in support of that plea. The court will decide this question of jurisdiction in the same manner as any other question. If the plea is overruled, the court will proceed with the trial, if it is allowed, the court must record their decision and the reason, therefor, report to the convening officer and adjourn; if in doubt, the court may either refer to the convening officer or record a special decision and proceed with the trial (Army Act Rule 41).

A plea to the jurisdiction is a plea to the right to try the accused on any charge as distinct from a plea which relates to a particular charge. The grounds for such a plea are shown in paragraphs 8 to 12 above.

41. Recording of plea; refusal to plead, insanity, etc.– The objection and plea referred to in the two preceding paragraphs having been disposed of (if raised) the accused's plea to the charges upon which he has been arraigned will be recorded; this will normally be 'guilty' or 'not guilty'. But the accused may refuse to plead or plead unintelligibly, in which case a plea of 'not guilty' must be recorded [Army Act Rule 42(1)]; or it may be urged that the accused is unfit to plead by reason of insanity, for which event the Army Act and Rules contain provisions (Army Act Section 130 and Army Act Rule 128).

42. Plea in bar of trial.– In addition to pleading 'guilty' or 'not guilty', the accused may offer a plea in bar of trial, setting up that he has been previously acquitted or convicted of the offence now charged, or that such offence has been pardoned or condoned by competent authority *(see* paragraph 11 above), or that trial is barred by lapse of time *(see* paragraph 12 above). Upon the hearing of this plea, evidence may be offered both by the accused and prosecutor and addresses may be made. If the court finds it proved, they will notify this finding to the confirming authority and adjourn, though they may proceed with any other charge not affected by the plea. In either case finding on the plea requires confirmation (Army Act Rule 43).

43. Plea of guilty.– If the accused pleads 'guilty' to a charge, the president or judge advocate (if any) must, before recording the plea, carefully explain to him the nature of the charge and effect of his plea. It should also be pointed out to him that on a plea of 'guilty' there will be no regular trial but merely a, consideration by the court of the sentence to be awarded; that he is entitled to make a statement in mitigation of punishment and call witnesses as to his character [Army Act Rule 42(2)]. He should also be informed that if he wishes to prove provocation or extenuating circumstances having direct relation to the offence, he should plead 'not guilty'.

The court must not accept a plea of 'guilty' in a case where the accused is liable, if convicted, to be sentenced to death; in such a case plea of 'not guilty' will be recorded [Army Act Rule 42 (4)].

44. Mixed plea.– If the accused adheres to his plea of 'guilty', the court will then proceed to try the accused upon any other charge upon the same charge-sheet to which he has pleaded 'not guilty' and reach there finding thereon before proceeding further with the plea of 'guilty' [Army Act Rule 44(1)]. The Rules make special provisions in the case where the accused pleads guilty to the first of two or more alternative charges [Army Act Rule 42(3)].

45. Procedure on plea of guilty.– When the court proceeds with a plea of 'guilty', the summary (or abstract) of evidence will be read and sufficient evidence will be recorded to cover any deficiencies in the summary (or abstract). The accused or his counsel or defending officer may make a statement in reference to the charge and in mitigation of punishment, and witnesses as to character may be called [Army Act Rules 44(2) and (3)].

If from the statement of the accused, or from the summary (or abstract) of evidence, or otherwise, it appears to the court that the accused did not understand the effect of his plea, the court must enter a plea of 'not guilty' and proceed with the trial [Army Act Rule 44(4)].

The procedure in connection with taking evidence of the character of the accused and the particulars of his service, and the consideration and award of sentence is dealt with in paragraphs 67 to 78 below.

46. Duties of president.– It should be stated here that the president is responsible for the proper conduct of every trial whether the accused pleads 'guilty' or 'not guilty'. He must ensure that the accused does not suffer any disadvantage by reason of the fact that he is being tried, or because of his ignorance or incapacity to make clear either his defence to the charge or the grounds upon which he relies in mitigation of any punishment which may be awarded (Army Act Rule 63).

(ix) Trial on Plea of 'Not Guilty'

47. Duties of prosecutor.– The prosecutor should always make an opening address if the case is a complicated one, and the court may require such address to be made. He should explain the substance of the charge and outline the proposed evidence to be called in support of it [Army Act Rule 46(ii)].

The prosecutor is not a partisan but an officer of justice whose duty it is by laying all relevant facts in evidence before the court to assist the court in ascertaining the truth. He must act with scrupulous candour, fairness and moderation towards the accused, the witness and the court (Army Act Rule 64). Any departure from this rule of conduct should at once be checked by the court.

48. Witnesses for prosecution.– The witnesses for the prosecution will now be called. Each witness will take the necessary oath or make the required affirmation (Army Act Rule 123), and his examination will be conducted by the prosecutor, who must be careful to refrain from asking leading or suggestive questions. After giving his evidence 'in chief' or 'in direct examination' a witness may be cross-examined by or on behalf of the accused and re-examined by the prosecutor on matters raised by the cross-examination. The president, judge advocate (if any), and, with permission of the court, any member of the court may question a witness at any time before he withdraws, but such questions should not be put until after the re-examination by the prosecutor (Army Act Rule 125).

49. Recording evidence.– As a witness gives his evidence it must be translated (if not in English) and taken down, in narrative form in as nearly as possible the words used; occasionally it may be material or desirable to take down question and answer verbatim. The judge advocate or if there is none, the president must record the evidence or cause it to be recorded, and is responsible for its accuracy and for the proceedings as a whole (Army Act Rule 78). The form in which record is to be made is provided in the Third Appendix of the Rules.

50. Interpreters.– Where an interpreter is employed, great caution should be exercised to ensure accurate translation and to guard against misconception of the true meaning of any expression, from either the incompetence or possible bias of the interpreter.

A member of a court martial is not disqualified from acting as an interpreter, but this is inconvenient where the evidence requiring interpretation is likely to be prolonged.

51. Reading over the evidence.– Before a witness withdraws, the whole of his evidence as recorded must be read to him to ensure its accuracy; he may then make further explanations or corrections.

52. Procedure on case for defence.– After the evidence for the prosecution has been given, the accused will be asked if he wishes to call witnesses in his defence either as to the facts or as to character; his answer will be recorded. The correct procedure to be followed hereafter

will depend upon the answer which he has given and whether or not he is represented by a defending officer or counsel; and in order to determine the proper sequence in which, in varying circumstances, the evidence for the defence is to be taken and the statement of the accused and the addresses on behalf of the prosecution and defence are to be made, the court will consult Rules 47 and 48, wherein every possible variation and contingency are provided for.

53. Addresses for defence and reply.– Where an opening address by or on behalf of the accused is permitted, the terms of such address should be directed mainly towards outlining the evidence to be called for the defence. The prosecutor in his final address or reply may sum up the evidence generally and comment on the statement of the accused and on the evidence of the witnesses for the defence, and he may suggest the inferences which the court may draw from the facts proved.

In no case may the prosecutor, counsel or defending officer, in the course of an address, state as a fact any matter which has not been proved or which it is not intended to prove in evidence; nor may they state what is their opinion as to any matter of fact which the court has to decide (Army Act Rule 86).

54. Latitude to accused in defence.– The accused must be allowed great latitude in making his defence, and will not, within reasonable limits, be stopped by the court merely for making irrelevant observations (Army Act Rule 64).

If the accused elects to make a statement in his defence, he cannot be cross-examined by the prosecution or questioned by the court or by any other person [Army Act Rule 47(2)(ii)(a) and 48(ii)(a)].

55. Witnesses for defence.– The witnesses for the defence will be examined by the accused or his counsel or defending officer and may be cross-examined by the prosecutor, and re-examined; they may also be questioned by the court [Army Act Rule 125 (1)].

56. Recalling of witnesses.– At the request of the prosecutor or accused, and by leave of the court, a witness may be recalled for the purpose of having further questions put to him through the president or judge advocate (if any). The court may also allow the prosecutor to call or recall a witness to rebut any material evidence on any unforeseen matter which may have arisen or, as a reply to the witnesses to character called for the defence, to prove previous convictions against the accused. In all these cases the additional evidence must be given before the closing address by or on behalf of the accused. The court may, of their own

motion, call or recall any material witness if it is necessary to do so in the interest of justice; such witness may be called or recalled at any time before the finding of the court is arrived at (Army Act Rule 126).

57. Withdrawal of plea of 'not guilty'.– An accused person is at liberty at any time to withdraw a plea of 'not guilty' and plead 'guilty' (Army Act Rule 45).

58. Summing-up by judge advocate.– When all evidences have been given and addresses made, the judge advocate (if any) will sum up, unless both he and the court consider a summing-up to be unnecessary. He should always do so where the facts are difficult or complicated, and in particular where special legal directions are required to be given. The summing-up should be in writing and must be impartial (Army Act Rules 49 and 89).

(x) Consideration of Finding

59. Finding in closed court.– The finding must be considered in closed court (Army Act Rule 50), the president, the members, and officers under instruction alone being present. Provided that if in the course of deliberation on finding, the court require the advice of judge advocate, the deliberation shall be suspended and the judge advocate's advice shall be asked and given in open court (Army Act Rule 50). The court must record a finding on every charge upon which the accused was arraigned, including any alternative charge [Army Act Rule 51(1)].

60. Onus of proof; reasonable doubt; corroboration.– At the outset of their deliberations the court must remember that the accused is presumed to be innocent until he is proved to be guilty, and that the burden of proof rests upon the prosecution. Unless, therefore, the guilt of the accused has been established beyond reasonable doubt, the accused must be acquitted, as the prosecution has failed to sustain adequately the burden of proving his guilt.

It is legally open to a court to convict an accused person upon the evidence of one credible witness. But in some cases corroboration of such witness is required by practice almost amounting to a rule of law; in others it is desirable that corroboration should be looked for, though not actually required by law or practice, *see* Chapter V, particularly para 89.

61. Extraneous considerations.– The court, in considering their decision must not be influenced by the consideration of any supposed intention of the convening officer in sending the accused for trial by a

particular kind of court martial. In many cases the convening officer will have decided no more than that a *prima facie* case against the accused is shown upon the summary of evidence, and he will have formed no opinion as to the guilt of the accused. An acquittal, therefore, is not in itself a reflection upon the convening officer. Even if it were, it would afford no reason whatever for a court to convict, unless the evidence established the charge.

62. Proof of facts charged; special finding on the charge.– The court must decide whether the facts alleged in the particulars of each charge have been proved in evidence, and, if proved, whether they disclose the offence stated in the charge itself or an offence of which they may, pursuant to their powers under Section 111 of the Army Act, find the accused guilty. Thus, on a charge of desertion they may find the particulars as to the period of absence proved, but not the intent to leave the service altogether or to avoid some particular important service– a necessary ingredient of the charge. In such a case they may return a finding of not guilty of desertion but guilty of absence without leave [Army Act Section 111(1)].

63. Special finding as to the particulars of a charge.– Where the court find that the facts proved in evidence differ materially from the facts alleged in the particulars of a charge, but are nevertheless sufficient to prove the offence charged, and that the difference is not so material as to have prejudiced the accused in his defence, they may record a special finding as to the particulars. Thus, on a charge of desertion, if the court are satisfied that the charge, as laid, is proved, but the period of absence was a shorter than that alleged in the particulars, they may make a special finding to that effect [Army Act Rules 51(4) and (5)].

64. Reference to confirming authority before finding.– The court, having arrived at a decision as to the facts of a case have power, in cases of doubt as to the legal effect of such a decision upon the charges preferred, to refer to the confirming authority for an opinion upon the matter before recording their finding [Army Act Rule 51(3) and (7)].

65. Voting on the finding.– Every member must give, by word of mouth, his opinion as to the finding which should be made on each charge separately [Army Act Rules 50(3) and 73(1)]. The opinion must be taken in succession beginning with the junior in rank [Army Act Rule 73(2)]. If the votes given are equal the accused will be deemed to be acquitted. The president has no second or casting vote upon the finding. A majority of votes will decide the issue, and the finding of the majority will be recorded as the finding of the court (Army Act Section 105).

66. Acquittal.– A finding of acquittal by a district or general court martial, whether upon all or any one or more of the charges in a charge-sheet, is not valid until confirmed by the confirming authority (Army Act Section 119), and it may be revised (Army Act Section 126).

An accused person may be "honourably acquitted" if his honour was affected by the charges preferred [(Army Act Rule 51(1)].

The record of the proceedings in the case of an acquittal upon all the charges in a charge-sheet will be authenticated by the signature of the president and judge advocate (if any) and forwarded to the confirming officer (Army Act Rule 52).

(xi) Proceedings on Conviction

67. Evidence as to character and service.– If the finding upon any charge is 'guilty' (whether or not the accused has pleaded 'guilty' thereto), and the trial of all charges has been completed, the court, for the purpose of determining their sentence, must, whenever possible, take and record evidence as to character, age, service, etc., of the accused. This evidence must be given by a witness on oath or affirmation, usually by the prosecutor, who will produce extracts from the regimental books relating to the accused in accordance with the Rules. The accused or his representative may then cross-examine this witness. Oral evidence of bad character cannot be given for the prosecution.

The accused may call evidence as to his good character at this stage, as well as during the hearing of the case for the defence, and the prosecutor has the right of cross-examination to test the veracity of such evidence, even if he thereby brings out evidence of the accused's bad character.

After all evidences as to character has been given, the accused, or his counsel or defending officer may address the court thereon and in mitigation of punishment (Army Act Section 118 and Army Act Rule 53).

The court will then be closed for consideration of sentence.

(xii) Award of Sentence

68. Legality and form of sentence.– The punishment awarded must be one of those allowed by the Army Act, Chapter VI; in some cases a combination of punishments is permitted by the Act (Army Act Section 62).

One sentence only must be awarded in respect of all the offences of which an accused person has been found guilty, even if the trial has proceeded on different charge-sheets, and where an accused person has been found guilty upon several charges, a sentence which can legally be awarded in respect of one of them will be valid notwithstanding that it could not legally have been awarded in respect of the others (Army Act Rule 54).

The sentence should follow the prescribed forms set out in the third Appendix to the Rules; or, if no form is exactly applicable, it should follow as nearly as possible the words of the Army Act.

69. Discretion as to sentence.– A court martial has (except in the case of an obligatory punishment for an offence under Section 59, *e.g.,* murder) an absolute discretion as to its sentence. It may award the maximum punishment allowable for the particular offence charged or such less punishment as is laid down in Section 60 of the Act, which sets out a graduated scale of punishments which a court martial may award (Army Act Section 60).

70. Maintenance of discipline the object.– In deliberating on their sentence a court martial should remember that the object of awarding punishment is the maintenance of discipline.

The proper amount of punishment to be inflicted is the least amount by which discipline can efficiently be maintained. Occasionally the exigencies of discipline, apart from the circumstances of a particular case, may render a severe sentence necessary, but in all cases the whole force should be in a position to realise that the punishment awarded to an individual is not more than is necessary in the interest of the force itself and for the maintenance of that discipline, without which anybody of troops must become an irresponsible mob and useless for the purpose for which it exists. It must be the object of all concerned to aim at that high state of discipline which springs from a military system administered with judgment and impartiality, and to induce in all ranks a feeling of confidence that while no offence will be passed over, no offender will in any circumstances suffer injustice.

71. Other considerations, degrees of criminality, etc.,– If the accused has elected to be tried by court martial instead of submitting to the jurisdiction of authority competent to deal with him under Section 23, his punishment should not ordinarily exceed that which that authority has power to award.

A non-commissioned officer should, as a rule, be more severely punished than a sepoy concerned with him in the commission of the same

offence, while the instigator of an offence should receive a more severe sentence than the person who was instigated to commit it. Where several offenders are found guilty of the same offence, it may often be proper to award different amounts of punishment and, in order that the respective degrees of criminality of several offenders charged in respect of the same transaction but tried separately may be more accurately determined, a court martial has power to postpone the awarding any sentence until all the offenders have been tried [(Army Act Rule 75 (4)].

72. Premeditation and provocation.– The court must pay special regard to the question whether the offences of which the accused has been found guilty were committed with or without premeditation and with or without provocation. It is obvious that a theft committed after long preparation deserves more severe punishment than a theft committed on the spur of the moment. Similarly, a court would be justified in awarding a more lenient sentence to a soldier who has been provoked into using criminal force to his superior officer than to one had deliberately used criminal force to his superior officer without provocation. As a general rule an improper use of words should not be treated with the same severity as offences against discipline involving physical acts.

73. Previous convictions.– It will be observed that under the Act certain offences have been made more severely punishable when repeated. For example, the offence of desertion, otherwise than on active service, committed for the first time is punishable with rigorous imprisonment up to two years. A second or subsequent offence is, however, punishable with imprisonment which may extend to ten years.

Even otherwise, due regard must be paid by a court martial to previous convictions. A habitual offender deserves far more severe punishment than an infrequent offender, and a first offender should always, if possible, be treated leniently.

74. Prevalence of offence.– Military offences must sometimes be considered in reference to circumstances other than those connected with the individual offender. When there is a general prevalence of offences or of offences of some particular kind, an example may be necessary; and on that account a severe punishment may properly be awarded in respect of an offence which would otherwise receive a more lenient punishment. In such cases the punishment must be regarded more from the point of view of the effect which it will produce on the force to which the offender belongs than from that of the offender himself.

75. Punishment to be just and proper.– Finally, the court, having due regard to the foregoing considerations, must always award such punishments as they themselves consider to be just and proper in the circumstances of the particular case. They must not presume that the convening officer, in sending the case for trial, took a more serious view of the facts than they themselves take.

76. Recommendation to mercy.– In view of the discretion of the court in the matter of awarding sentence, a recommendation to mercy will be exceptional. If such recommendation is made, it must form part of the proceedings and the reason for it must be recorded (Army Act Rule 55). It will usually be made only when the court, though unwilling to pass a lenient sentence lest the offence should be considered a venial one, think that owing to the offender's character and other exceptional circumstances, he should not suffer the full penalty which the offence would ordinarily demand. As a rule, the court will be able to adjust the sentence according to what, in their judgment, the offender should suffer having regard to the attendant circumstances. It is indisputable that offences are more effectually prevented by certainty, than by severity of punishment.

Any expression of opinion as to anything occurring before the court, and any matter which the court may desire to report, must be stated in a separate document for the information of the confirming authority [Army Act Rule 78 (5)].

77. Voting on the sentence.– Every member of the court must give his opinion as to the sentence to be awarded, even if he had voted for an acquittal upon the finding. The officer junior in rank must first give his opinion. In the case of an equality of votes, the decision must be in favour of the accused. The president has no second or casting vote upon the sentence. An absolute majority of opinion of the members must be secured (Army Act Section 105), but sentence of death may not be passed without the concurrence of at least two thirds of the members (Army Act Section 105).

78. Signature and forwarding of proceedings.– When the sentence has been decided upon, it must be recorded upon the proceedings, which will then be dated and signed by the president and judge advocate (if any). The judge advocate or, if there is none, the president, must then forward the proceedings as soon as possible to the confirming authority or the person directed in the convening order to receive them (Army Act Rule 56).

(xiii) Confirmation and Revision

79. Conviction not valid till confirmation.– A finding of a district or general court martial and the sentence consequent thereon are not valid until confirmed. Until promulgation, confirmation is not complete and the accused will be in ignorance of the sentence awarded.

Under the Army Act a finding of acquittal requires confirmation *(see* para 66 above) and can be revised.

80. Confirmation of district and general court martial.– The finding and sentence of a district court martial are to be confirmed by an officer authorised to convene general court martial, or deriving authority to confirm from an officer authorised to convene general court martial (Army Act Section 121).

The finding and sentence of a general court martial are to be confirmed by the Chief of Army Staff, Bangladesh Army or by an officer deriving authority to confirm from the Chief of Army Staff (Army Act Section 120).

Authority to confirm is given by warrants which may contain such reservations or special provisions as the issuing officer may think fit.

81. Revision of finding and sentence.– Upon receipt of proceedings the confirming authority, before confirming, may direct the re-assembly of the court for the purpose of revising their finding and sentence or either of them. Only one revision can be ordered or made. If the court is directed to take fresh evidence, such evidence must be taken in open court and in the presence of the accused; otherwise the proceedings on revision must be in closed court.

If the finding is sent back for revision and the court do not adhere to it, they must revoke it and record a new finding. If the finding is revoked, they must also revoke the sentence, and, if the new finding involves a sentence (*i.e.*, is not an acquittal) must pass a new sentence.

If the sentence only is sent back for revision, the court may not revise the finding. In practice, revision of a sentence only is seldom necessary in view of the powers of the confirming authority.

It should be noted that, under the Army Act, a finding of acquittal can be revised and the accused found guilty and sentenced, a sentence can be increased on revision, and evidence can (if so ordered) be taken on revision (Army Act Section 126 and Army Act Rule 57).

82. Non-confirmation and re-trial.– As the finding and sentence of a district or general court martial are not valid until confirmed (Army Act Section 119), a refusal of confirmation, duly entered upon the proceedings operates to annul the whole trial. In such a case the accused has not been acquitted or convicted and may legally be tried again; but re-trials should rarely be resorted to, unless the needs of discipline and justice demand that an offender shall not escape punishment on account of a legal technicality. It must be remembered that if an accused at the first trial has disclosed his defence, that defence at the second trial may thereby be prejudiced. Re-trial should not be ordered until the Deputy Judge Advocate General, has been consulted and the sanction of superior authority obtained.

83. Powers of confirming authority over findings.– The confirming authority has no power to alter or amend the finding, whether original or revised, of a court martial. After one revision, or if he does not order a revision, he can only confirm it or refuse confirmation, and any superior authority to whom he may refer the proceedings for confirmation is in the same position.

Similarly, the confirming authority cannot alter the finding on a plea in bar of trial or on a finding of insanity, both of which require confirmation to support their validity.

Where the confirming authority refuses confirmation of the findings of 'guilty' on some but not all the charges, he must take into consideration the fact of such non-confirmation and mitigate, etc., the sentence as may seem just, having regard to the offences in the charges the finding on which he has confirmed [Army Act Rule 59(1)].

84. Powers of confirming authority over sentences.– The following are the powers of the confirming authority with relation to the sentences of courts martial whether or not they have been revised :-

(a) mitigation of punishment to a less amount of the same punishment (Army Act Section 124);

(b) remission of the whole or part of a sentence (Army Act Section 124);

(c) commutation of the punishment to a different form of punishment lower in the scales of punishments authorised in Section 60 of the Army Act (Army Act Section 124);

(d) variation of a sentence informally expressed, or which is in excess as regards its duration of the punishment allowed by law; e.g., three years' imprisonment awarded by a district court martial (Army Act Rule 60);

(e) suspension of the execution of a sentence (which will, however, be, in force during the suspension). This power can only be exercised by the confirming officer if he is empowered to convene a general court martial, and only where the sentence awarded is one of transportation, rigorous imprisonment or detention. If the confirming officer is so empowered he can direct that the offender shall not be committed until the orders of the authority empowered to order suspension have been obtained (Army Act Sections 144 and 145);

(f) in the case of a sentence of imprisonment for a period not exceeding three months, the confirming officer may direct under the first proviso to section 136 of the Army Act that the sentence shall be carried out by confinement in military custody. Advantage should be taken of the proviso to this section where no sentence of dismissal is added to such sentences. Unless a direction to this effect is given, the offender has to be committed to a civil prison (except on active service), which is most undesirable in the case of a person who is to return to duty after undergoing his punishment. Sentences of imprisonment combined with dismissal should as a rule, be undergone in a civil prison.

(xiv) Promulgation

85. Promulgation of findings, etc.– The charge, finding and sentence and any recommendation to mercy must be promulgated to the accused as well as the confirmation or non-confirmation of the proceedings. Promulgation must be carried out in such manner as the confirming authority may direct or, if no direction is given, according to the custom of the service.

As confirmation is not complete until promulgation, the confirming officer may always alter his minute of confirmation or non-confirmation before the proceedings have been promulgated (A.A. Rule 58).

86. Annulment of proceedings.– The Government, the Chief of Army Staff Bangladesh Army or prescribed officer may annul proceedings on the ground of injustice or illegality and accused will be relived of all consequences of trial.

(xv) Procedure after Promulgation

87. Setting aside conviction.– Confirming authority, or authority superior to confirming authority may, on the advice of Judge-Advocate General, direct the annulment of conviction of any charge. When conviction on any one but not all charges has been annulled, the authority having power to mitigate, etc., the sentence under Section 143 must take the fact of such annulment into consideration and mitigate, etc., the sentence as may seem just, having regard to the offences the conviction of which has not been annulled.

88. Substitution of valid for invalid finding or sentence.– Where a finding of guilty, which has been confirmed, or which does not require confirmation, is found to be invalid, or cannot be supported by evidence, the authority competent to act under Section 143 of the Act may substitute a valid finding, if the new finding could have been validly made by court martial and may pass a sentence accordingly.

If a Sentence is found to be invalid, the aforesaid authority may substitute a valid sentence.

89. Mitigation, suspension, etc., of sentence.– After promulgation, the punishment awarded can be mitigated, remitted or commuted only by the authorities specified in Section 143 of the Army Act.

The authorities specified in Section 144 of the Act have also power to suspend a sentence in the manner specified in the subsequent sections.

90. Date from which sentence operates.– A sentence of transportation or imprisonment or detention must be reckoned to commence on the day on which the original sentence (even if it was subsequently revised) was signed by the president of the court. If, therefore, a sentence is ultimately confirmed and promulgated, it will probably have been running for several days although not yet put into actual execution (Army Act Section 135).

91. Custody of courts martial proceeding.– After promulgation, court martial proceedings (other than summary courts martial) must be forwarded to the office of the Judge Advocate General, Bangladesh Army, where they must be preserved for not less than seven years in the case of a general court martial or three years in the case of a field general and district court martial (Army Act Rule 129).

A copy of the proceeding must be supplied upon payment to any person tried by court martial if the demands it (Army Act Rule 130).

92. Remedy against finding and sentence.– Under Section 131 of the Act, a person who considers himself aggrieved by finding or sentence of a general, field general or district court martial may, before confirmation submit petition to confirming authority, or after confirmation to the Government, the Chief of Army Staff, Bangladesh Army or the prescribed officer.

A person aggrieved by finding or sentence of summary court martial may submit petition to Government or the Chief of Army Staff or officer empowered to act under Section 128 of the Act.

(xvi) Summary Courts Martial

93. Jurisdiction.– The jurisdiction of summary courts martial is dealt with in paras 8, 12 and 19 above. A commanding officer is not ordinarily competent to try by summary court martial a charge for any offence specified in the proviso to Section 99 of the Army Act without the sanction of superior authority. He may, however, do so if he considers that there is grave reason for immediate action and reference cannot without detriment to discipline be made to the officer empowered to convene a district court martial or on active service a field general court martial.

If he tries without reference such an offence, he must attach an explanatory memorandum to the proceedings (Army Act Rule 114).

In all cases of indecency, theft (except ordinary theft) and civil offences, and in any case of doubt, the charge and summary of evidence are to be submitted to the Deputy Judge Advocate General before trial is ordered.

94. Application for sanction to try by summary court martial.– When a commanding officer applies to the officer, referred to in para 93 above, for sanction to hold a summary court martial, the summary of evidence and charge-sheet will be submitted with the application.

Informing his decision as to whether the case should be tried by summary court martial or by some other tribunal the officer receiving the application should remember that the powers of a summary court martial are sufficient to deal with all ordinary offences committed by persons below the rank of warrant officer. In the case of aggravated offences, which appear to merit a higher punishment than a summary court martial can award, a district or general court martial may properly be convened, and it is generally undesirable that a commanding officer should try by summary court martial a case in which he has a personal interest (*see* Section 99 of

the Act and Notes). Sanction to try any offence by summary court martial may, however, legally be given by the proper authority.

The officer receiving the application has a similar duty to that of a convening officer (*see* para 17 above), of satisfying himself that the charge is properly framed and that the evidence is sufficient to justify, and he may direct the commanding officer to alter the charge or to obtain further evidence; in a suitable case he may order the release of the accused or the case to be dealt with summarily.

The authority sanctioning trial by summary court martial will insert or cause to be inserted on the charge-sheet his order for trial by that tribunal.

95. Preparation of defence by accused.– As soon as trial has been ordered, proper opportunity to prepare his defence must be afforded to the accused, who must be allowed to have free communication with any witness whom he may desire to call, and with any 'friend` or legal adviser whom he may wish to consult if they are available [Army Act Rule 23 (1)].

As soon as practicable before he is arraigned for trail, an officer must hand to him a copy and a vernacular translation of the charge-sheet, and, if necessary, explain the charge-sheet and charges to him. The officer in question must also inform him of his rights in connection with the securing of witnesses on his behalf (Army Act Rule 24).

96. Composition of summary court martial.– The commanding officer of the accused, as defined in Section 8(4), read with Section 88 of the Army Act, alone constitutes the court, but the proceedings must, throughout, be attended by two other officers or two junior commissioned officers or one officer and one junior commissioned officer. These two are not sworn, take no part in the proceedings and have no special duties, but the officer holding the trial may consult them, if he desires to do so. The accused cannot object to the court or interpreter (Note to Army Act Rule 92).

97. Interpreter.– An interpreter will be appointed when any evidence is given in a language which the court or the accused or an officer attending the trial does not understand (Army Act Rule 91). If an interpreter has been appointed he must take the interpreters oath or affirmation, though the proceedings are not necessarily invalidated by failure to swear or affirm the interpreter (Army Act Rule 132). It will generally be convenient that the officer holding the trial should (if competent to interpret in the language of the accused) himself take the interpreter's oath or affirmation in addition to the oath or affirmation prescribed for the court. If necessary, he can appoint a competent interpreter, who may be one of the officers attending the trial.

98. Friend of accused and prosecutor.– The accused may be assisted by a 'friend`; but such friend, whether a legal adviser or not, may only assist the accused by suggesting questions and preparing the defiance; he is not allowed to examine or cross-examine witnesses, personally address the court or, take any part in the proceeding (Army Act Rule 113).

A prosecutor is not appointed; the prosecution is conducted by the court.

99. Assembly of court and arraignment of accused.– When the court assembles, the officer holding the trial (*i.e.,* the court) and the interpreter (if any) will be sworn or affirmed in the manner prescribed in the Rules (Army Act Rule 93). The accused will then be arraigned (*see* para 38 above Rule 95) and may object to the charge (Army Act Rule 96). At any time during the trial the court may amend the charge-sheet in so far as it relates to the name and description of the accused, and at any time before it has begun to examine witnesses it may amend a defective charge and proceed with the trial, after giving the accused due notice of the amendment, and with the sanction of higher authority if the amended charge requires such sanction (Army Act Rule 97).

100. Procedure on plea of 'guilty' or 'not guilty' and special pleas.– On a plea of 'guilty', if a special plea to the jurisdiction of the court or in bar of trial is offered, the procedure laid down for a district or general court martial is applicable, with necessary modifications (*see* paras 40-46 and 48-51 above, Army Act Rules 98 to 102).

After all the evidence of the prosecution has been given the accused will be asked if he has anything to say in his defence. He may call witnesses, including witnesses as to character, and he may address the court either before or after his witnesses have been examined (Army Act Rule 102).

The accused cannot give evidence on oath or affirmation, and if he elects to make a statement in his defence, he cannot be cross-examined by the court, but the court may, if it considers it necessary in the interests of justice, call witnesses in reply to the defence (Army Act Rule 103).

101. Consideration of finding and procedure on acquittal and conviction.– The court must make a finding on every charge upon which the accused was arraigned, including any alternative charge (Army Act Rule 103(1)].

In considering the finding, the court must have regard to the consideration set out in paras 60, 62 above.

If the finding upon all the charges in a charge-sheet is 'not guilty', the court will date and sign the proceedings, the findings will be announced in open court and the accused will be released (Army Act Rule 106).

If the finding upon any charge is 'guilty', and the trial of all charges and charge-sheet has been completed, the court records of his own knowledge, or takes and records evidence of, the character, service, etc., of the accused and sentence is awarded (Army Act Rules 107, 108).

102. Sentence.– In considering the sentence, the court must have regard to the considerations set out in paras 68 to 75 above and should bear in mind the general instructions and normal scale of punishment laid down in the Regulations for the Army.

It is desirable that sentences of three months imprisonment or less awarded to a person whose services it is desired to retain should be undergone in military custody. The court should, there fore, have regard to the first proviso to section 136 of the Army Act and when awarding such a sentence to which no sentence of dismissal is added direct that the sentence shall be carried out in military custody. Under Section 145 (2) of the said Act the officer holding a summary court martial may direct that the offender be not committed to prison until the orders of authority competent to suspend the sentence have been obtained.

103. Proceedings not open to revision and do not require confirmation.– Proceedings of a summary court martial cannot be revised and do not require confirmation and the sentence awarded by the court should, except as provided in Section 127 or Section 145 (2) of the Act, be put into execution forthwith.

104. Review of proceedings.– The proceedings must be forwarded for review through the Deputy Judge Advocate General to the reviewing officer empowered to act under Section 128 of the Act. The reviewing officer should, if he considers that justice has been done and the proceedings may legally be upheld, countersign the proceedings, or a staff officer should record that he has seen them, and may enter thereon any remarks that he may consider to be called for or necessary for the future guidance of the court. If a direction under Section 145(2) has been recorded, he will forward the proceedings for the orders of the competent authority.

The reviewing officer can, for reasons based on the merits of the case, set aside the proceedings or the conviction on one or more of the several charges, or reduce a legal sentence to any other which the court night have awarded. If he sentence is illegal, it may be treated as a nullity and the reviewing officer should, when counter-signing the proceedings, set aside the sentence and direct that the accused be relieved from all consequences of the sentence, though not of the conviction. if the sentence is invalid, on of the authorities specified in section 129 of the Act can substitute a valid sentence.

After review, the proceedings will be returned to the Corps to which the offender belonged where they must be preserved for not less than three years [Rule 129(2)].

(xvii)Field General Courts Martial

105. Composition and powers.– The foregoing remarks have left out of consideration a court martial of exceptional kind named field general court martial. The court consists of not less than three officers, and the same powers as a general court martial (Sections 87 and 97). No finding or sentence of a field general court martial is valid without confirmation by convening officer or if he so directs an authority superior to him.

106. Field general court martial in time of peace.– A court of his character is not suited to peace conditions, but it may some times be necessary to convene such a court at a remote station where a sufficient number of officers to constitute a general court martial are not available. The power to convene field general court martial in time of peace is restricted to officers empowered by the Government or the Chief of Army Staff (Army Act Section 84) and the officer convening the court should direct that the evidence and the statement of the accused in defence should be recorded in full, instead of in the abbreviated form allowed by Army Act Rule 144, the proceeding being thus assimilated, so far as circumstance permit, to those of an ordinary general court martial.

107. Field general court martial on active service.- On active service, a field general court martial may be convened by an officer commanding a portion of the Bangladesh Army, not below the rank of Brigadier, of if in the opinion of such officer commanding it not practicable to try the offender by general court martial.

108. Procedure.– A field general court martial is subject to exceptional rules. (Army Act Rules 135 to 149) under which the procedure

is or can be of a more summary character then that of an ordinary general court martial. But provision is made whereby a large number of the rules which are applicable to district or general court martial should be applied to field general court martial so far as is practicable having regard to a public service (Army Act Rule 148).

The Third Appendix to the Rules contains a simple form for the convening of these courts and the record of their proceedings.

(xviii) Suspension of Sentences

109. Suspension of Sentences.– When a sentence of transportation, imprisonment or detention has been awarded by a court martial, the confirming officer, when confirming, if the sentence requires confirmation, or the president or officer holding the trial, if the sentence does not require confirmation, must consider whether the offender should be committed to undergo his sentence or whether he should be kept in arrest pending the orders of the authority competent to act under Section 144 of the Army Act as to his commitment or release under suspended sentence. If such authority has issued general instructions, that no person sentenced to transportation, imprisonment or detention shall be committed to prison until his orders have been ascertained, the officer mentioned above must defer committing the offender to undergo his sentence until the directions of such authority have been taken. If the officer decides to recommend the sentence for suspension or is bound to refer the case to superior military authority, he will record a direction on the proceedings of the court martial that the offender be not committed to undergo his sentence until orders as to his disposal have been obtained, Section 145 *ibid.*

If the confirming officer is also competent to act under Section 144 of the Act, *i.e.,* the Chief of Army Staff or an officer empowered under the Act to convene general or field general courts martial he may dispense with the direction referred to above forthwith issue orders.

The authority empowered to order suspension of sentence may suspend a sentence at any time, whether or not it has been put into execution, and he may order a suspended sentence into execution, provided that the sentence is still running and that the offender is still subject to the Army Act.

Is should be noted that, whether the sentence is put into execution or is suspended, it will run as from the date of award until it normally expires; suspension does not affect the continuity of the sentence (Section 147).

110. Considerations as to suspending sentences on review.– The considerations which guide an officer in deciding whether or not it is advisable to suspend a sentence immediately after trial are many and vary with the state of the discipline of the force under his command, the nature of the duties on which it is engaged, and the character of the man concerned.

Suspension of sentences is primarily applicable to offences of a military nature only, although in special case it may be applied to offences of a civil character.

In all cases special attention should be directed to the following points:–

(i) The age and previous character of the offender.

(ii) Whether the offence is a first one.

(iii) Whether the offence was premeditated.

(iv) Whether the offender was at the time subjected to any special stress, fatigue, disability or temptation.

(v) Whether the offender was influenced by others, older or of worse character than himself.

On active service additional considerations may arise. For example, some men may deliberately commit crimes in the hope that a long sentence may enable them to avoid doing duty with their units, whilst others may commit grave military offences through momentary loss of control over their nerves and without any wrongful intent. Each case, therefore, must be considered on its merits, it being remembered that the system of suspension of sentence is designed, on the one hand, to ensure instant punishment for those who properly deserve it, and on the other hand, to postpone, and often entirely to avoid, punishment for those whose offences, though serious, are such as may, in the circumstances not call for immediate committal to prison; the power of suspension of sentence places in the hands of the commander a means of clemency and within reach of the soldier an opportunity to redeem his character.

Upon review of an already suspended sentence other considerations arise. All that need be considered then is the gravity of the offence of which the man was convicted, his previous character and his conduct since conviction. As a general rule, it may be said that the graver the offence and the worse his character before conviction the longer is the period required to prove whether the man is honestly trying his best to redeem himself and that only acts or conspicuous merit (such as bravery or devotion to duty in action) would justify a remission of sentence without regard to the length of the period during which it had been suspended.

Apart from such special acts, remission of sentence would be justified if the soldier has by his consistent good conduct really shown that he has done his utmost to retrieve his character and become a good and efficient soldier. Promotion to a higher rank should always be regarded as sufficient proof of good conduct to justify remission.

Unsatisfactory conduct subsequent to suspension will justify an order to put a suspended sentence into execution, whilst a mere negative abstention from crime would point to the advisability of directing a reconsideration of the sentence at a later date.

In considering a case, a report must always be obtained from the man's commanding officer, which should be attached with a copy of the man's conduct sheet to BAFD for future reference.

A soldier under a suspended sentence is to be regarded entirely as a free man and is to be placed under no disability whatever excepting only the liability of having his suspended sentence put into execution if he misbehaves.

111. Procedure when case referred to superior military authority.– When the authority competent to suspend the sentence receives the proceedings of a court martial containing a recommendation for suspension of the sentence, he will, to avoid undue delay, telegraph his decision to the officer commanding concerned, who will at once issue the necessary instructions. Until such instructions are received, the offender cannot be committed to undergo his sentence.

Whenever a sentence is suspended, the authority directing its suspension will be responsible for preparing BAFD 921, which will be dispatched through the usual channels to the officer commanding the unit concerned, who will make an entry in the man's conduct sheet and in Part II Orders. Except on active service, the commanding officer is the authority directed to hold BAFD 921, and he is responsible, in the case of a suspended sentence, for resubmitting it at the proper time to the competent authority with such information and recommendations as may be necessary for the reconsideration of the case. On active service the from should be kept in the custody of such officer as the officer commanding the forces may appoint. When the sentence is remitted or commuted, the form will be forwarded to the officer having the custody of the court martial proceedings.

112. Review of suspended sentence– Where a sentence has been suspended the authority competent to act under Section 144 of the Act or an officer authorised under Section 149 must review suspended sentences

at intervals of not more than four months (*See* Section 149). He may in his discretion, if he is competent to give such direction either keep a suspended sentence further suspended by ordering it to be brought forward for reconsideration on a specified date not more than four months ahead or, if not competent to do so refer it to a superior military authority with a recommendation either that the offender be committed to undergo the unexpired portion of the sentence or that the sentence be remitted.

113. **Dismissal combined with suspended sentence.**– In the case of sentence of dismissal combined with a suspended sentence, the dismissal does not take effect until so ordered by the authority empowered to act under Section 144 (*See* Section 149). If the offender is subsequently committed to undergo the unexpired portion of his sentence he should ordinarily order the dismissal to take effect as provided in Rule 155 of the Army Act. If the sentence remains suspended until it expires, the dismissal, though automatically remitted under sub-section (2) of Section 149, should nevertheless be formally remitted under Section 143.

114. Procedure when sentenced for a further offence.– Where a person already under a suspended sentence is awarded a further sentence which is also suspended, the two sentences, will run concurrently. If the further sentence is not suspended and is for a period of three months or more, the offender must also be committed on the unexpired portion of the previous (suspended) sentence, but both sentences will run concurrently. If the further sentence is for a period of less than three months and is not suspended, the previous sentence continues to be suspended unless a superior military authority orders that the offender be committed (Section 150 of the Army Act).

CHAPTER V

EVIDENCE

(i) Introductory

1. Evidence Act applies to court martial under Army Act.– The Rules of Evidence for courts martial under the Army Act are contained in the Evidence Act, 1872 (reproduced in Part III of this Manual) and in certain provisions of the Army Act which deal with the same subject (*see* Sections 112 to 118 of the Army Act).

2. Questions to be determined at every trial.– The object of every criminal trial is, or may be, to determine two classes of questions– questions of fact and questions of law. If the accused person pleads guilty there is no question of fact involved in the trial*;* but if he does not, he raises two questions or issues, first, whether the facts charged against him happened and next, if they did happen, what is their legal consequence. In trials before courts martial, the members of the courts both find the facts and lay down the law. It is their duty, when applying their minds to questions of fact, to consider themselves bound by the rules of evidence above referred to. In deciding questions of law, a court martial should be guided by the advice of the judge advocate (if a judge advocate has been appointed) and should not disregard it except for very weighty reasons (Army Act Rule 89 and Notes).

3. Nature of evidence.– A member of a court martial is supposed to bring with him to the consideration of the questions which he has to try commonsense, and a general knowledge of human nature and of ways of the world. But he is not supposed to bring with him any special knowledge enabling him to answer the particular questions of fact raised in the trial. His knowledge of these matters is derived from what is proved to him at the hearing. But *see* Section 113 of the Army Act, Sections 56 and 57 of the Evidence Act as to judicial notice. The means of proof, or evidence, usually consists of statements made by witnesses under examination, or of documents produced for inspection, and is, therefore, commonly classified as being either “oral evidence” or “documentary evidence”. But the members of the court may supplement by direct information the knowledge derived from these sources. Thus, they may inspect for themselves anything sufficiently identified by evidence and produced in court as material to their decision*;* or they may go to view any place the sight of which may help them to understand the evidence [Rules 68, 112 and 147(1)]. They are also expressly authorised to make use their general military knowledge *(see* Section 113 of the Army Act.)

4. Difference between judicial and non-judicial inquiries.– There is no difference in principle between the method of inquiry in judicial and in extra-judicial proceedings. in either case a person who wishes to find out whether a particular event did or did not happen tries, in the first place, to obtain information form persons who were present and saw what happened (direct evidence), and failing that, he tries to obtain information from persons who can tell him about facts from which he can draw an inference as to whether the event did or did not happen (indirect evidence). But in judicial inquiries the information given must be on oath or affirmation, and must be liable to be tested by cross-examination, and the Evidence Act, by allowing evidence to be given only regarding facts which are "in issue" or "relevant", excludes particular classes of indirect evidence which an ordinary inquirer would naturally take into consideration. Statements so excluded are said to be "not admissible as evidence".

5. Reasons for excluding certain classes of evidence.– The answer to the question why particular statements, oral or written, should be excluded from evidence in judicial inquiries is that their exclusion has been found by practical experience useful on various grounds, and notably on the following:–

(1) It assists the court.

(2) It secures fair play to the accused.

(3) It protects absent persons.

(4) It prevents waste of time.

It assists the court by concentrating their attention on the questions immediately before them, and preventing them from being distracted or bewildered by facts which either have no bearing on the questions before them, or have so remote a bearing on those questions as to be practically useless as guides to the truth, and from being misled by statements or documents, the effect of which, through the prejudice which they excite, is out of all proportion to their true weight.

It secures fair play to the accused, because he comes to the trial prepared to meet a specific charge, and ought not to be suddenly confronted by statements which he had no reason to expect would be made against him.

It protects absent persons against statements affecting their characters.

And, lastly, it prevents the infinite waste of time which would ensue if the discussion of a question of fact in a court were allowed to branch out into all the subjects with which that fact is more or less connected.

6. "Proved", "disproved" and "not proved".– The definitions of "proved", "disproved" and "not proved" in Section 3 of the Evidence Act should be particularly noticed.

These are:–

"Proved"– "A fact is said to be proved when, after considering the matters before it, the Court either believes it to exist, or considers its existence so probable that a prudent man ought, under the circumstances of the particular case, to act upon the supposition that it exists."

"**Disproved**"– "A fact is said to be disproved when, after considering the matters before it, the Court either believes that it does not exit, or consider its non-existence so probable that a prudent man ought, under the circumstances of the particular case, to act upon the supposition that it does not exist."

"**Not proved.**"– "A fact is said not to be proved when it is neither proved nor disproved."

7. These definitions to be borne in mind.– Members of courts martial under the Army Act should bear these definitions carefully in mind when deliberating upon their finding, and they are fortunate in having so clear a guide in the performance of a most difficult duty.

(ii) What Must be Proved

8. Charge must be proved.– What must be proved, in order to obtain a conviction, is the particular charge brought. As a general rule, every charge alleges, or ought to have alleged, a specific offence constituting a breach of a specific enactment; and, subject to certain exceptions, it is of this offence, and of this offence alone, that the person charged can be convicted. The reason for the rule is the unfairness of requiring a person to meet a charge for which he is not prepared. And such exceptions to the rule as are provided for by Section 111 of the Army Act or Sections 237 and 238 of the Code of Criminal Procedure will be found not to conflict with this reason, since they relate either to cases where the distinction between two offences is mainly technical or a matter of correct legal description; or to cases where the distinction is one of degree, but not of kind, and the accused, having been charged with the more serious, is allowed to be convicted of the less serious offence.

9. But its substance only need be proved.– It is the substance only of the charge that need be proved. Allegations which are not essential

to constitute the offence, and which may be omitted without affecting the validity of the charge, do not require proof, and may be rejected as surplusage. In some cases, as in charges against a sentry for sleeping on his post, or in charges for not giving immediate notice of desertion, the time or place of the offence is material, but as a rule, it is not so. Where the court think that the facts proved differ materially from the facts alleged in the particulars of the charge, but prove the same charge, they are empowered by Army Act Rule 51(4) or 105(3), as the case may be, to record a special finding, instead of a finding of 'Not guilty'.

(iii) Arrangement of the Evidence Act

10. Arrangement of the Act.– The law of evidence shows how a court may lawfully be convinced that the facts alleged in the charge happened, or that their happening was so probable that it may be regarded as proved. The Evidence Act deals with this subject thus–

(1) Part I and certain portions of Part III show what sort of facts may be proved in order to produce this conviction in the minds of the court.

(2) Part II deals with the proofs of facts, that is, what sort of proof is to be given of those facts.

(3) The greater portion of Part III deals with the production of that proof, that is, who is to give it, and how it is to be given.

The Evidence Act states definitely that evidence may be given of "facts in issue" and of such other facts as are declared by it to be "relevant", but of no others. The test, therefore, as to the admissibility of any piece of evidence is,– does it state a fact in issue or a relevant fact (as defined)? If is does, it is admissible; if not, it is inadmissible.

11. "Facts in issue".– The facts which are "in issue" in a criminal trial are those on which, either by themselves or in connection with other facts, the existence, non-existence, nature or extent of the accused person's liability to punishment depends (Evidence Act, Section 3). For instance A is accused of the murder of B. At his trial the following facts may be in issue:–

That A caused B's death;

That A intended to cause B's death;

That A had received grave and sudden provocation from B;

That A, at the time of doing the act which caused B's death, was by reason of unsoundness of mind, incapable of knowing its nature.

(iv) Relevant Facts

12. What evidence is admissible.– We have now to consider what facts are "relevant". The Evidence Act answers this question by enumerating these in the sections which make up Chapter II "of the relevancy of facts". If a fact is not included in this enumeration of "relevant facts" it is inadmissible unless it is actually in issue, or its admission is specially provided for elsewhere in the Act such as sections 145 to 148 and 153 to 158 thereof, or by some other provision of law, such as the special provisions as to evidence contained in the Army Act.

13. Circumstantial evidence.– Facts which are "relevant" *(see* paras 14 to 63 below), or which are otherwise specially admitted *(see* para 64 below), constitute what is sometimes called “circumstantial evidence” of the fact in issue with which they are connected. From the circumstances in which crimes are ordinarily committed, it follows that the evidence of witnesses who directly saw the main "fact in issue" happen can rarely be obtained, and that in very many cases reliance must be placed on circumstantial evidence. Such evidence is in no way inferior to direct evidence, and is in some respects superior to it*;* for it has become a proverb that "facts cannot lie", whilst witnesses may. On the other hand, it must always be borne in mind that if facts cannot "lie”, they may, and often do, deceive*;* in other words, that the interpretation which they appear to suggest is often not that which ought to be placed upon them. Therefore, before the court finds an accused person guilty on circumstantial evidence, it must be satisfied not only that the circumstances are consistent with the accused having committed the act, but they are inconsistent with any other rational conclusion that the accused was the guilty person.

14. Relevant facts.– The kinds of "relevant" evidence most likely to be met with in court martial practice will be considered in the following paragraphs.

15. Facts forming part of one transaction.– Under the Evidence Act, Section 6, facts which form part of the same transaction as a fact in issue are relevant.

For example, A is accused of the murder of B by beating him. Whatever was said or done by A or B or the by standards at the beating, or so shortly before or after it as to form part of the same transaction, is a relevant fact. So also on a charge of theft, though it is not material in general to inquire into any taking of goods other than that specified in the charge, yet for the purpose of identifying the thief it may be very relevant, and, therefore, admissible to show that other goods which had been left on the same premises and were stolen on the same night, were afterwards

found in the procession of the accused. This is strong evidence of the accused having been near the owner's house on the night of the theft. Such evidence the section now under consideration makes relevant. Again, A is accused of waging war against Bangladesh, by taking part in an armed insurrection in which property is destroyed, troops are attacked and gaols broken open. The occurrence of these facts is relevant, as forming part of the general transaction, though A may not have been present at all of them.

16. Facts which are occasion, cause, etc. of a relevant fact.– Facts which are the occasion, or effect of a fact in issue or relevant fact or which afforded an opportunity for its occurrence are relevant (*see* Evidence Act, Section 7).

For example, on the trial of A for robbing B, the facts that shortly before the robbery B had money in his possession and showed it publicly to third persons are relevant. Under this rule also evidence may be given of bruises which a medical officer or other person sees next day on the body of the non-commissioned officer whom a soldier is accused of striking.

17. Facts showing motive or preparation.– Facts which show or constitute a motive or preparation for a fact in issue or relevant fact are themselves relevant *(see* Section 8, Evidence Act), as is also the conduct of accused persons and those against whom offences are committed, if such conduct is influenced by a fact in issue or relevant fact.

Thus, evidence may be given that, after the commission of the alleged offence, the accused absconded, or was in possession of the property, or the proceeds of property, acquired by the offence, or that he attempted of conceal things which were or might have been used in committing the offence, or as to the manner in which he conducted himself when statements were made in his presence and hearing. This rule also allows evidence of a complaint made shortly after the alleged crime was committed, and of the terms in which such complaint was made, to be given in any case in which an offence against the complainant is the subject of proceedings. Evidence of such complainants would be particularly useful in cases of rape, robbery, causing hurt, etc.

18. Distinction between a statement and a complaint.– A distinction is to be marked, however, between a bare statement of the fact of rape or robbery, and a complaint. The latter evidences conduct*;* the former has no such tendency. There may be sometimes a difficulty in discriminating between a statement and a complaint. It is conceived that the essential difference between the two is that the latter is made with a view to redress of punishment, and must be made to some one in authority– the police, for instance, or a parent, or some other person to whom the

complainant was justly entitled to look for assistance and protection. The distinction is of importance because while a complaint is always relevant, a statement not amounting to a complaint will only be relevant under particular circumstances, *e.g.,* if it amounts to a dying declaration, or can be used as corroborative evidence *(see* Evidence Act, Sections 32 & 157).

19. Explanatory and introductory facts.– Facts necessary to explain or introduce a fact in issue or relevant fact are relevant, as well as those which support or rebut an inference suggested by a fact in issue or relevant fact, establish the identity of a person or thing whose identity is relevant, fix the time or place at which any fact in issue or relevant fact happened, or show the relation of the parties (Evidence Act, Section 9). The facts here referred to are only relevant in so far as they are necessary for the purposes indicated.

20. Acts of conspirators.– In cases of conspiracy after *prima facie* evidence has been given of the existence of the plot, and of the connection of the accused therewith, anything said, done or written by one conspirator in reference to their common intention is a relevant fact as against each and all of the conspirators (Evidence Act, Section 10).

Thus, on the consideration of a charge of mutiny, or exciting muting evidence of this kind may, after such *prima facie* proof, be received against a particular prisoner. The law of Bangladesh admits against a conspirator everything said, done or written by a co-conspirator in reference to the common intention, even if said, done or written after the conspirator against whom it is offered had ceased to be connected with the conspiracy or before he joined it.

21. Inconsistent facts.–Facts which are inconsistent with, or which render highly probable or improbable, a fact in issue or relevant fact are themselves relevant (Evidence Act, Section 11)

"Alibi".– This rule is of importance to the party whose object is to disprove something which is asserted by the opposite side. An "alibi" is a familiar instance of this. If A is accused of a crime committed at Jessore and he can show that he was at Dhaka on the same day, his innocence is clear, while if he can even show that shortly before and after the time when the crime was committed he was so far from Jessore that it was most improbable he could get there and back, a strong point in his favour will have been established.

22. Facts showing state of mind or body.– Facts showing the existence of any relevant state of mind or body are relevant (Evidence Act, Section 14).

Thus, where any state of mind (*e.g.,* intention, knowledge, the absence of good faith, negligence, rashness, or ill-will) is an ingredient of an offence, the commission of the principal act being either admitted or proved, evidence may for the purpose of proving the existence of such a state of mind in reference to the particular matter in question, be given of similar acts committed by the accused on different occasions. Thus, although on a charge of murder or of using criminal force, evidence as to the disposition of the accused is inadmissible, former menaces or attacks or expressions of vindictive feeling against the same person are admissible as evidence of intention.

On charges of criminal breath of trust effected by falsifying accounts, evidence of other incorrect entries in the accused's accounts are admissible to show that particular errors covered by the actual charge were not made accidentally.

On charges of "receiving stolen property", evidence may be given that other stolen property was found at the same time in the possession of accused, to prove his guilty knowledge.

Upon charges of uttering forged notes or counterfeit coin, evidence is admissible to prove the uttering on other occasions of notes or coins which were not genuine or the possession thereof.

Where the gist of an alleged offence is fraud, evidence of similar offences is admissible to prove the intent. Thus, on a charge of obtaining cash by falsely representing that the cheque given in exchange was good, in order to prove intent or knowledge, evidence is admissible as to another cheque (dishonoured on presentation) having been given to a third person.

23. Other instances.– In support of a charge for malicious, disrespectful or unbecoming language, addressed by word of mouth, or written to, or used of, a superior officer at a stated time, or in a particular letter after having proved the words in the charge, the prosecutor, to show the spirit and intention of the accused, may prove also that he spoke or wrote other disrespectful or malicious words on the same subject, either before or afterwards, or that he published or disseminated copies of the latter set forth as disrespectful in the charge. This evidence is admissible, not in aggravation of the offence charged, but for the purpose of proving the deliberate malice or disrespect imputed in the charge.

24. Facts showing intention.– Facts which show whether an act was intentional or accidental by indicating the existence of a series of acts of which it formed part are relevant (Evidence Act, Section 15).

This is a special case of the principle discussed above. Thus, on a charge of murder by shooting, if it is questionable whether the shooting was by accident or design, evidence may be given that at another time the accused intentionally shot at the same person. Again, on a charge of fraudulently issuing passage warrants to certain persons who were not entitled to them, after having proved that the accused had issued the warrants, evidence may be admitted of a series of similar transactions extending over a considerable period as negativing a defence that the issue of these warrants was due to a mistake on he part of the accused.

25. Course of business.– Facts which show a course of business according to which a fact in issue or relevant fact would naturally have been done, are relevant. For example, the question is whether a particular letter reached A. The facts that it was posted in due course, and that it was not returned through the Dead Letter Office, are relevant.

(v) Admissions and Confessions

26. Rules as to admissions.– Admissions are statements made by a party to the proceedings or his representative, as to the subject-matter of the case, or the facts relevant thereto. The general rule is that they may be proved against those who made them but not in their favour (Evidence Act, Section 18). In connection with crime admissions usually occur in the form of confessions. A confession is an admission made at any time by a person charged with a crime, stating or suggesting the inference, that he committed that crime (Evidence Act, Section 21). The value of a confession, if true, is obviously very great, but special provision as to their receipt has been made in the Evidence Act, in order to guard against torture or duress for the purpose of extorting them. Confessions are, therefore, only relevant subject to certain conditions. These conditions will now be considered.

27. Confession only admissible against person who makes it.– The general rule is that a confession is not admissible as evidence against any person except the person who makes it. But a confession made by one accomplice in the presence of another is admissible against the latter to this extent that if it implicates him, his silence under the charge may be used against him, whilst on the other hand, his prompt repudiation of the charge might tell in his favour (Evidence Act, Section 8). When two or more persons are tried jointly for the same offence, a confession made by one of such persons, affecting himself and any other of the accomplices jointly tried with him, when proved, may be taken into consideration by the court against other accomplice as well as against the person who made it (Evidence Act, Section 30). The confession may have been made at any time and not necessarily in the presence of the accused; but the confessing person must implicate himself substantially to the same extent as the

accomplice against whom the confession is taken into consideration. Though the confession of an accomplice may thus, under certain circumstances, be "taken into consideration" and thus be an element in the consideration of the case against the other co-accused, it must necessarily be of less weight that sworn evidence, less even that the sworn evidence of an accomplice who is not jointly tried. The courts have accordingly established the following rules with regard to this kind of evidence:–

(1) Where there is absolutely no other evidence, such a confession alone will not justify the conviction of a person who is being tried jointly with its author.

(2) The confessions of co-accused must be corroborated by independent evidence, both in respect of the identity of all the persons affected by it and of the fact that the crime was committed.

28. Confession must be voluntary.– To be relevant, and, therefore, admissible as evidence, a confession must be voluntary. Though it is highly desirable that the prosecutor should prove the circumstance in which a confession was made, the onus lies upon the accused of showing that a confession made by him was not voluntary and, therefore, irrelevant. Unless, therefore, it appears doubtful whether a confession is voluntary, a court need not require the prosecutor affirmatively to establish that fact.

29. What this means.– A confession is not deemed to be voluntary, if it appears to the court to have been caused by any inducement, threat, or promise, having reference to the charge against the accused person, proceeding from a person in authority (*e.g., the* prosecutor or a person having the custody of the accused) and sufficient, in the opinion of the court, to give the accused person grounds, which would appear to him to be reasonable, for supposing that by making it he would gain any advantage or avoid any evil of a temporal nature in reference to the proceedings against him (Evidence Act, Section 24). Thus, if a hand-bill issued by the Government promising a reward and pardon to any accomplice in a certain crime who would confess were brought to the knowledge of an accomplice in the crime, who, under the influence of a hope of pardon made a confession, that confession would not be voluntary and could not be used at his trial.

30. Subject continued.– A confession does not cease to be voluntary merely because it appears to have been caused by the exhortations of a person in authority to make it as a matter of religious duty, or by an inducement collateral to the proceedings, or by inducements held out by a person having nothing to do with the apprehension, prosecution, or

examination of the accused. Thus, a confession made by a prisoner to a gaoler in consequence of a promise by the gaoler that if the prisoner confessed he should be allowed to see his wife would be admissible in evidence.

31. Confession obtained by fraud, etc.– It is, of course improper to endeavour to trap a man into incriminating himself; but if a confession is otherwise admissible as evidence it does not become inadmissible merely because it was made under a promise of secrecy, or in consequence of a deception practised on the accused person or the purpose of obtaining it, or when he was drunk, or because it was made in answer to questions which he need not have answered, or because he was not warned that he was not bound to make the confession, and that evidence of it might be given against him (Evidence Act, Section 29).

32. Confession voluntary if made after removal of impression produced by inducement, etc.– A confession is deemed to be voluntary if, in the opinion of the court, it is shown to have been made after the complete removal of the impression produced by any inducement, threat or promise which would otherwise render it involuntary (Evidence Act, Section 28). Thus, A is accused of a military offence, B, an officer, tries to induce A to confess by promising to get the commanding officer informs B that he cannot give any such undertaking, and this is communicated to A. A's statement subsequently made by him is voluntary.

33. Confessions to police officers.– Two provisions, which are peculiar to the law of Bangladesh, may be mentioned here–

(1) No confession made to a police officer can be proved against person accused of an offence (Evidence Act, Section 25).

(2) No confession made by any person whilst in the custody of a police officer, unless it be proved as against such person (Evidence Act, Section 26).

The term police officer in Sections 25 and 26 should be construed according to its more comprehensive and popular meaning; it includes any sort of police officer from a Deputy Commissioner of Police down to a village chowkidar. This includes members of military police and Special Investigation Branch.

Nevertheless, facts discovered in consequence of a confession which is itself inadmissible under (1) or (2) above, and so much of the confession as distinctly relates to the facts thereby discovered, may be proved (Evidence Act, Section 27). Thus, A accused of house-breaking by night,

makes a confession to a policeman. Part of it is that A had thrown a lantern into a certain pond; the fact that he said so, and that the lantern was found in the pond in consequence may be proved.

34. Whole confession must be given in evidence.– If a confession is given in evidence, the whole of it (subject as stated in para. 33) must be given, and not merely the parts disadvantageous to the accused person.

35. Confession made on oath in previous proceedings.– A confession may be used as such against the person who makes it, though it was given as evidence on oath though the proceedings in which it was given had reference to the same subject-matter as to proceedings in which it is to be used; but if, after refusing to answer any question, the witness was compelled to answer, his answer is not admissible against him (Evidence Act Section 132, Thus, A is charged with causing hurt to B, A had voluntarily appeared as a witness for C, who was charged with the same offence at a previous trial, and had not declined to answer any question. A's evidence can be used against him at his won trial. The same rule applies to statements made by a man when charged before his commanding officer, or at the taking of a summary of evidence, but Rule 13(6) requires the officer taking a summary of evidence, to caution the accused before recording his statement. The proceedings of a court of enquiry, or any confession or statement made at a court of inquiry, cannot be used as evidence against a person subject to the Army Act before a court martial, unless the court martial is one for the trial of such person for wilfully giving false evidence before the court of inquiry [Rule 157(12)].

(iv) Statements by Persons Who Cannot be Called as Witnesses

36. "Hearsay" excluded.– As a general rule the statements of persons not called as witnesses are inadmissible as evidence of the truth of the facts stated. This does not mean that evidence of what absent persons said is absolutely excluded. Such statements may, for instance, be admissible as part of the transaction, Evidence Act Section 6, as conduct influenced by it, Section 8 *ibid,* or as indicative of states of mind or body which are relevant, Section 14 *ibid.* The cries of a mob led by the accused, the complaints referred to in para. 17 above, and statements made by the victim in a poisoning case before his illness as to his health, and during his illness as to his symptoms, are examples of this.

37. Reasons for exclusion of "hearsay".– The reasons for excluding "hearsay" (*i.e.,* the statements of persons not called as witnesses) are, first, that such statements are not made on oath or affirmation, and secondly, that the person affected by the statement has no opportunity of cross-examining its author. The rule has often been criticised

on the ground that it sometimes excludes the only means of proof obtainable, but its utility in excluding irresponsible statements is obvious. The general rule that "Hearsay is not evidence" is under every system of law, subject to important exceptions. Following the principle already explained, the Evidence Act arranges for this by declaring that certain kinds of hearsay shall be "relevant", all other kinds, which are not mentioned, being left outside left outside its enumeration of "relevant" facts and thus made inadmissible.

38. Statements of absent persons which are specially admitted.– In addition to such statements as are relevant by reason of their falling under one of the heads of relevancy already discussed, the most important of the statements thus made thus made evidence are:–

(1) Statements by persons since dead as to the cause of their death [Evidence Act, Section 32 (1)].

(2) Statements or entries made in the ordinary course of business [Evidence Act, Section 32 (2)].

(3) Statements which are against the interests of their authors, or which would have exposed them to a criminal prosecution or a suit for damages [Evidence Act, Section 32(3)].

39. Under (1) above, the statement of a person who has since died is admissible in any proceedings in which the cause of his death comes into question, and there are no conditions as to the declaring being in expectation of death or having abandoned all hope of recovery. These considerations do not, therefore, affect the admissibility of such evidence, though they may materially affect the weight which should be attached to it.

40. As to statements referred to in (2) and (3) above, the Evidence Act allows of such statements being given in evidence when the author cannot be found, or has become incapable of giving evidence, or when his attendance cannot be procured without an amount of delay or expense, which under the circumstances of the case, appears to the court to be unreasonable.

41. If such a statement or entry as is referred or entry s is referred to in (2) above was made in the ordinary course of business no question as to the source of the information or the time when the entry or statement was made will affect its admissibility. So long as the statements or entries are made in the ordinary course of business, it need not have been the declarant's duty to make them, they need not have been made

contemporaneously, it is not necessary that the declarant should have had personal knowledge of the transaction recorded, and they may be used to prove independent collateral matters, *i.e.,* matters which it was not necessary to include in the ordinary course of business.

42. Evidence at previous enquiry when admitted.– It may sometimes happen that a material witness, who has given evidence at a preliminary inquiry, cannot attend the trial, if the evidence was given in a judicial proceeding, or before a person authorized by law to take it and was taken on oath or affirmation, with liberty to the accused to cross-examine (as for instance, the inquiry before a committing magistrate), Section 33 of the Evidence Act allows it to be used at the subsequent trial of the accused on the same charge, if the witness,–

(1) is dead,

(2) cannot be found,

(3) is incapable of giving evidence,

(4) is kept out of the way by the accused, or

(5) if his presence cannot be obtained without an amount of delay or expense which, under the circumstances of the case, the court considers unreasonable.

43. Subject continued.– This provision will sometimes admit of the evidence which was given at a court martial which is dissolved before coming to a finding being used at the subsequent trial of the same accused before another court. It will also admit (subject to the above conditions) of evidence recorded before a magistrate, in the presence of the accused and with liberty to cross-examine, in relation to the same charge as that on which he is afterwards tried by court martial being used at such subsequent trial. This provision may be useful as a means of perpetuating testimony when the life of a witness is in danger, or he is under orders for active service and cannot be detained to give evidence.

44. Summary or abstract of evidence, how far admissible.– In the case, however, of trial by court martial, there is no similar provision of making a summary of evidence taken before a commanding officer, when an accused person is remanded for trial, evidence under the same circumstances as depositions taken on oath and in a judicial proceeding. Accordingly, the summary, except so far as it contains statement by the accused himself, cannot be admitted as evidence of the facts recorded in it unless the accused has pleased guilty (Army Act Rules 44, 100 and 144). But where a statement recorded in the summary is put in issue before a court martial, as for example, where a discrepancy is alleged between that

statement and the evidence given before the court, or where the alleged wilful falsehood of such a statement is made the subject of a charge, the summary, if purporting to give verbatim signed statement of the witness, may be given in evidence as confirmatory of the statement having been made.

(vii) Statements Made under Special Circumstances

45. Documents.– The rule excluding hearsay evidence is applicable to written, or documentary, as well as to oral evidence. The statement of a person who is not called as a witness is none the less "hearsay" because it has been reduced to writing, and is offered in that form to the court. But in its application to documents of a public or official character, the rule is subject to very important qualifications. In the case of many such documents, the statements which they contain are, under express statutory provisions admissible as evidence of the matters to which they relate.

46. Entries in books of accounts.– Thus, by the Evidence Act, entries in books of account regularly kept in the course of business are relevant, but such entries are not, by themselves, sufficient to charge any person with a liability (Evidence Act, Section 34).

47. Entries in public records, etc.– So also an entry in any public or other official book, register or record made by a public servant in the discharge of his official duty or by any other person in the discharge of a duty imposed on him by law, is admissible as evidence of the facts to which it relates (Evidence Act, Section 35). Statements in maps generally offered for public sale or prepared under the authority of the Government are similarly admissible as evidence as to matters usually represented in such maps (Evidence Act. Section 36) as are also statements of the law of any country contained in the official publication of its Government; and a statement of any fact of a public nature, if made in a recital contained in any Act of British Parliament, or in any Act of the Legislature or any other legislative authority in Bangladesh or in a Government notification by the Crown Representative appearing in the Official Gazette is admissible as evidence of that (Evidence Act, Section 37).

48. Special provisions of Army Act.– Under the special provisions of the Army Act enrolment papers, letters, returns and documents respecting service, dismissal or discharge, army, navy or air force lists and gazettes published by authority and showing the status and rank of officers, Junior Commissioned Officers or warrant officers, records in service books, certificate in certain cases stating fact, date and place (but not the circumstances) of the surrender or apprehension of absentees, the reply of a Government officer to a communication addressed to him and the "return" of a commission are made evidence of the facts stated in them *(see* sections 110 and 115 to 117 of the Army Act.)

49. Judgements of Courts of law.– The Judgements of Courts of law are also in some cases relevant facts (Evidence Act, Sections 40 to 44). Courts martial are chiefly interested in this matter so far as it concerns pleas in bar of trail and the proof of previous convictions. As regards the former, it need only be remarked that the production of the judgement of a criminal court conviction the accused of the same offence, or a certified copy thereof, effectually bars his trial; while as to the latter, a previous conviction may be proved either by a verbatim extract from the service books or by the production of a properly certified extract from the records of the court which convicted the accused (Army Act Section 118).

(viii) Opinion of Third Persons, When Relevant

50. Rules as to opinion.– The general rule is that the opinion or belief, of a witness is not evidence. A witness must depose to the particular facts which he has seen, heard, or otherwise observed, and it is for the court to draw the necessary inference from these facts. Thus, a witness may not at a trial for desertion characterise the prisoner's absence as "deception". This is a matter of inference, and is the point which it rests with the court to determine according to the evidence. The examination of the witness should be confined to the fact of the accused absenting himself, and to such other facts relevant to the charge as may be witching the knowledge of the witness. In certain exceptional cases, however, opinion is for special reasons admitted as evidence. These cases are dealt with in sections 45 to 51 of the Evidence Acct, which, following the system already explained declare these opinions to be relevant, leaving all others outside the enumeration of relevant facts.

51. Exception in case of "Experts".– The chief exception to the rule excluding opinion is that under Section 45 of the Evidence Act the opinion of an "expert", *i.e.,* a person specially skilled in foreign law, in any science or art, or in the identification of handwriting or finger impressions, is admissible on any point within the range of his special knowledge.

52. Examples.– Thus, in a poisoning case, a doctor may be asked as an expert whether, in his opinion, a particular poison produces particular symptoms. And, where unsoundness of mind is set up as a defence, an expert may be asked whether, in his opinion the symptoms exhibited by the accused commonly show unsoundness of mind, and whether such unsoundness of mind usually renders persons incapable of knowing the nature of their acts, or of knowing that what they do is either wrong or contrary to law. An officer may be asked, as an expert, to give his opinion on a point within his special military knowledge, but to make his opinion admissible his knowledge must be of a kind not possessed by the court generally. Thus, in a trial before a court martial, it is not proper to ask

witness for an opinion on matters with which all officers should be familiar, but it may be perfectly proper to put questions involving opinion to an artillery officer as to the probable effect of his arm, if directed as assumed, since these matters, though having reference to military science, are not of such a nature as to be presumably known to each member of a court martial.

53. Grounds on which opinions are based when relevant.– When an opinion is relevant, facts which support or are inconsistent with it, and the grounds on which it is based, are also relevant (Evidence Act, sections 46 and 51). Evidence as to the ground on which an opinion is based can, except as mentioned in para. 71, below, only be given when the author of the opinion is alive, as the grounds on which a deceased person's opinion was based must obviously be either guess-work or hearsay.

54. Handwriting who may give opinion regarding it.– The opinion of any person acquainted with the handwriting of the person by whom any document is supposed to have been written of signed is relevant even though the former is not an "expert" in handwriting. A person is said to be acquainted with handwriting of another if,–

(1) he has seen that person write*:*

(2) he has received documents purporting to be written by that person in answer to documents written by himself or under his authority and addressed to that person*;* or

(3) documents purporting to be written by that person have been habitually submitted to him in the ordinary course of business *(see* Evidence Act, Section 47).

55. Proof of handwriting by comparison.– Handwriting may also be proved by comparison, under section 73 of the Evidence Act. It will, therefore, be convenient to consider this section here, though it occurs in a later portion of the Act. It allows a writing admitted or proved to be written by any person to be compared with another which purports to be written by that person, in order that the genuineness of the latter may be established or rebutted. Nothing is said as to who is to make the comparison, and it may therefore, be made either by the court or by an expert. A combination of both methods is the safer course. A comparison of handwriting is at all times as a mode of proof hazardous and inconclusive, and especially so when it made by one not conversant with the subject and without such guidance as might be derived from the arguments of counsel and the evidence of experts.

The same section goes on to provide that a court may require any person present in court to write any words or figures for the purpose of enabling the court to compare the words or figures so written with any words or figures alleged to have been written by such person. The comparison is, it will be noticed, made by the court in this case. It must be borne in mind that writing made for the purpose of comparison is not unlikely to be disguised.

The importance of an experts evidence in such cases lies not so much in the opinion which he expresses as in the fact that he draws the attention of the court to similarities and dissimilarities which they might not notice without his assistance, but the value of which (when pointed out) they can fully appraise for themselves. Where a question of forgery is to be decided by comparison of handwritings only, the assistance of an expert is the most desirable.

56. Other methods of proof.– The methods referred to above are the usual ones by which an individuals authorship of a document is prove. They are not, however, the only ones, and in addition to the writers own a document may be proved by circumstantial evidence. For instance, A, whose credit is unimpeachable, in able to swear that B was the sole occupant of a room, and that, as soon as B left it, he (A) entered and found a letter, with the ink still wet, lying on the table. There could be no more convincing proof that B wrote the letter, however, unlike his ordinary penmanship the writing might be. Again, the writing of an anonymous letter is the subject of a court martial charge. Circumstances directing suspicion to a particular regiment, company, or class have come to light and specimens of the handwriting of all suspected persons have been procured form the regimental school or otherwise. One of these corresponds have with the writing of the anonymous letter. It has been held that section 73 can be invoked where the document in issue is alleged by the prosecution to have been written by the particular person, such allegation being based on the resemblance of the handwriting to that of other documents admitted or proved to have been written by that person. The opinions of one or more experts as to the letter and the specimen being by the same writer and evidence as to the authorship of specimen are, however, relevant (Evidence Act, sections 45 and 11) and from them the authorship of the anonymous letter may be inferred.

57. Summary of law as to proof of authorship of document.– The result of the foregoing is that the authorship of a document may be proved by –

(a) the evidence of experts (para 51),

(b) the evidence of persons acquainted with handwriting of the alleged writer (para 54),

(c) comparison under Evidence Act, Section 73 (para 55),

(d) the admission of the writer or the evidence of someone who saw him write it (para 56), and

(e) circumstantial evidence (para 56).

58. Evidence of belief not excluded.– The rule which requires a witness to state what he knows, and not what he thinks, does not require him to depose to facts with an expression of certainty that excludes all doubt in his mind. For example, it is the constant practice to receive in evidence a witness's belief as to the identity of a person or thing, or as to the fact of a certain handwriting being the handwriting of a particular person, though he will not swear positively to those facts. A witness who falsely swears that he "believes" a thing to be so is as much guilty of perjury as one who falsely swears that "it is" so and so.

59. Opinion as to conduct how far admissible.– In cases affecting the conduct of the accused, either as to deportment or language, it is not only proper, but often necessary, to require a witness to declare his opinion, because that opinion may be impression derived from a combination of circumstance occurring at the time, referred to, which it would be difficult if not impossible, fully to impart to the court. But it would be improper to draw the attention of a witness to facts. Whether stated by himself or by another witness and ask his opinion as to their accordance with military discipline or usage, because the court, when in possession of facts, are the only proper judges of their tendency. If the witness is asked a question inviting him to express his opinion as to the general conduct of the person accused, or to give his judgment on the whole matter of the charge, he may and should decline to answer it.

(ix) Character, When Relevant

60. Evidence of character when admissible.– In criminal proceedings in which term are included trails by court martial) the fact that the accused is of good character is always relevant, but the fact that he has a bad character is irrelevant, unless evidence has been given that he has a good character *(see* Evidence Act, sections 53 and 54). "Character" includes both reputation and disposition, but evidence may be given only of general reputation and general disposition, and not of particular acts by which reputation or disposition were shown, *see* Explanation to section 55, *ibid,* as an exception, however, to this, previous convictions can be proved as evidence of bad character, when such evidence is otherwise admissible, *i.e.,* when evidence of good character has been given (*see* Explanation 2 to Section 54).

61. Evidence of character, etc., after conviction.– By Section 118 of the Army Act, evidence of character (good or bad), previous convictions, and certain other prescribed matters, information on which is necessary to enable the court to decide upon their sentence, is admitted after the accused has been convicted, while at a summary court martial the officer holding the trial may record such matters of his own knowledge. With these exceptions, no unfavourable evidence as to character is admissible unless the accused has brought it on himself by calling or eliciting evidence of his good character.

62. Effect of evidence as to character.– Evidence of general good character cannot avail the accused against evidence of the fact, but where some reasonable doubt exists as to his guilt, it may tend to strengthen a presumption of innocence, and proved good character should be taken into consideration with all the other facts and circumstances, not as positive evidence contradicting any that has been brought on the other side, but as probable testimony to induce the court to doubt whether the other evidence is correct, and not to discard that evidence if the court thinks that it is correct.

On a charge of stealing, character for honesty maybe entitled to considerable weight; so also on a charge implicating the courage of a soldier, character for bravery and resolution. But it would be manifestly absurd, on a charge of stealing, to allow character for bravery to weigh heavily, or on a charge of cowardice, to be biased by a character for honesty. General character, unconnected with the charge, though it may not weigh with the court, except in awarding punishment in discretionary cases, may essentially serve the accused by influencing the superior with whom it rests to mitigate or remit the sentence.

63. Evidence tending to show disposition not admissible.– As a general rule, it is not competent for the prosecution to adduce evidence tending to show that the accused has been guilty of criminal acts other than those included in the charge against him for the purpose of leading to the conclusion that he is a person likely from his conduct or character or disposition to have committed the offence for which he is being tried. Thus on charge of murder, the prosecutor cannot give evidence of the conduct of the accused in respect of other persons for the purpose of proving a blood-thirsty and murderous disposition. On a charge against a sentry of having been asleep on his post on a particular occasion, evidence that he had been found asleep on his post on other occasions would not be admissible for the purpose of showing that he would be likely to commit the offence; and on a charge of insubordination, evidence of insubordinate conduct on other occasions would not be admissible for the purpose of showing a tendency to insubordinate conduct. Evidence as to other crimes committed

by the accused may, however, be admissible under paras. 15, 22 or 24 above, if these crimes form part of the same transaction, show the existence of a relevant state of mind or body, or negative the theory of accident or misfortune.

64. Conclusion of list of "relevant facts".– This concludes the list of what the Evidence Act classes as "relevant" facts. Special provision is however made elsewhere for the admission of certain other evidence, a consideration of which may be helpful to a court in arriving at a decision as to how far a witness is to be believed. These are–

(1) Answers to certain questions which are admissible on cross-examination.

(2) Evidence impeaching the credit of witnesses.

(3) Corroboration of the statements of witnesses.

They will be considered later, when dealing with the portions of the Evidence Act in which they occur.

(x) Facts Which Need Not be Proved

65. Two categories of facts which need not be proved.– Having thus settled what sort of facts may be proved, the Evidence Act goes on to show how these facts are to be brought to the notice of the court which tries a case. In the first place certain facts need not be proved at all. These fall into two categories viz., facts of which courts take judicial notice and admissions.

66. Judicial notice.– A court is said to take judicial notice, in other words not to require evidence, of any facts which are assumed to be so generally known as not to require special proof. By section 113 of the Army Act a court martial is expressly authorised to take judicial notice of all matters within the general military knowledge of its members. Thus, evidence need not be given as to the relative rank of officers, as to the general duties, authorities, and obligations of different members of the service, or generally as to any matter which an officer, as such may reasonably be expected to know. The Evidence Act further requires courts to take judicial notice of certain other matters. Among these are:–All Bangladesh laws, Act of Parliament, the course of proceeding of the Parliament and of the Bangladesh legislatures, the accession and sign-manual of the King, the Great Seal and Privy Seal, the seals of all courts of Bangladesh and of certain British Courts, the Seal of any notary public, the existence, title and flag of recognised states, the division of time, the

geographical divisions of world, territories of the Crown, the commencement, continuance, and termination of hostilities between the Crown and any other state or body of persons, and the "rule of the road."

67. Books of reference may be consulted.– In all those cases, and also on all matters of public history, literature, science or art the court may consult appropriate books of reference and may require the party asking it to take judicial notice of a fact to produce such a book, before it takes judicial notice of the fact (Evidence Act, Section 57).

68. Facts admitted.– Under Section 58 of the Evidence Act, facts which the parties admit in court need not be proved, otherwise than by such admissions, unless the court require them to be so proved. It is the practice of courts martial to receive admissions made in open court as to collateral or comparatively unimportant facts which are not in dispute, but must be proved on the part either of the prosecution or of the defence. Thus, it is the practice to allow either party the option of admitting the authenticity of orders or letters, or the signature of a document, or the truth of a copy, put in by the other party, in cases where such writings are receivable when proved*;* or that certain details in an enumeration of stores or in an account, are correctly stated*;* or that a promise or permission to a certain effect was actually given, or that a certain letter was sent or received on a given day*;* and so in similar cases where admissions may expedite the proceedings and do not go to the merits of the matter before the court.

69. Plea of "Guilty."– The commonest instance of an admission is a plea of guilty, which is an admission by the accused of all the averments in the charge-sheet. On such a plea no further evidence of the guilt of the accused is necessary and he can be convicted and sentenced accordingly.

(xi) Oral Evidence

70. Oral evidence defined.– All other facts must be prove by oral or documentary evidence. Oral evidence means statements made to the court by witnesses, while documentary evidence means the production of documents for the inspection of the court (Evidence Act, Section 3).

All facts, except the contents of documents may be proved by oral evidence which must in all cases be direct*;* that is to say–

> if it refers to a fact which could be seen, it must be the evidence of a witness who says he saw it*;*
>
> if it refers to a fact which could be heard, it must be the evidence of a witness who say he heard it*;*

if it refers to a fact which could be perceived by any other sense or in any other manner, it must be the evidence of a witness who says he perceived it by that sense or in that manner*;*

if it refers to an opinion or to the grounds on which that opinion is held, it must be the evidence of the person who holds that opinion on those grounds *(see* Sections 59 and 60 of the Evidence Act).

71. Special rule as to treatises by experts.– The opinions, however, of experts expressed in any treatise commonly offered for sale, and the grounds on which such opinions are held, may be proved by the production of such treatises if the author is dead, or cannot be found, or has become incapable of giving evidence, or cannot be called as a witness without an amount of delay or expense which the court regards as unreasonable (Evidence Act, Section 60, Proviso 1).

72. Court may require production of things referred to.– If oral evidence refers to the existence of condition of any material thing, other than a document, the Court may, if it thinks fit, require the production of such material thing for its inspection *(see* Section 60, proviso 2).

(xii) Documentary Evidence

73. Rule as to documentary evidence.– The existence, condition, or contents of a public document may be proved either by primary or by secondary evidence [Evidence Act, Sections 61 & 65 (e)]. The existence, condition, or contents of a private document may be proved by primary evidence and in certain circumstances may also be proved by secondary evidence [Sections 61, 64 and 65 (a) to (d), (f) & (g)]. It should be remembered that contents of a document and not the truth of these contents is here referred to. A document is, as a rule, only proof that certain marks have been made on the paper, or whatever it is, on which they are inscribed*; e.g.,* that a certain statement has been written down. It is only in exceptional cases that a document is proof of the truth of the matters recorded*;* these cases are dealt with separately.

In all cases, the document must be produced by a witness on oath or affirmation.

74. Primary evidence.– Primary evidence is the production of the document itself for the inspection of the court, or, if it is one of a number of documents produced by a uniform process (*e.g.,* printing, lithography or photography), the production of one of them (Evidence Act, Sections 62). If however, a number of documents so produced are copies of a common original, they are not primary evidence of the original. For example, the type

of a book is set up from the author's manuscript and a number of copies printed. Every copy is primary evidence of the contents of the others, but not of the contents of the manuscript (Evidence Act, Section 62, Explanation 2).

75. Document which must be attested.– If the document is of a kind which is required by law to be attested, but not otherwise, it is also necessary to call an attesting witness to prove its due execution. But this rule is subject to the following exceptions:–

(a) If there is no attesting witness alive, subject to the process of the court, and capable of giving evidence, or if the document appears to have been executed in the United Kingdom, then it is sufficient to prove that the attestation of at lest one attesting witness is in his handwriting, and that the signature of the person executing the document is in the handwriting of that person (Evidence Act, Sections 68 and 69).

(b) If the document is proved, or purports to be, thirty years old or more, and is produced from what the court considers to e its proper custody, an attesting witness need not be called, and it may be presumed without evidence that the document was duly executed and attested (Evidence Act, Section 90).

76. Secondary evidence when given.– Under Section 65 of the Evidence Act, secondary evidence may be given of the existence, condition or contents of a document in the following cases:–

(1) When the original is shown or appears to be in the possession or power of–

(a) the opposite party, or

(b) any person out of reach of, or not subject to, the process of he court, or

(c) any person legally bound to produce it, and when, after due notice *(see* Section 66 of the Evidence Act), such person does not produce it, any kind of secondary evidence *(see* para 77 below) may be given.

(2) When the existence, etc., of the original have been admitted in writing by the party against whom it is to be prove, the written admission is admissible as secondary evidence.

(3) When the original has been destroyed or lost, or when the party offering evidence of its contents cannot, for any other reason not arising from his own default or neglect, produce it in reasonable time, any kind of secondary evidence *(see* para. 77 below) may be given.

(4) When the original is of such a nature as not to be easily movable, any kind of secondary evidence *(see* para. 77 below) may be given.

(5) When the original is a public document or document of which a certified copy is permitted by law to be used as evidence*;* for example, under the Banker's Books Evidence Act, in such cases a certified copy is the only secondary evidence permissible.

(6) When the originals consist of numerous accounts or other documents which cannot conveniently be examined in court, and the fact to be proved is the general result of the whole collection, evidence may be given as to such general result by any person who has examined them, and who is skilled in the examination of such documents.

77. Secondary evidence, nature of.– Besides certified copies [*see* clause (5) of the preceding paragraph] secondary evidence of a private document given at a court martial will generally take one of the following forms*:*–

(1) Copies made from the original by a mechanical process which ensure accuracy (*e.g.,* photography) and copies compared with such copies.

(2) Copies made from or compared with the original.

(3) Oral accounts of the contents of a document given by person who have seen it (Evidence Act, Section 63)

78. Public documents defined.– The following are "public documents"*:*–

(1) Those which form the Acts or records of the Acts–

(i) of the sovereign authority,

(ii) of official bodies and tribunals, and

(iii) of public officers.

Private documents defined.

(2) Public records kept in Bangladesh of private documents*:* (Evidence Act, Section 74) All other documents are private (Evidence Act, Section 75). As mentioned above secondary evidence can always be given of the contents of a public document. The nature of this secondary evidence varies with the character of the document, the most usual kind being a "certified copy" (Evidence Act, Section 76), and if the document is one provable by a "certified copy", this is the only secondary evidence admissible (Evidence Act, Section 65). The secondary evidence required to prove the various kinds of public documents is deals with in sections 76 to 78 of the Evidence Act, which should be consulted in the original, if necessary. The public documents specified in Section 78 are provable as therein stated, all others (except certain English documents specially provided for in Section 82 of the same Act and with which courts martial are unlikely to be concerned) are provable by "certified copies" as provided for in sections 76 and 77.

79. Provisions as to extracts and copies of certain document.– Under the special provisions of Sections 115, 116 and 118 of the Army Act, extracts from or copies of official records are in certain cases made admissible as evidence while under the general orders and notification of the Government (Provisions of Evidence Act, Section 78) are provable by copies purporting to be printed to be printed by orders of that Government, and orders and regulations of His Majesty or a Department of the British Government by copies purporting to be printed by the Kings printer.

(viii) Presumptions as to Documents

80. "Shall presume" and "may presume".– Sections 79 to 90 of evidence Act provide that certain documents shall be presumed to be what they purport to be, unless and until the contrary is proved, and that, as to certain others, courts may in their discretion, either make a similar presumption or require the genuineness of the document to be proved by the party who puts in forward. This distinction between what courts "shall presume" and what they "may presume" should be noticed (Evidence Act, Section 4). An instance of the former class of presumption is found in Section 114 of the Army Act which provides that certain signatures shall be presumed to be genuine until the contrary is shown. An instance of the latter is that regarding telegraph messages contained in Section 88 of the Evidence act. A court may either presume that a message forwarded from a telegraph office to the addressee corresponds with a massage delivered for transmission at the office of origin, or may require that fact to be prove by the party asserting it. This provision does not however, authorise the court

to make any presumption as to who delivered the message for transmission, or as to the truth of its contents.

81. Contract, etc. rule, as to.– Where a contract, grant or other disposition of property is reduced to the form of a document, the document, the document itself (or secondary evidence of its contents when admissible) is, save in certain exceptional cases, the only admissible evidence of the matter which it contains, and the contract cannot, therefore save as aforesaid, be varied by verbal explanations written or additions *(see* Evidence Act, Section 91*etseq*).

(xiv) Of the Burden of Proof

82. Burden of proof.– Under Evidence Act, Sections 102 & 103 the burden of proving the existence (or non-existence) of any fact lies on the side which wishes the court to believe in its existence or non-existence, as the case may be, and which would fail if no evidence at all were given on either side. In criminal trials the effect of this is that the burden of proof, is, in the first instance, on the prosecutor, or as it is sometimes expressed, "every man is presumed to be innocent until he is proved to be guilty". An exception to this rule is that, when any fact is especially within the knowledge of any person, the burden of proving that fact is upon him (Evidence Act, Sections 106, *e.g.,* in charges for being "out of bounds" without a pass, leaving a post without orders, releasing a prisoner without authority, absence without leave, etc.) In such cases, the main fact being proved, the burden of proving the possession of pass, leave, etc., lies on the accused, and such evidence as the prosecutor may be in a position to give–including inferences from the conduct of the accused–may be accepted as justifying a conviction in the absence of explanation by he accused.

83. Rule as to general and special exceptions.– When any person is accused of an offence, the burden of proving the existence of facts bringing the case within any of the "general exceptions" of the Penal Code or any special exception or proviso applicable to the particular offence is on the accused (Evidence Act, Section 105). For instance, A is accused of murdering B. The burden of proving that A killed B is on the prosecution. A, however, pleads grave and sudden provocation*;* the burden of proving this provocation is on A.

84. Presumption.– In certain cases the burden of proof is determined, not by the relation of the parties to the question at issue, but by what are called "presumptions". Certain presumptions have been discussed already in connection with documents, and Section 114 of the Evidence Act further provides that a court may presume the existence of any fact which it

thinks likely to have happened, regard being had to the common course of natural evidence human conduct, and public and private business. An instance of such a presumption is that a man who is in possession of stolen goods soon after the theft may be presumed to be either the thief or a guilty receiver unless he can account for his possession.

In some cases state of mind (*e.g.,* intention, knowledge) is an ingredient of the offence*;* but a state of mind is not capable of positive proof*;* it can only be inferred from overreacts, which when proved raised a presumption of intention or knowledge. As a general rule, a person is presumed in law to have intended the natural and probable consequences of his act.

85. "Shifting" of the burden of proof.–Where the prosecution have proved a *Prima facie* case, the burden of disproving any facts or presumptions raised by the prosecution lies on the accused. It is not infrequently said speaking, correct, because an/accused person is not bound to make any defence and will not necessarily be convicted of he makes no defence. For instance, A is accused of stealing a five-Taka note, and the prosecution prove that immediately after its loss it was found in A`s possession. There is obviously a strong presumption that he stole it, and, as a matter of common sense, the court would almost certainly convict him, if he offered no explanation (or no reasonable explanation). Still in law the burden remains on the prosecution to the end, and does not shift on the accused.

(xv) Witnesses

86. Competency of witnesses.– Under Bangladesh law all persons, other than the accused or persons tried jointly with him, are competent witnesses unless the court considers that they are prevented from understanding the questions put to them, or from giving rational answers to those questions, by reasonable of,–

(1) tender years,

(2) extreme old age,

(3) disease of mind or body, or

(4) any other cause of the same kind (Evidence Act, Section 118).

But the confession of a jointly tried person may be taken into consideration against the accused*;* see para, 27 above.

87. Accused cannot give evidence but may make a statement.– Though the accused cannot give evidence, he is permitted to make an

unsworn statement in his defence to which a greater or less degree of credence may by afforded, and which is one of the "matters before it" which the court is bound to consider when arriving at a decision as to whether the charge is or is not "proved" *(see* Army Act Rules 47, 48 and 143).

88. Persons jointly tried cannot give evidence.– Persons jointly tried are incompetent to testify against each other. If, therefore, the prosecution find it necessary to call one participator in a crime as a witness against the others, the proper course is not to arraign him with them, or (if he has been so arraigned) to offer no evidence and take a verdict of acquittal.

If an accused thinks that the evidence of a person whom it is proposed to try with him is material to his defence, he should claim a separate trial *(see* Army Act Rule 25).

89. Evidence of accomplice.– The evidence of an accomplice is admissible against his principal, and *vice versa*, unless they are tried together, but the evidence of an accomplice should always be received with great caution. No particular number of witnesses is legally necessary to prove any fact, and the uncorroborated evidence even of an accomplice is, therefore, in strict law sufficient *(see* Evidence Act, sections 132 and 134, if the court consider him credible). But a court martial should very carefully consider the danger of convicting the accused on the uncorroborated evidence of an accomplice*;* and, if there is a judge advocate, it is his duty to warn the court of the danger, though at the same time pointing out that it is within their legal province to convict upon it if they choose. The corroboration required is independent testimony which confirms in some material particular not only the evidence that the crime has been committed but also that the accused committed it.

90. Deaf or dumb witness.– A witness who is unable to speak may give his evidence in any other manner is which can make it intelligible, as by writing or by signs*;* but such writing or signs must be made in open court. Evidence so given is deemed to be oral evidence (Evidence Act, Section 119. The same rule would, no doubt, apply to a deaf, or deaf and dumb, witness, who might be communicated with by writing or signs provided the court was satisfied with the reality and accuracy of such communication.

91. Member as witness.– A member of a court martial is a competent witness in favour of the accused, and might, as such, be sworn or affirmed to give evidence at any stage of the proceedings; but Army Act Rule 30 (2) (ii) directs that a witness for the prosecution shall not sit on a court martial for the trial of any person against whom he is a witness.

(xvi) Privilege of Witnesses

92. Incriminating questions.– It by no means follows that, because a person is competent to give evidence, he is compelled to answer every question he may be asked when giving evidence. Under English law, a witness cannot be compelled to answer a question if the answers would, in the opinion of the court, incriminate him, and though in Bangladesh law there is no such absolute privilege still a witness, on such a question being put to him, is entitled to ask to be excused from answering it (Evidence Act, Section 123)*;* and if after he has asked to be excused, the court compel him to answer (as they are entitled to do) his answer cannot be proved against him at any criminal proceedings, except a prosecution for giving false evidence by such answer.

93. Official matters.– Another class of privilege is based on considerations of public policy, No one is permitted to give evidence derived from unpublished official records relating to any affairs of State, except with the permission of the head of the department concerned *(see* Section 123 of the Evidence Act). No public officer can be compelled to disclose communications made to him in official confidence, if he considers such disclosure is injurious the public interests, (Section 124 *ibid*) and in particular no magistrate or police officer can be compelled to state whence he got any information as to commission of any offence (Section 125 *ibid*)

94. Confidential reports.– On this principle, a confidential report, or letter, or official information of a confidential character, although it may refer to matters which a court martial may have decided to be relevant to the inquiry before it, cannot be produced or disclosed except by consent of the superior authority*;* and this consent is refused if the production or disclosure is considered detrimental to the public service. Proof of the refusal should be laid before the court by the examination of a witness, or by a written communication, read in open court and attached to the proceedings.

95. Court of Inquiry.–So also, the proceedings of a court of inquiry cannot be called for by court martial, nor witnesses examined as to their contents; nor is any confession or statement made at a court of inquiry admissible against an officer or soldier before a court martial (Rule 157 of the Army Act Rules) The only exception to this rule is in the case of a court martial for giving false evidence before the court of inquiry.

96. Privilege which cannot be waived.– The modified privilege referred to in para. 93 is the privilege of the witness, and therefore, he may waive it, and answer (Without being compelled to do so) if he chooses, but the privilege referred to in the following paragraphs is for the protection of other parties and cannot be waived except with their consent.

97. Communication during marriage.– A husband must not be compelled to disclose any communication made to him by his wife during the marriage; and a wife must not be compelled to disclose any communication made to her by her husband during the marriage (Evidence Act, Section 122).

98. Legal advisers – communications to.– A legal adviser is not permitted, whether during or after the termination of his employment as such, unless with his clients express consent, to disclose any communication, oral or documentary, made to him as such legal adviser, by or on behalf of his client, during, in the course of, and for the purpose, of his employment, or to disclose any advice given by him to his client during, in the course of and for the purpose of such employment. But this protection does not extend to–

(1) any such communication if made in furtherance of any illegal purpose*;*

(2) any fact observed by a legal adviser in the course of his employment as such, showing that any crime or fraud has been committed since the commencement of his employment, whether his attention was directed to such fact by or on behalf of his client or not*;* or

(3) any fact with which the legal adviser became acquainted otherwise than in his character as such.

The expression "legal adviser includes the clerks of legal advisers and interpreters between them and their clients, and the person representing or assisting the accused during trial before a court martial (Evidence Act, Sections 126 and 127).

99. Procedure when privilege claimed.–The question, whether answered or not, should be entered on the proceedings. When a witness claims the Privilege of not answering, it is (except as mentioned in para. 93 above) for the court to decide whether the question is within any of the exceptions. Courts martial should in practice interpose by informing a witness, at the time when a question is put to him, that he is not bound to answer. Any such interposition, and any claim of privilege by the witness, and the fact whether the witness is required to answer or not, should be noted on the proceedings.

(xvii)Of the Examination of Witnesses

100. Points requiring attention of court.– It will be the duty of the court in every case to see that the rules of evidence are strictly conformed

to. The following Points will require special attention in relation to any evidence that may be tendered:–

(a) That it relates to a "fact in issue" or "relevant fact".

(b) That it is not within the rule rejecting hearsay evidence.

(c) That (except in the case of experts) it is not a mere expression of opinion,

(d) That, if it is a confession or admission, it is legally admissible.

(e) That, if it is a document, it is legally admissible and properly put in evidence, *I.e.,* that it is properly produced by a witness on oath or affirmation.

(f) That no document or other thing is used for the purposes of the trial which has not been properly put in. For example, on a charge for theft, the articles, the subject of the charge, must be produced and identified in the presence of the court, by witnesses identification a document or thing may, however, be shown to a witness before it has been formally proved and put in.

(g) That any witness called are legally competent to give evidence.

(h) That any document with which a witness proposes to refresh his memory is legally admissible for the purpose.

(i) That the examination of witness is fairly and properly conducted.

101. How examination of witnesses is conducted.– The points mentioned in (a) to (g) have been already considered and (h) will be noticed later. The Evidence Act deals with (i) as shown in the following paragraphs. The examination of a witness by the person who calls him is called his examination-in-chief; and on this examination the questions must relate the matters in issue at the trial or relevant to the issue. The court must, of course, in all cases see that a witness is not compelled to answer any question in respect of which he is entitled to claim privilege and they must also see that, as far as possible, a witness is so dealt with that his honest belief is obtained from him.

102. Leading questions.– Leading questions must not, if objected to by the adverse party, be asked in examination-in-chief or in re-examination, except with the permission of the court (Evidence Act, Section 142). Leading questions as to matters which are introductory, or undisputed, or which the court considers already sufficiently proved are, however,

permitted under the second clause of that section and the court may also allow leading questions to be put to a "hostile witness" under section 154 *ibid.* Section 141 of the Evidence Act defines that a leading question is one which suggests the answer which the person putting the question wishes or expects to receive. For instance, a witness must not be asked, "Did the accused then go into the barrack-room?" but "What did the accused do next?" If it were not for this rule a favourable and dishonest witness might be led to give any evidence that is desired. It would, of courser, be mere waste of time to enforce the rule where the questions asked are simply introductory and form no part of the real substance of inquiry or where they relate to matters which, though material, are not disputed. By where a question relates to a contested point, which is either directly conclusive of the matter in issue, or directly and proximately connected with it, the rule should be strictly enforced and no question should be allowed in a form which directly or indirectly suggests to the witness the answer desired, or which, embodying a material fact, admits of a conclusive answer by a simple "Yes" or "No".

103. Test of what are leading questions.– Care must, however, be taken in enforcing this rule jot to exclude questions which do not really suggest an answer, but merely direct the attention of the witness to the subject as to which he is questioned. It is often, indeed, extremely difficult in practice to determine whether or not a question is in a leading form, and in all such cases the real test should be whether or not the examination is being conducted fairly and with the object of eliciting the honest belief of the witness.

The following may be taken as examples of fair and unfair examination or a witness. Suppose a man to be charged with the murder of another by stabbing, the body having been found at the upper end of a certain street, and a witness to be called to speak to the circumstances in which the blow was struck. There would be no objection to asking the witness:–

"If he remembered the 12th August," and

"if he were on North Street about noon on that day".

These questions, though in a leading form, are merely introductory. If the defence of the accused was that the had struck the blow but that he had done so in self-defence, there would be no objection to going a little further and asking–

"Whether he saw the deceased and the accused there?"

But from this point all leading questions should be avoided, and the examination should be continued in some such form as this–

"In what part of the street were the accused and the deceased when you first saw them?"

"How far were you from the accused and the deceased?"

"Tell us in your own words exactly what passed?"

To ask, instead of the first question "Were they at the upper end of the street when you first saw them?", would be highly improper, as it might be very important in considering whether or not there had been a long quarrel or scuffle to know whether they had moved far from the place where the witness first saw them to the place where the body was found. It would obviously be still more improper to ask, "Did you seer the accused go up stealthily behind the deceased and strike him a blow with knife?" or any question of that character.

If, on the other hand, the defence set up were an *alibi*, it would be improper to ask directly after the introductory questions–

Whether the witness saw the deceased and the accused there.

The question in that event should rather be:–

Whether he saw anyone there*;*

Whether he could identify him*;*

Whether he can identify anyone in the court as having been present, though, finally, if an answer could not be got in any other way, the attention of the witness might be called to the accused, and he might be distinctly asked,

Whether he saw that person there.

But this should not be done until the witness had said that he saw some persons there, and that he would know them again.

104. Rules as to directing attention to articles.– When any article, such as a stick, belt, or document, is produced in court for the purpose of identification, the witnesses may be asked such question as " Whether he recognises it" and "Whether he saw anything done with it, or to it", but such a question as "Whether he saw A strike B with the stick or belt", or "Whether he saw A make an alteration in the document, should not be admitted.

105. Hostile witness.– Under Evidence Act, Section 154 the court may in its discretion, permit the person who calls a witness to put any questions to him which the adverse party might put in cross-examination.

This is called the treating of a witness as "hostile". If a person calls a witness and the witness appears to be directly hostile to him, or interested on the other side, or unwilling to give evidence, the reason of the rule forbidding leading questions fails, and the court may allow the person calling the witness not only to ask him leading question, but to cross-examine him, and to treat him in every respect as though he were a witness called by the other side. In such circumstances he can, therefore, be asked questions tending to show his bad character, and his credit may be impeached in the same way as that of a witness called by the adverse party.

106. Rules as to cross-examinations.– When the examination-in-chief is finished, the opposite party cross-examines the witness. In cross-examination leading questions may be put and also questions, otherwise irrelevant which tend–

(1) to test his veracity,

(2) to discover who he is and what is his position is life, or

(3) to shake his credit by injuring his character *(see* Evidence Act, Section 146)

107. Subject of cross-examination– continued.– Section 145 of the Evidence Act, allows of a witness being cross-examined as to previous statements made by him in writing, or reduced to writing, without such writing being shown to him, but if it is intended to contradict him by the writing his attention must be called to it before it can be proved. It is often important that when a witness is under cross-examination as to his previous statements, the fact of their having been reduced to writing should be concealed from him. It is only reasonable, however, that, when he has given his answer, he should be shown the document and have the chance of correcting himself. The summary of evidence may be used to prove any statement which the witness made, and which it is proposed to contradict, and evidence may be called to prove that the evidence of a witness, though consistent with the summary, is not consistent with evidence given by him at the investigation before the commanding officer.

108. Subject of cross-examination– continued.– Questions which assume that facts have been proved which have not been proved, or that answers have been given which in fact have not been given, are improper, and should not be allowed even in cross-examination, nor should a witness be pressed in cross-examination as to any facts, which if admitted, would not affect the matter at issue or his credibility. If the person cross-examining intends to adduce evidence contradicting the evidence given by the witness, he should put to the witness in cross-examination the substance of

the evidence which he proposes to adduce, in order to give him an opportunity of retracting or explaining what he has said.

109. Subject of cross-examination– continued.– A witness under cross-examination may be asked any questions which tend to test his veracity, discover who he is, or shake his credit by injuring his character, But a witness may, of course, decline to answer a question as to which he is entitled to claim privilege, and the right of asking questions tending merely to discredit is qualified in the case of trials under Bangladesh law by Section 148 of the Evidence Act, which provides that when a question which is only relevant as affecting his credit by injuring his character is put to a witness, the court shall decide as to whether or not he shall be compelled to answer it, and that in exercising this discretion the court shall have regard to the following considerations:–

Injurious questions:–

(1) Such questions are proper if they are of such a nature that the truth of the imputation conveyed by them would seriously affect the opinion of the court as to the credibility of the witness on the matter to which he testifies.

(2) Such questions are improper if the imputation which they convey relates to matters so remote in time, or of such a character, that the relates to matters so remote in time, or of such a character, that the truth of the imputation would not affect, or would affect in a slight degree, the opinion of the court as to the credibility of the witness on the matter to which he testifies.

(3) Such questions are improper if there is a great disproportion between the importance of the imputation made against the witness's character and the importance of his evidence.

(4) The Court may, if it sees fit, draw, from the witness's refusal to answer the inference that the answer if given would be unfavourable.

110. Exclusion of evidence to contradict answer to questions testing veracity etc.– Evidence Act, Section 135 further provides that when a witness has been asked, and has answered such a question no evidence can be given to contradict his answer this rule is, however, subject to two exceptions:–

(1) When the witness is asked whether he has been previously convicted and denies it, evidence of his previous conviction may be given.

(2) When he is asked any question tending to impeach his impartiality and answers it by denying the facts suggested, proof may be given of the truth of these facts.

111. Impeaching credit of witnesses.– Under Sector 155 (1) of the Evidence Act the credit of a witness may be impeached by the adverse party, or with the consent of the court by the party who calls him, by the evidence of persons who testify that they, from their knowledge of witness, believe him to be unworthy of credit. Such persons may not, on their examination-in-chief, give reasons for their belief, but they may be asked their reasons in cross-examination and their answers cannot be contradicted. When the credit of a witness is so impeached, the party who called the witness may give evidence in reply to show that he is worthy of credit.

112. Subject continued.– The credit of a witness may also, under similar conditions, be impeached by proof that he has been bribed, or by proof of former statements inconsistent with any part of his evidence which is liable to be contradicted, and, at trials for rape or an attempt to ravish, it may also be shown that the woman against whom the offence is alleged to have been committed was of general immoral character [Evidence Act. Sections 155(2), (3) and (4)].

113. Corroboration of witnesses.– In order to corroborate the testimony of a witness as to a relevant fact he may be asked questions as to any other circumstances which he observed at or near the time or place at which that fact occurred *(see* Evidence Act, Section 156), Thus, A, an accomplice, gives an account of a robbery in which he took part. He describes various incidents unconnected with the robbery which occurred on his way to and from the place where it was committed. Independent evidence of these facts may be given in order to corroborate his evidence as to the robbery itself.

114. Former statements by witnesses.–In order to corroborate the testimony of a witness, any former statements made by such witness relating to the same fact.–

(1) to any one, at or about the time when the fact took place*;* or

(2) at any time, before an authority legally competent to investigate the fact, may be proved under Evidence Act, section 157. The above conditions are to some extent, a safeguard against fictitious statements resignedly made to support subsequent evidence, but it is obvious that the corroborative value of such statements depends on the circumstances of each case, and that

they may easily be entirely valueless. The mere fact of a man having, on a previous occasion, made the same assertion, often adds but little to the chances of its truthfulness, and courts should distinguish such testimony from really corroborative evidence.

115. Re-examination.– At the conclusion of the cross-examination of a witness the person who called him may, if he pleases, re-examine him*:* but the re-examination must be directed exclusively to the explanation of matters referred to in cross-examination, If new matter is, by permission of the court, introduced in re-examination. the other side may further cross-examine upon it *(see* Evidence Act, Section 138).

116. Questions by court.– After the re-examination of a witness is closed, the court often ask him questions to clear up some point which they regard as material.

Frequently, too, the court recall a witness, or allow him to be recalled for further examination*;* and sometimes they even call and examine a witness who has not been called by either party. In any of these cases the party affected by the answers should be allowed to suggest further questions, or to cross-examine (as the case may require),

If a witness is so called or recalled after the case for the accused is closed, the Accused should also be allowed to give further evidence in rebuttal, and to comment upon the fresh evidence if he has already made his address (Army Act Rules 125 and 126).

117. Refreshing memory.– A witness may not read his evidence or refer to notes of evidence already given by him*;* but he may, while under examination, refresh his memory by referring to any writing made by him at the time of the transaction concerning which he is questioned, or so soon afterwards that the court consider it likely that the transaction was at that time fresh in his memory. He may also refer to any such writing made by another person, but read by himself within the time aforesaid if, when he read it, he knew it to be correct. Whenever a witness may refresh his memory by reference to any document, he may, if the court is satisfied that there is sufficient reason for the non-production of the original, be permitted to refer to a copy of such document. Under Evidence Act, Section 159 an expert may also refresh his memory by reference to professional treatises. Under Evidence Act, section 161, however, any writing referred to under the provisions of this paragraph must be produced and shown to the adverse party if he requires it, and that party may, if he pleases, cross-examine the witness upon it.

118. Notes referred to are not evidence of themselves.– But a witness who refreshes his memory by reference to writing must always swear positively as to the fact or that he has a perfect recollection that the fact was truly stated in the memorandum or entry at the time it was written (Evidence Act, Section 160). If on referring to a memorandum not made by himself he can neither recollect the fact nor recall his conviction as to the truth of the account or writing when the facts were fresh in his memory, so that he cannot speak as to the fact further than as finding it noted in a written entry, his testimony is objectionable, as being hearsay.

(xviii) Conclusion

119. Rules as to evidence improperly received or rejected.– The Evidence Act concludes by providing that the improper admission or rejection of evidence shall not be ground of itself for invalidating a trial if it appears that, independently of the evidence improperly admitted, there was sufficient evidence to justify the decision of the court, or that, if the rejected evidence had been received, it ought not to have varied the decision *(see* Section 167 of the Evidence Act). This provision, while not excusing a court which breaks the law, will often prevent a miscarriage of justice where the improper admission or rejection of evidence dose not really affect the merits of the case.

120. How to act when in doubt.– If a member of a court martial is in doubt whether a statement or document which it is proposed to put before him is, or is not, admissible as evidence, the most useful advice that can be given to him is, first to use his common sense as to whether the matter proposed to be proved has any practical bearing on the question which he has to try, and, if he thinks that it has, then to consider whether its admission is excluded by any provision of the Evidence Act, *e.g.,* as being hearsay. He should remember that the enumeration of relevant facts in the Evidence Act is so wide that admissibility is the rule and exclusion the exception.

CHAPTER VI

CIVIL OFFENCES

Introductory

1. Definition of civil offences and jurisdiction of courts martial over civil offences.— A "civil offence", for the purposes of the Army Act, means an offence which, if committed in Bangladesh, would be triable by a criminal court [*see* Army Act Section 8(2)].

Courts martial are prohibited from trying cases of murder or culpable homicide of a person not subject to military, naval or air force law or rape, unless the offence is committed on active service or at a specified frontier post or at any place outside Bangladesh.

Subject to the above exceptions, a court martial can try all civil offences of a person subject to the Army Act wherever committed [S*ee* Army Act Section 59(2) *ibid*].

2. Concurrent jurisdiction.— A criminal court and a court martial may each have jurisdiction in respect of the same offence. Conflicts of jurisdiction are provided for by Sections 94 and 95 of the Army Act, which give the military authorities the right of deciding by which court the alleged offender is to be tried, subject however, to the reservation that, when a criminal court considers that proceedings ought to be instituted before itself, it may require the prescribed military authority to deliver over the offender or to postpone proceedings pending a reference to the Government.

It should be noted that the civil offence contained in Chapter VII of the Penal Code (offence relating to the Army, Navy and Air Force),if committed by persons subject to the Army Act not triable by the civil power and are, therefore, not triable by a court martial under Section 59 of the Army Act. Such an offence may, however, be tried by a court martial if it amounts to a military offence or to some other civil offence, triable under that section and is so charged.

3. Principles on which jurisdiction should be exercised.— But though a wide power of trial by court martial is given, it is not, as a rule, expedient to exercise the power universally.

Where troops are stationed at places having no competent criminal (civil) court, it is necessary to try all offences committed by persons subject to the Army Act by military tribunals.

But in Bangladesh and at places outside Bangladesh where a competent civil court has been established it is, as a general rule, desirable to try by a civil court a civil offence committed by a person subject to the Army Act if the offence is one which relates to the property or person of a civilian or is committed in conjunction with a civilian, or if the civil authorities intimate a desire to bring the case before a civil court.

The general rule is, however, subject to qualifications. The line dividing the military from the civil offence may be narrow. The offence may have been committed within the military lines. The offender may be one of a body of troops about to proceeds on active service. There may be reasons making the prompt infliction of punishment expedient. In any such case it may be desirable to try the offence by court martial.

There may be also consideration arising out of the importance of maintaining discipline. If offences of a particular kind, or offences generally, are rife in a Crops or at a station, it may be necessary, for the sake of discipline, to try every offence, whether civil or military, by court martial, so that the punishment may be prompt and in accordance with the requirement of discipline.

The heinousness of an offence is also an element for consideration. A trifling offence, such as would, if tried by a civil court, be properly punishable by a small fine, may well be punished by the military tribunal immediately especially if the case is one in which stoppages may be ordered to make good damage occasioned by the offence. On the other hand, certain civil offences (*e.g.*, complicated frauds) are not suitable for trial by court martial and had better be relegated to the civil court, as should also any case where intricate questions of law are likely to arise.

4. The Penal Code.— Most of the civil offences, as defined in para I above and triable by courts martial, are included in the Penal Code (XLV of 1860), an Act which codifies the criminal law of Bangladesh, but a few, *e.g.*, the offences against the Official Secrets Act, 1923 (XIX of 1923), are created by special statutes. It should be noted that words and expressions defined in the Penal Code have, when used in the Army Act (unless defined in that Act), the meaning attributed to them by that Code. Thus, wherever "theft", "assault", or "house-breaking" are mentioned in the Army Act the offence so defined in the Penal Code is intended. Also, all the penal sections of the former Act are subject to the "general exceptions" of the latter.

The Penal Code has been included in Part III of the Manual and a table of offences against the ordinary law, with the punishment assigned to each,

is appended to this chapter. The description of the civil offences in the first column of this table should be followed framing charges under Section 59 of the Army Act.

5. Scheme of the Chapter.— The object of this chapter is to give some description of the civil offences which may come before courts martial. The list is not exhaustive, but the more common offences have been treated in greater detail than those which experience shows rarely, if ever, to come within the cognisance of court martial.

Before proceeding to a description of the various offences it will be convenient to discuss, first, the punishments which may be awarded, and secondly, the general principles as to criminal responsibility, principles, it must be remembered, which are applicable to military not less than to civil offences.

(i) Punishments

6. Punishment.— Section 59 of the Army Act specifies the punishments which may be awarded for civil offences charged under that section. If the offence is punishable under the law of Bangladesh with death or transportation, a court martial is empowered to award any punishment (other than whipping) assigned for the offence by that law (see Section 59 and 75 of the Penal Code). It should be noted that in substitution for the punishment assigned by the law creating the offence (*e.g.*, the Penal Code) a court martial is empowered by Section 61 of the Army Act to award on active service field punishment to any person below the rank of warrant officer, and in addition to or in substitution of any such punishment, any one or more the punishments specified in Section 62.

With regard to every other civil offence charged under Section 59, the effect of the section is to empower courts martial to award rigorous imprisonment upto five years or any less punishment mentioned in the Army Act or the punishment (other than whipping) which under the civil law may be awarded for the offence.

Court are, of course, subject to the limitation placed on its powers of punishment, *e.g.*, a district courts martial cannot award a higher punishment than two years' rigorous imprisonment.

7. Subject continued.— In the table at the end of this chapter will be found the punishments which a civil court can award for each offence. A heinousness of each offence in the eye of the law. It must be remembered that each punishment specified in the table is maximum and that, except in

the case of offence for which an obligatory punishment is assigned (*e.g.*, death or transportation for life for murder), any less punishment, if authorised, may be awarded by a courts martial for a civil offence, even if such punishment is not which a civil court could have awarded *e.g.*, dismissal from the service. In awarding punishment for a civil offence a courts martial should be guided by exactly the same principles as those which guide them in punishing military offences.

(ii) Responsibility for Crime

8. Every one responsible for nature consequences of his actions.— The general rule is that a person is responsible for the natural consequences of his acts. If, therefore, a person's acts, and the natural which follow them, bring him within the penal provisions of the Penal Code, he is criminally responsible under that code, unless his case falls within one of the "general exception" in Chapter IV of the P. C., or any special exception applicable to the particular offence. Thus, a person who kills another under circumstances which amount to murder as defined in Section 300 of the code is liable to the punishment assigned to that offence; but if he killed the other while himself in such a state of involuntary intoxication as would bring him within the terms of Section 85 of the Penal Code, or in the lawful exercise of his right of private defence (general exceptions), he is excused, while if he did it under grave and sudden provocation (a special exception) his offence is reduced to capable homicide.

9. Illegal omission.— Under Section 32, words in the Code, which refer to acts, also extend to illegal omissions to do what a person is legally bound to do. The omission to do anything which one is not bound by law to do is not an offence; thus if a man sees another drawing and is able to save him by holding out his hand, but omits to do so, even in the hope that the other may be drowned, still hi is not criminally responsible.

On the other hand, where the law imposes upon a person the duty of performing some particular act, he is held responsible if he omits to do so. Every person who has charge of another, *e.g.*, a child, a person of unsound mind, an invalid, or a prisoner, is bound to provide him with necessaries if he is so helpless as to be unable to provide himself; and if death results from a neglect of such duty, the person in charge will be responsible unless he can show some good excuse.

So, in the case of an animal known to be dangerous, the person in charge is bound to take such precautions as will safeguard the public from danger.

10. Omission to perform duty.— Similarly, if a person undertakes to do any act the omission of which may endanger human life (as for instance, warning persons from a range whilst firing is going on), and without lawful excuse omits to discharge that duty, he is responsible for the consequences. Again if a person undertakes to administer surgical or medical treatment, or to do any other act which may be dangerous to human life, he is responsible if death results from a want of reasonable care and skill on his part. For instance, if a soldier were to undertake to cut the off the trigger finger of another soldier and mortification set in, he would be responsible for the consequences of his act.

In the class of cases referred to in this paragraph, there would rarely be such intention or knowledge as would make the offence murder or culpable homicide under Bangladesh Law. It might often, however, amount to causing death by a rash or negligent act (*See* Section 304A of the Penal Code and para 27 below).

11. Parties to offence.— The responsibility of a person for the natural consequences of his act is not limited to the simple case where he is present and actually commits an offence with his own hand.

12. Assisting offence.— Thus, Section 34 of the Penal Code provides that when a criminal act is done by several persons, in furtherance of the common intention of all, each is liable for that act as if he had done it alone. If, therefore, two or three men go out to commit house-breaking and one waits at the corner of the street to keep watch while the others break into the house, the watcher will be guilty of house-breaking equally with the others, through he never goes near the house. Further, under Penal Code Section 37 when an offence is committed by means of several acts, whoever intentionally co-operates by doing any one of those acts, commits that offence. If, therefore, in pursuance of a common intention to commit theft. A steals goods in a house and hands them to B who is waiting outside, and B then carries them away, both are guilty of theft. On the other hand, if the offence charged involves some special intent, it must be shown that the assistant was cognisant of the intentions of the person whom he assisted (S*ee* Penal Code Section 35). Thus, since B in the last example knew of A's intention to steal, and waited outside the house to assist him, his offence was theft, but if he had been unaware of the intention till the goods were handed to him his offence would not have been theft hut receiving stolen property.

13. Common intent.— If several persons combine together for an unlawful purpose or for a lawful purpose to be effected by unlawful means, each is responsible for every offence committed by any one of them in

furtherance of that purpose, but not for an offence committed by another member of the party which is unconnected with the common purpose unless he personally instigates or assists in its commission. Thus, if some of the party of house-breakers in the example given above are armed with revolvers, and the others all know it, thus showing a common intention not only to break into the house but to carry out their criminal object there in spite of all resistance, and the owner is killed in defending his property, all the party, including even the watchers outside are guilty of murder. But if two persons go out to commit theft and one, unknown to the other, puts a pistol in his pocket and shoots a man, the other is not responsible.

14. Abettor present when offence committed.— Another case in which a person incurs full responsibility for the act of another is when an abettor (*see* para 15 below) is present at the place when the act or offence he abets is committed (*see* Penal Code Section 114). In this case, and in the cases referred to above, the person made responsible for the acts of another is deemed to be guilty of the actual offence committed and should be so charged, *i.e.*, all the party in the first example in para 12 should be charged with house-breaking and, if murder results from the pursuit of their common intention (*see* para 13), with murder also. Similarly, if A instigates B to murder C (abatement) and A is present when B commits the murder, A is guilty of murder and should be so charged.

15. Abatement.— A person may make himself responsible for the crime of another by instigating, conspiring with, or intentionally aiding the actual criminal in one of the ways described on Section 107 and 108 of the Code. In such cases he cannot (expect as already mentioned) be charged with the actual offence committed by the other, and must be charged with "abetting" that offence. The abatement of an offence is punishable under Section 109 of the Penal Code and under Section 58 of the Army Act.

16. Innocent agent.— It does not always follow that the person who commits the offence which is abetted is himself criminally responsible. Thus if A instigates B (a child under seven years of age or a person in a state of involuntary intoxication–see Section 82 and 85 of the Penal Code) to murder C, and B does so, A has abetted the murder of C, but B has committed no offence. Similarly, if a soldier, knowing that a pair of boots does not belong to him, induces a comrade to steal them by representing that they are his property and not the property of the actual possessor, the former is guilty of abetting theft though the latter has committed no offence at all (*See* Illustration (d) in Penal Code Section 108).

17. Harbouring offenders.— A person may incur criminal responsibility even after an offence has been committed by helping the

offender to escape from justice, or by destroying the evidence of his guilt. This form of responsibility is provided for in Section 136 and 212 to 216-A of the Code which deal with harbouring and screening an offender. Persons who offend against these sections do not, however, make themselves fully responsible for the original crime, as in the cases referred to in para 14 above, and cannot be so charged. The wife or husband of an offender is exempted from any penalty for harbouring that offender; an exception to this rule is, however, the harbouring of a state prisoner who has escaped (*See* Section 130 of the Penal Code).

18. Attempt to commit offence.— A Person who attempts to commit an offence or to cause such an offence to be committed, and in such attempt does any act towards the commission of the offence, is criminally responsible even though the attempt is unsuccessful (*See* Section 511; as to attempts to murder, *See* Section 307).

A mere intention to commit an offence unaccompanied by acts will not amount to an actual "attempt", nor will acts themselves if they are merely preparatory to the commission of the offence. For instance, if A, intending to murder B by poison, purchases poison and mixes it with food which remains in A's keeping, the mere mixing with food is not an attempt to murder B by poison. Some act must be done which is more than an intention or preparation, and which is a real step towards the commission of the offence; thus, if A had placed the food on B's table, or delivered it to B's servants to place it on B's table he would have been guilty of an attempt to murder.

It is no defend to a charge of attempting to commit a crime that it was legally or physically impossible for the offender to have committed the full offence.

Where a person is charged with committing an offence but the evidence shows merely an attempt to commit that offence, a court martial may murder Section 111 (6) of the Army Act convict him of the attempt to commit the offence charged.

(iii) Homicide

19. Culpable homicide.— Whoever causes the death of a human being by doing an act:—

(1) with the intention of causing death, or

(2) with the intention of causing such bodily injury as is likely to cause death, or

(3) with the knowledge that he is likely by such act to cause death, commits at the least culpable homicide (*See* Penal Code, Section 299), and his act may amount to murder of certain further conditions as to his intention and knowledge are present. The intention or knowledge, express or implied, of the accused in such a case is, therefore, all important and it lies on the prosecution to show, by direct evidence or by inference from the facts of the case, that he had such intention or knowledge as is necessary to constitute the offence charged. In arriving at a decision upon this point a court will, however, presume that a man intends the natural consequences of his acts. This presumption will often arise in shooting cases or in other cases where death is caused with a lethal weapon.

20. Murder.— The kinds of intention or knowledge which will make culpable homicide amount to murder are set out in Section 300 of the Penal Code. If these are compared with para 19 above, it will be seen that, subject to certain exceptions which are considered in para 21, culpable homicide of the first kind is always murder; that of the second kind is murder only if the offender to cause such bodily injury either (a) as he knows to be likely to cause the death of the person whom it is caused or (*b*) as is sufficient in the ordinary course of nature to cause death; and that of the third kind is murder only if the offender knows that his act is so imminently dangerous that it must in all probability cause either death or such bodily injury as is likely to cause death. Thus, where a person hurt another, who was suffering from disease of the spleen, intentionally, but without the intention of causing death, or causing such bodily injury as was likely to cause death or the knowledge that he was likely by his act to cause death, and by his act caused the death of the other, it was held that that the offence committed was that of voluntarily causing hurt.

21. Exception.— Culpable homicide which would otherwise be murder is reduced to "culpable homicide not amounting to murder" in certain circumstances which are specified in the exception to Section 300 of the Penal Code. Briefly these are:—

(1) Grave and sudden provocation.

(2) Right of private defence exceeded.

(3) Powers of public servant exceeded.

(4) Sudden fight.

(5) Consent by the person killed.

The full text of these exceptions will be found in the Penal Code, which should be consulted, but the first is that most frequently met with and demands more detailed notice.

22. Grave and sudden provocation.— It must be clearly established in all cases where grave and sudden provocation is put forward as an excuse that at the time when the crime was committed the offender was actually so completely under the influence of passion arising from the provocation, that he was at that moment deprived of the power of self-control; and with this view it will be necessary to consider carefully the manner in which the crime was committed, the nature of the weapon used, the length of the interval between the provocation and the killing, the conduct of the offender during that interval, and all other circumstances tending to show his state of mind.

23. Subject to certain provisos.— This exception is further subject to three provisos:—

(1) The provocation must not be sought by the person provoked. Thus, if A provokes B to strike him with the express purpose of providing himself with an excuse for killing B, and A kills B, the offence is murder.

(2) Provocation given by anything done in obedience to law, or by a pubic servant in the lawful exercise of his powers, does not reduce murder to culpable homicide. Thus, a non-commissioned officer *Lawful* arresting a soldier may give great provocation to the latter, but if the arrest is lawful, the soldier cannot successfully plead grave and sudden provocation if hi kills the non-commissioned officer. On the other hand, an *unlawful* arrest would constitute such provocation.

(3) Provocation given in the lawful exercise of the right of private defence does not reduce murder to culpable homicide. For example, A, in defending himself, and his property from B who is trying to rob him, strikes B in the face with a whip. This so enrages B that he kills A, B cannot successfully plead grave and sudden provocation.

24. Culpable homicide of persons other than the one intended.– It will be noticed that the intention and knowledge referred to in para 19 are an intention to kill or vitally injure any one, and a knowledge that the death of anyone is likely. Culpable homicide may, therefore, be committed by a person who intends to kill one man and kills another by mistake. In such a

case the character of the culpable homicide is determined by what its character would have been if the person intended had been killed (*See* Penal Code, Section 301).

25. Burden of proof.— Under Bangladesh law the killing being established, the burden of showing such intention or knowledge as makes the crime murder or culpable homicide is still upon the prosecution (s*ee* Evidence Act, Section 103). If, however, facts raising a presumption of such intention or knowledge (*e.g.,* the nature of the weapon used) are shown to exist, the burden of disproving the presumption is on the accused. The killing and the requisite intention or knowledge being established, under Section 105 *ibid;* the burden is on the accused of showing that his case falls within any general or special exception as for instance, by showing that he acted under a *bona fide* mistake of fact and the fact (if true) would have excused him, or that he acted on grave and sudden provocation.

26. Penalty for murder.— Under Penal Code, Section 302, the penalty for murder is death, or transportation for life. A court can, at its description, award either penalty, but must sentence the offender to one or the other. When a person already under sentence of transportation for life is convicted of murder the death sentence is obligatory (*See* Section 303 of that Code).

27. Causing death by negligence.— Whoever causes the death of any person by doing any rash or negligent act not amounting to culpable homicide may be punished with imprisonment extending to two years and with fine (*See* Section 304A of the Code).

A person is criminally responsible for causing death, if he fails to take proper precaution when doing anything which is in its nature dangerous, even though he had not the least intention of bringing about the consequences of his act. The offence of equivalent to what under English law is called manslaughter by negligence. It must be shown, in order to justify a conviction, that the negligence from which death resulted was so gross and culpable and showed such disregard for the life and safety of others as to amount to a crime and to conduct deserving punishment.

Thus, if a soldier fires his rifle without taking the precautions proper under the particular circumstances and the bullet kills a man, the soldier will be criminally responsible for his death. Again, if a person points a gun at another in sport and pulls the trigger without having good grounds for believing, or without having taken any proper precautions to ascertain, that the gun was unloaded, he will be responsible if death results, as the

incident might clearly have been prevented of he had not been culpably negligent.

Other examples of this offence are.— causing death by rash and negligent driving; and by negligently mixing a live round with blank cartridges.

(iv) Hurt and Grievous Hurt

28. "Hurt" and "grievous hurt" defined.— Whoever causes bodily pain, disease, or infirmity to any person is said to "hurt" (*See* Penal Code, Section 319); and if that hurt is one of the graver kinds (specified in Section 320 of the Penal Code) he is said to "grievous hurt". Whoever does an act with the intention of causing hurt to any one, or knowing that he is likely to cause hurt to anyone, and does thereby cause hurt to the same or any other person, is said, "voluntary to cause hurt". If the hurt intended or known to be likely to be caused is grievous hurt and the hurt actually caused is grievous hurt (either of the same or a deferent kind) he is said "voluntarily to cause grievous hurt" (*See* Sections 321 and 322 of the Code).

Voluntarily to cause hurt to anyone is an offence which varies in its gravity according to the instrument used, the provocation given, the status of the person hurt, and the object of the offender. The table appended to this chapter shows the deferent descriptions of hurt and grievous hurt and the punishment awardable in each case.

(v) Criminal Force and Assault

29. "Force" defined.—The sections of the Penal Code which deal with these crimes are chiefly of interest to officers as defining the offences described in Section 32(1) of the Army Act. The definition of force in Section 349 of the Penal Code is of a highly metaphysical nature but, for ordinary purposes, there is little difficulty in understanding what is meant by the application of force to a person, or through a thing to a person, and whoever intentionally uses force to a person without his consent, in order to commit an offence, or with an intention to cause injury, fear or annoyance, is said to use "criminal force" (See Penal Code, Section 350) Whoever makes any gesture or preparation—

(1) intending to cause anyone to apprehend that the person making the gesture, etc., is about to use criminal force to him, or

(2) Knowing it to be likely that such gesture, etc., will cause such an apprehension, is said to commit an "assault" (See Penal Code,

Section 351). Mere words cannot amount to an assault, but words accompanied by gestures or preparations may give the latter such a meaning as to amount to an assault.

30. Difference between assault and use of criminal force.— It will be noticed that if actual violence is done to a person, or attempted, an assault is not the proper description of the offence, which than becomes "using criminal force", or "attempting to use criminal force", as the case may be.

(iv) Rape

31. Penetration.— Rape is defined in Section 375 of the Penal Code. Penetration is sufficient to constitute such sexual intercourse as is there referred to; it must, therefore, be proved that there was actual penetration of the female organ by some part of the male organ. The slightest penetration will be sufficient; it is not necessary to prove that there was such penetration as would be sufficient to rupture the hymen. Whether there was a remission of semen or not is immaterial.

It is not an excuse that the woman was a common prostitute or the concubine of the ravisher, if the offence was committed by force of against her will; though proof of such facts is admissible, and is, of course, important in considering whether or not she is likely to have consented.

32. Consent, when valid.— A consideration of Section 375 of the Penal Code will show that the offence consists in sexual intercourse with a woman against her will, without her consent, or even with her consent when such consent has been obtained by putting her in fear of death or hurt, or by pretending to be her husband, or with or without her consent when she is under fourteen years of age; further under Section 90 of the Code consent is not valid when given by a person who from unsoundness of mind, or intoxication, is unable to understand the nature and consequence of that to which she gives consent. Sexual intercourse with a woman who has, by drugs or liquor, been reduced to such a condition as is indicated above will, therefore, constitute rape.

33. Caution as to evidence is cases of alleged rape.— A word of caution regarding charges for this offence is necessary. As Sir Matthew Hale, an eminent judge has said, "It is an accusation easily to be made, and hard to be proved, and harder to be defended by the party accused though never so innocent." Such charges are often brought from motives of revenge or blackmail, or to shield a reputation which was been voluntarily endangered. Courts should, therefore, examine and sift the evidence, especially that of the women said to have been ravished, with the greatest care.

34. Attempted rape.— When the offence is incomplete for want of penetration the accused may be convicted an attempt to commit rape, provided that the court is satisfied that it was his intention to gratify his passions at all events and notwithstanding any resistance. An indecent assault with intent to have illicit intercourse is not sufficient in itself to constitute such an attempt.

(vii) Theft and Cognate Offences

35. Property which can be subject of theft.— Theft is defined in Section 378 of the Penal Code. It can only be committed in respect of moveable property which is in the possession of someone.

36. Moveable property.— All corporeal property except land and thing attached to it is moveable property (See Penal Code, Section 22). The first and second explanations to Section 378, expressly state that things attached to the land may become moveable property by severance, and the act of severance may of itself be theft. The cutting down of a tree, with the intention of dishonestly removing it without the owner's consent, is thus theft [See Illustration (a) to that section].

37. Property must be in possession of someone.— The property must be in the possession of someone, but it does not mater whether that possession is rightful or wrongful. A Thing can be stolen from a thief who has himself stolen it, not less than from the rightful owner of the thing. A person cannot steal a thing which is in his own possession, or a thing which is not is the possession of any one, Wild animals (including game and fish) while at large, not being in the possession of anyone, cannot be the subject of theft, but if they have been tamed or are in confinement they can be stolen like an other property. When a man mislays property in his own house it still remains legally in his possession, and anyone finding it is bound to assume that it belongs to him.

38. Possession through another.— Property in the possession of a person's wife, clerk or servant, on that person's account is in that person's possession within the meaning of the Penal Code (See Section 27). The same principle also extends to other cases where a man's property is in the physical possession of someone to whom he has entrusted it and from whom he can demand it unconditionally whenever he pleases. Thus, where a servant has his master's plate in his keeping, or a shepherd is in charge in his master's sheep the legal possession remains with the master; similarly, the landlord of an inn retains the legal possession of the forks and spoons which his customers are handling at the dinner table and a shop-keeper retains the legal possession of goods which a purchaser

takes up in order to inspect them. The possession of anything by a servant on his master's behalf in thus considered to be the possession of the master or the possession of the servant according to the circumstances under which the servant originally received it. If, for instance, a servant is given the custody of anything by his master, or by a fellow-servant who has been given the custody of it by his master, the servant will have no real possession of the thing, and the possession will remain in the master. Therefore, any dishonest taking of the thing by the servant will be theft. If, however, a servant receives anything from a third person on his master's behalf then the servant will have possession of the thing, and the master will have no possession until the servant does some act by which the possession is transferred from the servant to the master—as for example, by placing it in a till, cart or godown, in which the master's goods are kept or carried.

39. What constitutes theft.— To constitute theft there must be:—

(1) a dishonest intention to take the property out of the possession of its real or temporary owner (i.e., he who has "possession" of it) without his consent, and

(2) a moving of the property in order to such taking under Section 378, Penal Code.

The intention must be a dishonest one, that is, an intention to cause wrongful gain to one person or wrongful loss to another (See Section 24 of the Code), and, therefore, inconsistent with a *bona fide* claim of right. If the property is taken under the supposition, honestly entrained that the taker has an immediate right to possession, the intention is not dishonest, and there is no theft; on the other hand, a person who has pawned his watch can steal the watch from the pawnbroker, because he has no right to possession until he has redeemed it. It has been repeatedly held that a claim of right would not justify a person in taking property out of another's possession without his consent with the intention of thereby coercing the other to pay a debt due to the taker. It must be remembered that consent is not valid if given under fear or misconception (See Penal Code, Section 90).

40. Moving.— In addition to the dishonest intention there must be a moving of the property in order to the taking of it. It is not necessary to prove that the goods were removed out of their owner's reach, or were carried away at all from the place in which they were found. All that is necessary is movement, and, that being proved, and the other ingredients of theft being present, the offence is complete.

41. Other allied offences.— Closely allied to theft are the offences of dishonest misappropriation and criminal breach of trust, These differ from theft in that, while theft is committed in respect of property in the possession of another, these two offences consist in dealing dishonestly with property which is lawfully in the possession of the offender.

42. Dishonest Misappropriation.— The dishonest misappropriation of property, honestly come by, is punishable with imprisonment which may extend to two years, or with fine, or with both, and even a temporary misappropriation, if dishonest, is within the terms of Section 403 of the Penal Code. A common instance f this offence is the dishonest misappropriation of lost property by the finder. The mere taking of such property into his possession by the finder is not, in itself, and offence, but be is guilty of dishonest misappropriation if he appropriates it to his own use when he knows or has means of discovering the owner, or before be has used a reasonable means to discover and give notice to the owner and has kept the property a reasonable time to enable the owner to claim it (See explanation 2 to the section). A person appropriates property to his own use whine he sells it, realises it, or in any other way puts it out of his own power to restore it, or whine he definitely makes up his mind to keep it at all hazards as his own.

43. Criminal breach of trust.— Criminal breach of trust is defined in Section 405 of the Penal Code, form which it will be seen that the offence consists in a person who has been entrusted with any property, or with any dominion over it, dealing dishonestly with that property. A person is entrusted with property when he is given the actual possession of it, as, for example, when a servant receives property from a third party to deliver to his master, but does not do any act to change his original possession into possession on account of his master. A person is entrusted with dominion over property when it remains legally in the owner's possession, but he is given a limited authority to deal with it, as for instance a shopman who can dispose of his master's stock, but must hand over to the latter the price he receives for it.

44. Receiving stolen property.— For a person to receive or retain stolen property knowing or having reason to believe that it has been stolen is an offence under Section 411 of the Penal Code. For this purpose the words "stolen property" includes property the possession of which has been transferred by theft, extorting or robbery, as well as property in respect of which criminal misappropriation or criminal breach of trust has been committed (See Section 410 ibid).

The guilty knowledge of the receiver must be established; it is not sufficient to prove that he merely suspected the property to have a tainted origin, but it will be sufficient if it is shown that under the circumstances a reasonable man must have felt convinced that the property was stolen property, The fact that he bought it much below its value, or that he falsely denied his possession of it might be evidence of guilty knowledge.

A person in considered to receive the goods as soon as he obtains control over them. But actual manual possession is not necessity; it is sufficient if they are in the actual possession of a person over whom the receiver has a control so that they would be forthcoming if he ordered it.

45. The doctrine of recent possession.— If a person is found in possession of property recently stolen, there is a strong presumption that he stole it or received or retained it with knowledge that it was stolen. The burden of proving guilty knowledge always remains upon the prosecution, and upon the prosecution establishing that the accused was in possession of recently stolen property, a court martial may, in the absence of any explanation by the accused of the way in which the property came into his possession, which might reasonably be true, find him guilty; but if an explanation is given which the court martial think might reasonably be true, and which is consistent with innocence, although they are not convinced of its truth, the accused is entitled to be acquitted, inasmuch as the prosecution has failed to discharge the duty cast upon it of satisfying the court beyond reasonable doubt of the guilt of the accused.

46. Cheating.— "Cheating" is defined is in Section 415 of the Penal Code.

A person is said to cheat who induces another person by deception to part with property or to consent to the retention of property by another person. The object of the offender must be fraudulent or dishonest.

Another class of "cheating" is where a person intentionally deceives a person in order to induce the latter to act to his detriment.

It is important to distinguish between a transfer of “possession” only, and a transfer of "property" in the goods taken; if A by false pretences induces B to give him possession only of an article, and then without B's consent appropriates it to himself, this is "theft"; but if he so induces B to transfer to him not only the possession of but also the property in the article, this is "cheating".

The deception may be made in any way, either by words, by writing, or by conduct, and a promise as to future conduct not intended to be kept may amount to cheating.

The property must be obtained either directly or indirectly by the deception; that is to say, it would not have been obtained but for the deception. If the person from whom the property is obtained is not deceived, the property is not obtained by the deception, but in such a case the accused may be convicted of attempting to cheat.

The following are examples of "cheating":—

(1) The giving of a cheque in exchange for goods knowing the cheque will not be met on presentation;

(2) Cheating by personation; e.g., obtaining goods on credit from a tradesman by falsely pretending to be an officer;

(3) Obtaining money by cheating at cards, etc,;

(4) Obtaining a meal at a restaurant knowing that he was unable to pay for it;

(5) Obtaining a loan by falsely pretending that he will repay it;

(6) Selling by false weights;

(7) Obtaining a receipt by deceiving a person into the belief that payment had been made for goods supplied.

47. Extortion.— Under Section 383 of the Penal Code, it is an offence to extort or attempt to extort any property or valuable security from a person by threatening to injure that person or any other person. "Injury" means harm illegally cased to a person in body, mind, reputation or property.

The maximum punishment for extortion, if not aggravated by the circumstances mentioned below, is rigorous imprisonment for three years and fine (See Penal Code Section 383). If a person is put in fear of death or of grievous hurt, or if the threat is to accuse a person of having committed or attempted to commit an offence punishable with death, transportation for life or imprisonment for ten years, Sections 385 to 389 of the Code provide for a more severe punishment.

48. Robbery.— The offence of "robbery" is defined in Section 390 of the Penal Code. It is an aggravated form of Theft or extortion from the person accompanied by violence or threats of immediate violence. The maximum punishment in ordinary cases is rigorous imprisonment for ten years and fine, but the Code provides for a more severe punishment if the robbery is committed on the highway between sunset and sunrise or if hurt is caused (See Sections 392 and 394 of the Penal Code).

The violence or threats must be intentionally used for the purpose of overcoming or preventing resistance, or of obtaining the thing stolen or extorted.

Dacoity.— If the robbery is committed by five or more persons, the offence is called "dacoity" and is punishable with transportation for life (See Section 391 and 395 of the Penal Code).

49. Mischief.— Numerous offences come under the category of mischief, which is defined in Section 425 of the Penal Code. The essence of the offence is injury to the property of another. Such acts are offences if done with intent to cause or with knowledge that they are likely to cause, wrongful loss or damage.

The punishment generally varies according to the amount of the loss or damage, but certain aggravated instances of mischief are specially provided for in the Code; e.g., damaging irrigation works, roads, bridges, etc., causing inundations, obstructing public drainage, and diverting water, damaging or destroying buildings, etc., by fire or explosives; and killing or maiming certain animals (See Sections 426 to 440 of the Penal Code).

(viii) Criminal Trespass

50. Criminal trespass.— Whoever enters into or upon property in the possession of another, or having lawfully entered into or upon such property unlawfully remains there, with intent to commit an offence or to intimidate, insult or annoy any person in possession of such property, is said to commit "criminal trespass" (See Penal Code Section 441).

51. House-breaking, etc.— The aggravated kinds of criminal trespass contained in the Penal Code are:—

(1) House-trespass — Section 442.

(2) Lurking house-trespass — Section 443.

(3) Lurking house-trespass by night — Section 444.

(4) House-breaking — Section 445.

(5) House-breaking by night — Section 446.

A person who commits house-trespass is said to commit "house-breaking" if he effects his entrance into the house or quits the house in any of the ways mentioned in Section 445 of the Penal Code.

A "house" means any building, tent or vessel used as a human dwelling, or any building used as a place of worship, or as a place for the custody of property.

Night means after sunset and before sunrise.

The maximum punishment for these offences varies according to the nature of the offence committed or intended e.g., house-breaking by night in order to commit an offence punishable with imprisomnent may be punished with rigorous imprisonment for five years and fin, but if the offence intended is theft, the maximum punishment is rigorous imprisonment for fourteen years; and if grievous hurt is caused or intended, the offender is liable to be punished with transportation for life (See Penal Code, Sections 447–462).

(ix) Miscellaneous offences

52. Criminal conspiracy.— Penal Code Section 120A defines criminal conspiracy as an agreement of two or more persons to do an illegal act or to do a legal act by illegal means. The mere intention to do such an act is not a conspiracy. An agreement to commit an offence, even if the offence is not afterwards committed, is a criminal conspiracy, but if the agreement is to do a legal act by illegal means, the agreement does not amount to a criminal conspiracy, unless some over act is done by one of the accused in pursuance of the agreement.

53. Offences against the State.— The only offences against the State which need here be mentioned are:—

(1) Waging war against the Sovereign, Penal Code Section 121, e.g., by joining in an insurrection.

(2) Conspiring to wage war against the Sovereign, or to overawe the Government by means of criminal force, Penal Code Section 121A.

(3) Sedition, Penal Code Section 124A. This offence consists in exciting or attempting to excite disaffection towards the Sovereign or Government established by law in Bangladesh.

54. Unlawful assembly.— An assemble of five or more persons is unlawful if the common object of the persons composing that assembly is one of the five objects mentioned in Section 141 of the Penal Code.

An assembly, which was not unlawful when it assembled, may become unlawful by the subsequent acts of its members; but an illegal act of one of two members, not acquiesced in by the others, does not change the character of the assembly.

Any person who, being aware of facts which render an assembly an unlawful assembly, intentionally joins, or continues in, that assembly, is liable to be punished with rigorous imprisonment for six months and fine; if armed with a deadly weapon the maximum punishment is two years rigorous imprisonment (Penal Code Section 142, 143 and 144).

Rioting.— If force or violence is used by any member of an unlawful assembly, in prosecution of the common object of that assembly, every member of the assembly is guilty of "rioting" and liable to be punished with rigorous imprisonment for two years and with fine (Penal Code Sections 146 and 147).

55. Forgery.— Forgery is making a false document or part of a document, with intent to cause damage or injury to the public or to any person, or to support any claim or title, or to cause any person to part with properly, or to enter into any express or implied contract, or with intent to commit fraud or that fraud may be committed (Penal Code Section 463).

A person makes a false document who (1) dishonestly or fraudulently makes, signs, seals or executes a document of part of a document, with the intention of causing it to be believed that the document or a part of it was made, etc., by or by the authority of a person who did not make it or authorise its making; or (2) who dishonestly or fraudulently alters a document in any material part without lawful authority after it had been made by himself or any other person; or (3) who dishonestly or fraudulently causes a person to sign, seal execute or alter a document, knowing that such person by reason of unsoundness of mind, intoxication or deception, does not know the contents of the document or the nature of the alteration (See Penal Code Section 464).

A man's signature of his own name, if the intention is that it should pass as the signature of someone else, and the making of a false document in the name of a fictitious person or in the name of a deceased person, may amount to a forgery (See Explanations 1 and 2 to Penal Code Section 464).

The maximum punishment for forgery under Section 465 of the Penal Code is rigorous imprisonment for two yeas and fine, but the Code provides a severe punishment for the forgery of certain documents such as court records, public registers, birth and death certificates, wills, valuable securities and receipts for the payment of money, etc. (Sections 466 and 467 ibid).

Uttering forged documents.— Whoever fraudulently or dishonestly uses as genuine any document which he knows, or has reason to believe, to be a forged document, may be awarded the same punishment as if he had forged the document (See Penal Code Section 471).

Table of Offences and Punishments

Description of Offence	Section of Penal Code	Punishment
Abetment –		
of any offence if the act abetted is committed in consequence, and where no express provision is made for its punishment.	109	The same punishment as for the offence abetted.
of an offence punishable with death or imprisonment for life, if the offence be not committed in consequence of the abetment.	115	Imprisonment of either description for 7 years, or less, and fine. (a) (b).
ditto, if an act which causes harm be done in consequence of the abetment.	115	Imprisonment of either description for 7 years, or less, and fine. (a) (b).
of an offence punishable with imprisonment, if the offence be not committed in consequence of the abetment.	116	Imprisonment which may extend to one quarter of the longest term, and of any description provided for that offence, or fine, as for the offence, or both.
of suicide, *see* "Suicide".		
Adultery … … … … … …	497	Imprisonment of either description for 5 years, or less, or fine, or both.
See also "Enticing etc., a married woman".		
Affray–		
Committing an affray … … … …	1 60	Imprisonment of either description for 1 month, or less, or fine of 100 Taka, or less, or both.
Apprehension–		
Resistance or obstruction by a person to his lawful apprehension, or escape by a person form lawful custody, or attempt at such escape.	224	Imprisonment of either description for 2 years, or less, or fine, or both.

Table of Offences and Punishments

Description of Offence	Section of Penal Code	Punishment
Apprehension– continued		
Resistance or obstruction to the lawful apprehension of another or rescuing or attempting to rescue him from lawful custody.	225	Imprisonment of either description for 2 years, or less, or fine, or both.
Ditto, if the person is charged with an offence punishable with imprisonment for life, or imprisonment for 10 years.	225	Imprisonment of either description for 3 years, or less, or fine. (a).
Resistance if the person is charged with a capital offence.	225	Imprisonment of either description for 7 years, or less, and fine. (a) (b).
Ditto, if the person is sentenced to Imprisonment for life, or imprisonment for 10 years or upwards.	225	Ditto.
Ditto, if the person is under sentence of death.	225	Imprisonment for life, or imprisonment of either description for 10 years, or less, and fine. (a) (b).
Assault and Criminal Force–		
Assault or use of criminal force–		
(a) to a public servant in discharge of his duty or to deter him from discharge of his duty.	353	Imprisonment of either description for 2 years, or less, or fine, or both.
(b) to a woman with intent to outrage her modesty.	354	Ditto.
(c) to any person with intent to dishonour him, otherwise than on grave and sudden provocation.	355	Ditto.
(d) in attempt to commit theft of property worn or carried by person.	356	Ditto.

Table of Offences and Punishments

Description of Offence	Section of Penal Code	Punishment
Assault or use of criminal force– continued		
(e) in attempt wrongfully to confine a person.	357	Imprisonment of either description of 1 year, or less, or fine of 1,000 Taka, or less, or both.
(f) in all other eases, in the absence of grave and sudden provocation.	352	Imprisonment of either description of 1 year, or less, or fine of 500 Taka, or less, or both.
(g) on grave and sudden provocation.	358	Simple imprisonment for 1 month, or less, or fine, of 200 Taka. Or less, or both.
Attempts –		
Attempting to commit, or cause to be committed, an offence, punishable with imprisonment for life or imprisonment and in such attempt doing any act towards the commission of the offence.	511	Transportation or Imprisonment not exceeding half of the longest term, and of any description, provided for the offence, or fine, as for the offence, or both. (N.B.) – Imprisonment for life is, for this purpose, reckoned as equivalent to imprisonment for 30 years.)
Attempt to commit murder. *See* "Murder".		
Attempt to commit culpable homicide. *See* "Culpable homicide."		
Attempt to commit suicide. *See* "Suicide."		
Breach of trust –		
See "Criminal Breach of Trust".		

Table of Offences and Punishments

Description of Offence	Section of Penal Code	Punishment
Cheating – … … … …		
Cheating… … … …	417	Imprisonment of either description for 1 year, or less, or fine, or both.
Cheating by presentation …	419	Imprisonment of either description for 3 years, or less, or fine, or both.
Condemnation of creation of State–		
Condemnation of the creation of the State and the advocacy of abolition of its sovereignty.	123A	Imprisonment which may extend to 10 years and fine (a) (b).
Confinement –		
See "Wrongful restraint, etc."		
Courts of Justice offences relating to–		
See "False evidence", and "Public Servants, etc."		
Criminal Breach of Trust –		
(a) by a carrier, wharfinger or ware house-keeper.	407	Imprisonment of either description for 7 years, or less, and fine, (a) (b).
(b) by a clerk or servant … …	408	Ditto.
(c) by a public servant, or by a banker, merchant or agent,	409	Imprisonment for life, or imprisonment of either description for 10 years, or less, and fine, (a) (b).
(d) in all other cases … …	406	Imprisonment of either description for 3 years, or less, or fine, or both.
Criminal Force –		
See " Assault and Criminal Force".		

Table of Offences and Punishments

Description of Offence	Section of Penal Code	Punishment
Criminal Intimidation –		
Circulating statements, rumours or reports with intent to cause a soldier, sailor or airman to mutiny or fail in his duty.	505	Imprisonment of either description for 2 years, or less, or fine, or both.
Criminal Intimidation … …	506	Ditto.
Ditto. If threat be to cause death, grievous hurt or the destruction of property by fire, or to cause an offence punishable with death or imprisonment for life or imprisonment up to 7 years, or to impute unchastity to a woman.	506	Imprisonment of either description for 7 years, of less, or fine, or both, (b).
Criminal Trespass … … …	447	Imprisonment of either description for 3 months, or less, or fine of 500 Taka, or less, or both.
Culpable homicide not amounting to murder –		
If act by which death is caused is done with intention of causing death, or such bodily injury as is likely to cause death.	304	Imprisonment for life, or imprisonment of either description for 10 years, or less, and fine. (a), (b).
If act is done with knowledge that it is likely to cause death, but without any intention to cause death, or such bodily injury as is likely to cause death.	304	Imprisonment of either description for 10 years, or less, or fine, or both.
Attempt to commit culpable homicide.	308	Imprisonment of either description for 3 years, or less, of fine, or both.
Ditto, if the act cause hurt to any person	308	Imprisonment of either description for 7 years, of less, or fine, or both. (b).
Dacoity … … … … …	395	Imprisonment for life, or rigorous imprisonment for 10 years, or less and fine, (a) (b).

Table of Offences and Punishments

Description of Offence	Section of Penal Code	Punishment
Dangerous Acts –		
Causing death by rash of negligent act	304A	Imprisonment of either description for 7 years, or less, of fine, or both.
Doing an act so rashly or negligently as to endanger human life or the personal safety of others.	396	Imprisonment of either description for 3 months, or less, or fine of 250 Taka, or less, or both.
Ditto, if hurt is caused … …	337	Imprisonment of either description for 6 months, or less, or fine of 500 Taka, of less, or both.
Ditto, if grievous hurt is caused …	338	Imprisonment of either description for 2 years, or less, or fine of 1,000 Taka, of less, or both.
Defamation … … … …	500	Simple imprisonment for 2 years, or less, or fine or both.
Dishonest misappropriation –		
See " Moveable property"		
Extortion –		
Extortion … … … … …	384	Imprisonment of either description for 3 years, or less, or fine or both.
Extortion by putting a person in fear of death of grievous hurt to himself or another.	386	Imprisonment of either description for 10 years, and fine (a).
False Evidence–		
Giving or fabricating false evidence in a judicial proceeding.	193	Imprisonment of either description for 7 years, or less, and fine. (a).
Giving or fabricating false evidence with intent to cause any person to be convicted of a capital offence.	194	Imprisonment for life, or rigorous imprisonment for 10 years, or less, and fine, (a).
Ditto, if innocent person be thereby convicted and executed.	194	Death, or as above, (a).

Table of Offences and Punishments

Description of Offence	Section of Penal Code	Punishment
False Evidence–continued		
Giving or fabricating false evidence with intent to procure conviction of an offence punishable with Imprisonment for life or with imprisonment for 7 years of up wards.	195	The same as for the offence.
Food and Drink, offence relating to–		
Adultering food of drink intended for sale, so as to make the same noxious.	272	Imprisonment of either description for 6 months or less, or fine of 1,000 Taka, or less, or both.
Selling food or drink as such, knowing the same to be noxious.	273	Ditto.
Forgery –		
Forgery … … … … …	465	Imprisonment of either description for 2 years, or less, or fine, or both.
Forgery, if document forged purports to be a will, valuable security or acquittance.	467	Imprisonment for life, or imprisonment of either description for 10 years or less, and fine. (a).
Forgery for the purpose of cheating	468	Imprisonment of either description for 7 years, and fine. (a).
Fraudulently or dishonestly using as genuine a forged document which is known to be forged.	471	Punishment for forgery of such document.
Grievous hurt –		
Voluntarily causing grievous hurt (except on grave and sudden provocation).	325	Imprisonment of either description for 7 years, or less, or fine (a).
Ditto, by dangerous weapons or means	326	Imprisonment for life, or imprisonment of either description for 10 years, or less, and fine, (a).

Table of Offences and Punishments

Description of Offence	Section of Penal Code	Punishment
Grievous hurt – continued		
Voluntarily causing grievous hurt for the purpose of extorting property or cons- training to an illegal act.	329	Ditto.
Voluntarily causing grievous hurt for the purpose of extorting confession or compelling restoration of property.	331	Imprisonment of either description for 10 years, or less, and fine. (a).
Voluntarily causing grievous hurt to public servant in discharge of his duty, or to deter him from his duty.	333	Ditto.
Voluntarily causing grievous hurt on grave and sudden provocation.	335	Imprisonment of either description for 4 years, or less, or fine of 2,000 Taka, of less, or both.
See also "Dangerous Acts"		
Harbouring and screening offenders –		
Harbouring an offender, if the offence be capital.	212	Imprisonment of either description for 5 years, or less, and fine. (a).
Harbouring an offender, if the offence be punishable with imprisonment for life or with imprisonment for 10 years.	212	Imprisonment of either description for 3 years, or less, and fine. (a).
Ditto, if the offence be punishable with imprisonment for 1 year and not for 10 years.	212	Imprisonment for a quarter of the longest term and of the description, provided for the offence, or fine, or both.
Taking or offering gift (or restoration of property) in consideration of screening and offender, if the offence be capital.	213 214	Imprisonment of either description for 7 years, or less, and fine. (a).

Table of Offences and Punishments

Description of Offence	Section of Penal Code	Punishment
Harbouring and screening offenders – continued		
Ditto, if the offence be punishable with Imprisonment for life, or with imprisonment for 10 years.	213 214	Imprisonment of either description for 3 years, or less, and fine. (a).
Ditto, if the offence be punishable with imprisonment for less than 10 years.	213 214	Imprisonment for a quarter of the longest term and of the description provided for the offence, or fine, or both.
Harbouring an offender who has escaped from custody or whose apprehension has been ordered, if the offence be capital.	216	Imprisonment of either description for 7 years, or less, and fine. (a).
Ditto, if the offence be punishable with Imprisonment for life, or with imprisonment for 10 years.	216	Imprisonment of either description for 3 years, or less, with or without fine.
Ditto, if the offence be punishable with imprisonment for one year and not for 10 years.	216	Imprisonment for a quarter of the longest term, and of the description, provided for the offence, or fine, or both.
House-breaking, etc. –		
House-breaking or lurking house-trespass	453	Imprisonment of either description for 2 years, or less, and fine. (a).
Ditto, in order to the committing of an offence punishable with imprisonment.	454	Imprisonment of either description for 3 years, or less, and fine. (a).
If the offence is theft … … …	454	Imprisonment of either description for 10 years, or less, and fine, (a).
House-breaking, or lurking house-trespass, after preparation made for hurt, assault, or wrongful restraint.	455	Ditto.
House-breaking by night, or lurking house-trespass by night.	456	Imprisonment of either description for 3 years, or less, and fine (a).

Table of Offences and Punishments

Description of Offence	Section of Penal Code	Punishment
House-breaking, etc.– continued		
Ditto, in order to commit an offence punishable with imprisonment.	457	Imprisonment of either description for 5 years, or less, and fine (a).
If the offence is theft … … …	457	Imprisonment of either description for 14 years, or less, and fine (a).
House-breaking by night, or lurking house-trespass by night, after preparation made for hurt, assault, or wrongful restraint.	458	Ditto.
Grievous hurt caused or attempted whilst committing house-breaking or lurking house-trespass.	459	Imprisonment for life, or imprisonment of either description for 10 years, or less and fine. (a).
House-trespass –		
House-trespass	448	Imprisonment of either description for 1 year, or less, or fine of 1,000 Taka, or less, or both.
House-trespass in order to commit an offence punishable with death.	449	Imprisonment for life, or rigorous imprisonment for 10 years, or less and fine. (a).
House-trespass if the offence be punishable with Imprisonment for life.	450	Imprisonment of either description for 10 years, or less, and fine. (a).
House-trespass if the offence be punishable with imprisonment.	451	Imprisonment of either description for 2 years, or less, and fine. (a).
If the offence is theft	451	Imprisonment of either description for 7 years, or less, and fine. (a).
House-trespass after preparation made for hurt, assault, or wrongful restraint.	452	Imprisonment of either description for 7 years, or less, and fine. (a).
See also "Lurking house-trespass" under “House-breaking”, etc.		

Table of Offences and Punishments

Description of Offence	Section of Penal Code	Punishment
Hurt –		
Voluntarily causing hurt (except on grave and sudden provocation).	323	Imprisonment of either description for 1 year, or less, and fine of 1,000 Taka, or less, or both.
Ditto, by dangerous weapons, or means	324	Imprisonment of either description for 3 years, or less, or fine, or both.
Voluntarily causing for the purpose of extorting property or constraining to an illegal act.	327	Imprisonment of either description for 10 years, or less, and fine. (a).
Voluntarily causing hurt for the purpose of extorting confession, or compelling restoration of property.	330	Imprisonment of either description for 7 years, or less, and fine. (a).
Voluntarily causing hurt to a public servant in discharge of his duty or to deter him from his duty.	332	Imprisonment of either description for 3 years, or less, or fine, or both.
Voluntarily causing hurt on grave and sudden provocation.	334	Imprisonment of either description for 1 month, or less, or fine of 500 Taka, or less, or both.
Administering poison or intoxicating drug with intent to cause hurt or commit an offence. *See* also "Grievous hurt".	328	Imprisonment of either description for 10 years, or less, and fine. (a).
Insult –		
Insult intended to provoke a breach of the peace.	504	Imprisonment of either description for 2 years, or less, or fine, or both.
Intoxication –		
Misconduct by intoxicated person in public or in any place which it is a trespass to enter, so as to cause annoyance.	510	Simple imprisonment for 24 hours, or less, or fine of 10 taka, or less, or both.

Table of Offences and Punishments

Description of Offence	Section of Penal Code	Punishment
Lurking House-trespass – *See* "House-breaking", etc.		
Mischief – i.e., wrongful damage to property; (*see* Penal Code 425, for full definition)		
Mischief ... ... … …	426	Imprisonment of either description for 3 months, or less, or fine, or both
Mischief and thereby causing damage to the amount of 50 Taka or upwards.	427	Imprisonment of either description for 2 years, or less, or fine, or both.
Mischief by killing, poisoning, maiming or rendering useless any animal of the value of 10 Taka upwards.	428	Ditto.
Mischief by killing, poisoning, maiming or rendering useless any elephant, camel, horse, mule, buffalo, bull, cow, or ox, whatever may be the value thereof or any other animal of the value of 50 Taka upwards.	429	Imprisonment of either description for 5 years, or less, or fine, or both.
Mischief by fire or explosive substance with intent to cause, or knowledge that it is likely to cause, damage to the amount of 100 Taka or upwards, or, in case of agricultural produce, 10 Taka or upwards.	435	Imprisonment of either description for 7 years, or less and fine. (a).
Mischief by fine or explosive substance with intent to cause, or knowledge that it is likely to cause, the destruction of a building used as a place of worship, a human dwelling or a place for the custody of property.	436	Imprisonment for life, or imprisonment of either description for 10 years, or less and fine. (a).

Table of Offences and Punishments

Description of Offence	Section of Penal Code	Punishment
Moveable Property –		
Dishonest misappropriation of moveable property, or conversion of such property to one's won use.	403	Imprisonment of either description for 2 years, or less or fine or both.
Murder –		
Murder	302	Death or Imprisonment for life, and fine. (a)
Murder by a person under sentence of Imprisonment for life.	303	Death.
Attempt to murder	307	Imprisonment of either description for 10 years, or less, and fine. (a).
If hurt is caused	307	Imprisonment for life, or as above. (a).
By life-convict, if hurt is caused ...	307	Death, or as above. (a).
Negligent Acts, *See* "Dangerous Acts."		
Personation –		
Personation by cheating, *See* "Cheating"		
Public Servants and Courts, offences relating to –		
Not obeying a legal order to attend in a Court of Justice.	174	Simple imprisonment for 6 months, or less, or fine of 1,000 Taka, or less, or both.
Intentionally omitting to produce a document, which he is legally bound to produce to a Court of Justice.	175	Ditto.
Refusing oath when duly required to take oath by a public servant.	178	Ditto.

Table of Offences and Punishments

Description of Offence	Section of Penal Code	Punishment
Public Servants and Courts, offences relating to – continued		
Being legally bound to state truth and refusing to answer questions.	179	Ditto.
Intentional insult or interruption to a public servant in any state of a judicial proceeding.	228	Ditto.
See also "Apprehension", "Assault and Criminal Force", "False Evidence", "Grievous Hurt" and "Hurt".		
Rape ... ... … …	376	Imprisonment for life, or imprisonment of either description for 10 years, or less, and fine. (a).
Rash or Negligent Acts.		
See "Dangerous Acts".		
Receiving.		
See "Stolen Property".		
Rescue.		
See "Apprehension".		
Restraint.		
See "Wrongful restraint".		
Rioting –		
Rioting	147	Imprisonment of either description for 2 years, or less, or fine, or both.
Rioting armed with a deadly weapon	148	Imprisonment of either description for 3 years, or less, or fine or both.

Table of Offences and Punishments

Description of Offence	Section of Penal Code	Punishment
Robbery –		
Robbery	392	Rigorous imprisonment for 10 years, or less, and fine. (a).
Robbery on the highway between sunset and sunrise.	392	Rigorous imprisonment for 14 years, or less, and fine, (a).
Attempt to commit robbery	393	Rigorous imprisonment for 7 years, or less, and fine, (a).
Sodomy –		
See "Unnatural offences".		
State, Offences against the –		
Waging or attempting to wage war or abetting the waging of war, against Bangladesh.	121	Death, or Imprisonment for life, and fine. (a).
Conspiring to commit offences punishable under Section 121 of the Penal Code, or to deprive Bangladesh of the sovereignty of her territory or any part thereof, or to overawe the Government.	121A	Imprisonment for life, or for any shorter term, or imprisonment of either description for 10 years, or less and fine. (a)
Collecting men, arms or ammunition or otherwise preparing to wage war, with intent to wage, or be prepared to wage, war against Bangladesh.	122	Imprisonment for life, or imprisonment of either description for 10 years, or less, and fine. (a).
Concealing the existence of a design to wage war against Bangladesh intending thereby to facilitate the waging of such war or knowing it to be likely that it will thereby be facilitated.	123	Imprisonment of either description for 10 years, or less and fine. (a).
Sedition (for full description of this offence, *See* Penal Code, Section 124A).	124A	Imprisonment for life or any shorter term, and fine, or imprisonment of either description for 3 years, or less, and fine, or both.

Table of Offences and Punishments

Description of Offence	Section of Penal Code	Punishment
Stolen property –		
Dishonestly receiving or retaining stolen property knowing or having reason to believe it to be stolen.	411	Imprisonment of either description for 3 years, or less, or fine, or both.
Assisting in concealment or disposal of stolen property knowing or having reason to believe it to be stolen.	414	Ditto.
Suicide –		
Abatement of suicide committed by a person under 18 years of age or insane or delirious person, or an idiot, or an intoxicated Person.	305	Death, or Imprisonment for life, or imprisonment for 10 years, or less, and fine. (a).
Abetting the commission of suicide, if suicide committed.	306	Imprisonment of either description for 10 years, or less, and fine. (a).
Attempt to commit suicide, if act done towards such commission.	309	Simple imprisonment for one year, or less, or fine, or both.
Theft –		
Theft … … … … … …	379	Imprisonment of either description for 3 years, or less, or fine, or both.
Theft in a building, tent or vessel used as a human dwelling or for the custody of property.	380	Imprisonment of either description for 7 years, or less, and fine. (a).
Theft by a clerk or servant of property in the possession of his master or employer.	381	Ditto.
Theft, preparation having been made for causing death, or hurt, or restraint, or for fear of death, or of hurt, or of restraint, in order to commit such theft, or to escape after committing it, or to retain property taken by it.	382	Rigorous imprisonment for 10 years, or less, and fine. (a).

Table of Offences and Punishments

Description of Offence	Section of Penal Code	Punishment
Unlawful assemblies –		
Being a member of an unlawful assembly.	143	Imprisonment of either description for 6 months, or less, or fine, or both.
Joining an unlawful assembly armed with a deadly weapon.	144	Imprisonment of either description for 2 years, or less, or fine, or both.
Joining or continuing in any unlawful assembly knowing that it has been commanded to disperse.	145	Ditto.
Knowingly joining or continuing in any assembly of five or more persons after it has been commanded to disperse.	151	Imprisonment of either description for 6 months, or less, or fine, or both.
Unnatural offences … … …	377	Imprisonment for life, or imprisonment of either description for 10 years, or less, and fine.(a).
Weights and measures, offences relating to –		
Fraudulent use of false instrument for weighing.	264	Imprisonment of either description of 1 year, or less, or fine, or both.
Fraudulent use of false weight or measure.	265	Ditto.
Being in possession of false instruments for weighing, weights, or measures, intending them for fraudulent use.	266	Ditto.
Making or selling false instruments for weighing, weights, or measures, for fraudulent use.	267	Ditto.

Table of Offences and Punishments

Description of Offence	Section of Penal Code	Punishment
Women, offences relating to –		
Enticing or taking away or detaining a married woman with intent that she may have illicit intercourse with any person.	498	Imprisonment of either description of 1 year, or less, or fine, or both.
Uttering any word, making any sound or gesture or exhibiting any object in tending there by to insult the modesty of a woman.	509	Simple imprisonment for 1 year, or less, or fine, or both.
Intruding upon the privacy of a woman, intending thereby to insult her modesty.	509	Ditto.
See also "Adultery" and "Rape."		
Wrongful restraint and confinement –		
Wrongfully restraining any person	341	Simple imprisonment for 1 month, or less, or fine, of 500 Taka, or less, or both.
Wrongfully confining any person	342	Imprisonment of either description of 1 year, or less, or fine of 1,000 Taka, or less, or both.

Note (a) – Fine alone cannot be awarded for these offences. There must in addition be some award of imprisonment.

Table of Offences and Punishments

Description of offence	Section of Official Secrets Act, 1923	Punishment
Spying in relation to any work of defence, arsenal, etc.	3(1)	Death or Imprisonment of either description for 14 years,
Spying, in other cases	3(1)	Imprisonment of either description for 3 years.
Restriction against Photographs, sketches, etc, of prohibited and notified areas.	3-A	Imprisonment for term which may extend to 3 years or with fine or with both.
Wrongful communication, etc, or receiving of information.	5	Imprisonment of either description for 2 years, or fine or both.
Unauthorised use of uniforms, falsification of reports, forgery, premonition and false documents.	6	Ditto.
Interfering with officers of the police or members of His Majesty's Forces, in relation to prohibited places, as defined in section 2(8) of the official Secrets Act, 1923.	7	Imprisonment of either description for 2s years, or fine, or both.
Failing to give information as to commission of offences.	8	Ditto.
Attempt, incitement, etc, of any of the aforesaid offences.	9	Same punishment as for substan-tive offence.
Harbouring spies	10	Imprisonment of either description for 1 year, or fine, or both.

CHAPTER VII

DUTIES IN AID OF THE CIVIL POWER

NOTE.– As regards martial law, see para 7 below.

1. Unlawful assembly, riot and rebellion.– An assembly which through the action of those composing it is likely to cause a disturbance of the public peace is an unlawful assembly. As soon as an act of violence is committed it becomes a riot; while if the riot is committed with the intention of waging war against the State, it becomes an insurrection or rebellion.

2. Relations of civil and military authorities.– An officer called on to act in case of sudden tumult will seldom have any knowledge of the intention of the mob. For this reason, and protect him from the serious consequences of a failure to appreciate the situation correctly, he is directed to take his instructions from a magistrate, whenever possible, and, in the absence of a magistrate, to act only when the public security is manifestly endangered. The obligation lies upon the magistrate, when he is present or within reach, to use all the ordinary means at his disposal to preserve public order. If further aid is required, he is empowered to call for military assistance, and the officer to whom the requisition is addressed will act as directed in this Chapter. His action must be limited to the dispersal of assembly, and, subject to the orders of the magistrate, to the arrest and detention, but not the punishment, of the rioters. He must, moreover, use as little force as is consistent with these objects. If he is compelled to act in the absence of the magistrate, and in anticipation of a requisition for troops, he should be even more careful to use no more force than is absolutely necessary.

3. Powers and duties of civil authorities.– The civil authorities have power, under the ordinary law, to disperse, unlawful assemblies and suppress rioting and disturbance. If their force is insufficient for the purpose, the civil authorities are empowered to call for military assistance. The Code of Criminal Procedure, after providing for the dispersal, by means of the police and ordinary citizens called in to their aid, of unlawful assemblies likely to cause a disturbance of the public peace, continues as follows:–

129. If any such assembly cannot be otherwise dispersed, and if it is necessary for the public security that it should be dispersed, the Magistrate of the highest rank, who is present, may cause it to be dispersed by military force.

130. (1) When a Magistrate determines to disperse any such assembly by military force, he may require any commissioned or non-commissioned officer in command of any soldiers in Bangladesh Army to disperse such assembly by military force, and to arrest and confine such persons forming Part of it as the Magistrate may direct, or as it may be necessary to arrest and confine in order to disperse the assembly or to have them punished according to law.

(2) Every such officer shall obey such requisition in such manner as he thinks fit, but in so doing he shall use as little force, and do as little injury to person and property, as may be consistent with dispersing the assembly and arresting and such persons.

Where such a course is feasible the requisition should be given in writing, but it is clear that this will often be impossible.

For the purposes of Sections 128 to 131 of the Code of Criminal Procedure, references to officers, non-commissioned officers and men of the Bangladesh Army include references to corresponding ranks of the Ansars and such other Forces.

Military assistance is, it will be seen, not to be called for unless the civil force is inadequate (of this the civil officer is the judge) but when called for must be accorded. The strength and composition of the force, the amount of ammunition to be taken and the manner of carrying out the operations, are matters for the decision of the military authorities alone. The degree of force which may lawfully be used depends on the occasion, for the force used must always be strictly limited by the necessity of the case and proportioned to the end to be attained, which is the dispersal of the assembly and the execution of such orders as the Magistrate may pas in respect of the arrest and detention of its members. It has been repeatedly stressed that the primary factor of policy whenever circumstances unfortunately necessitate the suppression of civil disorder by force within Bangladesh is the use of the minimum amount of force necessary to secure the object in view.

4. Magistrate not available.– It may, however, happen that a serious situation arises when there is no Magistrate within reach. This is provided for in the next section of the Code.

131. When the public security is manifestly endangered by any such assembly, and when no Magistrate can be communicated with, any commissioned officer of the Bangladesh Army may disperse

> such assembly by military force, and may arrest and confine any persons forming Part of it, in order to disperse such assembly or that they may be punished according to law; if, while he is acting under this section, it becomes practicable for him to communicate with a Magistrate he shall do so, and shall thenceforward obey the instructions of the Magistrate as to whether he shall or shall not continue such action.

This section confers powers to act without the presence of a Magistrate only on commissioned officers of the Bangladesh Army and then only when the emergency is so serious that the public security is manifestly endangered and it is not possible to communicate with a Magistrate. As soon as it becomes possible to communicate with a Magistrate, the officer must do so, and must obey his instructions as to stopping or continuing his action. The principle laid down in the second sub-section of Section 130 applies also to action under this section.

Under Section 131 of the Code Criminal procedure, the power of dispersing an unlawful assembly in the absence of a Magistrate can only be exercised by a commissioned officer. This power cannot be exercised by a non-commissioned officer. The lack of such power, however, in no way affects the right of a non-commissioned officer to take such action as may be necessary in the exercise of the right of private defence under the ordinary civil law to safeguard the lives of himself, the men under his command and other persons and to project any property against robbery mischief, criminal trespass, or fire.

5. Firing on Assembly.– When an officer is required by a Magistrate (as in para. 3 above) or determines (as in para. 4 above) to disperse an assembly by force, he will, if his detachment is not already organised in platoons and sections and does not exceed 40 men, tell it off into four sections. If it exceeds 40 men, he will tell it off into more sections than four. He will, before taking action, adopt the most effectual measures possible to explain to the people that, if necessary, fire will be opened and that if firing becomes necessary the fire of the troops will be effective. If he is of opinion that it is necessary to fire, but that the fire of a few men will attain the object of dispersing the assembly, he will personally give the command to a few specified men to fire. If a greater effort be required, he will personally give the command to one of the sections to fire. He will, when telling off the sections, clearly indicate to the troops the officer or non-commissioned officer who is to order each section to fire, should it be necessary for more sections than one to fire at a time; and no order to a man or section to fire will be given by any person except himself or the officer or non-commissioned officer so indicated. Care must be taken not to fire on persons separated from the crowd who do no appear to be acting

with it or inciting it, or over the heads of the latter. Under the Regulations for the Army Instruction 579 the firing must be carried out with steadiness and be stopped the moment it becomes unnecessary. Firing with blank is forbidden. The fire, if firing is necessary, must be effective. Firing on specified ringleaders may, sometimes, be the most effective way of dispersing a crowd, and will be justified if it is necessary and likely to obviate greater blood-shed. Machine guns should not be employed to disperse rioters if the object to be attained can be secured without recourse to this weapon, and if so employed, the fire should be most carefully controlled.

6. Protection from prosecution.– The interests of officers, soldiers and others are protected by Section 132 of the Code of Criminal Procedure, which is as follows:–

132. No prosecution against any person for any act purporting to be done under this Chapter shall be instituted in any Criminal Court, except with the sanction of the Government; and–

(a) no Magistrate or police officer acting under this Chapter in good faith,

(b) no officer acting under Section 131 in good faith,

(c) no person doing any act in good faith, in compliance with a requisition under Section 128 or Section 130,

(d) no inferior officer, or soldier, doing any act in obedience to any order which he was bound to obey,

shall be deemed to have thereby committed an offence.

7. Marital Law.– So long as the disturbances amount to no more than a riot, the measures contemplated in this Chapter may be expected to suffice to restore order. Since the crowd is not acting in general defiance of the Government, the danger is, as a rule, local and disappears with the dispersal of the rioters and the arrest of the ringleaders. But where the disturbances are recurrent, wide-spread, concerted and directed against the constituted authorities it becomes the duty of the executive, in exercising the common law right of repelling force by force, to assume such exceptional powers and to take such exceptional measures, as may be necessary, for the purpose of restoring order.

The state of things thus set up is generally known as "Martial Law". Further information on this subject will be found in the instructions relating to Martial Law which have been issued by Government to all concerned.

CHAPTER VIII

MISCELLANEOUS

(i) Military Privileges

1. Under Chapter XIV of the Army Act persons subject to that Act enjoy certain privileges in their relations to civil courts in Bangladesh and the law administered by these courts. In addition to these privileges certain others have been conferred upon these persons by various Acts of the legislatures. The most important of these privileges are:–

(1) **Pay protected.**– By Section 64 of the Army Act the pay of officers, junior commissioned officers and other ranks is protected from any deductions other than those authorised by or under that Act or any other law in force.

(2) **Pension protected.**– All Government pensions (including military pensions) are protected from attachment in the execution of the decrees of civil courts [see the Pensions Act, 1871, Section 11 and Code of Civil Procedure, 1908, Section 60, proviso (g)].

(3) **Civil suits.**– An officer, junior commissioned officer or other rank, actually serving in a military capacity, who is a party to a suit and cannot obtain leave of absence may authorise any person to sue or defend in his stead. This authority must be in writing and be signed in the presence of his commanding officer (Code of Civil Procedure, 1908, Order XXVIII).

(4) **Exemption from court fees in certain cases.**– A Power of Attorney to institute or defend a suit when executed by an officer, junior commissioned officer, warrant officer, non-commissioned officer or private, is exempted from fees under Section 19 of the Court Fees Act, 1870.

(5) **Special protection in respect of civil and revenue litigation whilst serving under war conditions.**– All persons subject to the Army Act whilst serving under war conditions are specially protected in respect of civil and revenue litigation under the provisions of the Soldiers (Litigation) Act, 1925, which is printed in full in Part III of this Manual.

(6) Receipts for pay need not be stamped.– Under Schedule I to the Stamp Act, 1899, receipts for pay or allowances of non-commissioned officers or soldiers, when serving in such capacity, need not be stamped.

(7) Exemption from tolls when on duty.– All officers and soldiers of the regular forces on duty or on the march, as well as their authorised followers, families (including the families of such followers), horses, baggage and transports are exempt from all tolls, except certain tolls for the transit of barges, etc., along canals [see Section 3 of the Tolls (Army and Air Force) Act, 1901 in Part III of this Manual].

(ii) Army Reserves

2. Bangladesh Reserve Forces.– In addition to regular officers and other ranks, reserves for the Army are maintained under the (Army and Air Force) Reserves Act, 1950 (XLVII of 1950). This Act provides for five classes of reserves, namely:

(i) The Bangladesh Army Regular Reserve of Officers;

(ii) The Bangladesh Army Regular Reserve of Junior Commissioned Officers;

(iii) The Bangladesh Army Supplementary Reserve of Officers;

(iv) The Bangladesh Army Supplementary Reserve of Junior Commissioned Officers and Ranks; and

(v) The Regular Reserve of Other Ranks.

3. Terms of service.– The terms and conditions of service of these reserves which vary from one category to another are set out in the (Army and Air Force) Reserves Act, 1950 and the Rules under that Act, which have been reproduced in Part III of this Manual.

4. Liability to perform military service.– Liability to perform military service is generally enforceable, in the event of an emergency, by an order of the authority specified in the case of each reserve.

5. Constitution of Territorial Force.– Authority for the constitution of the Territorial Force has been given by the Territorial Force Act, 1950 (Act L of 1950), which is reproduced in Part III of this Manual.

(iv) The Bangladesh Territorial Force

Officers and Other Ranks of the Force, when constituted will be liable to perform military service, and become subject to the Army Act, in the circumstances set out in the Territorial Force Act and the Rules thereunder.

(v) Other Force Existing in Bangladesh

6. Bangladesh Rifles, Ansars, Civil Armed Forces, Gram Pratiraksha Bahini etc.— In addition to the Regular Army and its Reserves, there are a number of semi-military bodies under various names; e.g., Bangladesh Rifles, Ansars, Civil Armed Forces and Gram Pratiraksha Bhahini.

If however, the law under which any of these bodies is governed does not exclude the application of the Army Act, that Act may by reason of Section 2(1)(c), and without any special orders of the Government, be applied to it in its entirety, when serving with regular troops on active service. In such circumstances it will be necessary for officer commanding the force to direct, in pursuance of Section 3(1) of the Army Act, that persons holding positions equivalent to officers, junior commissioned officers, warrant officer and non-commissioned officers of such body shall be subject to that Act, as officers, junior commissioned officers, warrant officers and non-commissioned officers, respectively. Before enforcing the provisions of the Army Act, in such circumstances, against any member of such body the officer commanding the force on active service should consult the inspector General of the Civil Armed Forces.

(vi) Civil Officers and Subordinates– Temporary Subjection to the Army Act and Relative Status

7. Manner of subjection to Army Act.– The notification under Section 3 of the Army Act regarding the manner in which civil officers and subordinates, when subject to that Act by reason of Section 2(1) (c), shall be so subject is set out in Part IV. This notification classifies civilians as officers, junior commissioned officers, warrant officers and non-commissioned officers, according to their monthly emoluments.

Civilians, other than Government servants, who may become subject to the Act under Section 2(1)(c) may be similarly classified by the officers commanding of the forces which they accompany. Civilians whose relative status is not so defined, or whose total monthly emoluments are less than Taka 60 are under Section 3(2) of the Act, subject thereto as if they were of a rank inferior to that of a non-commissioned officer.

8. Temporary subjection to Military law no bar to departmental action.– The fact that civilians in Government service have become subject to the Army Act, under Section 2(1)(c) thereof does not preclude their being dealt with departmentally under their civil disciplinary regulations. But if they are dealt with under military law, the procedure must be in accordance with the Army Act and the Rules thereunder and they will be treated as officers, junior commissioned officers, non-commissioned officers, or as persons of a rank lower to that of non-commissioned officers, in accordance with their relative military status.

9. Relative status.– The status conferred under Section 3 of the Act is personal and does not give any powers of command. Thus, a civilian classified as junior commissioned officer is not the "superior officer" within the meaning of the Act of a Sepoy. Nor does relative status entitle a civilian to be called officers, Junior Commissioned officer, etc.

THE ARMY ACT
(Act No. XXXIX of 1952)

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[1]Act No. XXXIX OF 1952

An Act to consolidate and amend the law relating to the Bangladesh Army.

WHEREAS it is expedient to consolidate and amend the law relating to the Bangladesh Army;

It is hereby enacted as follows:-

CHAPTER I.- PRELIMINARY

1. Short title and commencement.—(1) This Act may be called the Army Act, 1952.

(2) It shall come into force on such date as the Government may, by Notification in the official Gazette, appoint in this behalf.

NOTE

The Act came into force on 1st April, 1955 (*see* Ministry of Defence Notification No. 149/55, dated 21st February, 1955).

2. Persons subject to the Act.– (1) The following persons shall be subject to this Act, namely:–

(a) officers, junior commissioned officers and warrant officers of the Bangladesh Army;

(b) persons enrolled under the Indian Army Act, 1911 (VIII of 1911), before the date notified in pursuance of sub-section (2) of section 1, and serving with the Bangladesh Army immediately before that date, and persons enrolled under this Act;

(bb) persons subject to the Navy *[substituted vide No. 2/111/65 for 2 (1) bb],* Ordinance 1961 (xxxv of 1961) or the Air Force Act, 1953 (VI of 1953), when seconded for service with the Bangladesh Army, to such extent and subject to such regulations as the Government may direct;

(c) persons not otherwise subject to this Act, Who, on active service, in camp, on the march, or at any frontier post

[1] For Statement of Objects and Reasons, See the Gazette of 1951, Part V, dated the 23rd November, 1951, page 71 and for Report of the Select Committee, see Gazette Extraordinary, 1952, pages 347 to 400.

specified by the Government by notification in this behalf, are employed by, or are in the service of or are followers of, or accompany any portion of the Bangladesh Army;

[Following new clause added vide No. 7/IV/67]

"(d) persons not otherwise subject to this Act who are accused of:-

(i) seducing or attempting to seduce any person subject to this Act from his duty or allegiance to Government, or

(ii) having committed in relation to any work of defence, arsenal, Naval, Military or Air Force establishment or station, ship or aircraft or otherwise in relation to the naval, military or air force affairs of Bangladesh, an offence under the Official Secrets Act, 1923".

(2) Every person subject to this Act under clause (a) or clause (b) of sub-section (1) shall remain so subject until duly retired, released, discharged, removed or dismissed from the service.

(3) Every person subject to this Act under clause (bb) of sub-section (1) shall remain so subject during the period of his secondment to the Bangladesh Army.

2A. Secondment to Navy or Air force.— The Government may by order in writing direct that any person referred to in clause (a), clause (b) or clause (c) of sub-section (1) of section 2 shall, under such conditions as may be laid down by regulations, be seconded for service with the Bangladesh Navy or the Bangladesh Air force.

NOTE

1. Sub-section (1) Clause (a), "Officer" includes also officers who, being citizens of Bangladesh, hold King's Commissioned in the (British) Land Forces and were previously subject to the (British) Army Act. They are now subject to this Act Section [see Section 8 (12)].

For definitions of "junior commissioned officers" and "warrant officers", *see* clauses (9) and (16) respectively of Section 8.

Clause (b) "Persons enrolled ",- See section 11 and 12.- All persons subject to this Act under section 2(1) (a) or (b) are so subject at all times and wherever serving.

Clause (c) "Persons not otherwise subject to this Act.- This includes all civilian officers and subordinates, such as members of the Posts and Telegraphs Department, connected with the troops in the manner specified in the clause. It also includes civilians in military employ who, though, not enrolled, serve with the troops and contractors, news correspondents etc. Ministry of Defence Notification No. 150/55, dated 21st February, 1955 which has been issued under section 3 of this Act and which sets out the classification of such civilians as officers, junior commissioned officers, warrant officers and non-commissioned officers will be found in Part IV of the Manual.

Frontier Posts.- For places declared to be frontier posts under section and section 2(I) (c) and 59(2) (c), see Ministry of Defence Notification No. 151/55, dated 21-2-55 in Part IV.

2. Sub-section (2) "duty retired, released" etc.- See Chapter III of the Act and Rules and for dismissal as a court martial sentence, [see Section 60 (d) and Rule 155] If a sentence of dismissal as a combined with a suspended sentence of transportation or imprisonment, the dismissal does not take effect until so ordered by competent authority (see Section 152).

3. Special provision as to rank in certain cases.— (1) The Government may, by notification, direct that any person or class of persons subject to this Act under clause (c) of sub-section (1) of Section 2 shall be so subject as officers, junior commissioned officers, warrant officers or non-commissioned officers, and may authorise any officer to give a like direction with respect to any such person or to cancel such direction.

(2) All persons subject to this Act other than officers, junior commissioned officers, warrant officers or non-commissioned officers shall, if they are not persons in respect of whom a notification or direction under sub-section (1) is in force, be deemed to be of a rank lower to that of non-commissioned officer.

NOTE

See Ministry of Defence Notification No 150/55 dated 21st February, 1955 in Part IV.

4. Commanding officer of certain persons subject to the Act.— Every person subject to the Act under clause (c) of sub-section (1) of Section 2 shall, for the purposes of this Act, be deemed to be under the command of the commanding officer of the corps, unit or detachment (if any), to which he is attached, and if he is not attached, then he shall be

under the command of any officer who ma for the time being be named as his commanding officer by the officer commanding the force with which such person may for the time being be serving, or if no such officer is named, under the command of the said officer commanding the force:

Provided that an officer commanding a force shall not place a person under the command of an officer or rank lower to that of such person, if there is present at the place where such person is any officer of a higher rank under whose command he can be placed.

5. **Powers to apply Act to certain forces under the Government.**— (1) The Government may, by notification, apply all or any provisions of the Act to any force raised and maintained in Bangladesh under the authority of the Government.

(2) On such notification being made an provisions of this Act so applied shall have effect in respect of persons belonging to any such force as they have effect in respect of persons subject to this Act holding in the Bangladesh Army the same rank as or equivalent to that which the aforesaid persons hold for the time being in the said force; and shall have effect in respect of persons who are employed by, or are in the service of, or are followers of, or accompany any portion of any such force as they have effect in respect of persons subject to this Act under clause (c) of sub-section (1) of Section 2.

(3) While any of the provisions of this Act apply to any such force; the Government may, by notification, direct by what authority any jurisdiction, powers or duties incident to the operation of these provisions shall be exercised or performed in respect of that force, and may suspend the operations of any other enactment for the time being applicable to that force.

6. [Omitted *vide* Ordinance No XVIII of 1978]

7. Power to declare persons to be on active service.— Notwithstanding anything contained in clause in clause (1) of Section 8, the Government may, by notification, direct that any person or class of persons subject to this Act shall, with reference to any area in which they may be serving or with reference to all or any of provisions of this Act or of any other law for the time being in force, be deemed to be on active service within the meaning of this Act.

NOTES

1. The section enables the Government, by notification, to direct that any person subject to the Act under Section 2(a) or (b) shall, with

reference to specified area, or with reference to all area, or with reference to all or any provisions of the Act, be deemed to be on "active service" within the meaning of Section 8 (1).

2. Civilians, who may be serving with units which are thus deemed to be on active service, shall then become subject to the Act under Section 2(1) (c) thereof.

8. Definitions.— In this Act, unless the context otherwise requires:-

(1) "active service", as applied to person subject to this Act, means the time during which such person is attached to, or forms part of a force which is engaged in operations against an enemy, or is engaged in military operations in, or, is on the line of march to a country or place wholly or partly occupied by an enemy, or is attached to or forms part of a force which is in military occupation of a foreign country;

(2) "civil offence" means an offence which, if committed in Bangladesh, would be triable by a criminal court;

(3) "Chief of Army Staff" means the Chief of Army Staff of the Bangladesh Army;

(4) "commanding officer" means:

(i) when used in any provision of this Act with reference to any separate portion of the Bangladesh Army, the officer whose duty it is under the regulations of the Bangladesh Army, or in the absence of such regulations by the custom of the service, to discharge with respect to that portion, the functions of the commanding officer; and

(II) when used in relation to a person subject to this Act, the officer for the time being in command of any separate portion of the Bangladesh Army or of any unit of a force [inserted *vide* Amendment No. 1/VI/65] to which such person belongs or is attached;

(5) "corps" means any separate body of the Bangladesh Army or of any unit of a force [Inserted vide amendment number for the purposes of all or any of the provisions of this Act;

(6) "court martial" means a court martial held under this Act;

(7) "criminal court" means a court of ordinary criminal justice in Bangladesh, or established elsewhere by the authority of the Government;

(8) "enemy" includes all armed mutineers, armed rebels, armed rioters, pirates and any person in arms against whom it is the duty of any person subject to this Act to act;

(9) “Junior commissioned officer” means a person commissioned, gazetted or in pay as a junior commissioned officer in the Bangladesh army;

(9a) “military custody” means the arrest or confinement of a person according to the usage of the service and includes naval or air force custody;

(9b) “military reward” includes any gratuity or annuity for long service or good conduct, any good service pay or pension, and any other military pecuniary award;

(10) “non-commissioned officer” means a person attested under this Act who holds a non-commissioned rank in the Bangladesh Army and includes an acting non-commissioned officer;

(11) “offence” means any act or omission punishable under this Act and includes a civil offence as hereinbefore defined;

(12) “officer” means a person commissioned gazetted or in pay as an officer of the Bangladesh Army and includes:-

(i) an officer who being a citizen of Bangladesh, holds a commission in Her Majesty's Land Forces, but does not include a junior commissioned officer, and

(ii) in relation to a person subject to this Act when serving under such conditions as may be prescribed, an officer of the Bangladesh Navy and an officer of the Bangladesh Air Force [added *vide* Amdt. No. 1/63].

(13) "prescribed" means prescribed by rules made under this Act;

(14) "service", when used in relation to an institution, necessaries, books, band, mess, money, goods or other property means an institution, necessaries, books, band, mess, money, goods or other property belonging to, or connected with, the Bangladesh Army or any unit or part thereof;

(15) "superior officer", when used in relation to a person subject to this Act, includes a junior commissioned officer, a warrant officer or a non-commissioned officer, and, as regards persons placed under his orders, an officer, warrant officer, petty or non-commissioned officer of the Bangladesh Navy or Air Force;

(16) "warrant officer" means a person appointed, gazetted or in pay as a warrant officer of the Bangladesh Army;

(17) all words and expressions used but not defined in this Act and defined in the Penal Code (Act XLV of 1860) shall be deemed to have the meanings assigned to them in that Code.

8A. Commission and Junior Commission.— The President may grant to such person as he thinks fit a Commission as an officer or Junior Commission as a Junior Commissioned officer.

NOTE

1. Clause (1). The definition covers the period when a person is on the *line of march* to a country or place wholly or partly occupied by an enemy. The troops may thus be on active service even before embarkation for the seat of war of the circumstances are such that they can reasonably be held to form part of a force such as is specified in the clause.

A person is "on the line of march" from the moment he parades for the original march until he reaches his destination.

2. Clause (4). For an explanation of the term "Commanding Officer" for the purpose of awarding minor punishments, see Rule 17(1); and for the purpose of holding a summary court martial, see Notes to Section 88.

3. Clause (5). "Prescribed", see Rule 159.

4. Clause (9). Although a person gazetted or in pay as a “junior commissioned officer” becomes a junior commissioned officer for purposes of the Act yet it is essential that he must ultimately be granted a commission to confer upon him the status of a junior commissioned officer.

5. Clause (10). "Attested", see Sections 14 and 15. Only "attested" person can become a non-commissioned officer.

6. Clause (12). Although a person gazetted or in pay as an “officer” becomes an officer of Bangladesh Army yet he must ultimately be granted a commission as the status of being an officer depends upon the grant of a commission.

7. Clause (12). "Prescribed", see Rule 182.

CHAPTER II.- APPOINTMENT ENROLMENT AND ATTESTATION

9. Appointment to warrant rank.— The president may appoint any person as a warrant officer.

9A. Administration of oath to warrant officer.— (1) An oath or affirmation in the prescribed form shall be administered to every warrant officer by his commanding officer or by any other officer authorised in this behalf by such commanding officer.

(2) The form of oath or affirmation prescribed under this section shall contain a promise that the warrant officer will be faithful to Bangladesh and its Constitution and bear true allegiance to the President of Bangladesh and that he will faithfully serve in the Bangladesh Army and that he will go wherever he is ordered, by land, sea or air and that he will obey all commands of any officer set over him even to the peril of his life. (Added *vide* Amendment No. 6/62]. For Prescribed from of oath and affirmation see Army Regulation Rule 7.A (*vide* Amendment No. 5/62).

NOTE

Commissions as officers or junior commissioned officers are granted by the President under Article 62(1)(b) of the Constitution.

10. Ineligibility of aliens for service.— No person who is not a citizen of Bangladesh shall, except with the consent of the Government signified in writing, be granted a commission or warrant or be enrolled in the Bangladesh Army.

11. Procedure before enrolling officer.— Upon the appearance before the prescribed enrolling officer of any person desirous of being enrolling, the enrolling officer shall read and explain to him, or cause to be read and explained to him in his presence, the conditions of the service for which he is enrolled and shall put to him the question set forth in the prescribed form of enrolment and shall, after having cautioned him that if he makes a false answer to any such question he will be liable to punishment under this Act, record or cause to be recorded his answer to each such question.

NOTES

1. "prescribed enrolling officer". See Rule 7.

2. 'prescribed form of enrolment". See Appendix 1 to the Rules.

3. The conditions of service are set out in the questions contained in the prescribed form of enrolment, which are put to the person enrolled, and his acceptance of those conditions is duly recorded.

12. **Enrolment.**— If, after complying with the provisions of Section 11, the enrolling officer is satisfied that the person desirous of being enrolled understands the questions put to him and consents to the conditions of service, and of the enrolling officer perceives no impediment, he shall sign and also cause such person to sign the enrolment paper and the person shall thereupon be deemed to be enrolled.

13. Presumption of validity of enrolment in certain cases.— Every person who has for the space of three months been in receipt of military pay as a person enrolled under this Act and been borne on the rolls of any corps or unit of the Bangladesh Army shall be deemed to have been duty enrolled and shall not be entitled to claim his discharge on the ground of any irregularity or illegality in his enrolment or on any other ground whatsoever, and if any person, in receipt of such pay and borne on the rolls as aforesaid, claims his discharge before the expiry of three months from his enrolment, no such irregularity or irregularity or other ground shall, until he is discharged in pursuance of his claim, affect his position as a person enrolled under this Act or invalidate any proceedings, act or thing taken or done prior to his discharge.

NOTE

"Or on any other ground whatsoever"- Thus a person who did not appear before an enrolling officer as required by Section 11, will not be able to claim his discharge on the ground that no enrolment form in respect of him was ever prepared. If he has for the space of three months drawn military pay as a person enrolled under the Act and been borne on the rolls of any crops or unit he can be held to serve for the full period for which persons of the class in which he is serving are enrolled and will remain subject to the Act until his services are formally terminated in accordance with the Act and the Rules.

14. Persons to be attested.—The following persons shall be attested, namely:-

(a) all persons enrolled as combatants;

(b) all persons selected to hold a non-commissioned or acting non-commissioned rank;

(c) all other enrolled persons prescribed by the Government.

NOTES

1. Attestation involves o further liabilities beyond those assumed on enrolment but confers upon the attested persons certain privileges. It is

reserved for combatants and such higher classes of non-combatants as the Government considers deserving of being treated in a similar manner to combatants. The discharge of an attested person, on certain ground can only be authorised by certain higher authorities, while that of an enrolled person who has not been attested can be authorised by his commanding officer. See items III(v) and IV of the Table in Rule 12.

2. Only attested persons are eligible for non-commissioned rank [See Section 8(10) and Note].

15. Mode of attestation.— (1) When a person who is to be attested is reported fit for duty, or has completed the prescribed period of probation, an oath or affirmation shall be administered to him in the prescribed form by his commanding officer, in front of his corps or unit, or such portion thereof as may be present, or by any other prescribed person.

(2) The form of oath or affirmation prescribed under this section shall contain a promise that the person to be attested will be faithful to Bangladesh and its constitution and bear true allegiance to the President of Bangladesh [Substituted *vide* Ordinance XVII of 1978] and that he will serve in the Bangladesh Army and will go wherever he is ordered by land, air or sea, and that he will obey all commands of any officer set over him, even to the peril of his life.

(3) The fact that an enrolled person has taken the oath or affirmation directed by this section shall be entered on his enrolment paper, and authenticated by the signature of officer administering the oath or affirmation.

15A. [Omitted *vide* Amendment number XVIII of 1978].

NOTE

The proper authority to attest a person subject to this Act is generally his immediate commanding officer who should do so in the ceremonial manner here indicated. For list of other "attesting officers", see Rule 8(2).

The oath or affirmation to be administered on attestation is set out in Rule 8(1), the notes to which contain its translation into Bengali language.

CHAPTER III.- TERMINATION OF SERVICE

16. Dismissal or removal by Government.– The Government may dismiss or remove from the service any person subject to this Act.

NOTES

1. The dismissal of an officer must be approved by the President before the issue of orders- see item "11 Schedule V to Rule of (i)(f)" [Substituted *vide* Amendment number 4/1/65] of the Rules of Business:

2. See Notes to Section 17, which apply mutatis mutandis to this section.

17. Dismissal or removal by Chief of Army Staff or other authorised officer.– (1) The Chief of Army Staff may dismiss or remove from the service any junior commissioned officer, or warrant officer, or any person enrolled under this Act.

(2) An officer having power to convene a "district court martial or an officer not below the rank of lieutenant colonel" [substituted *vide* Amendment No. XL of 1965] empowered by the Chief of Army Staff in this behalf may dismiss or remove from the service any person enrolled under this Act who may be serving under his command.

NOTES

1. For the date on which an order of dismissal or removal under this or the preceding section takes effect, see Rule 11 and for the date on which a sentence of dismissal awarded by a court martial takes effect, see Rule 155.

2. As to furnishing a person who is dismissed or removed with a certificate of termination of service, see Section 19 and Rule 10.

3. All persons sentenced to transportation (except persons sentenced by court martial whose sentences are suspended) and such persons sentenced to imprisonment as is not desired to retain in the service will, if not dismissed by sentence of a court martial, be dismissed under this or the preceding section commanding officers will use their discretion in applying for the dismissal should not be applied for, or at any rate should not be put into effect, until the convict or prisoner sentenced by a court martial has been committed to a civil prison, see Rule 155. In the case of a sentence passed by a civil court the application should, if desired, be made as soon as possible after such sentence has become absolute either by an appeal not being preferred within the period allowed by law or by the appeal

being dismissed. The period within which an appeal against a sentence of transportation, or imprisonment must be preferred is sixty days from the of sentence if the appeal is to a High Court thirty days if it is to any other (Limitation Act, 1908. First Schedule, Nos. 154 and 155). In special cases, a prisoner whom it is not desired to retain in the service may be removed instead of being dismissed.

4. [Substituted the Note 4 *vide* Amendment No. 3/111/615] "Dismissal or removal involves the forfeiture of claim to any pension or gratuity which may have been earned. Ex-gratia award of pension/gratuity may be considered on merits. Retirement, release or discharge does not involve such forfeiture. See pension rules/regulations."

5. Deleted Note 5 [Vide Amendment No. 4/V1/65].

18. Retirement, release or discharge.— The prescribed authority may, in conformity with such rules as may be prescribed in this behalf, retire, release or discharge from the service any person subject to this Act.

NOTES

1. For the authorities competent to authorise retirement, release or discharge, see Rule 12. The release or discharge of a person who is under the conditions of his service entitled to be released or discharged must be authorised and completed with all convenient speed (Rule 9) and by the proper authority (Rule 12). Until it has been so completed the person remains subject to military law. Any unnecessary delay in completing his discharge would give him good ground for complaint.

2. Applications for release or discharge will be made on BAFY- 1948 A.

3. As to furnishing a person, who is retired, released or discharged, with a certificate of termination of service, see Section 19 and Rule 10.

4. For the date on which retirement, release or discharge takes effect, see Rule 11 and Notes thereto.

19. **Certificate on termination of service.**— Every junior commissioned officer, warrant officer, or person enrolled under this Act, who is dismissed, removed, retired, released or discharged from the service shall be furnished by his commanding officer with a certificate in the Bengali language or such other language as he understands, setting forth:-

(a) the authority who terminates his service;

(b) the cause for such termination;

(c) the full period of his service in the Bangladesh Army.

NOTE

As to method of furnishing certificate of termination of service, see Rule 10.

20. Discharge or dismissal when out of Bangladesh.— (1) Any person subject to this Act, who is entitled under the conditions of his service to be discharged, or whose discharge is ordered by competent authority, and who, when he is so entitled or ordered to be discharged, is serving out of Bangladesh, and requests to be sent to Bangladesh, shall, before being discharged, be sent to Bangladesh with all convenient speed.

(2) Any person subject to this Act who is dismissed from the service and who, when he is so dismissed is serving out of Bangladesh, shall be sent to Bangladesh with all convenient speed.

(3) When any such person as is mentioned in sub-section (2) is sentenced to dismissal combined with any other punishment, such other punishment, or in the case of a sentence of transportation or imprisonment, a portion of such sentence, may be inflicted before he is sent to Bangladesh.

Explanation.—For the purposes of this section, the word "discharge`` shall include retirement or release, and the word "dismissal`` shall include removal.

NOTE

Sub-section (3) is permissive and must be with Sections 136, 137 and 139, which pro*vide* for the infliction of sentences of transportation and imprisonment passed by courts martial. The result is that unless the sentence is one of imprisonment which can be undergone in military custody under Section 136 or in regard to which the order for its infliction or partial infliction in local civil custody has been made under Section 137, a prisoner cannot legally be kept abroad to undergo his imprisonment, but must be sent to a civil prison in Bangladesh where it can be executed in accordance with this Act. Persons sentenced to transportation must be sent to such a prison but, until so sent, may be dealt with as if sentenced to rigorous imprisonment, see Section 139.

On active service special arrangements for a military prison in the field are, where necessary, made under the second proviso to section 136. Persons sentenced to dismissal and imprisonment can legally be retained in such a prison to undergo the whole or any part of their term of imprisonment before being sent to Bangladesh to under sub-section (3) of this Section, persons. Persons sentenced to transportation may be kept temporarily in such a military prison until transported, See section 139.

CHAPTER IV.— SUMMARY REDUCTION AND PUNISHMENT OTHERWISE THAN BY SENTENCE OF COURT-MARTIAL

21. Reduction of warrant officers and non-commissioned officers.— (1) The Chief of Army staff may reduce to a lower grade or class any warrant officer.

(2) The Chief of Army Staff or an officer having power to convene a district court martial or an officer not below the rank of lieutenant colonel empowered by the Chief of Army Staff in this behalf [substituted for Section 21 (2) *vide* amendment No. 5/VI/ 65] may reduce to a lower grade or rank or to the ranks any non-commissioned officer who may be serving under his command.

NOTES

1. *Sub-section (1).* A warrant officer cannot be reduced to non-commissioned rank or to the ranks, but only from a higher to a lower grade or class.

2. [Deleted Note 2 to Army Act Section 21. *vide* Amendment No. 6/VI/65]

3. *Sub-section (2).* A non-commissioned officer may be reduced to a lower grade or rank or even to the ranks by competent authority.

4. A warrant officer or non-commissioned officer, who is accused of an act or omission which constitutes an offence under the Act, cannot be reduced under this section, but should be put on trial before a court martial or dealt with summarily.

5. Whenever it is intended to take action under this section, no formal charge sheet is required to be prepared against the accused nor are witnesses required to be examined. It is an administrative action, see Army Regulations (Instruction) 94 [Amended *vide* No 6/VI/65]. But when an offender has committed an act or omission which amounts to an “offence” under the Act he should not be reduced to lower grade or ranks under this section but should, invariably, be dealt with under Section 23 (summary disposal) or by court martial according to the nature of the offence and the circumstances of the case.

22. Reversion of an acting non-commissioned officer.— The commanding officer of an acting non-commissioned officer may order him to revert to his permanent grade as a non-commissioned officer or, if he has no permanent grade above the ranks, to the ranks.

NOTE

Lance and acting rank is a matter to be dealt with by a commanding officer, and not being a rank is not cognisable in the sentence of a court martial. But an acting non-commissioned officer (e.g., a lance corporal whether paid or unpaid), being a non-commissioned officer [Section 8 (10)] loss his acting or lance rank under Section 62 (5) upon being sentenced to any of the punishments therein specified.

When an acting non-commissioned officer has been punished by court martial for an offence and such appointment does not involve reduction or reversion, his commanding officer can revert him to his permanent grade, not as a further punishment, but because the proceedings show him to be unfit to hold such appointment. See "Army Regulation (Rule) 155" (*vide* Amendment No. 1/62) which defines ranks.

23. **Minor punishments.—** (1) The Government may, on the recommendation of the Chief of Army Staff prescribe the minor punishments to which persons subject to this Act shall be liable without the intervention of court martial, and the officers, junior commissioned officers or non-commissioned officers by whom, [substituted for "officers by whom`` *vide* Ordinance XVIII, 1978] and the extent to which, such minor punishments may be awarded.

(2) Detention, or rigorous imprisonment in military custody, and, in the case of persons subject to this Act on active service, any prescribed field punishment may be specified as minor punishments:

Provided that–

(a) the term of such detention, rigorous imprisonment or field punishment shall not exceed twenty-eight days; and

(b) such detention, rigorous imprisonment of field punishment shall not be awarded to any person who is of or above the rank of non-commissioned officer, or who, when he committed the offence in respect of which it is awarded, was of or above such rank.

NOTES

1. The minor punishments which have been prescribed under the Section are set out in the Table appended to Rule 17.

2. For the duties of a commanding officer as to investigation of charge for an offence and disposal of the charge, see Rule 13 and Notes.

Every charge must be heard in the presence of the accused except a charge against an officer, as to which see Rule 15 (1) and Note. Witnesses are not sworn or affirmed, but the accused must have full liberty to cross-examine, to call witnesses and to make any statement.

A commanding officer may dismiss the charge, and he should do so if, in his opinion, the e*vide*nce does not show that some offence under this Act has been committed, or if, in his discretion, he thinks that the charge ought not to be proceeded with, see Rule 13 (2).

2A. An officer cannot deal summarily with any case in which he is the sole witness against the accused. Awards made in such circumstances are not illegal.

When an officer is the sole witness against an accused, if the accused cannot be tried summarily under Army Act Rule 17 by any other officer in the unit, application for trial by court martial should be made [Added *vide* Amendment No. 5/1/65].

3. Where a man has been convicted or acquitted of an offence by a court martial or a criminal court or summarily punished or where the charge against him is dismissed, he is not liable to be summarily punished or tried by court martial for the same offence, or for an offence which is substantially the same. If, for example, he has been convicted or acquitted of, or summarily punished for, absence without leave, and the absence amounted to desertion he cannot be afterwards tried for desertion.

Nor can a person convicted by court martial of an offence be afterwards sentenced by an officer exercising authority under this section to stoppages for damage caused by that offence.

A person is also not liable to be tried for an offence which has been pardoned or condoned by competent military authority, or which was committed more than three years before the date of his trial, unless the offence was desertion or fraudulent enrolment or one of the offences specified in Section 31. See Section 90 and 91 and Rule 43 and Notes.

4. As to deductions from pay and allowances entailed by an award of transportation, imprisonment, detention or field punishment or for absence without leave, see section 65 (2) (a).

5. [For para 1 substituted the following: [*vide* Amendment No. 4/11/67] “Once an award has been made it cannot be altered by commanding officer”.

Awards which are illegal or excessive can be reviewed by superior authority, see Rule 18.

CHAPTER V.—OFFENCES

24. offences in relation to enemy and punishable with death.— Any person subject to this Act who commits any of the following offences, that is to say,—

(a) shamefully abandons or delivers up any garrison, airfield, place, post or guard committed to his charge or which it is his duty to defend, or uses any means to compel or induce any commanding officer or other person to do any of the said act; or

(b) in the presence of any enemy, shamefully casts away his arms, ammunition, tools or equipment, or misbehaves in such manner as to show cowardice, or

(c) intentionally uses words or any other means to compel or induce any person subject to this Act, or to the Air Force Act 1953, the to Navy ordinance 1961 to abstain from acting against the enemy or to discourage such person from acting the enemy; or

(d) directly or indirectly, treacherously holds correspondence with, or communicates intelligence to, the enemy or who coming to the knowledge of such correspondence or communication treacherously omits to discover it to his commanding or other superior officer; or

(e) directly or indirectly assists or relieves the enemy with arms, ammunition, equipment, supplies or money, or knowingly harbours or protects an enemy not being a prisoner; or

(f) treacherously or through cowardice sends a flag of truce to the enemy; or

(g) in time of war, or during any operation, intentionally occasions a false alarm in action, camp, garrison or quarters, or spreads reports calculated to create alarm or despondency; or

(h) in time of action, leaves his commanding officer, or quits his post, guard, picquet, patrol or party without being regularly relieved or without leave; or

(i) having been made a prisoner of war, voluntarily serves with or aids the enemy; or

(j) knowingly does when on active service any act calculated to imperil the success of the Bangladesh forces or any forces co-operating therewith or of any part of such forces, shall, on conviction by court martial, be punished with death or with such less punishment as is in this Act mentioned.

NOTES

1. Offences under this section should not be tried by summary court martial without reference to superior authority (*See* proviso to section 99). The maximum punishment for offences under this section being death, a plea of guilty cannot be accepted [*See* Rule 42 (4)].

2. Clause (a) (i).— S*hamefully abandons,* etc.—This offence can only be committed by the person in charge of garrison, fortress etc., and not by the sub-ordinate under his command. The surrender of a place by an officer in charge of its defence can only be justified orders of the utmost necessity, such as want of provisions or water, the absence of hope of relief and the certainty or extreme probability that no further efforts could prevent the place with its garrison, their arms and magazines, falling into the hands of the enemy.

Clause (ii). It must be proved that the accused had no necessity to surrender of abandon the post before a conviction can be obtained. Particulars of a charge under this clause must detail some circumstances which make the abandonment in a military sense *shameful, i.e.,* a positive and disgraceful dereliction of duty and not merely negligence or misapprehension or error of judgement.

Clause (iii). The word "post" includes any point or position (whether fortified or not) which a detachment may be ordered to hold; it has not the same meaning as in clause (h) of this section or clause (a) of Section 28, where it has reference to the position of an individual.

3. Clause (b).— *Enemy, See section* 8(8). *In the presence of the enemy.*—The presence of the enemy must be near at hand and a soldier not in the forward area could not be convicted of an offence if, for example, he cast away his arms during an air raid.

Shamefully casts away.—The particulars of the charge must show the circumstances which make the act in a military sense shameful (*See* also second para of note 2 above).

Misbehaves etc.—This means that the accused, from an un-soldier like regard for his personal safety, in the presence of the enemy, failed in respect of some distinct and feasible duty imposed upon him by a specified order or regulation, or by a well understood custom of the service, or by the requirements of the case, as applicable to the position in which he was placed at the time. Misbehaviour not evidencing cowardice cannot be charged under this clause.

4. Clause (c).—*Intentionally.*—The court may infer intention from the circumstances proved in evidence. A court may presume the existence of any fact which it thinks likely to have happened, regard being had to the common course of events and human conduct (Section 114 Evidence Act, 1872).

5. Clause (d).— *Treacherously.*— Implies an intention to assist the enemy, which is an essential ingredient of the offence of treachery and must be averred in a charge under this clause and proved before a conviction can be sub-stained. If there is no treachery charge should be laid under section 25 (d).

Directly or indirectly communicates intelligence to.— This clause includes the case of intelligence reaching the enemy through republication (*e.g.*, by newspapers or relatives) of letters, sketches, photographs, etc.

Or who coming to the knowledge of such correspondence, etc.—A person who comes to know of such correspondence etc., will have performed his duty under this clause if he gives information without delay to his commanding or other superior officer. Such information would naturally be given to the immediate superior of the person who would in his turn be bound to transmit it to higher authority.

6. Clause (e).— *Supplies.*—The would include taking any steps to restore a supply of water cut off by the Bangladesh Forces.

Knowingly.—Evidence should, if possible, be given to show that the person harboured or protected to be an enemy; but if the fact of harbouring or protecting is proved the court may infer knowledge from the circumstances.

7. Clause (f).—*Treacherously.*—*See* Note 5 against clause (d) above.

The particulars of the charge under this clause must show the circumstances which indicate treachery or cowardice. If there is no treachery or cowardice, the charge should be laid under Section 25 (d).

8. Clause (g).—*Spreads reports*.—The particulars of charge must detail the reports alleged to have been spread, and should indicate how they were calculated to create alarm or despondency. It is not necessary to aver or prove that the reports were false, indeed the truth may increase the offence, nor is it necessary to show that any effect was actually produced by reports spread. It would, however, seldom be expedient to try a person under this clause for reports which could not be show to have had some effect. The offence may be committed either with reference to the troops with which the offender is serving, or with reference to the inhabitants of the country.

9. Clause (h).—P*ost*.—When used with respect to an individual, as in this clause, means the position or place in which may be the duty of a person to be, especially when under arms. In determining what, in any particular case, is a post, the court will use their military knowledge, (See Section 113). The place in which the person was posted is material and should be stated.

10. Clause (i).—*Voluntarily*.— As used in this clause means merely that the accused was willing to do the act charged; it is not necessary to show that he volunteered to do it, or even that he wished to do it. In the absence of any evidence that compulsion was applied, the court may find that the accused acted voluntarily; but if from the whole of the evidence given the court think that the accused`s will may have been overborne by fear they should acquit him. The test is whether the particular accused was in fact so frightened as to have lost control of his will, not whether the methods used by his captors were such as would cause a reasonably brave man to lose control.

11. Clause (j).—K*nowingly*.—The act or acts done must be shown to have been deliberately done by the accused with the intention of imperilling the success of the Bangladesh Army, Naval or Air Forces. Such intention may be proved in evidence or may be inferred from the circumstances.

Active Service.—See Section 8 (1).

25. Offences in relation to the enemy and not punishable with death.— Any person subject to this Act who, on active service,—

(a) without orders from his superior officer leaves, the ranks in order to secure prisoners, animals or materials or on pretence of taking wounded men to the rear; or

(b) without orders from his superior officer, wilfully destroys or damages any property; or

(c) is taken prisoner for want of due precaution or through disobedience of orders or wilful neglect of duty, or having been taken prisoner, fails to rejoin his service when able to do so; or

(d) without due authority, either holds correspondence with, or communicates intelligence, or sends a flag of truce, to the enemy; or

(e) by word of mouth, or in writing, or by signals, or otherwise spreads reports calculated to create alarm or despondency; or

(f) in action, or previously to going into action, uses words calculated to create alarm or despondency;

shall, on conviction by court-martial, be punished with rigorous imprisonment for a term which may extend to fourteen years, or with such less punishment as is in this Act mentioned.

NOTES

1. Clause (a).—*On pretence of taking wounded men to the rear*. In practice it will be found that the offences which might be so charged may be more practicably charged as desertion with intent to avoid serving in the forward area (*See* Section 36 and Note). When *prima facie* evidence negativing orders is given, a court may convict in the absence of an explanation from the accused.

2. Clause (b).—*Without orders*.— If there is any doubt as to orders, alternative charge under Section 45 (b) if the property is Government or service property or for mischief under Section 59, if it is not such property, should be preferred [See also last sentence of Note against Clause (a) above].

3. Clause (b).—*Communicates intelligence to*.—A person must be taken to intend the natural consequences of his acts and the clause is wide enough to cover the case of intelligence reaching the enemy through the capture or republication (*e.g.,* by relatives or newspapers) of letters, sketches, photographs etc. Everyone connected with the forces should recognise the grave danger of assisting the enemy by gossip, whether verbal or written as to plans, prospects, operations, numbers, etc. It must, however, be proved that the intelligence did in fact reach the enemy.

As to "injurious disclosures`` generally, s*ee* Section 29 (c).

As to "treacherous communication``, s*ee* Section 24 (d) and Note.

4. Clause (e).—*Spread reports*.—See Note 8 under Section (g).

5. Clause (f).—*Calculated to create alarm or despondency*.— The particulars of the charge must detail the reports alleged to have been spread and should indicate how they were calculated to create unnecessary alarm or despondency. It is not necessary to aver or prove that the reports were false; indeed the truth may increase the offence; nor is it necessary to show that any effect was actually produced by reports or words.

26. Disclosure of parole or watchword.— Any person subject to this Act who—

(a) treacherously makes known the parole, watchword or countersign to any person not entitled to receive it; or

(b) treacherously gives a parole, watchword or countersign different from what he received,

shall, on conviction by court-martial,

if he commits the offence on active service, be punished with death, or with such less punishment as is in this Act mentioned; and

if he commits such offence not on active service, be punished with rigorous imprisonment for a term which may extend to five years, or with such less punishment as is in Act mentioned.

NOTES

1. The punishment for the offences under the section varies very widely according to whether the offences are committed on active service or not and where an accused is charged with committing any of them on active service, those words must be inserted in the charge.

2. *Active Service*.—See Section 8 (1).

3. Clause (a) and (b).—Although treachery must be alleged in a charge under either of these clauses, the particulars of the charge need not detail the circumstances of the treachery. Upon proof that the accused made known the watchword to a person not entitled to receive it,

or gave a watchword different from that which he received, the court will, in the absence of any explanation from the accused, be at liberty to infer the treachery. The particulars of the charge under clause (a) must aver that the person was not entitled to receive it.

Watchword will include any authorised password not being parole or countersign which might, for example, be adopted for a particular emergency.

27. Offences against property or persons of inhabitant of country where serving.— Any person subject to this Act who, on active service, commits any offence against the property or person of any inhabitant of or resident in, the country in which he is serving, shall, on conviction by court martial, be punished with rigorous imprisonment for a term which may extend to fourteen years, or with such less punishment as is in this Act mentioned.

NOTE

The section is only applicable when the offence is committed on active service. The charge must set out the specific acts of violence or the specific offence alleged to have been committed. Similar offences, when not committed on active service should be charged under Section 59, if a court martial has jurisdiction under this section, or dealt with by civil power (See Section 94 and 95).

28. Offences relating to sentries.— Any person subject to this Act who commits any of the following offences, that is to say,—

(a) being a sentry, sleeps or is intoxicated on his post or quits it without leave; or

(b) being a sentry, or on guard, plunders, or wilfully destroys, or injures, any property placed under his charge or under charge of his guard; or

(c) strikes, or forces or attempts to force any sentry or safeguard; or

(d) without orders from his superior officer, leaves his guard, picquet, patrol or post; shall, on conviction by court martial,

if he commits such offence on active service, be punished with rigorous imprisonment which may extend to fourteen years or with such less punishment as is in this Act mentioned; and

if he commits such offence not on active service, be punished with rigorous imprisonment for a term which may extend to five years or with such less punishment as is in this Act mentioned.

NOTES

1. Clause (a).—A sentry's "post" means the spot where he is left to the observance of his duties by the officer or non-commissioned officer posting him, or any limits especially pointed out as his beat. The fact that a sentry was not regularly posted is immaterial if he is charged with an offence committed while on his post. When, however, he leaves his post and commits an offence, it is always necessary to prove that he had been regularly posted. In determining what, in any particular case, is a post, the court will use their military knowledge.

"Quits".—A sentry found asleep even a short distance from his post should be charged with quitting his post, he cannot properly be charged with being asleep on his post.

2. [Deleted vide Amdt. No. 7/11/65]

3. Clause (c).—Safeguard.—A safeguard is a party of soldiers detached for the protection of some person or persons, place or property. A single sentry posted from such party is still part of the safeguard, and it is as criminal to force him as to force the whole party.

A person posted solely to control traffic is not a safeguard for the purposes of this clause.

A policeman on gate duty is not a sentry.

An accused charged under this clause with striking a sentry cannot be found guilty of using criminal force under Section 111(7) as the clause does not create any offence of using criminal force and does not prescribe any punishment for the use of criminal force.

4. Clause (d).—*Post.*–*See* Note 1 above.

5. *Active Service.*–See Section 8(1).

29. House breaking, false alarms, unauthorised disclosures, punishable more severely on active service than at other times.— Any person subject to this Act who—

(a) breaks into any house or other place in search of plunder; or

(b) by any means whatever intentionally occasions a false alarm; or

(c) without due authority, either verbally or in writing or by signals or otherwise discloses the number or position of any of the Bangladesh forces, or any part thereof, or any preparation for, or orders relating to operations or movement of such forces;

shall, on conviction by court-martial,

if he commits the offence on active service, be punished with rigorous imprisonment for a term which may extend to fourteen years, or with such less punishment as is in this Act mentioned, or

if commits the offence not on active service, be punished with rigorous imprisonment for a term which may extend to five years or with such less punishment as is in this Act mentioned.

NOTES

1. Clause (a).—In search of plunder.–In view of the special military significance of the term "plunder", the offence can be committed only on active service.

2. Clause (b).—By any means whatever.–The particulars of charge must set out exactly the means by which false alarm was occasioned.

If intention is not established, the court can convict under Section 30 (a).

3. Clause (c).—See also official Secrets Act, 1923 (XIX of 1923) in Part III of this Manual. Other offences of more serious nature dealt with in Sections 24 (d) and 25 (d), to which reference should be made.

30. Other service offences.— Any person subject to this Act who–

(a) by any means whatever, negligently occasions a false alarm; or

(b) makes known the parole, watchword, or countersign to any person not entitled to receive it, or, without good and sufficient cause, gives a watchword, parole or countersign different from what he received; or

(c) irregularly detains or appropriates to his own unit or detachment any provisions or supplies proceeding to the forces, contrary to orders issued in that respect;

shall, on conviction by court martial, be punished with rigorous imprisonment for a term which may extend to three years or with such less punishment as is in this Act mentioned.

NOTES

1. Clause (a).-*By any means whatever.*–The particulars of charge must set out exactly the means by which false alarm was occasioned.

2. Clause (b) of Section 26 (a).—The particulars of the charge must aver that the person was not entitled to receive the parole, watchword, etc.

3. Clause (c).—The particulars of the charge must show how the act charged was irregular and contrary to orders.

31. Mutiny and insubordination.— Any person subject to this Act who commits any of the following offences, that is to say,–

(a) begins, incites, causes, or conspires with any other person to cause, or joins in, any mutiny in the military, naval or air forces of Bangladesh or any forces co-operating therewith; or

(b) being present at any such mutiny, does not use his utmost endeavours to suppress the same; or

(c) knowing or having reason to believe in the existence of any such mutiny or any intention to commit such mutiny, or of any such conspiracy, does not without reasonable delay give information thereof to his commanding or other superior officer; or

(d) attempts to seduce any person in the military, naval or air forces of Bangladesh from his duty or his allegiance to the Government of Bangladesh;

shall, on conviction by court martial be punished with death or with such less punishment as is in this Act mentioned.

NOTES

1. Offences under this section should not be tried by summary court martial without reference to superior authority (See proviso to Section 99).

The maximum punishment for offences under this section being death, a plea of guilty cannot be accepted.

The limitation of time for the commencement of trial (three years) does not apply to offences under this section (See Section 91).

2. Clauses (a) to (c).—The term "*mutiny*" implies collective insubordination, or a combination of two or more persons to resist, or to induce other to resist, military authority. A person cannot be charged generally with mutiny or an act of mutiny, but only with some or more of the offences specified in these clauses. In framing a charge the specific act or acts which are alleged to have constituted the offence should be clearly stated.

3. Clause (b).—*Being present.*—A man present on parade or present accidentally or induced by false pretences to attend a meeting where a mutiny is being contrived may still be guilty of offence under this clause, although he took no active part in the proceedings.

"Does not use his utmost endeavours".— It does not necessarily mean the utmost of which a man is capable, but such endeavours as a man may reasonable and fairly be expected to make.

4. Clauses (b) and (c).—"S*uch mutiny"* i.e., a mutiny in the Military, Naval or Air Forces of Bangladesh or any forces co-operating with any of the Bangladesh forces.

5. Clause (c).— The person who comes to know of an existing or intended mutiny will have performed his duty under this clause if he gives information without delay to his commanding officer or any other superior officer. Such information would naturally be given to the immediate superior of the person who would, in his turn, be bound to communicate it to higher authority.

6. Clause (d).— Sedition is define in Section 124A of the Penal Code.

32. Offences in relation to superior officer.—(1) Any person subject to this Act who uses or attempts to use criminal force to, or commits an assault on, his superior officer being in the execution of his office, knowing or having reason to believe him to be such, shall, on conviction by court martial, be punished with rigorous imprisonment for a term which may extend to fourteen years, or with such less punishment as is in this Act mentioned.

(2) Any person subject to this Act who commits any of the following offences, that is to say,—

(a) uses or attempts to use criminal force to, or commits an assault on, his superior officer, knowing or having reason to believe him to be such; or

(b) is grossly insubordinate or insolent to his superior officer, knowing or having reason to believe him to be such; or

(c) impedes a provost marshal or any person lawfully acting on his behalf, or any member of the service police, or when called upon, refuses to assist a provost-marshal or any person lawfully acting on his behalf or any member of the service police in the execution of his duty,

Shall, on conviction by court-martial,

if he commits such offence on active service, be punished with rigorous imprisonment for a term which may extend to fourteen years, or with such less punishment as is in this Act mentioned ; and

if he commits such offence not on active service, be punished with rigorous imprisonment for a term which may extend to five years, or with such less punishment as is in this Act mentioned.

Explanation.—For the purposes of sub-section (2), "provost marshal" shall be deemed to include a provost marshal or any of his assistant appointed under the Indian Air Force Act, 1932 (XIV of 1932)" or the Air Force Act, 1953 [*Added vide amendment. No. 7/11/65*], or the Navy Ordinance 1961 [*Substituted vide amendment No. 7/1/67*] and "Service police" shall be deemed to include members of the Air Force or the Naval Police, being persons subject to the aforesaid Acts.

NOTES

1. Section 32, sub-section (1).—(a). "Criminal force" assault, see definitions in Penal Code. The difference between the offences mentioned in this clause will be clear from the following examples:

(i) A throws a stone at B. If the stone hits B, A has used criminal force; if it misses him, A has attempted to use criminal force.

(ii) A, during an alteration with B, picks up a stone in a threatening manner. If A intends, or knows it to be likely that this will cause B to believe that A is about to throw the stone at him, A commits an assault on B.

(b) *Superior officer.*—See Section 8 (15). A superior officer in plain clothes may be the subject of an offence under this sub-section and it will depend on all the circumstances judged from a military stand point whether a court martial should, or should not, hold that the offender knew or had reason to believe him to be his superior officer when he committed the offence.

(c) *Execution of his office.*— The court will use their military knowledge in deciding whether the superior officer was, or was not in the execution of his office.

If an accused is charged under this sub-section, but there is no evidence to show that the superior officer was in the execution of his office, he may be convicted under clause (a) of sub-section (2).

2. Sub-section (2) (i) Clause (a).—See Notes (a) and (b) above.

(ii) Clause (b).—Superior officer.—See Note 1 (b) above.

The particulars of a charge under this section of using insubordinate or insolent language must state the expressions or their substance and the name and the rank of the superior concerned.

(iii) Clause (c).—*Provost-marshal.*— See Section 79. The court may use their military knowledge as to whether a person was a provost marshal, or assistant provost marshal including a provost marshal appointed under the Air Force Act or the Navy Ordinance [*Substituted vide Amdt. No.* 7/1/67] or a person legally exercising authority on behalf of the provost marshal. But it will be open to the accused to show that the person he is charged with impeding was not properly appointed provost marshal or assistant provost marshal, or was not legally exercising such authority.

33. **Disobedience of lawful command.**—(1) Any person subject to this Act who disobeys in such a manner as to show a wilful defiance of authority lawful command given personally by his superior officer, knowing or having reason to believe him to be such, shall, on conviction, by court martial, be punished with rigorous imprisonment for a term which may extend to fourteen years, or with such less punishment as is in this Act mentioned.

(2) Any person subject to this Act who disobeys the lawful command of his superior officer, knowing or having reason to believe him to be such, shall, on conviction by court martial,

if he commits such offence on active service be punished with rigorous imprisonment for a term which may extend to fourteen years, or with such less punishment as is in this Act mentioned; and

if he commits such offence not on active service, be punished with rigorous imprisonment for a term which may extend to five years, or with such less punishment as is in this Act mentioned.

NOTES

1. Section 33, sub-section (1). *(i) Superior officer.*— See Section 8 (15). A superior officer in plain clothes may be the subject of an offence under this clause, and it will depend upon the circumstances, judged from a military standpoint whether a court martial should, or should not hold that the offender knew or had reason to believe him to be his superior officer when he committed the offence.

This expression in this Section means not only a superior in rank but also senior in the same grade where that seniority gives power of command according to the usages of the service, but one Sainik can never be the "superior officer" of another.

(ii) *Lawful Command*— The command must be a specific command to an individual i.e., must be capable of individual execution by the person to whom it is addressed, and justified by military as well as by civil law and usage, e.g., a command addressed by a superior officer to four men to "dismiss" is for the purpose of this clause a lawful military command to each of the four men so addressed.

The command must relate to military duty that is to say disobedience to it must tend to impede, delay, or prevent a military proceeding. Thus a command given by an officer to a soldier to perform some domestic work not relating to military duty is not a lawful command. Additional examples of what are, and what are not lawful commands are given in Note 3 below.

The disobedience must have reference to the time at which the command is to be obeyed. If the command be a lawful, and demands a prompt and immediate compliance, hesitation or delay in obeying it may be sufficient to constitute and offence under this sub-section.

A person who on being ordered to do a certain thing at some future time uses words expressing an intention not to obey, and is immediately

confined does not commit an offence under this sub-section. He should be charged under Section 32(2) (b) or Section 55 according to the circumstances of the case.

A neglect to carry out an order due to misapprehension or forgetfulness, does not constitute an offence under this clause, though non-compliance with an order through forgetfulness or negligence would be chargeable under Section 55.

Disobedience of an order of a general nature, as for instance a regimental order or a paragraph in regulations, is not chargeable under this sub-section, but under Section 34 or 55, as the case may be.

A "superior office" whose command has been restricted, either by the terms of his commission or by regulations, cannot give a "lawful command" to a person who is, by the terms of such restriction placed outside his command.

Religious scruples, however *bona fide*, afford no justification for disobedience of commands which are clearly lawful.

A civilian cannot give a "lawful command" under this sub-section to a soldier employed under him; but it may well be the soldiers duty as such to do the act indicated, and if so, he may be punished for not doing so under Section 55. The particulars of the charge should clearly show that the disobedience was prejudicial to good order and military discipline because the soldier had been placed under the orders of the civilian by a superior military authority.

(iii) The essential ingredients of the graver offence under this sub-section are that the disobedience should show a wilful defiance of authority, and should be disobedience of a lawful command given personally by a superior officer. It would ordinarily be such an offence as would constitute mutiny if committed by two or more persons jointly.

(iv) A court trying an accused for an offence under this sub-section could, if not satisfied that the order was given personally by the superior officer, find the accused guilty of an offence under sub-section (2).

2. Sub-section (2).—See Notes 1(i), (ii) and (iii) above.

3. Below are given examples of commands which have been held to be lawful and not lawful, respectively. It should be borne in mind,

however, that the examples should not be regarded as hard and fast rules of what are lawful commands and what are not. Circumstances alter cases and it is possible for the same command to be, in one instance, lawful and in the other instance not lawful, according to the attendant circumstances.

Examples of Lawful Commands:

To act as batman.

To personnel of the Army Medical Corps, etc. to carry arms.

To undergo electrical treatment.

To take medicine.

To enter hospital.

To wear free spectacles.

To do work of national importance during a strike.

Examples of commands which are not lawful :

To sign for pay when not received.

To undergo a surgical operation.

To do an act which is unlawful under the law of Bangladesh.

34. Neglect to obey orders.—Any person subject to this Act, who neglects to obey any standing or routine or other orders shall, on conviction by court martial, be punished with rigorous imprisonment for a term which may extend to two years, or with such less punishment as is in this Act mentioned.

NOTE

Standing or routine or other orders.—The orders specified in this section are standing orders or orders having a continuous operation, whether garrison or regimental or of a like nature. Disobeying of a specific order in the nature of a command should, therefore, dealt with under Section 33, and non-compliance, through forgetfulness or negligence, with an order to do some specific act at a future time under Section 55.

Ignorance of an order is no excuse, if the order is one which the accused ought in the ordinary course to know. But a misapprehension reasonably arising from want of clearness in the order is a ground for exculpation.

The existence of the orders and the fact of the neglect must be proved. The order contravened, or a certified copy where such copy is admissible [see Section 116 (4)] must be produced on oath to the court and the court will make a record in the proceedings of its having been so produced. A written order cannot be proved by oral testimony.

Evidence must also be given to show that the order was duly posted or brought to the notice of the accused, or that he was otherwise in a position to be acquainted with its contents.

Disobedience of a regulation contained in Regulations in the Army may be punished under Section 55 provided such disobedience constitutes conduct or neglect prejudicial to good order and military discipline, but if a regulation is published as a regimental order, it acquires also the character of a regimental order, and disobedience to it may be punished under this section.

35. Insubordination and obstruction.–Any person subject to this Act, who–

(a) being concerned in any quarrel, affray or disorder, refuses to obey any officer, though of inferior rank, who orders him into arrest, or uses criminal force to, or assaults any such officer; or

(b) uses criminal force to or assaults any person, whether subject to this Act or not, in whose custody he is lawfully placed, and whether he is or is not his superior officer; or

(c) resists an escort whose duty it is to apprehend him or to have him in charge;

Shall, on conviction by court martial, be punished with rigorous imprisonment, for a term which may extend to two years or with such less punishment as is in this Act mentioned.

NOTE

1. Section. Clauses (a) and (b).— “Criminal force” and “assault”, see Note 1 to 32.

2. Clause (a).—(i) Only officers should be charged under this clause. Where an officer who ordered arrest was of superior rank, the offender may be charged under Section 33.

(ii) A charge averring use of criminal force and assault would be bad for duplicity.

(iii) An accused charged under this clause with using criminal force can be found guilty of assault [See Section 111 (5)].

(iv) For the definition of "affray", see Section 159 Penal Code.

3. Clause (b).— See Note 1. A person may be charged under this clause for using criminal force to or assaulting a civil policeman if such person had been placed in the policeman's custody by an officer, junior commissioned officer, warrant officer or non-commissioned officer.

4. Clause (c).— (i) Threatening words and a threatening attitude might amount to resisting an escort, if the threats were sufficient to deter the escort from arresting the accused.

Resistance may be "passive", e.g., a person lying down and refusing to move, if physically able to move, could be said to resist.

The particulars of the charge should specify the nature of resistance.

The court will use their military knowledge to determine whether it was the duty of the escort to apprehend the accused or have him in his charge.

Breaking away from an escort is not an offence under this clause but may be charged under Section 44(2) (b).

(ii) There are two separate offences in this clause. An accused who has been apprehended, should be charged with resisting an escort whose duty it was to have him in charge. Resisting an escort whose duty it was to apprehend him applies only when the accused immediately resists an escort on being apprehended.

(iii) It is not essential that a soldier should be informed before hand that he is about to be arrested, but this should except under very special circumstances, be done at the time of actually effecting the arrest.

36. Desertion and aiding deserters.— (1) Any person subject to this Act who deserts or attempts to desert the service shall, on conviction by court martial,

if he commits the offence when on active service or when under orders for active service, be punished with death, or such less punishment as is in this Act mentioned; and if he commits the offence

under any other circumstances, be punished for the first offence with rigorous imprisonment for a term which may extend to two years or with such less punishment as is in this act mentioned, and for the second or any subsequent offence with rigorous imprisonment for a term which may extend to ten years, or with such less punishment as is in this Act mentioned.

(2) Any person subject to this Act who knowingly harbours any deserter from any of the military, naval or air forces of Bangladesh shall, on conviction by court martial, be punished with rigorous imprisonment for a term which may extend to seven years or with such less punishment as is in this Act mentioned.

(3) Any person subject to this Act who, being cognisant of any desertion, or attempt at desertion, of any person belonging to the military, naval or air force of Bangladesh, does not forthwith give notice to his own or some other superior officer, or does not take any steps in his power to cause such person to be apprehended, shall, on conviction by court martial, be punished with rigorous imprisonment for a term which may extent to three years or with such less punishment as is in this Act mentioned.

NOTES

1. Sub-Section (1) Desertion.— (i) The offence of desertion or attempting to desert the service implies and intention on the part of the accused either (i) not to return to the service at all or (ii) to evade some particular important service such as field service, service in a forward area or even service in aid of civil power. A person must not be charged with the offence of desertion or attempted desertion unless it appears from the evidence that one or other such intention existed. It is not necessary that the intention not to return to the service at all should exist at the time when the accused first absented himself from his unit or duty station; it is sufficient if the intention was formed at any time during the period of absence.

(ii) The evidence of intention not to return to the service may be inferred by such facts as the length of absence, wearing of uniform or disguise, distance from the duty station and the termination of the absence by surrender or apprehension. All these facts are relevant but not conclusive for the purpose of establishing the intent to desert. Neither a short period of absence, a short distance from the duty station, the wearing of uniform, nor the fact of ultimate surrender will necessarily

prevent the offence from amounting to one of desertion if there are other facts proved showing a clear intent to desert. Conversely neither a long absence, a long distance from the duty station, nor apprehension terminating the absence will, of themselves necessarily prove desertion if there are other facts suggesting an intention to return. Similarly, the fact that an accused has been declared an absentee under Section 78 is not a deciding factor.

(iii) If the absence terminated by fraudulently enlisting into another corps or unit, the court will have to consider whether such enlistment negatives the intent to leave the service.

(iv) With regard to the type of desertion constituted by the existence of an intention to evade some particular service (sometimes known as constructive desertion), this if proved will lead to a conviction for desertion under this sub-section exactly in the same way as desertion with an intention not to return to the service at all.

(v) The intention must be to avoid some particular service and not merely some routine duty or duty only applicable to the accused.

(vi) A person may also be a deserter although his absence was in the first instance legal (e.g., authorised by leave), the criterion being the same namely, the intention of not returning to the service. If evidence exists from which the inference can properly be drawn that an intention not to return to the service existed the facts that the accused was on leave at the time he formed such an intention will not prevent the evidence amounting to desertion for, whilde on leave a person subject to military law is still under orders.

(vii) A collective charge of desertion should not be preferred against two or more offenders but each should be charged separately and tried separately although such trials may take place before the same court.

(viii) Section 91 which imposes a limitation of time for the trial of an offence expressly omits desertion but where a person other than an officer has served continuously in an exemplary manner for not less than 3 years he cannot be tried for any such offence of desertion which was committed before the commencement of the specified period of 3 years, other than desertion on active service.

(ix) Attempt to desert.— To establish an attempt to desert, some act which, if completed. would constitute desertion must be proved, e.g.,

a soldier is arrested in the act of leaving the lines of his unit without authorty, dressed in plain clothes and carrying his personal kit, when the circumstances indictate that he intends to desert. Mere preparation to desert if unaccompained by any such act, does not constitute an offence under this sub-section. If there is evidence that the offender actually absented himself from the place where his duty required him to be and that he intended to desert, a charge of desertion, not for an attempt to desert, should be framed.

(x) A person charged with desertion may be found guilty of an attempt to desert or absence without leave, and a person charged with an attempt to desert may be found guilty of absence without leave [See Section 111 (1) and (2)].

(xi) As to forfeiture of service for pension or gratuity which follows upon desertion, and regulation as to restoration of service so forfeited (see Pay and Allowances Regulations Volume-I, para 198 and Pension Regulations Part II paras 211 and 212).

The period between desertion and apprehension does not under the prescribed conditions of enrolment, reckon as service towards discharge. Service rendered previous to desertion, though forfeited for purposes of pension or gratuity, reckons as service towards discharge.

(xii) A deserter is merely temporarily struck off the effective list and not dismissed. On return he is brought on the strength and has never ceased to be subject to military law.

2. *Sub-section* (2). *Knowingly.*—Evidence should, if possible, be given that the accused knew the person harboured to be a deserter; but if the fact of harbouring is proved, the court may infer knowledge from the circumstances.

3. Sub-Section (3). (i) Superior officer.—See Section 8 (15).

(ii) If the charge is that the accused did not take steps to cause a deserter or person attempting desertion to be apprehended the particulars must allege the steps which it was in the power of the accused to take in order to cause the deserter or the person attempting desertion to be apprehended.

37. Absence without leave.— Any person subject to this Act who,—

(a) absents himself without leave; or

(b) without sufficient cause overstays leave granted to him; or

(c) being on leave of absence and having received information from proper authority that the corps or unit or detachment or portion of the corps, unit or detachment to which he belongs, has been ordered on active service, fails, without sufficient cause, to rejoin without delay; or

(d) without sufficient cause fails to appear at the time fixed, at the parade or place appointed for exercise or duty; or

(e) when on parade, or on the line of march, without sufficient cause and without leave from his superior officer, quits the parade or line of march; or

(f) when in camp or garrison or elsewhere, is found beyond any limits fixed, or in any place prohibited, by any standing or routine order without a pass or written leave from his superior officer; or

(g) without leave from his superior officer or without sufficient cause, absents himself from any school or other institution when duly ordered to attend there;

Shall, on conviction by court-marital, be punished with rigorous imprisonment for a term which may extend to five years, or with such less punishment as is in this Act mentioned.

NOTES

1. Clause (a).— (i) The distinction between desertion and absence without leave lies in the intention (See Note 1 (i) to Section 36).

(ii) An absence is not deemed to be involuntary where the accused was unable to return to his unit through intoxication which in an offence under Section 43. Again, where an officer or soldier is on leave and through lack of money or loss of his railway or other ticket is unable to return to his unit before the expiration of his leave, this may amount to absence without leave.

(iii) To render an absence involuntary there must be some physical impracticability outside the control of the offender that prevents his return to the unit. Although absence without leave was originally voluntary it

may by change of circumstances become involuntary (e.g., where arrested by the civil police during his absence) and the absence will be deemed to terminate as from the date and time when it become involuntary. Where, however, after the absence has ceased to be involuntary, and the absentee continues in a state of voluntary absence he may be convicted of absence for the whole period. Similarly, an absence that was originally involuntary becomes voluntary if the offender fails to return to his unit at the earliest practicable moment, e.g., failure to return on release from a civil prison.

(iv) An offence under this clause is one of absence without leave and not merely absence. Leave of absence must be notified to the applicant for such leave. An officer or soldier who has applied for leave and departs from his unit before it is actually granted commits the offence of being absent without leave even though the leave had been granted but not notified to him.

(v) When evidence has been given of the accused's absence and that evidence is sufficient to raise an inference that he had no leave of absence, then the court may look to the accused to provide evidence, by way of defence, for his 'leave".

(vi) The particulars of charge of absence without leave should state the dates when the absence began and terminated. Where the exact hour of absence is material for proving a whole day's absence, e.g., for the purpose of explanations (i) (ii) and (iii) to Section 65 (2), the hours of the offender's departure and return should also be stated in the particulars of the charge.

(vii) A person tried for desertion or attempted desertion may under Section 111 (1) or (2) be found guilty of absence without leave; but if only charged with absence without leave he cannot be convicted of desertion or attempted desertion.

(Viii) When a person has been absent without leave for 60 clear days a Court of inquiry will be assembled (See Section 78).

2. Clause (b) to (e), *Sufficient Cause.*— If it proved that a person subject to the Act has overstayed his leave, or being on leave has failed to rejoin without delay his corps or unit when ordered on active service, or has failed to appear at the parade or place appointed for exercise or duty, or quits the parade or line of march, as the case may be, it will be for him to show that he had sufficient cause e.g., sickness or the unexpected interruption of the ordinary means of transit for doing so.

3. Clause (d).—A person who is late for parade commits an offence under this clause equally with one is altogether absent.

4. Clause (f). *Beyond the limit fixed.*—When it is proved that the accused was found beyond the limits fixed, it will be on him to show that he had proper authority.

5. Clause (e) (f) and (g). *Superior officer.*—See Section 8 (15).

38. Fraudulent enrolment.—Any person subject to this Act who,—

(a) without having obtained a regular discharge from the corps or unit to which he belongs, or without having otherwise fulfilled the conditions enabling him to enrol or enter, enrols himself in, or enters the same or any other corps or unit or any part of the Bangladesh forces, regular or non-regular; or

(b) is concerned in the enrolment in any of the Bangladesh forces, regular or non-regular, of any person whom he knows or has reason to believe to be so circumstanced that by enrolling he commits an offence against this Act or the Air Force Act, 1932 (XIV of 1932), "or the Air Force Act 1953 [Added vide Ordinance XXI of 1960] or the Navy Ordnance 1961" [Substituted vide amendment no. 7/1/67].

Shall, on conviction by court martial, be punished with rigorous imprisonment for a term which may extend to five years, or with such less punishment as is in the Act mentioned.

NOTES

1. Clause (a).— (i) Fraudulent enrolment, like desertion is an offence which is not barred by Section 91 except in the case of a person who has served continuously in an exemplary manner for not less than 3 years.

(ii) The clause applies to two classes of cases: (1) the enrolment by a person belonging to the army in the same or in any other corps or unit of the army, (2) the enrolment of such a person in any of the regular (i.e., Navy and Air Force) or non-regular (i.e., Bangladesh Rifles or Ansars etc.) Bangladesh forces. It will be observed that the latter part of the clause does not deal with the case of a sailor or airman who enlists in army, but with the converse case of a person belonging to the Army who

enlists in the Navy or the Air Force. A sailor or an airman who commits a similar offence will have to be tried under the Navy Ordinance 1961 [*Substituted vide amendment no. 8/1/67*] or the air Force Act, 1953 [Amended vide Ordinance XVIII of 1978] as the case may be. It will be noticed, too, that the offence under this clause can be committed by a person who belongs to a corps of unit and enrols himself again in the *same* corps or unit. This provision is intended to cover the cases of larger corps and units such as Army service Corps where a man any otherwise leave one portion of the corps or unit and enrols himself in another with impunity.

(*iii*) A person who leaves one corps or unit and enrols himself in another does not *prima facie* commit the offence of deserting the service, though he irregularly and improperly exchanges one arm or branch of that service for another. If, however, at the time of leaving his original corps or unit he had no intention of re-enrolling himself, and only did so as an afterthought, or if he absented himself to avoid any particular service, *e.g.,* service abroad, his offence is desertion, though a conviction on a charge framed under this clause might also be legal. In deciding under which section a charge should be framed, the time which elapsed between the two acts will be an important factor for consideration. In doubtful cases the charge should be framed under this clause.

If the offender is charged with desertion he should be tried in his original corps or unit. For attachment of deserters for trial by summary court martial *see* Army Regulations (Rule) 315 [*Substituted vide amendment no.* 8/1/67]. If he is charged with the offence specified in this clause he may be tried either in his original corps or unit or that into which he has fraudulently enrolled himself, and if not dismissed he may be held to serve in either corps or unit. As a rule he should be tried in which it is intended to retain him.

2. *Clause (b).* It will be observed that any person subject to the Act who helps another person subject to this Act or to the "Navy Ordinance, 1961" *[Substituted vide amendment no. 11/1/67]* or the Air Force Act to enrol in any other arm or branch of the service whatever without obtaining a proper discharge from his original corps commits an offence under this clause.

39. False answers on enrolment.— Any person having become subject to this Act by enrolment who is discovered to have made at the time of his enrolment a wilfully false answer to any question set forth in the prescribed form of enrolment which was put to him by the enrolling

officer before whom he appeared for the purpose of being enrolled shall, on conviction by court martial, be punished with rigorous imprisonment for a term which may extend to five years or with such less punishment as is in this Act mentioned.

NOTES

1. *Having become subject.*—It will be observed that the wording differs from the wording of other sections of the Act which create offences triable by court martial. This is essential since at the time the offence is committed the person is not actually subject to military law, for he does not become so subject until he has signed the enrolment paper.

2. If false answers are given to two or more questions in the enrolment form, each false answer should be made the subject of a separate charge.

3. The original enrolment form must be produced at the trial [*See Section* 115(1)], by a person who can identify the accused as the person named therein.

4. The falsity of the answer must be proved in accordance with the normal rules of evidence. Where the false answer is as to previous service in the forces, evidence as to such previous service can be given by the production of previous enrolment paper, record of service, etc.

40. Fraudulent offence in respect of property.— Any person subject to this Act who commits any of the following offences, that is to say,—

(*a*) dishonestly misappropriates of commits theft of, or criminal breach of trust in respect of any property belonging to the Government or any service property or the property of any person subject to this Act, "or the Air force Act 1932 or the Air Force Act, 1953" [*Added vide Ordinance* XXI 1960] or to the Navy Ordinance 1961 [*Added vide Amdt. No.* 11/1/67], or of any person serving with or attached to any of the armed forces of Bangladesh; or

(*b*) dishonestly receives or retains any stolen property of the nature specified in clause (a), knowing or having reason to believe the same to be stolen; or

(*c*) is guilty of any other act or omission with intent to defraud, or to cause wrongful gain or wrongful loss to any person;

shall, on conviction by court martial, be punished with rigorous imprisonment for a term which may extend to five years, or with such less punishment as is in this Act mentioned.

NOTES

1. *Clause* (*a*).— (i) The clause is very comprehensive and covers all *kinds of property,* whether belonging to Government; or a regimental institution, or to any person belonging to any of the three service or to any person serving with or attached to any of the services. It also covers the property of members of the non-regular forces, when they become subject to military, air force or naval law, by reason of embodiment etc. If the property in respect of which an offence under the clause has been committed belongs to some other persons, charge under clauses (*c*) of this section or under Section 59 might be appropriate.

(*ii*) For definitions of "Misappropriation", "Dishonestly" "theft" and "Criminal breach of trust", *see* Bangladesh Penal Code in Part III of this Manual.

(*iii*) Service property. See Section 8 (14).

(*iv*) As to special findings, see Section 111 (3).

(v) *Dishonestly Misappropriates.*—If no evidence is forthcoming as to the particular mode of misappropriation, the court may infer, in the absence of explanation from the accused that the property was misappropriated from the fact of its not having been properly utilised or accounted for.

"Every instance of misappropriation should be charged separately, if possible, but in cases where it is alleged that various sums on goods have been misappropriated over a period, but is not possible to isolate particular instances of misappropriation, one charge alleging of the total deficiency may be preferred" [*Substituted for Note 1,* (v) *Line 5 vide amendment no.* 4/11/65].

A mere error or irregularity in accounts, or mistaken application of money or goods does not constitute an offence under this clause. There must be an intent to defraud on the part of the accused, either for the benefit of himself or some other person. This may be particularly borne in mind in the case, for example, of a non-commissioned officer's accounts getting into confusion through the neglect or carelessness of superiors.

(*vi*) The value of the property which forms the subject of an offence under this clause should be stated in the particulars of the charge and proved in evidence, so that the court, if it convicts the accused, may add award of stoppages to its sentence.

(*vii*) The property which forms the subject of a charge under this clause, should, if recovered, be produced in court and identified by any witness who mentions it in his evidence.

2. *Clause* (*b*).— (i) *Stolen Property, i.e.,* property in respect of which any of the offences specified in clause (*a*) has been committed. See Section 410 of the Penal Code for the definition of the term "stolen property".

(*ii*) The guilty knowledge of the receiver must be established : it is not sufficient to prove that he merely suspected the property to have a tainted origin, but it will be sufficient if it is shown that under the circumstances a reasonable man must have felt convinced that the property was stolen property. The fact that he bought it much below its value, or that he falsely denied his possession of it might be evidence of guilty knowledge.

A person is considered to receive the goods as soon as he obtains control over them. But actual manual possession is not necessary ; it is sufficient if they are in the actual possession of a person over whom the receiver has a control so that they would be forthcoming if he ordered it.

If a person is found in possession of property recently stolen, there is a strong presumption that he stole it or received or retained it with knowledge that it was stolen. The burden of proving guilty knowledge always remains upon the prosecution, and upon the prosecution establishing that the accused was in possession of recently stolen property, a court martial may, in the absence of any explanation by the accused of the way in which the property come into his possession, which might reasonably be true, find him guilty; but if an explanation is given which the Court-Martial think might reasonably be true, and which is consistent with innocence, although they are not convinced of its truth, the accused is entitled to be acquitted, in as much as the prosecution has failed to discharge the duty cast upon it of satisfying the court beyond reasonable doubt of the guilt of the accused.

3. *Clause* (*c*).— (*i*) *Intent to Defraud.*— These words imply (1) deceit or an intention to deceive or in some cases mere secrecy and (2)

either actual possible injury or an intent to expose some person either to actual injury or to a risk of possible injury by means of that deceit or secrecy. This intent is very seldom the only or the principal intention entertained by the fraudulent person whose principal object is in nearly every case his own advantage. The "injurious deception" is intended only as a means to an end, though this does not prevent its being intentional. Both the first and the second ingredients mentioned above must be present to constitute an intent to defraud.

(*ii*) *Meaning 'Intent to Defraud'.*—The expression “intent to defraud” implies conduct coupled with an intention to deceive and thereby to injure. The word ‘defraud’ involves two conceptions, *viz,* deceit and injury to the person deceived, *i.e.,* an infringement of some legal right possessed by him, but not necessarily deprivation of property.

A practically conclusive test as to the fraudulent character of a deception for criminal purposes is this. Did the author of the deceit deride any advantage from it which he could not have had if the truth had been known? If so, it is hardly possible that the advantage should not have had an equivalent *in loss or risk of loss to some one else* ; and if so there was fraud. In practice people hardly ever intentionally deceive each other in matters of business for a purpose which is not fraudulent.

For definition of word 'fraudulently' *see* Section 25 of the Penal Code.

(*iii*) Wrongful loss or wrongful gain–*See* Section 23 Penal Code in Part III of this Manual.

41. Certain forms of disgraceful conduct.—Any person subject to this Act who commits any of the following offences, that is to say,—

(*a*) malingers or feigns or produces disease or infirmity in himself, or intentionally delays his cure or aggravates his disease or infirmity; or

(*b*) with intent to render himself or any other person subject to this Act unfit for service, voluntarily causes hurt to himself or such other person; or

(*c*) is guilty of any disgraceful conduct of a cruel, indecent or unnatural kind;

shall, on conviction by court martial, be punished with rigorous imprisonment for a term which may extend to ten years or with such less punishment as is in this Act mentioned.

NOTES

1. *Clause* (*a*).— (*i*) The particulars of a charge under this clause must show in what way the accused has malingered or delayed his cure or what disease or infirmity he has feigned, produced or aggravated.

(*ii*) *Malingers* means to pretend illness or infirmity, which does not exist, in order to escape military duty; "feigns" means to exhibit appearances resembling the genuine symptoms, which, to the accused's knowledge, are not due to such disease or infirmity, but have been produced artificially for purposes of deceit, *e.g.,* simulating fits or mental disease.

Produce. To produce disease is wilfully to cause genuine disease to develop *e.g.,* by the infection of microbes or poisonous drugs. The involuntary production, aggravation or prolongation or delirium tremens by intemperate habits or of venereal disease by immoral conduct does not render a person liable to a charge under this clause. Nor would a person incur liability under it who refuses to undergo a surgical operation.

(*iii*) A refusal to be inoculated or vaccinated cannot be made the subject of a charge under this clause or Section 33, as any puncturing or cutting of the skin, mucous membrane on tissues, amounts to a surgical operation. Again a soldier commits no offence if he refuses to allow anaesthetic to be administered to himself.

2. *Clause* (*b*).— (*i*) *with intent.* In a charge under this clause evidence must be given of the intent required therein, namely, to render the accused or any other person subject to military law unfit for service; but it would be sufficient to raise a presumption of that intention if the act in question were shown to have been done voluntarily and not accidentally.

(*ii*) For the definition of the term "*voluntarily causes hurt",* see Sections 319 and 321 of the Penal Code in Part III. Offences of this nature even when committed in the presence of enemy should be charged under this clause and not under clause (*b*) of Section 24.

3. *Clause* (*c*).— (*i*) *Disgraceful conduct.* The particulars of charge of disgraceful conduct under this clause must specify the details of the act or acts alleged to constitute the disgraceful conduct of the man charged. It will be open to the court in each case to see whether the accused's act amounted to disgraceful conduct of the kinds specified. In

the case of an officer, junior commissioned officer or warrant officer the same facts may constitute the offence either of disgraceful conduct under this clause or of unbecoming behaviour under Section 52.

(*ii*) To allege in a charge under this clause conduct of an indecent and unnatural kind would be bad for duplicity, since they are separate offences. The offence of unnatural kind under this clause would cover such practices as easing oneself between the buttocks or the things of the passive agent without effecting actual penetration of the anus.

(*iii*) Disgraceful conduct of the three kinds mentioned need not be limited to conduct which would amount to an offence under the law of Bangladesh.

42. Illegal gratification.— Any person subject to this Act who directly or indirectly accepts or obtains, or agrees to accept, or attempts to obtain, from any person for himself or any other person, any gratification whatever other than a legal remuneration, as a motive or reward for doing or forbearing to do any act, or for showing favour or disfavour to any person, in relation to any of the affairs of the State or of any service affairs, shall, on conviction by court martial, be punished with rigorous imprisonment for a term which may extend to five years, or with such less punishment as is in this Act mentioned.

NOTE

Gratification.—The term is not restricted to a pecuniary gratification or a gratification estimable in money. The offence is complete if the gratification is accepted with the intention indicated, and it is not necessary that favour or disfavour should be proved to have been actually shown. An attempt to obtain a gratification, (*e.g.*, by asking for it) is punishable equally with the actual receipt of one.

An attempt to give a gratification (*e.g.*, an offer of a bribe) is an abetment of the offence by way of instigation and is punishable under Section 58.

43. Intoxication.— Any person subject to this Act who commits the following offence, that is to say, the offence of being in a state of intoxication, shall, on conviction by court martial,

if he commits such offence on active service or while he is on duty, be punished with rigorous imprisonment for a term which may extend to five years, or with such less punishment as is in this Act mentioned; and

if he commits such offence while not on active service or not on duty, be punished,

if he is subject to this Act as an officer, with dismissal or such less punishment as is in this Act mentioned; and

if he is subject to this Act otherwise than as an officer, with rigorous imprisonment for a term which may extend to six months or with such less punishment as is in this Act mentioned.

NOTES

1. (*a*) In all cases whether the act is committed on active service, or not on active service or on duty, or not on duty, the charge under this section will be for "intoxication".

(*b*) The offence of intoxication is one which cannot be tried jointly. A charge alleging that an accused was intoxicated, say at 1330 hours and also at 2030 hours would be bad for duplicity, (*i.e.,* the charge would contain two offences).

(*c*) "*Intoxication"* will be regarded as having the ordinary meaning attached to it in civil life and the fact that an offender is capable, or incapable, of performing his duty is not a decisive or conclusive test of drunkenness or sobriety. It is, however, one of the tests which should be applied by the court. Intoxication includes intoxication from the effects of opium or similar drug as well as from liquor.

(*d*) Where there is some doubt as to whether or not an accused was intoxicated within the meaning of the section, but he was incapable of performing his duties by reason of previous indulgence in alcohol or other drugs an alterative charge should be laid under Section 55 alleging his incapability of performing his duties by reason of previous indulgence in alcohol or other drugs.

(*e*) Every witness giving evidence at the trial or summary disposal on a charge of intoxication should express his opinion as to whether or not, the accused was intoxicated and give his reasons for so stating. It however, rests finally with the court or officer dealing with that case to decide the issue on the charge.

(*f*) In ordinary routine circumstances an officer or soldier unexpectedly called on to perform some duty for which he was not warned

(for example, if summoned from a Club) and found to be unfit for duty, should in practice be dealt with as for intoxication while not on duty.

(*g*) As in the offence of intoxication the attendant circumstances affect the amount of punishment, evidence must, in all cases, be given as to whether the accused was or was not on active service or was or was not on duty at the material time.

2. Nothing can justify a person subject to this Act who uses or attempts to use criminal force to his superior and great care must, therefore, be taken to avoid bringing intoxicated person into contact with their superiors. Mere abusive and violent language used by an intoxicated man as a result of being taken into custody should not be used as the ground for framing a charge under Section 32(2) (*b*). If trial by court-martial is considered necessary, the charge should be framed for intoxication, the language being treated in the nature of riotous conduct only and to that extent aggravating the offence.

44. Offences in relation to persons in custody.— (1) Any person subject to this Act who, without authority, wilfully releases any prisoner or person placed in service custody, shall, on conviction by court martial, be punished with rigorous imprisonment for a term which may extend to fourteen years, or with such less punishment as is in this Act mentioned.

(2) Any person subject to this Act who commits any of the following offences, that is to say,—

(*a*) negligently or without reasonable excuse allows any prisoner or person placed in his charge to escape; or

(*b*) being in lawful custody escapes or attempts to escape or leaves such custody before he is set at liberty by proper authority;

shall, on conviction by court martial, be punished,

if he is subject to this Act as an officer with dismissal, or such less punishment as is in this Act mentioned; and

if he is subject to this Act otherwise, with rigorous imprisonment for a term which may extend to two years or with such less punishment as is in this Act mentioned.

NOTES

1. *Sub-section* (1).— (*i*) A charge under this sub-section may be laid against any person who releases a State prisoner (*e.g.*, a prisoner of

war) or some ordinary prisoner (*e.g.*, a person undergoing sentence of imprisonment in military custody), the severity of the sentence being determined according to the gravity of the offence. Where, however, an accused person releases prisoners of war or other State prisoners with a view to endangering the success of Bangladesh forces or forces co-operating therewith, the accused may properly be charged under Section 24 (j).

(*ii*) *Without authority.*— The court will use their military knowledge as to whether any authority alleged by accused to exist was or was not sufficient.

(*iii*) *Wilfully.*— An act or omission is *wilful* if it is done or made by a person with the intention of allowing the escape of a person committed to service custody. Where, however, a doubt exists as to whether the accused in fact acted wilfully, he should be charged under sub-section 2(*a*) with having acted negligently or without reasonable excuse. An accused charged under this sub-section may be convicted under sub-section 2 (*a*) [*See* Section 111 (5)].

2. Sub-section *(2),* Clause (*a*).—*Negligently.*—Negligence has been defined as "the omission to do something which a reasonable man guided upon those considerations which ordinarily regulate the conduct of human affairs, would do, or doing something which a prudent or reasonable man would not do, and as doing some act which a person of ordinary care and skill would not do under the circumstances".

3. Sub-section (2), *Clause (b).—Lawful Custody.*–A person who escapes from Air Force, Naval or Police custody, when lawfully committed to, or taken into, such custody may be charged under this clause.

45. Loss of arms etc., and destruction of property.—Any person subject to this Act who commits any of the following offences, that is to say,—

(*a*) loses by neglect any arms, ammunition, equipment, instruments, tools, clothing or any other things being Government or service property issued to him for his use or entrusted to him for his use or entrusted to him for military purposes; or

(*b*) wilfully destroys or injures any Government or service property;

shall, on conviction be court martial, be punished with rigorous imprisonment for a term which may extend to two years or with such less punishment as is in this Act mentioned.

NOTES

1. *Clause* (*a*).—The clause is not intended to punish a man for a deficiency in his kit occasioned by accident or mere carelessness rather than by culpable neglect. On the other hand, the fact that a man has not got his arms, ammunition, etc., at a time when it was his duty to have them is *prima facie* evidence of his having lost them by neglect and the court may call on him to show that the loss was not occasioned by any fault on his part. Where a Court of Inquiry, as laid down in Section 78, has been held and has found a man to be deficient in certain articles, then upon his trial under this clause, a certified copy of the record in the regimental books showing that such articles were deficient, is *prima facie* evidence that they were deficient and of their value, if stated [*See* Section 116 (3) and (4)]. If no evidence except such record is obtainable, the prosecutions are justified in proceeding on that alone, and if no evidence is given on the part of the accused to disprove the facts stated therein, the court may convict. Where, however, the accused gives or produces evidence in contradiction of the declaration of the court of inquiry with regard to any of the articles in question, it will be necessary for the prosecution to produce other evidence in support of their case in so far as such articles are concerned. For this purpose the court might, if necessary, grant an adjournment under Rule 68. If for any reasonable cause, such as lapse of time since the deficiency arose, no witnesses are available to rebut the evidence produced by the accused, the court must use their discretion as to their finding in respect of the articles in question.

In all cases where record of regimental book is not produced at the trial, evidence must be produced to show that at some previous specified date the accused had been in possession of the articles alleged to be deficient. In cases of desertion or absence without leave the record will usually show as missing some articles which the man in fact brings back with him. The court must not, of course, convict him in respect of articles so returned.

The articles alleged to have been lost by the accused must be averred in the particulars of the charge with their values item by item and their value should be proved in evidence to enable the court to award stoppages.

The summary of evidence should also contain a list of articles lost by the accused with their values item-wise so that, in case the accused pleads guilty, the court need not record additional evidence regarding the articles or their value.

"It is not necessary to set out in the particulars the value of personal clothing as are the property of the soldier and are matters of account between him and his unit" *[Added vide amendment no. 4/11/65].*

2. Clause (b).— Wilfully.- In a charge under this clause the prosecutor must adduce evidence which will either prove, or enable the court to infer, that the destruction or injury was not accidental. If the injury appears to be the result of neglect, it will be for the court to determine whether the neglect was wilful and the accused intended to or destroy injure the arms etc. If injury or destruction was caused through carelessness, no offence under this clause would have been committed.

3. As to stoppages and evidence of value, under this section *see Section* 65(2) (g) and Note thereto.

46. False accusation.— Any person subject to this Act who commits any of the following offences, that is to say,—

(*a*) makes a false accusation against any person subject to this Act, knowing or having reason to believe such accusation to be false; or

(*b*) in making a complaint to his superior officer makes any statement affecting the character of a person subject to this Act knowing or having reason to believe such statement to be false, or in making such complaint knowingly and wilfully suppresses any material fact;

shall, on conviction by court martial, be punished with rigorous imprisonment for a term which may extend to two years, or such less punishment as is in this Act mentioned.

NOTES

1. *Clause* (*a*).— (*i*) A mere false statement not involving an accusation, (e.g., a letter to a friend contain insinuation against a superior officer) is not within this clause.

(ii) Before an accused can be convicted under this clause, it must be proved that the accusation was made against the person named in the particulars of the charge, *that* it was false and that the accused knew or had reason to believe it to be false.

2. *Clause* (*b*).— (*i*) It is immaterial whether the complaint was made statutory, (*i.e.,* one under Section 167 or 168) non-statutory, and whether it was made verbally or in writing.

(*ii*) *Wilfully suppresses.*—To suppress wilfully any material facts in connection with complaint for redress of wrongs is an offence under this clause.

(*iii*) It is not necessary that the false statement affecting the character of a person subject to the Act should be directly related to the subject of the complaint. If the false statement is calculated to create prejudice against the person with reference to whom the complaint is addressed, then it is a false statement under this clause.

47. False documents.—Any person subject to this Act who commits any of the following offences, that is say,—

(*a*) in any report, return, list, certificate, book or other service or official document made or signed by him or of the contents of which it is his duty to ascertain the accuracy,—

(i) knowingly makes or is privy to the making of any false or fraudulent statement; or

(ii) knowingly makes or is privy to the making of an omission with intent to defraud; or

(*b*) knowingly and with intent to injure any person, or to defraud, suppresses, defaces, alters or makes away with, any service or official document which it is his duty to preserve or produce; or

(*c*) when it is his official duty to make a declaration respecting any service or official matter, knowingly makes a false declaration;

shall, on conviction by court martial, be punished with rigorous imprisonment for a term which may extend to seven years, or with such less punishment as is in this Act mentioned.

NOTES

1. *Clause* (*a*).— (*i*) If a person makes false entries, as to payments made in a book which it is his duty to keep in his official capacity, he can be charged with knowingly making false statement under sub-clause (i) of this clause, or if it can be shown that he intended to defraud by means of such entries, he can be charged with knowingly making a fraudulent statement. Similarly if he omits to make in the book entries of payments made by him or to him and if the evidence justifies it,

can be charged with knowingly making such omission with intent to defraud under sub-clause (*ii*) of this clause.

For the meaning of "*fraudulent"* or *with "intent to defraud",* see note 3 to Section 40.

In a charge involving an "*intent to defraud",* it is not necessary to show an intent to defraud the public or a particular individual, so long as an intent to defraud is actually shown. It will be observed that the making of an omission with intent only to deceive is *not* made an offence under sub-clause (*ii*) of this clause.

(*ii*) If there is some doubt as to whether the accused, when charged under sub-clause (i) of this clause, has been fraudulent, and alternative charge under the same sub-clause alleging that the statement was false, should be preferred. Similarly, when the charge is laid under sub-clause (*ii*) of this clause an alternative charge under Section 55 alleging neglect should be preferred. This is essential as it is not possible under Section 111 to make a special finding of the falsity, when there is insufficient evidence before the court to convict of fraud.

(*iii*) When framing charges under this clause, care must be taken to ensure that the particulars follow the statement of offence, *e.g*., where the statement alleges that the document was *signed* by the accused, the particulars should not allege *made* by the accused.

(*iv*) In determining whether or not it was the duty of the accused to ascertain the accuracy of the report, *etc*., referred to in the charge, the court may use their military knowledge.

2. *Clause* (*b*)—*Suppresses.*–The suppression, *etc*., of a document is not an offence under this clause, if it is effected only with intent to deceive, and not to defraud or injure any person. As under clause (*a*), the question as to the duty of the accused to preserve or produce the document shall be determined by the court using their military knowledge. The particulars of a charge under this clause should show why it was the accused's duty to preserve the document; but where the situation of the accused is proved, the court may use their military knowledge to infer his duty.

3. *Clause* (*c.*)— It is not an offence under this clause to make a false verbal statement or declaration. In certain circumstances such a false statement might be an offence under Section 55 or when made

before a court martial, or other military court competent to administer oath or affirmation, it might be an offence under Section 50.

48. Signing in blank and failure to report.— Any person subject to this Act who,—

(*a*) when signing any document relating to pay, arms, ammunition, equipment, clothing, supplies or stores or any other Government or service property, knowingly leaves in blank any material part for which his signature is a voucher; or

(*b*) refuses, or by culpable neglect omits, to make a report or return which it is his duty to make;

shall, on conviction by court martial, be punished with rigorous imprisonment for a term which may extend to two years, or with such less punishment as is in this Act mentioned.

NOTE

Clause (*b*).— The particulars of a charge under this clause must show that it was the accused's duty to make the report or return, but where the situation of the accused is proved, the court may use their military knowledge to infer his duty. If the report or return was one which the superior had no right to call for, it is not an offence to refuse to make or send it. The report must be in writing. The clause does not contemplate a verbal report. The neglect under this clause must be culpable *i.e.,* something more than mere forgetfulness or mistake.

49. Offences in relation to courts martial.— Any person subject to this Act who commits any of the following offences, that is to say,—

(*a*) refuses to be sworn or affirmed when duly required by a court martial to be sworn or affirmed; or

(*b*) refuses, when a witness, to answer any question or to produce or deliver up any book, document or other thing when duly required by a court martial to answer such question, or to produce or deliver up such book, document or other thing; or

(c) is guilty of contempt of court martial, by using insulting or threatening language, or by causing any interruption or disturbance in the proceedings of such court;

shall, on conviction by court martial be punished with rigorous imprisonment for a term which may extend to five years, or with such less punishment as is in this Act mentioned.

NOTES

1. There is nothing in the section specifically debarring a court martial from trying any of the offences specified in this section when committed in respect of itself. In practically all cases, however, the members will be *individually* disqualified under Rule 30 from sitting at the second trial and the court martial must, therefore, virtually be deemed to be debarred from trying an offence in respect of itself.

A commanding officer cannot, except with the sanction of superior authority, or in a barb emergency, try by summary court martial an offence under this section committed against his own authority when sitting at another trial.

2. For manner of dealing with similar offences by persons *not* subject to this Act, *see* Rule 133 and Notes.

3. A court martial begins to sit from the time the members take their seat for purposes of trial, even before they arc sworn, and anything which would be a contempt after the court was sworn would be a contempt once the members have so taken their seats.

4. Clause (a).—The clause does not deal with persons subject to the Act who fail to attend when required by court martial to appear as witnesses. A wilful omission to attend will be punishable as disobedience of a lawful command.

50. False statement before court martial.— Any person subject to this Act who, having been duly sworn or affirmed before any court martial or other military court competent under this Act to administer an oath or affirmation, makes any statement which is false and which he either knows or believes to be false or does not believe to be true, shall, on conviction by court martial, be punished with rigorous imprisonment for a term which may extend to ten years, or with such less punishment as in this Act mentioned.

NOTES

1. The proceedings of the court martial or the court of inquiry before which the false evidence is alleged to have been given are not admissible as evidence that the accused gave evidence as charged. The member of the court who recorded the proceedings, or some other

person who heard the evidence given, must prove by oral evidence this fact and that the accused was duly sworn or affirmed. He may refer to the proceedings to refresh his memory. The proceedings of the court are admissible to prove that the occasion on which the alleged false statement was given was a properly constituted court martial or a court of inquiry.

2. To secure a conviction on a charge under this section, it is necessary to show that the accused intentionally gave false evidence, which he knew or believed to be false or did not believe to be true. An error or unintentional mistake would not justify a conviction.

51. Irregular confinement.–Any person subject to this Act who,—

(1) without lawful excuse, detains a person in arrest or confinement without bringing him to trial or fails to bring his case before the proper authority for investigation; or

(2) having committed a person to custody, fails without reasonable cause to deliver at the time of such committal, or as soon as practicable, and in any case within twenty-four hours thereafter, to the officer or other person into whose custody the person arrested is committed, an account in writing signed by himself of the offence with which the person so committed is charged;

shall, on conviction by court-martial, be punished with rigorous imprisonment for a term which may extend to two years or with such less punishment as is in this Act mentioned.

NOTES

1. *Clause* (1)—w*ithout lawful excuse.* In support of a charge laid under this section, the prosecutor must prove the facts which either show or enable the court to infer that the accused could have brought the person under arrest or in confinement to trial or brought his case before the proper authority for investigation. If these are proved, the court may infer that the detention in arrest or confinement was without lawful excuse.

2. *Clause* (2)—*Without reasonable cause.* In support of a charge under this clause, the prosecutor must prove the facts which either show or enable the court to infer that the accused could have delivered the account *in writing* of the offence committed by the person detained in custody.

3. *See* also Sections 73, 74 and 75.

52. Unbecoming behaviour.— Any officer, junior commissioned officer or warrant officer, who behaves in a manner unbecoming his position and the character expected of him shall, on conviction by court martial, be liable to be dismissed from the service or to suffer such less punishment as is in this Act mentioned.

NOTES

1. This section does not apply to civilians who become subject to the Act under Section 2(1) (*c*).

2. The offence under this section must be distinguished from the offence or disgraceful conduct of cruel, indecent or unnatural kind under Section 41 (*c*). Unbecoming behaviour may be of military or social character, but a charge under this section ought not to be preferred in respect of unbecoming behaviour of social character, unless it is of so grave a nature as to warrant dismissal. The criterion is whether or not the accused's behaviour is likely to bring grave scandal to the army.

3. As a rule charge under this section should not be preferred where the act or omission amounts to any one of the specific offences created by the other penal sections. The conduct is not brought within the scope of this section by merely applying to it the statutory language; and a court will not be justified in convicting unless of the opinion that the conduct proved was unbecoming to the character and position expected of the accused.

4. This section is frequently invoked in cases where the offender has given cheques which are returned by his bank because there were no funds to meet them. Such a charge should only be preferred where it is clear from the evidence from the bank that the offender acted in such a reckless manners as is tantamount to fraud.

Where a charge in connection with a cheque is preferred under this section, it is desirable to prefer an alternative charge under Section 55.

In charges of giving dishonoured cheques, evidence must always be given as to the state of accused's banking account.

53. Striking or ill-treating person subject to the Act.— Any person subject to this Act who strikes or ill-treats any person subject to

this Act being his subordinate in rank or position shall, on conviction by court martial, be punished with rigorous imprisonment for a term which may extend to five years or with such less punishment as is in this Act mentioned.

54. Unlawful detention of pay.—Any officer, junior commissioned officer, warrant officer or non-commissioned officer who, having received the pay of a person subject to this Act, unlawfully detains or refuses to pay the same, when due, shall, on conviction by court martial, be liable to be punished with rigorous imprisonment for a term which may extend to seven years or with such less punishment as is in this Act mentioned.

NOTE

This section is a corollary to Section 64, which provides that the pay of a person subject to the Act must be paid without any deductions other than deductions authorised by law.

55. Violation of good order and discipline.—Any person subject to this Act who is guilty of any act, conduct, disorder or neglect to the prejudice of good order and of military discipline shall, on conviction by court martial, be punished with rigorous imprisonment for a term which may extend to five years, or with such less punishment as is in this Act mentioned.

NOTES

1. In a charge under this section the court must be satisfied that the accused has committed the act, conduct, etc., alleged in the particulars and also that such act is prejudicial both to good order and military discipline. If they are not satisfied on both these points, the accused should be acquitted.

2. No hard and fast rules can be laid down and it must be for the court to decide under the particular circumstances of each case whether the act, etc., charged was prejudicial to good order and military discipline. For example, in the case of an officer passing a worthless cheque at a shop, it is not essential that other persons subject to military law are directly affected by it. Other officers may be indirectly affected by this conduct which might tend to make tradesman less inclined to give credit to officers. Military discipline requires a certain standard of honour and reasonable care on the part of officers in their dealings with all persons and if such standard is not observed it will not only lower the credit of

service generally, but by diminishing the prestige and authority of those concerned, will prejudicially affect their power of administering discipline.

3. Neglect to be punishable under this section must be blameworthy. If neglect is wilful, *i.e*., intentional, it is clearly blameworthy. If it is caused by an honest error of judgment and involves no lack of zeal and no element of carelessness, or intentional failure to take the proper action, it is clear that it is blameless and cannot be a ground for conviction. A court trying such a case must consider the whole circumstances of the case and in particular the responsibility of the accused. For example, a high degree of care is rightly demanded of an officer or soldier who is in-charge of an armoured vehicle or an aircraft or is responsible for its condition or who is handling explosives or other highly inflammable material, where a slight degree of negligence may involve danger to life. In such circumstances a small degree of negligence might be so blameworthy as to justify conviction and punishment. On the other hand, such a slight degree of negligence resulting from forgetfulness or inadvertence in relation to a matter that does not rightly demand a very high degree of care would not be judged so blameworthy as to justify conviction and punishment.

4. *Good order.*—The words are wide enough to include good order in the sense in which the words would be understood in civil life and applicable to civilians and in the sense in which they would be understood in military life as applicable to a member of military force. It is not sufficient to prove that the act etc., is prejudicial to good order but it must also be proved that the act was prejudicial to military discipline. For example, an officer on leave away from his unit and in civilian clothes who creates a disturbance in a public place might have committed an act to the prejudice of military order but not necessarily to the prejudice of military discipline. On the other hand, once it is established that the conduct, etc., was prejudicial to military discipline it is also prejudicial to good order in the military sense.

Military discipline.— In ascertaining the meanings of the words the court must bear in mind that it is the duty of *all* ranks to uphold the good reputation of the army. Any conduct which amounts to a failure in that duty by an individual soldier will prejudice military discipline.

5. A person subject to the Act cannot be charged with an offence under this section for an act or omission which is a specific offence under any of the other sections of the Act. It is the duty of the commanding and convening officers to satisfy themselves that the conduct etc., alleged

does not amount to one of the offences specified in the other sections. If either fails to do so he will be responsible for contravening the Act, notwithstanding the fact that the accused's conviction on some other charge may not be necessarily invalidated.

6. The Act recognises no such offence as making a frivolous complaint but the repetition of baseless complaints may amount to an offence under this section. So, too, may be complaint so framed as to be offensive or indicative of insubordination. Examples of all offences which are commonly charged under this section are:–

(*i*) Giving a cheque and failing to take reasonable steps to see that it is honoured.

(*ii*) Being in improper possession of public property, the property belonging to a person subject to military law.

(*iii*) Being in some place away from his unit when his duty requires to be within his unit.

(*iv*) Improperly borrowing money from subordinates but not from civilians.

(*v*) Being in improper possession of a leave pass knowing it not to be genuine.

(*vi*) Wearing badges of rank to which he was not entitled.

(*vii*) Being unfit for duty by reason of previous indulgence in alcohol.

(*viii*) Improper use of Government vehicle and petrol.

(*ix*) Giving false evidence at a Naval or Air Force court martial.

(x) Negligently handling a fire-arm.

(*xi*) Negligently driving a Government vehicle.

(*xii*) Gambling and other cases of disobedience of regulations, which are not standing or routine orders.

(*xiii*) Standing a falsehood to a superior officer.

(*xiv*) Using criminal force to a comrade.

56. Offences relating to aircraft.—Any person subject to this Act who,—

(*a*) voluntarily or negligently damages, destroys or loses any service aircraft or aircraft material; or

(*b*) is guilty of any act or omission likely to cause such damage, destruction or loss; or

(*c*) without due authority disposes of any service aircraft or aircraft material; or

(*d*) is guilty of any act or omission in flying or in the use of any aircraft, or in relation to any aircraft, or aircraft material which causes or is likely to cause loss of life or bodily injury to any person; or

(*e*) during a state of war, voluntarily and without proper occasion or negligently causes sequestration, by or under the authority of a neutral State, or the destruction in a neutral State, of any service aircraft,

shall, on conviction by court martial, be punished,

if he has acted voluntarily, with rigorous imprisonment for a term which may extend to fourteen years or with such less punishment as is in this Act mentioned; and

if he has not acted voluntarily, with rigorous imprisonment for a term which may extend to five years or with such less punishment as is in this Act mentioned.

Explanation.–In this section, "aircraft" includes aeroplanes, balloons, kite balloons, airships, gliders or other machines for flying and “aircraft material” includes any engines, fittings, guns, gear, instruments or apparatus for use in connection with aircraft, and any components and accessories of aircraft, and petrol or any other substance used for providing motive power for aircraft, and lubricating oil.

NOTES

1. *Clauses* (*a*) *to* (*e*).—*Aircraft* includes aeroplanes, balloons, kite balloons, airships, gilders or other machines for flying.

Aircraft material includes any engines, fittings, guns, gear, instruments or apparatus for use in connection with aircraff and any components and accessories of aircraft.

2. *Clause (a).—(i) Voluntarily* means merely that the accused was willing to do the act charged; it is not necessary to show that he volunteered to do it or that he wished to do it. In the absence of evidence that compulsion was applied, the court may find that the accused acted voluntarily.

For the definition of the word 'voluntarily', *see* Penal Code Section 39.

(*ii*) Negligently.–*See* note 3 to Section. 55.

(*iii*) If an accused is charged with voluntarily damaging an aircraft or aircraft material, he may be found guilty of negligently damaging it, see Section 111 (5).

3. *Clause* (*c*),— *without due authority.* When *prima facie* evidence negativing authority is given, a court may convict in the absence of explanation from the accused.

4. *Clause* (*e*).— (i) *Voluntarily. See* Note 2 (*i*) *above.*

(*ii*) *Negligently. See* Note 2 (*ii*) above.

57. Attempt.— Any Person subject to this Act who attempts to commit any offence "specified in this Act" [*Substituted vide Ordinance no.* XVIII of 1978] and in such attempt does any act towards the commission of the offence shall, on conviction by court martial, where no express provision is made by this Act for the punishment of such attempt, be punished,

if the offence attempted to be committed is punishable with death, with rigorous imprisonment for a term which may extend to fourteen years or with such less punishment as is in this Act mentioned; and

if the offence attempted to be committed is punishable with rigorous imprisonment, with rigorous imprisonment for a term which may extend to one half of the longest term provided for that offence, or with such less punishment as is in this Act mentioned.

NOTES

1. Attempts to commit the offences specified in the foregoing sections are, except where such attempts are specifically provided for (*e.g.,* an attempt to desert), triable under this section. Attempts to commit civil offences are not triable under this section, but are triable under Section 59.

2. *Any act towards its commission.*—There is a distinction between the preparation antecedent to an offence and the actual attempts. To constitute an attempt to commit an offence, there must be a commencement of the commission and an act done towards the commission.

58. Abatement.—Any person subject to this Act who abets the commission of any offence "specified in this Act" 1978 or of any offence punishable under the Air Force Act, 1932 (XIV of 1932) "or the Air Force Act, 1953" [*Added vide amendment no.* 4/11/65] or the Navy Ordinance, 1961 (XXXIV of 1934), such offence being of the same nature as an offence "specified in this Act" [*Substituted vied Ordinance No* XVIII of 1978], shall, on conviction by court martial, be punished with the punishment provided for such offence in this Act or in the Air Force Act, 1932 or in the Navy Ordinance, 1961, as the case may be or with such less punishment as is in this Act mentioned.

NOTE

For definition of abatement *see* Section 107 of the Penal Code, in Part III.

A person subject to the Army Act who abets a person subject to the Air Force Act or the Navy Ordinance in doing a thing which is an offence under either of those Act and is of the same nature as an offence punishable under Army Act, is punishable under this section.

59. Civil offences.— (1) Subject to the provisions of sub-section (2), any person subject to Act who at any place in or beyond Bangladesh commits any civil offence shall be deemed to be guilty of an offence against this Act and, if charged therewith under this section, shall be liable to be dealt with under this Act, and, on conviction, to be punished as follow, that is to say,—

(*a*) if the offence is one which would be punishable under any law in force in Bangladesh with death or with transportation, he shall be liable to suffer any punishment other than whipping

assigned for the offence by the aforesaid law or such less punishment as is in this Act mentioned; and

(*b*) in any other case, he shall be liable to suffer any punishment other than whipping assigned for the offence by the law in force in Bangladesh or with rigorous imprisonment for a term which may extend to five years or with such less punishment as is in this Act mentioned.

(2) A person subject to this Act who commits an offence of murder against a person not subject to this Act or to the Air Force Act, 1932, (XIV of 1932) or the Air Force Act, 1953 [*Added vide amendment no.* 4/11/65] or to Navy Ordinance 1961 or of culpable homicide not amounting to murder against such a person or of rape in relation to such a person, shall not be deemed to be guilty of an offence against this Act and shall not be dealt with under this Act [*Substituted vide amendment no.* S/VI/65] unless he commits any of the said offences,—

(*a*) while on active service, or

(*b*) at any place outside Bangladesh, or

(*c*) at a frontier post specified by the Government by notification in this behalf.

(3) The powers of a court martial or an officer exercising authority under Section 23 [*Inserted vide amendment no.* S/VI/65] to charge and punish any person under this section shall not be affected by reason of the fact that the civil offence with which such person is charged is also an offence against this Act.

(4) Notwithstanding anything contained in this act or in any other law for the time being in force, a person who becomes subject to this act by reason of his being accused of an offence mentioned in clause (d) of sub-section (1) of Section 2 shall be liable to be tried or otherwise dealt with under this Act for such offence as if the offence were an offence against this Act and were committed at a time when such person was subjected to this Act; and the provisions of this section shall have effect accordingly [*Added vide amendment no.* 9/IV/67].

NOTES

1. (i) *See* chapter VI generally and the Penal Code in Part III as to civil offences. As to the exercise of jurisdiction under this section, *see* Sections 94 and 95.

(*ii*) Subject to the restriction in sub-section (2), this section gives a court martial jurisdiction to try any person who, while subject to the Act, commits a civil offence, whether he commits such offence in or beyond Bangladesh.

(*iii*) The effect of sub-section (2) is that the offences of murder and culpable homicide not amounting to murder against a civilian [*i.e.,* a person not subject to the Army Act, 1952, the Air Force Act, 1953 and the Navy Ordinance, 1961 [*Substituted vide amendment no.* 12/1/67] and the offence of rape against such person cannot be tried by court martial unless such offences have been committed (*a*) on active service, (*b*) at any place outside Bangladesh or (*c*) at a specified frontier post.

2. As to special findings under this section, *see Section* 111 (4) and notes, providing that an accused person when tried by court-martial for a civil offence may be found guilty of certain other offences.

3. *Sub-section* (2).— (*i*) *Active Service.- See Section* 8 (1).

(*ii*) *Frontier Post specified.— See* Ministry of Defence Notification No. 151/55, dated 21st February 1955. The test is where the offence was committed and not where the trial is held. If the offence was committed at a place and in the conditions, which permit of the offence being tried by court martial, the court martial may be held at any place where courts martial may be held.

4. Certain Acts provide that no proceedings for an offence thereunder shall be instituted, except upon complaint made by order of, or under the authority of the Government–C*f.* Section 13(3) of the Official Secrets Act, 1923 in Part III. No such complaint will, however, be necessary when the accused is charged with such an offence before a court martial.

CHAPTER VI - PUNISHMENTS

60. Punishments.— Punishments may be inflicted in respect of offences committed by persons subject to this Act and convicted by court martial according to the scale following, that is to say,—

(a) death;

(b) transportation for life or for any period not less than seven years;

(c) rigorous imprisonment for any term not exceeding fourteen years;

(d) dismissal from the service;

(e) in the case of persons other than officers, junior commissioned officers or warrant officers, detention for a period not exceeding six month;

(f) in the case of warrant officers, reduction in grade of class; and in the case of non-commissioned officers, reduction to the ranks or to a lower rank;

(g) in the case of officers, junior commissioned officers, warrant officers and non-commissioned officers, forfeiture of seniority of rank; or, in the case of any of the aforesaid whose promotion depends upon length of service, forfeiture of all or any part of the service for the purpose of promotion;

(h) forfeiture of service for the purposes increased pay, or any other prescribed purpose;

(i) in the case of officers, joiner commissioned officers, warrant officers and non-commissioned officers, severs reprimand or reprimand;

(j) forfeiture, fines and stoppages as follows, namely:

(i) in the case of a person sentenced to dismissal from the service, forfeiture of all arrears of pay and allowances and other public money due to him at the time of such dismissal;

(ii) fine;

(iii) stoppages of pay and allowances until any proved loss or damage occasioned by the offence of which he is convicted is made good;

(iv) for an offence committed on active service, forfeiture of pay and allowances for a period commencing on the day of the sentence and not exceeding three months;

provided that,–

(1) a person shall not be sentenced to transportation or to be fined except in respect of an offence of which he is convicted under section 59 of this Act;

(2) where in respect of an offence under this Act there is specified a particular punishment or such less punishment as is in this Act mentioned, there may be awarded in respect of that offence instead of such particular punishment, but subject to the other provisions of this Act and regard being had to the nature and degree of the offence, any one punishment lower in the scale than the particular punishment; and

(3) an offender under this Act shall not be subject to detention for more than six months whether under one or more sentences.

NOTES

1. As to jurisdiction and powers of general, field general, district and summary courts martial, *see* Section 97, 98, and 101.

2. *Clause (a).— (i)* A sentence of death can be passed only by general or field general court martial (*see* Section 97) and then only if concurred in by, in the case of a general court martial, at least two thirds of the members and, in the case of field general court martial, all the members of the court, *see* proviso to Section 105. A direction should be added below the sentence that the provisions of Army Act Section 105. Have been complied with *[Added vide amendment No.* 12-1-67].

(ii) In awarding a sentence of death, the court must add a direction that the accused shall suffer death by being hanged by the neck until he be dead or by being shot to death, *see* Section 134.

(iii) A sentence of death may be commuted by the confirming officer under Section 124 or by the competent authority under Section 143 (1) (a).

(iv) An officer, junior commissioned officer, or warrant officer, sentenced to death must also be sentenced to be dismissed from the service Section 62(1).

3. *Clauses* (b) and (c).— (i) As to commencement of transportation and imprisonment, *see* Section 135 and as to execution of such sentences *see* Section 136 and 137.

(ii) Sentences of imprisonment, unless for one or more years exactly, should if for one month or upwards, be recorded in months. Sentences consisting partly of months and partly of days should be recorded in months and days.

(iii) An officer, junior commissioned officer or warrant officer sentenced to transportation or rigorous imprisonment must also be sentenced to be dismissed from the service.

4. *Clause* (d).— (i) As to dismissal other than by sentence of court martial, *see* Sentence 16 and 17.

(ii) For the date on which sentence of dismissal takes effect, *see* Section 152 and Rule 155.

5. *Clause (e)*.—As to commencement of sentence of detention, see Section 135 and as to execution of such sentence, *see* Section 138.

6. *Clause (f)*.— (i) A warrant officer can only be reduction from one grade or class of warrant rank to a lower grade or class of that rank but not from warrant rank to non-commissioned rank.

(ii) A non-commissioned officer may be reduced to a lower rank as non-commissioned officer or even to the ranks.

(iii) Although under Section 62 (5) a non-commissioned officer sentenced by court martial to transportation, rigorous imprisonment, detention, field punishment or dismissal from the service is, *ipso facto* reduced to the ranks, it is desirable to specify the reduction in the sentence.

(iv) Service in the lower grade, class or rank will reckon from the date of signing the original sentence, whether the punishment in question was a revised sentence, or the mitigation by the confirming officer of the more sever sentence.

7. *Clause (g).— (i) Forfeiture of seniority of rank.* The effect is that the seniority of the person in his rank alone is affected, not the period of his service in the rank. Thus, if a Sergeant who promoted to that rank on the 19th April 1948, were sentenced by court martial to take rank as if his appointment to that rank before date the 21st June 1950, he would an the latter date while having only one day's service to count for seniority, still count continuous service for all other purposes in the rank of Sergeant from the 19th April, 1948.

(ii) *Forfeiture of service for the purposes of promotion.*– This applies only in the case of officers, junior commissioned officers, warrant officers and non-commissioned officers whose promotion depends upon length of service, and a sentence can be awarded in respect of all or any part of the service. Such an award retards the promotion of the officer to the next higher rank only and not to any subsequent promotion (see example below to understand the implication of the award).

Example.— "Substantive or substantive temporary Lieutenant "X" whose date of commission is 1st February 1950 is awarded forfeiture of 6 months service for the purpose of promotion on 15th September 1952. His substantive or substantive temporary promotion to captain, provided he fulfils all after conditions regarding relevant promotion examination (where applicable) etc., will be given on completion of 6 years and 6 months service *i.e*., with effect from 1st August 1956 and NOT 1st February 1956. Thereafter, the forfeited service will be restored and the officer on fulfilment of the necessary condition be promoted to substantive or substantive temporary Major *with effect from* 1st February 1963 like other officers commissioned on the same date as this officer *i.e.,* on completion of 13 years service.

For purposes of acting/temporary promotions, the loss of 6 month service for promotion will, with effect from 15th September 1952 place Lieutenant 'X' junior to all officers commissioned between 1st February 1950 and 31st July 1950, only for the duration the award is operative *i.e*., up to 31st July 1956, During this period he will take seniority from 1st August 1950 and will be eligible for acting/temporary promotions accordingly. On or after 1st August 1956, Lieutenant 'X' will be considered for higher acting temporary rank on the basis of his original seniority *i.e.,*

1st February 1950. This will NOT mean that an officer who has already superseded Lieut. 'X' in the matter of grant of acting/temporary rank will be necessarily demoted to make room for Lieutenant 'X' on or after 1st August 1965. This will be within the discretion of the authority sanctioning to that acting/temporary rank as all acting/temporary promotions are granted on the basis of seniority-*cum*-suitability."

The forfeiture does not affect the seniority of the officer etc., in the rank he holds at the time the sentence is passed.

8. *Clause (h).*— *Prescribed purpose*. *See* Rule 160.

9. *Clause (i).* Although acting or lance rank is not cognisably in the sentence of a court martial, a soldier any such rank, being a non-commissioned officer, may be sentenced by court martial to be severely reprimanded or reprimanded.

10. *Clause (j)–(i)* and *(iii).* Section 65 sets out the cases in which penal deductions may be made from the pay and allowances of a person subject to the Act.

An award to compensate for loss or damage is termed "stoppages" Forfeiture of pay and allowances etc., award able under *(j) (i)* when the offender is dismissed is a substantive punishment and does not compensate the party injured by his offence. If, in such a case, a court wishes to award compensation to the injured party as well as to cause the offender to lose all arrears of pay and allowances etc., they should sentence him to stoppages under *(j) (iii)* and to forfeiture of all arrears of pay and allowances under *(j) (i).*The stoppages will first be satisfied from any pay and allowances or public money due to him (*see* Section 67) and the remainder (if any) will be forfeited to the State under the sentence.

A court martial acting under *(j) (iii)* will simply sentence the offender to stoppages to a certain extent. The officer enforcing the sentence will be guided by the proviso to Section 65(2) and Section 67; *i.e.,* he will stop (unless the offender is sentenced to dismissal) half his pay and allowances and the whole of any prize money, gratuity or similar sum (not pay and allowances) due to him, until the compensation awarded in the sentence is complete. No portion of the pay and allowances of a person sentenced to dismissal is protected and the whole of such a person's pay and allowances can, if necessary, be withheld.

11. *Clause (j) (ii).*— See proviso (1) to the section.

12. *Clause (j) (iv)*.—The forfeiture commences from the date of award and applies to all pay and allowances. Any other stoppages of pay and allowances which the offender may be under are suspended during the period of the forfeiture.

13. *Proviso (2)*.— *Subject to the other previsions of this Act. See Section* 62 which specifies the particular instances in which more than one punishment may be awarded.

61. Field punishment.— (1) Where any person subject to this Act, being below the rank of warrant officer, commits any offence on active service, it shall be lawful for a court martial to award for that offence any such punishment, other than flogging, as may be prescribed as a field punishment. Field punishment shall be of the character of personal restraint or of hard labour but shall not be of a nature to cause injury to life or limb.

(2) Field punishment shall, for the purpose of commutation, be deemed to stand next below detention.

NOTES

1. *Sub-section (1)*.—For the prescribed from of field punishment, see Rule 156. A court martial, may award field punishment on active service only [Section 7 and 8 (1)] for a period not exceeding three months. As term of field punishment commences from the date of award.

2. *Sub-section (2)*.— Field punishment can, therefore, be commuted to any punishment lower than detention in the scale contained in Section 60. Only sentences of death, transportation, rigorous imprisonment, dismissal or detention can be commuted to field punishment and than only if the offender is under the rank of warrant officer and the offence is committed on active service.

62. Special professions regarding sentences.— Where an officer, junior commissioned officer or warrant officer is sentenced to death, transportation or rigorous imprisonment, the court shall, by its sentence, sentence such officer, junior commissioned officer or warrant officer to be dismissed from the service.

(2) A person subject to this Act, being below the rank of warrant officer who is sentenced to transportation or rigorous imprisonment, may, in addition thereto, be sentenced to be dismissed from the service.

(3) A officer, junior commissioned officer, warrant of non-commissioned officer, when sentenced of forfeiture of seniority of rank of service for the purposes of promotion or to forfeitures of service for the purposes of increased pay, or any other prescribed purpose, may, in addition thereto, be sentenced by court martial to be severely reprimanded or reprimanded.

(4) In addition to, or without any other punishment, in respect of any offence, an offender may be sentenced by court martial, to any forfeiture, fine or stoppages authorised by this Act.

(5) A non-commissioned officer sentenced by court martial to transportation, rigorous imprisonment, detention, field punishment or dismissal from the service shall be deemed to be reduced to the ranks.

NOTES

1. *Sub-section* (1). Where the court fail to add the sentence of dismissal, they must be asked to revise their sentence.

2. *Sub-section* (2). If the court fail to add the sentence of dismissal and transportation or imprisonment is not commuted to detention, the commanding officer must, in all cases of transportation and in suitable cases of imprisonment (e.g., imprisonment in civil prison) apply for the offender's dismissal under Section 16 or 17.

3. *Sub-section* (5). See Note 6 (iii) to Section 60. Although under this sub-section a non-commissioned officer holding substantive rank, when sentenced to one of the punishments specified is, *ipso facto,* reduced to the ranks, it is desirable to specify the reduction in the sentence.

63. Retention in the ranks of person convicted on active service.— When, on active service, any person enrolled under this Act has been sentenced by court martial to dismissal from the service or to transportation or rigorous imprisonment whether combined with dismissal or not, the prescribed officer may direct that such person may be retained to serve in the ranks, and where such person has been sentenced to transportation of rigorous imprisonment, such service shall be reckoned as part of his term of transportation or rigorous imprisonment.

NOTE

A person can only be retained to serve in the ranks under this section while he is on active service and the order must be made before the sentence of dismissal has taken effect (*See* Rule 155). The dismissal is not avoided but is merely suspended so long as the person is retained to serve in the ranks. If it is subsequently desired to retain the person in the service, the dismissal must be remitted.

Prescribed officer, see section Rule 160A" [*Added vide amendment* No. 6-1-65].

CHAPTER VII.— PENAL DEDUCTIONS

64. Authorised deductions only to be made from pay.—The pay and allowances of an officer, junior commissioned officer, warrant officer or of any person enrolled under this Act shall be paid without any deduction authorised by or under this Act or any other law for the time being in force.

NOTES

1. It is illegal to make deduction which are not authorise and the unlawful withholding of pay is an offence under Section 54.

2. *Under this Act.—See* Rule 161.

3. Any other law *e.g.*, Income Tax Act.

65. Deductions from pay and allowances.— (1) The following penal deductions may be made from the pay and allowances of an officer, that is to say,—

(a) all pay and allowances for everyday he absents himself without leave, unless a satisfactory has been given to his commanding officer or other superior officer and has been accepted by the Government;

(b) all pay and allowances for everyday while he is in custody or under suspension from duty on a charge for an offence of which he is afterwards convicted by a criminal court or a court martial or by an officer exercising authority under Section 23;

(c) any sum required to make good the pay of any person subject to this Act which he has unlawfully retained or unlawfully refused to pay;

(d) all pay and allowances ordered by a court martial or by an officer exercising authority under Section 23 to be forfeited or stopped;

(e) any sum required to pay a fine awarded by a criminal court or a court martial exercising jurisdiction under Section 59;

(f) any sum required to make good any loss, damage or destruction of any public or service property which, after due investigation, appears to the Government to have been occasioned by any wrongful act or negligence on the part of the officer;

(g) all pay and allowance forfeited by order of the Government if the officer is found by a court of inquiry, constituted in this behalf by the Chief of Army staff to have deserted to the enemy, or while in enemy hands, to have served with or under the orders of the enemy, or in any manner to have aided the enemy, or to have allowed himself to be taken prisoner by the enemy through want of due precaution or through disobedience of orders or wilful neglect of duty, or having been taken prisoner by the enemy to have failed to rejoin his service when it was possible to do so;

(h) any sum which a criminal court or the Government orders him to pay for the maintenance of his wife or his child, legitimate or illegitimate.

(2) The following penal deductions may be made from the pay and allowances of a person subject to this Act other than an officer, that is to say,—

(a) all pay and allowances for everyday of absence without leave or as a prisoner of war, and for everyday of transpiration, imprisonment or detention awarded by a criminal court, a court martial, or an officer exercising authority under Section 23 or of field punishment awarded by court martial, or such officer;

(b) all pay and allowances for everyday while he is in custody or under suspension from duty on a charge for an offence of which he is afterwards convicted by a criminal court or a court martial, or on a charge of absence without leave for which he is afterwards awarded imprisonment, detention or field punishment by an officer exercising authority under Section 23;

(c) all pay and allowances for everyday on which he is in hospital on account of sickness certified by the medical officer attending on him to have been caused by an offence under this Act committed by him;

(d) for everyday on which he is in hospital on account of sickness certified by the medical officer attending on him to have been caused by his own misconduct or imprudence, such sum as may be specified by order of the Government or of the prescribed officer;

(e) all pay and allowances ordered by a court martial or by an officer exercising authority under Section 23 to be forfeited or stopped;

(f) all pay and allowances for everyday between his being recovered from the enemy and his dismissal from the service in consequence of his conduct when being taken prisoner by, of while in the hands of, the enemy;

(g) any sum required to make good such compensation for any expense, loss, damage or destruction caused by him to the Government or to any building or property as may be awarded by his commanding officer;

(h) any sum required to pay a fine awarded by a criminal court, a court martial exercising jurisdiction under Section 59 or an officer exercising authority under Section 23;

(i) any sum which a criminal court, the Government or any prescribed officer orders him to pay for the maintenance of his wife or his child, legitimate or illegitimate;

provided that the total deductions from the pay and allowances of a person under clauses (e), (g), (h) or (i) shall not, except where he is sentenced to dismissal, exceed in any one month one half of his pay and allowance for that month.

Explanation.— For the purposes of clauses (a) and (b):

(i) no person shall be treated as absent of in custody unless the absence or custody has lasted for six hours or upwards (except where the absence or custody prevents the absentee from fulfilling any military duty which is thereby thrown on some other person);

(ii) absence or custody for six consecutive hours or upwards whether wholly in one day or party in one day and partly in another may be reckoned as absence or custody for a day;

(iii) absence or custody for twenty-four consecutive hours or upwards may be reckoned as absence or custody for the whole of each day during any portion of which the person was absent or in custody;

(iv) for the purposes of this explanation "custody" includes custody on a charge for an offence of which a person is afterwards convicted, and any period in custody of any nature, under a sentence of transportation, rigorous imprisonment, detention or field punishment.

NOTES

1. (i) The section states the penal deductions which may be made from the pay and allowances of a person subject to the Act; it is permissive, not mandatory.

(ii) As to deductions actually made within the limits of the section, see paras 198 etc., of pay and Allowances Regulations Volume I, Revised Edition and as to remissions, see Section 69 and Rules 164.

Other deductions which may be lawfully made are set out in Rule 161. They are limited to deductions which are not penal under this section.

2. The term "pay" means the rate of pay with increases, increases, if any for length of service to which a person subject to the Act is entitled by reason of his ranks, appointment, trade classification, and includes additional remuneration such as corps pay, engineer pay, proficiency pay, and the various forms of additional pay. All other emoluments are "allowance".

3. *Sub-section* (1), Clause (a).— (i) If pay has been drawn during a period of absence without leave, such pay is forfeited under this clause; if pay has been drawn during the period of absence without leave, the amount may be recovered under Rule 161. As to the method of calculating the duration of absence for the purpose of deductions under this clause, see Explanation at the end of the section.

(ii) It is not necessary for an officer to be found guilty of absence before any forfeiture of pay for the period of absence can be enforced under this clause.

4. *Clause* (b).—See also Section 66.

5. *Clause* (c).—See also Section 54 which makes unlawful retention of pay an offence, but it would not be necessary for an officer to be convicted of an offence under that section before a deduction under this clause can be made.

6. *Clause* (e) is a corollary to clause (j) (ii) of section 60.

7. *Clause* (f).— (i) *Occasioned by.* The loss must be the natural and reasonable consequence of the wrongful act or negligence of the officer. It is not sufficient to show merely that the loss was facilitated or made possible by such act or negligence, though in such circumstances recovery may be effected as a public claim under Rules 161.

(ii) It must be shown to the satisfaction of the Government that there has beet a loss etc., occasioned by [in the sense referred to Note 7(i)] some wrongful act or negligence on the part of the officer. As a general rule, an officer is first afforded an opportunity of advancing any reasons why a deduction should not be made. The Government can legally impose a penal deduction on an officer under this clause notwithstanding that he has been dealt with under Section 23 “or by court martial” [*Added vide amendment no. 5/11/76*] for the wrongful act or negligence but they may not increase a penal deduction awarded by a court martial "or by an officer exercising authority under Section 23" [*Added vide amendment no. 5/11/67*]. An invitation to an officer to make a payment towards any loss or damage occasioned by his wrongful act or neglect does not bar the Government from making an order under this clause.

(iii) *Negligence* has the same meaning as neglect under Section 55 Note 3 under that section.

8. *Clause (g).*—The clause is intended to punish an officer who misconduct's while taken prisoner or while in the hands of an enemy (See also Section 68).

9. *Clause (h).*—The clause is restricted to orders of criminal court *e.g.,* in proceedings under Section 488 of the Code of Criminal Procedure. But where the Government are satisfied as to the genuineness of a wife's or child's claim to maintenance, they may order deductions to be made from pay of the officer for such maintenance irrespective of whether or not an order under Section 488 of the Code of Criminal Procedure has been made, though in case of an order by court, amount of deductions must be restricted to the terms of the order.

10. *Sub-section (2), Clause (a).*— (i) See Note 2 above. The pay and Allowances Regulations provide for the cases in which the pay is to be forfeited under these clauses and no discretion is given to the commanding officer whether or not to enforce wholly or partially the forfeiture (See Section 69 and Rule 164 as to remission of deductions).

(ii) it is *not necessary* for a solder to be found guilty of absence before any forfeiture of pay for the period of absence can be enforced under this clause.

(iii) Absence as a prisoner of war need not necessary entail a forfeiture of pay unless a Court of Inquiry are satisfied that the soldier was taken prisoner through neglect or misconduct on his own part or that he misbehaved while in the hands of the enemy (See also Rule 161). As to the reckoning of days of absence see Explanation at he end of the section.

11. *Clause* (b).— See Section 66.

12. *Clause* (c).—The deduction of pay and allowances for days in hospital is only authorised where the sickness is caused by an offence of which the person has been found guilty. The medical officer must attend the investigation of the offence whether before the court martial or the commanding officer and give evidence in substantiation of the facts contained in his certificate.

13. *Clause* (d).—The certificate of a medical officer to the effect that the sickness was caused by the soldier's own misconduct or imprudence is sufficient for ordering deductions under this clause. The sum to be deducted for everyday of absence on account of sickness in hospital is specified in Pay and Allowances Regulations.

"Prescribed officer, *See* Rule 162" [*Added vide amendment no. 7/1/65*].

14. *Clause* (e).— (i) No compensation can be awarded by a court martial under this clause unless the grounds for awarding it are stated in the particulars of the charge and proved in evidence. If values are not stated in the charge, stoppages are illegal.

(ii) For the purposes of trial, the amount of compensation will be estimated as follows:–

When an article which has an official value has been lost or rendered unserviceable, a witness is required who can prove the value (inclusive of authorised departmental expenses) of the article at the time of loss upon a basis of its age and, or condition and by reference to the regulations, which should be produced, for fixing the value of the article at that age or in that condition.

When the article has not an official value, competent evidence is required to prove the approximate value.

When an article has been damaged but not rendered unserviceable, competent evidence is required to prove the pecuniary amount of the damage, which will be either the cost of repairing it, if it cannot be repaired, or the cost of repair plus any ultimate loss of value due to the act of the accused.

Similar principles will be observed if the case is disposed of summarily under Section 23.

15. *Clause* (f).—*See* also Section 68.

16. *Clause* (g).— (i) The commanding officer can order deductions under this clause whenever the person concerned has caused any expense to the Government. Losses caused to Governments cannot form the subject of deductions under this clause, unless the loss has first been made good by the Government.

(ii) The word "*expenses*" is not limited to public or service funds and property but would also extend to, *e.g.,* loss of wages and doctor's expenses incurred by a civilian as the direct result of the offence of which the accused is convicted. But occasions will rarely arise when it is advisable for a military tribunal to exercise its power of awarding a penal deduction to compensate a civilian who has always his proper legal remedy of bringing a civil action for recovery of damages. Stoppages should, however, be awarded where a charge of theft of or damage to the property of a civilian has been dealt with by a court martial or summarily.

(iii) A person is not liable for the ordinary expenses of his prosecution, capture or conveyance or indirect expenses of similar kind. Nor would he be liable under this clause for damage to a policeman's clothes because the policeman fell down and damaged them while in pursuit of the person endeavouring to escape. Where a person refuses to march, being able to do so, and a cab has to be hired for his conveyance, he may be held liable for the expenses thus incurred buy his contumacy ; but he would not be liable if intoxicated and incapable of walking.

(iv) *Caused by*. These words have the same meaning as the expression "*occasioned by*", See Note 7 above.

(v) *Any building or property*. The building or property need not be public building or property; the words include the buildings or property of officers, soldiers or civilians, whether there is any claim against the public

or not. Thus, a commanding officer may order a man to pay damages for a broken window, or other slight damage done by him. A case of serious damage is, of course, not one which a commanding officer should dispose of summarily.

(vi) Where a person has been convicted by a court-martial "or by an officer exercising authority under Section 23" [*Added vide amendment No. 6/11/67*] of an offence, his commanding officer cannot subsequently award compensation for damage cause through that offence.

(vii) A junior commissioned officer may be awarded stoppages by his commanding officer under this clause.

(viii) If a person is sentenced to stoppages for losing by neglect articles of his clothing or equipment, and these articles are afterwards found and in serviceable condition, he has made good the loss.

Where two persons are convicted of having jointly injured property, each should be sentenced to make good the whole amount of the injury sustained and in the event of one person dying or otherwise ceasing to be amenable to the award, the whole amount may legally be levied upon the other. Where, however, both remain amenable, the stoppages would properly be divided between them in equal proportions. The principle being that stoppages are intended, not for punishment, but to compensate for the loss sustained.

17. *Clause* (i).—*See* Note 9 above.

(ii) *Prescribed officer*.—*See* Rule 162

18. The explanation at the end of this sub-sections states how days of absence, etc., are to be calculated for the purposes of clauses (a) and (b).

66. Pay and allowances during trial.— In the case of a person subject to this Act who is in custody or under suspension from duty on a charge for an offence, the prescribed officer may direct that the whole or any part of the pay and allowances of such person shall be withheld, pending the result of his trial, on the charge against him, in order to give effect to the provisions of clause (b) of sub-section (1) or sub-section (2) of Section 65.

NOTES

1. This section is a corollary to Section 65 (1) (b) and 65 (2) (b).

2. *Prescribed officer.*— Chief of Army staff shall be the prescribed officer in the case of an officer and in the case of a person other than an officer the officer empowered to convene court martial for his trial (*See* Rule 163).

67. Deduction from public money due, other than pay.— Any sum authorised by this Act to be deducted from the pay and allowances of any person may, without prejudice to any other mode of recovering the same, be deducted from any public money due to him other than a pension.

NOTE

This section will allow the amount to be deducted from a gratuity, or other sums earned but not paid to an officer or soldier. It would not include money lodged in a fund of whatever description.

68. Power to withhold pay and allowances pending inquiry into conduct as prisoner of war.— Where the conduct of any person subject to this Act, when being taken prisoner by or whilst in the hands of the enemy, is to be inquired into under this Act or any other law for the time being in force, the Chief of Army Staff or any officer empowered by him in this behalf may order that the whole or any part of the pay and allowances of such person shall be withheld the result of such inquiry.

NOTE

See Section 72.

69. Remission of deductions.— Any deduction from pay and allowances authorised by this Act may be remitted in such manner, to such extent and by such authority as may be prescribed.

NOTES

1. *Authority prescribed.*— *See* Rule 164. The most common case is that of a man absent without leave for a short period. In such a case unless the person is convicted by court martial, his commanding officer may remit the forfeiture of pay and allowances which his absence entails [*See* Section 65 (2) (a)].

2. *To such extent.*—The remission may be partial; but there is nothing to prevent a further remission being made later.

70. Provision for dependants of prisoner of war from remitted deduction.— In the case of a person subject to this Act being prisoner of war, whose pay and allowances have been forfeited under clause (g) of sub-section (1) or clause (a) of sub-section (2) of Section 65 but in respect of whom a remission has been made under Section 69 it shall be lawful for proper provision to be made by the prescribed authority out of which pay and allowances for any dependants of such a person and any such remission shall in that case be deemed to apply only to the balance thereafter remaining of such pay and allowances.

NOTE

Prescribed authority.—See Rule 165 and Section 72.

71. General power to make provision for dependants.—In the case of a person subject to this Act, it shall be lawful, for proper provision to be made by the prescribed authority for any dependants of any such person who is a prisoner of war or missing out of his pay and allowances.

NOTE

Prescribed authority.—See Rule 165 and Section 72.

72. Period during which a person is deemed to be a prisoner of war.— For the purposes of Sections 70 and 71 a person shall be deemed to continue to be a prisoner of war until the conclusion of any inquiry into his conduct such as is referred to in Section 68 and if he is dismissed from the service in consequence of such conduct, until the date of dismissal.

CHAPTER VIII. — ARREST AND PROCEEDINGS BEFORE TRIAL

73. Custody of offenders.— (1) Any person subject to this Act who is charged with any offence may be taken into military custody.

(2) Any such person may be ordered into military custody by any superior officer, or except in the case of a person subject to this Act as an officer, by any member of the military, naval or air force police.

(3) An officer may order into military custody any officer, though he may be of a higher rank, who is engaged in a quarrel, affray or disorder.

NOTES

1. (i) as to arrest and investigation of charges, generally *See* Part I, Chapter III and Rules 13, 14, 15, also Section 79 (3).

(ii) *Military custody* means the arrest or confinement of a person according to the usages of the service.

(iii) *Superior Officer.— See* Section 8 (15).

2. Sub-section (1) and (2).—The "charge" referred to in these sub-sections and in Rules 13 and 15 is distinct from that referred to in Rule 19. The latter is the formal charge preferred by the commanding officer and set out in the written charge sheet if and when it is decided to send the accused for trial. The former is simply a complaint that and offence has been committed.

3. Sub-section (2).— Despite Section 77 there is no need for a person arrested under that section to be taken before the nearest magistrate. Where military authorities are accessible, such a person may be handed over by the civil authorities concerned to any superior officer or any member of the military police, who can then act under this section.

74. Duty of Commanding Officer in regard to person in custody.— Every commanding officer shall take care that a person under his command when charged with an offence is not detained in custody for more that forty-eight hours after the committal of such person into custody is reported to him, without the charge being investigated, unless investigation within that period seems to him to be impracticable having due regard to the public service. Every case of a person detained in custody beyond a period of forty-eight hours and the reason therefore

shall be reported by the commanding officer to the officer to whom application is to be made to convene a general or district court martial for the trial of the person charged:

Provided that in reckoning the period of forty-eight hours all public holidays shall be excluded.

NOTES

1. For definition of c*ommanding officer, see* Section 8 (4).

2. The section applies in the case of officers as well as soldiers.

3. Investigation must be commenced within the time specified, though it may be impossible to complete it within that time.

4. The report should be made by letter and should refer specifically to the cause and state the reasons justifying the detaining of the accused in custody and preventing the investigation. The absence of an important witness would justify a remand; or the accused maybe ordered to return to his duty with a distinct intimation that his case will be investigated as soon as the absent witness is available.

75. Interval between committal and court martial.— In every case where any such person as is mentioned in Section 73 and as is not on active service remains in custody for a longer period than night days, without a court martial for his trial being ordered to assemble, a special report giving reasons for the delay shall be made by his commanding officer in the manner prescribed and a similar report shall be forwarded at intervals of eight days until a court martial is assembled or such person is released from custody.

NOTE

Manner prescribed.—See Rule 166.

76. Arrest by civil authorities.—Whenever any person subject to this Act, who is accused of any offence under this Act, is within the jurisdiction of any magistrate or police officer, such magistrate or police officer shall and in the apprehension and delivery to military custody of such person upon receipt of a written application to the effect signed by that person's commanding officer.

77. Capture of deserters.— (1) Whenever any person subject to this Act deserts, his commanding officer shall give written information of the desertion to such civil authorities as in his opinion may be able to afford assistance towards the capture of the deserter. Such authorities shall thereupon take steps for the apprehension of the said deserter in like manner as if he were a person for whose apprehension a warrant had been issued by a magistrate, and shall deliver the deserter, when apprehended, into military custody.

(2) It shall he lawful for any police officer to arrest without warrant any person whim he reasonably believes to be subject to this Act, and to be a deserter or absentee without leave, and to bring him without delay before the nearest magistrate, to be dealt with according to law.

NOTES

1. For detailed instructions as to action to be taken by the commanding officer, *see* "Army Regulations (Instructions) 228 to 234" [*Substituted vide amendment No.* 8/1/65].

2. *Civil authorities.*—The expression is elastic and would include political and police authorities.

3. *Sub-section* (2).—*See Note* 3 to Section 73.

78. Inquiry into absence of person subject to Act.— (1) When any person subject to this Act has been absent from his duty without due authority for a period of sixty days, a court of inquiry shall, as soon as practicable, be assembled and such court shall, upon oath or affirmation administered in the prescribed manner, inquire respecting the absence of the person, and the deficiency, if any, in the property of the Government entrusted to his care, or in his arms, ammunition, equipment, instruments, clothing or necessaries; and, if satisfied of the fact of such absence without due authority or other sufficient cause, the court shall declare such absence and the period thereof and the said deficiency, if any, and the commanding officer of the corps or unit to which the person belongs shall enter in the court martial book of the corps or unit a record of the declaration.

(2) If the person declared absent does not afterwards surrender, or is not apprehended, he shall, for the purposes of this Act, be deemed to be a deserter.

NOTES

1. For procedure of courts of inquiry held under this section, *See* Rule 158.

2. In calculating the period of 60 days, the day on which the man became absent and the day on which the court assembles must both be excluded. If the court assembles a day too soon, the record of its declaration is not admissible in evidence. The person, however, should be declared illegally absent and charged with absence as from the day on which absence commenced.

3. In the event of a person subject to the Act being absent without leave for a period of 60 clear days, a court of inquiry must be assembled at once unless before such court of inquiry has been assembled it has come to the knowledge of the man's commanding officer that he has been apprehended or has surrendered. It that case on court of inquiry will be held and the facts of his absence and of the deficiency (if any) of his clothing, etc, must be proved by oral evidence at any subsequent court-martial. As to dispensing with the court to inquiry in the case of a reservist who has failed to attend for training, etc., *see* Rule 42 (4) of the Bangladesh (Army and Air Force) Reserves Rules in Part III.

4. *Prescribed Manner.*— *See* Rules 123 and 158 (5).

5. Before declaring any deficiency of arms, etc., the court will satisfy themselves by evidence that the absentee was in possession of the missing articles within a reasonable period before the date of absenting himself. It will record the values of the unexplored wear of all articles of the property of the Government including arms, equipment's, public clothing, etc., found to be deficient.

6. *The property of the Government entrusted to his care*–*i.e.* property of the Government issued to him or his use or entrusted to his care for military purposes.

A court of inquiry under this section does not inquire respecting a deficiency of public money or stores which had been in the absentee's charge.

7. The declaration of the court should contain the date and place from which the man absented himself, the date of the deficiency (if any) of clothing, etc., and the place where it occurred. Under Rule 158 and this

section the witnesses will be sworn, but not the members of the court. As to the form of declaration, *see* Notes to Rule 158; the actual values of missing articles will be stated in the declaration.

8. In order to make the record admissible in evidence it must be a record in the regimental books of the unit to which the man belonged at the time signed by the commanding officer [Section 116 (3)]. The actual proceedings of the court [which ought, under Rule 158 (3) to be destroyed as soon as recorded in the regimental books] are not admissible in evidence.

The record of the court's finding will be admissible, notwithstanding that the man had already surrendered or been apprehended, provided that such surrender or apprehension had not come to the knowledge of his commanding officer when the court assembled.

9. As soon as the declaration of illegal absence has been made and recorded, the person is struck off the strength of the unit as a deserter, but his subjection to this Act does not case and he does not cease to belong to the corps in which he is enrolled.

10. When a person who has been "struck off" as a deserter, rejoins, the commanding officer, if satisfied that the evidence does not justify a charge of desertion, may legally deal with the case as one o absence without leave.

11. As to disposal of a deserter's property, s*ee* Sections 153 and 158.

12. As to the trial of deserters, *see* Army Regulation (Rule) 315 [*Substituted vide amendment* No. 5/III/65].

78A. Inquiry into any other matter.—A court of inquiry may also be assembled in the prescribed manner to inquire into any matter which may be referred to it [*Added vide amendment No.* 5/III/65].

Provost Marshals

79. Appointment, duties and powers of provost marshals.— (1) For the prompt and instant repression of irregularities and offences committed, provost marshals with assistants may be appointed by the Chief of Army staff or by any prescribed officer.

(2) The duties of a provost marshal so appointed shall be to take charge of persons confined for any offence, to preserve good order and discipline, and to prevent breaches of the same by persons subject to this Act.

(3) A provost marshal may at any time arrest and detain for trial any person subject to this Act who commits, or is charged with an offence, and may also carry into effect any punishment to be inflicted in pursuance of a sentence awarded by a court martial, or by an officer exercising authority under Section 23 but shall not inflict any punishment on his own authority:

Provided that not officer shall be so arrested or detained otherwise than by or under the orders of an officer.

(4) For the purposes of sub-sections (2) and (3) "provost marshal" shall be deemed to include an assistant provost marshal appointed under this Act, or a provost marshal or any of his assistants appointed under the Air Force Act, 1932 (XIV of 1932), or the Air Force Act, 1953 or the Navy Ordinance, 1956 [*Substituted vide amendment No.* 9/VI/65].

NOTES

1. *Sub-section* (1).— (i) *Prescribed officer.*–*See* Rule 167.

(ii) A provost marshal or his assistant may now be appointed by the Chief of Army Staff or by the prescribed officer on active service as well as in peace.

2. *Sub-section (2) and (3).*— Provost marshal has no powers of punishment but he may carry into effect any punishment including punishment of death awarded by a General or Field General Court Martial.

3. *Sub-section (3).*— *Charged with an offence* has the same meaning as in Section 73 (1). *See* Note 2 to that section.

4. Provost marshals appointed by Air Force and Naval authorities have exactly the same powers as those appointed by the military authorities under this section.

CHAPTER IX.— COURTS MARTIAL

Constitution, Jurisdiction and Powers of Courts Martial

80. Kinds of Courts Martial.—For the purpose of this Act, there shall be four kinds of courts martial, that is to say,—

(1) general courts martial;

(2) district courts martial;

(3) field general courts martial; and

(4) summary courts martial.

81. Power to convene general courts martial.— A general courts martial may be convened by the Chief of Army staff or by an officer empowered in this behalf by warrant of the Chief of Army Staff.

NOTES

1. For form of warrant, *see* Part IV. The warrant (Form A) is at present issued by the Chief of Army Staff to Commanders of Divisions, Independent Brigades, Sub Areas, etc., etc.

2. When a warrant has been issued and its contents communicated to the addressee, he can act upon it before it is actually received by him.

3. As to the duty of an officer before convening a court, *see* Rule 28.

82. Power to convene district courts martial.— A district court martial may be convened by an authority having power to convene a general court martial or by an officer empowered in this behalf by a warrant of any such authority.

NOTES

1. For form of warrant *see* Part IV. Form B is at present issued to Commanders of Brigades and Station Commanders etc., etc.,

2. An officer who has power to convene a general court martial at a port of embarkation can issue a warrant to the officer commanding the

troops on board a ship empowering the latter to convene, during the period of the voyage, district court martial on board the ship.

83. Limitation of powers of convening authorities.—A warrant issued under Section 81 may contain such restriction, reservations or conditions as the authority issuing it may think fit.

NOTES

A warrant issued under Section 81 or Section 82 may, for example, include a direction to the effect that certain sentences are to be reserved for confirmation by certain higher authorities. For instance warrant 'A' issued by the Chief of Army Staff to Commanders of Division, Independent Brigades, Sub Areas etc., contains direction that the sentence of death awarded to any person subject to the Army Act and in the case of an officer, sentences of transportation or imprisonment or dismissal shall be reserved for confirmation by the Chief of Army Staff.

84. Power to convene field general courts martial.—The following authorities shall have power to convene a field general court-martial, namely:–

(a) an officer empowered in this behalf by an order of the Government or of the Chief Army staff;

(b) on active service, an officer commanding a portion of the Bangladesh Army, not below the rank of brigadier, if in the opinion of such officer commanding, such opinion to be recorded in writing and to be conclusive, it is not practicable with due regard to discipline and the exigencies of the service to try the alleged offender by general court martial.

NOTES

1. Clause (a).— This sub-section authorizes the government or the Chief of Army staff to empower an officer to convene an field general court martial at any place and time. The question of operational area, or field service or peace area does not arise as far as the exercise of power under this sub-section is concerned [*Substituted vide amendment No.* 6/III/65].

2. *Clause (b)*.—The power conferred by the clause is absolute and may be exercised without any warrant. But like all judicial powers, it must

be exercised judiciously and not arbitrarily and only on active service as defined in Section 8 (1) or when active service has been declared under Section 7.

85. Composition of general court martial.—A general court martial shall consist of not less than five officers each of whom has held a commission for not less than three whole years and of whom not less than four are of a rank not below that of captain.

NOTES

1. A court would have no jurisdiction if each officer had not held a commission for the required period, or if its composition differed in any respect from that detailed in the convening order.

As to the composition etc., of a general court martial, *see* Rules 30 and 31.

2. A convening officer can increase beyond the legal minimum the number of officers to sit on a general court-martial, but cannot decrease the number below the specified minimum; he must, therefore, take care to convene a court with not less than the minimum ; otherwise the proceedings are void (*See* also Section 89).

86. Composition of district court martial.—A district court martial shall consist of not less than three officers each of whom has held a commission for a continuous period or not less than two years.

NOTE

The section requires that a member of a district court martial must have held a commission for not less than two years. The court would have no jurisdiction if each member had not held a commission for that period (*See* Notes to Section 85).

87. Composition of field general court martial.— A field general court martial shall consist of not less than three officers.

NOTE

See Note 2 to Section 85.

88. Summary courts martial.— (1) A summary court martial may be held by the commanding officer of any corps or unit or any detachment thereof.

(2) At every summary court martial, the officer holding the trial shall alone constitute the court, but the proceedings shall be attended throughout by two officers, or two junior commissioned officers, or one officer and one junior commissioned officer, who shall not as such be sworn or affirmed.

NOTES

1. This court is peculiar to the Bangladesh Army. The Bangladesh Air Force have no similar court.

2. *Commanding Officer.*— [*See* Section 8 (4)]. An officer-in-charge of a medical unit is not ordinarily a commanding officer as defined in Section 8 (4). Ordinarily he cannot hold a summary court martial but if he has been specially placed in command of a unit or detachment or is the only officer present with a unit or detachment, he would be a commanding officer and can, therefore, hold a summary court martial.

Thus a medical officer commanding a hospital or other medical unit is the "commanding officer" of medical personnel under his command and is, for the time being, the “commanding officer” of a person subject to the Army Act not belonging to the medical personnel who is a patient in that hospital or medical unit and may either himself dispose of a charge against such person or refer it for disposal, after the person has left the hospital or medical unit, to the officer commanding the corps, department or detachment to which such person belongs or is attached, but the medical officer-in-charge of a regimental medical establishment is not, unless that establishment is detached, the “commanding officer” of that establishment or of any person who is a patient in, or is employed in, the medical unit to which that establishment belongs.

The accused must be tried by the commanding officer of the unit to which he belongs and he cannot be attached to another unit for the purposes of trial by summary court-martial except as is provided in Regulations for the “Army Regulations (Rule) 315” [*Substituted vide amendment No.* 6/III/65]. If a commanding officer is not competent under law to try the accused due to the reasons that he is one of the material witnesses against him or he has a personal interest in the case then he should apply for a district court-martial (*see* Notes to Section 99).

3. *Corps* are prescribed in Rule 159.

4. *Unit* would include every separate establishment of persons subject to this Act which is not a corps as defined in Rule 159 or a detachment of such corps.

5. *Detachment.*— Every separate body of persons which is not a corps or unit would be a detachment thereof. The following are examples of such detachments:–

(a) Any enrolled establishment of the Army Service Corps that is not itself a corps.

(b) The enrolled establishment of a station hospital or an Ordinance Depot.

(c) A detached battery of Bangladesh Artillery.

(d) Recruiting parties, including enrolled recruits accompanying them, under the orders of a recruiting officer.

6. *Sub-Section* 2.— Unless two officers or two junior commissioned officers or one officer and one junior commissioned officer attend the trial, the court has no jurisdiction and its proceedings are null and void. The same two officers or one officer or one JCO as the case may be, must be present *throughout* trial. An officer or a JCO cannot be replaced during the trial.

7. If the commanding officer does not himself take the interpreter's oath, one of the officers of junior commissioned officers attending the trial may be appointed interpreter. He may legally combine this duty with attendance at the trial under this Section.

89. Dissolution of courts martial.— (1) If a court martial after the commencement of a trial is reduced below the smallest number of officers of which it is by this Act required to consist, it shall be dissolved.

(2) If, on account of the illness of the judge advocate or of the accused before the finding, it is impossible to continue the trial, the court martial shall be dissolved.

(3) The officer who convened a court martial may dissolve such court martial if it appears to him that the exigencies of the service or the necessities of discipline render it impossible or inexpedient to continue the trial.

(4) Where a court martial is dissolved under this section, the accused may be tried by a fresh court martial.

NOTES

1. *See* also Rules 68, 69 and 70.

2. The trial is for the purpose of this Section held to have commenced when the accused is arraigned (*see* Note 1 to Rule 38).

3. *Illness of the accused.*—Oral evidence of the fact of the death or illness of the accused will be taken on oath or affirmation. Also, a medical certificate should, where possible, be obtained, stating that the illness of the accused renders his presence in court impracticable, or dangerous to himself or others, and also the time when, in the opinion of the medical officer, the accused will be able to be present.

4. *Judge Advocate.*—The court will in no circumstances proceed in the absence of a Judge advocate who has been duly appointed.

5. *Impossible to continue.*—This means to continue with in what is, having regard to all the circumstances, a reasonable time.

6. *Sub-section* (3).—This sub-section confers a very wide power on convening officer but the power must be exercised judiciously and when the circumstances make its exercise imperative. The convening officer would, otherwise, be answerable to his superiors for an abuse of this power.

7. *Sub-section* (4).— It may frequently be inexpedient to convene a fresh court for retrial under this sub-section especially where the accused has been for some time under arrest or in confinement.

90. Prohibition of second trial.— Where any person subject to this Act has been acquitted or convicted of an offence by a court martial or by a criminal court or has been summarily dealt with for an offence under Section 23, he shall not be liable to be tried again for the same offence by a court martial or be dealt with summarily in respect of it under the said section.

NOTES

1. *See* also Section 119 and Rule 43 and Notes.

A finding of a general, field general [*Deleted vide amendment No. 10/1/06]* or district court martial, if not confirmed, is of no validity; in such

case, therefore, the accused has not been acquitted or convicted, and may legally be tried again; (*see* Section 119); but retrials should rarely be resorted to, and only when the needs of discipline and justice demand that an offender shall not escape punishment on account of a legal technicality. Retrial should not be ordered until the Judge Advocate General's Department has been consulted and the sanction of superior authority has been obtained.

2. Where a court is not legally constituted—as, for example, if the convening order is not signed, or is signed by or on behalf of an officer not authorised to convene such a court, or if the court is composed of too few members, or if unqualified officers sit–it is no court at all. The accused will not have been really tried, and may be tried again, even though the proceedings of such illegally constituted court have been inadvertently confirmed.

Where, however, a conviction is confirmed and then quashed, not for improper constitution of the court, but because the trial was unsatisfactory—*e.g.,* because evidence was improperly admitted the accused has stood a trial and cannot be tried again.

3. It is a general principle of law that it does not permit a man to be tried twice in respect of the same offence; but the application of the rule is not always easy. Where the same incident, or set of incidents, gives rise to two trials, the test of whether the offence is "the same" offence would appear to be this:– Could the accused have been lawfully convicted at the first trial upon the charge sheet then before the court of the offence charged at the second trial? If so, the second trial is illegal and void. Thus on a charge of desertion, a man could by virtue of Section 111 be convicted of absence without leave: if he is acquitted generally, the acquittal applies to both offences and he cannot subsequently be charged with absence (upon the same facts); if, however, the court while acquitting him of desertion, convict him of absence and this finding is not confirmed, he has not been acquitted absence and can be charged again with that offence.

4. Where a person is retried on the same charges, it is not usual to impose a more severe punishment than that awarded on the first trial, and a confirming officer should exercise his powers of mitigation, etc., when confirming the proceedings, if a greater punishment has been awarded on the second trial.

5. Where a new trial is ordered, no officer may serve on it who sat on the former court; [*see* Rule 30 (2) (iii)].

6. As to the "debarring" [*Substituted vide amendment No.* 7/11/67] of trial by a criminal court after trial by court martial (*See* Section 96).

91. Period of limitation for trial.— (1) No trial by court martial of any person subject to this Act for any offence, other than an offence of desertion or fraudulent enrolment or any of the offences mentioned in Section 31 or Section 40, shall be commenced after the expiration of three years from the date of such offence, and no such trial for an offence of desertion, other than desertion on active service, or of fraudulent enrolment shall be commenced if the person in question, not being an officer, has subsequently to the commission of the offence, served continuously in an exemplary manner for not less than three years with any portion of the Bangladesh regular forces.

(2) In the computation of the period of three years specified in sub-section (1) any time spent by the person in question as prisoner of war, or in evading arrest, shall be excluded.

NOTES

1. The effect of this section is that on the expiration of three years from the commission of an offence, the offender is free from being tried or punished under this Act by court martial, for any offence except mutiny, desertion or fraudulent enlistment "or any of the offences mentioned in Section 31 or Section 40" [*Added vide amendment No.* 7/11/67]. It follows that where an accused person is charged with desertion commencing on a date more than three years before his trial begins, he cannot be found guilty under Section 111 (1) of absence without leave from that date, but such absence must be restricted to a period not exceeding three years immediately prior to the commencement of the trial.

Mutiny and desertion on active service may be tried at any time. For desertion not on active service and fraudulent enrolment, a person cannot be tried if he has since served continuously in an exemplary manner for three years in any portion of the Bangladesh Regular Forces, i.e., the Army, Navy or the Air Force.

For forfeiture of service in the case of desertion and fraudulent enrolment, *see* Pension Regulations, Volume II, para 212.

2. *In an exemplary manner.—see* "Army Regulation (Instruction) 287" [*Substituted vide amendment No.* 7/11/67].

3. *On active service.— see* Section 8 (1).

Sub-Section 2.— Continuous absence without leave constitutes evading arrest. The onus is on the prosecution to prove such absence.

92. Liability of offender who ceases to be subject to Act.— (1) Where an offence has been committed by any person while subject to this Act, and he has ceased to be so subject, he may be taken into and kept in military custody and tried and punished for such offence as if he had continued to be so subject.

(2) No such person shall be tried for an offence, unless his trial commences within six months after he had ceased to be subject to this Act:

Provided that nothing contained in this sub-section shall apply to the trial of any such person for an offence of desertion, fraudulent enrolment, or for any of the offences mentioned in Section 31 or shall affect the jurisdiction of a criminal court to try may offence triable by such court as well as by a court martial.

NOTES

(1) (i) This Section meets the case of a person who commits an offence against this Act whilst subject to it and then ceases to be so subject. It applies where a charge is made that an offence has been committed, even if it eventually transpires that the accused was innocent. Such cases will occur, for example, when an officer resigns his commission or is dismissed, or when a junior commissioned officer or other rank is discharged from the service or when a civilian who became subject to the Act under Section 2 (1) (c) has ceased to be so subject. Such a person who has ceased to be subject to military law even before that discovery of the offence, may be arrested, tried and punished just as he were still so subject.

(ii) As to the date on which a sentence of dismissal takes effect (*see* Rule 155). A person so sentenced who commits another offence between the trial and the date on which his dismissal takes effect can be tried for it under this Section after that date.

2. *Sub-section* (2).—The sub-section enacts that a person who ceases to be subject to military law can only be tried within six months after he has ceased to be so subject. The period of six months will not be deemed to have expired if the trial was commenced within that period but exception is made in the case of desertion, fraudulent enrolment or the offences specified in Section 31.

93. Place of trial.—Any person subject to this Act who commits any offence against it may be tried and punished for such offence in any place whatever.

NOTES

1. The Section enables a court to try an offender in any place whatever, whether within or outside Bangladesh, but, in practice, it will not be possible to hold a court martial outside Bangladesh unless the laws of the country where the trial is to be held permit Bangladesh Military authorities to do so. The reason is that the Laws of Bangladesh do not "run" in a foreign country and obedience to those laws cannot be enforced in those countries. For example, it will not be possible for Bangladesh authorities to enforce the attendance of a refractory witness, without the legal help of the civil or military authorities of that country. Nor will it be possible to punish an offender with imprisonment, etc., without the consent and co-operation of the foreign authorities. Before holding a trial outside Bangladesh, it will be necessary to consider these factors, and if a trial by court martial cannot, manifestly, be held in a foreign country, it may be necessary to bring the offender to Bangladesh for trial.

These considerations do not, however, apply to a foreign country which is occupied by our army.

2. For execution of sentences of imprisonment and transportation on foreign soil, *see* Section 137 and Note 3.

94. Order in case of concurrent jurisdiction of court martial and criminal court.—When a criminal court and a court martial have each jurisdiction in respect of a civil offence, it shall be in the discretion of the prescribed officer to decide before which court the proceedings shall be instituted and, if that officer decides that they shall be instituted before a court martial, to direct that the accused person shall be detained in military custody.

NOTE

Prescribed officer.—See Rule 168.

95. Power of criminal court to require delivery of offender.—(1) When a criminal court having jurisdiction is of the opinion that proceedings ought to be instituted before itself in respect of any civil offence, it may, by

written notice, require the prescribed officer, at his option, either to deliver over the offender to the nearest magistrate to be proceeded against according to law, or to postpone proceedings pending a reference to the Government.

(2) In every such case, the said officer shall either deliver over the offender in compliance with the requisition or shall forthwith refer the questions as to the court before which the proceedings are to be instituted for the determination of the Government, whose order upon such reference shall be final.

NOTE

Prescribed officer.—See Rule 168.

96. Trial by court martial, bar to subsequent trial by criminal court.— Where a person subject to this Act is acquitted or convicted of an offence by a court martial, a criminal court shall be debarred from trying him subsequently for the same offence or on the same facts. (Substituted *vide amendment* No. 8/11/67).

NOTE

1. This section prevents the criminal courts from trying a person who has already been tried by court martial or dealt with summarily under this Act for the same offence or on the same facts. This brings the Act in line with the criminal law of the country which provides that a person once convicted or acquitted cannot be retried for the same offence. See also Section 90 and Notes (Substituted *vide amendment* No. 9/11/67).

2. Definition of criminal court.—See Section 8 (7).

96A. Definition of court martial.—For the purposes of Sections 94 and 96, the term "court martial" shall include an officer exercising authority under Section 23 (*Added vide* amendment No. 10/VI/65).

97. Powers of general and field general court martial.—A general or field general court martial shall have power to try any person subject to this Act for any offence made punishable therein, and to pass any sentence authorised by this Act.

98. Power of district Court martial.—A district court martial shall have power to try any person subject to this Act, except an officer, junior

commissioned officer or warrant officer, for any offence made punishable therein, and to pass any sentence authorised by this Act other than a sentence of death or transportation or rigorous imprisonment for a term exceeding two years.

99. Offences triable by summary court martial.— A summary court martial may try an offence punishable under any of the provisions of this Act:

Provided that when there is no grave reason for immediate action and reference can without detriment to discipline be made to the officer empowered to convene a district court martial, or on active service a field general court martial, for the trial of the alleged offender, an officer holding a summary court martial shall not try without such reference any of the following offences, namely:–

(a) any offence punishable under Sections 24, 31 and 59; or

(b) any offence against the officer holding the court.

NOTES

1. The discipline of the Bangladesh Army depends in a great measure on the summary court martial. When a soldier or other person amenable to the Act has committed an offence which is ordinarily triable by summary court martial, a commanding officer, when determining by what court the accused is to be tried must bear in mind that the legislature, in conferring upon him the powers of a summary court martial, intends that he shall exercise those powers.

Though a summary court martial may, subject to the proviso to this section, try *any* offence punishable under the Act, it is obvious that its powers of punishment are insufficient for many of the graver offences known to military law. Commanding officers should, therefore, notwithstanding the increased powers of summary trial vested in them, submit to higher authority any cases which appear to require more exemplary punishment than a summary court martial can award. It should, however, be remembered that even comparative slight punishment promptly inflicted is often more deterrent than a heavier one which follows long after the offence.

The commanding officer is the best and sole judge, *at the time,* of the necessity which justifies him in trying, without reference, cases which

should ordinarily be tried only after reference and sanction. If it should subsequently appear to superior authority that his action was not justified, this should merely be viewed as a grave irregularity for which the commanding officer may be held responsible, but it does not affect the legality of the finding or sentence, nor in ordinary circumstances, furnish reason for setting aside the trial, in whole or in part. Where, however, the officer holding the trial loses sight of the law, and tries without considering whether an emergency exists or not, the trial is illegal. *See* Rule 114 for memorandum to be signed by the officer holding the trial when he tries, without reference, a case which would ordinarily be referred to the officer empowered to convene a district court martial for the trial of the alleged offender.

2. *Offences against the officer holding the trial.*—It is difficult to lay down a definite rule in this matter, but speaking generally, a consideration of personal interest which would suffice to render an officer ineligible to sit as a member of a general or district court martial debars him from holding summary court martial (save in case of emergency) without previous reference. Insubordination to a commanding officer or disobedience to his personal orders, as well as offences under Section 32 (1) when committed towards himself, fall within the terms of the proviso, and should not, except in case of emergency, be tried by summary court martial without previous reference to the officer empowered to convene a district court martial or on active service a field general court martial for the trial of the alleged offender. Theft or misappropriation of property of which a commanding officer is either part owner or trustee (*e.g.,* mess or regimental property) should not, except as aforesaid, be tried by summary court martial without such reference.

It is most undesirable that an offence against an individual should be tried by that individual, and the reason for immediate action would require to be unusually weighty to justify the provision as to reference to higher authority being disregarded when the offence is one against the officer holding the trial.

3. At a trial by summary court martial, the officer holding the trial cannot himself give evidence against an accused person appearing before him, except evidence of a formal character such as the production of a document. But *see* Rule 107 which authorises the court to record “of its own knowledge” certain facts for guidance in determining the sentence. If he gives formal evidence, he must be sworn as a witness.

Where it is necessary for the commanding officer of the accused to give material evidence for the prosecution, he should apply for a district court martial so as to secure an impartial trial.

100. Persons triable by summary court martial.— A summary court martial may try any person subject to this Act and under the command of the officer holding the court, except an officer, junior commissioned officer or warrant officer.

101. Sentence awardable by summary court martial.— A summary court martial may pass any sentence which may be passed under this Act, except a sentence of death or transportation or of rigorous imprisonment for a term exceeding one year:

Provided that if the officer holding the summary court martial is below the rank of "Major" [*substituted vide amendment No.* 9/11/67] he shall not award rigorous imprisonment for a term exceeding three months.

NOTE

An Officer below the rank of "Major" [*substituted vide amendment No.* 9/11/67] is not restricted in the award of detention, which may extend to six months.

102. President.— The president of a general, district or field general court martial shall be appointed by order of the authority convening the court.

NOTE

The president must be named by the convening authority in the order convening the court.

When a president is successfully challenged, the court must adjourn for appointment of a fresh president by name by the convening authority.

103. Judge Advocate.—Every general court martial shall, and every district or field general court martial may, be attended by a judge advocate who shall be an officer belonging to the department of the Judge Advocate General, Bangladesh Army or, if no such officer is available, a person appointed by the convening officer.

See Rules 88 and 89.

104. Challenges.— (1) At all trials by general, district or field general court martial, as soon as the court is assembled, the names of the president and members shall be read over to the accused, who shall thereupon be asked whether he objects to being tried by any officer sitting on the court.

(2) If the accused objects to such officer, his objection, and also the reply thereto of the officer objected to, shall be heard and recorded, and the remaining officers of the court shall, decide on the objection in the absence of the challenged officer.

(3) If the objection is allowed by one half or more of the votes of the officers entitled to vote, the objection shall be allowed and the member objected to shall retire and his vacancy may be filled in the prescribed manner by another officer subject to the right of the accused to object.

(4) When no challenge is made, or when challenge has been made and disallowed or the place of every officer successfully challenged has been filled by another officer to whom no objection is made or allowed, the court shall proceed with the trial.

NOTES

As to challenges generally, *see* Rule 35 and Notes;

as to adjourning for the purpose of appointing fresh members and the power to convene another court, see Rule 29; and

as to challenges where a court is being sworn to try several persons, see Rule 75.

105. Voting if members.— (1) Every decision of a court martial shall be passed by an absolute majority of votes; and where there is an equality of votes, as to either finding or sentence, the decision shall be in favour of the accused:

Provided that no sentence of death shall be passed without the concurrence, in the case of a general court martial of at least two-thirds of the members and, in the case of a field general court martial of all the members, of the court:

(2) In matters other than a challenge or the finding or sentence, the president shall have a second or casting vote.

NOTE

As to manner of voting, *see* Rule 73 and Notes.

106. Oaths of president and members.—An oath or affirmation in the prescribed from shall be administered to every member of every court martial before the commencement of the trial.

NOTES

1. For prescribed forms, *see* Rule 36 (1).

2. The oath taken by members of the court binds them to find a true verdict according to the evidence (discarding from their opinions any private feeling or information they happen to possess), and to administer justice.

The oath taken by members also implies that, as a general rule, the opinions of the individual members ought not to be stated and consequently the court ought not disclose whether the decision was unanimous or by a majority; the decision is the decision of the court as a whole and the effect of its being unanimous or not is usually immaterial but *see* the proviso to Section 105.

3. As to officers empowered to administer oaths or affirmations, *see* Rule 36 (2).

107. Oaths of judge advocate and others.—After the members of the court have been sworn or affirmed, an oath or affirmation in the prescribed form shall be administered to the following persons or such of them as are present at the court martial:–

(a) judge advocate;

(b) officer attending for the purpose of instruction;

(c) shorthand writer;

(d) interpreter.

NOTES

1. for prescribed forms *see* Rule 37 (1).

2. As to the officer empowered to administer oaths or affirmations, *see* Rule 37 (2).

108. Oaths of witnesses.— Every person giving evidence at a court martial shall be examined on oath or affirmation and shall be duly sworn or affirmed in the prescribed form:

Provided that where a court martial is satisfied that a child of tender years is unable to understand the nature of an oath or affirmation, it may dispense with the administration of oath or affirmation.

NOTES

1. For prescribed forms, *see* Rule 123. It is unlawful for prosecutor to administer the oath to a witness, and if he does so, unsworn evidence will have been admitted.

2. A child of tender years may be sworn or affirmed as a witness provided that such child understands the nature and moral obligations of an oath or affirmation. But where a child of tender years does not, in the opinion of the court, understand the nature of an oath or affirmation, his or her evidence may be received though not given on oath.

109. Summoning witnesses and production of documents.— (1) The convening officer, the president of "a court martial or a court of inquiry" [*Substituted for "court" vide amendment No.* 7/112/65] the judge advocate, or the commanding officer of the accused person may, by summons under his hand, require the attendance at a time and place to be mentioned in the summons of any person either to give evidence or to produce any document or thing.

(2) In the case of a witness amenable to military, naval or air force authority the summons shall be sent to his commanding officer and such officer shall serve it upon him accordingly.

(3) In the case of any other witness, the summons shall be sent to the magistrate within whose jurisdiction he may be or reside, and such magistrate shall give effect to the summons as if the witness were required in the court of such magistrate.

(4) When a witness is required to produce any document or thing in his possession or power, the summons shall describe it with reasonable precision.

(5) Nothing in this section shall be deemed to affect the Evidence Act, 1872 (I of 1872), Section 123 and 124, or to apply to any letter, postcard, telegram or other document in the custody of the postal or telegraph authorities.

(6) If any document in such custody is, in the opinion of any district magistrate, high court or court of session wanted for the purpose of any court martial, such magistrate or court may require the postal or telegraph authorities as the case may be, to deliver such document to such person as such magistrate or court may direct.

(7) If any such document is, in the opinion of any other magistrate or of any commissioner of police or district superintendent of police, wanted for any such purpose, he may require the postal or telegraph authorities, as the case may be, to cause search to be made for and to detain such document pending the orders of any such district magistrate, high court or court of session.

NOTES

1. *See* Rule 120 and Notes. For form of summons to attend a summary of evidence or a court martial, *see* Third Appendix to Army Act Rules.

Under sub-section (1) civilian witnesses can be required to attend before a commanding officer at the taking of a summary of evidence; but *see* Rule 13. They "can" [*Substituted vide amendment* No. 1/IV/65] be compelled to attend before a court of inquiry.

2. Witnesses who are subject to this Act should be ordered by the proper military authority to attend without the issue of formal summons. If a witness so subject then makes default he may be dealt with under Section 33 (2) for disobedience of a lawful command. A formal summons should, however, be issued to witnesses subject to Naval or Air Force law.

3. For action where a civilian witness, who has been duly summoned and whose expenses have been tendered, makes default in attending, *see* Rule 133 and Notes.

4. As to privilege from arrest under civil or revenue process of a witness summoned to attend before a court martial, *see* Section 169.

5. *Sub-section (5)*.— Section 123 and 124 of the Evidence Act deal with "affairs of State" and "official communication". *See* Part I, Chapter V, paras 93 and 94, as to how such matters are protected from disclosure in courts of law, including court martial, except under adequate guarantees

for public interests being safeguarded. *"Affairs of State"* include all maters of a public nature with which the Government is concerned.

6. *Sub-sections* (6) *and* (7).— These sub-sections indicate the only way in which letters, postcards, telegrams and similar documents in the custody of the postal or telegraphs authorities can be made available as evidence. If none of the authorities mentioned in these sub-sections are available and it is considered necessary that the documents should be detained until such authority is communicated with, application should be made to one of the authorities mentioned in sub-section (7), one of whom is certain to be present in or near any military station in Bangladesh, however, small.

110. Commission for the examination of witness.—(1) Whenever, in the course of trial by a court martial, it appears to the court that the examination of a witness is necessary for the ends of justice, and that the attendance of such witness cannot be procured without an amount of delay, expense or inconvenience which, in the circumstances of the case would be unreasonable, such court may, if it thinks necessary, issue a commission in the manner specified in Chapter XL of the Code of Criminal Procedure, 1898 (Act V of 1898), according as the witness resides in a place in or outside of Bangladesh.

(2) The court may be adjourned for a specified time reasonably sufficient for the execution and return of the commission.

(3) Such a commission shall be executed by the magistrate or officer to whom it is issued in the manner as if it was issued in the trial of warrant case under the Code of criminal Procedure, 1898 (Act V of 1898) or of any corresponding law in force at the place where the evidence is recorded and shall be returned together with the deposition of the witness examined thereunder, to the Judge Advocate General.

(4) The Judge Advocate General will forward the same to the court martial who issued it or, if the said court martial is in the meanwhile dissolved, to another court martial convened for the trial of the accused in respect of the same charge and any deposition so taken shall be recorded in evidence and shall form part of the proceedings of court.

Explanation.—The expression "Judge Advocate General" means the Judge Advocate General, Bangladesh Army, and includes a Deputy Judge Advocate General" [Substituted vide amendment No. 12/1/65].

NOTES

1. "Under Chapter XL of the Code of Criminal Procedure the power to issue commission in criminal cases is conferred on a High Court, a court of Session and a District Magistrate. This section confers a similar power on a court martial to issue a commission for the examination of a witness by means of a series of written questions, decided upon by the court trying the case. These questions are sent to another court or officer, within the limits of whose jurisdiction the witness resides. Any question which the prosecutor or the accused desire to have put to the witness, and which the court considers relevant, should be added to the list of such questions.

The magistrate or the officer to whom the commission is issued will take down the evidence of the witness and must return the record of it to the Judge Advocate General of the Army, who will forward the same to the court which issued the commission, or, if that court has in the meanwhile been dissolved, to another court martial which may be convened for the trial of the accused in respect of same charge. The evidence of the witness, thus obtained on commission, becomes part of the record of the case" [*Substituted vide amendment No.* 13/1/65].

2. The taking of evidence by commission in criminal trials should be most sparing resorted to, and ought not to be adopted save in extreme cases of delay, expense or inconvenience. The following considerations should guide courts martial in this important matter:–

(i) A complainant, or a witness who practically fills the role of complainant, should never be examined on a commission; the risk of injustice to the accused is too great.

(ii) A material prosecution witness, the value of whose evidence can only be made apparent under full examination and cross examination in court, should very seldom be so examined.

(iii) A merely "formal" or corroborative witness for either side, or a material witness for the defence, if the accused is fully satisfied by this action, might generally be examined on a commission. By "formal" is here meant a witness who has to prove a document, entry, or similar fact, which must be legally proved, but which when so proved cannot rationally be disputed by the accused or by the prosecution.

3. "If great delay in the return of a commission is anticipated it may be more convenient to dissolve the court martial and to assemble a fresh court after the commission is returned" [*Substituted vide amendment No.* 14/1/65]. In such a case, however, each of the witnesses who gave evidence at the first trial must repeat his evidence on oath or affirmation at the second trial unless:–

(a) he is dead or cannot be found; or

(b) he is incapable of giving evidence; or

(c) he is kept out of the way the adverse party; or

(d) his presence cannot be obtained without an amount of delay or expense which, under the circumstances of the case, the court considers unreasonable.

In any of these cases the evidence given at the first trial can, under Section 33 of the Evidence Act, be read and considered at the second.

111. Conviction of one offence permissible on charge of another.— (1) A person charged before a court martial with desertion may be found guilty of attempting to desert or of being absent without leave.

(2) A person charged before a court martial with attempting to desert may be found guilty of being absent without leave.

(3) A person charged before a court martial with any one of the offences specified in clauses (a) and (b) of Section 40 may be found guilty of any other of these offences with which he might have been charged.

(4) A person charged before a court martial with an offence punishable under Section 59 may be found guilty of any other offence of which he might have been found guilty if the provisions of the Code of Criminal Procedure, 1898 (V of 1898), had been applicable.

(5) A person charged before a court martial with any offence under this Act may, on failure of proof of an offence having been committed in circumstances involving a more severe punishment be found guilty of the same offence as having been committed in circumstances involving a less severe punishment.

(6) A person charged before a court martial with any offence under this Act may be found guilty of having attempted to commit, or of abetment of, the offence although the attempt or abetment is not separately charged.

(7) A person charged before a court martial with using or attempting to use, criminal force, to his superior officer, knowing or having reason to believe him to be such may be found guilty of having committed an assault on such superior officer.

NOTES

1. The object of this Section is to prevent a miscarriage of justice by permitting a person charged with one of the offences mentioned in it to be found guilty of a cognate offence. But a court martial has no power to find a person guilty of any offence other than that with which he is charged in the statement of the offence except in the case specified in the Section (*see N*otes to Rule 21). A court may, however [as allowed by Rule 51 (5)], find a person guilty of a charge with the exception of certain words in the particulars of the charge or with certain immaterial variations, and each finding will be valid as long as in its reduced or varied form it discloses the offence which form the subject of the charge.

In practice, it will usually be expedient to prefer alternative charges; the more serious charge being placed first in order.

2. *Sub-section* (4).— For the special findings referred to in this sub-section, *see* Sections 237 and 238 of the Code of Criminal Procedure in Part IV.

112. Rules of evidence to be the same as in criminal courts.—Subject to the provisions of this Act, the rules of evidence in proceedings before court martial shall be the same as those which are followed in criminal courts.

NOTES

1. *Subject to the provisions of this Act.— See* for example, Sections 113 to 118.

2. The section makes all the statutes relating to evidence which are followed in criminal courts, *e.g.* The Evidence Act, 1872 (I of 1872) and the Bankers Books Evidence Act, 1891 (XVIII of 1891), applicable to courts martial.

3. As to evidence generally, *see* Part I, Chapter V.

Evidence Act.— *See* part IV of this Manual.

Bankers books Evidence Act.— *See* Act XVIII of 1891.

113. Judicial notice.— A court martial may take judicial notice of any matter within the general military knowledge of the members.

NOTE

"*Judicial Notice*" means that the court will recognise a matter without formal evidence. Thus, evidence need not be given as to the relative rank of officers, as to the general duties, authorities, and obligations of different members of the service, or generally as to any matters which an officer, as such, may reasonably be expected to know.

For other matters of which a court may (under the Evidence Act) take judicial notice, *see* Part I, Chapter V, Para 68.

114. Presumption as to signatures.— In any proceedings under this Act, any application, certificate, warrant, reply or other document purporting to be signed by an officer in the "service of the Republic" [*Substituted for* "*Government*" *vide Ordinance No.* XVIII of 1978] shall, on production, be presumed to have been duly signed by the person by whom and in the character in which it purports to have been signed until the contrary is proved.

NOTE

Purporting.— This expression means that if the paper appears to be certified or signed as mentioned in the section, it can be accepted without calling witness to prove that it has been so certified, signed, etc., unless indeed some evidence is given to the contrary. If any evidence is given casting a doubt on the authenticity of a document, the court should require evidence of the certificate or signature, etc., to be given by a witness.

115. Enrolment paper.— (1) Any enrolment paper purporting to be signed by an enrolling officer shall, in proceedings under this Act, be evidence that the person enrolled gave the answers which he is therein represented as having given.

(2) The enrolment of such person may be proved by the production of his enrolment paper or a copy of his enrolment paper purporting to be certified to be a true copy by the officer having the custody of the enrolment paper.

NOTE

On the trial of a person subject to this Act for making a false answer on enrolment or for fraudulent enrolment, the answer made or the fact of enrolment can, therefore, be proved by the production of his enrolment paper. The fact of the enrolment (but not any answer made on enrolment) [*Inserted vide amendment No.* 19/1/65] may also be proved by a properly certified true copy of the enrolment paper. The enrolment paper, or when admissible a true copy thereof, must be produced by a witness on oath or affirmation and the accused identified as the person referred to.

See generally Notes to Section 116.

116. Presumption as to certain documents.— (1) A letter, return or other document with respect to a person,—

(i) having, or not having, at any time served in, or been discharged from any part of the armed forces of Bangladesh, or

(ii) having, or not having, held any rank or appointment in, or been posted or transferred to any part of such forces, or having or not having served in any particular country or place, or

(iii) being, or not being, authorise to use or wear any naval, military or air force decoration, medal, medal ribbon, badge, wound stripe or emblem, the use or wearing of which by an unauthorised person is, by any law in force for the time being, an offence,

if purporting to be signed by or on behalf of a Secretary to the Government, or on behalf of the Bangladesh Military, Naval or Air Force Headquarters, or by the commanding officer or the officer or record officer having the custody of the records of any portion of those forces or of any of the ships of Bangladesh Navy to which such person appears to have belonged, or alleges that he belongs or had belonged, shall, be evidence of the facts stated in such letter, return or other document.

(2) Any army, navy or air force list or gazette purporting to be published by authority shall be evidence of the status and rank of the officers, junior commissioned officers or warrant officers therein mentioned, and of any appointment held by such officers, junior commissioned officer or warrant officers and of the corps, unit, battalion, ship, arm, branch or department of the service to which such officers, junior commissioned officers or warrant officers belong.

(3) Where a record is made in any service book in pursuance of this Act or of any rules made thereunder or otherwise in pursuance of duty and purports to be signed by the commanding officer or by the officer whose duty it is to make such record, such record shall be evidence of the facts thereby stated.

(4) A copy of any record in any service book purporting to be certified to be a true copy by the officer having the custody of such book shall be evidence of such record.

(5) Where any person subject to this Act is being tried on a charge of desertion or of absence without leave and such person has surrendered himself into the custody of, or has been apprehended by, any officer, or any portion, of the armed forces of Bangladesh, a certificate purporting to be signed by such officer, or by the commanding officer of that portion of the armed forces and stating the fact, date and place of such surrender or apprehension, shall be evidence of the matters so stated.

(6) Where any person subject to this Act is being tried on a charge of desertion or of absence without leave and such person has on arrest or surrender been taken to a police station in Bangladesh, a certificate purporting to be signed by the officer-in-charge of that police station, and stating the fact, date and place of such surrender or apprehension shall be evidence of the matters so stated.

(7) Any document purporting to be a report under the hand of any Chemical Examiner or Assistant Chemical Examiner to the Government of Bangladesh upon any matter or thing duly submitted to him for examination or analysis and report may be used as evidence in any proceeding under this Act.

NOTES

1. (i) This Section provides for the admissibility with in evidence of a variety of documents or copies of documents used in connection the administration of the armed forces of Bangladesh, but does not make them conclusive proof of the facts stated therein; therefore, evidence may be given to contradict them. They can only be received as evidence when produced by a witness on oath or affirmation.

(ii) A document purporting to be such a document as is specified in the various sub-sections is upon mere production on oath or on affirmation to the court *prima facie* evidence of the facts therein stated; but, of course, it is not evidence that the accused is the person to whom it relates; and

evidence must be given on oath or affirmation by a witness to prove that the accused is in fact the person referred to in the document. If the accused disputes the identity, great caution is required as to the sufficiency of the evidence, and if he disputes the accuracy or completeness of the books, further evidence on the disputed points must be adduced.

2. *Sub-section* (1) *to* (6).—*See* Note to Section 114.

3. *Sub-section* (3).— (i) The sub-section is limited to proof of the facts, or incidents specified therein; it does not assist proof of other particular incidents occurring during a man's service. A telegram, as delivered by the telegraph department, respecting the service of a person is not signed at all and would not be admissible.

(ii) The word “service book” are very wide and include any offical books, records whatever which are required to be maintained by the army.

(iii) It should be noted that every entry in a service book is not made evidence under the sub-section. The entry must be made for the purpose of being used as a record, and must be made in pursuance of this Act or of any rules made thereunder or in pursuance of military duty, and it must purport to be signed by the commanding officer or by the officer whose duty it is to make the record. No hard and fast rule can be laid down as to what entries can properly be considered as “records”, but as a general rule the sub-section should only be taken advantage of in cases where a formal record. *prima facie* of a non-controversial character, is made in a regimental book or record in pursuance of the act or rules or of military duty and purporting to be signed in accordance with the sub-section. Entries which cannot properly be considered as records, such as daily entries in accounts, and entries in books not being “service books” such as books of a brigade or station office and company order books can, of course, be proved under the ordinary provisions of the Evidence Act.

(iv) The fact that a statement is recorded in a service book does not make it admissible in evidence if it is otherwise legally objectionable, *e.g.,* if a court of enquiry under Section 78 be held before 60 clear days have expired, a record of its finding is inadmissible.

4. *Sub-section* (4).— (i) Such a copy cannot be certified by another officer “for” the officer having the custody of the book.

(ii) Where a certified true copy of a record in any "service book" is to be produced, the copy should show clearly that the record purports to have been signed by the commanding officer or by the officer whose duty it was to make the record.

(iii) Where BAFD-918 is to be produced, it must be signed by the officer having the custody of the books from which it is compiled. The original declaration of the court of inquiry, even if in existence, is not admissible in evidence. Nor is BAFD-918, unless the entry in the court martial book (of which it is a certified copy) purports to have been signed by the officer in actual command of the accused's corps or unit, as required by Section 78 (1).

5. *Sub-sections* (5) *and* (6).— The certificate should only state the *fact, date, and place* of the surrender or apprehension; it can only be admitted as evidence of those facts and then only in cases of desertion or absence without leave. If it is necessary to prove the *circumstances* of the surrender or apprehension a witness must be called.

6. Under *Sub-section* (6) it is essential that the certificate should be actually signed by a police officer, not below the rank of Officer-in-Charge of a police station. The certificate should be on BAFD-910.

117. Reference by accused to Government Officer.— (1) if at any trial, or other proceedings, for desertion or absence without leave, overstaying leave, or not re-joining when warned for service, the accused states in his defence any sufficient or reasonable excuse for his unauthorised absence, and refers in support thereof to any officer in the "service of the Republic" [*Substituted for "Government" vide Ordinance No.* XVIII of 1978] or if it appears that any such officer is likely to prove or disprove the said statement in the defence, the *court* or officer conducting the proceedings shall address such officer and adjourn the court or proceedings until his reply is received.

(2) The written reply of any officer so addressed shall, if signed by him, be received in evidence and have the same effect as if made on oath before the court or officer conducting the proceedings.

(3) If the court martial is dissolved before receipt of such reply or of it omit to comply with the provisions of this section, the convening officer may, at his discretion, annul the proceedings and order a fresh trial by the same or another court martial.

NOTES

1. *Officer of Government* means any officer in the employ of Government or an Acceding State.

2. For presumption as to an officer's signature, *see* Section 114.

118. Evidence of previous convictions and general character.— (1) When any person subject to this Act has been convicted by a court martial of any offence, such court martial may inquire into, and receive and record evidence of, any previous convictions of such person, either by a court martial or by a criminal court, and may further inquire into and record the general character of such person, and such other matters as may be prescribed.

(2) Evidence received under this section may be either oral, or in the shape of entries in, or certified extracts from, service records, and it shall not be necessary to give notice before trial to the person tried that evidence as to his previous convictions or character will be received.

(3) At a summary court martial, the holding the trial may, if he thinks fit, record any previous convictions against the offender, his general character, and such other matters as may be prescribed, as of his own knowledge, instead of requiring them to be proved under the foregoing provisions of this section.

NOTE

This section should be read with Rules 53 and 107 which prescribe other matters which may be proved.

CHAPTER X.— CONFIRMATION AND REVISION OF FINDING AND SENTENCES

119. Finding and sentence not valid unless confirmed.— No finding or sentence of a general, district or field general court martial shall be valid except in so far as it may be confirmed as provided by this Act.

NOTES

1. As to confirmation generally, *see* Part I, Chapter IV.

Confirmation is complete when the proceedings are promulgated. At any time before promulgation, the confirming authority may cancel his minute of confirmation and revoke the minute or order a revision. If proceedings are confirmed in error by an officer not having power to confirm, his act and the subsequent promulgation are null, and it is open to the proper authority to confirm.

2. The result of this section is that if a finding of guilt is not confirmed it is invalid; consequently there is no conviction or acquittal, and the accused has not been convicted or acquitted by a court martial for the purpose either of any subsequent trial or of any entry in service books or of any forfeiture, *see* Section 90 and Note as to a second trial, and Rule 132 as to merely technical errors not involving injustice to the accused.

Confirmation of the sentence alone implies confirmation of the finding also, but is not the correct mode of recording confirmation.

Confirmation ought to withheld in the following cases:–

Where the provisions of this Act relating to jurisdiction have been contravened (*See* Sections, 81 to 87, 97, 98 and 102 to 108).

Where evidence of a nature prejudicial to the accused has been wrongly admitted.

Where the accused has been unduly restricted in his defence.

Where a finding of guilty has come to with the exception of certain words of the charge, and these words so far describe the essence of the offence, that the finding with the words omitted fails to disclose an offence of which the court could legally have convicted.

Where a special finding of guilty fails to disclose an offence of which the court could have legally convicted.

Where the charge is bad in law, even though the accused has pleaded guilty.

Where there has been such a deviation from the Rules under this Act that injustice has been done to the accused.

3. A confirming officer cannot substitute a special finding on any charge for the court's finding; he can only confirm, reserve confirmation for superior authority, send back for revision, or refuse to confirm.

120. Power to confirm finding and sentence of general court martial.— The finding and sentence of a general court martial may be confirmed by the Chief of Army Staff or by an officer empowered in this behalf by warrant of the Chief of Army Staff.

NOTE

The warrant (Form A) is a present issued by the Chief of Army Staff to Commanders of Divisions, Line of Command Sub areas, and Independent Brigades. For form of warrant, *see* Part IV.

121. Power to confirm finding and sentence of district court martial.— The finding and sentence of a district court martial may be confirmed by an officer having power to convene a general court martial or by any officer empowered in this behalf by warrant of any such officer.

NOTES

1. For forms of warrants, see part IV. Form B is at present issued to Commanders of Brigades, etc.

2. An officer having power to convene a general court martial at a port of embarkation can issue a warrant to the officer commanding the troops on board a ship empowering the latter to confirm during the period of the voyage the findings and sentences of district court martial held on board the ship.

122. Limitation of powers of confirming authority.— A warrant issued under Section 120 or Section 121 may contain such restrictions, reservations or conditions as the officer issuing it may think it.

NOTES

1. As to restrictions etc., *see* forms of court martial warrants. A sentence of death awarded to any person subject to this Act must be reserved for confirmation by the Chief of Army Staff, Bangladesh Army. Similarly whenever an officer is sentenced to transportation, imprisonment or dismissal, the sentence is confirmable only by the Chief of Army Staff.

2. A member of a court martial or an officer who has acted as prosecutor cannot confirm the proceedings of that court martial (*see* Rule 61).

3. When a warrant has been issued and its contents communicated to the addressee, he can act upon it before it actually reaches him.

123. Power to confirm finding and sentence of field sentence of field general court martial.— The finding and sentence of a field general court martial may be confirmed by the convening officer or if the convening officer so directs by an authority superior to him.

NOTE

"The convening officer may instead of dealing with the finding and sentence himself, reserve them for confirmation by an authority superior to him [*Substituted vide Amendment No.* 8/111/65].

124. Power of confirming authority to mitigate, remit or commute sentences.— Subject to such restrictions, reservations or conditions, as may be contained in any warrant issued under Section 120 or Section 121, a confirming officer may, when confirming the sentence of a court martial, mitigate or remit the punishment thereby awarded, or commute that punishment for any less punishment or punishments to which the offender might have been sentenced by court martial or if that punishment is death or transportation for life, for any less punishment or punishments mentioned in this Act:

Provided that a sentence shall not be commuted for a sentence of transportation or fine unless the original sentence was awarded in respect of a civil offence:

Provided further that a sentence of transportation shall not be commuted for a sentence of rigorous imprisonment for a term exceeding the term of transportation awarded by the court.

NOTES

1. As to mitigation of sentence for offences in several charges, where the finding on one or more of them is not confirmed, see Rule 59; and as to the power of the confirming officers to vary a sentence informally expressed or in excess of the punishment authorised by law, see Rule 60.

2. The powers conferred by this section may be exercised by the confirming officer, as such, only when confirming the sentence. After promulgation, when the confirmation is complete the power of the confirming officer in that capacity ceases and the above power can only be exercised by one of the authorities mentioned in Section 143.

3. A confirming officer may also, under Section 144, direct that an offender sentenced to transportation, imprisonment or detention be not committed until the orders of a superior military authority are obtained. If he is himself a superior military authority he has further powers as such under that section.

4. *Mitigation* is awarding a less amount of the same species of punishment, as, for example, by reducing the length of imprisonment or detention to which an offender has been sentenced; it is in effect equivalent to a remission of part of the sentence. The power to mitigate, etc., cannot be exercised whilst execution of the sentence is suspended.

5. *Remission* may be remission of the whole or of part of the sentence; thus a sentence of imprisonment or detention may be remitted altogether, or a portion of the term may be remitted.

A confirming officer cannot remit such forfeiture of pay and allowances as follow automatically (under Section 65 and Pay and Allowance Regulations) upon the finding of the court.

6. *Commutation* is changing the description of punishment by awarding a punishment lower in the scale of punishments in Section 60, as imprisonment in lieu of transportation, or detention in lieu of imprisonment, or forfeiture of seniority in lieu or reduction in rank; but the effect of the further proviso to this section is that transportation can only be commuted to an equal or shorter term of imprisonment, *e.g.,* the commutation of seven year's transportation to ten year's imprisonment would be illegal.

7. *Or Punishments.*— There is no standard of comparison between one punishment and two or more other punishments, and as it is

necessary that the commuted sentence should be less severe than the original sentence, commutation of one punishment to two or more punishments is only permissible where it is obvious that the two are together less severe than the one, *e.g.,* death commuted to dismissal and transportation, or dismissal to forfeiture of seniority and severe reprimand. Partial commutation of any one punishment by the substitution for a portion thereof of another punishment is illegal. Thus where in a case of "losing by neglect", a court passed a sentence of imprisonment, but omitted to pass a sentence of stoppages of pay which would have been valid, a portion of the imprisonment cannot be commuted to stoppages.

8. The imprisonment or detention under commutation, will be reckoned to commence on the date of the original sentence, even though that sentence was not one of imprisonment or detention, as the case may be.

9. If a confirming officer purports (by way of commutation) to substitute for a valid sentence a sentence which the court had no power to award, neither the original sentence (since it has been commuted) nor the new sentence (since it is illegal) can stand. The conviction, however, remains good.

10. Where a term of imprisonment, detention or field punishment is reduced in length by remission or mitigation, automatic forfeiture of pay under Section 65 and Pay and Allowance Regulations is governed by the term actually undergone – not by that originally imposed.

125. Confirmation of finding and sentence on board a ship.—When any person subject to this Act is tried and sentenced by a court martial while on board a ship, the finding and sentence so far as not confirmed and executed on board the ship may be confirmed and executed in like manner as if such person had been tried at the port of disembarkation.

NOTE

On active service the officer commanding the troops on board a ship could convene a field general court martial on board under clause (b) of Section 84 (See Notes to Section 82 and 121).

126. Revision of finding and sentence.— (1) Any finding or sentence of a court martial which requires confirmation may be once revised by order of the confirming officer, and, on such revision, the court, if so directed by him, may take additional evidence.

(2) The court, on revision, shall consist of the same officers as were present when the original decision was passed unless any of those officers are unavoidably absent.

(3) In case of such unavoidable absence, the cause thereof shall be duly recorded in the proceedings, and the court shall proceed with the revision, provided that, if a general court martial, it still consists of five officers or, if a field general or district court martial, of three officers.

NOTES

1. See Rule 57 and Notes for procedure on revision.

2. *Which requires confirmation.*— The finding or sentence of summary court martial can, therefore, never be revised.

127. Finding and sentence of a summary court martial.—The finding and sentence of a summary court martial shall not require to be confirmed, but may be carried out forthwith:

*Provided that if the officer holding the trial is of less than five year's service, he shall not, except on active service, carry into effect any sentence until it has received the approval of an officer having power to convene a district court martial [Pakistan Army (Amendment) Act 1963 (IX of 1963)].

NOTES

1. [*Deleted vide Amendment No.* 8/III/69].

2. *Carried out forthwith.*—The officer holding the trial when passing the sentence may if a sentence of imprisonment is awarded, direct under sub-section (2) of Section 145 that the offender be not committed to prison or to custody until the orders of the authority or officer specified in Section 144 have been obtained.

128. Transmission of proceedings of a summary court martial.— The proceedings of every summary court martial shall without delay be forwarded to an officer having power to convene a district court martial, and such officer, or any higher authority, may, for reason based on the merits of the case but not on any merely technical grounds, set aside the proceedings or reduce the sentence to any other sentence which the court might have passed.

NOTES

1. [*Deleted vide Amendment No.* 8/III/65]

2. (i) The proceedings of a summary court martial cannot be sent back for revision and do not require confirmation, and any sentence passed by the court should, except as provided in Section 127 of the Act be put into execution forthwith.

(ii) Under this section the proceedings must be forwarded for review to the reviewing authority (through the Deputy Judge Advocate General, Army Headquarter, if the trial is held in Bangladesh) who, if he considers that justice has been done, should countersign the proceedings and return them to the accused's corps or unit for preservation. The reviewing authority can, for reasons based on the merits of the case, but not on merely technical grounds (as to which, see Note to Rule 116) set aside the proceedings or mitigate, remit or commute the sentence. If the sentence is illegal he must set it aside, or under Section 129 a valid sentence may be substituted by one of the authorities mentioned in section 143. The reviewing authority, if competent to act under Section 144, can also suspend a sentence awarded by court martial.

(iii) A sentence of imprisonment for three months or less unaccompanied by dismissal should normally be undergone in military custody (See section 136 and Notes). It has been ruled that a reviewing authority may direct that such a sentence should be undergone in military custody, either when reducing a sentence of imprisonment to three months or less or when the court omits to add such a direction to the sentence.

129. Substitution of a valid finding or sentence for an invalid finding or sentence.— (1) Where a finding of guilty by court martial, which has been confirmed, or which does not require confirmation, is found for any reason to be invalid or cannot be supported by the evidence, the authority which would have had power under Section 143 to commute the punishment awarded by the sentence, if the finding had been valid, may substitute a new finding, if the new finding could have validly been made by the court martial on the charge and if it appears that the court martial must have been satisfied of the facts establishing the offence specified or involved in the new finding, and may pass a sentence for the said offence.

(2) Where a sentence passed by a court martial which has been confirmed, or which does not require confirmation, not being a sentence

passed in pursuance of a new finding substituted under sub-section (1) is found for any reason to be invalid, the authority referred to in the sub-section may pass a valid sentence.

(3) The punishment awarded by a sentence passed under sub-section (1) or sub-section (2) shall not be higher in the scale of punishments than, or in excess of the punishment awarded by, the sentence for which a new sentence is substituted under this section.

(4) For the purposes of this Act, any finding or sentence substituted in accordance with this section for the finding or sentence of a court martial, and any sentence imposed for an offence specified or involved in any such substituted finding, shall have effect as if it were a finding or sentence of a court martial.

NOTES

1. *Sub-section* (1) enables any of the authorities mentioned in Section 143 to substitute a new finding for an invalid finding or for one which cannot be supported by the evidence, which have been confirmed and which are thus not open to revision and to pass a sentence on respect of the new finding. It also gives these authorities similar powers in regard to a sentence not requiring confirmation, *i.e.,* any sentence by summary court martial.

Sub-section (2) Similarly enables the said authorities to substitute a valid sentence for an invalid sentence, not being a sentence passed in pursuance of a new finding under sub-section (1).

Sub-section (3) requires that the new sentence substituted for an invalid sentence must not be higher in scale than, or in excess of, the original sentence.

2. As to mitigation of sentence after confirmation, see Section 143 and Rule 59 (2).

130. Provision in the case of accused being lunatic.— (1) Whenever, in the course of a trial by court martial, it appears to the court that the person charged is of unsound mind and consequently incapable of making his defence, or that such person committed the act alleged but was by reason of unsoundness of mind incapable of knowing the nature of the act or that it was wrong or contrary to law, the court shall record a finding accordingly, and the president of the court, or the officer holding the trial, as the case may be, shall forthwith report the case to the

confirming officer or, in the case of a court martial whose finding does not require confirmation to the prescribed officer.

(2) The confirming officer to whom a case is reported under sub-section (1) may, if he does not confirm the finding, take steps to have the accused person tried by the same or another court martial for the offence with which he was originally charged.

(3) The prescribed officer to whom a case is reported under sub-section (1) and a confirming officer confirming a finding in any case so reported to him shall order the accused person to be kept in custody in the prescribed manner, and shall report the case for the orders of the Government.

(4) On receipt of a report under sub-section (3), the Government may order the accused person to be detained in a lunatic asylum or other suitable place of safe custody.

(5) Where an accused person, having been found by reason of unsoundness of mind to be incapable of making his defence, is in custody or under detention, the prescribed officer may—

(a) if such person is in custody under sub-section (3), on the report of a medical officer that he is capable of making his defence; or

(b) if such person is detained in jail under sub-section (4), on a certificate of the Inspector General of Prisons and if such person is detained in a lunatic asylum under the said sub-section, on a certificate of any two or more of the visitors of such asylum that he is capable of making his defence,

take steps to have such person tried by the same or another court martial for the offence with which he was originally charged or, provided that the offence is a civil offence, by a criminal court.

(6) Where any person is in custody under sub-section (3), or under detention under sub-section (4),—

(a) if such person is in custody under sub-section (3), on the report of medical officer; or

(b) if such person is detained under sub-section (4), on a certificate from any of the authorities mentioned in clause (b) of sub-section (5), that, in the judgment of such officer or authority, such person may be released without danger of his doing injury to himself or to any other person,

the Government may order such person to be released, or to be determined in custody or to be transferred to a public lunatic asylum if he has not already been sent to such an asylum.

(7) Where any relative or friend of any person who is in custody under sub-section (3) or under detention under sub-section (4) desires that he shall be delivered to his care and custody, the Government may, upon the application of such relative or friend and on his giving security to the satisfaction of the Government that the person delivered shall—

(a) be properly taken care of and prevented from doing injury to himself or to any other person; and

(b) be produced for the inspection of such authority, and at such time and places, as the Government may direct,

order such person to be delivered to such relative or friend.

(8) A copy of every order made by the prescribed officer under sub-section (5) shall forthwith be sent to the Government.

NOTES

1. *Sub-section* (1).— (i) For form of findings of insanity, *see* form of proceedings of General Court Martial, District Court Martial in Third Appendix to Army Act Rules.

(ii) *Prescribed officer*.— *See Rule* 169 (1).

(iii) It is to be observed that two distinct cases are contemplated. A person may have been sane at the time when he did the act or made the omission charged, but may not be sane enough to make his defence; while on the other hand, a man insane at the time when he did the act or made the omission charged may have recovered sufficiently to take his trial.

(iv) In the case of a court martial whose finding requires confirmation, confirmation is required in both cases mentioned above.

2. An application that the accused is of unsound mind and consequently incapable of making his defence should by made before arraignment. The application will normally be made by counsel for the defence or defending officer, but should, if necessary, be made by the prosecutor. Evidence in support of the application may, of course, be given.

3. Where a court martial find that an accused person committed the act (or made the omission) alleged as constituting the offence (or offences) specified in the charge or charges but was, by reason of unsoundness of mind, incapable of knowing the nature of the act or that it was wrong or contrary to law, such finding does not amount to a conviction, but means that on the facts proved the court would have found him guilty of the offence (offences) had it not been established to their satisfaction that the accused at the time was not responsible for his actions. If such a finding is recorded, no pay and allowances are forfeited automatically under Section 65 of the Act and Pay and Allowance Regulations, *e.g.,* in respect of the period during which the accused is in custody awaiting trial.

4. *Sub-section* (3).–*Prescribed manner.*— *See* Rule 169(3). The confirming officer who confirms the finding or the prescribed officer should then forward the proceedings to Army Headquarters.

5. *Sub-section* (4).– *Other suitable place.*— In view of the provision of Section 473, Code of Criminal Procedure, the place of safe custody must, if it is not a lunatic asylum, be a jail.

6. *Sub-section* (5).–(i) *Prescribed officer.*—*See* Rule 169(2).

(ii) The certificate referred to in clause (b) is a certificate in the case of a person detained in a lunatic asylum, by the visitors of such asylum or any two of them, or in the case of a person detained in a jail, by the Inspector General of Prisons, to the effect that in their or his opinion, such person is capable of making his defence.

131. Remedy against finding and sentence of court martial.– (1) Any person subject to this Act who considers himself aggrieved by the finding or sentence of a general, field general or district court martial may submit a petition, before confirmation of such finding or sentence, to the officer empowered to confirm it and, after confirmation, to the Government, or the Chief of Army Staff or to any prescribed officer, provided that such prescribed officer is higher in rank than the one who confirmed such finding or sentence.

(2) Any person subject to this Act who considers himself aggrieved by the finding or sentence of a summary court martial may submit a petition to the Government, or the Chief of Army Staff or any officer empowered to act under Section 128.

NOTES

1. *Sub-section* (1).— (i) This sub-section is new and provides remedy against the finding and sentence of a court martial whether field general, general or district court martial, both before and after confirmation.

(ii) *Prescribed officer.— See* Rule 170.

2. *Sub-section* (2).— This sub-section provides remedy against the finding and sentence of a summary court martial.

3. *Sub-section* (1) and (2).— It will be open to the authority competent to act under this section, to act either under Section 132 and to annul the proceedings, or under Section 143 and to accord pardon or remission etc., or under Section 144 and to suspend the sentence awarded by the court martial, provided the said authority has been empowered under this sections as well.

132. Annulment of proceedings.— The Government or the Chief of Army Staff or any prescribed officer may annul the proceedings of any court martial on the ground that they are illegal or unjust.

NOTES

1. (i) The section is new and is a corollary to Section 131.

(ii) *Prescribed Officer.— See* Rule 171.

2. The authorities empowered under this section have been given very wide powers to annul the proceeding of a court martial altogether on the ground of illegality or on the ground that they are unjust.

133. Bar of appeals.— No remedy shall lie against any decision of a court martial save as provided in this Act, and for the removal of doubt it is hereby declared that no appeal or application shall lie in respect of any proceeding or decision of a court martial to any court exercising any jurisdiction whatever.

NOTE

This Section removes all doubt about the powers of High Court or the Supreme Court to entertain appeal or application against any decision, finding, sentence, etc., of a court martial.

CHAPTER XI. EXECUTION OF SENTENCES

134. Form of sentence of death.— In awarding a sentence of death a court martial shall in its discretion, direct that the offender shall suffer death by being hanged by the neck until he be dead, or shall suffer death by being shot to death.

NOTE

when the troops are on active service in an area where arrangements cannot conveniently be made for hanging an offender, the court martial should order that the offender shall suffer death by being shot to death. The sentence can then be carried into effect by the provost marshal in exercise of his powers under Section 79 (3).

135. Commencement of sentence of transportation, or rigorous imprisonment or detention.— Whenever any person is sentenced under this Act to transportation, rigorous imprisonment or detention, the term of sentence shall, whether it has been revised or not, be reckoned to commence on the day on which the original proceedings were signed by the president or, in the case of a summary court martial, by the court.

NOTES

1. (i) Under this section a term of transportation, imprisonment or detention cannot be made to commence at the expiration of a previous term, but must commence on the day on which the sentence is signed. If, therefore, the court desire to inflict, *e.g.*, six months additional imprisonment on a prisoner already undergoing six months imprisonment, of which three months are unexpired, the court must award nine months.

(ii) A term of transportation, imprisonment, or detention awarded by way of commutation must commence on the date of the original sentence even though such sentence was one of a different character.

(iii) The suspension of a sentence of transportation or imprisonment has no effect on its currency (*See* Section 147).

2. It is essential that the proceedings be dated as well as signed. When however, a president or officer holding the trial omits either to sign or date the proceedings, he can even after confirmation sign them and date his signature as of the true date of passing the sentence.

136. Execution of sentence of transportation or rigorous imprisonment.— Whenever any sentence of transportation or rigorous imprisonment is passed under this Act, or whenever any sentence of death so passed is commuted to transportation or to rigorous imprisonment, the commanding officer of the person under sentence, or such other officer as may be prescribed, shall forward a warrant in the prescribed form to the officer-in-charge of the civil prison in which such person is to be confined, and shall forward him to such prison with the warrant:

Provided that in the case of a sentence of rigorous imprisonment for a period not exceeding three months, the confirming officer, or in the case of a sentence which does not require confirmation, the court, may direct that the sentence shall be carried out in military custody:

Provided further that, on active service, a sentence of rigorous imprisonment may be carried out by confinement in such place as the officer commanding the forces in the field may, from time to time, appoint.

NOTES

1. A sentence requiring confirmation (*See* Section 119) is inoperative until confirmed; action in respect of such sentence cannot, therefore, be taken under this section before confirmation. Until promulgation has been effected, confirmation is not complete (*See* Rule 58).

2. *Officer Prescribed.*— *See* Rule 153.

3. *Prescribed Form.*— *See* Forms F and G in the Fourth Appendix.

Where a sentence of death is commuted to transportation or imprisonment, Form C or D, with necessary variation will be used, *See* Rule 4 (1).

4. *Civil Prison i.e.,* a prison established under the Prisons Act, 1894 (IX of 1894).

5. Sentence of imprisonment combined with dismissal should, as a rule, be carried out by confinement in a civil prison. Sentence of imprisonment not exceeding three months to which no dismissal has been added should be carried out by confinement in military custody.

6. The direction of the confirming officer that the sentence shall be undergone in military custody should be part of the confirmation minute ; while in the case of a summary court-martial the direction should form part of the sentence.

7. Under the further proviso, the officer commanding the forces in the field on active service may establish a kind of military prison in which sentences of imprisonment of any length may be carried out. This enables a sentence of imprisonment to be carried out locally and the prisoner, unless he is dismissed, to be sent back to duty on its expiration. The officer commanding the forces in the field can also appoint a local civil prison as a place in which such sentences may be carried out, if he considers the civil prison to be a more suitable place.

137. Execution of sentence of imprisonment in special cases.— Whenever in the opinion of an officer not below the rank of Brigadier empowered in this behalf by the Chief of Army Staff any sentence or portion of a sentence of imprisonment cannot, for special reasons, be conveniently carried out in accordance with provisions of Section 136 such officer may direct that such sentence or portion of sentence shall be carried out by confinement in any civil prison or other fit place.

NOTES

1. *Officer empowered in this behalf.*—*See* Army Order No. 7/S/55.

2. The power conferred by this section might be of use in an emergency, such as an epidemic.

3. When a portion of a sentence of transportation (*See* Section 139) or of imprisonment which has to be carried out in a civil prison is, under an order made under this section, for special reasons carried out in local civil custody out of Bangladesh, the warrant of commitment in Form F or Form G (*See* Fourth Appendix to the Rules) must be suitably varied (*See* Rule 4) and must cite the order made under this section. When the prisoner is to be despatched to Bangladesh he should be demanded by a warrant in Form K and must be committed to a civil prison in Bangladesh on a fresh warrant of commitment.

138. Execution of sentence of detention.— Where a sentence of detention is passed under this Act, the person on whom that sentence has been passed shall undergo the term of his detention either in a detention barrack or in military custody, or partly in one and partly in the other, but not in a prison.

NOTES

Passed. (i) A sentence of rigorous imprisonment which is commuted to one of detention would be a sentence of detention passed under this Act.

(ii) A sentence requiring confirmation (*See* Section 119) is inoperative until confirmed; action under this section in respect of such sentence cannot, therefore, be taken under this section before confirmation. Until promulgation has been effected, confirmation is not complete (*See* Rule 58).

139. Interim custody of offenders sentenced to transportation.- In every case in which a sentence of transportation is passed under this Act, the offender, until he is transported, shall be dealt with in the same manner as if sentenced to rigorous imprisonment and shall be deemed to have been undergoing his sentence of transportation during the term of such imprisonment.

NOTE

This section read with Section 136 enables a person sentenced to transportation to be committed to a civil prison where, until he is transported, he will be dealt with in the same manner as if sentenced to rigorous imprisonment.

A person sentenced to transportation out of Bangladesh, may be confined in any civil prison or other fit place pending his removal to Bangladesh (*See* Section 137 and Notes). A person so sentenced should, however, be sent to Bangladesh as soon as it is practicable to do so.

140. Conveyance of prisoner from place to place.— A person under sentence of transportation, rigorous imprisonment or detention may during his conveyance from place to place, or when on board a ship or aircraft, be subjected to such restraint as is necessary for his safe conduct and removal.

141. Communication of certain orders to civil prison officers.— Whenever an order is duly made under this Act setting aside or varying any sentence, order or warrant under which any person is confined in a civil prison, a warrant in accordance with such order shall be forwarded by the prescribed officer to the officer-in-charge of the prison in which such person is confined.

NOTE

For form of warrants under this section, *See* forms C, D, H, I and J in Fourth Appendix to the Rules. The heading of each of these shows clearly the cases in which it is to be used. It will be noticed that form H is

applicable to cases in which the person concerned is to be released, form J to those in which he remains in a civil prison but with a reduced sentence, and form K to those in which he is to be transferred to military custody. When a death sentence is commuted, *subsequent* to confirmation, to one of transportation or rigorous imprisonment form C or D with the necessary variations, will be used [*See* Rule 4 (1)].

The order, after promulgation, should be sent to Judge Advocate General, Bangladesh Army, for attachment to the court martial proceedings. *See* "Army Regulation (Instruction) 319" [*Substituted vide Amendment No.* 18/111/63].

Prescribed Officer.— *See* Rule 154.

142. Execution of sentence of fine.— When a sentence of fine is imposed by a court martial under this Act, whether the trial was held within Bangladesh or not, a copy of such sentence, signed and certified by the president of the court or the officer holding the trial, as the case may be, may be sent to any magistrate in Bangladesh, and such magistrate shall thereupon cause the fine to be recovered in accordance with the provisions of the Code of Criminal Procedure, 1898, (V of 1898) for the levy of fines as if it were a sentence of fine imposed by such magistrate.

NOTE

This provision should be used when the fine imposed by sentence of a court martial is not recoverable under sub-section (1) (e) or 2 (h) of Section 65.

CHAPTER XII. PARDONS, REMISSIONS AND SUSPENSION

143. Pardons and remissions.— (1) When any person subject to this Act has been convicted by a court martial of any offence, the Government or the Chief of Army Staff or any officer not below the rank of Brigadier empowered in this behalf by the Chief of Army Staff may—

(i) either without conditions or upon any conditions which the person sentenced accepts, pardon the person or remit the whole or any part of the punishment awarded; or

(ii) mitigate the punishment awarded or commute such punishment for any less punishment or punishments mentioned in this Act:

Provided that a sentence of transportation shall not be commuted for a sentence of rigorous imprisonment for a term exceeding the term of transportation awarded by the court, and a sentence of rigorous imprisonment shall not be commuted for a sentence of detention for a term exceeding the term of rigorous imprisonment awarded by the court.

(2) If any condition on which a person has been pardoned or a punishment has been remitted is, in the opinion of the authority which granted the pardon or remitted the punishment, not fulfilled, such authority may cancel the pardon or remission, and thereupon the sentence of the court shall be carried into effect as if such pardon had not been granted or such punishment had not been remitted:

Provided that, in the case of a person sentenced to transportation, rigorous imprisonment, or detention, such person shall undergo only the unexpired portion of his sentence.

(3) When under the provisions of sub-section (5) of Section 62 a non-commissioned officer is deemed to be reduced to the ranks, such reduction shall, for the purposes of this section, be treated as a punishment awarded by sentence of a court martial.

NOTES

1. As to mitigation, remission and commutation of sentence, *see* Notes to Section 124; as to substitution of a valid for an invalid sentence, *see* Section 129; and as to the mitigation of the sentence when the finding on one of several charges has been found to be invalid, [*see* Rule 59 (2)].

2. *Sub-section* (1).— (i) *Office*.....empowered, *See* Bangladesh Army Order No. 7/S/55.

(ii) A sentence of dismissal might be remitted on the condition that the person sentenced shall not receive pay in respect of or count service for any purpose during the period spent under the dismissal. The conditions, if any, must be clearly stated and the written acceptance of the person obtained. Mitigation or commutation cannot be made conditional.

A pardon takes away the conviction, and when a pardon has been granted the record of the conviction must be removed from the pardoned person's conduct sheet and will not be provable against him should he be again tried by court martial and convicted of any offence.

3. *Sub-section* (2).— *Proviso. Unexpired portion.*—This is the period of the sentence less the period the person was in custody in consequence of the sentence, *i.e.,* less the period from the date of sentence to date of release in consequence of the remission.

4. *Sub-section* (3).— The remission of the punishments mentioned in Section 62 (5) would not of itself avoid the reduction to the ranks consequent on the sentence. If it is desired to avoid such reduction to the ranks the reduction may, by reason of the sub-section, be remitted as well.

5. Any order made under this section should, after promulgation, be sent to the Judge Advocate General, Bangladesh Army for attachment to the court martial proceedings. *See* "Army Regulations (Instructions) 319" [*Substituted vide Amendment No.* 18/111/63].

144. Suspension of sentence of transportation, rigorous imprisonment or detention.— (1) Where a person subject to this Act has been sentenced by court martial to transportation, rigorous imprisonment or detention, the Government, or the Chief of Army Staff or any officer empowered to convene a general or field general court martial may suspend the sentence whether or not the offender has already been committed to prison or custody.

(2) The authority or officer specified in sub-section (1) may in the case of an offender so sentenced direct that, until the orders of such authority or officer have been obtained, the offender shall not be committed to prison or custody.

(3) The powers conferred by sub-sections (1) and (2) may be exercised in the case of any such sentence which has been confirmed, mitigated or commuted.

NOTES

1. *Sub-section* (1).— (i) Under this sub-section, read with Section 148, the authority or officer competent to act can suspend a sentence, or order it into execution and again suspended it etc., at any time.

(ii) The power conferred by this sub-section is available to such officer or authority, in addition to their powers of mitigation, remission or commutation of sentences under other provisions of the Act (*See* Section 151).

(iii) A minute of suspension may be signed by a staff officer 'for' the competent authority so long as it makes it clear that such authority considered the case and arrived at the decision to suspend the sentence personally. It appears that, in the case of Government, the order may, under the 'Rules of Business', be made and signed by an officer down to an Assistant Secretary to the Government.

2. *Sub-section* (2).— The authority or officer may, in his discretion, issue a general direction that no person sentenced to transportation, or imprisonment or detention is to be committed to prison or to military custody, as the case may be, until his orders have been obtained.

3. *Sub-section* (3).— Where an authority competent to do so has already mitigated or commuted a sentence, it may still exercise his power to suspend the sentence under sub-section (1).

4. A non-commissioned officer who is sentenced to transportation, rigorous imprisonment, detention or field punishment is *ipso facto* reduced to the ranks [Section 62 (5)] and the suspension of his sentence does not cancel or suspend the reduction. There is, however, no bar to a person receiving promotion or an appointment whilst under a suspended sentence.

145. Orders pending suspension.— (1) Where the sentence referred to in Section 144 is imposed by a court martial other than a summary court martial the confirming officer may, when confirming the sentence, direct that the offender be not committed to prison or to custody until the orders of the authority or officer specified in Section 144 have been obtained.

(2) Where a sentence of rigorous imprisonment or detention is awarded by a summary court martial, the officer holding the trial or the officer authorised to approve the sentence under the proviso to Section 127 may make the direction referred to in sub-section (1).

NOTES

1. *Sub-section* (1).— (i) If the confirming officer is himself empowered to convene a general or field general court-martial, he need not record a formal direction requiring reference to himself, but may record his orders of suspension under Section 144 (1) forthwith.

(ii) The reference by the confirming officer, who is not empowered to act under Section 144 (1) must be made at the time of confirming the sentence.

2. Sub-section (2).— Where the officer authorised to approve the sentence under "Section 127" [*Substituted vide Amendment No.* 11/1/65] is also empowered to convene a general or field general court martial, he need not record a formal direction requiring reference to himself but may record his order under Section 144 (1) forthwith.

146. Release on suspension.— Where in accordance with any order passed under Section 144 a sentence is suspended, the offender shall, whether he has been committed to prison or custody or not, be released forthwith.

147. Computation of period of sentence under suspension.— Any period during which a sentence is under suspension shall be reckoned as part of the term of such sentence.

NOTE

Suspension of sentence does not affect its continuity. Under Section 135, sentence of transportation, imprisonment or detention, whether suspended or not, runs from the date on which the original proceedings of the court were signed and runs continuously until it express.

148. Power to set aside suspension or to order remission.—The authority or officer specified in Section 144 may, at any time whilst a sentence is suspended, order,—

(a) that the offender be committed to undergo the unexpired portion of the sentence; or

(b) that the sentence be remitted.

NOTES

1. *See* Note 1 to Section 144.

2. If at the specified periodical review required by Section 149, the competent authority considers that a sentence ought not to remain suspended, he will refer the case to an authority empowered to act under this section. An unsuspended sentence may, however, be referred to an authority empowered to act under this section at any time with a view either to its remission or to the committal of the offender to undergo the unexpired portion of the sentence.

3. The section does not contemplate the partial remission of a sentence; the only power of remission under clause (b) is to remit the whole sentence. Partial remission must (if at all) be effected under Section 143.

4. When an offender is committed to prison to undergo the unexpired portion of his sentence, the unexpired portion should be stated in the committal warrant. As to signing such warrant, *see* Rule 153.

149. Periodical review of suspended sentence.— (1) Where a sentence has been suspended, the case may at any time and shall, at intervals of not more than four months, be reconsidered by the authority or officer specified in Section 144 or by an officer not below the rank of field officer duly authorised in this behalf by the authority or officer specified in Section 144.

(2) Where on such re-consideration by the officer authorised in this behalf under sub-section (1), it appears to him that the conduct of the offender since his conviction has been such as to justify a remission of the sentence, he shall refer the case to the authority or officer specified in Section 144.

NOTES

1. *See* Notes to Section 148.

2. Failure to reconsider a sentence at the proper date has no effect upon the sentence; it can be subsequently reconsidered, and a further suspension on committal may then be ordered.

3. *Officer duly authorised in this behalf.*— Such authorisation may be made by a general or special order; but the officer authorised must not

be below the rank of field officer. It will ordinarily be convenient to authorise the accused's commanding officer in this behalf.

150. Procedure on further sentence of offender whose sentence is suspended.— Where an offender, while a sentence on him is suspended, is sentenced for any other offence, then,—

(a) if the further sentence is also suspended under this Act, the two sentences shall run concurrently;

(b) if the further sentence is for a period of three months or more and is not suspended under this Act, the offender shall also be committed to prison or military custody on the unexpired portion of the previous sentence, but both sentences shall run concurrently; and

(c) if the further sentence is for a period of less than three months and is not suspended under this Act, the offender shall be committed on that sentence only, and the previous sentence shall, subject to any order which may be passed under Section 148 or 149 continue to be suspended.

NOTES

1. The case of a further sentence of exactly three months which is not suspended will be dealt with under clause (b) and not under clause (c).

2. Under clause (b), the offender is committed to undergo the unexpired portion of the previous sentence from the date the further sentence is signed. An order by a superior military authority under Section 148 (a) is not required.

Committal warrants must, in order to comply with the provisions of the Prisoners Act (III of 1900), be forwarded to the authorities of the Prison to which the offender is sent. It will generally be convenient to prepare separate warrants; in preparing the warrant in respect of the former sentence, care must be taken to state the unexpired portion which the offender has to undergo.

3. *Clause* (c).— If dismissal has been added to the further (unsuspended) sentence and no order has been passed under Section 136, that the imprisonment is to be undergone in military custody, the offender should not be committed to a civil prison until the proper authority

has had an opportunity to order the unexpired portion of the former sentence into execution. It should be remembered that as soon as the offender is received into a civil prison, the sentence of dismissal will take effect (Rule 155) and he will cease to be subject to the Act. The former (suspended) sentence will then be inoperative and he will escape the liability to be committed to undergo the unexpired portion.

151. Scope of power of suspension.— The powers conferred by Section 144 or Section 148 shall be in addition to and not in derogation of the powers of mitigation, remission or commutation of sentences.

NOTES

1. *See* Note 1 (ii) to Section 144.

2. The powers of an authority of officer who may mitigate, remit or commute a sentence under Section 124 or Section 143 are not, in any way, affected by any of the Sections 144 or 148.

152. Effect of suspension on dismissal.— (1) Where in addition to any other sentence, the punishment of dismissal has been awarded by a court martial and such other sentence is suspended under Section 144, then, such dismissal, shall not take effect until so ordered by the authority or officer specified in Section 144.

(2) If such other sentence is remitted under Section 148 the punishment of dismissal shall also be remitted.

NOTE

In the case of a sentence of dismissal combined with transportation, rigorous imprisonment, or detention which is suspended, the dismissal does not take effect until so ordered by the officer or authority who can act under Section 144. But when a sentence of transportation, imprisonment, or detention is remitted under Section 148, the punishment of dismissal must also be remitted.

CHAPTER XIII. — PROPERTY OF DECEASED PERSONS, DESERTERS AND LUNATICS.

153. Property of deceased persons and deserters, other than officers.— The following provisions are enacted respecting the disposal of the property of every person subject to this Act other than an officer, who dies or deserts:—

(1) The commanding officer of the corps, unit or detachment to which the deceased person or deserter belonged "or the officer commanding a station where the deceased person or deserter left his belongings before moving to field or operational area or before deserting" [*Inserted vide Amendment No.* 11/VI/65] shall secure all the moveable property belonging to the deceased or deserter that is in camp or quarters, and cause an inventory thereof to be made, and draw any pay and allowances due such person.

(2) In the case of a deceased person who has left in a bank (including any post office savings bank, however named) a deposit not exceeding one thousand Taka, the commanding officer "or the officer commanding the station" [*Inserted vide Amendment No.* 12/VI/65] may, if he thinks fit, require the agent, manager or other proper officer of the bank to pay the deposit to him forthwith, and such agent, manager or other officer shall comply with the requisition notwithstanding anything in the rules of the bank; and after the payment thereof in accordance with such requisition, no person shall have any right in respect of the deposit except as hereinafter provided.

(3) In the case of a deceased person whose representative, widow or next of kin is on the spot and has given security for the payment of regimental or other debts in camp or quarters, if any, of the deceased, the commanding officer, "or the officer commanding the station" [*Inserted vide Amendment No.* 12/VI/65] shall deliver over any property received under clauses (1) and (2) to that representative, widow or next of kin as the case may be, and shall not further interfere in relation to the property of the deceased.

(4) In the case of a deceased person whose estate is not dealt with under clause (3), and in the case of any deserter, the commanding officer, "or the officer commanding the station" [*Inserted Amendment vide No.* 12/VI/65] shall cause such of the moveable property as does not consist of money to be sold by public auction, and shall pay the regimental and other debts in camp or quarters, if any, and in the case of a deceased person, the expenses of his funeral ceremonies, from the proceeds of the

sale and from any pay and allowances drawn under clause (1) and from the amount of the deposit, if any, received under clause (2).

(5) The surplus, if any, shall, in the case of a deceased person, be paid to his representative, widow or next of kin, if any, or in the event of no claim to such surplus being established, within twelve months after the death then the same shall be remitted to the prescribed person:

Provided that such remission shall not bar the claim of any person to such surplus or any part thereof.

(6) In the case of a deserter, the surplus, if any, shall be forthwith remitted to the prescribed person and shall, on the expiry of three years from the date of his desertion, be forfeited to the State unless the deserter shall in the meantime have surrendered or been apprehended.

(7) The decision of the commanding officer "or the officer commanding the station" [*Inserted vide Amendment No.* 12/VI/65] as to what are the regimental and other debts in camp or quarters of a deceased person or a deserter or as to the amount payable therefor shall, be final.

NOTES

1. The procedure for the disposal of the estates of officers is laid down in Section 158 to 165. Section 153 to 157 provide for the disposal of estate of persons other than officers, *i.e.,* junior commissioned officers, warrant officers, non-commissioned officers and men.

2. *Persons subject to this Act.*— The property of civilians when subject to the Act under Section 2(1) (c) is to be dealt with under the Act.

3. *Who deserts.*— A person who has been absent from duty for sixty days and has not subsequently surrendered or been apprehended is a deserter for the purposes of the section [*See* Section 166 (1)].

4. *Clause* (1), *moveable property.....in camp or quarters.*— If any moveable property of the deceased is lying elsewhere, say, in his ancestral home, the commanding officer cannot interfere in relation to it.

5. *Clause* (2), *the commanding officer may.*— The power to collect bank balance is discretionary and the commanding officer must exercise it with due regard to the circumstances of each case. It would obviously be undesirable to collect a bank balance, where the estate is contested and

the amount is *not* required for the payment of regimental and other debts in camp or quarters. Where, however, the estate is not contested and the total value thereof including the bank balance does not exceed Taka one thousand and it is desirable to help the widow or next of kin to realise the bank balance, without obtaining a succession certificate, etc., the commanding officer may exercise the power conferred upon him by this clause.

6. *Clause* (3).— (i) The representative, widow or next of kin, who takes over the estate under this clause must be *on the spot. See* also Section 154 which empowers the commanding officer to hand over the estate to any one of the next of kin, etc.

(ii) The provisions of the clause are mandatory and where the estate is handed over to deceased's representative etc., the commanding officer cannot farther interfere in relation to the property, for any purpose whatsoever.

7. *Clause* (4).— In the best interests of an estate, which is appreciable, the auction should be conducted by the commanding officer himself or by some other responsible person under the supervision of the commanding officer.

8. *Clause* (5). (i) *See* Section 154 and 155 and Note thereto.

(ii) prescribed person.–*See* Rule 172.

9. Clause (6). (i) Deserter.—*See* Section 166 (1).

(ii) prescribed person.–*See* Rule 172.

154. Disposal of certain property without production of probate, etc.— Property deliverable and money payable to the representative, widow or next of kin of a deceased person under Section 153 may, if the total value or amount thereof does not exceed one thousand taka, and if the prescribed person thinks fit, be delivered or paid to any one of them who appears to be entitled to receive it or to administer the estate of the deceased, without requiring the production of any probate, letters of administration, succession certificate or other such conclusive evidence of title.

NOTES

1. *See* Note 6 to Section 153. It is no part of the duty of the prescribed person to adjudicate upon rival claims. He may hand over the

property or surplus to any one of the representatives, the widow or the next of kin "who *appears* to be entitled to receive it". But it is, for obvious reasons, necessary that the prescribed person should select the most deserving of them, *See* also Section 155 and Note thereto.

2. *Prescribed person.— See* Rule 173.

155. Discharge of commanding officer, prescribed person and the Government.— Any payment of money or delivery, application, sale or other disposition of any property made, or in good faith purported to be made, by the commanding officer or the officer commanding the station or the prescribed person in pursuance of Section 153 or 154 shall be valid and shall be a full discharge to those ordering or making the same and to the Government from all further liability in respect of the property or money, but nothing herein contained shall affect the rights of any executor or administrator or other representative, or of any creditor of a deceased person against any person to whom such delivery or payment has been made.

NOTE

This is an indemnity clause and protects Government and its agents from pecuniary liability, where their decision happens to be questionable. The section does not, however, affect the right of the rightful claimant against the person to whom the property or surplus is actually, but wrongfully, delivered.

156. Application of Section 153 to 155 to lunatics, etc.— The provisions of Sections 153 to 155 shall, so far as they can be made applicable, apply in the case of a person subject to the Act, other than an officer who, notwithstanding anything contained in the Lunacy Act, 1912 (IV of 1912) is ascertained in the prescribed manner to be insane, or who, being on active service, is officially reported missing, as if he had died on the day on which his insanity is so ascertained or, as the case may be, on the day on which he is officially reported missing:

Provided that in the case of a person so reported missing no action shall be taken under clauses (2) to (5) of Section 153 until be is officially presumed to be dead.

NOTES

1. *Prescribed manner,— See* Rule 174.

2. *Officially presumed.*— The ordinary rule for the proving of death is stated in Sections 107 and 108 of the Evidence Act. The provision to this section creates an exception and provides that the estate of a person missing *on active service only* may be presumed for official purposes, without reference to those sections and, when so presumed, the provisions of clauses (2) to (5) of Section 153 may be acted upon as if the person reported to be missing were in fact dead.

157. Property of officers.— The provisions of Sections 158 to 163, inclusive, shall apply to the disposal of the property of officers subject to this Act who die or desert.

158. Powers of committee of adjustment.— (1) On the death or desertion of an officer, a committee of adjustment appointed in this behalf in the manner prescribed (hereinafter referred to as the committee) shall, as soon as may be, subject to the rules made in this beheld under this Act,—

(a) secure all moveable property belonging to the deceased or deserter that is in camp or quarters and cause an inventory thereof to be made and ascertain the pay and allowances, if any, due to him; and

(b) ascertain the amount, and provide for the payment, of the regimental and other debts in camp or quarters, if any, of the deceased or deserter.

(2) In the case of a deceased officer whose representative, widow or next of kin has given security to the satisfaction of the committee for the payment of the regimental and other debts in camp or quarters if any, of the deceased, the committee shall deliver any property receiver by it under sub-section (1) to that representative, widow or next of kin and shall not further interfere in relation to the property of the deceased.

(3) In the case of a deceased officer, the committee, save as may be prescribed, shall, if it appears necessary for the payment of the regimental and other debts in camp or quarters, and the expenses, if any, incurred by the committee, collect all moneys left by the deceased in any bank (including any post office savings bank, however named) and for that purpose may require the agent, manager of other proper officer of the bank to pay the moneys to the committee forthwith, and such agent, manager or other officer shall comply with the requisition not withstanding anything in any rules of the bank; and when any money has been paid in compliance with the

requisition under this sub-section, no person shall have a claim against the bank in respect of such money.

(4) In the case of a deceased officer, whose estate has not been dealt with under sub-section (2) and in the case of a deserter, the committee, save as may be prescribed, shall, for the purpose of paying the regimental and other debts in camp or quarters, and may in any other case, sell or convert into money such of the moveable property of the deceased or deserter as does not consist of money.

(5) The committee shall, out of the money referred to in sub-sections (3) and (4), pay the regimental and other debts in camp or quarters, of any, of the deceased or deserter and, in the case of a deceased, also the expenses of his last illness and funeral.

(6) In the case of a deceased officer the surplus, if any, shall be remitted to the prescribed person.

(7) In the case of an officer who is a deserter, the surplus, if any, shall be forthwith remitted to the prescribed person and shall, on the expiry of three years from the date of his desertion, be forfeited to the State, unless the deserter shall in the meantime have surrendered or been apprehended.

(8) If, in any case, a doubt or difference arises as to what are the regimental and other debts in camp or quarters of a deceased officer or a deserter or as to the amount payable therefore, the decision of the prescribed person shall be final.

(9) For the purposes of the exercise of its duties under this section, the committee shall, to the exclusion of all authorities and persons whomsoever, have the same rights and powers as if it had taken out representation to the deceased, and any receipts given by the committee shall have effect accordingly.

NOTES

1. *Sub-section* (1). (i) D*esertion.—See* Section 166(1).

   (*ii*) P*rescribed manner.— See* Rule 175.

   (*iii*) M*oveable property*.....in camp or quarters, s*ee* Note 4 to Section 153.

2. *Sub-section* (2).— *See* Note 6 to Section 153.

3. *Sub-section* (3).— (i) *prescribed limit, see* Rule 176.

(ii) The power of a committee of adjustment to lift bank balances is restricted to the amount required for the payment of regimental and other debts in camp or quarters and the expenses incurred by the committee.

4. *Sub-section* (4) *and may in any other case.*— Where, for instance, the committee have no money to pay the expenses of the last illness or the expenses incurred by them, or where they have been specifically asked by the legal representative, widow or next of kin to do so, they may sell or convert into money any moveable property which does not consist of money [*See* sub-section (5)].

5. *Sub-section* (6).— P*rescribed person. See* Rule 177.

6. *Sub-section* (7).— P*rescribed person. See* Rule 177.

7. *Sub-section* (8).— P*rescribed person. See* Rule 178.

8. *Sub-section* (9).— The sub-section is intended to save all those who deal with a committee of Adjustment from the risk of further claim by the heirs of deceased officer.

159. Disposal of surplus by the prescribed person.— On receipt of the surplus referred to in sub-section (6) of Section 158 the prescribed person shall proceed as follows:—

(1) If he knows of a representative, widow or next of kin of the deceased, he shall pay the surplus to that representative, widow or next of kin;

(2) If he dose not know of any such representative, widow or next of kin he shall publish every year a notice in the prescribed form and manner for six consecutive years. If no claim to the surplus is made by a representative, widow of next of kin of the deceased within six months after the publication of the last of such notices, the prescribed person shall deposit the surplus together with any income of accumulation of income accrued therefrom to the credit of the Government:

Provided that such deposit shall not bar the claim of any person to such surplus or any part thereof.

NOTE

Clause (2).— P*rescribed form. See* Rule 179.

160. Disposal of certain property without production of probate, etc.— Property deliverable and money payable to the representative, widow of next of kin of a deceased officer under Section 158 or Section 159 may, if the total value thereof does not exceed two thousand Taka, and if the prescribed person thinks fit, be delivered of paid to anyone of them who appears to him to be entitled to receive it or to administer the estate of the deceased, without requiring the production of any probate, letters of administration, succession certificate or other such conclusive evidence of title.

NOTES

(i) *Prescribed person. See* Rules 177 and 178.

(ii) *See* Note to Section 154 which applies also to this section.

161. Discharges of committed, prescribed person and the Government.— Any payment of money or delivery, application, sale or other disposition of an property made, or in good faith purported to be made, by the committee or the prescribed person in pursuance of Section 158, Section 159 or Section 160 shall be valid and shall be a full discharge to those ordering or making the same and to the Government from all further liability in respect of the property or money; but nothing in this section shall affect the rights of any executor or administrator or other representative, or of any creditor of the deceased officer against any person to whom such delivery or payment has been made.

NOTE

Cf. Section 155 and the Note thereto.

162. Property in the hands of the committee or the prescribed person not to be assets at the place where the committee or the prescribed person is stationed.— Any property coming under Section 158 into the hands of the committee or the prescribed person shall not, by reason of so coming, be deemed to be assets or effects at the place in which that committee or prescribed person is stationed and it shall not be necessary by reason thereof that representation be taken out in respect of that property for that place.

NOTE

The section is intended to make the committee of adjustment a sort of representative of the deceased officer, without their actually, taking out representation to enable them to deal with the estate in the manner specified in the preceding sections.

163. Saving of rights of representative.— After the committee has deposited with the prescribed person the surplus of the property of any deceased officer under sub-section (6) of Section 158 any representative of the deceased shall, as regards any property not collected by the committee and not forming part of the aforesaid surplus, have the same rights and duties as if Section 158 not been enacted.

NOTE

A committee of adjustment is not, of course, expected to collect all the assets of a deceased officer. Any assets not collected by them may be collected by any representative of the deceased.

164. Applications of sections 158 to 163 to lunatics, etc.— The provisions of Sections 158 to 163 shall, so far as they can be made applicable, apply in the case of an officer who, notwithstanding anything contained in the Lunacy Act, 1912 (IV of 1912), is ascertained in the prescribed manner, to be insane, or who, being on active service, is officially reported missing, as if he had died on the day on which his insanity is so ascertained or, as the case may be, on the day on which he is officially reported missing:

Provided that, in the case of an officer so reported missing, no action shall be taken under sub-section (2) to (5) of Section 158 until such time as he is officially presumed to be dead.

NOTES

1. *Prescribed manner. See* Rule 180.

2. *Officially reported missing. See* Note to Section 156.

165. Appointment of standing committee of adjustment when officers die of desert while on active service.— When an officer dies or deserts while on active service, the references in the foregoing sections of this Chapter to the committee shall be construed as references to the standing committee of adjustment, if any, appointed in this behalf in the manner prescribed.

NOTES

1. It is very difficult, if not impossible, to appoint a fresh committee of adjustment for dealing with the estate of each officer who dies on active service. It would, therefore, be convenient to utilise the provisions of this section and to appoint a standing committee of adjustment at the base of operations to deal with estates of all officers who die or desert.

2. *Prescribed manner. See* Rule 175.

166. Interpretations.— For the purposes of this Chapter—

(1) a person shall be deemed to be a deserter if he without authority has been absent from duty for a period of sixty days and has not subsequently surrendered or been apprehended;

(2) the expression "regimental and other debts in camp or quarters" includes money due as military debts, namely, sums due in respect of, or of any advance in respect of—

(a) quarters;

(b) mess, band and other regimental accounts;

(c) military clothing, appointments and equipment, not exceeding a sum equal to six months' pay of the deceased and having become due within eighteen months before his death.

(3) "representation" includes probate and letters of administration with or without the will annexed, and a succession certificate, constituting a person the executor or administrator of the estate of a deceased person or authorising him to receive or realize the assets of a deceased person;

(4) "representative" means any person who has taken out representation.

NOTE

Clause (1). Mere absence without leave for a period of sixty days is enough to constitute a man a deserter for the purposes of Chapter XIII, *i.e.,* for all purposes connected with the effects of a deserter in camp or quarters. Note that the estate of a deserter outside camp or quarters cannot be collected or otherwise dealt with under this Chapter.

CHAPTER XIV.–MISCELLANEOUS PRIVILEGES

167. Complaint against officers.— (1) Any person subject to this Act, other than an officer, who deems himself wronged by any superior or other officer, may, if not attached to a unit, troop or company, complain to the officer under whose command or orders he is serving and may, if attached to a unit, troop or company, complain to the officer commanding the same.

(2) When the officer complained against is the officer to whom any complaint should, under sub-section (1), be preferred the aggrieved person may complain to such officer's next superior officer.

(3) Every officer receiving such complaint shall examine into it for giving full redress to the complaint or, when necessary refer it to superior authority.

(4) Every such complaint shall be preferred in such manner and through such channels as may from time to time be specified by proper authority.

(5) The Government may revise any decision by the Chief of Army Staff under sub-section (2), but otherwise the decision of the Chief of Army Staff shall be final.

NOTES

1. Complaints may be made respecting any matter, but can be made by an individual only. The combined complaint of several persons can never be permissible, but should not, if well founded, be treated as mutinous where it is clear that the only object of those making it, is to procure redress of the matters by which they think themselves wronged. A complaint cannot legitimately be preferred to a superior officer except in the regular course defined by this section. The channels through which complaints must be preferred are specified in the Regulations for the Army and it is only where the immediate superior refuses or unnecessarily delays to redress or forward the complaint that direct application can be made to higher authority. The officer in question ought to be informed of the application being made to his superior.

2. *Sub-section* (5).— The persons to whom the section applies *i.e.*, junior commissioned officers and persons below that rank have no right to prefer a complaint direct to the Government and the decision of the Chief of Army Staff is final in their case. But, if such a person is dissatisfied with

the decision of the Chief of Army Staff he may submit a further petition to the Government, who may revise such a decision in a suitable case.

168. Complaint by officers.— Any officer who deems himself wronged by his commanding officer or any superior officer and who, on due application made to his commanding officer, does not receive the redress to which he considers himself entitled, may complain to the Government in such manner and through such channels as may from time to time be specified by proper authority.

NOTES

1. An officer who deems himself aggrieved by his commanding officer has the right to complain to the Government direct. But, every such complaint must be submitted in the manner and through the channels specified in the Regulations for the Army.

2. Although the complaint is submitted to the government, an intermediate authority is not debarred from expressing his own view of the case and such an expression of opinion may, in some cases, even suffice to tender further steps unnecessary.

169. Privileges of persons attending court martial.— (1) No president or member of a court martial, no judge advocate, no party to any proceedings before a court martial, or his legal practitioner or agent, and no witness acting in obedience to a summons or order to attend a court martial shall, while proceeding to, attending, or returning from, a court martial, be liable to arrest under civil or revenue process.

(2) If any such person is arrested under any such process, he shall be discharged by order of the court martial.

170. Exemption from arrest for debt.— (1) No person subject to this Act shall, so long as he belongs to the Bangladesh Army, be liable to be arrested for debt under any process issued by, or by the authority of, any civil or revenue court or revenue officer.

(2) The judge of any such court or the said officer shall examine into any complaint made by any such person or his superior officer of the arrest of such person contrary to the provisions of this section, and shall, by warrant under his hand, discharge the person, and award reasonable costs to the complainant, who may recover those costs in like manner as he might have recovered costs awarded to him by a decree against the person obtaining the process.

(3) For the recovery of such costs no court fee shall be payable by the complainant.

171. Property exempted from attachment.— Neither the arms, clothes, equipment, accoutrement of necessaries of any person subject to this Act, nor any animal used by him for the discharge of his duty, shall be seized, nor shall the pay and allowances of any such person or any part thereof be attached, by direction of any civil or revenue court or any revenue officer, in satisfaction of any decree or order enforceable against him.

NOTE

See Also Section 60 of the Code of Civil Procedure.

172. Application of the last two foregoing sections to reservists.— Every person belonging to any of the categories of the Reserves of the Bangladesh Army constituted under the Army and Air Force Reserves Act, 1950 (XLVII of 1950) shall, when called out or engaged upon or returning from, training or service, be entitled to all the privileges accorded by Sections 170 and 171 to a person subject to this Act.

173. Priority of hearing by courts of cases in which persons subject to this Act are concerned.— (1) On the presentation to any court by or on behalf of any person subject to this Act of a certificate from the proper authority, that leave of absence has been trained to him or has been applied for by him for the purpose of prosecuting or defending any suit or other proceeding in such court, the court shall, on the application of such person, arrange as far as may be possible, for the hearing and final disposal of such suit or other proceeding within the period of leave so granted or applied for.

(2) The certificate from the proper authority shall state the first and the last day of leave or intended leave, and shall set forth a description of the case with respect to which the leave was granted or applied for.

(3) No fee shall be payable to the court in respect of the presentation of any such certificate, or in respect of any application by or on behalf of any such person for priority for the hearing of his case.

(4) Where the court is unable to arrange for the hearing and final disposal of the suit or other proceeding within the period of such leave or intended leave as aforesaid, it shall record its reasons for such inability

and shall cause a copy thereof to be furnished to such person on his application without any payment whatever by him in respect of the application for such copy or of the copy itself or otherwise.

(5) If in any case a question arises as to the proper authority qualified to grant such certificate as aforesaid such question shall be at once referred by the court to the officer commanding the corps or unit concerned, whose decision shall be final.

NOTE

The Soldier's Litigation Act, 1925 (IV of 1925), which is reproduced in the Manual provides among other things, for the postponement when necessary in the interests of justice, of proceedings pending before a civil or revenue court in Bangladesh to which any person subject to the Act is a party when such person in unable to appear personally or is not represented by any person duly authorised to appear, plead or act in his behalf. This concession does not, however, extend to pre-emption cases or to cases where soldiers' interests are identical with those of another party to the proceedings and are adequately represented by such other party or are merely of a formal nature.

174. Order for custody and disposal of property pending trial in certain cases.— When any property regarding which any offence appears to have been committed, or which appears to have been used for the commission of any offence, is produced before a court martial during a trial, the court may make such order as it thinks fit for the proper custody of such property pending the conclusion of the trial and, if the property is subject to speedy or natural decay, may, after recording such evidence as it thinks necessary, order it to be sold or otherwise disposed of.

175. Order for disposal of property regarding which offence committed.— (1) After the conclusion of a trial before a court martial, the court or the officer confirming the finding or sentence of such court martial, or any authority superior to such officer, or, in the case of the trial by summary court martial, "an officer having power to convene a district court martial" [*Substituted vide Amendment. No.* 12/VI/65], may make such order as it or he thinks fit for the disposal by destruction, confiscation, delivery to any person claiming to be entailed to possession thereof or otherwise of any property or document produced before the court or in its custody, or regarding which any offence appeals to have been committed or which has been used for the commission of any offence.

(2) Where any order has been made under sub-section (1) in respect of property regarding which an offence appears to have been committed, a copy of such order signed and certified by the authority making the same may, whether the trial was held within Bangladesh or not, be sent to a magistrate in any district in which such property for the time being is, and such magistrate shall thereupon cause the order to be carried into effect as if it was an order passed by such magistrate under the provisions of the Code of Criminal Procedure, 1898 (V of 1898).

Explanation.— In this section the term "property" includes in the case of property regarding which an offence appears to have been committed, not only such property as has been originally in the possession or under the control of any person, but also any property into or for which the same may have been converted or exchanged, and anything acquired by such conversion or exchange whether immediately or otherwise.

NOTES

1. The stealing or misappropriation of property does not alter the ownership, and therefore, *prima facie* the person from whom property has been stolen or misappropriated is the lawful owner of it, and can recover it from the holder.

2. Where stolen property has no been recovered the value of the property should be stated in the particulars of the charge and proved in evidence. Stoppages may then be awarded to recoup the owner. In case of theft followed by sale to an innocent purchaser, stoppages may be awarded to recoup the purchaser on a charge of theft, provided that charge contains an additional averment informing the accused of the further liability he has incurred in respect of the innocent purchaser.

CHAPTER XV. — RULES

176. Power to make rules.— (1) The Government may make rules for the purpose of carrying into effect the provisions of this Act.

(2) Without prejudice to the generality of the power conferred by sub-section (1), such rules may provide for—

(a) the retirement, release, discharge, removal or dismissal from the service of persons subject to this Act;

(b) the specification of punishments which may be awarded as field punishments under Section 23 and 61;

(c) the assembly and procedure of courts of inquiry, "the recording of the summaries of evidence and the abstract of evidence" [*Inserted vide Amendment No.* 9/11/65] and the administration of oaths and affirmations be such courts;

(d) the convening and constitution of court martial;

(e) the adjournment, dissolution and sittings of courts martial;

(f) the procedure to be observed in trials by courts martial and the qualifications of legal practitioners who appear thereat;

(g) the confirmation, revision and annulment of, and petitions against the findings and sentences of courts martial;

(h) the carrying into effect of sentences of courts martial;

(i) the forms and orders to be made under the provisions of this Act, relating to courts martial and sentences of death, transportation, rigorous imprisonment or detention;

(j) the constitution of authorities to decide for what persons, to what amounts and in what manner provision should be made for dependants under Section 71 and the due carrying out of such decisions;

(k) the relative rank of, and powers of command to be exercised by, officers, junior commissioned offices, warrant officers, petty officers and non-commissioned officers of the Bangladesh Army, Navy and Air Force, when acting together;

(l) deductions of account of public and regimental debts from the pay and allowances of persons subject to this Act; and

(m) any matter in this Act directed to be prescribed.

(3) All rules made under this Act shall be published in the official Gazette, and, on such publication, shall have effect as if enacted in this Act.

NOTES

1. The "Rules" made under this section are included with Notes at the end of the Act in this Manual.

2. *Sub-section* 2(m). *See Section* 8(13).

176A. Power to make regulations.— The Government may make regulations for the governance, command, discipline, recruitment, terms and conditions of service, rank, precedence, and administration of the Bangladesh Army and generally for all or any of the purposes of this Act, other than those in respect of which rules have been made under Section 176 [*Added vide Amendment No.* 5505/29/JAG].

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THE BANGLADESH ARMY ACT RULES, 1954

CHAPTER I. – PRELIMINARY

1. Short title.–These rules may be called the Army Act Rules, 1954.

2. Definitions.–In these rules, unless there is anything repugnant in the subject or context,–

(i) "the Act" means the Army Act, 1952 (XXXIX of 1952);

(ii) "Chief of Army Staff" means Chief of Army Staff of the Bangladesh Army;

(iii) "proper military authority", when used in relation to any power, duty, act or matter, means such military authority as, in pursuance of the regulations of the army or the customs of the service, exercised or performs that power or duty or is connected with that act or matter;

(iv) "Section" means a section of the Army Act, 1952 (XXXIX of 1952).

3. Reports and applications.–Any report or application directed by these rules to be made to a superior authority, or proper military authority, shall be made in writing through the proper channel, unless the authority, on account of exigencies of the service or otherwise, dispenses with the writing.

4. Forms in Appendices.–(1) The forms set forth in the appendices to these rules, with such variations as the circumstances of each case require, may be used for the respective purposes therein mentioned, and if used shall be sufficient, but a deviation from such forms will not, by reason only of such deviation, render any charge, warrant, order, proceedings or other document invalid.

(2) An omission of any such form will not, by reason only of such omission, render any act or thing invalid.

(3) The notes to, and instructions in, the forms will be considered as instructions which it is expedient to follow in all cases to which such notes and instructions apply, but shall not have the force of rules.

NOTE

Sub-rule (1). A deviation from an enrolment form will not, therefore, render the enrolment invalid. Indeed any minor deviation may properly, be made under this sub-rule to suit a special case, without a formal amendment of the enrolment form by a notification in the official Gazette in accordance with section 176 of the Act.

5. Exercise of power vested in holder of military office–Any power or jurisdiction given to, and any act or thing to be done by, to, or before any person holding any military office may be exercised by, or done by, to, or before any other person for the time being authorised in that behalf by the custom of the service.

6. Cases unprovided for.–In any case not provided for by these rules, such course will be adopted as appears best calculated to do justice.

CHAPTER II. ENROLMENT AND ATTESTATION

7. The following officers shall be enrolling officers for the purposes of Section 11:–

(i) All recruiting and assistant recruiting officers, including officers of the Bangladesh Navy or of the Bangladesh Air Force who may be appointed as such.

(ii) The officer commanding or the adjutant of a regiment, or battalion, or training or regimental centre.

(iii) Any other officer or extra assistant recruiting officer who may be appointed an "enrolling officer" by the Adjutant General, Bangladesh Army.

NOTES

1. For forms of enrolment, *see* First Appendix. The enrolling officer must himself sign the enrolment form.

2. For definition of "corps", *see* Section 8 (5) of the Act and Rule 159. Every person enrolled under the Act must belong to some "corps" from which he can only be transferred in accordance with the conditions of his enrolment (if they provide for such transfers) or with his own consent. In an emergency, however, a special enactment may provide for compulsory transfers from one corps to another, notwithstanding the person's conditions of service.

A person may, of course, be transferred, whether with or without his own consent, from one portion of his corps to another.

3. A person may be transferred from one corps to another if he has agreed to such transfer at the time of enrolment.

[7A. **Oath or affirmation to be administered to warrant officers.–** An oath or affirmation shall be administered in one of the following forms to every warrant officer by his commanding officer or by any other officer authorised in this behalf by such commanding officer.

FORM OF OATH

I,……, swear by Almighty God that I will be faithful to Bangladesh and its constitution and bear true allegiance to the President of Bangladesh, that I will honestly and faithfully serve in the Bangladesh Army, that I will go wherever I may be ordered by land, air or sea, and that I will observe and obey all commands of any officer set over me even to the peril of my life.

FROM OF AFFIRMATION

I,……, do solemnly affirm that I will be faithful to Bangladesh and its constitution and bear true allegiance to the President of Bangladesh, that I will honestly and faithfully serve in the Bangladesh Army, that I will go wherever I may be ordered by land, air or sea, and that I will observe and obey all commands of any officer set over me even to the peril of my life.

NOTE

Keeping in view the provisions of Article 244 of the Constitution, the oath or affirmation under this rule shall be the same as given in Rule 8 below.

8. Oath or affirmation to be taken on attestation.–(1) The oath or affirmation to be taken on attestation shall be in one of the following forms or in such other form to the same purport as the attesting officer ascertains to be in accordance with the religion of the person to be attested, or otherwise binding on his conscience.

FROM OF OATH

Avwg ---------- me©kw³gvb Avjvni bv‡g mkª×wP‡Ë kc Kwi‡ZwQ †h, Avwg MYcÖRvZš¿x evsjv‡`k I evsjv‡`‡ki msweavb I ivóªcwZi cÖwZ AK…wÎg wek¦¯—Zv I AvbyMZ¨ †cvlY Kwie| Avwg Avgvi Acwinvh© KZ©e¨ g‡b Kwiqv Avgvi Dci b¨¯— evsjv‡`k †mbv evwnbxi KZ©e¨ Avwg mZZv I wek¦¯—Zvi mwnZ cvjb Kwie Ges Avgvi cÖwZ Rj, ¯'j I AvKvk c‡ ‡hLv‡bB hvBev Av‡`k Kiv nB‡e †mLv‡bB hvBe, Avgvi Rxeb wecbœ KwiqvI Avgi Dci wb‡qvwRZ KZ©e¨iZ †h †Kvb EäZb Kg©KZ©vi Av‡`k cvjb I gvb¨ Kwie|

FORM OF AFFIRMATION

Avwg ---------- mkª×wP‡Ë cÖwZÁv Kwi‡ZwQ †h, Avwg MYcÖRvZš¿x evsjv‡`k I evsjv‡`‡ki msweavb Ges ivóªcwZi cÖwZ AK…wÎg wek¦¯—Zv I AvbyMZ¨ †cvlY Kwie| Avwg Avgvi Acwnivh© KZ©e¨ g‡b Kwiqv Avgvi Dci b¨v¯— evsjv‡`k †mbv evwnbxi KZ©e¨ Avwg mZZv I wek¦¯—Zvi mwnZ cvjb Kwie Ges Avgvi cÖwZ Rj, ¯'j I AvKvk c‡ †hLv‡bB hvBevi Av‡`k nB‡e †mLv‡bB hvBe, Avgvi Rxeb wecbœ KwiqvI Avgi Dci wb‡qvwRZ KZ©e¨iZ †h †Kvb EaŸ©Zb Kg©KZ©vi Av‡`k cvjb I gvb¨ Kwie|

~~FROM OF OATH~~

~~□□□

(2) The oath / affirmation laid down in sub-rule (1) shall, whenever practicable, be administered by the commanding officer of the person to be attested, or in the presence of such commanding officer by a person empowered by him to administer it, in the manner described in Section 15. If the oath/affirmation cannot, for any reason, be administered by the commanding officer or, in his presence, by the person empowered by him, it may be administered by any one of the following authorities, that is to say:–

(i) Any magistrate;

(ii) Any recruiting officer or assistant recruiting officer;

(iii) The officer commanding a station.

[Substituted by S. R. O. No. 140-L/81 published in Dacca Gazette, May 6, 1981.]

CHAPTER III.–TERMINATION OF SERVICE

9. Release or discharge not to be delayed.–Every person enrolled under the Act shall, when entitled under the conditions of his enrolment to be released or discharged, be so released or discharged with all convenient speed.

NOTES

1. For the prescribed authorities under Section 18 of the Act, *see* Rule 12 and table annexed thereto. The Government is competent to prescribe authorities who can exercise power of discharge.

2. The release or discharge of a person who is under the conditions of his enrolment entitled to be released or discharged must be authorised and completed with all convenient speed by the proper authorities. Until a person's release or discharge is completed, he remains subject to the Act but any undue delay in carrying out the discharge would give him good ground for complaint.

9A. Dismissal from the service.–An officer may be dismissed from the service by a sentence of a court-martial. He may also be dismissed by administrative action with the prior approval of the President.

9B. Removal from the service.–(1) An officer who, in the opinion of the Government, has by reason of misconduct become unworthy of holding a commission in the Bangladesh Army, shall be liable to be removed from the service.

(2) The Government may, instead of removing an officer under sub-rule (1), call upon him to resign his commission, and if he fails to resign within the time specified by the Government, he may be removed from the service.

9C. Compulsory or voluntary resignation.–(1) (a) An officer shall be liable to be compelled to resign his commission if he is, in the opinion of the Government, unfit for further retention in the service by reason of his incapacity, inefficiency, unsatisfactory performance or neglect of duty or for similar other caused, but in forming any such opinion the Government shall have due regard to factors, if any, beyond the officer's control.

Explanation.– No consequences resulting from drunkenness or carelessness on the part of an officer shall be considered to be factors beyond his control for purposes of the rules.

(b) The Government may, before compelling any such officer as aforesaid to resign his commission, afford him an opportunity to retire from the service voluntarily.

(2) (a) No officer shall resign his commission unless permitted to do so by the Government, who, before giving any such permission, shall have due regard to the exigencies of the service.

(b) An officer who wishes to resign his commission shall submit his application through his commanding officer giving his reasons for resignation in full so as to enable the Government to arrive at a decision.

(c) In forwarding such an application the commanding officer shall report as to whether or not the application has been submitted in anticipation of any action against the officer for misconduct, inefficiency, incapacity, unsatisfactory performance or neglect of duty or for similar other causes or by reason of any circumstances affecting the officer's honour or character as a gentleman, and if the commanding officer is convinced that it has been submitted in such anticipation or in such circumstances, he shall state in his report all the facts and particulars of the case and shall obtain the officer's signature to the report in token of his having seen it. The commanding officer shall also state in his report as to whether or not there are any local or other outstanding claims against the officer and whether there is any objection to the officer being permitted to resign.

9D. Procedure.–Prior to termination of services of an officer under any of the provisions of Rules 9A, 9B and 9C, the procedure specified in the regulations shall be observed.

NOTE

See Army Regulation (Rule) 269A, 269B and 269C and adjutant Generals Branch letter No. 4852/277/PSIA dated 3 Jan, 1966.

10. Certificate of termination of service.–The certificate of the termination of service under Section 19 may be furnished either by personal delivery thereof by or on behalf of the commanding officer to the person concerned or by its transmission by registered post to such person.

11. Date from which termination of service takes effect.–(1) The dismissal, or removal, of an officer under Section 16 of the Act or release or retirement under sub-rule (1) of Rule 12 shall take effect from the date specified in that behalf in the notification of such dismissal, removal, release or retirement in the official Gazette.

(2) The dismissal or removal of a person subject to the Act, other than an officer, under Section 16 or 17, or his release or discharge under Rule 12 shall be carried out by the commanding officer of such person with all convenient speed. The authority competent to authorise such dismissal, removal, release or discharge may, when authorising it, specify any future date from which it shall take effect:

Provided that if no such date is specified, the dismissal, removal, release or discharge shall take effect from the date on which it is duly authorised, or from the date on which the person concerned ceased to do military duty, whichever is the later date.

NOTE

1. *Sub-rule* (1). Where an officer is to be dismissed or removed on account of misconduct and there is likely to be some delay in the publication of the notification regarding his dismissal or removal, he must be suspended from duty forthwith. His dismissal or removal will, however, take effect from the date specified in the Notification and he will remain entitled to pay and allowances upto that date.

2. *Sub-rule* (2). (i) *See* Note 1 above. In the case of a person serving in Bangladesh with his unit it will generally be convenient for the authority, authorising dismissal, removal, release or discharge, not to specify any date but to leave the commanding officer free to relieve the person of military duty on the most convenient date. In other cases it may sometimes be convenient for that authority to specify the date and sometimes for him to leave it unspecified.

(ii) If the competent authority desires to specify a date, he must specify it at the time he authorises the dismissal, removal, release or discharge. There is no legal objection to the future date being made indefinite in suitable cases; *e.g.,* in the case of a person serving overseas, the “date of disembarkation” in Bangladesh; but whenever possible a precise date should be specified. However, the competent authority cannot make the dismissal or discharge retrospective.

3. If the dismissal, removal, release or discharge of a person is found to be illegal *e.g.,* if it was not authorised by competent authority, that person will be entitled to pay from the date of his illegal dismissal etc., to the date of legal dismissal etc., *although he performed no military duty from that date.*

4. When a person has been legally dismissed, removed, retired, released or discharged in the manner prescribed, he ceases to be subject to the Army Act and Rules, and his dismissal etc., cannot subsequently be cancelled, except with the consent of the person concerned. But *see* Section 92 of the Act.

12. Authorities empowered to authorise retirement, release or discharge.– "(1) (a) The retirement or release of an officer shall be authorised by the Government and notified in the official Gazette. The Government may at any time terminate the services of any officer.

For the removal of doubt it is declared that the term "officer" includes a Field Marshal who may be retired by the Government like any other officer.

(b) Officer retiring with a pension or gratuity are liable to be transferred to the Bangladesh Army regular reserve of officers according to the Bangladesh (Army and Air Force) Reserves Act, 1950, and the rules made thereunder. This liability shall be determined at the time of retirement and shall be expressed in the order of retirement" [*Substituted for sub-rule (1) vide Amdt. No.* 10/11/65].

(2) The causes of retirement, release or discharge of persons subject to the Act, other than officers, and, except as provided in sub-rule (3), the authorities empowered to authorise such retirement, release or discharge, and the special instruction to be observed in each case are contained in the annexed Table.

In this Table "Commanding Officer" in relation to persons belonging to the Corps of Remounts, Veterinary and Farms serving in a unit of which the officer in charge is a civilian, means the Assistant Director of Remounts, Veterinary and Farms or the Deputy Assistant Director of Remounts, Veterinary and Farms, of the Formation Headquarters under whom that unit is placed for local administration. [*Substituted for the definition of "Commanding officer" vide amdt,. No. 11/111/65].*

(3) Any power conferred by this rule on any authority may be exercised by any higher authority and, in the case of a person who belongs to the Ministry of Defence Constabulary, by the Senior Constabulary Officer.

TABLE

Class		Cause of retirement, release or discharge	Authority competent to authorise retirement, release or discharge.	Special Instructions
Junior Commissioned Officers	I	(I) (a) On completion of the period of service or tenure specified in the regulations for his rank or appointment, or on reaching the age limit whichever is earlier, unless retained on the active list for a further specified period with the sanction of the Chief of Army Staff or on becoming eligible for release under the regulations.	Commanding Officer	Commanding officer who considers it desirable to retain on the active list a junior commissioned officer, who is desirous of continuing to serve beyond the date on which he would ordinarily be retired, released or discharged shall forward and application to that effect at least six months before that date.
		(b) At his own request on transfer to the pension establishment.	Commanding Officer	
	I	(ii) Having been found medically unfit for further service.	Commanding Officer	To be carried out only on the recomme -ndation of a service invaliding board.
	I	(iii) All other classes of retirement, release or discharge.	Divisional Command or Log Area Commander, or Independent Brigade Commander or Centre Commandant	The Centre Comman-dant shall exercise this power inrespect of those persons only who are surplus to the establishment in his Arms/Corps.

Class	Cause of retirement, release or discharge		Authority competent to authorise retirement, release or discharge.	Special Instructions
Warrant Officers	II	(i) (a) On completion of the period of service or tenure specified in the regulations for his rank or appointment, or on reaching the age limit, whichever is earlier, unless retained on the active list for a further specified period with the sanction of the Brigade Commander or on becoming eligible for release under the regulations.	Commanding Officer	Commanding officer who considers it desirable to retain on the active list a warrant officer who is desirous of continuing to serve beyond the date on which he would ordinarily be retired, released or dischar-ged shall forward an application to that effect at least six months before that date.
		(b) At his own request of transfer to the pension establishment.	Commanding Officer	
	II	(ii) Having been found medically unfit for further service.	Commanding Officer	To be carried out on the recommendation of a service invalid- ing board.
	II	(iii) All other clases of retrement, release or discharge.	Warrant Officers, Class I-Divisional Commander or Logestic Area Commander, other warrant officer Brigade Commander.	In the case of warrant officers of the Army medical Corps and the Corps of Remounts, Vetecnary and Farms the Divisional or Brigade Commander concer-ned will exercise this power only in consultation with the Director of Medical Services Army or the Director of Remounts, Veterinary and Farms, as the case may be.

Class	Cause of retirement, release or discharge	Authority competent to authorise retirement, release or discharge.	Special Instructions
Persons enrolled under the Act who have been attested.	III (i) (a) on fulfiling the conditions of his enrolment.	Commanding Officer	
	III (I) (b) On completion of a period of colour service only-there being no vacancy in the reserve.	Commanding Officer	
	III (I) (b) On completion of a period of colour service only there being no vacancy in the reserve.	Commanding Officer	1. Applicable to persons enrolled for both colour and reserve service. 2. The Commanding Officer shall consult the officer Commanding of Regt/Corps Centre before a person is transfered to reserve or discharged from service.
	III (ii) Not being a good rider.	Commanding Officer	Applicable to persons enrolled as combatants in a mounted corps and whose duties require them to be mounted. Liability to discharge under this item ceases on completion of 3 years service from date of enrolment.

Class	Cause of retirement, release or discharge	Authority competent to authorise retirement, release or discharge.	Special Instructions
	III (iii) Having been Commanding found medically unfit for further service.	Commanding Officer	To be carried out on the recommendation of a service invaliding board.
	III (iv) At his own request before fulfilling the conditions of his enrolment.	Commanding Officer	The Commanding Officer will exercise this power only where he is satisfied as to the desirability of sanctioning the application and that the strength of the unit will not thereby be unduly reduced.
	III (v) All other classes of discharge	An officer empowered to convene a DCM or Centre Commandant	The Centre Comm-andant shall exercise this power in respect of those persons only who are surplus to the establishment in his Regt/Corps.
Persons enrolled under the Act but not attested.	IV. All classes of discharge.	Commanding Officer or an Officer Comm-anding a Recruit Reception Camp, or a Recruiting, Technical Recruiting, Deputy Recruiting or Deputy Technical Recruiting Officer.	In the case of person requesting to be discharged be fore fulfilling the conditions of his enrolment the authority competent to authorise discharge will exercise this power only where he is satisfied as to the desirability of sanctioning the discharge and that the strength of the unit will not thereby be unduly redused. Recruits unlikely to become efficient soldiers will be discharged under this item.

NOTES

1. *Sub-rule* (1). (i) Retirement or release of an officer must be authorised by the Government; a staff officer at AHQ has no power in this behalf. Such release or retirement takes effect as provided by rule 11. The notification in the official Gazette, although a legal necessity, can be published after the effective date of the termination of service.

(ii) Where application is made for the compulsory retirement of an officer, reference should be made to "Army Act Rules 9A, 9B, 9C and 9D" [*Substituted vide amdt. No. 16/167*] on the procedure to be observed in cases where removal or compulsory retirement of officers is for any cause considered necessary, without recourse to trial by court-martial.

2. *Sub-rule (2). (i) "See Army Regulation* (Instruction) 178 which applies to junior commissioned officer" [*Substituted vide amdt. No. 16/167*].

(ii) Note the meaning of "commanding officer", as used in the table.

3. *Sub-rule* (3). (i) It has been held that the words "higher authority" occurring in the sub-rule include the Government who may, therefore, authorise the retirement, release or discharge of any person, other than officer. The power of the Government in this behalf will be especially useful where mass releases are contemplated and it is not convenient to approach each individual commander concerned separately, or where the Government proposes, on receipt of a petition or otherwise, to substitute an order of retirement, release or discharge for an original order of dismissal.

(ii) The certificate of termination of service under items I (iii), II (iii), III (v) and IV of the Table will specify the particular cases of discharge as laid down in Army Regulation (Instruction) 171 [*Substituted for notes 3 (ii) and (iv) vide Amdt. No. 16/167*].

CHAPTER IV.–INVESTIGATION OF CHARGES, MINOR PUNISHMENTS AND TRIAL BY COURT-MARTIAL.

SECTION 1.–INVESTIGATION OF CHARGES AND REMANDS FOR TRIAL.

Power of Commanding Officer

13. **Disposal of charge against a person other than officer or adjournment for taking down the summary of evidence.–**(1) Every charge against a person subject to the Act, other than an officer, shall be heard in the presence of the accused. The accused shall have full liberty to cross-examine any witness against him, and to call any witness and to make any statement in his defence.

(2) The commanding officer shall dismiss a charge brought before him if in his opinion the evidence dose not show that some offence under the Act has been committed, and may do so if, in his discretion, he thinks that the charge ought not to be proceeded with.

(3) At the conclusion of the hearing of a charge, if the commanding officer is of the opinion that the charge ought to be proceeded with, he shall, without unnecessary delay, either–

(i) dispose of the case summarily; or

(ii) refer the case to the proper military authority; or

(iii) adjourn the case for the purpose of having the evidence reduced to writing; or

(iv) if the accused is under the rank of warrant officer, order his trial by summary court-martial:

Provided that the commanding officer shall not order trial by summary court-martial without reference of the officer empowered to convene a district court-martial or on active service a field general court-martial for the trial of the alleged offender unless either,–

(a) the offence is on which he can try by summary court-martial without reference to that officer, or

(b) he considers that there is grave reason for immediate action and such reference cannot be made without detriment to discipline.

(4) Where the case is adjourned for the purpose of having the evidence reduced to writing, at the adjourned hearing the evidence of the witness who were present and gave evidence before the commanding officer, whether against or for the accused, and any other person whose evidence appears to be relevant, shall be taken down in writing in the presence and hearing of the accused before the commanding officer or such officer as he directs.

(5) The accused may put question in cross-examination to any witness, and the questions with the answers shall be added in writing to the evidence taken down.

(6) The evidence of each witness when taken down, as provided in sub-rules (4) and (5), shall be read over to him and shall be signed by him, or if the cannot write his name, shall be attested by his mark and witnessed. After all the evidence against the accused has been given, the accused shall be asked: “Do you wish to make any statement? You are not obliged to say anything unless you wish to do so, but whatever you say will be taken down in writing and may be given in evidence”. Any statement thereupon made by the accused shall be taken down and read out to him.

(7) The evidence of the witnesses and the statement, if any, of the accused shall be recorded in the Bengali/English language. If the witness or the accused, as the case may be, does not understand Bengali/English, the evidence or statement, as recorded, shall be interpreted to him in a language which he understands,

(8) If a person cannot be compelled to attend as a witness, or if owing to the exigencies of the service or on other grounds (including expense and the loss of time involved), the attendance of any witness cannot in the opinion of the officer taking the summary (to be certified by him in writing) be readily procured, a written statement of his evidence purporting to be signed by him may be read to the accused and included in the summary of evidence.

(9) Any witness who is not subject to the Act, or to naval or military law may be summoned to attend by order under the hand of the commanding officer of the accused. The summons shall be in the form specified in the Third Appendix to these rules.

(10) The commanding officer may, at any time during the course of an investigation, direct a person subject to the Act to be produced before any magistrate of the first class for the purpose of having his statement or

confession recorded. Such statement or confession shall be recorded by the magistrate in such manner as he thinks fit in the circumstances of the case and upon being so recorded shall be forwarded to the commanding officer.

NOTES

1. *Sub-rule (1).* *(i)* As to the mode of conducting an investigation, *see* Part I, Chapter III, para. 13 *et seq,* except as provided in sub-rule (4). The evidence is not taken in writing.

(ii) For the procedure in the case of officer, *see* Rule 15.

(iii) Under Section 109 of the Act police and other civilian witnesses may be summoned to attend before a commanding officer, if it is desirable to compel their attendance by service of a summons. A witness cannot be sworn or affirmed.

(iv) As to the procedure where a criminal court and a court-martial have each jurisdiction in respect of a civil offence, *see* Sections 94 to 96 and Notes and Rule 168.

2. *Sub-rule* (2). (I) Every offence which a person subject to the Army Act can commit is an offence under that Act, because it is either a military offence specified in the Act or a civil offence under Section 59.

(ii) In deciding whether a charge under Section 55 should be proceeded with, the commanding officer must consider whether the alleged offence is, or is no prejudicial both to good order and military discipline. If, in his opinion, it is not, the charge must be dismissed. He must also consider whether, having regard to the limitation of time prescribed by Section 91 of the Act, the accused is liable to be proceeded against.

(iii) The commanding officer must dismiss the charge if there is no evidence of any offence under the Act, or if the accused has been previously convicted or acquitted of the alleged offence by any court, military or civil, or has been summarily dealt with under Section 23 or Section 65 (1) (e) or (f) or Section 65(2)(g) or the charge has been previously dismissed [Rule 43 (1) (i)]. He may dismiss it if he considers that the evidence is doubtful or the case trivial, or, in the exercise of his discretion, *e.g.,* the good character of the accused.

(iv) Subject to the provisions of Sections 74 and 75 of the Act, no particular time is fixed within which a commanding officer must dispose of a case, so that he can always consider a difficult case, but as a rule, he should decide immediately.

(v) To make an entry against a person without punishment is a summary disposal and not a dismissal of the case.

3. ***Sub-rule* (3).** (i) There is no offence which a commanding officer is compelled by the Act or the Rules to send before a court-martial and each case should be considered on its merits. A commanding officer has, however, no power to punish an officer summarily, except as provided in item V (a) of the table annexed to Rule 17, but he may remand an officer, junior commissioned officer, or warrant officer for disposal of a charge against him by a superior authority, empowered to deal summarily with the case under Section 23 of the Act and Rule 17.

(ii) Except as provided in Rule 15, a summary of evidence is to be recorded in every case where it is intended to remand the accused for trial by general or field general or district court-martial. [*Comma after the words "Court-martial" has been substituted by full stop and rest of the sentence deleted vide Amdt. No.* 12/III/65]. In the case of a summary court-martial, a summary of evidence need not be recorded, if it is intended to try the accused forthwith without reference to superior authority, either because the charge admits of this or because of such grave necessity as is referred to in proviso (b) to sub-rule (3) of this Rule. The offences which a commanding officer must [except as provided in proviso (b) to sub-rule (3)] refer to superior authority before ordering trial are detailed in Section 99 of the Act. All other offences can be tried by summary court-martial without such reference.

(iii) The summary of evidence, or a true copy thereof, should accompany the application for a general or district court-martial or summary disposal by superior authority, or for sanction to hold a summary court-martial when such sanction is necessary.

(iv) A person subject to the Bangladesh Army Act has no right to elect to be tried by court-martial, except as provided in Rule 17 in the case of a person of, or above, the rank of warrant officer.

(v) A commanding officer disposes of a case summarily by awarding one of the punishments prescribed under Section 23 *vide* Rule 17, and which he can award, or by awarding stoppages under Section 65 (2) (g). A term of imprisonment awarded by a commanding officer should

be awarded in days and will commence to run from the day of award. In law, in the absence of any specific provision, there is no division of a day, and, therefore, however, late in the day a prisoner is committed, his term of imprisonment is considered to have commenced at the first minute of that day, that is, the first minute after midnight. The sentence, therefore, will begin at the first minute of the day of award.

(vi) The award is considered final when the accused has been removed from the presence of the commanding, or other superior officer.

4. ***Sub-rule* (4).** (i) The adjourned hearing for the purpose of reducing the evidence to writing should, if possible, be held the same day as the investigation. The commanding officer may direct another officer to take down the evidence, but an officer who has given material evidence at the investigation must not be appointed for this purpose. The adjutant or the accused's squadron or company commander should usually be detailed.

(ii) The summary cannot be taken on oath.

(iii) The accused cannot claim to be represented by counsel.

(iv) The evidence (so far as it is relevant and admissible) of every witness who gave evidence before the commanding officer must be taken down unless some good reason renders it reasonably impracticable to call him. The evidence of witnesses who did not appear before the commanding officer may also be taken for or against the accused, so long as it appears to be relevant. In reducing the evidence to writing immaterial statements may be omitted and all hearsay and irrelevant matter should be excluded.

5. ***Sub-rule* (5).** The accused must be allowed to put any reasonable question to a witness and especially to put questions respecting any variance between the evidence taken down and that given before the commanding officer.

6. ***Sub-rule* (6).** (i) The formal caution provided for in this sub-rule must be given as soon as the evidence for the prosecution is closed. If it is necessary to take an additional summary, the accused must again be formally cautioned before he makes any further statement. The fact that he was duly cautioned should be recorded in the summary.

(ii) The statement of an accused person can only be given in evidence at the trial if it is voluntary. If it was made voluntarily, the mere

fact that the caution was not given will not prevent it being used as evidence, but in no case must he be authoritatively called on to account for his proceedings, or required to make any statement, or cross-examined or asked any question. Any such statement or the answers to any such questions will not be admissible in evidence against him.

Instances have occurred where the officer who recorded Summary of Evidence had to be recalled from distant places to appear as a witness on a Court-Martial to produce the statement of the accused as no other person could produce the statement. In order to avoid delay in disposal of cases of this nature it is advisable that an Officer or Junior Commissioned Officer must be present at the time when an accused makes a statement. At the conclusion of the accused's statement the Officer or Junior Commissioned Officer must sign as witness at the end of that statement besides the officer who recorded the Summary of Evidence. That officer should not be the Commanding Officer, Company Commander of the accused or an Officer or Junior Commissioned Officer of Military Police and the Regimental Police.

If it is absolutely impracticable to detail the officer who recorded the Summary of Evidence to prove the statement of the accused, then in that event, the other Officer or Junior Commissioned Officer who was present can be called as a witness at the trial to produce the statement of the accused and prove that it was made by him voluntarily in his presence after he was duly cautioned under Army Act Rule 13 (6) by the officer who recorded the Summary of Evidence and that he (the person producing the statement) recognised the signatures of accused at the end of his statement. Any alterations made by the accused in his statement should be initialled by the Officer or Junior Commissioned Officer besides the officer who recorded the Summary of Evidence.

(iii) The accused may call witnesses on his behalf and their evidence will be taken down and included in the summary; but he is not bound to call a witness because such witness gave evidence before the commanding officer.

7. *Sub-rule (8).* (i) The certificate can conveniently be written below the signature of the absent witness or his written statement or abstract of evidence.

(ii) The provisions of this sub-rule will, in many cases, save time and expense, *e.g.,* where a civilian witness is required to prove some fact not really in dispute; but, such witness must, subject to the provisions of Section 110, attend in person at the trial.

(iii) If it is necessary to call at the trial some witness for the prosecution whose evidence is not included in the summary, an abstract of evidence to be given by him should be supplied to the accused as early as possible (*See* Rule 118).

8. *Sub-rule* (9). *See* Section 109 and form of summons at Third Appendix to these rules.

9. For power to dispense with sub-rules (4), (5), (7) and (8), *see* Rule 26.

10. For Memoranda for the guidance of officers taking down a summary of evidence, *see* pages 498 *et. seq.*

"13A. Abstract of evidence.–(1) An abstract of evidence shall be made in the following manner and recorded in the form set out in the Fifth Appendix to these Rules:–

(a) It shall be made by the Commanding officer or such officer as he directs;

(b) The accused should not be present while the abstract of evidence is being made;

(c) It shall include the signed statements by such witnesses as are necessary to prove the charge. Provided that if, in the case of any witness, a signed statement is not readily available, a précis of the evidence given by that witness may be included instead of a signed statement; and

(d) No oath shall be administered to a witness making a statement for inclusion in an abstract of evidence, but where necessary, sworn statements previously made may be issued.

(2) When an abstract of evidence has been made in accordance with sub-rule (1), a copy of it shall be handed over to the accused who shall be cautioned in the following terms:–

> "This is a copy of the abstract of evidence in your case; you are not obliged to say anything with regard to it unless you wish to do so, but you should read it and, after you have read it, anything that you may say regarding the abstract will be taken down in writing and may be given in evidence."

(3) Any statement made by the accused after he has read the abstract of evidence shall be taken down in writing and the accused shall be asked to sign the statement so taken down. The statement shall be signed by the officer who recorded the abstract of evidence and may also be signed by an officer or a junior commissioned officer as witness. The statement and a certificate by the person who recorded the statement stating that the accused was duly cautioned in accordance with this rule, shall be attached to the abstract of evidence and shall form part of it. The certificate shall be in the form set out in the Fifth Appendix to these rules.

NOTES

(1) Clause (a), (b) and (c) of sub-rule (1).– (i) This Rule lays down the procedure for recording an abstract of evidence. The abstract should not be in too much details, but must contain the essential facts relevant to the charge. (*See* fifth appendix to this rule. *See* also Army Act Rule 4 which is intended to cover accidental deviations etc., in appendices.)

(ii) The statement should be made in the first person and should normally be signed. Précis of evidence written in third person may be included. Though the officer actually collects the statements, there is no need for him to take them all for himself and, as will be seen from the proviso to clause (c) of sub-rule (1) a précis may be used instead of a signed statement.

(iii) The officer preparing the abstract should be careful to ensure that the rules of evidence are complied with and particularly that no 'hearsay' evidence is contained in the statement.

(iv) Statements made at a court of inquiry should not be included except as allowed in Army Act Rule 157 (12). If persons have made statements at such inquiry they should sign a further statement of evidence or a précis of their evidence should be prepared under proviso to clause (c) of sub rule (1).

2. Clause (d) of sub-rule (1).– A statement at a court-martial can be made use of under this clause.

3. Sub-rule (2).– The abstract should normally be handed over to the accused by the officer who made the abstract of evidence, but any person can act under this sub-rule.

4. Sub-rule (3).– (i) when the caution is put by an officer it is desirable that another officer or JCO should be present so that the latter can be called as a witness at the trial to prove the caution and making of the statement in case the officer is not available.

(ii) It should be ensured that the accused receives a copy of abstract of evidence not later than twenty four hours before–he is brought to trial or dealt with summarily [*Inserted as a new rule vide amdt. No.* 13/111/65].

14. Remand of accused.–(1) The evidence and statement (if any) taken down in writing in pursuance of Rule 13 (in these rules referred to as the summary of evidence) shall be considered by the commanding officer who thereupon shall–

(i) either remand the accused for trial by court-martial; or

(ii) refer the case to the proper superior military authority; or

(iii) if he thinks it desirable, rehear the case and dispose of it summarily.

(2) If the accused is remanded for trial by court-martial, the commanding officer shall without unnecessary delay either assemble a summary court-martial (after referring to the officer empowered to convene a district court-martial or, on active service, a field general court-martial, when such reference is necessary) or apply to the proper military authority to convene a court-martial, as the case may be. Any delay in the reference to superior military authority should not ordinarily exceed forty-eight hours.

NOTES

1. For memoranda for the guidance of commanding officers, *see* pages 443 *et. seq.*

2. For power to dispense with this rule, *see* Rule 26.

3. *Sub rule* (1).– (i) The evidence in the summary may not correspond with that given in the original investigation and the case may appear in a new aspect. The commanding officer may, therefore, decide to rehear the case and if he thinks fit, dispose of it summarily or try it by summary court-martial, if he has jurisdiction to do so. He can dismiss the case on rehearing it.

(ii) Where precise information as to the locality of the offence is likely to be of use in understanding a case, a plan drawn to scale should accompany any summary of evidence submitted to superior authority. If it is considered necessary that matters of evidence should be shown on this plan *(e.g.,* place where the body was found in a murder case or position of accused or witness), the plan should be in duplicate and these matters should appear only on one copy. If the plan is subsequently produced at the trial, the unmarked copy will be used, being put in by the person who made it. The matters of evidence will then, if necessary, be marked on it in accordance with the evidence given at the trial, and a note to that effect made in the proceedings.

4. ***Sub rule* (2).**– (i) Vernacular documents attached to a summary of evidence should be accompanied by a translation in English.

(ii) The delay in assembling a summary court-martial, etc., should not ordinarily exceed thirty-six hours.

15. Procedure on charge against an officer.– (1) Where an officer is charged with an offence under the Act, the investigation shall, if he requires it, be held, and the evidence taken in his presence in writing, in the same manner, as nearly as circumstances permit, as is required by Rule 13 in the case of other persons subject to the Act.

(2) When an officer is ordered to be tried by court-martial, without any such taking of evidence in his presence, an abstract of the evidence to be adduced shall be delivered to him, gratis, as provided in sub-rule (2) of Rule 23.

NOTES

1. For the power to dispense with observance of this rule, on the ground of military exigencies or the necessities of discipline, *see* Rule 26.

2. ***Sub-rule* (1).** In the case of an officer, as that of other persons subject to the Act, the charge must come before his commanding officer in order that the latter may determine whether the charge shall be dismissed or the case referred to a superior authority, for summary disposal under Section 23 of the Act or for trial by court-martial. By this provision a commanding officer can dispense with a formal and detailed investigation unless the accused officer demands one. It does not preclude the commanding officer from calling the officer before him and investigating the case. The officer can only demand formal investigation of his case by the commanding officer; he has no right to demand a court of inquiry.

3. *Sub-rule* (2). The commanding officer will be responsible for furnishing this abstract [*see* also Rule 23 (2)] which should not be in too much detail. It should always be delivered to the accused even though the subject matter of the charge may have been investigated by a court of inquiry; and if a court of inquiry has been held, the officer may have a copy of the proceedings [*see* Rule 157 (13)].

See Rule 13A which deals with taking of an abstract of evidence [*Added vide Amdt. No. 3/IV/65*].

Minor Punishments

16. General.–The following rules namely Rules 17 and 18 have been made on the recommendation of the Chief of the Army Staff, for the award of minor punishments to persons subject to the Act, without the intervention of court-martial.

17. Minor punishments.– The minor punishments awardable, the officers empowered to award these punishments, and the special instructions applying to each punishment, are set out in the annexed Table.

In this rule,–

(1) "Commanding officer" means an officer commanding a corps as defined in sub-rule (3) of Rule 159 or a detachment of any such corps or of any other body which is a corps under sub-rule (1) of that rule and includes,–

(i) a Military Adviser or Attaché, not being below the rank of lieutenant colonel in relation to a person subject to the Act who may, for the time being, be present within the territorial limits of the mission of such Military Adviser or Attaché;

(ii) a chief instructor, Assistant Adjutant and Quarter Master General or Senior Record Officer in a Regimental or Corps Centre in relation to persons serving under him;

(iii) an officer appointed as commanding officer at a Formation or Station Headquarters by the Formation Commander or Station commander in relation to persons serving under him; and

(iv) an officer appointed as Commanding Officer at the headquarters of a warrant holder, not being a Formation Commander or a Station Commander, in relation to persons serving under him.

Provided that a medical officer commanding a hospital or other medical unit shall, for the time being, be the commanding officer of a person subject to the Act who, while not belonging to the medical personnel, is a patient in or employed in that hospital or medical unit, and may either himself dispose of a charge against such person or refer it for disposal, after the person has left the medical hospital or unit, to the commanding officer of the corps of detachment to which such person belongs or is attached; but the medical officer in charge of a regimental medical establishment shall not, unless that establishment is detached, be the commanding officer, for this purpose, of that establishment or of any person who is a patient in, or is employed in, the medical unit, to which that establishment belongs;

(2) "company commander" include, a Military Adviser or Attache, not being below the rank of a major in relation to a person subject to the Act who may, for the time being, be present within the territorial limits of the mission of such Military Adviser or Attache;

(3) "detachment" includes recruiting parties and the enrolled recruits accompanying them under the orders of a recruiting or assistant recruiting officer, and enrolled personnel forming the establishment, for the time being of an ordinance or clothing factory;

(4) "Brigade commander" includes:–

(i) [Omitted;]

(ii) Commander Army Group Bangladesh Artillery;

(iii) a Military Secretary to the President being not below the rank of a Colonel in relation to a person subject to the Act, being member of President's body guard or who may, for the time being, be placed under command of such Military Secretary;

(iv) [Omitted;]

(v) a Military Adviser or Attache or Military Liaison Officer being not below the rank of a Colonel in relation to a person subject to the Act who may, for the time being, be present within the territorial limits of the mission of such Military Adviser, Attache or Military Liaison Officer;

(vi) an officer empowered to convene a district court-martial under the Act;

(vii) Commander Division Artillery;

(viii) [Omitted.]

(5) "Divisional Commander" includes:–

(i) an officer commanding a Logistic Area;

(ii) a Head of Military Mission, Military Adviser, Attache or Military Liaison Officer being not below the rank of a Brigadier in relation to a person subject to the Act who may, for the time being be present within the territorial limits of the mission of such Head of Military Mission, Military Adviser, Attache or Military Liaison Officer" [*Substituted vide Amdt. No.* 14/III/65]; and,

(iii) an officer empowered to convene a general court-martial under the Act.

Any power conferred by this rule on any authority may be exercised by any higher authority.

NOTES

1. This rule implements Section 23 of the Act and obviates the necessity for trying by court-martial persons subject to the Act who commit some offences which is not of a serious nature but which cannot be overlooked. Where an officer, junior commissioned officer or wt. officer is to be dealt with summarily under this rule, he should be given a copy of the summary, or abstract, of the evidence not less than twenty four hours before he is brought up before the competent authority.

The competent authority should obtain a certificate from officers, junior commissioned officer's and warrant officer's on the following lines for attachment to summary disposal documents whenever it decides to award forfeiture of service for purposes of promotion/seniority:–

Do you elect to be tried by Court-martial or will you accept my summary award? Answer.–

2. Charges against an officer who at the time of the offence held rank (acting or other) above that of Lieutenant Colonel should not be dealt with summarily under this rule unless the officer has ceased to hold that rank at the time the case is referred by his commanding officer to the

authority concerned (either to be dealt with summarily or for trial by court-martial) and also at the time the charge is summarily dealt with. But *see* item V(a) of the Table under which extra guards and picquets may be awarded to any officer regardless of rank. For example, an officer of the rank of Colonel who is late on parade may be awarded this punishment in the form of attendance in office after the normal office hours. The item was deliberately inserted to check lateness on parades etc.

3. An authority can act under this rule not only if asked to do so but also if the case has been remanded for the purpose of the trial of the offender by court-martial. Even if asked to deal summarily with the case, he can, if he thinks it desirable, convene a court-martial. If on perusal of the summary, or abstract of evidence and other documents he thinks fit, he can at once, without bringing the accused before him, either dismiss the case or order a court-martial or he can decide to hear the evidence with a view to dealing summarily with the case. After hearing the evidence, the authority concerned can still dismiss the case order a court-martial, or he can deal summarily with it.

4. Where a non-commissioned officer is reduced to the ranks by sentence of a court-martial, and whilst serving in the ranks is awarded a minor punishment as a Sepoy such award is valid although at a later date the proceedings of court-martial are quashed.

* TABLE TO ARMY ACT RULE 17

Nature of punishment	Authority empowered to award punishment	Persons liable to the punishment	Relevant instructions
1	2	3	4
I.– FORFEITURE OF SERVICE FOR THE PURPOSE OF PROMOTION OR OF SENIORITY AND REPRIMAND.			
(a) (i) Forfeiture of service for the purpose of promotion for a period not exceeding 12 months. (ii) Reprimand or severe reprimand.	Divisional Commander	Any officer below the rank of Colonel.	1. When it is proposed to award a punishment of forfeiture of service for promotion to an officer or of seniority to Junior Commissioned Officer or a Warrant Officer the accused shall be asked whether he desires to be dealt with summarily or to be tried by court-martial. If he elects to be tried by court-martial, he shall not be punished summarily under this rule. 2. The officer empowered to deal with summarily with the case shall hear the evidence in the presence of the accused or, if the accused consents thereto in writing, may read a summary or abstract of evidence. 3. Reprimand or severe reprimand may be awarded either alone or in addition to forfeiture of seniority or of service for purpose of promotion or penal deduction under heading X of this Table.
(b) (i) Forfeiture of seniority for a period not exceeding 12 months. (ii) Reprimand or severe reprimand.	Brigade Commander	Any junior commissioned officer or any warrant officer.	
(c) Reprimand or severe reprimand.	Brigade Commander	Any officer below the rank of field officer.	
(d) Forfeiture of seniority for a period not exceeding 12 months.	Commanding Officer	Any non-commissioned officer.	

1	2	3	4
II.– RIGOROUS IMPRISONMENT.			
(a) Rigorous imprisonment in military custody not exceeding twenty-eight days.	Commanding Officer not being below the rank of field officer.	All persons subject to the Act, other than officers, junior commissioned officers, warrant officers and non-commissioned officers, and persons holding equivalent positions.	1. Rigorous imprisonment shall be undergone in military custody. 2. Rigorous imprisonment will not be awarded in respect of an offence committed while the offender was a non-commissioned officer. 3. A superior officer may reduce or remit the term of imprisonment awarded by an officer under his command but he shall not increase it. 4. The term of imprisonment shall commence from the date of the award and shall end at sunset of the day on which it expires. 5. A sentence of rigorous imprisonment shall carry with it two hours of useful military instructions daily. 6. A Commanding Officer below the rank of field officer when specially authorised by name by the Chief of Army Staff, the Divisional Commander or the Logistics Area Commander under whom he is serving may award up to twenty-eight days detention.
(b) Rigorous imprisonment in military custody not exceeding seven days.	Commanding Officer below the rank of field officer, junior commissioned officer commanding a detachment if authorised by the commanding officer.	All persons subject to the Act, other than officers, junior commissioned officers, warrant officers and non-commissioned officers, and persons holding equivalent positions.	
(c) Rigorous imprisonment in military custody not exceeding twenty-eight days.	Assistant commandants/ Assistant Chief Ordnance Officers of Ordnance Depots, not below the rank of field officer.	All persons subject to the Act, other than officers, junior commissioned officers, warrant officers and non commissioned officers, and persons holding equivalent positions.	
(d) Rigorous imprisonment in military custody not exceeding twenty-eight days.	Commanding Officer of a field ambulance, forming part of a medical battalion not detached from it, not below the rank of field officer.	All persons subject to the Act, other than officers, junior commissioned officers, warrant officers and non-commissioned officers, and persons holding equivalent positions.	

1		2	3	4
(e)	Rigorous imprisonment in military custody not exceeding twenty-eight days.	Second-in-Command of a police battalion provided he is An Army Officer.	All persons subject to the Act, other than officers, junior commissioned officers and non-commissioned officers and persons holding equivalent positions.	The term "Ordnance Depots" includes CODs, all Ordnance Depots, CMT and SDs, Ammo Depots, Engineer Stores Depots, Ordinance Aviation Depots and Ordnance Stores Distribution Depots."
			III.– DETENTION.	
(a)	Detention not exceeding twenty-eight days.	Commanding Officer not being below the rank of field officer.	All persons subject to the Act, other than officers, junior commissioned officers warrant officers and non commissioned officers and persons holding equivalent positions.	1. Detention may, at the discretion of the Commanding Officer, be ordered to be carried out in military custody or detention barracks. 2. A Commanding Officer below the rank of field officer when specially authorised by name by the Chief of Army Staff, the Division Commander, or Logistics Area Commander under whom he is serving may award up to twenty-eight days detention. "The term "Ordnance Depot" includes Central Ordnance Depots, all Ordnance Depots, CMT & SDs Ammo Depots, Engineers Stores Depots, Ordnance Aviation Depots and Ordnance Stores distribution Depots".
(b)	Detention not exceeding twenty-eight days.	Assistant Commandants/ Assistant Chief Ordnance Officers of Ordnance Depots not below the rank of field officer	All persons subject to the Act, other than officers, junior commissioned officers, warrant officers and non-commissioned officers and persons holding equivalent positions	
(c)	Detention not exceeding twenty-eight days	Commanding Officer of a field ambulance, forming part of a medical battalion and not detached from it, not below the rank of field officer.	All persons subject to the Act, other than officers, junior commissioned officers, warrant officers, non-commissioned officers, and persons holding equivalent positions	

1		2	3	4
		IV.–CONFINEMENT TO THE LINES.		
(a)		Commanding Officer.	All persons subject to the Act, other than officers, junior commissioned officers, warrant officers, non-commissioned officers and persons holding equivalent positions.	Defaulters will be required to answer to their names at uncertain hours throughout the day, and will be employed on fatigue duties to the fullest practicable extent with a view to relieving well conducted soldiers therefrom. Defaulters will attend parade and take all duties in regular turn. When the fatigue duties required are not sufficient to keep the defaulters fully employed, the commanding officer may order then to attend extra drill which will be limited to one hour a day, and will include some form of useful military instruction.
(b)		Company Commander Adjutant if specially authorised by the Commanding Officer.	Ditto	
(c)	For any period not exceeding seven days.	Any other officers; any junior commissioned officer commanding a detachment, if specially authorised by the Commanding Officer.	Ditto	
(d)	For any period not exceeding three days	Any junior commissioned officer being in command of a detachment, if specially authorised by the Commanding officer.	Ditto	
(e)	For any period not exceeding two days.	Any non-commissioned officer commanding any section detachment if authorised by the Commanding Officer.	Ditto	

1	2	3	4
V.– EXTRA DUTIES.			
(a) Extra guards or picquets or duties.	Commanding Officer	All persons subject to the Act	For minor offences on such duties only
(b) Extra guards or picquets or duties.	Company Commander; Adjutant or a junior commissioned officer commanding a detachment, upto a limit of three such duties for any one offence, if authorised by Commanding Officer.	All persons subject to the Act other than officers.	
(c) Extra duties or working parties	Commanding Officer, Company Commander, Adjutant or a junior commissioned officer commanding a detachment upto to a limit of three such duties for any one offence, if authorised by the Commanding Officer.	Non-combatants	According to status and occupation
(d) Two such duties for any one offence	Non-commissioned officer, commanding or Section or detachment, if authorised by Commanding Officer.	All persons other than officer, junior commissioned officer and non-commissioned officer.	

1	2	3	4
VI.–DEPRIVATION OF ACTING RANK OR APPOINTMENT OR OF WORKING PAY OR WITHHOLDING OF ANNUAL INCREMENT.			
(a) Deprivation of acting and lance rank or of a position in the nature of an appointment.	Commanding Officer.	All persons subject to the Act other than officers, junior commissioned officers, warrant officers and persons holding equivalent positions.	
(b) Withholding of next increment of pay for a period not exceeding twelve months for an offence of gross negligence, continued idleness or minor insubordination.	Commanding Officers	All persons subject to the Act other than officers.	1. This form of punishment will not be awarded in addition to any other punishment. 2. Increment so stopped, may be restored by the superior officer on the recommendation of the Officer Commanding unit or crops for continued good conduct of the individual for a period of six months or more from the date of original award of punishment. Such a superior officer may restore the increment from the original date of stoppage or any subsequent date. Date of grant of future increments will not be affected either by the original sentence or by the order of restoration.
(c) Deprivation of working pay for any day on which an offence, including idleness or negligence connected with the work for which the pay is drawn is committed.	Commanding Officer; or junior commissioned officer commanding a detachment if authorised by his Commanding Officer.	All persons subject to the act, other than officers, junior commissioned officers, warrant officers and persons holding equivalent positions.	

1	2	3	4
VII.–FORFEITURE OF GOOD CONDUCT BADGE PAY.			
Forfeiture of one rate of good conduct badge pay.	Commanding Officer.	All persons subject to the Act, other than officers, junior commissioned officers and warrant officers.	May be awarded in addition to any other punishment.
VIII.–REPRIMAND.			
Reprimand or Severe Reprimand.	Commanding Officer.	Any warrant officer or any non-commissioned officers and persons holding equivalent positions.	
IX.–FINES.			
(a) Fine to the extent of half a month's pay.	Commanding Officers.	Persons enrolled but not attested.	May be awarded either alone or in conjunction with any other punishment, except rigorous imprisonment or field punishment.
(b) Fine to the extent of half a month's pay.	Commanding Officer.	Enrolled personnel, whether attested or not whose total monthly emoluments exceed the follow amount:– Sergeant -Taka fifty; Corporal or equivalent rank -Taka forty, Lance Corporal, Sainik or equivalent rank -Taka thirty.	May be awarded in addition to any other punishment will not be awarded to a non-commissioned officer, except when punishment under item VI of this Table is not advisable or appropriate.

	1	2	3	4
(c)	Fine to the extent of half a month's pay.	Commanding Officer.	All civilians in military employ and subject to the Act, other than civil gazetted officers and persons whose total monthly emoluments (excluding compensatory allowances) exceed Taka five hundred.	May be awarded alone or in conjunction with other punishment.
(d)	Fine to the extent of a month's pay for the offence of driving at an excessive speed or rash, negligent or dangerous driving or the unauthorised uses of Government vehicle.	Commanding Officer.	All persons subject to the Act, other than officers, junior commissioned officers and warrant officers or persons holding equivalent positions.	This form of punishment will not be awarded in cases where the persons or property of a third party has been injured particularly of a member of the civil population.
			X.–PENAL DEDUCTIONS.	
(a)	Any sum required to make good compensation for any expenses, loss, damage or destruction occasioned by the commission of an offence.	Divisional Commander	Any officer below the rank of Lieutenant Colonel, junior commissioned officers, warrant officers and other persons subject to the Act.	
(b)	Any sum required to make good compensation for any expenses, loss, damage or destruction occasioned by the commission of an offence.	Brigade Commander	Any officer below the rank of field officer, junior commissioned officers, warrant officers and other persons subject to the Act.	
(c)	Any sum required to make good any expenses, loss, damage or destruction caused by him to the Government or to any building or property.	Commanding Officer	Any persons on subject to the Act, other than an officer.	See Section 65 (2) (g). Deduction in respect of damage to Government vehicle except in cases where gross negligence or carelessness is disclosed, will be normally limited to half a month's pay.

1		2	3	4
		XI.–FIELD PUNISHMENT.		
(a)	Number. 1 or Number. 2 upto twenty-eight days.	Commanding Officer	All persons subject to the Act, except officers, junior commissioned officers, warrant officers, non-commissioned officers and persons holding equivalent positions.	On active service only. For details see Rule 156.
(b)	Number. 1 or Number. 2 upto seven days.	Junior commissioned officer commanding a detachment.	All persons subject to the Act, except officers, junior commission officers, warrant officers, non-commissioned officers and persons holding equivalent positions.	On active service only. For details see Rule 156.
(c)	Number. 1 or Number. 2 upto three days.	Non-commission officer, commanding a section or detachment if authorised by Commanding Officer.	All persons subject to the Act, except officers, junior commissioned officers, warrant officers and persons holding equivalent positions.	On active service only. For details see Rule 156.

*(Substituted for Table to Rule 17 *vide* Amended Number 1/iv/67).

Note:– For minor breaches of prison discipline a prisoner may be awarded by the Commanding Officer reduction of diet for not longer than three days at a time and additional hard labour and punishment drill not exceeding together two hours daily for not longer than seven days at a time.

18. Revision of minor punishments.–(1) If any award made by an authority dealing summarily with a charge under the preceding rule appears to any officer superior in command to the officer who awarded the punishment to be wholly illegal, or if the finding involved in such award appears to such superior officer to involve substantial injustice to the accused, such superior officer shall direct that the award be cancelled and the entry in the records of the accused be expunged.

(2) If any punishment awarded by an authority dealing summarily with a charge under the preceding rule appears to the aforesaid superior officer to be in excess of the punishment authorised by the law for the offence, such superior officer may vary the punishment awarded so that it shall not be in excess of the punishment authorised by law and the entry in the records of the accused shall be varied accordingly.

(3) If such punishment appears to the aforesaid superior officer to be too severe, having regard to all the circumstances of the case such superior officer may remit the whole or a part of the punishment awarded:

Provided that the power to make such remission may be exercised by the superior officer within a period of two years only from the date of the award.

Framing of charges

19. Charge-Sheet and Charge.–(1) A charge-sheet shall contain the whole issue or issues to be tried by a court-martial at one time.

(2) A charge means an accusation contained in a charge-sheet that a person subject to the Act has been guilty of an offence.

(3) A charge-sheet may contain one charge or several charges.

NOTES

1. *Sub-rule* (1). (i) The charge-sheet is usually prepared by the commanding officer or adjutant of the accused's unit; but in the case of trial by general or district court-martial, Rule 28 makes the convening officer responsible for its correctness. It must be signed by the officer in actual command of the unit to which the accused belongs on the day on which he is remanded for trial. If trial is ordered, the order must be added at the foot and signed by or by a Staff Officer "for" the convening officer.

(ii) The charge-sheet must disclose that the officer who signs it is the accused's commanding officer. Where two or more are jointly charged and they belong to different units, steps should be taken to ensure that they are

by attachment or otherwise put under the command of the same commanding officer.

(iii) For legal advice as to charges, see Regulations for the Army Instruction 292.

(iv) There may be several charge-sheets, *see* Rule 66; but the court can only deal with one charge-sheet at a time. When there are two or more charge-sheets they must be consecutively numbered.

2. *Sub-rule* (2). The "charge" here referred to is the formal written charge upon which the accused is to be tried, as distinct from the charge or complaint mentioned in Rules 13 and 15 which give rise to preliminary investigation.

3. *Sub-rule* (3). All charges, including alternative charges must be consecutively numbered. As to insertion of charges in separate charge-sheets, *see* Rule 66 and Notes.

20. Commencement of charge-sheet.– Every charge-sheet shall begin with the name and description of the person charged, and shall state, in the case of an officer his number, rank, name and the corps or unit. When the accused person does not belong to the regular army, the charge-sheet shall show by the description of him or directly by an express averment, that he is amenable to the Act in respect of the offence charged.

NOTES

1. (i) The name or description of a person charged is immaterial so long as his identity is established; [*see* also Notes to Rule 22 (1) and Rule 40 (1)]

As an officer, junior commissioned officer, warrant officer or person enrolled in the regular army is always subject to the Army Act, a statement in the charge-sheet that the accused belongs to a corps of the regular army will be sufficient to aver, and evidence of his so belonging will be sufficient to prove, that he is so subject, without expressly adding the words.

(ii) But if the accused is a civilian or if his name and position are unknown, as may happen on active service, the charge-sheet must expressly aver that he was subject to the Army Act, although it will be sufficient if the description of the accused is such as to imply that he was so subject. Evidence must in each case be given to show that the person falls under Section 2 (1) (c) of the Act.

2. When a soldier holding an appointment is brought to trial by court-martial, he is to be arraigned in his army rank, with the appointment also designated, thus:–

No.....Sepoy..... Regt.....

3. Where the accused has ceased to be an officer or soldier, but is still liable to be dealt with under military law under Section 92 of the Act, the heading of the charge should read as under:–

The accused .....is charged with having while being (number, rank) of the.....battalion,..... regiment, committed .....,

21. Contents of charge.–(1) Each charge shall state one offence only, and in no case shall an offence be described in the alternative in the same charge.

(2) Each charge shall be divided into two parts:

(a) the statement of the offence; and

(b) the statement of the particulars of the act, neglect or omission constituting the offence.

(2A) The offence should be stated, if not a civil offence, in the words of the Act, and if a civil offence, in such words as sufficiently describe that offence, but not necessarily in technical words.

(3) The particulars shall state such circumstances respecting the alleged offence as will enable the accused to know what act, neglect or omission is intended to be proved against him as constituting the offence.

(4) The particulars in each charge may be framed wholly or partly by a reference to the particulars in another charge, and in that case so much of the latter particulars as is so referred to shall be deemed to form part of the first mentioned charge as well as of the other charge.

(5) Where it is intended to prove any facts in respect of which any deduction from pay and allowances can be awarded as a consequence of the offence charged, the particulars should state those facts, and the sum of the loss or damage it is intended to charge.

NOTES

1. *Sub-rule* (1). (i) For form, of charges and preliminary note as to their use, *see* page 440 *et seq.*

(*See* also Memoranda for guidance of courts-martial)

The convening officer or, in the case of trials by summary court-martial, the commanding officer should seek the advice of the Judge Advocate General's Department, in any case where doubt exists as to the manner in which a charge should be framed. Charges for trial by general court-martial, and for indecency, fraud, theft (except ordinary theft) and civil offences (except simple assaults) should be referred to the Judge Advocate General's Department before trial; *see* Army Regulations (Instruction) 292 [*Substituted for Army instruction 419 vide Amdt. No.* 16/III/65] and para 10. (a) of Memoranda.

(ii) A single charge disclosing two separate offences would be a bad charge, *e.g.,* a charge under Army Act Section 32 (2) (b) of being grossly insubordinate and insolent to his superior officer in the execution of his office. But the use of the word "and" in the statement of offence is permissible where the charge discloses only one offence; *e.g.,* a charge under Army Act Section 45 (a) of losing by neglect arms, ammunition and equipment being Government property entrusted to his care, because the accused is not charged with two offences, but with a single offence which is constituted by his having lost by neglect the various articles specified in the charge. A single charge under Army Act Section 32 (2) (b) of being grossly insubordinate or insolent to his superior officer in the execution of his office would be a bad charge, as two separate offences are described in the alternative in the same charge.

The rule is applicable to the particulars of a charge, *e.g.,* in a charge under Army Act Section 28 (a) an averment that the accused quitted his post and remained absent for a specified period is not permissible, as the particulars disclose two separate offences. Similarly, in a charge, under Section 32 (2) (b) it is not permissible to aver two separate instances of insubordinate language, or in a charge under Section 39 false answers to two separate questions set out in the enrolment paper.

But the incidental mention of a separate offence in the particulars would not of itself invalidate the charge–*e.g.,* the mention in the particulars of a charge for assaulting a superior officer [(Section 32 (1))] and grossly insubordinate language [Section 32(2)(b)], which accompanied a menacing gesture and showed its purport.

(iii) A single transaction, though technically disclosing more than one offence, should not, as a rule, be made the subject of more than one charge. For instance, where violence to a superior is accompanied by insubordinate language, the violence alone should be charged (assuming the evidence to be satisfactory,) the language being admissible in evidence as to the intent.

On the other hand, if it seems desirable, a man can legally be charged in two separate charges with escape from arrest and absence without leave (following such escape).

2. *Sub-rule* (2). The statement of the particulars must support the statement of the offence *e.g.,* if the statement of an offence laid under Army Act Section 40 (a) alleged that the accused committed theft in respect of the property of Government, particulars stating that the accused dishonestly received, or was in unauthorised possession of, the property would not support the statement of the offence and the charge would be a bad charge, and the fact that the accused pleaded guilty to it would not affect the matter.

But a merely technical difference, *e.g.,* where the word assault is used in the statement of offence and the particulars disclosed the use of criminal force, would not invalidate the charge, if the statement of offence and the particulars taken together supply the court and the accused with sufficient information of the nature of the offence which the court has to try and the accused to meet.

Where the statement of offence discloses an offence under the Act and one or more essential elements of that offence are omitted from the particulars, *e.g.,* the word "dishonestly" in a charge of "dishonestly misappropriating" or the words "knowing it to be stolen" in a charge of receiving, the omission of that element from the particulars would not invalidate the charge, if taken as a whole, it informs the accused of the allegations he is called upon to meet, and the offence for which he is arraigned.

3. *Sub-rule* (2A). When civil offences are tried by court-martial under Army Act Section 59, although technical terms need not be used in the charge, the essence of the civil offence must be expressed.

4. *Sub-rule* (3). (i) The statement of particulars should state shortly in ordinary language what the accused is alleged to have done. All the ingredients necessary to constitute the offence should be specified; for example, if the charge is under Section 33 (2), for disobeying a lawful command, the particulars must state the command, the rank and name of the superior officer who gave the command, and the fact that the accused disobeyed it.

Where a state of mind (*e, g.,* intention or knowledge) is an essential ingredient of an offence, such state of mind should be stated in the particulars, *e.g., see* specimen charges Numbers 51–70 of this Manual.

(ii) Vague statements must be avoided, *e. g.,* in a charge for using insubordinate language to his superior officer or for making a false statement to his commanding officer, it is not sufficient to state that the accused used insubordinate language, or made a false statement well-knowing the statement to be false; the words alleged to have been spoken or written must be set out in the particulars. Similarly, in a charge under Section 34, it is not sufficient to state that the accused neglected to obey standing orders by doing a particular act; the order it is alleged the accused neglected to obey must be set out in the particulars–*see* illustration No. 36.

5. ***Sub-rule*** **(4).** If in such cases the accused were to be acquitted of the first charge and convicted of the second charge, the conviction when recorded should specify the place and date mentioned in the first charge.

6. ***Sub-rule*** **(5).** Unless these facts are stated in the particulars and proved in evidence, the court cannot award the punishment of stoppages under Army Act Section 60 (J) (iii).

22. Validity of charge-sheet.–(1) A charge-sheet shall not be invalid by reason only of any mistake in the name or description of the person charged, if he does not object to the charge-sheet during the trial, and it is not shown that injustice has been done to the person charged.

(2) In the construction of a charge-sheet or charge there shall be presumed in favour of supporting the same every proposition which may reasonably be presumed to be impliedly included though not expressed therein.

NOTES

1. ***Sub-rule*** **(1).** Although the trial of an offender is not invalid on account of a mistake in name, such mistakes are dangerous, in so far as they may lead to mistakes of substance. For instance, the accused might thus be mistaken for a man named in a certificate of previous conviction or in the sheet-roll, and a mistake of this description might cause the invalidity of the whole proceedings. Where, however, a man has been enrolled and is commonly known under an assumed name, he may be described by that name. The court has power to amend the charge by correcting, under Rule 40, any mistake in the name or description of accused.

2. ***Sub-rule*** **(2).** This sub-rule must not be regarded as excusing any carelessness in preparing charge-sheets. It enables a court to presume matters which, though not stated in the charge, are necessary to support its validity, and can reasonably be implied from it.

Preparation for Defence of Accused Person

23. Rights of accused to prepare defence.– (1) An accused person for whose trial a court-martial has been ordered to assemble shall be afforded proper opportunity of preparing his defence, and shall be allowed free communication with his witnesses, and with any friend, defending officer, or legal adviser whom he may wish to consult.

(2) As soon as practicable after an accused person has been remanded for trial by a general or district court-martial, and in any case not less than twenty-four hours before his trial, an officer shall give to him gratis a copy of the summary of evidence or, in the case of an officer where there is no summary of evidence, an abstract of evidence, and explain to him his rights under these rules as to preparing his defence and being assisted or represented at the trial, and shall ask him to state in writing whether or not he wishes to have an officer assigned by the convening officer to represent him at the trial if a suitable officer should be available. The convening officer shall be informed whether or not the accused so elects.

NOTES

1. For power to dispense with this rule, *see* Rule 26.

2. ***Sub-rule* (1).** (i) The most free communication which is consistent with the necessities of discipline and the safe custody of the accused should be allowed; otherwise the subsequent proceedings may be invalidated. The accused, or the defending officer, is not entitled to interview witnesses for the prosecution without special authority. He is not bound to call as a witness every one with whom he communicates as a possible witness on his behalf.

(ii) As to defending officer and friend of the accused, *see* rule 81 and as to counsel at general and district courts-martial, *see* Rules 82 to 87. As to the right of the accused to consult the Judge Advocate on any questions of law or procedure, *see* Rule 89.

3. ***Sub-rule* (2).** (i) A responsible officer should personally hand over the summary or abstract of evidence to the accused.

(ii) It would be a lawful command to an officer to act as defending officer; but such an order is undesirable.

(iii) Where an accused selects a particular officer, that officer should, if practicable, be made available. If the accused declines the

services of a defending officer, and he is not represented by counsel, a certificate signed by the accused stating that he has declined the services of a defending officer should be attached to the proceedings.

24. Information of charge and delivery of list of officers of court to accused.– (1) The accused, before he is arraigned, shall be informed by an officer of every charge on which he is to be tried; and also that, on his giving the names of witnesses whom he desires to call in his defence, reasonable steps will be taken for procuring their attendance, and those steps shall be taken accordingly. The interval between his being so informed of the charge against him and his arraignment shall be such as to allow him to consider his defence, and shall not, in any case, be less than twenty-four hours.

(2) The officer, at the time of so informing the accused, shall give him a copy of the charge-sheet and a vernacular translation of the same, and shall, if necessary, read and explain to him the charges brought against him.

(3) If he desires it, a list of the numbers, names, ranks and corps (if any) of the officers, who are to form the court, and where the officers in waiting are named, also of those officers will, in every court-martial other than a summary court-martial, be given to the accused.

(4) If it appears to the court that the accused is liable to be prejudiced at his trial by any non-compliance with this rule, the court shall take steps and, if necessary, adjourn to avoid the accused being so prejudiced.

NOTES

1. For power to dispense with this rule, *see* Rule 26.

2. ***Sub-rule*** **(1).** (i) The duty of complying with this sub-rule usually devolve upon the commanding officer in the case of summary and the prosecutor in the case of other courts-martial, who should, in any case, satisfy himself before the trial that it has been properly performed. Even if this rule is dispensed with under Rule 26, the accused must have information of the charge and opportunity of calling his witnesses.

(ii) As to arraignment, *see* Rule 38 and Notes.

(iii) The duty of procuring the attendance of witnesses at general and district court-martial devolves, under Rule 120 (1), upon the

commanding officer, convening officer or, after the assembly of the court, the president. The duty of procuring the attendance of witness at summary courts-martial devolves under Rule 120 (2), upon the commanding officer.

The request of an accused person for witnesses to be called on his behalf should be refused only if it is quite clear that their evidence would be immaterial, or if their attendance cannot be secured within a reasonable time. If the request is refused, the refusal and reasons for it should be communicated to the court who will deal with the matter under Rule 24 (4) or Rule 121. If an essential witness is absent, the court should always adjourn for the purpose of enabling him to attend or of procuring his examination on commission.

For form of summons to witnesses, *see* Third Appendix to these rules.

3. ***Sub-rule* (2).** A copy and translation of the charge-sheet must always be given, unless this rule has been dispensed with under Rule 26. Even where it is so dispensed with, the charge must be clearly explained to the accused, as otherwise he may not have proper opportunity to prepare his defence. If the accused objects to the charge, he will have an opportunity of making his objection when called upon to plead (Rule 39).

4. ***Sub-Rule* (3).** The list should be delivered to the accused, irrespective of any demand on his part, as soon as the names of the members are known.

25. Joint trial of several accused persons.– (1) Any number of accused persons may be charged jointly and tried together for an offence averred to have been committed by them collectively.

(2) Any number of accused persons, although not charged jointly, may be tried together for an offence averred to have been committed by one or more of them and to have been abetted or attempted by the other or others.

(3) Where two or more persons are charged jointly and tried together under sub-rule (1), or where two or more accused persons, although not charged jointly, are tried together under sub-rule (2), anyone or more of such persons may at the same time be charged and tried for any other offence alleged to have been committed by him or them individually or collectively, provided that all the said offences are founded on the same facts or form or are a part of a series of offences of the same or similar character.

(4) In any case falling under sub-rule (1), (2) or (3), notice of intention to try the accused persons together shall be given to each of the accused at the time of his being informed of the charge, and any accused person may claim, either by notice to the authority convening the court or, when arraigned before the court by notice to the court, that he or some other accused be tried separately on one or more of the charges included in the charge-sheet, on the ground that the evidence of one or more of the other accused persons proposed to be tried together with him will be material to his defence, or that he would, otherwise be prejudiced or embarrassed in his defence. The convening authority or court, if satisfied that the evidence will be material or that the accused may be prejudiced or embarrassed in his defence as aforesaid and if the nature of the charge admits of this, shall allow the claim, and such accused person, or, as the case may be, the other accused person or persons whose separate trial he has claimed, shall be tried separately. Where any such claim has been made and disallowed by the authority convening the court, or by the court, the disallowance of such claim will not be a ground for refusing confirmation of the finding or sentence, unless, in the opinion of confirming authority, substantial miscarriage of justice has occurred by reason of the disallowance of such claim.

NOTES

1. ***Sub-rules* (1) *and* (2).** If one accused pleads guilty and the other not guilty, the trial of the latter upto and including the finding must be carried out before the court to deal with the case of the accused who has pleaded guilty.

2. ***Sub-rule* (3).** The fact that some of the charges are preferred only against one of the accused should be clearly shown on the charge-sheet.

3. ***Sub-rule* (4).** (i) Where it is clear that the defence of accused tried together under this rule will conflict, steps should be taken to ensure that they are separately represented by defending officers or counsels.

(ii) To admit a joint charge and trial, the accused must have acted together with the common purpose of committing the offence charged. In the case of conspiring to cause or joining in a mutiny, the essence of the charge is combination between the accused. In such a case the nature of the charge may not admit separate trial. In cases of doubt, the accused should be tried separately.

Certain offences cannot, from their very nature be committed collectively. Such offences are intoxication, sentry sleeping upon, or quitting, the post, malingering, giving false evidence, cowardice, etc., and, speaking generally, all offences where a person's individual state of body or mind is of the essence of the offence.

Suspension of Rules

26. Suspension of rules on the grounds of military exigencies or the necessities of discipline.– Where it appears to the officer convening a court-martial, or to the senior officer on the spot, that military exigencies, or the necessities of discipline, render it impossible or inexpedient to observe any of sub-rules (4), (5), (6), (7) and (8) of Rule 13 or Rules 14, 15, 23, 24 and sub-rule (2) of Rule 81 he may, by order under his hand, make a declaration to that effect specifying the nature of such exigencies or necessities, and thereupon the trial or other proceedings shall be as valid as if the rule mentioned in such declaration had not been contained herein. Such declaration may be made with respect to any or all of the aforesaid rules in the case of the same court-martial:

Provided that the accused shall have full opportunity of making his defence, and shall be afforded every facility for preparing it which is practicable, having due regard to the said exigencies or necessities.

NOTES

1. For form of declaration, see page 459.

2. The power conferred by this rule should rarely be exercised, except on active service and then only if absolutely necessary. Occasionally it may be necessary to resort to it in the case of embarkation or on the line of march, or possibly in an extreme case where the necessities of discipline require speedy trial and punishment.

In exercising the power conferred by this rule, it is not necessary to dispense with all the provisions mentioned, *e.g.,* it may be expedient to comply with the relevant provisions of Rule 13 but not with Rule 23.

If Rule 13(4), (5), (6), (7) and (8) are suspended, steps must be taken to inform the accused beforehand of the nature of the charge, the names of the witnesses and the purport of their evidence, and the court must take care that the accused is not prejudiced by reason of the suspension, as, for instance, by not having received a summary of evidence.

The power of dispensing with Rule 23(1) is intended to be exercised only where it is necessary to try a person before he can communicate with a witness or friend at a distance. The rule should never be dispensed with except in extreme cases, and even then the accused must be allowed free communication with any witness or friend upon the spot.

Rule 24(3) should always be complied with and Rule 24(1) and (2), if not complied with within the time therein mentioned, should be complied with as long as possible before the court assembles.

3. The accused will not have full opportunity of making his defence unless he receives in reasonable time the information mentioned above; and if he requests a reasonable adjournment in order to consider the witnesses' evidence, or to acquaint himself with the charge, or request the postponement of the cross-examination of a witness, the court should grant the request and may adjourn for the purpose. A refusal might be held to be non-compliance with this proviso and thus to invalidate the trial. For the same reason, the court, even in the absence of such request, must take care that the accused is not prejudiced by being taken by surprise, either by the charge or by the evidence of the witnesses.

Alternative procedure

27. Alternative procedure.— When an accused person is remanded for trial by general or district court-martial, the procedure before and during the trial shall be that laid down in Section 2 of this Chapter, and when an accused person is remanded for trial by summary court-martial that laid down in Section 3 thereof. Section 4 of this Chapter is equally applicable to trials by general, district or summary courts-martial.

NOTE

As to procedure in the case of trial by field general court-martial, *see* Rules 137 to 149.

SECTION 2.—GENERAL AND DISTRICT COURTS-MARTIAL

Convening the Court

28. Convening of general and district courts-martial.— (1) An officer before convening a general or district court-martial, shall first satisfy himself that the charges to be tried by the court are for offences within the meaning of the Act, and that the evidence justifies a trial on those charges, and, if not so satisfied, shall order the release of the accused, or refer the case to superior authority.

(2) He shall also satisfy himself that the case is a proper one to be tried by the description of court-martial he proposes to convene.

(3) The officer convening a general or district court-martial shall appoint or detail the officers to form the court, and may also appoint or detail such waiting officers, as he thinks expedient. He may also, where he considers the services of an interpreter to be necessary, appoint or detail an interpreter to the court.

(4) The officer convening a general or district court-martial shall stand to the officer appointed as its president under Section 102 the original charge-sheet on which the accused is to be tried, the summary or abstract of evidence, and the order for the assembly of the court-martial.

NOTES

1. *Sub-rule* (3). (i) With respect to the duties of the convening officer, *see* paras 10 to 13 of memoranda. The convening officer must ensure that he holds the necessary court-martial warrant empowering him to convene the description of court-martial that he considers appropriate.

(ii) Where the convening officer finds it impracticable to follow the ordinary rules as to appointing members from different corps [Rule 31 (1)], or as to the rank of members [Rule 31(3)] he should state his opinion in the convening order.

The declaration as to military exigencies dispensing with certain rules (*see* Rule 26) should be in a separate order. For form of declaration, *see* page 459.

(iii) Under Army Act Section 89 a court-martial which, after commencement of the trial is reduced below the legal minimum, is dissolved. If, therefore, the trial is likely to be prolonged, the number of

members detailed to serve should be in excess of the legal minimum required. Additional members should also be detailed to serve in doubtful or complicated cases.

(iv) It will usually be desirable, in the case of both general and district courts-martial, to add two or more waiting officers, in order to fill the places of officers retiring on challenge, or being unable to attend owing to illness, etc.

(v) In almost every case an interpreter in the language of the accused person will be necessary and should be detailed; *see* Rule 77 and Note.

2. ***Sub-rule*** **(4).** (i) Where several persons are to be tried separately by the same court, a copy of the convening order should be prepared for each accused. The original charge-sheet and convening order will subsequently be annexed to the proceedings.

(ii) The object of this sub-rule is to enable the president of the court-martial to have a general knowledge of the case which is to come before the court. If any amendment in the charges appears to him to be required, he should communicate with the convening officer before the trial begins.

(iii) The summary of evidence must be read in court if the accused pleads guilty, and may be used for determining the sentence [Rule 44(2)]. It may be used at the trial for the purpose of showing that a witness has previously made a particular statement, or is giving evidence which differs from that given by him when the summary was taken. Any statement of the accused contained in the summary may be read to the court as evidence at the close of the prosecutor's case, but before reading such statement formal proof should be given that it was made voluntarily; *see* Notes to Rule 13.

Except in the above instances the summary cannot be used as evidence.

(iv) During the trial the president should compare the evidence given by each witness with his statement contained in the summary of evidence and, if there is any material variation, should question him thereon.

Members of the court must take care that they are not unduly influenced by any statement appearing in the summary of evidence, though they will naturally have regard, in testing the credibility of a witness, to the fact that his evidence given at the trial is contradictory to

his statement at the summary. It is usually expedient that the president alone should refer to the summary.

(v) Where the accused pleads guilty, the summary of evidence is to be annexed to the proceedings [Rule 44 (2)] and for Form of Proceedings [*see* page 465]. If the accused pleads not guilty, the summary should be enclosed with the proceedings when sent to the confirming officer, but it should only be annexed to the proceedings if it has been used in evidence.

See Rule 15 (2) as to an "abstract of evidence".

29. Adjournment for insufficient number of officers.– (1) If, before the accused is arraigned, the full number of officers detailed are not available to serve, by reason of ineligibility, disqualification, challenge or otherwise, and if there are not sufficient number of officers in waiting to take the place of those unable to serve, the court shall ordinarily adjourn for the purpose of fresh members being appointed; but if the court are of the opinion that in the interests of justice, and for the good of the service, it is inexpedient so to adjourn, they may, if not reduced in number below the legal minimum, proceed, recording their reasons for so doing.

(2) If the court adjourns for the purpose of the appointment of a new president or of fresh member, whether under these rules or otherwise, the convening officer may, if he thinks fit, convene another court.

NOTES

1. *Sub-rule* (1). (i) A general court-martial, for which, say seven members have been detailed, will not ordinarily begin the trial with less than seven. It may be assumed that the convening officer in detailing seven members when five would have legally sufficed, had in view the possible prolongation of the trial or the desirability, in the circumstances of the case of submitting the issues to be decided to the arbitration of a larger tribunal. But under this sub-rule the court may proceed, unless reduced below the legal minimum (*see* Notes to Rule 28).

No court can be formed if the number of officers is, from whatever cause, below the legal minimum, nor can the proceedings, even if properly commenced, be continued. In either case a report of the circumstances must be made to the convening officer by the president or the senior officer present.

(ii) For legal minimum, *see* Army Act Sections 85 and 86.

2. ***Sub-rule* (2).** (i) *New president* will be necessary if the president is found to be ineligible or disqualified or if an objection to him is allowed or if he cannot attend. The court must adjourn to report to the convening authority for appointment of a new president (*See* also Army Act Section 102).

(ii) After the trial has once begun fresh members cannot be appointed in any circumstances [See Army Act Section 89 (1)].

30. Ineligibility and disqualification of officers for court-martial.– (1) An officer is not eligible for serving on a court-martial if he is not subject to, or otherwise qualified under the provisions of the Act.

(2) An officer is disqualified from serving on a general or district court-martial if he,–

(i) is the officer who convened the court; or

(ii) is the prosecutor or a witness for the prosecution; or

(iii) investigated the charges before trial, or took down the summary of evidence, or was a member of a court of inquiry respecting the matters on which the charges against the accused are founded, or was the squadron, battery, company or other commander who made preliminary inquiry into the case, or was a member of a previous court-martial which tried the accused in respect of the same offence; or

(iv) is the commanding officer of the accused, or of the corps to which the accused belongs; or

(v) has a personal interest in the case.

NOTES

1. ***Sub-rule* (1).** "Eligible" is used with reference to an officer being subject to military law and of the necessary standing; that is to say, it refers to the status of the officer, and involves no personal considerations.

2. ***Sub-rule* (2).** (i) "Disqualified" is used with reference to the personal qualification of an officer. Except so far as is provided by Rule 30, the corps to which an officer belongs is immaterial as regards his eligibility or qualification to serve on a court-martial.

(ii) *"Personal interest"*. This will extend to even a remote or very small interest, *e.g.,* in a charge relating to the theft of a sum of money, however small, belonging to an officers' mess, or a club, every officer of that mess or club has a personal interest, and is, therefore, disqualified. A merely technical interest has been held to disqualify a person from holding a judicial position, e.*g.,* a person who holds, as trustee or otherwise on behalf of others, money in which he has no beneficial share himself, nevertheless has a personal interest in any charge relating to that money.

31. Composition of a general court-martial.– (1) A general court-martial shall be composed, as far as seems to the convening officer practicable, of officers of different corps or units, and in no case exclusively of officers of the corps or unit to which the accused belongs.

(2) The members of a general court-martial for the trial of an officer shall be of a rank not less than that of the officer unless, in the opinion of the convening officer, officers of such rank are not (having due regard to the public service) available.

(3) In no case shall an officer under the rank of captain be a member of a general court-martial for the trial of a field officer.

NOTES

1. ***Sub-rule* (1).** (i) There is no similar restriction as to composition of district court-martial, which may, therefore, when necessary, be composed wholly of officers of the corps or department to which the accused belongs; but where possible they should not be so composed.

(ii) The expression of the convening officer's opinion justifying a departure from the general rule should be inserted in the convening order.

2. ***Sub-rule* (2).** The expression of the convening officer's opinion justifying a departure from the general rule should be inserted in the convening order.

Procedure at Trial – Constitution of Court

32. Inquiry by court as to legal constitution.– (1) On the court assembling, the order convening the court shall be laid before them together with the charge-sheet and the summary or abstract of evidence or a true copy thereof, and also the numbers, ranks, names and corps of the officers appointed to serve on the court; and it shall be the first duty of the court to satisfy themselves that the court is legally constituted; that is to say,–

(i) that, as far as the court can ascertain, the court has been convened in accordance with the Act and these rules;

(ii) that the court consists of a number of officers not less than the legal minimum, and save as mentioned in Rule 29 not less than the number detailed;

(iii) that each of the officers so assembled, is eligible and not disqualified for serving on that court-martial;

(iv) that in the case of a general court-martial the officers are of the required rank.

(2) The court shall, further, if it is a general or district court-martial to which a judge-advocate has been appointed, ascertain that the judge advocate is duly appointed and not disqualified for acting at that court-martial.

(3) The court, if not satisfied on the matters set out in sub-rules (1) and (2) shall report their opinion to the convening authority, and may adjourn for that purpose.

NOTES

1. ***Sub-rule*** **(1).** (i) The inquiries necessitated by this and the following rule should be conducted in closed-court. The court is not "open" at this stage, and the accused has not yet been brought before it. Nor should the prosecutor or defending officer or counsel be admitted.

(ii) The convening order, charge-sheet and summary or abstract of evidence will be in the possession of the president (*see* Rule 28).

(iii) Where members are detailed by rank and corps and not by name, then only officers of the actual rank and corps stated in the convening order can serve as members.

(iv) It is essential that the court should ascertain, as far as lies in their power that they have jurisdiction. In the case of a general or district court-martial the order must be signed by the convening officer or "for" him by a Staff Officer, authorised by the usage of the service to sign his order. The absence of a properly signed convening order is a fatal flaw although an order for trial is endorsed upon the charge-sheet. Apart from the specific requirements of this sub-rule, the court must be satisfied that it is constituted strictly in accordance with the convening order.

(v) The court, in considering whether they are convened in accordance with the Army Act and Rules, can only look at the convening order. The convening officer is responsible that he holds the necessary court-martial warrant empowering him to convene the court, and the court are not required to satisfy themselves in this respect.

(vi) For legal minimum, *see* Army Act Sections 85 and 86.

(vii) For eligibility and disqualification, *see* Rule 30 and Notes.

When a court of inquiry has been held respecting a matter upon which a charge against the accused is founded, the president should insert and sign the certificate shown in the Note on page 460.

2. ***Sub-rule* (2).** *See* Army Act Section 103 and Rule 88.

33. Inquiry by court as to amenability of accused and validity of charge.– (1) The court, when satisfied on the matters set out in sub-rules (1) and (2) of the preceding rule, shall satisfy themselves in respect of each charge about to be brought before them,–

(i) that it appears to be laid against a person subject to the Act, and to the jurisdiction of the court; and

(ii) that each charge discloses an offence under the Act and is framed in accordance with these rules, and is so explicit as to enable the accused readily to understand what he has to answer.

(2) The court, if not satisfied on the matters set out in sub-rule (1), shall report their opinion to the convening authority and may adjourn for that purpose.

NOTES

1. ***Sub-rule* (1).** (i) The inquiry by the court under this and the preceding rule should be conducted in closed court.

(ii) For amenability to military law, *see* Army Act Sections 2, 5 and 6. *See* also the Bangladesh Territorial Force Act, 1950; the Bangladesh (Army and Air Force) Reserves Act, 1950 and the Rules under those Acts, for the subjection to the Army Act of persons who are initially subject to those Acts.

(iii) As to validity of charges, *see* Rules 19 to 22.

2. As to the form of proceedings, *see* page 459.

Procedure at Trial – Challenge and Swearing

34. Appearance of accused and prosecutor.– When the court have satisfied themselves as to above facts, they shall cause the accused to be brought before the court, and the prosecutor, who must be a person subject to the Act, shall take his place.

NOTES

1. The duty of appointing the prosecutor devolves on the convening officer who ordinarily selects the adjutant of accused person's regiment. The convening officer must not appoint himself as prosecutor as the prosecutor cannot confirm the finding and sentence of the court. In trials by general court-martial, and in complicated cases, a prosecutor with experience and knowledge of military law should be selected and should, as far as possible, be relieved from ordinary military duties to enable him to master the case. In ordinary cases the officer who investigated the charges before trial, or took down the summary of evidence, or was a member of the court of inquiry respecting the subject of the charge against the accused, or was the squadron etc., commander who made preliminary inquiry, should be appointed prosecutor.

2. As to duties of prosecutor, *see* Rules 46 to 48 and Notes, and memoranda on Pages 509 to 512.

3. As to the form of proceedings, *see* page 460.

35. Proceedings for challenge of members of court.– (1) The order convening the court and the names of the president and members of the court shall be read over to the accused and he shall be asked, as required by Section 104, whether he objects to be tried by any officer sitting on the court. Any such objection shall be disposed of in accordance with the provisions of Section 104:

Provided that the accused shall state the names of all the officers to whom he objects before any objection is disposed of.

(2) The accused has no right to object to the prosecutor or judge advocate.

(3) The accused may call any person to give evidence in support of his objection. Such person may be questioned by the accused and by the court.

(4) If more than one officer is objected to, the objection to each officer shall be disposed of separately, and the objection to the lowest in rank shall be disposed of first; except that, if the president is objected to, the objection to him shall be disposed of before the objection to any other officer. On an objection to an officer, all the other officers present shall vote on the disposal of such objection, notwithstanding that objections have been made to any of those officers.

(5) When an objection to an officer is allowed that officer shall forthwith retire, and take no further part in the proceedings.

(6) When an officer retires under sub-rule (5), or is not available to serve owing to any cause which the court may deem to be sufficient, and there are any officers in waiting detailed as such, the president shall appoint one of such officers to fill the vacancy. If there is no officer in waiting available, the court shall proceed as directed by Rule 29.

(7) The eligibility, absence of disqualification, and freedom from objection of an officer filling a vacancy shall be ascertained by the court, as in the case of other officers appointed to serve on the court.

NOTES

1. This rule must be read with Army Act Section 104.

2. ***Sub-rule*** **(1).** (i) The accused must make each objection separately. He cannot object to the court collectively except upon a plea to the jurisdiction under Rule 41. If the accused persists in objecting to the court collectively, the court should treat the objection as made to all members individually, and the procedure provided by this sub-rule should be followed. In practice an objection to a member may be equivalent to a plea to the jurisdiction, as, for example, when on the trial of a field officer, one of the members is objected to because he is below the rank of captain. In such a case, the objection should be dealt with under this rule, although it might more properly have been raised under Rule 41.

The accused has no right to object to the prosecutor or judge-advocate.

(ii) An officer objected to on the ground of personal enmity, prejudice or malice or for having formed or expressed an opinion on the case, should, unless the objection is obviously groundless, request and be permitted to retire. An officer successfully objected to on the ground of personal interest is disqualified from serving as a member [*See* Rule 30 (2) (v) and Notes].

(iii) The court may be closed to consider each objection.

3. ***Sub-rule* (3).** The witnesses cannot be examined on oath, as the court are not yet sworn; but Rule 124 will substantially apply.

4. Sub-rule (4). This sub-rule excludes an officer from voting on his own case, but all the other members present, *i.e.,* who have not retired upon objections to them being allowed, must vote on the disposal of the objection.

5. ***Sub-rule* (6).** (*i)* The sub-rule prescribes the manner of filling a vacancy created either by a successful objection or through non-attendance of an officer detailed. Where any waiting members are detailed, it is the duty of the president to appoint one of those members to fill a vacancy. He is not required to take the first on the list; ordinarily he should select one of corresponding rank to the retiring or absent member. If the president is himself successfully objected to, the authority convening the court alone can appoint the new president, *vide* Section 102 subject to the same right of the accused to object.

(ii) If there is no officer in waiting available and the court are reduced in number below the legal minimum, they must adjourn for the purpose of the appointment of fresh members; and though not so reduced, they should ordinarily adjourn unless they are of the opinion that, in the interests of justice and for the good of the service, it is not expedient to do so.

6. ***Sub-rule* (7).** It is desirable to ascertain before the accused is brought before the court whether a waiting member is eligible and qualified to serve if called upon. An objection to a waiting member called upon to serve will be dealt with immediately, if he is junior to any other officers who have been objected to; if he is not, the objection to junior officers will first be disposed of and he will have to vote on such objections.

7. In a doubtful case, the objection should always be allowed. The court should not only be impartial, but be believed by the accused and his comrades to be so.

36. Swearing or affirming of members.– (1) As soon as the court is constituted with the proper number of officers who are not objected to, or the objections to whom have been overruled an oath or affirmation shall be administered to and taken in the presence of the accused by every member in one of the following forms or in such other form to the same purport as the court ascertains to be according to his religion or otherwise binding on his conscience.

FORM OF OATH

"I....., swear by Almighty God that I will duly administer justice, according to the Army Act, without partiality, favour or affection; and if any doubt shall arise then, according to my conscience, the best of my understanding, and the custom of the service in like cases; and that I will not divulge the sentence of this court-martial until it shall be published by authority; and further that I will not disclose or discover the vote or opinion of any particular member of this court-martial, unless required to give evidence thereof by a court of justice or a court-martial in due course of law."

FORM OF AFFIRMATION

"I....., solemnly affirm, in the presence of Almighty God that I will duly administer justice, according to the Army Act without partiality, favour or affection; and if any doubt shall arise, then, according to my conscience, the best of my understanding and the custom of the service in like cases; and that I will not divulge the sentence of this court-martial until it shall be published by authority; and, further, that I will not disclose or discover the vote or opinion of any particular member of this court-martial, unless required to give evidence thereof by a court of justice or court-martial, in due course of law."

(2) If there is a judge advocate, the oath or affirmation shall be administered by him to the president first, and afterwards to the other members of the court. If there is no judge-advocate, the oath or affirmation shall be administered by the president to the other members of the court, and shall be administered to the president by any member of the court already sworn or affirmed.

NOTES

1. Muslims and Hindus are generally affirmed. Christians and Sikhs are generally sworn; the former on the New Testament or some book containing it, the latter on the Granth. Jews are sworn on Old Testament.

2. As to the person to administer the oath or affirmation, *see* Rule 37 (2) and Notes.

3. As to swearing the court to try several persons, *see* Rule 75.

4. A person taking the oath shall place his hand on, or hold, the book and will repeat the oath after the person administering it. It is not necessary to kiss the book. The oath must be administered and taken with solemnity. The members may be sworn separately or collectively.

5. Affirmation are repeated by the person making affirmation after the person administering it.

6. In addition to providing a form of oath or affirmation, the rule permits an oath or affirmation to be administered to the person to be sworn or affirmed in such form as the court ascertains to be according to his religion or otherwise binding on his conscience.

7. Omitted.

8. The oath or affirmation taken by members of the court implies that, as a general rule, the opinions of the individual members ought not to be stated, and consequently the court ought not disclose whether the decision was unanimous or by a majority. The decision arrived at is the decision of the court as a whole, and the fact of its being unanimous or not is usually immaterial. The qualifications at the end of the oath or affirmation, "unless required to give evidence thereof, etc.," only applies to such cases as those where members of the court are charged individually with partiality or bribery, and thus in a court of justice or a court-martial it would, or might, be necessary to make disclosures regarding individual votes to the court trying members so charged.

9. As to the form of proceedings, see page 462.

37. Swearing or affirming of judge-advocate and other officers.– After the members of the court are all sworn or have made affirmation, an oath or affirmation shall be administered to, and taken in the presence of the accused by, the following persons or such of them as are present at the court-martial, in such of the following forms as shall be appropriate, or in such other form to the same purport as the court ascertains to be according to the religion or otherwise binding on the conscience, of the person to be sworn or affirmed.

(A) Judge-advocate

FORM OF OATH

"I....., swear by Almighty God that I will to the best of my ability carry out the duties of judge-advocate in accordance with the Army Act and the rules made thereunder and without partiality, favour or affection. I do further swear that I will not, on any account whatsoever, disclose or discover the vote or opinion of any particular member of this court-martial unless required to give evidence thereof by a court of justice or a court-martial, in due course of law; and that I will not, unless it be necessary for the due discharge of my official duties divulge the sentence of this court-martial until it shall be published by authority."

FORM OF AFFIRMATION

"I....., solemnly affirm in the presence of Almighty God that I will to the best of my ability carry out the duties of judge-advocate in accordance with the Army Act and the rules made thereunder and without partiality, favour or affection. I do further affirm that I will not, on any account whatsoever, disclose or discover the vote or opinion of any particular member of this court-martial unless, required to give evidence thereof by a court of justice or a court-martial in due course of law; and that I will not, unless it be necessary for the due discharge of my duties, divulge the sentence of this court-martial until it shall be published by authority".

(B) Officer attending for the Purpose of Instruction

FORM OF OATH

"I..... swear by Almighty God that I will not on any account divulge the sentence of this court-martial until it shall be published by authority, and, further, that I will not disclose or discover the vote or opinion of any particular member of this court-martial unless required to give evidence thereof by a court of justice or a court-martial, in due course of law".

FORM OF AFFIRMATION

"I....., solemnly affirm in the presence of Almighty God that I will not on any account divulge the sentence of this court-martial until it shall be published by authority, and, further, that I will not disclose or discover the vote or opinion of any particular member of this court-martial, unless required to give evidence thereof by a court of justice or a court-martial, in due course of law."

(C) Shorthand-writer

FORM OF OATH

"I....., swear by Almighty God that I will truly take down to the best of my power the evidence to be given before this court-martial and such other matters as may be required, and will, when required, deliver to the court a true transcript of the same".

FORM OF AFFIRMATION

"I....., solemnly affirm in the presence of Almighty God that I will truly take down to the best of my power the evidence to be given before this court-martial, and such other matters as may be required, and will, when required, deliver to the court a true transcript of the same".

(D) Interpreter

FORM OF OATH

"I....., swear by Almighty God that I will to the best of my ability truly interpret and translate, as I shall be required to do, touching the matter before this court-martial".

FORM OF AFFIRMATION

"I....., solemnly affirm in the presence of Almighty God that I will to the best of my ability truly interpret and translate, as I shall be required to do, touching the matter before this court-martial."

(2) The oaths or affirmations required by sub-rule (1) shall be administered by the president or some member of the court or, except in the case of the judge-advocate, by the judge advocate (if any).

NOTES

1. The Notes to Rule 36 apply, *mutatis mutandis* to this Rule.

2. The form of oath and affirmation for a witness are set out in Rule 123.

3. The accused has a right of objection to the shorthand-writer or interpreter, who may be sworn at any time during the trial (Rule 76); he has no right of objection to the judge-advocate or to the officers under instruction.

Prosecution, Defence and Summing Up

38. Arraignment of accused.– (1) After the members of the court and other persons are sworn or affirmed as hereinbefore provided the accused shall be arraigned on the charges against him.

(2) The charges upon which the accused is arraigned shall be read and, if necessary, translated to him, and he shall be required to plead separately to each charge as soon as it has been read to him.

NOTES

1. The accused should be arraigned by the president or the judge-advocate (if any).

"Arraignment" consists of (1) calling upon the accused by his number (if any), rank, name and description as given in the charge-sheet and asking him, "Is that your number, rank, name and unit (or description)"; (2) reading the charge to him; and (3) asking him whether he is guilty or not guilty.

Where two or more persons are jointly charged and tried for the same offence, each is separately arraigned. Where there are more charge-sheets than one against an accused, he must be arraigned and tried upon the first charge-sheet before arraignment upon the second or subsequent charge-sheets (*See* Rule 66).

2. The charge-sheet, containing the charges as settled by the convening officer, will be in the possession of the president [Rule 28(4)] who will lay it before the court immediately before arraignment, and the charge-sheet will then be annexed to the proceedings.

The plea of the accused must be taken on all the charges in a charge-sheet. This applies to alternative charges if the accused has been arraigned upon them; but *see* Rule 42 (3).

39. Objection by accused to charge.– The accused, when required to plead to any charge, may object to the charge on the ground that it does not disclose an offence under the Act, or is not in accordance with these rules. The court, after hearing any submission which may be made by the prosecutor or by or on behalf of the accused, shall consider the objection in closed court and shall either disallow it and proceed with the trial, or allow it and adjourn to report to the convening authority; or, if they are in doubt, they may adjourn to consult the convening authority.

NOTES

1. ***"Offence under the Act".*** For example, a charge laid under Army Act Section 45 (a) of losing by neglect the property of a comrade would not disclose an offence under that section.

2. ***In accordance with these rules.*** *See* Rules 19 to 22, e.g., that the charge discloses two separate offences (using and offering violence) or that it was bad for vagueness (using or offering violence).

3. ***Adjourn to report the convening authority.*** Once the court has allowed the objection, it cannot continue with the trial and if the convening officer considers that the decision of the court was wrong he must dissolve the court and order a fresh trial before a new court.

4. ***Consult the convening authority.*** The convening authority may either advise the court about the action to take or dissolve the court and convene a fresh court for the trial of the accused.

5. For procedure where it appears that the accused is, by reason of insanity, unfit to take his trial, *see* Rule 128.

6. As to the form of proceedings, *see* page 465.

40. Amendment of charge.– (1) At any time during the trial, if it appears to the court that there is in the charge-sheet any mistake in the name or description of the accused, or a mistake which is attributable to clerical error or omission, the court may amend the charge-sheet so as to correct that mistake.

(2) If on the trial of any charge it appears to the court at any time before the court is closed for consideration of their finding on that charge, that in the interests of justice any addition to, omission from, or alteration in, the charge is required, they may report their opinion to the convening authority, and may adjourn, and the convening authority may either direct a new trial to be commenced, or amend the charge and order the trial to proceed with such amended charge after due notice to the accused.

NOTES

1. ***Sub rule* (1).** A mistake in name or description will only be amended if it is clear to the court that the accused is the person intended to be charged in the charge-sheet, and that he is not prejudiced in his defence by the mistake having been made.

2. *Sub rule* (2). (i) The court may act under this sub-rule whether the objection to the charge is taken by the accused, or by the judge-advocate, or by a member of the court, and either before or after the arraignment of the accused.

(ii) The witnesses, *i.e.,* the witnesses on the substance of the charge, not those who are called as to objections to the members, or with respect to a special plea to the jurisdiction under Rule 41.

(iii) If the addition, omission or alteration can be met by means of a special finding under Rule 51 (4) as, for instance by omitting from the finding some of the articles alleged to have been stolen or lost by neglect, or by correcting a mistake in an immaterial date, it will not usually be necessary to have the charge amended, but if the date is material or if any addition requires to be made to the particulars of the charge, it will be safer for the court to adjourn and apply for the amendment. If the charge appears not to disclose an offence under the Act, the court must adjourn, *see* Rule 39.

3. As to the form of proceedings *see* page 463.

41. Special plea to the jurisdiction.– (1) The accused, before pleading to a charge, may offer a special plea to the general jurisdiction of the court. If he does so, and the court consider that anything stated in such plea show that the court have no jurisdiction, they shall receive any evidence offered in support, together with any evidence offered by the prosecutor in disproof or qualification thereof, and any address by the accused and reply by the prosecutor in reference thereto.

(2) If the court overrule the special plea, they shall proceed with the trial.

(3) If the court allow the special plea, they shall record their decision and the reason for it, and report it to the convening authority and adjourn. Such decision shall not require any confirmation, and the convening authority shall either forthwith convene another court for the trial of the accused or order the accused to be released.

(4) If the court are in doubt as to the validity of the plea, they may refer the matter to the convening authority and may adjourn for that purpose or may record a special decision with respect to such plea, and proceed with the trial.

NOTES

1. ***Sub rule* (1).** (i) A plea to the general jurisdiction, that is, to the right of the court generally to try the accused on any charge at all, is here kept distinct from any plea which relates only to the particular charge on which the accused is brought before the court. Under the former he may plead, for example, that the court is improperly constituted in respect of the number of members, or that he is not amenable to the court, either as not being subject to military law or not subject to that description of court; as, for instance, in the case of an officer being brought before a district court-martial.

(ii) A plea relating to the particular charge, and raising the defence of previous conviction or acquittal by a court-martial or criminal court, summary punishment by the commanding officer, pardon of the offence or its condonation by the deliberate act of some superior authority or of the lapse of more than three years since the date of the offence (Army Act Section 91) will be raised by way of plea in bar of trial, under Rule 43.

(iii) Evidence must be taken on oath or affirmation.

2. ***Sub-rule* (2).** The confirmation of the finding after a plea to the jurisdiction has been overruled will have the effect of confirming the decision of the court in overruling the plea. If, however, the confirming officer is of the opinion that the plea is valid and should have been allowed, he must refuse to confirm the finding of the court, and another court may legally be convened.

3. ***Sub-rule* (3).** If the court allow the plea, the decision of the court cannot be overruled, but another court may legally be convened.

4. ***Sub-rule* (4).** If a special plea to the jurisdiction were raised, *e.g.,* on the ground that the accused was not subject to the Act, and the court were in doubt as to the validity of the plea, they might record a special decision to that effect and state that they had nevertheless decided to proceed with the trial. This procedure, in effect, transfers the decision as to the validity of the plea to the confirming officer, who should act as if the plea had been overruled.

5. As to the form of proceedings, *see* page 464.

42. General plea of "Guilty" or "Not guilty".– (1) If no special plea to the general jurisdiction of the court is offered, or if such plea, being offered, is overruled, or is dealt with by a special decision under sub-rule (4)

of Rule 41 the accused person's plea – “Guilty” or “Not guilty” (or if he refuses to plead, or does not plead intelligibly either one or the other, a plea of "Not guilty") – shall be recorded on each charge on which he is arraigned.

(2) If an accused person pleads "Guilty", that plea shall be recorded as the finding of the court, but, before it is recorded, the president or judge-advocate, on behalf of the court, shall ascertain that the accused understands the nature of the charge to which he has pleaded guilty, and shall inform him of the general effect of that plea, and in particular of the meaning of the charge to which he has pleaded guilty, and of the difference in procedure which will be made by the plea of guilty, and shall advise him to withdraw that plea if it appears from the summary of evidence or otherwise that the accused ought to plead not guilty.

(3) Where an accused person pleads "Guilty" to the first of two or more charges laid in the alternative, the prosecutor may, after sub-rule (2) has been complied with by the court and before the accused is arraigned on the alternative charge or charges, withdraw such alternative charge or charges without requiring the accused to plead thereto, and a record to that effect shall be made upon the proceedings of the court.

(4) A plea of "Guilty" shall not be accepted in cases where the accused is liable, if convicted, to be sentenced to death, and where such plea is made, the trial shall proceed and the charge shall be dealt with as if the plea made was "Not guilty".

NOTES

1. ***Sub-rule* (1).** If the accused pleads in some language not understood by the court, or inarticulately, he will not have pleaded intelligibly, and a plea of "Not Guilty" will be entered.

2. ***Sub-rule* (2).** (i) *See,* however, sub-rule (4).

(ii) This direction, is to prevent the accused pleading guilty under a misapprehension, *e.g.,* a man charged with wilfully injuring government property may, under a misapprehension, plead guilty because the property has been actually injured, though not wilfully; or a man charged with receiving property, knowing it to have been stolen may, under a misapprehension, plead "Guilty" because the property was in fact stolen, though, when he received it, he did not know it to have been stolen. So, again, on a charge for desertion, the plea "Guilty but I intended to return" amounts to a plea of "Not Guilty" as the intention not to return is generally

an essential element in the offence of desertion. In each case the president must explain to the accused that he must plead "Not Guilty".

(iii) A plea of "Guilty" is only to be taken to the extent to which it is pleaded. Thus, a man arraigned upon a charge of losing by neglect a number of articles, who pleads guilty in respect of some of those articles only, must be taken to have pleaded "Not Guilty" as regards the remaining articles. But if the courts are satisfied of the justice of the course and the consent of the convening officer is signified by the prosecutor, they may accept the qualified plea of guilty and record a special finding accordingly (See Rule 51 and Note).

(iv) If the accused pleads guilty, a statement that the requirements of Rule 42 have been complied with must be recorded.

(v) It must be recollected that there is nothing untrue in a person pleading not guilty, even though he committed the offence, as the plea merely amounts to a claim, which he is entitled to make, that the charge against him shall be formally proved. Indeed, where the accused, while admitting the offence, wishes to show that it was committed under circumstances of great provocation and does not deserve severe punishment he must plead not guilty if he wishes to prove the existence of such provocation out of the mouths of witnesses for the prosecution, who would not be called to give evidence if he pleaded guilty [*See,* however, Rule 44 (6) as to the power of the court].

(vi) Witnesses may, of course, be called for the defence on a plea of “Guilty” as witnesses to character and as to fact if the court are of the opinion that proof of some statement in mitigation is desirable. This might be the case if the provocation was not inconsistent with the plea of “Guilty” to the charge.

(vii) As to procedure where it appears at a later stage of the proceedings that the plea of guilty was pleaded under a misapprehension [*See* Rule 44 (4)].

3. ***Sub-rule*** **(3).** If the prosecutor adopts the procedure provided by this sub-rule the accused will not be entitled to a verdict on the alternative charges; as he will not have been arraigned upon them. The convening officer must take care that the most serious of two or more alternative charges is placed first in the charge-sheet. As to the procedure to be followed in other cases where there are alternative charges [*See* Rule 44 (1)].

4. ***Sub-rule* (4).** This is intended to ensure that a person charged with an offence for which the death penalty can be awarded shall not be convicted without a full trial.

5. As to the form of proceedings, *See* pages 465–466.

43. Plea in bar.– (1) The accused, at the time of his general plea of "Guilty" or "Not guilty" to a charge for an offence, may offer a plea in bar of trial on the ground that–

(i) he has been previously convicted or acquitted of the offence by a competent criminal court or by a court-martial, or has been dealt with summarily under Section 23 for the offence, or that a charge in respect of the offence has been dismissed as provided in sub-rule (2) of Rule 13; or

(ii) the offence has been pardoned or condoned by competent military authority; or

(iii) the time which has elapsed between the commission of offence and the beginning of the trial is more than three years, and the limit of time for trial is not extended under Section 91.

"Explanation–[Omitted].

(2) If he offers such plea in bar, the court shall record it as well as his general plea, and if they consider that any fact or facts stated by him are sufficient to support the plea in bar they shall receive any evidence offered, and hear any address made by or on behalf of the accused and the prosecutor in reference to the plea.

(3) If the court find that the plea in bar is proved they shall record their finding, and notify it to the confirming authority, and shall either adjourn, or if there is any other charge against the accused, whether in the same or a different charge-sheet, which is not affected by the plea in bar, may proceed to try the accused on that charge.

(4) If the finding that the plea in bar is proved is not confirmed, the court may be re-assembled by the confirming authority, and proceed as if the plea had been found not proved.

(5) If the court find that the plea in bar is not proved, they shall proceed with the trial, and the said finding shall be subject to confirmation like any other finding of the court.

NOTES

1. Sub-rule (1). (i) The Army Act provides that a man shall not be liable to trial for an offence of which he has been convicted or acquitted by a court-martial or by a criminal court, or for which he has been dealt with summarily (Army Act Section 90) or which was committed more than three years before the date of his trial, unless the offence was mutiny, desertion or fraudulent enrolment "or any of the offence mentioned in Section 31 or Section 40" [*Added vide Amdt. No.* 17/III/65]. Mutiny may be tried at any time, or desertion on active service. Desertion at other times, or fraudulent enrolment is not to be tried, if the offender has served for 3 years in an exemplary manner in any portion of Bangladesh Regular Forces, *see* Section 91 of the Act and Notes thereto. Continuous absence without leave constitutes evading arrest. The onus is on the prosecution to prove such absence.

The accused may also offer a plea in bar on the ground that a charge in respect of the offence has been dismissed as provided in Rule 13 (2), *i.e.,* that he has been acquitted, or the offence has been condoned, by his commanding officer.

(ii) [*Deleted vide Amdt. No.* 13/IV/67].

"I (iii) with the addition of explanation to Rule 43 (i) the main point to note is that unless the accused is informed in writing that he will not be proceeded against on the charge, the mere conduct of the competent military authority which may be in consistent with accused's subsequent trial will not amount to condonation of the offence. Displease, warning or censure etc., can condone an offence only if an accused is informed in writing that he will not be charged with that offence. If an accused is asked to pay to the loss occasioned by his negligence that will not by itself amount to condonation of the offence. If condonation is granted on certain conditions than it may be cancelled if those conditions are not fulfilled and accused may be proceeded against.

In other words, a plea in bar on grounds of condonation will succeed if the accused can prove that he was informed in writing that he will not be charged with the offence" [*Substituted vide Amdt. No.* 13/IV/67].

(iii) It has long been recognised that a military offence can be condoned. For the purpose of barring a trial condonation means such conduct on the part of a competent authority–*i.e*., an authority having power to determine that the charge should not be proceeded with–as is

inconsistent with subsequently trying the offender, and as would make it inequitable to do so; it must be a deliberate and intentional act, done in the authority's magisterial capacity and with full knowledge of all material facts. If, with full knowledge of the facts, competent authority removes an officer, or allows him to resign, he should not afterwards be tried by court-martial for his offence under Section 92 of the Act. Similarly the request that an officer should pay a sum towards some loss which has been occasioned by his negligence is a bar to his subsequent trial or summary disposal, but not to an order by the Government under Section 65 (I) (f) of the Act. The Fact that after trial, but before confirmation, the accused has been employed in active operations does not affect the legal validity of the sentence, but affords ground for pardon.

(iv) [*Deleted vide Amdt. No.* 13/IV/67].

2. ***Sub-Rule* (2).** See Note to Rule 41(1), The evidence will be taken on oath or affirmation.

3. ***Sub-role* (4).** If the finding is confirmed, it amounts to an acquittal, and is final. It will be noted that the finding of the court upon a plea in bar or trial whether in favour of, or against the plea, is subject to confirmation.

4. As to the form of proceedings, (*see* page 464).

44. Procedure after plea of "Guilty".– (1) Upon the record of the plea of "Guilty", if there are other charges in the same charge-sheet to which the plea is "Not Guilty", the trial shall first proceed with respect to those other charges, and, after the finding on those charges, shall proceed with the charges on which a plea of "Guilty" has been entered; but if they are alternative charges, the court may either proceed with respect to all the charges as if the accused had not pleaded "Guilty" to any charge, or may, instead of trying him, record a finding of "Guilty" upon any one of the alternative charges to which he has pleaded "Guilty" and a finding of "Not Guilty" upon all other alternative charges.

(2) After the record of the plea of "Guilty" on a charge (if the trial does not proceed on any other charges) the court shall receive any statement which the accused desires to make in reference to the charge, and shall read the summary or abstract of evidence, and annex it to the proceedings, or if there is no such summary or abstract shall take and record sufficient evidence to enable them to determine the sentence and the confirming officer to know all the circumstances connected with the offence. This evidence will be taken in like manner as is directed by these rules in the case of a plea of "Not Guilty".

(3) After the summary of abstract of evidence has been read, or the evidence has been taken, as directed by sub-rule (2), the accused may make a statement in mitigation of punishment, and may call witnesses for the purpose.

(4) If from the summary or abstract of evidence, or the statement of the accused, or otherwise, it appears to the court that the accused did not understand the effect of his plea of "Guilty", the court shall alter the record and enter a plea of "Not Guilty", and proceed with the trial accordingly.

(5) If a plea of "Guilty" is recorded, and the trial proceeds with respect to other charges in the same charge-sheet the proceedings under sub-rules (2) and (3) shall take place when the finding on the other charges in the same charge-sheet are recorded.

(6) When the accused states anything in mitigation of punishment, which in the opinion of the court requires to be proved, and would, if proved, affect the amount of punishment, the court may permit the accused to call witnesses to prove the same.

NOTES

1. ***Sub-rule* (1).** (i) An accused person cannot be found guilty upon more than one of two or more charges laid in the alternative, even if conviction upon one charge necessarily connotes guilt upon the alternative charge or charges.

(ii) Where two alternative charges are preferred and the accused pleads "Not Guilty" to the charge which alleges the more serious offence and "Guilty" to the other, the court should try him under this sub-rule as if he had pleaded "Not Guilty" to both charges. Having regard to Rule 42 (3) the most serious of two or more alternative charges should always be placed first in a charge-sheet.

2. ***Sub-rule* (2).** For procedure where the statement of the accused is inconsistent with his plea, *see* sub-rule (4) of this Rule and Note 4 below.

3. ***Sub-rule* (3).** The accused will always be asked, in the case of a plea of "Guilty", whether he desires to call witness to character.

4. ***Sub-rule* (4).** (i) This would include a statement in mitigation of punishment under sub-rule (3) as well as a statement with reference to the charge under sub-rule (2) of this Rule. For form to be followed, *see* pages 465 to 466.

(ii) The following examples are given of cases in which a plea of "Guilty" should be altered to a plea of "Not Guilty" under this sub-rule:–

(*a*) Sainik A, charged with desertion (not being desertion to avoid a particular service), states "I always meant to come back".

(*b*) Sainik B, charged with using criminal force to his superior officer, states "I only did it to defend myself after he had struck me".

(*c*) Sainik C, is charged with sleeping upon his post when a sentry and makes no statement with reference to the charge. On the reading of the summary of evidence, it is found that all the witnesses state that Sainik C was beyond the confines of his post when found asleep.

(*d*) Corporal E, is charged with disobeying a lawful command given by Corporal F, his superior officer, and makes no statement with reference to the charge. He calls a witness as to character who states incidentally that Corporal F is junior to the accused. In this case the action of the court in altering the plea of the accused would be founded upon the words "or otherwise" in this sub-rule.

The test to be applied in all such cases is not whether the court believe the statement, but whether, if the statement were true, it would be a valid defence to the charge. In doubtful cases, the plea of "Guilty" should be altered to a plea of "Not Guilty".

(iii) If the court failed to act under the provisions of this sub-rule, the confirming officer should refuse confirmation and can order a new trial. If he confirms, the finding will be set aside.

(iv) Where the accused alleges provocation for the offence, it may be desirable to record a plea of "Not Guilty" [*See* Note 2(v) to Rule 42].

(v) As to special finding on a qualified plea of "Guilty" see Rule 51 (8) and Note.

5. ***Sub-rule* (6).** Although, under this sub-rule, the permission of the court is required to enable the accused to call witnesses in extenuation of the offence, and consequent mitigation of punishment, such permission should always be given.

6. As to the form of proceedings, *see* pages 465 to 466.

45. Withdrawal of plea of "Not Guilty".– The accused may, if he thinks fit, at any time during the trial, withdraw his plea of "Not Guilty", and plead "Guilty", and in such case the court will at once, subject to a compliance with sub-rule (2) of Rule 42, record a plea of "Guilty", and shall, as far as is necessary, proceed in the manner directed by Rule 44.

NOTES

1. If the accused proposes to withdraw his plea of not guilty, the court must inform him of the general effect of his withdrawal, and of the difference in the procedure, in the same manner as if he pleaded guilty under Rule 42.

2. Once the accused has changed his plea it is improper for any one to ask him why he did so. An accused cannot under this rule alter his plea of "Guilty" to one of "Not Guilty".

46. Plea of "Not Guilty", application for adjournment and case for the prosecution.– After the plea of "Not Guilty" to any charge is recorded, the trial shall proceed as follows:–

(i) The court shall ask the accused whether he wishes to apply for an adjournment on the ground that any of these rules relating to procedure before trial have not been complied with, and that he has been prejudiced thereby, or on the ground that he has not had sufficient opportunity for preparing his defence, and shall record his answer.

If the accused makes any such application, the court shall hear any statement or evidence which he may desire to adduce in support thereof, and any statement of the prosecutor or evidence in answer thereto; and if it appears to the court that the accused has been prejudiced by any non-compliance with any such rule, or that he has not had sufficient opportunity for preparing his defence, they may grant such adjournment as may appear to them in the circumstances to be proper.

(ii) The prosecutor may, if he desires, and shall, if required by the court, make an opening address, and shall state therein the substance of the charge against the accused and the nature and general effect of the evidence which he proposes to adduce in support of it without entering into any unnecessary detail.

(iii) The evidence for the prosecution shall then be taken.

(iv) If it should be necessary for the prosecutor to give evidence for the prosecution on the facts of the case, he shall give it after the delivery of his address (if any), and he must be sworn or affirmed and give his evidence in detail.

(v) If the prosecutor gives evidence, he may be cross-examined by or on behalf of the accused and afterwards may make any statement which might be made by a witness on re-examination.

NOTES

1. *Sub-rule* (i). Rules relating to procedure, *e.g.,* rules relating to proceedings before commanding officer and the remanding for trial. The failure to remand accused for trial would justify an adjournment during which he should be so remanded but non-compliance with other rules relating to procedure would not provide a valid reason for adjournment, unless the accused has, in the opinion of the court, been prejudiced thereby, but if the court have any doubt in the matter, the proceedings should be adjourned.

2. *Sub-rule* (*ii*). As to the duties of the prosecutor, *see* Rule 64 and Notes and Memoranda. In cases of complexity the prosecutor should always make an opening address, so that the members of the court may be enabled to understand that general nature of the allegations. He must be careful to refrain from making any assertions which he does not propose to substantiate by evidence. The address of the prosecutor may be in writing; in such a case it should be read by him and handed to the court for attachment to the proceedings. If the address is made orally, *see* Rule 78 (4).

3. *Sub-rule* (*iii*). (a) For general provisions as to witnesses and evidence, *see* Rules 120 to 126. The evidence will be taken by question and answer, or the witness may be asked to tell his own story, questions being subsequently asked to make good any omissions [*see* Rule 78 (2)]. It is the duty of the prosecutor to conduct the examination of the witnesses for the prosecution and to *see* that all facts essential to constitute the offence are proved; e.g., on a charge laid under Army Act Section 46 (a) of making a false accusation against Sergeant A, it must be proved:–

1. that the accused made the accusation in question against Sergeant A;

2. that it was false;

3. that the accused made it knowing or having reason to believe it was false.

The prosecutor must be careful, in examining his witnesses, to avoid putting leading or suggestive questions.

(b) Documentary evidence will be read by the president or judge advocate; it will then be marked with a distinguishing letter or figure and attached to the proceedings. As a rule, it will be sufficient to attach copies of documents which must, however, be compared with the originals by the court and certified under the hand of the president to be true copies [*see* Note 2 to Rule 56].

(c) For the duty of the president, *see* Rule 63 and Notes.

(d) If the same person gives evidence in more than one case tried by the same court, he must be sworn (or affirmed) as a witness in each case, even if all such cases are tried on a same day.

4. *Sub-rule* (*iv*). (a) The prosecutor should never give evidence for the prosecution, unless it be evidence of a merely formal nature, or for the purpose of producing documents which are in his possession. In exceptional cases, however (*e.g.*, active service), no prosecutor may be available except an officer who is a material witness as to the facts for the prosecution. In such a case the prosecutor must give his evidence before any other witness for the prosecution, and must not, after delivering an address, be allowed to swear generally as to the truth of the statements contained in such address.

(b) When counsel appears on behalf of the prosecutor (iv) and (v) of this rule do not apply.

5. *Sub-rule* (*v*). As to the general principles to be observed in cross-examination and re-examination, see paras 96 to 110 of Chapter V of the Manual.

6. As to questions by the court, *see* Rules 125 and 126.

46A. Submission of no case to answer.– (1) At the close of the case for the prosecution the accused may submit to the court in respect of any charge that the *prosecution* has failed to establish a *prima facie* case against him, and that he should not be called upon to make his defence to that charge. If the accused makes such a submission, the prosecutor may address the court in answer thereto and the accused may reply to the prosecutor's address.

(2) The court shall not allow the submission unless they are satisfied that:–

(a) the prosecution has not established a *prima facie* case on the charge; and

(b) it is not open to the court, on the evidence adduced, to make a special finding either under Section 111 or sub-rule (4) of Rule 51.

(3) If the court allow the submission they shall find the accused not guilty of the charge to which it relates; if the court disallow the submission they shall proceed with the trial of the offence as charged.

NOTES

1. At the close of the case for the prosecution the defence may submit that the evidence so far adduced does not disclose *prima facie* case against the accused and he should not, therefore, be called upon for his defence. This submission must be to the effect that there is no evidence at all on the point or points and not that the evidence is untrustworthy. The prosecutor may answer the submission and the defence may reply. If a Judge Advocate is present, he may, if he thinks it necessary, sum up, on the submission. The court will then close to consider the submission the Judge Advocate if any, being present.

2. A brief record of the substance of the submission the answer and reply or, of the fact that the right to make the last two or either of them was declined, should always be made.

3. If the court finds in favour of submission it will acquit he accused of charge, and if there are no other charge the proceeding, will be signed and dated and forwarded as instructed in Rule 80; but submission will not be allowed if the court could on the evidence adduced bring in a special finding. If the court does not find in favour of the submission it will over-rule the submission and proceed with the trial [*Added as a rule vide Amdt. No.* 13/IV/67]

47. Close of case for prosecution and procedure for defence where accused does not call witnesses.– (1) At the close of the case for the prosecution, the accused shall be asked if he intends to call any witnesses to the facts of the case.

(2) If the accused states that he does not intend to call any witnesses to the facts of the case, the procedure shall be as follows:–

(i) If he is not represented by counsel or by an officer subject to the Act:–

(a) The accused may, if he wishes, call witnesses as to his character;

(b) The prosecutor may make a final address for the purpose of summing-up the evidence for prosecution;

(c) The accused may then make an address in his defence either orally or in writing giving his account of the subject of the charges against him.

(ii) If he is represented by counsel or by an officer subject to the Act:–

(a) The accused may make a statement giving his account of the charge against him, either orally or in writing but the accused shall not be sworn or affirmed and no question may be put to him by the court or by any other person;

(b) The accused may, if he wishes, call witnesses as to his character;

(c) The prosecutor may then make a final address;

(d) Counsel or the defending officer, as the case may be, may then make a closing address.

NOTES

1. *Sub-rule* (1). (i) *See* Rule 46A as to submission of no case by the defence [*Substituted vide Amdt. No.* 4/IV/67]. This submission must be to the affect that there is no evidence at all on the point or points, and not that the evidence is untrustworthy. A brief record of the substance of the submission, the answer and the reply, or of the fact that the right to make the last two or either then was declined, should always be made [*Added vide Amdt. No.* 4/IV/67]. The court will consider his submission in closed court and, if they are satisfied that it is well founded, must acquit the accused. The submission may be made in respect of any one or more charges in charge-sheet (*see* also Note to Rule 74).

(ii) This question as to the calling of witnesses will be put by the judge advocate or, if there is none, by the president.

2. ***Sub-rule*** **(2).** (i) As will be noted from the succeeding sub-rules of this rule and Rule 48 the whole course of procedure in connection with the case for the defence will depend upon the answer of the accused to this question.

(ii) Witnesses to extenuating circumstances are witnesses to the facts of the case.

(iii) The fact that the accused has stated that he does not intend to call any witnesses to the facts of the case does not prevent him from doing so before the evidence for the defence is completed if, for example, unexpected witnesses become available.

As to re-calling of witnesses and the calling of witnesses in reply, *see* Rule 126.

(iv) It is the duty of counsel for the defence or defending officer (if any) to conduct the examination of the witnesses for the defence.

As to counsel and defending officer, *see* Rules 81 to 87.

(v) The utmost liberty consistent with the interests of parties not before the court and with the dignity of the court itself should be allowed to the accused in making his defence [*see* Rule 64 (3)] and the court should, if necessary, adjourn to allow him time for its preparation.

(vi) The accused has the privilege of making statements in his address which are unsupported by evidence. Any statement of the facts, though not on oath, upon which the accused relies for his defence, must be taken into consideration by the court, who may draw their inferences from it [*see* Note 1 (3) to Rule 50]. If made orally, it should be taken down verbatim, so far as it states facts which are within the personal knowledge of the accused and upon which he relies for his defence. If made in writing, it shall be read and attached to the proceedings. The accused cannot be questioned by the court or any other person upon his statement or address except when it is desired to supplement the defence or to bring out more clearly the points which the accused urges in his favour.

(vii) Counsel for the defence may not state as a fact any matter which has not been proved in evidence [Note to Rule (86)], and the same restriction is placed upon a defending officer [Rule 81 (3)].

(viii) The prosecutor's address may be in writing, and in such a case it should be read by the prosecutor and handed to the court for attachment to the proceedings. If the address is made orally, *see* Rule 78 (4).

In summing-up the evidence, the prosecutor must confine his remarks to the evidence given by the witnesses for the prosecution and defence; he must not strain or overstate that view of the facts which it is his duty to present to the court; he must not state any new fact which has not been in evidence. Any deviation in these respects on the part of the prosecutor, or any want of moderation, may lead to the setting aside of the proceedings, if it appears that injustice has been done thereby to the accused. It is the duty of the court, as far as possible, to prevent the prosecutor from transgressing in any of these respects.

(ix) For procedure when two or more persons are tried together, *see* Rule 65.

3. As to the form of proceedings, *see* pages 468 to 470.

48. Procedure where accused calls witnesses.– If the accused states that he intends to call witnesses to the facts of the case, the procedure shall be as follows:–

(i) If he is not represented by counsel or by an officer subject to the Act:–

(a) The accused may make an opening address, either orally or in writing, giving his account of the subject or the charge against him;

(b) The accused shall then call witnesses including, if he wishes, any witnesses as to character;

(c) After the evidence of all the witnesses has been taken, the accused may make a closing address;

(d) The prosecutor may reply.

(ii) If he is represented by counsel or by an officer subject to the Act:–

(a) The accused may make a statement, either orally or in writing giving account of the subject of the charge against him; but the accused shall not be sworn or affirmed and no question may be put to him by the court or by any other person. If the accused makes no such statement, counsel or the defending officer, as the case may be, may make an opening address;

(b) The accused shall then call his witnesses, including, if he wishes, any witness as to character;

(c) After the evidence of all the witnesses has been taken, counsel or the defending officer, as the case may be, may make a closing address;

(d) The prosecutor may reply.

NOTES

1. The notes to the preceding rule should be referred to generally.

Counsel (Note to Rule 86) and defending officer [Rule 81 (3)] are not permitted in an opening address, to state as facts matters which they do not intend to prove in evidence.

2. As to the form of proceedings, *see* pages 468 to 470.

49. Summing up by judge advocate.– (1) The judge advocate (if any) shall, in open court, sum up the evidence and advise the court upon the law relating to the case.

(2) After the summing-up by the judge advocate, no other address shall be allowed.

NOTES

1. *Sub-rule* (1). (i) The judge advocate has a right to sum up when he considers it necessary or desirable. Generally speaking, a summing-up is unnecessary in simple cases; but even where the facts are simple, a legal direction is often necessary [*See* Rule 89 (5)]. The judge advocate should always sum up in cases involving fraud or indecency or where civil offences are charged, and he must be careful, where necessary, to advise the court upon the law relating to confessions, to corroboration and to the evidence of accomplices.

(ii) In summing-up the evidence, the judge advocate must be careful not to indicate to the court any opinion which he may have formed as to the facts. Under Rule 127 the summing-up may be given orally, but in practice it should, invariably, be in writing.

If a summing-up is considered unnecessary, a record to that effect must be made in the proceedings.

(iii) For the powers and duties of a judge advocate (See Rule 89).

2. As to the form or proceedings, *see* pages 471 and 472.

Finding and Sentence

50. Consideration of finding.– (1) The court shall deliberate on their finding on the charge in closed court.

(2) If in the course of their deliberation on their finding, the court require the advice of the judge advocate, the deliberation shall be suspended and his advice shall be asked and given in open court and in the presence of the accused.

(3) The opinion of every member of the court as to the finding shall be given by word of mouth on each charge separately.

NOTES

1. *Sub-rule* (1). (i) *See* Rule 67. The judge advocate does not remain with the court when they consider their finding, but does remain with the court on all other occasions when they sit in closed court.

The president should initiate the deliberations of the court by a statement of the questions to be considered and the order in which they should be considered. If for example the charge is laid under Army Act Section 33 (1), he will ask them to discuss the bearing of the evidence upon the following questions:–

(a) was a command given?

(b) was it a lawful command?

(c) was it given by the superior officer of the accused?

(d) was it disobeyed by the accused?

(e) did the accused know that the person giving the order was his superior officer?

Similarly where the charge is laid under Army Act Section 55, the question to be considered should be: (a) have the facts alleged in the particulars of the charge been proved in evidence? If they have, (b) do such facts amount to an act, conduct, disorder or neglect prejudicial to good order and military discipline ?

(ii) If the court is doubtful whether the actual offence charged is proved or whether the particulars of the charge have been satisfactorily established in evidence, they must consider their powers of making a special finding, either under Army Act Section 111 or under Rule 51 (4).

(iii) The members of court-martial must remember (1) that it is a fundamental maxim of law that an accused person is presumed to be innocent until he has been proved to be guilty, and (2) that their finding must be based upon the evidence given before them.

It should be remembered, too, that the accused cannot give evidence on oath, and, therefore, any statement made by him must be carefully considered. Though not given on oath and subject to the test of cross-examination, it will often be of value particularly if it is in any respect corroborated by evidence from other sources.

(iv) At any time before the finding has been arrived at, the court may be re-opened to enable a witness to be called or re-called and examined by them through the president or judge advocate [*See* Rule 126 (4)].

(v) As to form and record of finding *see* Rule 51 and Notes.

2. ***Sub-rule* (2).** The advice of the judge advocate should be asked and given in open court. After such advice has been given, the court will deliberate on their finding in closed court.

3. ***Sub-rule* (3).** The opinions of members must be given orally, as to taking opinions, *see* Rule 73 and Notes.

51. Form and record of finding.– (1) The finding on every charge upon which the accused is arraigned shall be recorded and, except as hereinafter provided, shall be recorded simply as a finding of "Guilty" or of "Not Guilty" or of "Not Guilty and honourable acquit him of the same".

(2) Where the court are of opinion as regards any charge that the facts proved do not disclose the offence charged or any offence of which he might under the Act legally be found guilty on the charge as laid, the court shall acquit the accused of that charge.

(3) If the court doubt as regards any charge whether the facts proved show the accused to be guilty or not of the offence charged or of any offence of which he might under the Act legally be found guilty on the charge as laid, they may, before recording a finding on the charge, refer to the confirming authority for an opinion, setting out the facts which they find

to be proved, and may, if necessary, adjourn for that purpose. Upon receiving the opinion of the confirming officer the court shall reassemble in closed court to record their finding and shall not receive any further evidence.

(4) Where the court are of opinion as regards any charge that the facts which they find to be proved in evidence differ materially from the facts alleged in the statement of particulars in the charge, but are nevertheless sufficient to prove the offence stated in the charge, and that the difference is not so material as to have prejudiced the accused in his defence, they may instead of a finding of “Not Guilty”, record a special finding.

(5) The special finding may find the accused guilty on a charge, subject to the statement of exceptions or variations specified therein.

(6) Where there are alternative charges, and the facts proved appear to the court not to constitute the offence mentioned in any of those alternative charges, the court shall record a finding of “Not Guilty” on that charge.

(7) If the court think that the facts proved constitute one of the offences stated in two or more of the alternative charges, but doubt which of those two offences the facts do at law constitute, they may, before recording a finding, on those charges, refer to the confirming authority for an opinion, setting out the facts which they find to be proved and stating that they doubt whether those facts constitute in law the offence stated in such one or other of the charges and may, if necessary, adjourn for that purpose. Upon receiving the opinion of the confirming officer the court shall reassemble in closed court to record their finding and shall not receive any further evidence.

(8) In any case where the court are empowered under Section 111 to find the accused guilty of an offence other than that charged, or guilty of committing an offence in circumstances involving a less degree of punishment, or where they could, after hearing the evidence, have made a special finding of guilty subject to exceptions or variations in accordance with sub-rules (4) and (5), they may, if they are satisfied with the justice of such course, and if the concurrence of the convening officer is signified by the prosecutor, accept and record a plea of guilty of such other offence, or of the offence as having been committed in circumstances involving such less degree of punishment, or of the offence charged subject to such exceptions or variations;

Provided that the failure to obtain such concurrence of the convening officer as aforesaid shall not invalidate the proceedings when confirmed notwithstanding such failure.

NOTES

1. ***Sub-rule* (1).** (i) This includes alternative charges, except in the cases which come within Rule 42 (3).

(ii) In the case of an acquittal on every charge, the president must date and sign the proceedings. The judge advocate (if any) must also sign; *see* Rule 52.

A finding of "honourable acquittal", which may be recorded in the case of warrant officers, non-commissioned officer and soldiers as well as officers and junior commissioned officers, is incorrect unless the charge affects the honour of the person charged, and is generally inappropriate unless the conduct of the accused throughout the transactions investigated by the court has been irreproachable.

2. ***Sub-rule* (2).** (i) If, for example, a person is charged with dishonestly receiving property, knowing it to be stolen, and the facts show that, although the property was in fact stolen, the accused was unaware that it was stolen property, the court must acquit, as the accused would not have committed the offence charged.

(ii) For special findings in respect of the statement of offence, *see* Army Act Section 111.

3. ***Sub-rule* (3).** (i) Before referring to the confirming authority under this sub-rule, the court must have arrived at a decision as to the facts which they find to be proved, and the opinion of the confirming authority will be sought as to whether, upon the facts so found to be proved, the accused can legally be found guilty. The court cannot refer to the confirming authority for any opinion as to the facts, as to which they are the sole judges. The reason for the reference should be recorded (*see* Variation).

(ii) The opinion of the confirming officer should be read upon reassembly of the court and attached to the proceedings.

4. ***Sub-rule* (4).** (i) The special finding here referred to relates only to the particulars of the charge, and not to the statement of the offence, as to which *see* Army Act Section 111 and Notes. Before recording a special

finding under this sub-rule the court must be satisfied that the facts which they find to be proved, subject to certain exceptions and variations, amount to the substance of the charge; otherwise they must acquit; *e.g.,* on a charge against a soldier of losing by neglect a great-coat and a waist-belt, the court may properly find the accused "Guilty of the charge except that he did not lose a waist-belt", but they could not legally find him "guilty" of the charge except that he made away with and did not lose the articles in question.

(ii) An immaterial variation of the date may be made by special finding, but in cases of desertion or absence without leave the substitution of date which would have the effect of lengthening the period of absence alleged in the charge would not be permissible.

(iii) On a charge of using criminal force to his superior officer–Sergeant A–by striking him with his fist in the face, the court could properly except the words "in the face", but they could not make a special finding substituting Sergeant B for Sergeant A.

(iv) On a charge of dishonestly misappropriating Taka 100 a special finding that the sum misappropriated was Taka 50 would be permissible; but a special finding omitting from the particulars the word "dishonestly" would tantamount to an acquittal.

5. ***Sub-rule* (7).** For general procedure, *see* Note 3 above, (page–473) and Variation. When the court have decided to convict on one of two or more alternative charges, they will record a finding of "Not Guilty" upon the other alternative charge or charges [*see* sub-rule (1) and Note of this rule].

6. ***Sub-rule* (8).** This sub-rule enables a court, if they are satisfied of the justice of the course and if the consent of the convening officer is signified by the prosecutor, to accept a qualified plea of guilty and to record a special finding. For example, if an accused charged with desertion pleads guilty of absence without leave, or if an accused charged with losing by neglect a number of articles pleads guilty in respect of some of those articles only, the court may accept such qualified plea and record a special finding accordingly.

7. As to the form of proceedings, *see* pages 472 and 473.

52. Procedure on acquittal.– If the finding on all the charges is "Not Guilty", the president shall date and sign the finding and such signature shall authenticate the whole of the proceedings, and the

proceedings upon being signed by the judge advocate, if any, shall be at once transmitted for confirmation.

NOTES

1. A finding of acquittal by a General or a Field General or a District Court Martial requires confirmation in the same manner as any other finding by such a court and is not valid until so confirmed.

2. As to the form of proceedings, *see* page 472.

53. Procedure on conviction.– (1) If the finding on any charge is "Guilty", then, for the guidance of the court in determining their sentence, and of the confirming authority in considering the sentence, the court, before deliberating on their sentence, shall, whenever possible, take evidence of, and record the general character, age, service, rank, and any recognised acts of gallantry or distinguished conduct of the accused, any previous convictions of the accused either by a court-martial or a criminal court, any previous punishments awarded to him by an officer exercising authority under Section 23, the length of time he has been in arrest or in confinement on any previous sentence, and any military decoration, or military reward, of which he may be in possession or to which he is entitled.

(2) Evidence on the above matters may be given by a witness verifying a statement which contains a summary of the entries in the regimental books respecting the accused and identifying the accused as the person referred to in that summary.

(3) The accused may cross-examine any such witness, and may call witnesses to rebut such evidence. If the accused so requests, the regimental books, or a duly certified copy of the material entries therein shall be produced; and if the accused alleges that the summary is in any respect not in accordance with regimental books, or such certified copy as the case may be, the court shall compare the summary with those books or that copy and if they find it is not in accordance therewith, shall cause the summary to be corrected.

(4) When all the evidence on the above matters has been given, the accused may address the court thereon and in mitigation of punishment.

NOTES

1. *Sub-rule* (1). (i) The court will always take evidence as to character, unless the circumstances render it impracticable to do so, in

which case they will record upon the proceedings the reasons for such impracticability.

(ii) Evidence upon the matters referred to in this sub-rule should not be given by a member of the court.

(iii) The court cannot take oral evidence that the accused is of bad character. This should be proved in the manner shown in sub-rule (2) of this rule but oral evidence of good character is always permissible; if the accused calls witnesses as to his good character, they may be cross-examined by the prosecutor with a view to testing their veracity and thereby indirectly bringing out evidence of bad character. Witnesses as to character can also be called during the hearing of the case for the defence and before the finding.

(iv) The court will also consider the length of time during which the accused has been in confinement awaiting trial upon the present charge or charges.

(v) If by reason of the nature of the service of the accused, the finding of the court renders him liable to any exceptional punishment in addition to that to be awarded by the sentence of the court, the prosecutor should call the attention of the court to the fact, and the court should inquire into the nature and amount of such additional punishment.

(vi) "Military reward" includes any gratuity or annuity for long service or good conduct, good service pay or pension, and any other military pecuniary award.

2. ***Sub-rule* (2).** Previous convictions of the accused will be proved by the production of a verbatim extract from the service book (BAFD–905) duly completed by the officer-in-charge of these books [*see* Note 3 below and Army Act Section 116 (3) and (4)]. As to service books, the term includes departmental books of the same nature as those maintained by corps, *e.g.,* a sheet-roll or a court-martial book, but does not include departmental business books. If the accused challenges the correctness of the service books, *see* sub-rule (3) of this rule. If there is any reason to doubt the correctness of the entry, in the service books, of a civil conviction, such conviction may be proved an extract certified by the person having the custody of the records of the court in which the accused was convicted.

The witness producing the extract from the service books and the statement as to age, service, rank, etc., of the accused should be the

adjutant or some other officer, and there is no objection to the prosecutor giving such evidence (*see* Note 3 to Rule 46). He must be sworn as any other witness and may be cross-examined by the accused and questioned by the court.

3. ***Sub-rule*** **(3).** The copy of the material entries in the service book must be certified by the officer having the custody of the original book [Army Act Section 116 (4)]. Custody includes temporary custody for the purpose of the trial.

4. As to the form of proceedings, *see* pages 474 and 475.

54. Sentence.– The court shall award one sentence in respect of all the offences of which the accused is found guilty, and such sentence shall be deemed to be awarded in respect of the offence in each charge in respect of which it can be legally given, and not to be awarded in respect of any offence in a charge in respect of which it cannot be legally given.

NOTES

1. This rule applies where the charges on which the offender has been tried are contained in one or several charge-sheets.

2. As to postponement of sentence where several persons are tried separately for offences arising out of the same transaction, *see* Rule 75 (4).

3. The sentence must be a sentence authorised by the Bangladesh Army Act, *e.g.,* a court-martial cannot award a sentence of confinement to lines, or sentence an offender to restore stolen property. But a court-martial may, under Army Act Section 175, make a separate order for the disposal of property. Such an order should be recorded below the signature of the president to the sentence and should be separately dated and signed by the president.

4. For procedure in voting upon the sentence, *see* Rule 73 and Note.

5. The object of the latter portion of this rule is to prevent legal objection to the validity of the sentence. If, for example, an offender has been found guilty by a general court-martial on a charge of desertion on active service, and also upon a charge of theft of Government property, a sentence of transportation in respect of the first charge will be valid, although a sentence of rigorous imprisonment for five years is the maximum sentence which could have been awarded upon the second charge.

6. Sentences, unless for one or more years exactly, should, if for one month or upwards, be recorded in months. Sentences consisting partly of months and partly of days should be recorded in months and days. A month means a calendar month.

7. As to the form of proceedings, *see* pages 475 to 477.

55. Recommendation to mercy.– (1) If the court make a recommendation to mercy, they shall give their reasons for their recommendation.

(2) The number of opinions by which a recommendation to mercy mentioned in this rule, or any question relative thereto, is adopted or rejected, may be entered in the proceedings.

NOTES

1. A recommendation to mercy will be appended to the sentence; it forms part of the proceedings of the court.

2. In view of the discretion of the court in the matter of awarding sentence, a recommendation to mercy will be exceptional. It will usually be made only when the court, though unwilling to pass a lenient sentence lest the offence should be considered a venial one, think that, owing to the offender's character or other exceptional circumstances, he should not suffer the full penalty which the offence would ordinarily demand. As a rule the court will be able to adjust the sentence according to what, in their judgment, the offender should suffer having regard to the attendant circumstances. It is indisputable that offences are more effectual by prevented by certainty than by severity of punishment.

3. As a recommendation to mercy is part of the proceedings, any expression of opinion in it in relation to the finding must be read with, and as part of, the finding. Accordingly, where in a recommendation to mercy a court expresses an opinion inconsistent with the guilt of the person under sentence, *e.g.,* where the charge is for striking a superior, and the court state their opinion that the accused "did not intend to strike", it must be treated as an acquittal, the intent being an element of the offence.

4. *Sub-rule* (2).– A recommendation to mercy is a matter which the court has to decide under Rule 73 (1).

5. As to the form of proceedings, *see* page 477.

56. Signing and transmission of proceedings.– Upon the court awarding the sentence, the president shall date and sign the sentence and such signature shall authenticate the whole of the proceedings, and the proceedings upon being signed by the judge advocate, if any, shall be at once transmitted for confirmation.

NOTES

1. It is essential that the date of the sentence should be inserted as under Army Act Section 135, a term of transportation or imprisonment is reckoned to commence on the day on which the sentence and proceedings were signed by the president.

When, however, a president, after recording the finding and sentence omits to either sign or date the proceedings, he can, even after confirmation, sign them and date his signature as of the true date of the decision.

The proceedings must not be signed by the members of the court other than the president.

2. The signature authenticates the whole of the proceedings, including the documentary evidence produced at the trial.

When an original document is produced in evidence, it will rarely be necessary to annex it to the proceedings. A certified copy should be produced to the court, together with the original, the former being attached to the proceedings, and the latter returned to its proper custodian. Documents, the actual appearance of which is material to the case (*e.g.,* alleged forgeries), shall always be attached in original.

Confirmation and Revision

57. Revision.– (1) Where the finding or sentence is sent back for revision under Section 126, the court shall re-assemble in closed court, but if the court is directed to take fresh evidence on revision such evidence shall be taken in open court and in the presence of the accused.

(2) When the court are reconsidering their finding, the judge-advocate, if any, shall not be present.

(3) Where the finding is sent back for revision and the court do not adhere to their former finding, they shall revoke the finding and sentence, and record a new finding, and if such new finding involves a sentence, pass sentence afresh.

(4) Where the sentence alone is sent back for revision, the court shall not revise the finding.

(5) After revision, the president shall date and sign the decision of the court, and the proceedings, upon being signed by the judge-advocate, if any, shall be at once transmitted for confirmation.

(6) Upon receiving the proceedings of a general or district court-martial, whether original or revised, the confirming authority may confirm or refuse confirmation, or reserve confirmation for superior authority, and the confirmation, non-confirmation, or reservation shall be entered in and form part of the proceedings.

NOTES

1. *Sub-rule* (1).– (i) A court cannot be re-assembled more than once for revision, whether of finding of sentence.

(ii) The object of revision will generally be to cure defects in the finding or sentence, or both. The confirming officer, however, by partial confirmation or by exercising his powers under Rule 59 (1) or 60 can often correct mistakes made by the court, and thus obviate the inconvenience of re-assembling the court for revision.

If the sentence originally awarded by the court is wholly illegal, *e.g.,* a sentence of transportation awarded to a soldier by a district court-martial, or a sentence of reduction to the ranks awarded to a warrant officer, or a sentence of confinement to lines awarded to a soldier, it is null (*See* Note to Rule 60) and the court, on revision, may award any legal sentence; in such a case the confirming officer cannot pass a valid sentence; but *see* Army Act Section 129.

Where a special finding should have been recorded under Army Act Section 111 or Rule 51, the finding should be sent back for revision. A confirming officer cannot substitute a special finding on any charge for the court's finding.

(iii) If a court bring in a finding of "Not Guilty" against the weight of evidence, the court may be re-assembled and the confirming officer may give his views of the evidence, directing the attention of the court to any special points which they appear to have failed to appreciate.

A finding of insanity may also be sent back for revision.

(iv) A confirming officer cannot send back part of a finding or sentence if he thinks that a part only requires revision, he must return the whole, pointing out the part which in his opinion, requires revision.

(v) The court should be re-assembled as soon as practicable. If the court upon re-assembly is reduced, by death or otherwise below the legal minimum [*See* Army Act Section 126 (3)], it cannot proceed with the revision, and the proceedings must be returned to the confirming authority. In such a case, as no revision has taken place, the original finding and sentence will stand and will be dealt with by the confirming authority.

(vi) Under Army Act Section 135, the term of transportation or imprisonment commences on the date of the original sentence.

2. ***Sub-rule* (2).**– Although the judge-advocate must not be present when the court are reconsidering their finding, he must be present when they reconsider the sentence.

3. ***Sub-rule* (3).**– (i) Where the finding is sent back for revision and the court adhere to the finding, they can nevertheless revise the sentence.

(ii) If the revised finding is an acquittal or a finding of insanity, no sentence is involved. If a court, on revision, revoke their original finding on any charge, the original sentence automatically falls to the ground and if a revised finding entails a sentence, the court must pass sentence afresh; if the court omit to do so, the accused is not legally under any sentence and the confirming officer may return the proceedings with directions to the court to complete the revision and pass sentence. This will not be a second revision, which is prohibited by Army Act Section 126 (I).

(iii) If the original finding was acquittal and the revised finding is "Guilty", the court will (whether ordered to take fresh evidence or not) proceed as directed by Rule 53. The evidence referred to in sub-rule (1) of this rule is evidence of the facts relating to the charge, and must not be taken on revision unless specifically ordered [Army Act Section 126(1)].

4. ***Sub-rule* (5).**– *See* also Army Act Sections 119 to 125 and Rules 59 to 61. As to confirmation of field general court-martial, s*ee,* Army Act Section 123 and Rule 146.

The minute of reservation of confirmation should be entered in the proceedings.

5. As to the form of proceedings, *see* pages 478 and 479.

58. Promulgation.– The charge, finding, and sentence, and any re-commendation to mercy shall, together with the confirmation or non-confirmation of the proceedings be promulgated in such manner as the confirming authority may direct, and if no direction is given, according to the custom of the service. Until promulgation has been effected, confirmation is not complete and the finding and sentence shall not be held to have been confirmed until they have been promulgated.

NOTES

1. For the date from which a sentence of dismissal takes effect (*See* Rule 155)

2. In the absence of any direction by the confirming authority, the usual custom of the service will be followed, but a written notice to the offender of the charge, etc., will be sufficient promulgation under this rule.

3. As to committal to a civil prison or to military custody of persons sentenced to transportation or imprisonment, *see* Army Act Sections 136 and 139; as to action in exceptional cases, *see* Army Act Section 137.

For forms of committal warrant, *see* page 479.

As to the suspension of sentences of transportation or imprisonment, *see* Army Act Section 144.

4. As to the form of proceedings, *see* page 479.

59. Mitigation of sentence on partial confirmation.– (1) Where a sentence has been awarded by a court-martial in respect of offences on several charges, and the confirming authority confirms the finding on some but not on all charges, that authority shall take into consideration the fact of such non-confirmation, and shall, if it seems just, mitigate, remit, or commute the punishment awarded according as seems just, having regard to the offences in respect of the charges the findings on which are confirmed.

(2) Where a sentence has been awarded by a court-martial in respect of offences on several charges and has been confirmed, and any one of such charges or the finding thereon is found to be invalid, the authority having power to mitigate, remit, or commute the punishment awarded by the sentence shall take into consideration the fact of such invalidity, and, if it seems just, mitigate, remit or commute the punishment awarded according as seems just, having regard to the offences in the

charges which with the findings thereon are not invalid, and the punishment as so modified shall be as valid as if it had been originally awarded only in respect of those offences.

NOTES

1. *Sub-rule* (1).– (i) As to the meaning of mitigation, remission and commutation, *see* Note to Army Act Section 124.

(ii) Where a soldier has been convicted of (1) desertion on active service and (2) theft under Army Act Section 40 (a) and has been sentenced to transportation, and the confirming officer confirms the finding on the second charge but not that on the first charge, which alone justified the sentence of transportation, he is bound under this rule to commute the sentence to imprisonment for a term not exceeding five years, the maximum sentence under Section 40 (a). If, however, the confirming officer confirms the finding on the first charge but not that on the second, he may mitigate or commute it to some less punishment if he considers that a sentence of transportation, on the charge of desertion alone is, in the circumstances too severe.

2. *Sub-rule* (2).– (i) This sub-rule gives to the authority prescribed under Army Act Section 143 similar powers to do after confirmation that which under sub-rule (1) of this rule the confirming officer may do before confirmation. But it will be noted that the prescribed authority is only required to act under this sub-rule where any one of the charges or the finding thereon, is found to be invalid and has been set aside. The prescribed authority derives the ordinary powers of mitigation, etc., from Army Act Section 143.

(ii) As to substitution of a valid for an invalid sentence, *see* Army Act Section 129 (2).

60. Confirmation notwithstanding informality in, or excess of, punishment.– If the sentence of a court-martial is improperly expressed, the confirming authority may, in confirming the sentence, vary the form so that it shall be properly expressed; and if the punishment awarded by the sentence is in excess of the punishment authorised by law, the confirming authority may vary the sentence so that the punishment shall not be in excess of the punishment authorised by law; and the confirming authority may confirm the finding and the sentence, as so varied, of the court-martial.

NOTES

1. The object of this rule is to prevent the proceedings of court-martial being rendered invalid when they cannot be sent back for revision without great inconvenience to the public service. It will not exonerate from blame the president and members of courts-martial who award sentences which are informal or in excess of their powers. If a confirming officer decides to act under this rule instead of ordering a revision of sentence, he must call the attention of the members of the court to the informality or irregularity of the sentence.

2. The confirming authority cannot under this rule vary a sentence which is illegal in its character and, therefore, null, e.g., a sentence of imprisonment awarded by a district court-martial to a warrant officer, or a sentence of transportation awarded to a soldier by district court-martial, or a sentence of reduction to the ranks awarded to a warrant officer, or a sentence of confinement to lines awarded to a soldier. In such cases the court must be re-assembled for the purpose of passing a valid sentence.

3. As to the form of proceedings, *see* pages 478 to 479.

61. Member or prosecutor not to confirm proceedings.– A member of a court-martial, or an officer who has acted as prosecutor at a court-martial shall not confirm the finding or sentence of that court-martial, and where such member or prosecutor becomes confirming officer, he shall refer the finding and sentence of the court-martial to a superior authority competent to confirm the findings and sentences of a like description of court-martial.

NOTE

If proceedings of court-martial are confirmed in error by an officer not having power to confirm, his act and the subsequent promulgation are null, and it is open to the proper authority to confirm.

General Provisions as to Proceedings of General and District Court-Martial

62. Seating of members.– The members of a court-martial shall take their seats according to their army rank:

Provided that the officer appointed by the convening authority as president of a court-martial shall, regardless of his rank, take precedence of other members and shall sit in the centre.

NOTES

1. The failure of members to take their seats in accordance with this rule would not vitiate the trial.

2. In preparing convening orders care should be taken to place the names of members of the same rank appointed to form the court or to be waiting members in their correct order of seniority having regard to Rule 73.

63. Responsibility of President.– (1) The president shall be responsible for the proper conduct of the trial in proper order, and in accordance with the Act, and shall take care that the trial is conducted in a manner befitting a court of justice.

(2) It shall be the duty of the president to see that justice is administered, that the accused has a fair trial, and that he does not suffer any disadvantage in consequence of his position as a person under trial or of his ignorance, or of his incapacity to examine or cross-examine witnesses or otherwise.

NOTES

1. *Sub-rule* (1).– (i) The court should always have at its disposal the Army Act and Rules, Regulations for the Army and any other official books or orders which are necessary for the purpose of its proceedings.

(ii) The president should be careful to safeguard the dignity of the court and the solemnity of its proceedings.

If any person, other than the accused, interrupts the proceeding, he should ordinarily be excluded from the court. The court have, however, further powers under Rule 133 for dealing with persons who interrupt their proceedings.

The trial of a person cannot proceed in his absence, even though he interrupts the proceedings.

2. *Sub-rule* (2).– If the accused is not represented by counsel or defending officer, the president should assist him in putting forward his defence, and take care that he is not prejudiced by his inability to put proper questions to the witnesses or bring out clearly the points on which he relies. If there is a judge-advocate he has a similar duty [Rule 89 (7)]; but the presence of a judge-advocate does not relieve the president of his

responsibility under this rule. If a witness gives evidence different from that given by him when the summary of evidence was taken, he should be questioned as to the difference.

The president should always put to the witnesses any questions which appear to him necessary or desirable for the purpose of eliciting the truth (*See* Rule 126 and Notes).

64. Power of court over address of prosecutor and accused.– (1) It shall be the duty of the prosecutor to assist the court in the administration of justice, to behave impartially, to bring the whole of the transaction before the court, and not to take any unfair advantage of, or to suppress any evidence in favour of the accused.

(2) The prosecutor shall not refer to any matter not relevant to the charge or charges then before the court, and it shall be the duty of the court to prevent him from so doing and also to restrain any undue violence of language or want of fairness or moderation on the part of the prosecutor.

(3) The court shall allow all reasonable latitude to the accused in making his defence; he must abstain from any remarks contemptuous or disrespectful towards the court, and from coarse or insulting language towards others, but he may for the purposes of his defence impeach the evidence and motives of the witnesses and prosecutor and charge other persons with blame and even criminality, subject, if he does so, to any liability which he may thereby incur. The court may caution the accused as to the irrelevance of his defence, but shall not except when the conduct of the accused and the interests of justice make it necessary, stop his defence solely on ground of persistence in such irrelevance.

NOTES

1. *Sub-rule* (1).– (i) As to the duties of the prosecutor, *See* Memoranda, (pages 509–512). As to the addresses by the prosecutor, s*ee* Rules 46 and 47 and Notes.

(ii) The prosecutor is "a person subject to the Army Act" [Substituted for "*an officer" vide Amdt. No.*18/III/65] whose duty it is to see that justice is done, not a partisan intent on securing a conviction independently of the justice of the case. He should, therefore, put before the court facts which show the true character of the offence, and must be careful to prove affirmatively any facts tending to show the innocence of

the accused or extenuate his offence, e.g., he should himself produce any available evidence of provocation which might mitigate punishment.

It occasionally happens that a soldier charged with desertion was to the knowledge of the prosecutor, arrested or rendered an involuntary absentee at a date earlier than the termination of his absence as alleged in the particulars of the charge. In such circumstances it is the duty of the prosecutor, although he has no direct evidence to prove the earlier termination of the absence, to tell the court the information which he possesses, and to invite them to act upon such information by recording a special finding under Rule 51 (4).

The prosecutor must not introduce matters of aggravation into the evidence against the accused unless they are relevant to the charge against him.

(iii) He should be careful, in his address to the court, not to mislead them either as to the law or the facts of the case.

2. ***Sub-rule* (2).**– As to relevancy, *see* part I, Chapter V, paras 12 to 25. Generally speaking, anything which tends to show that the accused committed the offence charged, or to show the true character of the offence is relevant.

3. ***Sub-rule* (3).**– *See* also Notes 5 and 6 to Rule 47. If the accused charges other persons with blame or criminality, the court should caution him that he may be incurring a liability to be charged subsequently with knowingly making a false accusation [Army Act Section 46 (a)].

The case must be very special indeed to justify the court in stopping the accused in his defence, or in excluding, on the ground of irrelevancy, evidence offered by him or to justify any further proceedings against him on account of his defence.

65. Procedure on trial of two or more persons together.–Where two or more accused persons are tried together and any evidence as to the facts of the case is tendered by any one or more of them, the evidence and the addresses on the part of or on behalf of all the accused persons shall be heard, before the prosecutor replies, and the prosecutor shall make one address only in reply as regards all the accused persons.

NOTE

The effect of this rule is that, if no evidence as to the facts of the case is called for the defence of two or more persons jointly charged and tried, the prosecutor's final address will precede that of the counsel for the

accused or the defending officer. If, however, any one of the accused calls witnesses as to the facts, the prosecutor will have a right of reply on the whole case.

66. Separate charge-sheets.– (1) The convening officer may direct any charges against an accused person to be inserted in different charge-sheets and, when he so directs the accused shall be arraigned, and until after the finding tried, upon each charge-sheet separately, and accordingly the procedure in Rules 38 to 51, both inclusive, shall until after the finding, be followed in respect of each charge-sheet as if it contained the whole of the charges against the accused.

(2) The trials upon the several charge-sheets shall be in such order as the convening officer directs.

(3) When the court have tried the accused upon all the charge-sheets, they shall, in the case of the finding being "Not guilty" on all the charges, proceed as directed by Rule 52, and, in case of the finding on any one or more of the charges being "Guilty", proceed as directed by Rules 44 and 53 to 56 both inclusive, in like manner in each case as if all the charges in the different charge-sheets had been contained in one charge-sheet, and the sentence passed shall be of the same effect as if all the charges had been contained in one charge-sheet.

(4) If the convening officer directs that, in the even of conviction of an accused person upon a charge in any charge-sheet, he need not be tried upon the subsequent charge-sheets, the court in such event may, without trying the accused upon any of the subsequent charge-sheets, proceed as directed in sub-rule (3).

(5) Where a charge sheet contains more than one charge, the accused may, before pleading, claim to be tried separately in respect of any charge or charges in that charge-sheet, on the ground that he will be embarrassed in his defence if he is not so tried separately; and in such case the court, unless they think his claim unreasonable, shall arraign and try the accused in like manner as if the convening officer had inserted the said charge or charges in different charge-sheets.

(6) If a plea of "Guilty" to any charge in the charge-sheet has been recorded as the finding of the court, the provisions of sub-rule (2) of Rule 44 shall not be complied with until after the court had arrived at their findings on all the charge-sheets.

NOTES

1. ***Sub-rule* (1).–** (i) Most of the ordinary cases which come before courts-martial are so simple in their facts that an accused person is not likely to be embarrassed by being tried upon several charges at the same time. But if the charges are complicated, or if the alleged offences were committed at different times or if different sets of witnesses are required to prove the different charges, embarrassment is likely to arise, and in such cases the convening officer should cause the charges to be inserted in separate charge-sheets, numbered consecutively in the order in which he directs them to be tried.

It is difficult to lay down for the guidance of convening officer any definite rules as to the placing of the charges in different charge-sheets; much will depend upon the circumstances of each particular case. But the following general principles may be laid down:–

(*a*) Alternative charges must not be placed in different charge-sheets.

(*b*) A series of charges forming part of one escapade should be placed in a single charge-sheet, such as absence followed by resistance of an escort and wilful damage to a cell after committal to confinement. Multiplicity of charges arising out of the same transaction should, however, be avoided, though in some cases it is necessary to allege a series of offence, *e.g.,* to prove some particular intent, or to guide the court in determining the proper punishment to be awarded.

(*c*) Offences of similar nature such as a series of barrack room thefts or falsification of accounts should be inserted in one charge-sheet.

(*d*) Offences of entirely different descriptions should be entered in separate charge-sheets except where they form part of or are relevant to one transaction, or where the facts of each case are simple.

(*e*) Where the offence is murder, no other offence should be included in the charge-sheet and, generally, the same rule applies to culpable homicide not amounting to murder.

Even if the convening officer has directed all charges to be inserted in a single charge-sheet, the accused under sub-rule (5) of this rule has the right to apply for separate trial.

(ii) Where the accused is arraigned on separate charge-sheets, the court must arrive at their finding upon one charge-sheet before the next charge-sheet is proceeded with.

(For form of proceedings, *see* para 29 of Memoranda on page 508).

(iii) Where any evidence given upon the trial of an accused on one charge-sheet is required to be given on the trial of the same accused person on a subsequent charge-sheet, it must be given afresh, but the witness giving such evidence need not be sworn or affirmed again.

2. ***Sub-rule* (2).**– Generally speaking the convening officer will regulate the order for the trial of different charge-sheets according to the date of the respective offences. But where the gravity of the various offences differs, it may be desirable to insert the charge involving the gravest offence in the first charge-sheet, as, if, the accused is convicted, he will be sufficiently punished without trying him in respect of the minor offences, *see* sub-rule (4) of this rule. Occasionally it will be desirable to direct that a charge which necessitates the calling of a large number of witnesses should be inserted in the first charge-sheet, so that the attendance of such witnesses can be dispensed with after the trial on that charge-sheet has been completed.

3. ***Sub*-rule (3).**– After the finding of the court upon all the charge-sheets been has arrived at, the procedure will be same as if all the charges had been inserted in one charge-sheet. Unless, therefore, the convening officer directs that the accused need not be tried upon any subsequent charge-sheet, the court will not proceed on sentence until they have arrived at a finding on all the charge-sheets, and will then award one sentence in respect of them all.

4. ***Sub-rule* (4).**– It will often be unnecessary, if the accused is convicted of a grave charge contained in one charge-sheet, to proceed with any other or minor offences contained in the other charge-sheets. On the other hand, it may be desirable to try the accused upon the other charge-sheets in order that a more severe sentence may be awarded, if justified.

The powers given to the convening officer under this sub-rule cannot be exercised by the prosecutor on his own initiative or by the court.

5. ***Sub*-rule (5).**– The court should always, unless they think the claim to be unreasonable, accede to a demand to be tried separately in respect of any particular charge.

6. ***Sub-rule*** **(6).–** Under this sub-rule, where an accused has pleaded guilty to a charge entered in one of several charge-sheets, the summary or abstract of evidence relating thereto and any statement which he may make in mitigation of punishment will not be read or recorded until after the finding of the court on all the charge-sheets has been arrived at. But for this provision, the fair trial of the accused upon the other charge-sheets might be prejudiced, especially if he stated, in mitigation of punishment, anything which might point to his guilt on any charge in a charge-sheet which has not yet been tried.

67. Sitting in closed court.– (1) A court-martial shall where it is so directed by these rules, and may in any other case on any deliberation amongst its members, sit in closed court.

(2) Where a court-martial sit in closed court, no person shall be present except the members of the court together with the judge-advocate, if any, and any officers under instruction:

Provided that when a court-martial is closed to deliberate on their finding on any charge, the judge-advocate shall not be present.

(3) For the purpose of giving effect to the foregoing provision of this rule, the court-martial may either retire or cause the place where they sit to be cleared of all persons not entitled to be present, as may appear expedient having regard to the persons to be present in closed court and other circumstances.

(4) Except as hereinbefore provided, all the proceedings including the view of any place, shall be in open court and in the presence of the accused.

NOTES

1. ***Sub-rule*** **(2).–** (i) The judge-advocate is excluded from the deliberations of the court only when they are deliberating on their finding on any charge, *i.e.,* on their verdict. He is not excluded when they are deliberating in closed court on any other matter, *e.g.,* on the admissibility of a confession, on the submission of the defence that there is no *prima facie* case at the close of the case for the prosecution, or no the sentence.

(ii) When there is a judge-advocate and the court cause the place where they sit to be cleared of all persons not entitled to be present, the judge-advocate will retire immediately after his summing-up and before the president closes the court for the deliberation of the finding. When the

court have arrived at their finding, the president will re-open the court, and when all persons are duly assembled, the judge-advocate will also return to the court.

2. ***Sub-rule* (4).**– (i) All the members of the court and the judge-advocate (if any) must be present at the "view" as must also the accused even if he is represented at trial by counsel or defending officer.

(ii) This sub-rule does not affect the power of the court to exclude any person, other than the accused, who interferes with the proceedings–a power which every court possesses as necessary for the conduct of its proceedings. A court-martial has inherent power to sit *in camera,* if necessary, for the proper administration of justice.

(iii) It is for the court-martial to decide whether to sit *in camera* or not though the convening officer may properly draw the court's attention to its powers. This power is invoked when publicity would endanger public safety or the life of a witness. A court would also be justified in hearing evidence *in camera* when a witness could not, by reason of its distressing nature, give evidence properly in public but this does not justify a court going into *camera* because the evidence is of unsavoury character.

68. Continuity of trial and adjournment of court.– (1) When a court is once assembled an the accused has been arraigned, the court shall continue the trial from day to day and sit for a reasonable period on every day unless it appears to the court that an adjournment is necessary for the ends of justice, or that such continuance is impracticable.

(2) A court-martial, in the absence of the judge-advocate, if any, shall not proceed and, if necessary, shall adjourn.

(3) The senior officer on the spot may also, for military exigencies, adjourn or prolong the adjournment of the court.

(4) A court may adjourn from time to time and from place to place, and may, when necessary, view any place. If the time to which an adjournment is made is not specified, the adjournment shall be until further orders from the proper military authority; and if the place to which an adjournment is made is not specified, the adjournment shall be to the same place or to such place as may be specified in further orders from proper military authority.

NOTES

1. ***Sub-rule* (1).–** (i) It is very important that a trial, once begun, should proceed without interruption to its conclusion. This rule, therefore, requires the court to sit from day to day unless an adjournment is necessary for the ends of justice.

(ii) Apart from specific provisions under the rules, an adjournment should be allowed for obtaining the opinion of the confirming authority or of the Judge Advocate General's Department on any point of law or procedure, for enabling the accused to prepare his defence, the prosecutor to prepare his reply or the judge-advocate to prepare his summing-up.

(iii) The court should not, as a rule, permit an adjournment to enable the prosecutor to call new witnesses, unless the necessity for their presence at the trial could not reasonably have been foreseen. The court should adjourn if they consider that the accused has not had sufficient opportunity for procuring the attendance of any witnesses whom he desires to call, or where it would be unjust to the accused not so to adjourn.

(iv) The reasons for any adjournment must be entered in the proceedings (*see* Variations page 470) and either announced in court in presence of the accused, or communicated to the prosecutor and accused.

(v) (a) Prolonged sittings unduly strain the attention of members of the court and may operate unfairly upon the accused, who should never be required to make his defence at the close of a prolonged sitting. Sittings of six or seven hours will be found as a rule quite long enough.

(b) Where civilian witnesses are present, the court should, if reasonably possible, complete their evidence before adjourning.

2. ***Sub-rule* (2).–** As to procedure on inability of judge-advocate to attend, *see* Section 89 (2) of the Act, and as to procedure on death of judge-advocate, *see* Rule 70.

Where the absence of judge-advocate is due to temporary causes, the court should adjourn until he is able to attend.

3. ***Sub-rule* (3).–** These military exigencies should seldom arise except on active service.

4. Sub-rule (4).– This sub-rule meets the case where, for example, a view is necessary, or where a court-martial is held on line of march or where adjournment to a hospital for purpose of taking evidence of a sick witness is rendered necessary.

69. Suspension of trial.– (1) Where, in consequence of anything arising while the court is sitting, the court is unable by reason of dissolution as specified in Section 89 or otherwise to continue the trial, the president or, in his absence, the senior member present will immediately report the facts to the convening authority.

(2) Where a court-martial is dissolved before the finding or, in case of a finding of guilty, before the sentence, the proceedings are null and the accused may be tried before another court-martial.

NOTES

1. *Sub-rule* (1).– (i) If the court is not sitting, a report will usually be made in some other way to the convening authority.

(ii) A court is dissolved if it is reduced below the legal minimum [*see* Army Act Section 89 (1)]; if, on death, etc., of the president, the senior member of the court cannot sit as president; if continuance of trial is impossible through illness of the judge-advocate or accused before the finding.

2. *Sub-rule* (2).– Though there is no promulgation of a decision to try accused again, he should be informed of the decision before being arraigned before the new court.

70. Proceeding on death or illness of judge-advocate or accused.– In case of the death of the judge-advocate or of the accused, or of such illness of the judge-advocate or of the accused as renders it impossible to continue the trial, the court shall ascertain the fact of the death or illness by evidence, and record the same, and adjourn and transmit the proceedings to the convening authority.

NOTES

1. See Army Act Section 89 (2). “Impossible to continue” means to continue within a reasonable time having regard to all the circumstances.

2. Oral evidence of the fact of the death or illness will be taken on oath or affirmation. Also, a medical certificate should always, where possible, be obtained, stating that the illness of the judge-advocate or of the accused renders his presence in court impracticable or dangerous to himself or others, and also the time when, in the opinion of the medical officer, the judge-advocate or the accused will be able to be present.

71. Death, retirement or absence of President.— in the case of death, retirement on challenge or unavoidable absence of the president appointed under section 102, the convening authority may appoint the next senior member of the court, if of sufficient rank, to be president and the trial shall proceed if the court is still composed of not less than the smallest number of officers of which it is required by law to consist.

NOTE

See Army Act Section 89(1).

72. Presence through out of all members of the court.— (1) A member of court-martial who has been absent while any part of the evidence on the trial of an accused person is taken, shall take no further part in the trial by that court of that person, but the court will not be affected unless it is reduced below the legal minimum.

(2) An officer shall not be added to a court-martial after the accused has been arraigned.

NOTES

1. Sub-rule (1).– Though the rule does not provide for it, a member who has been absent at any time during the trial, e.g., if absent during the arraignment, he should not take any further part herein.

2. Sub-rule (2).– As to arraignment see Note to Rule. 38.

73. Taking of opinions of members of court.– (1) Every member of a court must give his opinion by word of mouth on every question which the court has to decide, and must give his opinion as to the sentence, notwithstanding that he has given his opinion in favour of acquittal.

(2) The opinions of the members of the court shall be taken in succession, beginning with the junior in rank.

NOTES

1. Opinions must be given orally. See also Rule 50 (3). The oath or affirmation taken by members of the court operates, save as therein provide, to prevent the opinions of individual members from being disclosed, see Rule 36 (1).

2. Army Act Section 105 requires all decisions to be passed by an absolute majority except in the case of a sentence of death which requires a two-thirds majority. The president has no second or casting vote in the case of a sentence of death; nor where there is an equality of votes on a challenge, or finding or sentence.

3. In order to obtain an absolute majority in respect of the sentence every member must vote, even if he has voted for an acquittal on the finding. It is desirable that the nature of the punishment to be awarded should first be considered.

The procedure to be adopted will best be illustrated by the following example:–

At a general court-martial consisting of seven member three are in favour of a sentence of transpiration, two in favour of rigorous imprisonment and two in favour of dismissal (without imprisonment). The most lenient punishment will be first put to the vote and will be rejected by 5 votes to 2. The next most lenient punishment will then be put to the vote, viz. imprisonment. All seven members must vote again and the two members who had previously voted in favour of dismissal will naturally give their votes for rigorous imprisonment rather than transpiration. The result will be an absolute majority of 4 votes to 3 in favour of imprisonment. The quantum or length of the imprisonment to be awarded will be arrived at in the same manner the most lenient proposal being pt to the vote first.

It is improper to strike an average between the various sentences suggested by the members of the court, but it may often happen that, in the course of further discussion, members who had or originally made different proposals will arrive at a unanimous decision as to the proper sentence to be awarded.

4. Sub-rule (2).– (i) The opinion of each member on the finding must be taken separately upon each charge upon which the accused is arraigned [See Rule. 50 (3)].

(ii) "Junior in rank" means junior in the rank in which they take their seats (See Rule 62).

74. Procedure on incidental questions.– if any objection on any matter of law, evidence or procedure is raised by the prosecutor or by or no behalf of the accused during the trial, the prosecutor or the accused or counsel or the defending officer (as the case may be) shall have a right to answer the same and the person raising the objection shall have the right of reply.

NOTE

This rule will apply to such questions as the admissibility of evidence, the property of any questions or the recalling of a witness. It will also apply to submission, which may always be made by or on behalf of the accused at the close of the case for the prosecution, that no case has been made out justifying the court in putting the accused upon his defence. [See Note 1 (i) to Rule 47]

75. Swearing of court to try several accused persons.– (1) A court may be sworn of affirmed at one time to try any number of accused persons then present before it, whether those persons are to be tried collectively or separately, and each accused person shall have power to object to the members of the court, and shall be asked separately whether he objects to any member.

(2) In the case of several accused persons to be tried separately, the court, upon one of those persons objecting to a member, may, according as they think fit, proceed to determine that objection or postpone the case of that person and swear or affirm the members of the court for the trial of the others alone.

(3) In the case of several accused persons to be tried separately, the court when sworn or affirmed shall proceed with one case, postponing the other case and taking them afterwards in succession.

(4) Where several accused persons are tried separately by the same court upon charges arising out of the same transaction, the court may, if they consider it to be desirable in the interest of justice, postpone consideration of any sentence to be awarded to any one or more of such accused persons until the trials of all such accused persons have been completed.

NOTES

1. *Sub-rule* (1).– Notwithstanding that, under this rule, the members of the court are sworn only once to try the person before them, there will be a separate court for the trial of each case, and the swearing of the court will be mentioned in the proceeding of each case.

2. *Sub-rule* (2).– (i) When, in consequence of an objection raised by one or several persons jointly charged, a new officer serves, the other accused persons, who had previously raised no objection to the members of the court, will have the right to object to the new officer.

(ii) Where two or more accused persons are tried separately by the same court and the objection of one accused to a member is allowed, that member must still sit as a member of the court for the trial of the accused who did not object to be tried by him.

3. ***Sub-rule*** **(3).–** The finding and sentence, except where the court decides to act under sub-rule (4) of this rule, must be arrived at before the next case is tried. For form of proceedings, see para. 16 of Memorandum at page 507.

4. ***Sub-rule*** **(4).–** It is very desirable that the court should, where several persons are separately tried and convicted in respect of the same transaction, be in a position to apportion the proper sentences to be awarded to all the accused persons.

Inasmuch as sentence of transportation or imprisonment will under army Act Section 135, commence upon the day upon which it is eventually signed, the court, in awarding sentence, should take into consideration in favour of an accused person any postponement of sentence which has been occasioned through the operation of this sub-rule.

76. Swearing of interpreter and short-hand writer.— (1) At any time during the trial an impartial person may, if the court think it necessary, and shall, if either the prosecutor or the accused request it on any reasonable ground, be sworn or affirmed to act as interpreter.

(2) An impartial person may at any time during the trial, if the court think it desirable, be sworn to act as a short-hand writer.

(3) Before a person is sworn or affirmed as interpreter or short-hand writer, the accused shall be informed of the person who is proposed to be sworn or affirmed, and may object to the person as not being impartial; and the court, if they that the objection is reasonable, shall not swear or affirm that person as interpreter of short-hand writer.

NOTES

1. ***Sub-rule*** (I).– (i) An interpreter or short-hand writer is usually sworn at the commencement of the trial.

(ii) For the occasions when an interpreter must be employed (See Rule 77 and note).

An interpreter may either be appointed by the convening officer [Rule 28 (3)] or by the court-under this rule. If a member of the court is appointed interpreter he must take the interpreter's oath (or affirmation) in addition to the oath prescribed for a member of the court in Rule 36. A member should normally act as an interpreter where the trial is likely to be prolonged.

(iii) For form of oath or affirmation, see Rule 36.

2. S*ub-rule* (3).– The same procedure will be followed as in the case of an objection to a member of the court.

77. Evidence when to be translated.— When any evidence is given in a language which any of the officers composing the court, the judge-advocate, the prosecutor or the accused does not understand, that evidence shall be interpreted to such officer or person in a language which he does understand. If an interpreter in such language has been appointed by the convening officer, and duly sworn or affirmed, the evidence shall be interpreted by him. If no such interpreter has been appointed and sworn or affirmed, an impartial person shall be sworn or affirmed by the court as required by Rule 76. When documents are put in for the purpose of formal proof, it shall be in the discretion of the court to cause as much to be interpreted as appears necessary.

NOTE

As the charge-sheet and documentary evidence as to character will be in English, an interpreter in the language of the accused person should be appointed in every case in which the accused does not know enough English to understand these documents. Whoever interprets any evidence must be sworn or affirmed as an interpreter before so (see Rule 76 and Notes).

78. Record in proceeding of transaction of court-martial— (1) At a court-martial the judge-advocate or, if there is none, the president shall record, or cause to be recorded in Bengali or English language, all transactions of that court, and shall be responsible for the accuracy of the record (in these rules referred to as the proceedings); and if the judge-advocate is called as a witness by the accused, the president shall be responsible for the accuracy of the record in the proceedings of the evidence of the judge-advocate.

(2) The evidence shall be taken down in a narrative form in as nearly as possible the words used; but in any case where the prosecutor,

the accused person, the judge-advocate or the court considers it material, the question and answer shall be taken down verbatim.

(3) Where an objection has been taken to any question or to the admission of any evidence or to the procedure of the court, such objection shall, if the prosecutor or the accused so requests, or the court think fit, be entered upon the proceedings together with the grounds of the objection, and the decision of the court thereon.

(4) Where any address by, or on behalf of the prosecutor or the accused is not in writing, it shall not be necessary to record the same in the proceedings further or otherwise than the court think proper:

Provided that:

(i) the court shall in every case make such record of the defence made by accused as will enable the confirming officer to judge of the reply made by, or on behalf of, the accused to each charge against him; and

(ii) the court shall also record any particular matter in the address by, or on behalf of, the prosecutor or the accused, which the prosecution or the accused, as the case may be, requires.

(5) The court shall not enter in the proceedings any comment, or anything not before the court, or any report of any fact not forming part of the trial; but if any such comment or report seems to the court necessary, the court may forward it to the proper military authority in a separate documents, signed by the president.

NOTES

1. ***Sub-Rule (1).*** *(i)* The record, where no short-hand writer is employed, must be taken in a clear and legible hand or typed. Interlineations and corrections must be avoided as much as possible; if made they should be initialled by the president (or judge-advocate). If desired, a typed copy may be substituted for the original manuscript record; if so substituted it must be checked with the original by the officer responsible for the accuracy of the proceedings. The pages should be numbered and the various sheets fastened together, sheets not used being removed. Sufficient space must be left below the signature of the president for the decision of the confirming authority. The place and date of the signing of the sentence by the president must be inserted.

See Memoranda infra for guidance of courts-martial, pares 14 to 35 at pages 50 to 509

(ii) No Correction or addition may be made to the proceedings of a court-material after promulgation. When an obvious oversight has been made in the record, such as the omission of the words "the president and members are duly sworn", a certificate, signed by the president, to the effect that they were sworn should be attached. But see Note I to 56 as to signing and dating the sentence after promulgation.

2. Sub-rule (2). (i) The material effect of the question and answer will be written down e.g. where the questions is "What did the accused do next?" and the answer is "He left the room"; the evidence, as recorded, would read "The accused then left the room".

Documentary evidence will be read by the president or judge-advocate; it should then be marked with a distinguishing letter or figure and attached to the proceedings. In many cases it will be sufficient to attach copies of documents which must, however, be compared with the originals by the court and certified under the hand of the president to be true copies (See Note 2 to Rule).

If a short-hand writer is employed the evidence is usually taken down verbatim by him. If the evidence of a witness is not given in English, the material effect of questions and answer interpreted in English will be recorded.

(ii) The rule applies to questions and answers given in cross-examination and re-examination as well as the examination-in-chief.

3. Sub-rule (5). The court can make in a separate document any remarks they think proper on the conduct of any person who appeared before them, or on the manner in which a particular witness has given his evidence, or on the manner in which the prosecution has been conducted if they think the evidence shows that the accused has committed some offence not charged, e.g., if he is charged with desertion in August, and the evidence shows that he deserted in June, they must acquit him, but may report separately the offence of June.

The court can scarcely be too guarded in expressing censure on individuals not before them for trial; indeed, cases justifying such expression will be rare and exceptional.

It will usually be desirable to make a note at the time of any matter upon which the court intend to make any such comment or report, although it will not be correct to enter such matter in the proceedings.

79. Custody and inspection of proceedings.– The proceedings shall be deemed to be in the custody of the judge-advocate, if any, or, if there is none, of the president, but may, with proper precautions for their safety, be inspected by members of the court, the prosecutor and accused, respectively, at all reasonable times before the court is closed to consider the finding.

80. Transmission of proceedings after finding.– The proceeding shall be at once sent by the person having the custody thereof to such person as may be specified in this behalf by the order convening the court, or, where no person has been so specified, to the confirming officer.

NOTES

1. As to custody of the proceedings, See Rule 79.

2. For procedure where a member of the court has become confirming officer, See Rule 61.

3. The proceedings of courts-martial, when despatched by post, should invariable be sent under registered cover.

Defending officer, Friend of the accused and Counsel

81. Defending officer and friend of the accused.— (1) At any general or district court-martial, if an accused person is not represented by counsel, he may be represented by an officer subject to the Act who shall be called "the defending officer" or assisted by any person whose services he may be able to procure and who shall be called "the friend of the accused".

(2) It shall be the duty of the convening officer to ascertain whether an accused person not otherwise represented desires to have a defending officer assigned to represent him at his trial and, if he does so desires, the convening officer shall use his best endeavours to ensure that the accused shall be so represented by a suitable officer. If owing to military exigencies, or for any other reason, there shall, in the opinion of convening officer, be no such officer available for the purpose, the convening officer shall give a written notice to the president of the court-martial, and such notice shall be attached to the proceedings.

(3) The defending officer shall have the same right and duties as appertain to counsel under these rules and shall be under the like obligations.

(4) The friend of the accused may advise the accused on all points and suggest the questions to be put to the witness, but he shall not examine or cross-examine the witnesses or address the court.

NOTES

1. *Sub-rule* (1). (i) Under Rule 23 (1) the accused, after he has been ordered to be tried by court-martial, is to be allowed free communication with his "friend"; defending officer, or legal adviser. This rule would suggest that an accused cannot have both counsel and a defending officer. In practice, however, it will be better to ensure that an officer is detailed when counsel is employed to render assistance in preparing the defence and to supply the local background. The officer so detailed will not have any right of audience.

(ii) As to the duties of the defending officer, see Memoranda Pages 513 and 514.

2. *Sub-rule (2).* (i) Every effort should be made to secure the services of a competent officer, and he should be allowed time and opportunity for properly preparing the defence of the accused. Where an accused selects a particular officer, steps should be taken to obtain his services.

(ii) There is power under Rule 26 to dispense with this sub-rule in the event of military exigencies, etc.

3. *Sub-Rule (3).* i.e., the defending officer must conduct the case as representing the accused (See Rule 83, 85 and 86).

82. Counsel allowed in certain general and district court-martial.– (1) Subject to these rules, counsel shall be allowed to appear on behalf of the prosecutor and the accused at a general or district court-martial if the Chief of Army staff or the convening officer declares that it is expedient to allow the appears of counsel thereat, and such declaration may be made as regards all general and district courts-martial held in any particular place, or as regards any particular general or district court-martial, and may be made subject to such reservation as to cases on active service, or otherwise, as seems expedient.

(2) Save as provided in Rule 81, the rules with respect to counsel shall apply only to the courts-martial at which counsel are, under this rule, allowed to attend.

NOTE

[Inserted for Rule 82(2) vide Amdt. No. 22/1/651].

Sub-rule (1). For qualifications of counsel, see Rule 87(2) [Inserted vide Amdt. No. 22/1/65].

There is no restriction as to the number of counsel engaged in a case. Counsel for the defence, though not bound to such strict impartiality as the prosecutor, must nevertheless recollect that he is assisting in the administration of justice and must not be guilty of any unfairness or want of candour in his or want of candour in his conduct of the case. In his address he will have the same liberty as the accused [See Rule 64(3)]; but he should exercise more restraint in commenting on the acts of persons not before the court.

83. Requirements for appearance of counsel.– (1) An accused person intending to be represented by counsel shall give to his commanding officer or to the convening officer the earliest practicable notice of such intention and, if no such notice has been given, the court may, if they think fit, on the application of the prosecutor, adjourn to enable him to obtain counsel on behalf of the prosecutor at the trial.

(2) If the convening officer so directs, counsel may appear on behalf of the prosecutor but in that case, unless the notice required by sub-rule (1) has been given by the accused, notice of the direction for counsel to appear shall be given to the accused at such time (not in any case less than seven days) before the trial, as would, in the opinion of the court, have enabled the accused to obtain counsel to assist him at the trial.

(3) The counsel, who appears before a court-martial in behalf of the prosecutor or accused, shall have the same right as the prosecutor or accused for whom he appears, to call, and orally examine, cross-examine, and re-examine witness, to make an objection or statement, to address the court, to put in any plea, and to inspect the proceeding, and shall have the right otherwise to act in the course of the trial in the place of the person on whose behalf he appears, and he shall comply with these rules as if he were that person and in such case that person shall not have the right himself to do any of above matters except as regards the statement allowed by sub-rule (2) (ii) (a) of Rule 47 and sub-rule (ii) (a) of Rule 48 or except so far as the court permit him so to do.

(4) When counsel appears on behalf of the prosecutor, the prosecutor, if called as a witness, may be examined, cross-examined and re-examined as any other witness and clause (iv) and (v) of Rule 46 shall not apply.

NOTE

***Sub-rule* (1).** When the convening officer intends to appoints or apply for the services of an officer of the Judge Advocate General's Department or an officer holding legal qualifications to act as prosecutor similar notice should be given to the accused to enable him, if he so desires, to obtain counsel to represent him at the trial.

84. Counsel for prosecution.— The counsel appearing on behalf of the prosecutor shall have the same duty as the prosecutor and is subject to be stopped and restrained by the court in the manner provided by sub-rule (2) of Rule 64.

NOTE

Counsel appearing on behalf of the prosecutor should always make an opening address, and should state therein the substance of the charge against the accused and the nature and general effect of the evidence which he proposes to adduce in support of it without entering into unnecessary detail.

85. Counsel for accused.— The counsel appearing on behalf of the accused has the like rights, and is under the like obligations as are specified in sub-rule (3) of Rule 64 in the case of the accused.

NOTE

If the court ask counsel for the accused a question as to any witness or matter, he may decline to answer, but he must not give to the court any answer or information which is misleading.

86. General rules as to counsel.– Counsel, whether appearing on behalf of the prosecutor or of the accused, shall conform strictly to these rules and to the rules of criminal courts in Bangladesh relating to the examination, cross-examination and re-examination of witness, and relating to the duties of counsel.

NOTES

1. See part chapter V, Paras 100 to 117, especially para 109 as to injurious questions.

2. Counsel should not state as a act any matter which is not proved, or which he does not intend to prove in evidence, not should he

state what is his own opinion as to any matter of fact before the court. In a question to a witness he should not assume that facts have been given in evidence which have not been so given, or that particular answers have been contrary to the fact.

3. Counsel should treat the court and judge-advocate with respect, and should while regarding the exigencies if his case, bear in mind the requirements of military discipline in the respectful treatment of any superior officer of the accused who may attend as a witness.

87. Qualifications of counsel.– (1) Neither the prosecutor nor the accused has any right to object to any counsel if properly qualified.

(2) Counsel shall be deemed properly qualified to appear a court martial wherever held–

(a) if in Bangladesh, he is a legal practitioner authorised to practise with right of audience in a court of sessions in Bangladesh; or

(b) if, in any country other than Bangladesh, he is recognised by the convening officer as having in that country, rights and duties similar to those of a legal practitioner of Bangladesh and as being subject to punishment or a disability for a breach of professional rules.

NOTES

1. A Civilian gazetted officer holding legal qualifications cannot appear as a counsel since he is not actually practising.

2. Similarly an Air Force or a Naval officer who is a Bar-at-law cannot appear as a Counsel because he is not actually practising but has suspended his practice because of his service.

Judge-Advocate

88. Disqualifications of Judge-Advocate.— An officer who is disqualified for sitting on a court-martial, and any other person who would have been so disqualified had he been an officer, shall be disqualified for acting as judge-advocate at that court-martial.

NOTES

1. As to the appointment of a judge-advocate at a general or district court-martial, see Army Act Section 103. Omission to appoint a judge-advocate at a general court-martial will invalidate the proceedings.

2. As to disqualification's, see Rule 30 (2) and Notes.

3. A judge-advocate should be free of all suspicion of bias or prejudice. He should have had experience of the practice and procedure of court-martial and a knowledge of general principles of law and of the rules of evidence.

89. Power and duties of judge-Advocate.— The powers and duties of a judge-advocate are follows:–

(1) The prosecutor and the accused are, at all times after the judge-advocate is named to act on the court, entitled to his opinion on any question of law relative to the charge or trial, whether he is in court or out of court, subject, when his is in court, to the permission of the court.

(2) At a court-martial he represents the Judge Advocate General of the Army.

(3) He is responsible for informing the court of an informality or irregularity in the proceedings. Whether consulted or not, he shall inform the convening officer and the court of any informality or defect in the charge, or in the constitution of the court, and shall give his advice on any matter before the court.

(4) Any information or advice given to the court on any matter before the court shall, if he or the court desire it, be entered in the proceedings.

(5) At the conclusion of the case he shall, unless both he and the court consider it unnecessary, sum up the evidence and give his opinion upon the law relating to the case, before the court proceed to deliberate upon their finding.

(6) Upon any point of law or procedure which arises during the trial which he attends, the court should be guided by his opinion, and not disregard it excerpt for very weighty reasons. The court, in following the opinion of the judge-advocate on a legal point, may record that they have decided in consequence of than opinion.

(7) The judge-advocate has, equally with the president, the duty of taking care that the accused does not suffer any disadvantage in consequence of his position as such of his ignorance or incapacity to examine or cross-examine witnesses or otherwise,

and may, for that purpose advise the court that witnesses should be called or recalled for the purpose of being questioned by him on any matters, which appear to him necessary or desirable to elicit the truth.

(8) In fulfilling his duties, the judge-advocate must be careful to maintain an entirely impartial position.

NOTES

1. Sub-rule (5). See Rule 48 and Notes.

2. Sub-rule (6). The court are responsible for the legality of their decisions, but they must consider the grave consequence which may result from their disregard of the advice of the judge-advocate on any legal point. If a court-martial, acting without jurisdiction or in excess of jurisdiction, convict a person subject to the Act, the members of court may be held liable in damages by a civil court and such liability or at least the amount of the damages- may depend upon the question whether they exercised a bona fide judgement, and the fact that they accepted the advice of the judge-advocate, even if such advice was held to be wrong might practically exonerate the members from liability.

3. Sub-Rule (7). (i) For duty of president, see Rule 63 (2) and note.

(ii) the advice to call or recall witness should always be acted upon unless the court consider that the judge-advocate is acting improperly or in such a manner as to obstruct the proceeding. If his advice is disregarded, the court should record their reasons for disregarding it.

SECTION 3 – SUMMARY COURTS-MARTIAL

90. Proceedings.– The officer holding the trial, hereinafter called the court, shall record or cause to be recorded, in the Bengali or English language, the transactions of every summary court-martial.

NOTE

See Rule 78 and notes which apply mutatis mutandis to this rule.

91. Evidence when to be translated.– When any evidence is given in a language which the court or the accused does not understand, that evidence shall be interpreted to the court or the accused as the case may be in a language which it or he does understand. The court shall, for

this purpose, either appoint an interpreter, or shall itself take the oath or affirmation prescribed for an interpreter at a summary court-marital. When documents are put in for the purpose of formal proof, it shall be in the discretion of the court to cause as much to be interpreted as appears necessary.

NOTES

1. See Note to Rule 77.

Any evidence not understood by the officers or junior commissioned officers attending the trial should also be translated to them.

2. The commanding officer should, as a general rule take the interpreter's oath or affirmation himself, in addition to the oath or affirmation prescribed in Rule 93 for the court. In the rare cases where the commanding officer does not know the language of the accused he should appoint a competent interpreter. Whoever interprets any evidence must be sworn or affirmed as an interpreter before doing so; Rule 132.

92. Assembly.— When the court, the interpreter, if any, and the officers attending the trial are assembled, the accused shall be brought before the court, and the oaths or affirmations prescribed in Rule 93 shall be taken by the persons therein mentioned.

NOTE

The accused cannot object to the court or interpreter.

93. Swearing or affirming of court and interpreter.– (1) The court shall take oath or affirmation in one of the following forms, or in such other form to the same purport, as may be according to its religion or otherwise binding on its conscience.

FORM OF OATH

"**I**....., swear by Almighty God that I will duly administer justice, according to the Army Act, without partiality, favour or affection, and if any doubt shall arise, then, according to my conscience, the best of my understanding, and the custom of the service in the like cases".

FORM OF AFFIRMATION

"**I**……., solemnly affirm, in the presence of Almighty God, that I will duly administer justice, according to the Army Act, without partiality, favour or affection, and if any doubt shall arise, then, according to my conscience, the best of may understanding, and the custom of the service in the like cases".

(2) After the court has taken the oath or affirmation directed by sub-rule (1), the court, or some person empowered by it, shall administer to the interpreter, if any, an oath or affirmation in one of the following forms, or in such other form to the same purport as the court ascertains to be according to his religion or otherwise binding on his conscience.

FORM OF OATH

"I……, swear by Almighty God, that I will faithfully interpret and translate, as I shall be required to do, touching the matter before this court-martial".

FORM OF AFFIRMATION

"I……, solemnly affirm, in the presence of Almighty God, that I will faithfully interpret and translate, as I shall be required to do, touching the matter before this court-martial".

(3) After the oaths and affirmations have been administered, as directed by sub-rules (1) and (2), all witnesses shall withdraw form the court.

NOTES

1. See notes to Rules 36 and 37 which apply mutatis mutandis, to the oaths and affirmations referred to in this rule.

2. See Army Act section 88. The "court" is the officer holding the trial. Two other officers or junior commissioned officers, or an officer and a junior commissioned officer must attend the trial, but these officers do not form part of the court and are not, as such, sworn or affirmed. The same two officers must attend the trial throughout.

94. Swearing of court to try several accused persons.– (1) The court may be sworn or affirmed at the same time to try any number of accused persons then present before it whether those persons are to be tried collectively or separately.

(2) In the case of several accused persons to be tried separately, the court, when sworn or affirmed, shall proceed with one case postponing the other cases and taking them afterwards in succession.

(3) Where several accused persons are tried separately upon charges arising out of the same transaction, the court may, if it considers

desirable in the interests of justice, postpone consideration of, any sentence to be awarded to any one or more such accused persons until the trials of all such accused persons have been completed.

NOTE

See Notes to Rule 175 which apply mutates mutandis to this rule.

95. Arraignment of accused.– (1) After the court and the interpreter, if any are sworn or affirmed, as directed by Rule 93, the accused shall be arraigned on the cargoes against him.

(2) The charges on which the accused is arraigned shall be read and, if necessary, translated to him, and he shall be required to plead separately to each charge.

NOTES

1. Sub-Rule (1). (i) As to framing charges, see Rules 19 to 21 and notes. Where, under army Act section 99, the sanction of superior authority is necessary for the trial of a charge by summary court-martial, such sanction should be entered at the foot of the charge-sheet and signed by the superior authority or a staff officer.

(ii) "Arraignment" consists of (1) calling upon the accused by his number, rank, name and descriptions as given in the charge-sheet and asking him "is that your number, rank, name and unit (or description)?" (2) reading the charge to him; and (3) asking him whether he is guilty or not guilty.

Where two or more persons are jointly charged and tried for the same offence, each is separately arraigned. Where there are more-charge-sheets than one against an accused, he must be arraigned and tried upon the first charge-sheet before arraignment upon the second or subsequent charge-sheets (See Rules 66 and 110).

2. Sub-rule (2). (i) The charge-sheet, after being read to the accused, will be annexed to the proceedings.

(ii) The plea of the accused must be taken on all the charges in a charge-sheet. This applies to alternative charges if the accused has been arraigned upon them [see, however, Rule. 99 (3)].

96. Objective by accused to charge.– The accused, when required to plead to any charge, may object to the charge on the ground that it does not disclose an offence under the Act, or is not in accordance with these rules.

NOTES

1. For example, a charge laid under Army Act section 45 (a) of losing by neglect the proper of a comrade would not disclose an offence under that section.

2. See Rules 19 to 22 and Notes.

3. For procedure where it appears that the accused is, by reason of insanity, unfit to take his trial, see Rule 128.

97. Amendment of charges.– (1) At any time during the trial if it appears to the court that there is any mistake in the name or description of the accused in the charge-sheet, it may amend the charge-sheet so as to correct that mistake.

(2) If on trail of any charge it appears to the court, at any time before it has begun to examine the witness, that in the interests of justice any addition to, omission from, or alteration in the charge is required, it may amend such charge and may, after due notice to the accused, and with the sanction of the officer empowered to convene a district court-martial or on active service a field general court-martial for the trial of the accused of amended charge requires such sanction, proceed with the trial on such amended charge.

NOTES

1. See Notes to Rule 40.

2. See Army Act section 99 and Notes. if the amended charge is one requiring reference to superior authority and the officer holding the trial considers that there is grave reason for immediate action and that such reference cannot be made without detriment to discipline, he should attach an explanatory memorandum (Rule 114) to the proceedings and, after giving the accused sufficient notice of the amendments, proceed with the trial.

98. Specials pleas.– If special plea to the general jurisdiction of the court, or a plea in bar of trial, is offered by the accused, the procedure laid down for general and district court-martial when disposing of such pleas shall, so far as may be applicable, be followed, but no finding by a summary court-martial on either of such pleas shall require confirmation.

NOTE

See Rules 41 and 43 and Notes .

99. General plea of "Guilty" or "Note Guilty".– (1) The accused person's plea–"Guilty" or “Not Guilty” (or if he refuses to plead, or does not plead intelligibly either one or the other, a plea of "Not Guilty")– shall be recorded on each charge.

(2) If an accused person pleads "Guilty” that plea shall be recorded as the finding of the court; but before it is recorded, the court shall ascertain that the accused understands the nature of the charge to which he has pleaded guilty and shall inform him of the general effect of that plea and in particular of the meaning of the charge to which he has pleaded guilty, and of the difference in procedure which will be made by the plea of guilty, and shall advise him to withdraw that plea if it appears from the summary of evidence or otherwise that the accused ought to plead not guilty.

(3) Where an accused person pleads guilty to the first of two or more charges laid in the alternative, the court may, after sub-rule (2) has been complied with and before the accused is arraigned on the charge or charges, withdraw such alternative charge or charges without requiring the accused to plead thereto, and a record to that effect shall be made upon the proceedings of the court.

NOTE

See Notes to Rule 42 which, with the necessary changes, apply to this rule.

100. Procedure after plea of 'Guilty".— (1) Upon the record of the plea of "Guilty", if there are other charges in the same charge-sheet to which the plea is "Not Guilty", the trial shall first proceed with respect to those other charges, and, after the finding in those charges, shall proceed with the charges on which a plea of "Guilty" has been entered; but if they are alternative charges, the court may either proceed with respect to all the charges as if the accused had not pleaded "Guilty" to any charge, or may, instead of trying him, record a finding of "Guilty" upon any one of the alternative charges to which he has pleaded "Guilty" and a finding of "Not Guilty" upon all the other alternative charges.

(2) After the record of the plea of "Guilty" on a charge (if the trial does not proceed on any other charges) the court shall read the summary

of evidence, and annex it to the proceedings, or if there is no such summary, shall take and record sufficient evidence to enable it to determine the sentence, and the reviewing officer to know all the circumstance connected with the offence. This evidence shall be taken in like manner as is directed by these rules, in the case of a plea of "Not Guilty".

(3) After the summary of evidence has been read, or such evidence has been taken, as the case may be, the accused may address the court in reference to the charge and in mitigation of punishment and may call witnesses as to his character.

(4) If from the statement of the accused, or from the summary of evidence, or otherwise, it appears to the court that the accused did not understand the effect of his plea of "Guilty", the court shall alter the record and enter a plea of "Not Guilty", and proceed with the trial accordingly.

(5) If a plea of "Guilty" is recorded and the trial proceeds with respect to the other charges in the same charge-sheet, the proceedings under sub-rules (2) and (3) shall take place when the finding on the other charges in the same charge-sheet are recorded.

(6) When the accused states anything in mitigation of punishment which, in the opinion of the court, requires to be proved, and would, if proved, affect the amount of punishment, the court may permit the accused to call witness to prove the same.

NOTE

See notes to Rule 44.

101. Withdrawal of plea of "Not Guilty".– The accused may, if he thinks fit, at any time during the trial, withdraw his plea of "Not Guilty" and plead "Guilty" and in such case the court shall at once, subject to a compliance with sub-rule (2) of Rule 99, record a plea and finding of "Guilty", and shall, so far as is necessary, proceed in the manner directed by Rule 100.

102. Procedure after plea of "Not guilty".— After the plea of "Not Guilty" to any charge is recorded, the evidence for the prosecution will be taken. At the close of the evidence for the prosecution, the accused shall be asked if he has anything to say in his defence, and may address the court in his defence, or may defer such address until he has called his witness. The accused may then call his witness, including also witness to character.

NOTES

1. Form of proceedings see page 482.

2. For general provisions as to witnesses and evidence, see Rule 117 to 126.

3. As to the record in the proceedings of transactions of the court, see generally Rule 78.

The evidence will be taken by question and answer, or the witness may be asked to tell his own story, questions being subsequently asked to make good any omissions. It will, as a rule, be recorded in a narrative form; but where the accused or the court considers it materials, the questions and answers will be taken down verbatim. The material effect of the question and answer will be written down, e.g., where the question is "what did the accused do next?" and the answer is "he left the room", the evidence as recorded would read "the accused then left the room". Documentary evidence after being read should be marked with a distinguishing letter or figure and attached to the proceedings. See also Note 2 to rule 56.

4. It is open to the accused, at the close of the case for the prosecution, to submit that the evidence given for the prosecution has not established a prima facie case against him and that he should not, therefore, be called upon for defence. If the court is satisfied that it is well founded, the accused must be acquitted.

6. The utmost liberty consistent with the interests of parties not before the court and with the dignity of the court itself should be allowed to the accused in making his defence [see Rule 64 (3) and Notes], and the court should, if necessary, adjourn to allow him for its preparation. He has the privilege of making statements which are unsupported by evidence (See Notes to Rule 47), and he cannot be questioned by the court upon his statement or address except when it is desired it is desired to supplement the defence or to bring out more clearly the points which the accused urges in his favour.

It should be remembered that an accused person cannot give evidence on oath, and therefore, any statement made by him must be carefully considered. Though not given on oath and subject to the text of cross-examination, it will often be of value, particularly if it is in any respect corroborated by evidence from other sources.

103. Witness in reply to defence.— The court may, if it thinks it necessary in the interests of justice, call witness in reply to the defence.

NOTES

1. This is an extreme measure and should only be resorted to when the accused has made or elicited from his witnesses some statement material to his defence, which could not reasonably have been foreseen when the case for the prosecution was being investigated (See also Note to rule 126).

2. As to reference by accused to a Government officer at a trial for desertion, etc., see Army Act section 117.

104. Verdict.— After all the evidence, both for prosecution and defence has been heard, the court shall give its opinion as to whether the accused is guilty or not guilty of the charges.

NOTES

1. The court need not be closed and the finding may be pronounced at once. On the other hand, the officer holding the trial may clear the court to consider the evidence, or to discuss any point with the officers or junior commissioned officers attending the trial, or may adjourn the court to allow himself time for mature consideration or reference as to any doubtful point.

2. See also Notes to Rule 50 which, with the necessary charges, apply to this rule.

105. Finding.— (1) The finding on every charge upon which the accused is arraigned shall be recorded, and except as mentioned in these rules shall be recorded simply as a finding of "Guilty" or of "Not Guilty" and honourably acquit him of the same.

(2) Where the court is of opinion as regards any charge that the facts proved do not disclose the offence charged or any offence of which he might under the Act legally be found guilty on the charge as laid, the court shall acquit the accused of that charge.

(3) When the court is opinion as regards any charge that the facts found to be proved in evidence differ materially from the facts alleged in the statement of particulars in the charge, but are nevertheless sufficient to prove the offence stated in the charge, and that the difference is not so material as to have prejudiced the accused in his defence, it may, instead of finding of "Not Guilty" record a special finding.

(4) The special finding may find the accused guilty on a charge subject to the statement of exception or variations specified therein.

NOTE

See Notes to Rule 51.

106. Procedure on acquittal.– If the finding on each of the charges in a charges-sheet is "Not Guilty", the court shall date and sign the proceedings, the findings will be announced in open court, and the accused will be released in respect of those charges.

107. Procedure on finding of "Guilty".– (1) If the finding on any charge is "Guilty", the court may record of its own knowledge, or take evidence of and record the general character, age, service, rank, and any recognised acts of gallantry or distinguished conduct of the accused, and previous convictions of he accused either by a court-martial, or a criminal court, any previous punishments awarded to him by an officer exercising authority under section 23, the length of time he has been in arrest or in confinement on any previous sentence, and any military decorator, or military reward, of which he may be in possession or to which he is entitled .

(2) If the court does not record the matters mentioned in sub-rule (1) of its own knowledge, evidence on these matters may be taken in the manner directed in Rule 53 for similar evidence at general and district courts-martial.

NOTE

See Notes to Rule 53.

108. Sentence.– The court shall award one sentence in respect of all the offence of which the accused is found guilty.

NOTES

1. See Notes to Rule 54.

2. Sentence, unless for one year exactly, should, if for one month or upwards, be recorded in months. Sentence consisting partly of months and partly of days should be recorded in months and days. A month means a calendar a month.

3. See first para of Note 5 to Army Act section 136.

4. For the date a sentence of dismissal awarded by a court-martial takes effect, see rule 155. Sentence of imprisonment combined with dismissal should, as a rule be carried out by confinement in a civil prison.

5. As to suspension of sentence of imprisonment, see army act Section. 144.

6. As to the form of proceedings, see page 484.

109. Singing of proceedings.– The court shall date and sign the sentence and such signature shall authenticate the whole of the proceedings.

NOTE

It is essential that the date of the sentence should be inserted, as under Army Act section 135 a term of imprisonment is reckoned to commence on the day on which the sentence and proceedings were signed by the court.

110. Charges in different charges-sheets.– When the charges at trial by summary court-martial are contained in different charge-sheets, the procedure laid down for general and district court-martial when trying charges contained in different charge-sheets shall, so far as may be applicable, be followed.

NOTE

As to insertion of charges in separate charge-sheets and procedure, see Rule 66 and Notes.

111. Clearing the court.– (1) The officer holding the trial may clear the court to consider the evidence or to consult with the officers attending the trial.

(2) Except as provided in sub-rule (1), all the proceedings, including the view of any place, shall be in open court, and in the presence of the accused.

NOTE

See Notes to Rule 67.

112. Adjournment.– A summary court-martial may adjourn from time to time, and from place to place, and may, when necessary, view any place.

NOTE

See generally Notes for Rule 68.

113. Friend of accused.– At a trial by summary court-martial an accused person may have a person to assist him during the trial, whether a legal adviser or any other person. A person so assisting him may advise him on all points and suggest the questions to be put to witness, but shall not examine or cross-examine witness or address the court.

114. Memorandum to be attached to proceedings.– When a summary court-martial tries without reference, and offence which should not ordinarily be so tried an explanatory memorandum shall be attached to the proceedings.

NOTE

See Army Act Section 99 and Notes. This explanation should invariably be attached. If the officer holding the trial loses sight of the law and tries without reference any of the offence mentioned in that section without considering whether grave reasons for immediate action exist or not, the trial is illegal.

115. Promulgation.– The sentence of a summary court-martial shall be promulgated in the manner usual in the service, at the earliest opportunity after it has been pronounced and shall be carried out without delay after promulgation.

Provided that when the officer holding the trial has less than five years service, the sentence shall not, except on active service be promulgated or carried out until approved by the officer empowered in this behalf under Section 127.

NOTES

1. See generally Notes to Rule 58.

2. The officer to whom the sentence is referred cannot in anyway alter the finding or remit, mitigate, or commute the sentence, but if he considers the sentence too severe he should inform the officer holding the trial of his views and direct him to modify the sentence whose order should be obeyed as a matter of discipline. The original sentence must not be carried out until the case is finally settled.

3. The provisions of this Rule do not affect the date from which the sentence takes effect; see Army Act Section 135 and Rule 155.

116. Review of proceedings.– The proceedings of a summary court-martial shall, immediately on promulgation, be forwarded, through the Deputy Judge Advocate General, Bangladesh Army, to the officer authorized to deal with them under Section 128, who after review shall return them to the accused's corps for preservation in accordance with sub-rule (2) of Rule 129.

NOTE

See Army Act section 128. The proceedings of a summary court-martial will not be set aside on merely technical grounds. The words "merits of the case" in that section, refer to case where the charge disclose no offence, or where the evidence is insufficient to support the charge, or where there is some material irregularity in procedure which, in the opinion of the reviewing authority, has led to injustice. But where the accused is not misled by any defect in the charge or statement of offence and the particulars taken together disclose an offence under the Act and supply the accused with sufficient information of the particulars of the charge which he has to meet, the evidence on which the accused is convicted is given on oath or affirmation and is legally admissible and reasonably sufficient to support the charge, and the accused has not been prejudiced by any irregularity in procedure and has been allowed to call his witnesses and to cross-examination the witnesses against him, the proceedings may legally be upheld, the irregularities calling for no more than a remark for future guidance.

SECTION 4 – GENERAL PROVISIONS

Witnesses and Evidence

117. Calling of prosecutor's witness.– The prosecutor or, in the case of trials by summary court-martial, the court is not bound to call all the witnesses whose evidence is in the summary or abstract of evidence or whom the accused has been informed they intend to call, but they should ordinarily call such of them as the accused desires, in order that he may cross-examine them, and shall, for this reason, so far as practicable, secure the attendance of all such witnesses.

NOTES

1. As to giving the accused the summary or abstract of evidence, see Rule 23 (2).

2. It will be noted that the prosecutor is not required to call any witnesses at the trial who was called by the accused at the taking of the summary of evidence.

3. It is not necessary for the prosecutor to examine at length a witness for the prosecutor called at the request of the accused and tendered for cross-examination by the accused under this rule.

118. Calling of witness whose evidence is not contained in the summary.– If the prosecutor or, in the case of a summary court-martial, the court intends to call a witness whose evidence is not contained in any summary or abstract of evidence given to the accused, notice of intention shall be given to the accused a reasonable time before the witness is called, together with an abstract of his proposed evidence. If such witness is called without such notice or abstract having been given, the court shall, if the accused so desire it, either adjourn after taking the evidence, or allow the cross-examination of such witness to be postponed, and the court shall inform the accused of his right to demand such adjourn or postponement.

NOTE

It will be noted that this rule applies only in the case of witnesses called for the prosecution and not in the case of witnesses called by the accused or by the court under Rule 126 (4).

119. List of witnesses for accused.– The accused shall not be required to give to the prosecutor or court a list of the witnesses whom he intends to call, but it shall rest with the accused alone to secure the attendance of any witness whose evidence is not contained in the summary or abstract and for Whose attendance the accused has not required steps to be taken as provided by sub-rule (1) of Rule 24.

NOTE

A member of the court, the judge-advocate and prosecutor are competent witness for the defence, and may be sworn at any stage of the proceedings, but an officer should not be detailed to serve as a member of, or act as prosecutor or judge-advocate at a court-martial if his evidence is likely to be required. A witness for the prosecution can not serve as a member of the court or act as judge-advocate at the trial of the case in which he is a witness [See Rule 30 (2) and 88].

120. Procuring attendance of witness.– (1) In the case of a trial by general or district court-martial the commanding officer of the accused, the convening officer, or, after the assembly of the court, the president, shall take proper steps to procure the attendance of the witnesses whom the prosecutor or accused desires to call, and whose attendance can reasonably be procured, but the person requiring the attendance of a witness may be required to undertake to defray the cost, if any, of his attendance.

(2) The court shall, in the case of a trial by summary court-martial, take proper steps to procure the attendance of witnesses whom the accused desires to call and whose attendance can reasonable be procured but the accused may be required to undertake to defray the cost, if any, of their attendance.

NOTES

1. See Army Act section 109 as to summoning witness.

Witnesses who are subject to military law should be ordered by the procedure authority to attend without the issue of a formal summon.

2. An accused person can have no technical ground of complaint if the attendance of a witness from distant parts cannot be procured, but it is the duty of the commanding or, convening officer, or after the assembly of the court, the president or, in the case of trial by summary court-martial, the court to take all reasonable steps to secure the attendance of any witness whom there is any ground to suppose to be material to the defence, and Rule 121 makes provision for the adjournment of the court if the attendance of such witness is essential.

3. (i) The power to require the person calling a witness to undertake to defray the cost of his attendance is give in order to prevent an unreasonable demand by prosecutors or accused persons for the attendance of witnesses. In the case of the prosecutor, the cost will usually be defrayed as part of the expenses of the prosecution. In the case of the accused, this provision should not be allowed to interfere with the calling of a witness who appears to be material. The absence of material witness might afterwards be held to invalidate the proceedings of court-martial, even though, if the witness had been called, the court would probably have arrived at the same decision in as much as it is impossible to tell what effect the evidence of such a witness might have had upon the court.

(ii) As to expenses of civilian witnesses, see passage Regulations, Rule 258.

4. If a civilian witness has in his possession or under his control any books, accounts, letters, returns, papers or other documents which are considered necessary for the trial, care must be taken in summoning him to require him to bring them with him. The witness would be justified in declining to acknowledge a mere oral request.

5. For action where a civilian witness, who has been duly summoned and whose expenses have been tendered, makes default attending [See Rule 133 (3) and Notes]. As to privilege from arrest under civil or revenue process of a witness summoned to attend before a court-martial, see Army Act Section 169.

121. Procedure when essential witness is absent.– If such proper steps as are required by the preceding Rule have not been taken as to any witness, or if any witness whose attendance could not be reasonably procured before the assembly of the court is essential to the prosecution or defence, the court shall–

(a) Issue a commission for the examination of such witness; or
[Sub-rule for clause (a) vide Amendment No. 19/III/65].

(b) if it is general or district court-martial, adjourn and report the circumstances to the convening officer; or

(c) if it is a summary court-martial, adjourn to enable the witness to attend, or adopt such other course as appears as appears to the officer holding the trial best calculated to do justice.

NOTES

1. As to power of a court-martial to issue a commission for the examination of a witness and the considerations which should guide the court in this matter, see Section 110 and Notes thereto. [Substituted for note 1 Amendment No. 4/IV/65]

2. At a summary court-martial may, for instance, acquit the accused forthwith, or order his release without prejudice to his subsequent trial should the witness become available.

122. Withdrawal of witnesses from court.– During the trial a witness, other than the prosecutor, shall not, except by special leave of

the court, be permitted to be present in court while not under examination and if, while he is under examination, a discussion arises as to the allowance of a question, or the sufficiency of his answers, or otherwise as to his evidence, he may be directed to withdraw.

NOTES

1. It is customary to have all witnesses present in court while the members of the court are being sworn, but they should withdraw before, the arraignment. This does not, of course, apply to the prosecutor if a witness.

2. Permission to remain in court, while not under examination, may reasonably be given, e.g., to expert or professional witnesses, provided that no objection is made by or on behalf of the accused.

3. If any such discussion arises as is mentioned in the rule, the court should generally order the witness to withdraw, as his answer might be influenced by the discussion.

123. Oath or affirmation to be administered to witnesses.– An oath or affirmation shall be administered to every witness, before he gives his evidence, by a member of the court, the judge-advocate, if any, or some other person empowered by the court in one of the following forms or in such other form to the same purport as the court ascertains to be according to the religion or otherwise binding on the conscience of the witness.

FORM OF OATH

"I ..... swear by Almighty God that what I shall state shall be the truth, the whole truth and nothing but the truth".

FORM OF AFFIRMATION

"I ..... solemnly affirm, in the presence of Almighty God, that what I shall state shall be the truth, the whole truth and nothing but the truth.

NOTES

1. For the manner of administering and taking oaths and affirmations, see Notes to Rules 36 and 37.

The following is a translation into Urdu of the above affirmation:–

Main....., Khuda-i-Taala ko hazir-o-nazir jankar (permeshwar ko jan mankar) iman se (dharam se) iqrar karta 9vachan deta) hun, kih jo juchh jalhunga sach kahunga.

2. As to power of dealing with recalcitrant witnesses, see Army Act Section 49 (in the case of person subject to the Act) and Rule 133 (in other cases). Any person subject to the Act who wilfully refuses to attend as a witness when summoned should be charged with disobeying a lawful command (See Note 4 to Army Act Section 49).

124. Mode of question witness.– (1) Every question shall be put to a witness orally by the officer holding the trial, by the prosecutor, by or on behalf of the accused, or by the judge-advocate, and the witnesses will forthwith reply, unless an objection is made by the court, judge-advocate, prosecutor or accused, in which case he shall not reply until the objection is disposed of. The witness shall address his reply to the court.

(2) The evidence of a witness as taken down shall be read to him after he has given all his evidence and before he leaves the court, and shall, if necessary, be corrected.

(3) If the witness denies the corrections of any part of the evidence when the same is read over to him, the court may instead of correcting the evidence, record the objection made to it by the witness.

(4) If the evidence is not given in English and the witness does not understand that language the evidence as recorded shall be interpreted to him in the language which it was given, or in a language which he understands.

(5) Where evidence is recorded by shorthand writer, it shall not be necessary to read the evidence of the witness to him under sub-rule (2) or (4), if, in the opinion of the court and the judge-advocate, if any, such opinion to be recorded in the proceedings, it is unnecessary so to do, but nevertheless if any witnesses so desires, his evidence, shall be read to him.

NOTES

1. Sub-rule (1). (i) The court and judge- advocate must carefully listen to the actual questions put by the prosecutor and by or on behalf of the accused, as well as to the form in which such questions are put, and they must intervene before the witness replies, if, in their opinion, any

question is improper or "leading". If either the prosecutor or the accused, or the officer or counsel representing him, considers that a particular about to be put by him may be objected to, he should submit the property of the question to the decision of the court, having first informed the witness that he must not make his reply until the decision of the court has been given.

(ii) Sée Part I, Chapter V, Paras 86 et seq.

(iii) A witness is first examined by the person calling him, them cross-examined by the opposite party, after which he may be re-examined by the party by the calling him on matters raised by the cross-examination. The court should, if requested by either party, allow the cross-examination of a witness by that party to be postponed, especially if his evidence comes as a surprise; see also Rule 118 where a witness is called whose evidence is not contained in the summary or abstract of evidence. A request for postponement should not be acceded to, if, in the opinion of the court, it is made for purpose of obstruction.

2. Sub-rule (2). (i) When the evidence of a witness has been read to him, he should be asked whether it is correct. Any material alteration or explanation should be inserted at the end of the record of his evidence, and not by way of interlunation or erasure.

(ii) If the witness makes any explanation, the prosecutor and accused or counsel or defending officer may respectively examine him respecting the same.

125. Questions to witness by court or Judge Advocate.– (1) The president, judge-advocate, if any, or the officer holding the trial and, with the permission of the court, any member of the court may address a question to a witness while such witness is giving his original evidence and before he withdraws.

(2) Upon any such question being answered, the president, the judge-advocate, if any, or the officer holding the trial, shall also put to the witness any question relative to that answer which the prosecutor or the accused or counsel or the defending officer may request him to put and which the court deem reasonable.

NOTES

1. Sub-rule (1). (i) It will be noted that this rule applies to the original evidence of a witness and not to any evidence given by him on being recalled. As to recalled with witnesses, see Rule 126.

(ii) It is desirable that any question should be put after the conclusion of the examination, cross-examination and re-examination (if any) of the witness; but questions may properly be put to a witness during his examination in order that his evidence may be clearly recorded.

2. ***Sub-rule*** **(2).** The president, judge-advocate or officer holding the trial should always, under the provisions of this rule, put any question which they are requested by the prosecutor, or by or on behalf of the accused, to put and which does not seem unreasonable. It is to be noted that members of the court other than the president are not empowered, in the circumstances mentioned in this sub-rule, to put questions.

126. Recalling witnesses and calling of witnesses in reply.– (1) At the request of the prosecutor or of the accused, a witnesses may, by leave of the court, be recalled at any time before the closing address of or on behalf of the accused, or at a summary court-martial at any time before the finding of the court, for the purpose of having any question put to him through the president, the judge-advocate, if any, or the officer holding the trial.

(2) The court may, if they consider it expedient in the interests of justice so to do, allow a witness to be called or recalled by the prosecutor, before the closing address of or on behalf of the accused, for the purpose of rebutting any material statement made by a witness for the defence or for the purpose of giving evidence on any new matter which the prosecutor could not reasonable have foreseen.

(3) Where the accused has called witnesses to character, the prosecutor before the closing address of or on behalf of the accused, may call or recall witnesses for the purpose of proving a previous conviction or entries in the defaulters' book against the accused.

(4) The court may call or recall any witness at any time before the finding, if they consider that it is necessary for the ends of justice.

NOTES

1. ***Sub-rule*** **(1).** The President, judge-advocate or officer holding the trial should also put to a witness recalled under the provisions of this sub-rule any further questions which they consider necessary in view of the answer given.

2. Sub-rule (2) and (3) of this rule are inapplicable to summary courts-martial where there is no prosecutor, sub-rule (4) will, however, admit of the officer holding the trial calling or re-calling witnesses in similar circumstances when the ends of justice require it. See also Rule 103.

3. Sub-rule (4). The power given under this provision of calling or recalling a witness should only be exercised in exceptional circumstances, e.g., where it appears for the first time from the evidence given at the trial that a person, who has not been called either by the prosecutor or on behalf of the defence was present at, and probable witnessed, the occurrence which forms the subject of the charge which is being tried. Witnesses should not be called or recalled under this provision in order to supplement any negligent conduct on the part of the prosecution. If witness are called or recalled under this provision, the prosecutor and the accused should be invited to put or suggest any relevant questions which in their opinion should be put by the court. If new evidence is given after the closing address by or on behalf of the accused, the court should permit the accused or his representative to make a further address upon the new matter which has been elicited (if any).

Addresses

127. Address may be in writing.– All addresses by the prosecutor and the accused and the summing-up of the judge-advocate may either be given orally or be in writing, and, if in writing, shall be read in open court.

NOTE

Nevertheless the summing-up of the judge-advocate should invariably be in writing.

Insanity

128. Provision as to finding insanity.– Where the court finds either that the accused is of unsound mind and consequently incapable of making his defence or that he committed the act alleged but was by reason of unsoundness of mind incapable of knowing the nature of the act or that was wrong or contrary to law, the president or other officer holding the trial shall date and sign the finding; and the proceedings upon being signed by the judge-advocate, if any, shall be at once transmitted to the confirming officer, or the prescribed officer, as the case may be, to whom the case in reported under sub-section (1) of Section 130.

NOTES

1. See Section 130 and Notes.

2. For form of finding, see infra.

3. For “prescribed officer”, see rule 169(1).

Preservation of Proceedings

129. Preservation of proceedings.– (1) The proceedings of a court martial, other than a summary court martial, shall, after promulgation, be forwarded, as circumstances require, to the office of the Judge Advocate General, Bangladesh Army, and there preserved for not less, in the case of a general court martial, than seven years, and in the case of any other court martial, than three years.

(2) The proceedings of a summary court martial shall be preserved for not less than three years, with the records of the corps to which the accused belonged.

130. Right of person tried to copy of proceedings.– Every person tried by court martial shall be entitled on demand, at any time after the confirmation of the finding and sentence, when such confirmation is required, and before the proceedings are destroyed, to obtain from the officer or person having the custody of the proceedings, a copy thereof including the proceedings on revision, if any, upon payment for the same of a sum not exceeding fifty paisa for the first two hundred words, and half that rate for each subsequent two hundred words, or part thereof.

131. Loss of proceedings.– (1) If, before confirmation, the original proceedings of a court martial, which require confirmation, or any part thereof, are lost, a copy thereof, if any, certified by the president of, or the judge-advocate at, the court martial may be accepted in lieu of the original.

(2) If there is no such copy, and sufficient evidence of the charge, finding, sentence and transactions of the court can be procured, that evidence may, with the assent of the accused, be accepted, in lieu of the original proceedings, or part thereof lost.

(3) In any case falling under sub-rule (1) or (2), the finding and sentence may be confirmed, and shall be as valid as if the original proceedings, or part thereof, had not been lost.

(4) If the accused refuses the assent referred to in sub-rule (2), he may be tried again, and the finding and sentence of the previous court of which the proceedings have been lost shall be null.

(5) If, after confirmation or in any case where confirmation is not required, the original proceedings of a court martial or any part thereof, are lost, and there is sufficient evidence of the charge, finding, sentence,

and transactions of the court and of the confirmation, if required, of the finding and sentence, that evidence shall be a valid and sufficient record of the trial for all purposes.

NOTES

1. ***Sub-rule* (1).** (i) Confirmation is not complete until finding and sentence have been promulgated; *See* Rule 58.

(ii) As to annexure to the proceedings of original documents, *see* Note 2 to Rule 56.

2. ***Sub-rule* (2).** (i) The evidence may be obtained by the president or some member of the court writing out from memory the substance of the charge, finding, sentence and transactions of the court, which should be authenticated by the signature of the members. A copy of the charge, however, should always be procured if possible.

(ii) As soon as it is known that the proceedings have been lost, steps should be taken to obtain and preserve the best evidence available.

Irregular procedure when no injustice is done

132. Validity of irregular procedure in certain cases.– Whenever it appears that a court martial had jurisdiction to try any person and made a finding and that there is legal evidence or a plea of guilty to justify such finding, such finding and any sentence which the court martial had jurisdiction to pass thereon may, if confirmation is necessary, be confirmed, and shall, if so confirmed, and in all cases where confirmation is not necessary, be valid, notwithstanding any deviation from these rules, or notwithstanding that the charge-sheet has not been signed by the commanding officer or the convening officer, provided that the charges have, in fact, before trial been approved by the commanding officer and the convening officer, or notwithstanding any defect or objection technical or other, unless it appears that any injustice has been done to the offender, and where any finding and sentence are otherwise valid they shall not be invalid by reason only of a failure to administer an oath or affirmation to the interpreter or shorthand writer; but nothing in this rule shall relieve an officer from any responsibility for any wilful or negligent disregard of any of these rules.

NOTES

1. The rule is intended to enable proceedings of a court martial to be validly confirmed although there may be a technical objection to the charge or charges. For example, where the charge

is bad for duplicity and it is obvious that no injustice was done because the accused pleaded guilty and never took objections to the charge, the proceedings can be validly confirmed notwithstanding that defect. But before acting upon this rule the confirming officer must be satisfied that the accused has not suffered any injustice through any deviation from the rules, or through any defect or objection. Whether or not a deviation, etc., is of a substantial kind will often depend upon the circumstances. The court should not allow any technicality to interfere with the accused in the making of this defence.

2. The confirming officer should always direct the attention of all officers concerned to deviations and defects which have been observed and for which they are responsible.

3. If, after confirmation, the charges are declared to be invalid, the trial most be treated as null, the conviction *set aside*, the person convicted relieved of all consequences of his trial and the record of the conviction erased.

As to the substitution of valid finding and sentence for invalid finding and sentence, *see* Army Act section 129 and Notes thereto.

4. As to review of summary courts-martial, s*ee* Army Act Section 128 and Note to Rule 116.

Offences of witnesses and others

133. Offences of witnesses and others.– (1) When any court martial is of opinion that a person subject to the Act has, when duly required to appear as a witness before it, intentionally and without reasonable cause, omitted to do so, or has been guilty of an offence specified in Section 49 or Section 50 the court may bring his conduct to the notice of the proper military authority, and may also order him to be placed in military custody with a view to his punishment by an officer exercising authority under Section 23 or his trial by court martial.

(2) When any court martial is of opinion that a person subject to the Army Act, the Navy Ordinance 1961 (XXXV of 1961), or the Air Force Act, 1953 (VI of 1953), [*Substituted vide Amdt. No* 23/1/65] has, when duly summoned to attend as a witness before it, intentionally and without reasonable cause omitted so to attend, or has done any act before it which would, if done by a person subject to the Act, constitute an offence under Section 49 or 50, the court may bring his conduct to the notice of the proper military, naval or air force authority.

(3) When a court martial is of the opinion that a person who is not subject to military, naval or air force law has, when duly summoned to attend as a witness before it, intentionally and without reasonable cause, omitted so to attend, the officer who summoned the witness to appear or the president or the officer holding the court, as the case may be, may forward a written complaint to the nearest magistrate of the first class having jurisdiction.

(4) When a court martial is of opinion that a person who is not subject to military, naval or air force law has done any act before it which would, if done by a person subject to the Act constitute an offence under section 49, the court after making any preliminary inquiry which may be necessary, may send the case to the nearest magistrate of the first class having jurisdiction for inquiry or trial in accordance with Section 476 of the Code of Criminal Procedure, 1898 (V of 1898).

NOTES

1. *Sub-rule* (1). (i) Section 49 (a) of the Army Act does not provide for the punishment of a person subject to the Act, who fails to attend when required to appear as witness before a court martial. A wilful omission on the part of such person to attend will be punishable as disobedience of lawful command.

(ii) When a person subject to the Army Act fails to attend as witness, when summoned, or commits an offence under Section 49, a court martial will act wisely in accepting an apology sufficient to vindicate their dignity instead of resorting to the more severe measures here indicated.

(iii) A court martial should exercise the greatest discretion in instituting proceedings or taking measures which may result in the institution of proceedings against a person subject to the Army act for the offence specified in Section 50. It is not enough that the court martial has, by its verdict shown that it did not believe the witness, for it may have thought him to be mistaken or, on the balance of probabilities, it may have accepted another version of what took place. Before instituting proceedings against a witness, the court should be satisfied that there are good grounds for believing that the witness has wilfully given false evidence on some point which is material to the issue, and that his conviction is likely.

When it is likely that a witness will be prosecuted for giving false evidence the exact words used, in the language in which the evidence was given should be recorded [*See* Rule 78(2) and Note].

(iv) In the case of a person subject to the Act, the court martial may in its discretion, either merely report his conduct to the proper military authority, or may in addition order him into military custody pending disposal of his case. If such a person is ordered into custody, this fact should be mentioned in the report and it then becomes the duty of the officer receiving the report to see that the case is promptly investigated in accordance with Section 74 of the Act. The report should be in sufficient detail to place the officer in full possession of the facts and enable him to exercise his discretion whether to order trial by court martial if he is competent to do so, or to direct summary disposal of the case, or to refer it to superior authority.

(v) As to "proper military authority" *see* Rule 2 (iii). This will depend upon the status of the offender, and the authority under whose orders the court has been convened.

In the case of a summary court martial, the officer holding the trial would ordinarily report to the officer commanding the brigade or line of communication sub-area, and a general or district court martial would report to the convening officer, observing in each case the usual channel of correspondence.

(vi) Members of a court martial reporting an offender under sub-rule (1) are individually disqualified [Rule 30(2) (iii) and (v)] from trying him on the charges arising out of their report, and the officer to whom the case is finally referred if he decides on trial, must convene a new court for the purpose. For similar reasons it is undesirable that a commanding officer should try by summary court martial a person under his command who has offended against his authority when holding a summary court martial or when sitting as a member of a general, field general or district court martial. He could, save in grave emergency, only do so with the sanction of superior authority which should, therefore, as rule, be withheld. *See* Proviso (b) to Army Act Section 99.

2. ***Sub-rule* (2).** (i) This sub-rule enables the court merely to report offences of contempt or of giving false evidence committed by persons subject to Bangladesh Military, Air Force or Naval Law to the proper authority.

(ii) *See* Notes 1 (ii) and 1 (iii) above, which apply generally to this sub-rule.

3. ***Sub-rule* (3).** *See,* generally, Note 1 (ii) above, which should, as far as possible, be followed in the case of civilian offenders as well.

4. *Sub-rules* (3) *and* (4). (i) These sub-rules deal with civilian offenders sections 195 and 476 of the Code of Criminal Procedure provide for the institution of proceedings for certain offences against the Penal Code on the written complaint of the public servant concerned or of the court before which the offence complained of was committed. A court martial is a “criminal court” for the purposes of the above sections and is also a “court of justice” for the purposes of the Penal Code. See Code of Criminal Procedure Section 6 and the Penal code section 20. The effect of this is that failure to attend when summoned as a witness and all acts and omissions which are punishable under Army Act Sections 49 (a) and (b), when committed by persons subject to the Act, are, when committed by civilians offences under Sections 174, 175, 178, or 179 of the Penal Code for which the officer who summoned the witness to attend or the officer conducting the proceedings of the court martial, as the case may be, can institute proceedings, under Section 195 (1) (a) of the Code of Criminal Procedure and that all acts and omissions which are punishable under Section 49 (c) or Section 50, when committed by persons subject to the act or when committed by civilians, offences under Sections 193, 194 and 228 of the Penal Code for which the aggrieved court martial can institute proceedings under Section 476 of the Code Criminal Procedure. Before instituting proceedings, the officer [in the case of failure to attend or of offences corresponding to those specified in clauses (a) and (b) of Section 49] or a court martial [in the case of offences corresponding to these specified in clause (c) of Section 49 and section 50] must *Prima facie* be satisfied that a definite offence has been committed by some definite person against whom proceedings in a criminal court are to be taken. It is not sufficient that circumstances may raise some sort of a suspicion against someone. In such a case the officer, or the court martial as the case may be, should either allow the matter to drop, or should make or hold a preliminary inquiry to see who is to be prosecuted and for what. A court's decision to institute proceedings must be a judicial one, *i.e.,* either based on what the court has itself heard or seen and considered, or on the evidence taken before it and considered. Similarly, an officer's decision to institute proceedings must be a reasonable one, based on sufficient grounds.

(ii) The report to the magistrate may be in the form of a letter, but it should be sufficiently detailed to put him in full possession of all the materials on which the decision to prosecute was based. It should set forth the name and the identity of the person accused and of the witnesses who can substantiate the accusation. A narrative of the events complained of should be included in the report and a record of evidence taken in the preliminary inquiry (if any) attached.

(iii) If a case arises in which it appears necessary to resort to the provisions of Section 476 of the Code of Criminal Procedure outside Bangladesh, the officer or the court martial as the case may be should in the first instance ascertain whether the civilian concerned is amenable to the laws of Bangladesh. Pending a decision on this point the court martial should content itself with excluding him from the room in which its proceedings are held, if such a course appears to be necessary.

SECTION 5 – FIELD GENERAL COURTS MARTIAL

134. General.– The provisions of the foregoing rules in this Chapter shall not, save as hereinafter provided, apply to field general courts martial, which shall be subject to the following rules.

135. Convening the court and record of proceedings.– (1) A field general court martial may be convened and the proceedings of the court recorded in accordance with the form in the Third Appendix to these rules, with such variations as the circumstances of each case may require.

(2) The officer convening the court shall appoint or detail the officers to form the court, and may also detail or appoint such officers as waiting members as he thinks expedient. Such officers should have held commissions for not less than one year, but, if any officers are available who have held commissions for not less than three years, they should be appointed in preference to officers of less service.

(3) The provost marshal, an assistant provost marshal, or an officer who is the prosecutor or a witness for the prosecution shall not be appointed a member of the court, but, subject to sub-rule (2), any other available officer may be appointed to sit.

NOTES

1. In the convening order the members and waiting members (if any) may be appointed by name, or only their ranks and units may be mentioned. In the latter event, the ranks, names, etc., of the members of the court as constituted will be recorded in the proceedings.

2. If necessary, an officer of less than one year's standing may legally sit as a member. The requirement, therefore, these members of the court should have held commissions for not less than one year does not justify a court in substituting a waiting member for a member with less than a year's commissioned service who has been detailed or appointed by the convening officer.

3. The convening order must be signed personally by the convening officer.

136. Charge.– The statement of an offence may be made briefly in any language sufficient to describe or disclose an offence under the Act.

137. Trial of several accused persons.– A field general court martial may be sworn at the same time to try any number of accused persons then present before it, but except as provided by Rule 25 the trial of each accused person will be separate.

138. Challenges.– (1) The names of the president and members of the court shall be read over to the accused who shall thereupon be asked if he objects to be tried by any one of those officers.

(2) Any objection will be decided as provided in Section 104 and Rules 35 and 75, the vacancies being filled by the waiting members (if any) or by fresh members being appointed by the convening officer.

139. Swearing or affirming the court.– (1) As soon as the court is constituted with the proper number of officers who are not objected to, or the objections to whom have been overruled, an oath or affirmation shall be administered to every member in such of the forms laid down in Rule 36 as shall be appropriate, or in such other form to the same purport as the court ascertain to be according to his religion or otherwise binding on his conscience.

(2) If a judge advocate or an interpreter has been appointed, the appropriate oath or affirmation, as laid down in Rule 37 shall be administered to him.

(3) All oaths or affirmations shall be administered by a member of the court or by some persons empowered by the court to do so.

140. Arraignment.– When the court are sworn or affirmed, the president shall state to the accused then to be tried, the offence with which he is charged with, if necessary, an explanation giving him full information of the act or omission with which he is charged and shall ask the accused whether he is guilty or not guilty of the offence.

NOTES

1. As to objection by accused to charge (*See* Rule 39) which by Rule 148 is applied, so far as practicable, to a field general court martial. As to responsibility of president, *see* Rule 63.

2. As to general plea of "Guilty" or "Not Guilty", *see* Rule 42 and Notes; as to procedure after plea of "Guilty", *see* Rule 44. Both these rules are, by Rule 148, applied, so far as practicable, to a field general court martial.

3. A plea of "Guilty" will not be accepted by the court if the charge or charges upon which an accused is arraigned render him liable, on conviction, to be sentenced, to death. If such plea is offered, the court will enter a plea of "Not Guilty" and proceed with the trial accordingly. *See* Rule 42(4) which in all cases will be applied to a field general court martial.

141. Plea to jurisdiction.– If a special plea to the general jurisdiction is offered by the accused, and is considered by the court to be established, the court shall report the same to the convening officer.

NOTE

See Rule 41 which by Rule 148 is applied, so far as practicable, to a field general court martial, and Notes.

142. Evidence.– (1) The witnesses for the prosecution will be called and the accused shall be allowed to cross-examine them and to call any available witnesses for his defence.

(2) An oath or affirmation as laid down in Rule 123 shall be administered to every witness, before he gives his evidence, by one of the persons specified in that rule.

NOTE

***Sub-rule* (1).** Although by Rule 148 only a limited number of the foregoing rules are applied, so far as practicable, to field general courts-martial, the procedure to be adopted at a field general court martial should be the same as at a general or district court martial.

143. Defence.– The accused shall be asked what he has to say in his defence, and shall be allowed to make his defence. He may be allowed to have any person to assist him during the trial, whether a legal adviser or any other person.

NOTE

1. *See* Note to Rule 142.

As to the right of the accused to prepare his defence, *see* rule 23, which by rule 148 is applied, so far as practicable, to a field general court martial.

2. S*ee* Rules 81 to 87. If the person assisting is an officer subject to military law or a counsel [*See* Rule 87(2)] he may be allowed full privileges of address, etc.

144. Record of the evidence and defence.– The president of the court shall take down or cause to be taken down a brief record of the evidence of the witnesses at the trial and of the defence of the accused and the record so taken down shall be attached to the proceedings:

Provided that, if it appears to the convening officer that military exigencies or other circumstances prevent compliance with this rule, he may direct that the trial be carried on without any such brief record being taken down.

If the accused pleads "Guilty", the summary or abstract of evidence, if any, may be read and attached to the proceedings, and it shall not be necessary for the court to hear witnesses for the prosecution, respecting matters contained in the summary or abstract of evidence so read.

NOTE

It would hardly ever be necessary for the convening officer to give such a direction as is mentioned in the proviso. If he does so he must record it in his order convening the court and state shortly the exigencies or other circumstances which appear to him to prevent compliance with this rule.

145. Finding and sentence.– The court shall then be closed to consider its finding. If the finding on any charge is "guilty" the court may receive any evidence as to previous convictions and character which is available. The court shall then deliberate in closed court as to its sentence.

NOTE

As to voting of members and for votes required before a sentence of death can be passed, *see* Army Act Section 105 and proviso to sub-section (1) of that section.

146. Proceedings after finding or sentence.– Proceedings shall be transmitted without delay to the confirming officer and the sentence, if any, shall be carried out as soon as possible after his confirmation has been received.

NOTE

As to confirmation of finding and sentence of field general court martial, *see* Army Act Section 123.

147. Adjournment.– (1) A field general court martial may adjourn from time to time and place to place and may when necessary view any place.

(2) The proceedings shall be held in open court, in the presence of the accused, except on any deliberation among the members when the court may be closed.

148. Application of rules.– The foregoing Rules–13 (Disposal of charge against a person other than officer or adjournment for taking down the summary of evidence, 14 (Remand of accused), 15 (Procedure on charge against an officer), 23 (Rights of accused to prepare defence), 24 (Information of charges and delivery of list of officers of court to accused), 26 (Suspension on rules on the ground of military exigencies or the necessities of discipline), 39 (Objection by accused to charge), 41 (Special plea to the jurisdiction), 42 (General plea of "Guilty" or "Not Guilty"), 43 (Plea in bar), 44 (Procedure after plea of "Guilty" or "Not Guilty"), 50 (Consideration of finding), 51 (Form and record of finding), 53 (Procedure on conviction), 58 (Promulgation), 59 (Mitigation of sentence on partial confirmation), 60 (Confirmation notwithstanding informality in, or excess of punishment), 63 (Responsibility of President), 64 (Power of court over address of prosecutor and accused), 80 (Transmission of proceedings after finding), 81 (defending officer and friend of accused), 88 and 89 (Judge Advocate), 128 (Provision as to finding of insanity), 129 (Preservation of proceedings), 130 (Right of persons tried to copies of proceedings), 131 (Loss of Proceedings), 132 (Validity of irregular procedure in certain cases), shall, so far as applicable, apply as if a field general court martial were a district court martial.

NOTE

See also Rules 130, 138 (2), 139 and 142 (2).

149. Evidence of opinion of convening officer.– Any statement in an order convening a field general court martial as to the opinion of the convening officer shall be conclusive evidence of that opinion, but this rule shall not prejudice the proof at any time of any such opinion when not so stated.

SECTION 6 –EXECUTIONS OF SENTENCES

150. Custody of person under sentence of death.– When a person is sentenced by a court martial to suffer death and such sentence has been confirmed, the commanding officer of such person may, if he thinks fit, by a warrant in one of the forms in the Fourth Appendix to these rules commit the said person for safe custody in a civil prison pending the carrying out of the sentence.

151. Carrying out of Sentences of death.– Upon the receipt of an order to carry out a sentence of death, the officer to whom the order is issued shall:

(i) if the person sentenced has been committed to a civil prison under Rule 150, obtain custody of his person by issuing a warrant in one of the forms in the Fourth Appendix to these rules;

(ii) inform the person sentenced as soon as possible that the sentence has been confirmed, and of the date on which the sentence will be carried out;

(iii) proceed to carry out the sentence as required by the order and in accordance with any general or special instructions which may from time to time be given by or under the authority of the Chief of Army staff.

152. Procedure on commutation of sentence of death.– If a sentence of death is commuted under the Act or if the person sentenced to death is pardoned, and

(i) if he has been committed to a civil prison under a warrant issued under Rule 150, a further warrant in one of the forms given in the Fourth Appendix to these rules shall be issued by the commanding officer of such person;

(ii) if he has been detained in military custody any warrant which may be necessary to give effect to the sentence so commuted, shall be issued in one of the forms given in the Fourth Appendix to these rules.

153. Committal Warrants.– A warrant for the committal of a person sentenced by a court martial to a prison under the provisions of Section 136 shall be in one of the Forms given in the Fourth Appendix to these

rules. Such warrant shall be signed by the commanding officer of the prisoner or by the higher authority or his staff officer.

154. Warrants under Section 141.– Any warrant issued under the provisions of Section 141 shall be in one of the forms given in the Fourth Appendix to these rules, and shall be signed by the officer making the order in pursuance of which such warrant is issued, or by his staff officer.

155. Sentence of dismissal.– A sentence of dismissal awarded by a court martial shall take effect from the date on which the sentence is promulgated to the person under sentence, or except in the case of an officer, from such subsequent date as may be specified by the commanding officer at the time of such promulgation:

Provided that when dismissal is combined with imprisonment which is carried out in military custody or with field punishment, the dismissal shall not take effect until the date on which the prisoner is duly released from military custody, or until the completion of the field punishment, unless such field punishment is remitted by competent authority:

Provided further that when dismissal is combined with transportation imprisonment which is carried out in a civil Prison, the dismissal shall not take effect until the date on which the prisoner is received into a civil prison.

NOTES

1. Under Army Act Section 19 and rule 10 a certificate of termination of service must be furnished to every enrolled person and warrant officer or junior commissioned officer, who is dismissed from the service. An officer, not being an enrolled person is not furnished with a discharge certificate.

2. A sentence of dismissal awarded by a court martial to an officer takes effect from the date of promulgation, or, when combined with transportation or with imprisonment, from the date on which the prisoner is received into a civil prison. The sentence is notified in the official Gazette.

3. It may sometimes be expedient for a commanding officer, in order to keep a person sentenced to dismissal (other than an officer) subject to military law for a short period, to specify a date subsequent to the date of promulgation. If he considers such action desirable he must do

so at the time of the promulgation of the sentence to the person and he should record the date he specifies in the minute of promulgation. When a commanding officer exercises his opinion of specifying a subsequent date, the date specified must be strictly limited by the requirements of the case. For instance, in the case of a person sentenced out of Bangladesh to dismissal alone, or to dismissal combined with imprisonment which is carried out locally either in military custody or for special reasons in local civil custody (Section 137 of the Act), the subsequent date might be "date of disembarkation" or "date of embarkation" according to whether the intention is to dispatch the person to Bangladesh on a transport or by a private vessel. It is obviously desirable to keep the person subject to military discipline while travelling on a transport or until he can be dispatched to Bangladesh. If the person is to be sent by a transport the commanding officer can enter in the certificate of termination of service "date of disembarkation" as the date from which the dismissal takes effect.

4. The effect of the second proviso is that a prisoner under sentence of dismissal combined with imprisonment which is carried out in a civil prison or with transportation remains subject to the Act until he is received into a civil prison. The commanding Officer should enter on the discharge certificate the date of admission into a civil prison as the date from which the dismissal takes effect, or, in the case of an officer, report the date of admission to the proper military authority.

SECTION 7 – FIELD PUNISHMENT

156. Field Punishment.– (1) A court martial or an officer exercising authority under Section 23 may, for the purpose of awarding field punishment under the Act, sentence the offender for a period not exceeding, in the case of a court martial, three months and in the case of such and officer, twenty-eight days, to one of the following punishments, namely:–

(a) Field punishment No. 1.

(b) Field punishment No. 2.

(2) Where an offender is sentenced to field punishment No. 1, he may, during the continuance of his sentence, unless the court martial or the officer, as the case may be, otherwise directs, be punished as follows:–

(a) he may be kept in fetters or handcuffs or both fetters and handcuffs, and may be secured so as to prevent his escape.

(b) when in irons he may be attached for a period or periods not exceeding two hours in any one day to a fixed object, but he must not be so attached during more than three out of any four consecutive days, nor during more than twenty-one days in all.

Explanation– (1) The offender must be attached so as to be standing firmly on his feet which, if tied, must not be more than twelve inches apart, and it must be possible for him to move each foot at least three Inches. If he is tied round the body, there must be no restriction of his breathing. If his arms or wrists are tied, there must be six inches of play between them and the fixed object. His arms must hang either by the side of his body or behind his back.

(2) For the purposes of this punishment, irons should be used when available, but straps or ropes may be used in lieu of them when necessary. Any straps or ropes used for this purpose must be of sufficient width to inflict no bodily harm, and leave no permanent mark on the offender.

(c) He may be subjected to the like labour, employment and restraint, and dealt with in like manner as if he were undergoing a sentence or rigorous imprisonment.

(3) Where an offender is sentenced to field punishment No. 2, the Provisions of sub-rule (2) with respect to field punishment No. 1 shall apply in his case except that he shall not be liable to be attached to a fixed object as provided in clause (b) of that sub-rule.

(4) Every portion of a field punishment shall be inflicted in such a manner as is calculated not to cause injury or leave any permanent mark on the offender and a portion of field punishment must be discontinued upon a report by a responsible medical officer that the continuance of that portion would be prejudicial to the offender's health.

(5) Field punishment will be carried out regimentally when the unit to which the offender belongs or is attached is actually on the move, but when the unit is halted at any place where there is a provost marshal the punishment will be carried out under the orders of that officer.

(6) When the unit to which the offender belongs or is attached is actually on the move, an offender awarded field punishment No. 1 shall

be exempt from the operation of clause (b) of sub-rule (2) but all offenders awarded field punishment shall march with their unit, carry their arms and accoutrements, perform all their military duties as well as extra fatigue duties, and be treated as defaulters.

CHAPTER V – COURTS OF INQUIRY

157. Courts of inquiry, other then a court of inquiry held under section 78.– (1) Save as provided in sub-rule (3), a court of inquiry is an assembly of officers, or of officers, junior commissioned officers, warrant officers or non-commissioned officers, directed to collect evidence and if so required to report with regard to any matter which may be referred to them.

(2) A court of inquiry may be assembled by an officer in command of anybody of troops, whether belonging to one or more crops.

(3) The court may consist of any number of officers of any rank, or of one or more officers together with one or more junior commissioned officers or non-commissioned officers and the members of the court may belong to any branch of the service, according to the nature of the investigation.

Provided that, where the officer who assembles the court deems it expedient to do so, he may appoint as a member, but not as president of the court one civilian gazetted officer who, if he belongs to a civil department of the Government, shall be appointed with the consent of the proper civil authority:

Provided further that, where, in the opinion of the authority who assembles the court, any of the matters to be referred to it concerns any, part of naval or air forces, or where for any reason it is considered expedient or desirable, the said authority may, with the consent of the proper naval or air force authority, appoint one or more naval or air force officers or any of them, to be members of the court, but the president shall be an officer of the Army *[Substituted for sub-Rule (3) vide Amdt. No.* 24/1/65].

(4) The court shall be guided by the written instructions of the officer who assembled the court. The instructions shall be full and specified, and shall state the general character of the information required. They shall also state whether a report is required or not.

(5) Previous notice should be given of the time and place of the meeting of a court of inquiry, and of all adjournments of the court, to all persons likely to be affected thereby , except a prisoner of war who is still absent.

(6) Save in the case of a prisoner of war who is still absent, whenever an inquiry affects the character or military reputation of a person subject to the Act, full opportunity shall be afforded to such person of being present throughout the inquiry and of making any statement, and of giving any evidence he may with to make or give, and of cross-examining any witness whose evidence, in his opinion, affects his character or military reputation, and of producing any witness in defence of his character or military reputation. The president of the court shall take such steps as may be necessary to ensure that any such person so affected, and not previously notified, receives notice of and fully understands his rights under this rule.

(7) It is the duty of a court of inquiry to put such questions to a witness as they think desirable for testing the truth or accuracy of any evidence he has given, and otherwise for eliciting truth.

(8) When a court of inquiry is held on a prisoner of war and in any other case in which the officer who assembled the court has so directed, the evidence shall be taken on oath or affirmation, in which case the court shall administer the same oath or affirmation to witnesses as if the court were a court martial.

The officer who assembled the court shall, when the court is held on a returned prisoner of war or on a prisoner of war who is still absent direct the court to record their opinion whether the person concerned was taken prisoner through his own wilful neglect of duty, or whether he served with, or under, or aided, the enemy, He shall also direct the court to record their opinion in the case of a returned prisoner of war, whether he returned as soon as possible to the service, and in the case of a prisoner of war still absent whether he failed to return to the service when it was possible for him to do so. The officer who assembled the court shall also record his own opinion on these points. In other cases the court shall give no opinion on the conduct of any person unless so directed by the officer who assembled the court.

(9) The members of the court shall not themselves be sworn or affirmed but when the court is a court of inquiry on recovered prisoners of war, the members shall make the following declaration:

"I ……, *do declare upon my honour that I will duly and impartially inquire into and give my opinion as to the circumstances in which ……., became a prisoner of war, according to the true spirit and meaning of the regulations of the army, and I do further declare, upon my honour, that I will not on any account, or at any time disclose or discover my own vote or opinion or that of any particular member of the court, unless required to do so by competent authority".*

(10) The court may be reassembled as often as the officer who assembled the court may direct, for the purpose of examining additional witnesses, or further examining any witness, or recording further information.

(11) The whole of the proceedings of a court of inquiry shall be forwarded by the president to the officer who assembled the court.

(12) The proceedings of a court of inquiry, or any confession, statement, or answer to a question made or given at a court of inquiry shall not be admissible in evidence against a person subject to military law, nor shall any evidence respecting the proceedings of the court be given against any such person except upon the trial of such person for giving wilfully false evidence before that court.

(13) Any person subject to the Act who is tried by court martial in respect of any matter or thing which has been reported on by a court of inquiry, and unless the Chief of Army Staff, sees reason to order otherwise, any person so subject whose character or military reputation is, in the opinion of the Chief of army staff, affected by any thing in the evidence before, or in the report of, a court of inquiry under this rule or Rule 158, shall be entitled to a copy of the proceedings of the court, including any report made by the court, on payment at the rate laid down in Rule 130 for copies of the proceedings of courts-martial.

NOTES

1. *Sub-rule* (1). (i) *See* generally as to court of inquiry, regulations for the Army. For disqualification of members of courts of inquiry for serving on subsequent courts-martial, *see* Rule 30 (2). As to privilege of report of court and that of witnesses, see Part Chapter V. paras 93 to 95.

(ii) A court of inquiry has power to compel the attendance of civilian witnesses, [*See* section 109(1)].

2. *Sub-rule (3).* The court should normally consist of three members.

3. ***Sub-rule*** **(6).** Whenever it appears possible that the character or military reputation of an officer or other person subject to the Act may be affected as the result of the court of inquiry, the authority who assembles the court will take all necessary steps to secure that the provisions of this rule are observed. The ultimate responsibility of ensuring that they are observed in every case will, however, rest upon the president of the court, and should it transpire during the sitting of the court that the character or military reputation of any such person is affected by the evidence put forward, the president will immediately arrange for such person to be afforded the full facilities of the rules, adjourning the court if necessary for the purpose of securing his attendance.

4. ***Sub-rule*** **(8).** As to the authorities who can remit the forfeiture of pay and allowances incurred by absence as a prisoner of war, see Rule 164. If the officer who assembles the court is not one of these authorities, he should forward the proceedings with his recommendations, to one of these authorities. A court of inquiry on a prisoner of war who is still absent may be assembled in order to assist the authorities prescribed in Rule 165 and in determining what remission of forfeiture of pay and allowances shall be ordered and what provision, under Section 70 of the Act, shall be made for the dependents of such prisoner of war. A second court of inquiry must be assembled as soon as possible after the return of the prisoner of war *(See R*egulations for the Army).

158. Court of inquiry as to illegal absence under Section 78.– (1) A court of inquiry under Section 78 of the Act shall, when assembled, require the attendance of such witnesses as they think sufficient to prove the absence and other facts specified as matter of inquiry in that section.

(2) They shall take down the evidence given before them in writing and at the end of the proceedings shall make a declaration of the conclusions at which they have arrived in respect of the facts they are assembled to inquire into.

(3) The commanding officer of the absent person shall enter in the court martial book of the unit a record of the declaration of the court, and the original proceedings will be destroyed.

(4) The court of inquiry shall examine all witnesses who may be desirous of coming forward on behalf of the absentee, and shall put such questions to them as may be desirable for testing the truth or accuracy of any evidence they have given and other wise for eliciting the truth, and the court in making their declaration shall give due weight to the evidence of all such witnesses.

(5) A court of inquiry under this rule shall administer the same oath or affirmation to the witnesses as if the court were a court martial, but the members of such court shall not themselves be sworn or affirmed.

1. *Sub-rule* (1). (i) See Notes to Army Act Section 78.

(ii) *See* Note 1 to Rule 157.

2. The court declare that *(number, rank, name)* illegally absented himself for a period of 60 clear days, excluding the day on which the absence commenced and that on which the court assembles.

3. *Sub-rule* (2). (i) The court in making their declaration will follow the wording shown below. An exact reproduction of the deflation will be entered in the court martial book. It should be free from alteration or erasure.

DECLARATION

The court declare that (*number, rank, name)* …… illegally absented himself without leave (*or other sufficient cause*) at ……. (*Station or place*) on the ……; that he is still so absent, and that on the (*date on which the inventory of kit was taken)*…… ……he was deficient, and that he is still deficient of the following articles (*value of equipment and public clothing to be stated*).

Name of President and members } { President, Members

(ii) In framing a charge of losing by neglect under Army Act Section 45 (a), the date of taking the inventory should be assigned.

(iii) Before a court of inquiry are entitled to find deficiencies, they will require evidence–

(1) that the absentee has been at some time previously, in possession of a complete kit, or, at any rate, of the articles alleged to be deficient;

(2) that an inventory of his kit has been taken, and at the taking or the inventory certain specified articles were deficient;

(3) that none of the articles have since been recovered (any articles recovered will, of course, be omitted).

(iv) When the declaration is to be produced in evidence at a court martial, a copy will be made on BAFD-918 which is admissible under Army Act Section 116(4) and will be produced instead of the court martial book. BAFD-918 must be a correct extract from the court martial book and free form alteration or erasure.

4. ***Sub-rule* (5).** As to form of oath, *see* Rule 123.

CHAPTER VI – PRESCRIBED OFFICERS, AUTHORITIES AND OTHER MATTERS

159. "Corps" prescribed under clause (5) of Section 8.– (1) Each of the following bodies of persons subject to the Act shall be a "corps" for the purposes of Chapter II and clause (a) of Section 38 of the Act and of Chapters II and III of these rules:–

(i) The Armoured Corps including Training Centres and President's Bodyguard.

(ii) The Bangladesh Artillery.

(iii) The Corps of Engineers.

(iv) The Corps of Signals.

(v) The Infantry including Infantry Regiment.

(vi) The Army service Corps.

(vii) The Army Medical Corps.

(viii) The Army Ordnance Corps.

(ix) The Electrical and Mechanical Engineers.

(x) The Remounts, Veterinary and Farms Corps.

(xi) The Army Dental Corps.

(xii) The Corps of Military Police.

(xiii) The Pioneer Corps.

(xiv) The Army Education Corps.

(xv) The Army Physical Training Corps.

(xvi) The Army Corps of Clerks.

(xvii) The Ministry of Defence Constabulary.

(xviii) The Army Intelligence Corps.

(xix) The Observer Corps.

(xx) The Army Postal Service.

(xxi) Any other separate body of persons subject to the Act employed on any service and not attached to any of the above corps.

(2) Every unit in which a court martial book is maintained shall be a "corps or unit" for the purposes of Section 78 and Rule 158.

(3) For the purposes of every other provision of the Act and of these rules each of the following separate bodies shall be a "corps":–

(i) Every battalion;

(ii) Every company which does not form part of a battalion;

(iii) Every regiment of cavalry, armoured corps, or artillery;

(iv) Every squadron or battery which does not form part of a regiment of cavalry, armoured corps, artillery;

(v) Every Centre Headquarters, reserve centre, training centre, depot centre or regimental centre, training battalion, adm. battalion, adm group [*Added vide Amdt. No* 25/1/65] training groups, wing or squadron in a centre;

(v-a) Every school or wing or a group in a school;

(v-b) Every wing of a special services group [*Added vide Amdt. No* 25/1/65]

(v-c) Every battalion, unit and wing of a force which is placed under command of the Army; and every company or sub-unit of such a force which is not part of a battalion or unit or when it is detached from the parent battalion or unit;

(vi) Every other separate body of persons composed wholly or partly of persons subject to the Act and detached from any one or more of the above corps;

NOTES

1. The effect of this rule is that each of the bodies specified in sub-rule (1) is a "corps" for the purposes of enrolment, attestation, dismissal and discharge, *i.e.,* for all purposes connected with a person's service in the Army. For all other purposes (except those of Section 78) the bodies mentioned in sub-rule (3) are "corps".

2. The effect of Rule 7 read with the prescribed forms of enrolment is that every person enrolled under the Act must be enrolled in some corps, as defined in sub-rule (1) of this rule.

160. Forfeiture of service for prescribed purpose under clause (h) of Section 60.– Punishments inflicted in respect of offences committed by persons subject to the Act and convicted by courts martial may include forfeiture of service for purposes of claim to any military orders and awards.

160A. Prescribed officer under Section 63.– The prescribed officer for the purposes of Section 63 shall be the officer commanding a portion of the Bangladesh Army, or, an officer empowered to convene a court martial for the trial of such person and, in the case of summary court martial, an officer empowered to review the proceedings under section 128 [*Inserted as new rule vide Amdt. No.* 26/1/65*]*

161. Authorised deductions under Section 64.– In addition to the deduction specified in Section 64, the following deductions may be made from the pay and allowances of a person subject to the Act:–

(i) upon the general or special order,–

(a) in the case of an officer, of the Government; and

(b) in the case of any other person, of an officer having power not less than a brigade or Logistics Area commander, under whose command he may be serving, any sum required to meet any public claim there may be against him, any regimental debt that may be due from him or any regimental claim;

(ii) any sum required to meet compulsory contributions to any provident fund, or any benevolent or other fund which may be approved by the Government.

Explanation– The expression "public claim" means any public debt or disallowance, any over-issue made through an error as to the facts, or a deficiency or irregular expenditure of public money or store of which, after due investigation, no explanation satisfactory to the authority empowered to order deductions under clause (i) is given by the person who is responsible for the same.

162. Prescribed officer under clause (d) of sub-section 2 of Section 65.– The prescribed officer for the purposes of clause (d) of sub-section (2) of Section 65 shall be the commanding officer of the person detained in hospital.

162-A. Prescribed officer under clause (i) of sub-section 2 of Section 65.– The prescribed officer for the purposes of clause (i) of sub-section (2) of Section 65 shall, in the case of a person other than an officer, be the Chief of the Army Staff or any officer empowered to convene general or district court martial for the trial of such person.

163. Prescribed officer under Section 66.– The prescribed officer for the purpose of Section 66 shall be, in the case of an officer the Chief of the Army Staff and, in the case of a person other than an officer the officer empowered to convene court martial for his trial.

164. Prescribed authorities under Section 69.– Any penal deduction from the pay and allowances of a person subject to the Act made under Chapter VII thereof may be remitted as hereinafter provided:–

(i) Any penal deduction from the pay and allowances of any such person may be remitted by the Government.

(ii) The commanding officer of any such person, other than an officer, who has been absent without leave for a period not exceeding five days may, unless the person is convicted by a court martial on a charge for such absence, remit the forfeiture of pay and allowances to which such absence renders him liable.

(iii) A forfeiture of pay and allowances incurred by any such person owing to his absence as prisoner of war may, unless it shall have been proved before a court of inquiry that he was taken prisoner through his own neglect of duty, or that he served with, or aided, the enemy, or that he did not as soon as possible return to the service, be remitted by, in the case of officers the

Chief of the Army staff, and in the case of other persons an officer having power not less than that of a Brigade or Logistics Area commander.

165. Prescribed authorities for purposes of Sections 70 and 71.– The prescribed authorities for purposes of Sections 70 and 71 shall be, in the case of officers, the Adjutant General of the Bangladesh Army or an officer authorised by him in his behalf, and, in the case of junior commissioned officers and other persons, the commanding officer of the Regimental or Corps Centre or an officer authorised by him in this behalf. [*Substitution for Rule 165 vide Amendment No.* 20/III/65]

166. Delay report under Section 75.– (1) In every case where a person charged with an offence is detained in custody for a longer period than eight days without a court martial for his trial being ordered to assemble, a special report as required by Section 75 shall be made by the commanding officer to the officer to whom application would be made to convene a court martial, for the trial of the person charged.

(2) The report referred to in sub-rule (1) shall be made by letter and shall refer specifically to the case and state the reasons justifying the detention of the accused in custody and preventing the investigation.

167. Prescribed officer for purposes of sub-section (1) Section 79.– The prescribed officer for the purposes of sub-section (1) of Section 79 shall be an officer having power not less than that of an independent Brigade or Logistics Area commander, or, on active service, the officer commanding the forces in the field.

168. Prescribed officer for purposes of Sections 94 and 95.– The prescribed officer for the purposes of Section 94 and 95 shall be an officer having power not less than that of a Brigade or Logistics Area commander under whom, or the officer commanding the station in which he is serving:

Provided that, in cases falling under Section 59, in which death has resulted the prescribed officer shall be an officer having power not less than that of an independent Brigade or Logistics Area commander.

169. Prescribed officer and manner of custody under Section 130.– (1) The prescribed officer for the purposes of sub-section (1) of section 130 shall be the authority empowered to deal with the proceedings of a summary court martial under Section 128.

(2) The prescribed officer for the purposes of sub-section (5) of Section 130 shall be the officer having power not less than that of a Brigade or Logistics Area commander within the territorial jurisdiction of whose command the accused is in custody or detained, and, in the case of an accused who has been found by a field general court martial to be of unsound mind, shall include the officer who has power to convene a field general court martial for the trial of that accused; and in the case of an accused who has been found by a summary court martial to be of unsound mind and who is in custody of the corps, unit or detachment to which he belongs shall include the commanding officer of that corps, unit or detachment:

Provided that where an officer who proposes to act under sub-section (5) of Section 130 is under the command of the officer who has taken action in the case under sub-section (3) of that Section, he shall ordinarily obtain the approval of such officer before he acts; but if he is of opinion that military exigencies or the necessities of discipline, render it impossible or inexpedient to obtain such approval he may act without obtaining such approval but shall report his action and the reasons thereof to such officer.

(3) For the purpose of sub-section (3) of Section 130 the manner in which an accused person shall be kept in custody shall be as follows:–

The accused shall be confined in such manner as may, in the opinion of the proper military authority, be best calculated to keep him securely without unnecessary harshness, as he is not to be considered as a criminal but as a person labouring under a disease.

170. Prescribed officer under Section 131 (1).– The prescribed officer for the purposes of sub-section (1) of Section 131 shall be the officer superior in command to the one who confirmed the finding or sentence of the court martial, provided that such superior officer is higher in rank than the one who confirmed such finding or sentence of the court martial.

171. Prescribed officer under Section 132.– The prescribed officer for the purposes of Section 132 shall be the confirming officer or any officer superior in command to him and in the case of a summary court martial any officer superior in command to the officer who held the summary court martial provided such superior officer has power not less than a Brigade or Logistics Area commander.

172. Prescribed person under Section 153.– The prescribed person for the purposes of sub-sections (5) and (6) of Section 153 shall be the Adjutant General at Army Headquarters. [*Substituted vide Amendment No.* 1/62].

173. Prescribed person under Section 154.– The prescribed person for the purposes of Section 154 shall be the Adjutant General at Army Headquarters [*Substituted vide Amdt. No.* 1/62] and, so long as the commanding officer or officer commanding the station has under the Act the control of the property of the deceased person or lunatic or of the proceeds of the sale of such property, shall also include such commanding officer, or officer commanding the station.

174. Manner of ascertaining insanity under Section 156.– The manner in which it shall be ascertained that a person subject to the Act, other than an officer, is insane, shall be by the finding of the majority of a board of officers consisting of one officer of the Army Medical Corps and two other officers of the Bangladesh Army:

Provided that where two other officers of the Bangladesh Army are not, with due regard to the exigencies of the service, readily available, one officer may be replaced by a junior commissioned officer.

175. Prescribed manner for appointing a committee of adjustment under Section 158 (1).– (1) A committee of adjustment shall be appointed by the commanding officer of the corps, unit or detachment to which the officer belonged or was attached at the time of his death, desertion or insanity or by the officer commanding the station where the officer left his belongings before moving to field or operational area prior to his death, desertion or insanity [*Added vide Amdt. No.* 1/62]

(2) The committee shall consist of three officers. Were practicable, the president shall not be below the rank of major.

176. Prescribed limit for collecting bank balance under Section 158 (3).– A committee of adjustment shall not, without the concurrence in writing of the Adjutant General at Army Headquarters, [*Substituted vide Amendment. No* 1/62], collect moneys lying to the credit of the deceased officer whether in one or more banks exceeding in the aggregate the sum of taka two thousand and five hundred.

177. Prescribed person under Section 158 (6) and (7).– The prescribed person for the purposes of sub-section (6) and (7) of Section 158 shall be the adjutant General at Army Headquarters.

178. Prescribed person under Section 158 (8).– The prescribed person for the purposes of sub-section (8) of Section 158 shall be the Adjutant General at Army Headquarters [Substituted vide Amendment No. 1/62].

179. Prescribed form of notice under Section 59 (2).– As soon as possible after receiving the surplus from the committee of adjustment, the Adjutant General at Army Headquarters [*Substituted vide Amendment No.* 1/62] shall cause the notice under sub-section (2) of Section 159 to be published in two consecutive issues of two leading English dailies of Bangladesh in the following form, with such variations as circumstances may require:–

The Army Act, 1952 (*XXXIX of 1952*), *Section 159* (2).

Notice is hereby given that information has been received by me of the death of …… and that there has been received by me as the surplus of his estate the sum of taka ……

All claims by any person to such surplus should be lodged with me, within six months from the date of this notice, failing which the surplus together with any income or accumulation of income accrued therefrom shall be placed to the credit of the Government.

179A. Prescribed person under Section 160.– Prescribed person for the purposes of Section 160 shall be the Adjutant General at Army Headquarters [*Substituted vide Amendment No.* 1/62] and so long as the committee of adjustment has under the Act control of the property of the deceased officer or lunatic or of proceed of the sale of such property shall also include such committee of adjustment.

180. Manner of ascertaining insanity under Section 164.– The manner in which it shall be ascertained that an officer is insane shall be by the finding of the majority of a board of officers consisting of two officers of the Army Medical Corps and three other officers of the Bangladesh Army:

Provided that where five officers are not, with due regard to the exigencies of the service readily available, the board may consist of one officer of the Army Medical Corps and two other officers of the Bangladesh Army" [*Added as new rule vide Amendment. No* 1/62].

181. Members of the Ministry of Defence Constabulary posted to Air Force units shall be subject to the powers of command of the officers commanding such units who shall exercise the same powers in relation to such members as are exercisable by an officer of the Bangladesh Army:

Provided that such officers commanding as are below the rank of squadron leader [*Substituted for 'Wing Commander' vide Amendment No.* 1/62] shall not pass a sentence of rigorous imprisonment for a term exceeding three months [*Added as new rule vide Amendment No.* 1/62].

182. Prescribed conditions under Section 8 (12) of the Act.– Officers of the Bangladesh Navy or of the Bangladesh Air Force shall be officers within the meaning of clause (12) of Section 8 when commanding any unit or establishment of the Bangladesh Navy or of the Bangladesh Air Force of the Inter Services Organisation in which persons subject to the Act are serving or posted as mentioned below and shall exercise the same powers under the Act as are exercisable by an officer of the relative rank of the Bangladesh Army:-

(a) when conveyed on board a troopship or merchant vessel together with the personnel of the Bangladesh Navy or of the Bangladesh Air Force;

(b) when posted whether in or outside Bangladesh, to a unit or establishment of the Bangladesh Navy or Bangladesh Air Force or of the Inter Services Organization;

(c) when admitted as patients in a hospital or other medical establishment of the Bangladesh Navy or the Bangladesh Air Force; or

(d) when serving a sentence of imprisonment or detention or when kept in custody in a unit or establishment of the Bangladesh Navy or the Bangladesh Air Force.

Explanation.- The relative rank of the Military, Navy and Air Force officers for the purpose of this rule shall be as follows, namely:-

Army	***Navy***	***Air Force***
2nd Lieutenant	Midshipmen Cadet	Pilot Officer
Lieutenant	Sub Lieutenant	Flying Officer
Captain	Lieutenant	Flight lieutenant
Major	Lieutenant Commander	Squadron Leader
Lieutenant Colonel	Commander	Wing Commander
Colonel	Captain	Group Captain
Brigadier General	Commodore	Air Commodore
Major General	Rear Admiral	Air Vice Marshal
Lieutenant General	Vice Admiral	Air Marshal
General	Admiral	Air Chief Marshal

[*Added as new rule vide Amendment No.* 1/62]

1ST APPENDIX

BAFK–1162

FORM NO. 1 – COMBATANTS

The prescribed periods for which persons shall be enrolled are stated in the appropriate orders of the Government and save as is hereinafter provided, no person shall, by reason of an error in his enrolment paper or otherwise, be compelled to serve for a period longer than that for which he should have been enrolled though he may do so voluntarily, provided his services are required.

PART ONE. – STATUTORY PORTION OF THE FORM

Preliminary Notes

Read these notes very carefully before writing up the form.

Note 1.– No answer will be left blank. A dash or a tick will not be put in lieu of an answer. Words 'Not Applicable or NA' may be entered when the question/answer concerned is not applicable.

Note 2.– All alterations/corrections will be initialled by the enrolling officer.

Note 3.– Any word, sentence, condition, para, marked with an asterisk (*) and not applicable will be deleted.

Note 4.– Names of persons, etc., must be written in BLOCK CAPITALS.

Note 5.– When writing address, full particulars shown against answer 7 will be obtained and entered.

Note 6.– Answers No. '11' [*Substituted for* 8 to 14 *vide Amdt. No.* S. R. O. 517 (K) 68] Must be written 'Yes' or 'No'.

A negative answer will be initialled by the enrolling officer.

Note 7.– If any of the answers '8 to 11' [*Substituted for* 8 to 10 and 12 and 13 *vide Amdt. No.* S.R.O. 517 (K) 68] be 'Yes' obtain all the particulars. A candidate will not be enrolled if facts revealed show that his enrolment is barred under any current rule, instruction or order.

Note 8.– If answer No. '9' [*Substituted for* 12 *vide Amdt. No.* S. R. O. 517 (k) 68] be 'Yes', the candidate must produce a discharge or other certificate of termination of previous service before he is enrolled. This certificate must be carefully examined and attached with the enrolment form.

If the candidate cannot produce this certificate and its production be NOT essential under any current rules, then the reasons given by the candidate for its non-production must be written.

Note 9(a).—An individual can be enrolled only in a Corps and not in a particular unit of the Army. No one will be enrolled in any particular unit of a Corps, Bangladesh Artillery, The Corps of Engineers, all the Infantry Regiments, Electrical and Mechanical Engineers, Ministry of Defence Constabulary, Army Postal Service, etc., are all Corps for this purpose (*See* Army Act Rule 159).

(b) All cadets joining at officers training institution will be enrolled in Army Service Corps. Write 'Gentleman Cadet/Officer Cadet' against category and 'not admissible' against group and delete proviso regarding mustering into any other category/group.

(c) Delete rate of Entry Not applicable.

Note 10.–Delete the set of term of enrolment which is NOT applicable.

Note 11.–If NOT being enrolled as a boy delete the phrase from when to thereafter.

Note 12.–Enter the type/nomenclature of the particular Army Reserve.

Form of Enrolment of Combatants.

Enrolment of

No... ... ... Name... ... ...

Father's Name... ... ... as a

Combatant in the ... ... Regiment/Corps at

*Normal/*Matric/*Skilled Entry rate of pay (*See* preliminary Note 9)

Questions to be put to the candidate before enrolment

Warning.–You are warned that if after enrolment, it is found that you have given wilfully false answers to any of the following first thirteen questions, you will be liable to be punished as provided in the Army Act, 1952.

Question No. 1.–What is your name ?

Answer No. 1. ... ...

Question No. 2.–What is your father's name?
Answer No. 2. ... ...

Question No. 3.–What is your religion, main class, sub-class, caste, sub-caste, tribe, clan etc.?

Answer No. 3.–Religion ... ...Main Class... ... ... *Sub-Class/*Caste... ... ...*Tribe/*Sub-cast/*Clan, etc ... ...

Question No. 4.–State your own and your father's occupation/profession.
Answer No. 4.–My own... ... ...
Father's ....

Question No. 5.–Are you a citizen of Bangladesh by birth, descent, migration or naturalization ?
Answer No. 5... ... ...

Question No. 6.–If you are a citizen by *migration/*naturalization, state :

(i) Whether you have been registered as a citizen of Bangladesh or do you claim exemption from registration?

(ii) What is the date of your arrival in Bangladesh?

(iii) What is the address of the place of your birth and the address of your permanent place of residence before arrival in Bangladesh? (*See* preliminary Note No. 5).

Answer No. 6.–(i)*I have been registered as a citizen of Bangladesh/*I claim exemption from registration.

(ii) ... ...day of... ... ...20 ... ...

(iii) (a) Birth-place..... ... ...

(b) Permanent address *Ex*- Bangladesh... ... ...
Question No. 7.–What is your permanent address in Bangladesh?

"*Answer No.* 7.–

*House No. ... ... *Mohalla No. ... ...
... ...
*Village ... ...*Tehsil, ...
*District ... ...*Political... ... Agency
*State ... ... *Province ... ...

[*Substituted for Answer No.* 7 *vide Amdt. No.* S.R.O. 517 (K) 68]

Question No. 8.–Have you ever been imprisoned by the civil power? If so, state the offence and term of imprisonment. (*See* preliminary Notes 6 and 7.)

Answer No. 8... ... ...

Question No. 9.– [*Omitted vide Amdt. No.* S. R. O. 517 (K) 68]

[*Answer No.* 9.]

"Question No. 9"–Do you now belong or ever belonged to of the Bangladesh Armed Force, including the Navy & Air Force or their Reserves, the Azad Kashmir Regular Force, any of the Civil Armed Force, any police forces, or Bangladesh Rifles, Ansar, Gram Pratiraksha Bahini?" [*Sub-stituted for question & answer No. 10 vide Amdt No.* S.R.O. 517(k)68].

Answer No. 9. ... ...

Question No. 10.–Are you in any employment at present? If so give particulars. (*See* preliminary Note 6.)

Answer No. 10... ... ...

Question No. 11.–Have you ever been dismissed from Government service or service of a State acceded to Bangladesh? If so, for what cause? (*See* preliminary Notes 6 and.7)

*Answer No.*11 ... ...

[*Question No.* 12. [*Omitted vide Amdt. No. S. R. O.* 517 (K) 68]
Answer No. 12".

"Question No. 12.–*Are you willing to be enrolled in the ... ...*, or any other (Regt/Corps/in the category/same or any other group for which you may or any other group for which you may be found suitable by an authority appointed by the Govt in this behalf. (*See* preliminary Note No. 9)".
[*Substituted vide. Amdt. No.* S.R.O. 517 (K) 68]

Answer No. 12... ... ...

Question No. 13. –Are you willing to be transferred to a corps other than the one in which you have agreed to be enrolled in answer to question No. 12?

Answer No. 13 ... ...

Question No. 14–

Answer No. 14]–[*Omitted vide Amdt. No.* S.R.O.517 (K) 68]

Question No. 14.–Are you willing to go wherever ordered by land, sea or air, and not to allow any caste usage to interfere with your military duty?

Answer No. 14–

Question No. 15.–Are you willing to be vaccinated or re-vaccinated and inoculated or re-inoculated?

Answer No. 15... ... ...

Question NO. 16.–Are you willing to serve until discharge in accordance with the following conditions, provided the Government shall so long require your services ? (S*ee* preliminary Note 10.)

Answer No. 16... ... ...

Question No. 17.–Are you aware that during your service you are not permitted to belong to or to subscribe in or aid of any political party or association?

Answer No. 17... ... ...

Terms and conditions of Service Enrolment on Regular "or short service [Inserted vide Amdt. No. S.R.O. 517 (k) 68] *Engagement with Liability for Service in Reserve.*

When you have served as a boy (*See* preliminary Note 11) till you reach the age of 17 years, you will be transferred to the ranks as a man and thereafter when you have served for a period of ... ... years in Colour Service and, if required to do so, for a further period in Reserve Service sufficient to complete a total period of Colour and Reserve Service of ... ... years, you will be discharged/released with all convenient speed by the prescribed military authority (Army Act Rule 12 refers), provided that :–

(1) In the event of your deserting or being absent without leave, the period between the date of your desertion or absence from military unit, and the date of your surrender or apprehension or

return to service shall not reckon as service towards discharge/release.

(2) You will not be entitled to be discharged/released if war is imminent or existing.

(3) You will not be entitled to be discharged/released if the Regt/Corps, Battalion, Company, establishment or unit to which you belong is 10% below its strength.

(4) In case you are found fit for promotion to NCO rank and there is a vacancy and you are willing to be promoted you will not be entitled to discharge/release until after the completion of the total period of Colour and Reserve Service as laid down for the rank in the Reserve Rules current at the time.

"(5) In case you are transferred from one corps to another, your condition of service in the corps to which you are transferred" [*Added vide Amdt No.* 2/11/65].

Initial colour service may be extended at the discretion of your commanding officer subject to your willingness. Transfer into Reserve shall be in the rank yon are holding at the time of such transfer and subject to the Rules and Regulations for the Reserve, you will be liable to be transferred thereto on or before completion of the aforesaid initial period of Colour Service (with NOT less than 3 years in any case) or if any period of extension/extensions of Colour Service granted subsequently. If you are not then transferred to the reserve and are not permitted to extend or further extend your period of Colour Service, you will be discharged/ released subject to the provisos (1) to (3) above.

Enrolment Direct into the Reserve.

When you have served in ... ... (*See* preliminary Note 12) for ... ... years from this date as Reservist or until you have attained the age of... ... ...years, whichever occurs first, you will be discharged by the prescribed military authority (Army Act Rule 12 refers) with all convenient speed provided that:–

(1) In the event of your deserting or being absent without leave, the period between the date of your desertion or absence from military unit, and the date of your surrender or apprehension or return to service shall not reckon as service towards discharge/ release.

(2) You will not be entitled to be discharged/released if war is imminent or existing.

(3) You will not be entitled to be discharged/released if the Regt/ Corps, Battalion, Company, establishment or unit to which you belong is 10% below its strength.

Your reserve service may be extended at the discretion of your commanding officer subject to your being willing and not above the age of... ... ...years.

At any time during currency of your Reserve Service you may be called to an army unit for training or be called to Army Colour Service and reverted to Reserve Service any number of times in accordance with the Rules and Regulations of this Reserve.

DECLARATION

I... ... ...,do solemnly declare that the above answers made by me to the above questions are true, and that I am willing to fulfil the engagements made.

Witness... ... ...
(Signature of Recruit or Left Thumb impression if recruit is unable to write.)

. . . . . .
(*Signature/*left Thumb impression).
Name . . . . . .
Appointment and designation etc... ... ...
Full address. . . . . .

Date. . . . . .

CERTIFICATE OF ENROLLING OFFICER

The conditions of service for which he is now enrolled were read and explained to the above-named person by ***me/***in my presence. After having cautioned him that if he made a false answer to any of the above questions, Nos. 1 to 13, he would be liable to be punished as provided in the Army Act, 1952. I put all the above questions to him and his answer to each question has been duly entered as replied to. I am satisfied that he fully understands all the questions put to him and consents to the conditions of service.

Place of enrolment. . . . . .

(Signature of enrolling officer)

Date of enrolment. . . . . .

Rank. . . . . .Name. . . . . .
Appointment or designation
with the name of unit etc.

PART TWO–NON-STATUTORY PORTION OF THE ENROLMENT FORM

SECTION 1.–DESCRIPTION AND MEDICAL EXAMINATION AT THE TIME OF ENROLMENT

(a) *To be completed by the enrolling officer or some other officers on his behalf:*

(i) *Education.*

*Enrolled as an illiterate.

*The candidate claims to have passed..... Jamaat/*has produced a school certificate showing that he has *passed/ *is studying in..... Jamaat. On actual test his educational standard has been found equivalent to..... ..... Jamaat.

(ii) *Date of birth.*

*As entered in *birth/*school/*Matric/*discharge certificate (*original/*attested copy of which is attached herewith).
.....
(in figures and also in words).

*As no certficate has been produced, age has been assessed as shown in para. (b) (vi) below.

(iii) The candidate has been measured for height, chest and weight and the result is shown hereunder:–
Chest unexpanded.....inches. Height.....feet.....inches. Chest expansion .....inches. Weight .....lbs.

(iv) Careful inquiry has not revealed any circumstances, which may debar the enrolment of this individual.

(b) *To be completed by the recruiting or regimental medical officer only:*

(i) Permanent identification marks :
1.....2.....
(ii) Colour of eyes .....colour of hair.....
(iii) Visual standard .....
(iv) Medical category .....
(v) The candidate is NOT suffering from any disease.

(vi) As the candidate does NOT possess either a birth, school, University, discharge or any other certificate etc., acceptable as proof of age under the rules, his age has been assessed by the enrolling officer and the medical officer as under:-

.....

(give assessed age and assessed date of birth in figures and words).

(c) *To be completed by the enrolling officer and the medical officer:*

The candidate has been carefully examined by each of us separately. No disability, defect, deformity or disease has been found in him.

*except what has been shown below but the same, in our opinion, will not interfere with the performance of military duty of the category in which he is being enrolled.

....

Signature of enrolling officer or the officer who examined the candidate on his behalf.

Signature of medical officer

Rank.....Name.....

Rank .....Name .....

Appointment or designation with the name of unit etc.

.....

Appointment or designation with the date etc.

Date.....Place.....

Section 2–Attestation

Certified that No.....Rank.....Name..... took the prescribed *oath/*affirmation before me today.

.....

(Signature)

Date .....

Rank.....Name.....

Place.....

.....

Appointment or designation with the name of unit etc.

SECTION 3.–MUSTERING OR REMUSTERING INTO OTHER CATEGORY AND GROUP.

(a) No.....Rank.....Name .....
is *mustered or *remustered into category ..... group .....

.....
(Signature)

Date .....

Rank.....Name.....

Place.....

.....
Appointment or designation with the name of unit etc.

(b) No.....Rank.....Name .....
is remustered category ..... group .....

.....
(Signature)

Date .....

Rank.....Name.....

Place.....

.....
Appointment or designation with the name of unit etc.

(c) No.....Rank.....Name .....
is remustered into category ....group .....

.....
(Signature)

Date .....

Rank.....Name.....

Place.....

.....
Appointment or designation with the name of unit etc.

SECTION 4–EXTENSION OF COLOUR SERVICE.

(i) I agree to extend my colour service for.....years up to .....of.....years 20.....
(date) (month)

.....
Signature of soldier.

Signed voluntarily in my presence today.

.....
Signature of OC Unit

Date .....

Rank.....Name.....

Place.....

.....
Appointment or designation with the name of unit etc.

(ii) I agree to extend my colour service for.....years up to .....of.....years 20.....
(date) (month)

.....
Signature of soldier.

Signed voluntarily in my presence today.

.....
Signature of OC Unit

Date .....

Rank.....Name.....

Place.....

.....
Appointment or designation with the name of unit etc.

(iii) I agree to extend my colour service for.....years up to .....of.....years 20.....

.....
Signature of soldier.

Signed voluntarily in my presence today.

.....
Signature of OC Unit

Rank.....Name.....

.....
Appointment or designation with the name of unit etc.

SECTION 5–TRANSFER TO THE RESERVE

(a) *For use when the transfer is compulsory in accordance with terms of enrolment.*

No.....Rank.....Name..... is transferred into.....(*See* preliminary Note 12) in the rank of.....with effect from (date)..... until.....of.....years 20.....;*when
(date) (month)

his total combined Colour and Reserve Service will be.....years or *when he will have attained the prescribed age limit (if any laid down) for his rank.

....
Signature of soldier. Signature of OC Unit/Comd/ Regt/Corps Centre etc.

Date .....

Rank.....Name.....

Place.....

.....
Appointment or designation with the name of unit etc.

(b) *For use when the transfer is on the voluntary basis under the terms of enrolment.*

I No.....Rank.....Name.....now volunteer to be transferred into.....(*See* preliminary Note 12) in the rank of.....with effect from (date)..... until.....of.....years 20.....
(date) (month)

when my total combined Colour and Reserve Service will be.....years.

....
Signature of soldier. Signature of OC Unit/Comd/ Regt/Corps Centre etc.

Rank.....Name.....

Date .....

Place.....

.....
Appointment or designation with the name of unit etc.

SECTION 6–TRANSFER TO COLOUR SERVICE FROM RESERVE

(a) *For use when the person was originally enrolled for both colour service and reserve service.*

On being *transferred to Colour Service at my own request or *on being called up to Colour Service with effect from.....I declare that I understand that all conditions accepted by me on my original enrolment are still applicable and that subject to any right I may have of extending the period of Colour Service I am liable, on completion thereof to be re-transferred into the reserve for the remainder, if any, of the total period of combined colour and reserve service and that I am liable to be discharged at any time, should the Government no longer require my services.

.....
Signature of Reservist.

Signed in my presence at .....this.....day of.....20.....

.....
Signature of Commanding Officer.

Date .....

Rank.....Name.....

Place.....

.....
Appointment or designation with
the name of unit etc.

(b) *For use when the person was enrolled directly into Reserve.*

On being *transferred to Colour Service at my own request or being *called up for Colour Service with effect from (date)..... I declare that I understand that all conditions accepted by me on my original enrolment are still applicable and that on completion of colour service I am liable to be transferred to the Reserve for the remainder, if any, of the total period of my enrolment and that I am liable to be discharged at any time should the Government no longer require my services.

.....
Signature of Reservist.

Signed in my presence at .....this.....day of.....20.....

.....
Signature of Commanding Officer.

Date .....

Rank.....Name.....

Place.....

.....
Appointment or designation with
the name of unit etc.

SECTION 7–VARIATION OF CONDITIONS AS TO DISCHARGE (THIS VARIATION MAY BY REPEATED IF NECESSARY).

For use when a person–

(a) is required under the rules to extend his initial colour service to 15 years as a condition/result of promotion to NCO rank or on being remustered into specified categories of Group 'A' or into class II of specified categories of Groups 'B' and 'C';

(b) is remustered into a category and group requiring a different period of initial colour service from that in which he was originally enrolled; or

(c) who is a non-combatant and is mustered as a combatant.

On being *promoted as an NCO or *being remustered into specified categories of Groups 'A', 'B' or 'C' or *into any other category and group requiring different colour services, I agree to extend my colour service to .....years with liability for the combined colour and reserve service to.....years before being entitled to my discharge. I am further aware that all other conditions as to discharge previously accepted by me hold good and also that I am liable to be discharged at any time should the Government no longer require my services.

.....
Signature of soldier.

Signed in my presence at ..... this ..... day of.....20.....

.....
Signature of Commanding Officer.

Date.....

Rank.....Name .....

Place.....

.....
Appointment or designation with
the name of unit etc.

[*The following form No. 1-A is inserted as a new form vide Amdt. No.* 13/VI/65]

"FORM NO. I-A.–FORM OF RE–ENROLMENT FOR EX–SERVICEMEN (COMBATANTS). Part one–Statutory portion of the form Enrolment of No. .....Name..... as a

combatant in the.....Regt/ corps.
QUESTION TO BE PUT TO THE CANDIDATE BEFORE RE-ENROLMENT.

Warning:–Your are warned that if after re-enrolment, it is found that you have given wilfully false answer to any of the following questions, you will be punished as provided in Army Act, 1952.

Question No. 1. What is your name ?
Answer No. 1. ... ...

Question No. 2. What is your father's name ?
Answer No. 2. ... ...

Question No. 3. What is your permanent home address ?

Answer No. 3. Village, Town/City :

Post office ... ... Thana ... ...
Speak ... ...District. ... ...

Question No. 4. Have you ever been imprisoned by the civil power since your termination from the Army service? If so, state the offence and term of imprisonment.
Answer NO. 4. ... ...

Question No. 5. What was your last Regt/Corps and what was the reason for termination of your service? Produce your discharge certificate of termination of services.
Answer No. 5. ... ...

Question No. 6. Do you desire your former service as declared by you in answer to Question 5 to reckon towards any benefit in pay, pension or gratuity or any other benefit if the same be admissible under the rules and if no, are you willing to refund that pension, gratuity, etc in accordance with the current rules in this respect?
Answer No. 6. ... ...

Question No. 7. Are you in receipt of any kind of pension, gratuity or retaining fee from the Government of Bangladesh, Government of a Province or State?
Answer No. 7. ... ...

Question No. 8. Are you willing to be enrolled in the ... ...
Answer No. 8. ... ...

Question No. 9. Are you willing to be transferred to a corps other than the one in which you have agreed to be enrolled in answer to Question No. 8.?
Answer No. 9. ... ...

Question No. 10. Are you willing to go wherever ordered by land, sea or air and not allow any caste usage to interfere with your military duty?

Answer No. 10. ... ...

I ....., do solemnly declare that the above answers made by me to the above questions are true, and that I am willing to fulfil the engagements made.

Date.....(*Signature or left thumb impression of the individual*)

CERTIFICATE OF ENROLLING OFFICER

The conditions of service for which he did now re-enrolled were read and explained to the above named person by me. I am satisfied that he fully understands all the question put to him and consents to the question service.

Place of enrolment.....

Date of re-enrolment.....

Signature of enrolling officer

Rank.....

Name.....

Appointment or designation with name of unit RO/ARO etc.

PART TWO–Non-statutory Portion of the Re-enrolment form.

SECTION 1–TO BE completed by the Medical Officer.

I consider him fit (give category A.B.C.)

.....

unfit for the Army.

Identification Marks. 1, ...

Date ..... (*Signature of the Medical Officer*)

Place .....

SECTION II. Attestation

Certified that No. .....Rank..... Name.....took the prescribed oath/affirmation before me today.

Signature.....
Rank.....
Name.....

Place.....
Date..... (*Appointment or designation with name of unit etc.*)"

BAFK–1165

FORM NO. II–ALL NON-COMBATANTS, INCLUDING FOLLOWERS.

The prescribed period for which persons shall be enrolled are stated in the appropriate orders of the Government and save as is hereinafter provided, no person shall, by reason of any error in his enrolment paper or otherwise, be compelled to serve for a period longer than that for which he should have been enrolled though he may do so voluntarily, provided his services are required.

PART ONE.– STATUTORY PORTION OF THE FORM

Preliminary Notes.

Read these notes very carefully before writing up the form.

Note 1.–No answer will be left blank. A dash or a tick will not be put in lieu of an answer. Words "Not Applicable or NA" may be entered when the question/answer concerned is not applicable.

Note 2.–All alterations/corrections will be initialled by the enrolling officer.

Note 3.–Any word, sentence, condition, para, marked with an asterisk (*) and not applicable will be deleted.

Note 4.–Names of persons, places etc., must be written in BLOCK CAPITALS.

Note 5.–When writing address, full particulars shown against answer 7 will be obtained and entered.

Note 6.–Answers Nos. 8 to 14 MUST be written “Yes” or “No”. A negative answer will be initialled by the enrolling officer.

Note 7.–If any of the answers 8 to 10 and 12 and 13 be “Yes” obtained all the particulars. A candidate will not be enrolled if facts revealed show that his enrolment is barred under any current rule, instruction or order.

Note 8.–If answer No. 12 be “Yes”, the candidate must produce a discharge or other certificate of termination of previous service before he is enrolled. This certificate must be carefully examined and attached with the enrolment form.

If the candidate cannot produce this certificate and its production be NOT essential under any current rules, then the reasons given by the candidate for its non-production must be written.

Note 9.–An individual can be enrolled only in a Corps and not in a particular unit of the Army. No one will be enrolled in any particular unit of a Corps. Bangladesh Artillery, Bangladesh Engineers, all the Infantry Regiments, Bangladesh Electrical and Mechanical Engineers, Ministry of Defence Constabulary, Bangladesh Army Postal Service etc., are all Corps for this purpose. (*See* Army Act Rule 159.)

Note 10.–Delete the set of terms of enrolment, which is NOT applicable.

Note 11.–Enter type/nomenclature of the particular Army Reserve.

Form of Enrolment for Non-Combatants.

Enrolment of
No ..... Name ..... Father's Name.....as a

Non-Combatant in the...../Regiment/Corps (*See* preliminary note No. 9).

Questions to be put to the candidate before enrolment.

Warning.– You are warned that if after enrolment, it is found that you have given wilfully false answers to any of the following first thirteen questions, you will be liable to be punished as provided in the Army Act, 1952.

Question No 1.–What is your name?
Answer No. 1.....

Question No. 2.–What is your father's name?
Answer No. 2.....

*Question No.*3.– What is your religion, main class, sub-class, caste, sub-caste, tribe, clan etc. ?

Answer No 3.– Religion.....Main Class..... *Sub Class/*Caste.....*Tribe/*Sub-caste/*Clan etc. .....
.....

Question No. 4. –State your own and your father's occupation/ profession.
Answer No. 4. My own.....
Father's.....

Question No. 5.–Are you a citizen of Bangladesh by birth, descent, migration or naturalization?
Answer No. 5.....

Question No. 6.–If you are a citizen by *migration/*naturalization, State:
(i) Whether you have been registered as a citizen of Bangladesh or do you claim exemption from registration?
(ii) What is the date of your arrival in Bangladesh?
(iii) What is the address of the place of your birth and the address of your permanent place of residence before arrival in Bangladesh? (*See* preliminary Note No. 5).

*Answer No.*6.–(i) *I have been registered as a citizen of Bangladesh/ *I claim exemption from registration.
(ii) ... ... day of... ... ... 20... ... .
(iii) (a) Birth place.....
(b) Permanent address *Ex*- Bangladesh.....

Question No. 7.–What is your permanent address in Bangladesh?

Answer No. 7.–*Locality *House, *Mohalla, *Street, *Lane, *Bazar etc.....
..... *Village, *Town, *City..... Post Office.....*Police Station, *Thana.....Sub-Division,.....
.....*District,
*Zilla .....
*Province, *State .....

*Question No.*8.–Have you ever been imprisoned by the civil power? If so, state the offence and term of imprisonment, (*See* preliminary Notes 6 and 7).

Answer No 8. .....
.....

Question No. 9.–Are you now in respect of or have you ever received a disability or other pension, gratuity, retaining fee, bounty from the Government of Bangladesh, or any foreign Government? (*See* preliminary Notes 6 and 7).

Answer No. 9. .....

Question No. 10–Do you now belong to any of the Bangladesh Armed Forces including Navy and Air Force or other Reserves, the Bangladesh Rifles, the Bangladesh Territorial Forces, any of the Civil Armed Forces, and Police Forces of Bangladesh (*See* preliminary Notes 6 and 7).

Answer No. 10. .....

Question No. 11.–Are you in any employment at present? If so, give particulars (*See* preliminary Note 6).

Answer No. 11.....

Question No. 12.–Have you ever served in any of the forces named in Question ten above? If so, what was your last unit? What was the reason for termination of your services? Produce your discharge or other certificate of termination of services. (*See* preliminary Note 6 and 7).

Answer No. 12.....

Question No. 13.–Have you ever been dismissed from Government service? If so, for what cause ? (*See* preliminary Notes 6 and 7).

Answer No. 13.....

Question No. 14.–Do you desire your former service as declared by you in answer to Question No. 12 to reckon towards any benefit in pay, pension or gratuity or any other benefit, if the same be admissible under the roles and if so, are you willing to refund that pension, gratuity etc, in accordance with the current rules in this respect ? (*See* preliminary Notes 1 and 6 and answer to Question No. 9).

Answer No. 14.....

Question No. 15.–Are you willing to be enrolled in the .... (*See* preliminary Note No. 9).

Answer No. 15.....

Question No. 15A.–Are you willing to be transferred to a corps other than the one in which you have agreed to be enrolled in answer to Question No. 15?

Answer No. 15A.....

[*Inserted vide Amdt. No.* 4/II/65].

Question No. 16.–Are you willing to serve in category ..... in group..... or any other category in the same or any other group for which you may be found suitable by the authority appointed by Government in this behalf ?

Answer No. 16.....

Question No. 17.–Are you willing to go wherever ordered by land, sea, or air, and not to allow any caste usage to interfere with your military duty?

Answer No. 17.....

Question No. 18.–Are you willing to be vaccinated or re-vaccinated and inoculated or re-inoculated?

Answer No. 18.....

Question No. 19.–Are you aware that during your service you are not permitted to belong to, or to subscribe in aid of any political party or association?

Answer No. 19.....

Question No. 20.–(For those who are enrolled as Sweepers only). Are you willing to work both as a Wet and Dry Sweeper? (*See* preliminary Note 6)

Answer No. 20.....

Question No. 21.–Are you willing to serve until discharged in accordance with the following conditions, provided the Government shall so long require your services? (*See* preliminary Note 10).

Answer No. 21.....

Terms and Conditions of Service Enrolment on Regular Engagement with no Reserve Liability.

When you have served for a period of.....years in Colour Service and thereafter are either NOT required or you are NOT willing to extend the Colour Service, you will be discharged with all convenient speed by the prescribed military authority (Army Act Rule 12 refers) provided that :–

(1) In the event of your deserting or being absent without leave, the period between the date of your desertion or absence from military unit, and the date of your surrender or apprehension or return to service shall not reckon as service towards discharge/release.

(2) You will not be entitled to be discharged/released if war is imminent or existing.

(3) You will not be entitled to be discharged/released if the Regt/ Corps, Battalion, Company, Establishment or Unit to which you belong is 10% below its strength.

(4) "In case you are transferred from one Corps to another, your conditions of service may be varied so as to correspond with the general conditions of service in the corps to which you are transferred" [*Inserted vide Amdt. No.* 5/11/65].

On completion of the period of.....years, your Colour Service may be extended, if it is required and you are willing.

Enrolment on Regular Engagement with Liability for Service in Reserve.

When you have served for.....years in the Colour Service and, if required to do so, for a further period in Reserve Service sufficient to complete a total period of Colour and Reserve Service of.....years you will be discharged with all convenient speed by the prescribed military authority (Army Act Rule 12 refers), provided that :–

(1) In the event of your deserting or being absent without leave, the period between the date of your desertion or absence from military unit, and the date of your surrender or apprehension or return to service shall not reckon as service towards discharge/release.

(2) You will not be entitled to be discharged/released if war is imminent or existing.

(3) You will not be entitled to be discharged/released if the Regt/ Corps, Battalion, Company, Establishment or Unit to which you belong is 10% below its strength.

Your Colour Service may be extended if it is required and you are willing.

DECLARATION

I ....., do solemnly declare that the above answers made by me to the above question are true, and that I willing to fulfil the engagements made.

Witness..... .....
(Signature of Recruit or Left Thumb impression if recruit is unable to write).

…….
*Signature/*Left Thumb impression

Name……

Appointment and designation etc…….

Full address……Dated……

CERTIFICATE OF ENROLLING OFFICER

The conditions of service for which he is now enrolled were read and explained to the above-named by *me/*in my presence. After having cautioned him that if he made a false answer to any of the above Questions Nos. 1 to 13, he would be liable to be punished as provided in the Army Act, 1952, I put all the above questions to him and his answer to each question has been duly entered as replied to. I am satisfied that he fully understands all the questions put to him and consents to the conditions of service.

……
(Signature of enrolling officer)

Place of enrolment..... Rank.....Name.....

Date of enrolment.....

.....
Appointment or designation with the name of unit etc.

PART TWO.–NON-STATUTORY PORTION OF THE ENROLMENT FORM

SECTION 1.–DESCRIPTION AND MEDICAL EXAMINATION AT THE TIME OF ENROLMENT.

(a) *To be completed by the enrolling officer or some other officer on his behalf :*

(i) *Education.*

*Enrolled as an illiterate.

*The candidate claims to have passed.....Jamaat/*has produced a school certificate showing that he was *passed/*is studying in.....Speak. On actual test his educational standard has been found equivalent to..... Speak.

(ii) *Date of birth.*

*As entered in *birth/ *school/ *Matric/ discharge/ certificate (*original/*attested copy of which is attached herewith).

.....

(in figures and also in words.)

*As no certificate has been produced, age has been assessed as shown in para. (b) (vi) below.

(iii) The candidate has been measured for height, chest and weight and the result is shown hereunder :-

Chest unexpanded.....inches. Height.....feet.....inches

Chest expansion.....inches. Weight.....lbs.

(iv) Careful inquiry has not revealed any circumstances which may debar the enrolment of this individual.

(b) *To be completed by the recruiting or regimental medical officer only:*

(i) Permanent identification marks

1.....2.....

(ii) Colour of eyes.....Colour of hair .....

(iii) Visual standard.....

(iv) Medical category.....

(v) The candidate is NOT suffering from any disease.

(vi) As the candidate does NOT possess either a birth, school, University, discharge or any other certificate etc. Acceptable as proof or age under the rules, his age has been assessed by the enrolling officer and the medical officer as under :–
.....

(give assessed age and assessed date of birth in figure and words).

(c) *To be completed by the enrolling officer and the medical officer.*

The candidate has been carefully examined by each of us separately. No disability, defect, deformity or disease has been found in him.

*except what has been shown below but the same, in our opinion, will not interfere with performance of military duty of the category in which he is being enrolled.

....
Signature of enrolling officer or the officer who examined the candidate on his behalf. Signature of medical officer.

Rank.....Name..... Rank.....Name.....

....
Appointment or designation with the name of unit etc. Appointment or designation with the name of unit etc.

Date..... Place.....

SECTION 2.–MUSTERING OR REMUSTERIING INTO OTHER CATEGORY AND GROUP.

(a) No.....Rank.....Name..... is *mustered or *remustered into category.....group.....

.....
(Signature)

Date..... Rank.....Name.....
Place.....

…….....
Appointment or designation with the name of unit etc.

(b) No.....Rank.....Name..... is remustered into category.....group.....

.....
(Signature)

Date.....

Rank.....Name.....

Place.....

.....
Appointment or designation with the name of unit etc.

(c) No.....Rank.....Name..... is remustered into category.....group.....

.....
(Signature)

Date.....

Rank.....Name.....

Place.....

.....Appoi
ntment or designation with the name of unit etc.

SECTION 3.–EXTENSION OF COLOUR SERVICE

(i) I agree to extend my Colour Service for.....years up to.....of.....years.....20.....
(date) (month)

.....
Signature of soldier.

Signed voluntarily in my presence today.

.....
Signature of OC unit.

Date.....

Rank.....Name.....

Place.....

.....
Appointment or designation with the name of unit etc.

(ii) I agree to extend my Colour Service for.....years up to.....of.....years.....20.....

.....
Signature of soldier.

Signed voluntarily in my presence today.

.....
Signature of OC unit.

Date.....

Rank.....Name.....

Place.....

.....
Appointment or designation with the name of unit etc.

(iii) I agree to extend my Colour Service for.....years up to.....of.....years.....20.....

.....
Signature of soldier.

Signed voluntarily in my presence today.

.....
Signature of OC unit.

Rank.....Name.....

.....
Appointment or designation with the name of unit etc.

SECTION 4.–TRANSFER TO THE RESERVE

(a) *For use when the transfer is compulsory in accordance with the terms of enrolment.*

No.....Rank.....Name.....is transferred into.....(*See* preliminary Note 12) in the rank of.....with effect from (date)..... until.....of.....year 20.....; when
(date) (month)

his total combined colour and Reserve Service will be.....years or *when he will have attained the prescribed age limit (if any laid down) for his rank.

....

Signature of soldier. Signature of OC Unit/Comd/ Régiment/Corps Centre, etc.

Date.....

Rank.....Name.....

Place.....

.....

Appointment or designation with the name of unit, etc.

(b) *For use when the transfer is on the voluntary basis under the terms of enrolment.*

I, No.....Rank.....Name.....now volunteer to be transferred into.....(*See* preliminary Note 12) in the rank of.....with effect from (date)..... until.....of.....year 20.....;

(date) (month)

when my total combined Colour and Reserve Service will be.....years

....

Signature of soldier. Signature of OC Unit/Comd/ Régiment /Corps Centre, etc.

Date.....

Rank.....Name.....

Place.....

.....

Appointment or designation with the name of unit, etc.

SECTION 5 – TRANSFER TO COLOUR SERVICE FROM RESERVE

(a) *For use when the person was originally enrolled for both Colour Service and Reserve Service.*

On being transferred to Colour Service at my own request or *on being called up to Colour Service with effect from..... I declare that I understand that all conditions accepted by me on my original enrolment are still applicable and that subject to any right I may have of extending the period of Colour Service I am liable, on completion thereof to be retransferred into the reserve for the remainder, if any, of the total period of combined Colour and Reserve Service and that I am liable to be discharged at any time, should the Government no longer require my service.

.....
Signature of Reservist.

Signed in my presence at.....this.....day of.....20.....

.....
Signature of Commanding Officer.

Place.....

Rank.....Name.....

Date.....

.....
Appointment or designation with the name of unit, etc.

(b) *For use when the person was enrolled directly into Reserve.*

On being *transferred to Colour Service at my own request or being *called up for Colour Service with effect from (date)..... I declare that I understand that all conditions accepted by me to my original enrolment are still applicable and that on completion of Colour Service I am liable to be transferred to the Reserve for the remainder, if any, of the total period of my enrolment and that I am liable to be discharged at any time should the Government no longer require my services.

.....
Signature of Reservist.

Signed in my presence at.....this.....day of.....20.....

.....
Signature of Commanding Officer.

Date.....

Rank.....Name.....

Place.....

.....
Appointment or designation with the name of unit, etc.

SECTION 6 – VARIATION OF CONDITIONS AS TO DISCHARGE (THIS VARIATION MAY BE REPEATED IF NECESSARY)

For use when a person–

(a) is required under the rules to extend his initial Colour Service to 15 years as a condition/ result of promotion to NCO rank or on being remustered into specified categories of Group 'A' or into class II of specified categories of Groups 'B' and 'C' ;

(b) is remustered into a category and group requiring a different period of initial Colour Service from that in which he was originally enrolled; or

(c) Who is a non-combatant and is mustered as a combatant.

On being *promoted as an NCO or *being remustered into specified categories of Groups 'A' 'B' or 'C' or *into any other category and group requiring different Colour Service, I agree to extend my Colour Service, to.....years with liability for the combined Colour and Reserve Service to…….....years before being entitled to my discharge. I am further aware that all other conditions as to discharge previously accepted by me hold good and also that I am liable to be discharged at any time should the Government no longer require my services.

.....
Signature of soldier.

Signed in my presence at.....this.....day of.....20.....

.....
Signature of Commanding Officer.

Date.....

Rank.....Name.....

Place.....

.....
Appointment or designation with the name of unit, etc.

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SECOND APPENDIX

PART I

COMMENCEMENT OF CHARGE SHEET

The accused (rank, name, corps) an officer, or

The accused (number, rank, name, corps) or

The accused (name) being a person subject to the Army Act (as an officer, junior commissioned officer, warrant officer or non-commissioned Officer under the provisions of section 2(1)(c) and section 3(1) of the Army Act [as a person of rank inferior to that of non-commissioned officer under section 2(1)(c) and section 3(2) of the Army Act].

is charged with

PART II

STATEMENT OF OFFENCE

Offences in respect of Military Service

Section 24

(a) (1) Shamefully { abandoning / delivering up } { a garrison / a fortress / an airfield / a place / a post / a guard } Committed to his charge, which it was his duty

(2) using means to { compel / Induce } { His commanding officer / Other person } shamefully to { abandon / deliver up } { a garrison / a fortress / an airfield / a place / a post / a guard } committed to his charge which it was his duty to defend

(b) In the presence of the enemy
- shamefully casting away his
  - arms
  - ammunition
  - tools
  - equipment
- misbehaving in such manner as to show cowardice

(c) Intentionally using
- Words
- Other mans
  - to compel a person subject to
  - to induce a person subject to
    - the Army Act, 1952
    - the Air Force Act, 1953
    - the Navy Ordnance, 1961
    - to abstain from
  - to discourage a person subject to
    - the Army Act, 1952
    - the Air Force Act, 1953
    - the Navy Ordnance, 1961
    - from
  - acting against enemy

(d) (1) directly / Indirectly
- treacherously holding correspondence with
- communicating intelligence to
- he enemy

(2) coming to the knowledge
- treacherous correspondence with
- treacherous communication of intelligence to
- the enemy and omitting to discover it to
  - his commanding officer
  - other superior officer

(e) (1) directly / Indirectly
- assisting with
- relieving with
- arms
- ammunition
- equipment
- supplies
- money
- the enemy

(2) knowingly } harbouring / protecting } an enemy not being a prisoner

(f) Treacherously / through cowardice } sending a flag of truce to the enemy

(g) (1) in time of war / during operation } intentionally occasioning a false alarm in { action / camp / garrison / quarters

(2) in time of war / during operation } spreading report calculated to create { alarm / despondency

(h) in time of action { leaving his commanding officer / quitting his { Post / Guard / Picquet / Patrol / Party } without being regularly relieved / without leave

(i) having been made a prisoner of war voluntarily { serving with / aiding } the enemy

(j) When on active service, knowingly doing an act calculated to imperil the success of { the Bangladesh Forces / forces cooperating with the Bangladesh Forces / any part of forces cooperating with the Bangladesh Forces

Section 25

(a) When on active service, without orders from his superior officer, leaving the ranks
- in order to secure
  - prisoners
  - animals
  - materials
- on pretence of taking wounded men to the rear

(b) When on active service without order from his superior officer
- wilfully destroying
- wilfully damaging

} any property

(c) (1) When on active service, being taken prisoner of war
- for want of due precaution
- through

} disobedience of orders / wilful neglect

(2) When on active service having been taken prisoner of war and failing to rejoin his service when able to do so.

(d) When on active service with due authority
- holding correspondence with
- communicating intelligence to
- sending a flag of truce to

} the enemy

(e) When on active service
- by word of month
- in writing
- by signals
- (or otherwise)

} spreading reports calculated to created
- alarm
- despondency

(f) When on active service
- in action
- previously to going into action

} using words calculated to created
- alarm
- despondency

Section 26

(a) *(When on active service)* treacherously making known the { parole / watchword / countersign } to person not entitled to receive it

(b) *(When on active service)* treacherously giving { parole / watchword / countersign } different from what he received

Section 27

When on active service committing an offence against the { property of / person of } { an inhabitant of / a resident in } the countersign which he was serving

Section 28

(a) When acting as a sentry (on active service) { sleeping on / being intoxicated on / quitting without leave } his post

(b) when acting as a { sentry / guard } on active service { plundering / wilfully destroying / wilfully injuring } property placed under { his charge / the charge of / his guard }

(c) *(when on active service)* { Striking / forcing / attempting to force } { any sentry / any safeguard }

(d) *(when on active service)* without orders from his superior officer leaving his { guard / picquet / patrol / post }

Section 29

(a) (when on active service) braking into { a house / other place } in search of plunder

(b) *(when on active service)* by *(any means whatever)* intentionally occasioning a false a alarm

(c) *(when on active service)* without due authority { verbally / in writing / by signals / *(otherwise)* } disclosing { the number of / the position of / preparation for / orders relating to } { operations of / movement of } { Bangladesh Forces / Part of Bangladesh Forces }

Section 30

(a) By *(any means whatever)* negligently occasioning a false alarm

(b) (1) making known the { parole / watchword / countersign } to a person not entitled to receive it.

(2) Without good cause / Without sufficient cause { giving } { parole / watchword / countersign } different from what he received.

(c) Irregularly and contrary to orders issued in the respect { detaining / appropriating to his own } { unit / detachment } { provisions / supplies } proceeding to the forces

Section 31

(a) Beginning / Inciting / Causing / Conspiring with any other person to cause / Joining in — a mutiny in the — military / naval / air — forces of Bangladesh

(a) Beginning / Inciting / Causing / Conspiring with any other person to cause / Joining in — a mutiny in the — forces coopering with the — military / naval / air — forces of Bangladesh

(b) being present at a mutiny in the — military / naval / air — forces of Bangladesh

(b) being present at a mutiny in the — forces cooperating with the — military / naval / air — forces of Bangladesh and not using his utmost endeavour to suppress it.

(c) (i) Knowing / Having reasons to believe in — the existence of / intention to commit — a mutiny in the — military / naval / air — forces of Bangladesh — and not giving information thereof to — Commanding officer / other superior officer

(ii) Knowing / Having reasons to believe in — the existence of / intention to commit — a mutiny in the — military / naval / air — forces cooperating with the — military / naval / air — forces of Bangladesh — and not giving information thereof to — Commanding Officer / other superior officer

(d) Attempting to seduce a person in the — military / naval / air — forces of Bangladesh from — his duty / his allegiance — to the Government of Bangladesh

Section 32

[Sub-section (1)]

(1) Using / attempting to use / committing assault on { criminal force to } his superior officer being in the execution of his office { knowing / having reason to believe } him to be such

[Sub-section (2)]

(a) (when on active service) { using / attempting to use / committing assault on { criminal force to } his superior officer { knowing / having reason to believe } him to be such

(b) (when on active service) being { grossly insubordinate / insolent } to his superior officer { knowing / having reason to believe } him to be such

(c) (when on active service) { impeding / refusing, when called upon to assist in the execution of his duty } { a provost marshal / a person lawfully acting on behalf of provost marshal any member of the service police.

Section 33

[Sub-section (1)]

(1) Disobeying in such a manner as to show wilful defence of authority a lawful command given personally by his superior officer { knowing / having reason to believe } him to be such

[Sub-section (2)]

(When on active service) (2) Disobeying the lawful command of his superior officer { knowing / having reason to believe } him to be such

Section 34

Neglecting to obey { standing / routine / other } orders

Section 35

(a) Being concerned in a { quarrel / affray / disorder } { refusing to / using criminal force to / assaulting } an officer who ordered him into arrest

(b) Using criminal force to / assaulting } a person in whose custody he was place.

(c) Resisting an escort whose duty it was to { apprehend him / have him in his charge }

Section 36

[Sub-section (1)]

(1) *(When on active service)* { deserting / attempting to desert } the service

[Sub-section (2)]

(2) Knowingly harbouring a deserter from { military / naval / air } { forces of Bangladesh

[Sub-section (3)]

(3) Being cognisant of { desertion / attempt at desertion } of person belonging to { military / naval / air } forces of Bangladesh { and failing to give notice to { his own / other } superior officer / and failing to take steps in his power to cause such person to be apprehended.

Section 37

(a) Absenting himself without leave

(b) Without sufficient cause overstaying leave granted to him

(c) Being on leave of absence and having received information from proper authority that the { corps / unit / detachment / portion of corps / portion of unit / portion of detachment } to which he belongs has been ordered on active service and failing without sufficient cause to rejoin without delay.

(d) Without sufficient cause failing to appear at the time fixed at { the parade / the place } appointed for { exercise / duty }

(e) Quitting { parade / line of match } { without sufficient cause / without leave from his superior officer }

(f) Being { Beyond the limits fixed by / in the place prohibited by } { standing order / routine order } without { a pass / leave from his superior officer.

(g) Without { leave from his superior officer / sufficient cause } absenting himself from { school / *other institution* } after being duly required to attend

Section 38

(a) Without
- Obtaining a regular discharge from
  - The corps
  - Unit
  - to which he belonged
    - entering
    - enrolling
    - the same
      - corps
      - unit
    - other
      - unit
- having fulfilled the conditions enabling him to enrol or enter.

any part of Bangladesh
- regular
- non-regular
- Forces

(b) Being concerned in the enrolment in the
- regular
- non-regular

force of Bangladesh of a person whom he
- knew
- believed

to be so circumstanced that by enrolling himself he would commit and offence against
- the Army Act 1952,
- the Air Force Act 1953,
- the Nave ordnance 1934

Section 39

Making a wilfully false answer to a question set forth in the prescribed form of enrolment which was put to him by the enrolling officer before whom the appeared for the purpose of being enrolled.

Section 40

(a) Dishonestly misappropriating
- property belonging to Government

Committing theft of
- service property

committing criminal breach in respect of
- property of
  - a person subject to the
    - Army Act, 1952.
    - Air Force Act, 1953.
    - Navy Ordnance, 1961.
  - a person
    - serving with
    - attached
    - an armed force of Bangladesh

(b) (i) Dishonestly { receiving / retaining } { property belonging to Government / Service property / property of { a person subject to the { Army Act, 1952. / Air Force Act, 1953. / Navy Ordnance, 1961. } } } { knowing / having reason to believe } it to have been { dishonestly misappropriated / stolen / obtained by criminal breach of trust }

(b) (ii) Dishonestly { receiving / retaining } property of a person { serving with / attached to } an armed force of Bangladesh { knowing / having reason to believe } it to have been { dishonestly misappropriated / stolen / obtained by criminal breach of trust }

(c) { Doing an act / Making an omission } with intent to { defraud / cause wrongful gain / cause wrongful loss } to a person

Section 41

(a) (1) Malingering

(2) { Feigning / Producing } { disease / infirmity } in himself

(3) Intentionally { delaying his cure / aggravating his } { disease / infirmity }

(b) [voluntarily causing hurt to] { himself / a person subject to the Army Act } with intent to render { himself / that person } or service

(c) Disgraceful conduct of { a cruel / an indecent / an unnatural } kind

Section 42

{ Accepting / Obtaining / Agreeing to accept / Attempting to obtain } { for himself / *for any other person* } a gratification other than legal remuneration as { motive / reward } for { doing an act / for bearing to do an act / showing favour / showing disfavour } to a person in relation to { affairs of the State service affairs }

Section 43

(when on active service) *(while on duty)* being in a state of intoxication.

Section 44

[Sub-section (1)]

1. Without authority and wilfully releasing { a prisoner / a person } placed in service custody

[Sub-section (2)]

(a) *(when on active service)* { negligently / without reasonable excuse } following { prisoner / a person } placed his charged to escape

(b) *(when on active service)* being in lawful custody { escaping / attempting to escape / leaving such custody } before being set at liberty by proper authority

Section 45

(a) Losing by neglect { arms / ammunition / equipment / instruments / tools / clothing / (other thing) } being { Government / service } property { issued to him / entrusted to him } for his use

entrusted to him for military purposes

(b) Wilfully { destroying / injuring } { Government / service } property

Section 46

(a) Making a false accusation against person subject to the Army Act, 1952 { knowing / having reason to believe } such accusation to b false

(b) In making a complaint to his superior officer { Making a statement affecting the character of a person subject to the Army Act, 1952 } { knowing / having reason to believe } such statement to be false

knowingly and wilfully suppressing any material fact

Section 47

(a) in a { report / return / list / certificate / book / (other) } { service / official } document { made by him / signed by him / of the contents of which it was his duty to ascertain the accuracy. } { Knowingly making / being privy to the / making of } { false / fraudulent } statement / an omission with intent to defraud.

(b) knowingly and with intent to { injure a person / defraud } { suppressing / defacing / altering / making away with } a document which it was his duty to { preserve / produce }

Section 48

(a) when signing a document relating to { pay / arms / ammunition / equipment / clothing / supplies / stores / (other) } { Government / Service } { property } knowingly leaving in blank any material part for which his signature was voucher.

(b) Refusing / by culpable neglect omitting, } to make a { report / return } which it was his duty to make.

Section 49

(a) Refusing to be { sworn / affirmed } when duly required by a court-martial to be { sworn / affirmed

(b) (1) Refusing, when a witness, to answer a question when duly required by court-martial

(2) Refusing, when a witness, to { produce / deliver } { book / document / *(other thing)* } when duly required by court-martial to { produce / deliver up } such { book / document / *(other thing)*

(c) Being guilty of contempt of court-martial by { using / causing } { insulting / threatening } language / { an interruption / a disturbance } in the proceedings

Section 50

Having been duly { sworn / affirmed } before { a court-martial / a military court competent to administer } { oath / affirmation } making a false statement when he { knew / believed } to be false / { did not believe to be true.

Section 51

(1) (a) Without lawful excuse detaining a person in { arrest / confinement } without bringing him to trial

(b) Without lawful excuse detaining a person in { arrest / confinement } and failing to bring his case before the proper authority for investigation

(2) After having committed a person to custody failing without reasonable excuse to deliver { at the time of such committal / within twenty-four hours after such committal } { to the officer / *to other person* } into whose custody the person arrested was committed an account in writing signed by himself of the offence with which the person so committed was charged.

Section 52

Behaving in a manner unbecoming his position and the character expected of him.

Section 53

{ Striking / Ill treating } a person subject to the Army Act, 1952 being his subordinate { rank / position }

Section 54

After receiving the pay of a person subject to the Army Act, 1952 unlawfully. { detaining / refusing to pay } the same, when due.

Section 55

{ An act / conduct / disorder neglect } to the prejudice of good order and military discipline.

Section 56

(a) Voluntarily / Negligently { damaging / destroying / losing } { service aircraft / service aircraft material }

(b) an { act / omission } { likely to cause } { damage to / destruction of / loss of } { service aircraft / service aircraft material. }

(c) Without due authority disposing of service { service aircraft / service aircraft material. }

(d) (1) an { act / omission } { in relation to } { aircraft / aircraft material } { which } { caused / was likely to cause } { loss of life / bodily injury, to a person }

(e) During a state of war { voluntarily and without proper occasion negligently } { causing the sequestration / causing destruction in } { by under the authority } { a neutral state } { of a service aircraft. }

Section 57

Attempting to commit…… (specify offence and doing an act towards the commission of the same.

Section 58

Abetment within the meaning of the Penal Code of an offence punishable under [*specify any of the sections 24 to 57, inclusive of the Army Act, 1952 or any of the correspondence provisions of the Air Force Act, 1953 or the Navy ordnance, 1961*

Section 59

Committing a civil offence that is to say (*state the offence as described in the Penal Code or other law in force in Bangladesh).*

THIRD APPENDIX

FORMS AS TO COURTS MARTIAL

Forms for Assembly of Court Martial

GENERAL AND DISTRICT

Form of order for the Assembly of a General (or District) Court Martial under the Army Act

Orders by

Commanding the ……

(Place …… date ……)

The detail of officers as mentioned below will assemble at …… …… on the …… day of …… for the purpose of trying by a …… Court Martial the accused person (persons) named in the margin (and such other person or persons as may be brought before them).*

Note.–

The president must be named. The members and the waiting members (if any) may be mentioned by name, or the number and ranks and the mode of appointment may alone be named.	President is appointed President Members Waiting Members Judge-Advocate is appointed Judge-Advocate. Interpreter is appointed Interpreter. Prosecutor. is appointed Prosecutor.

†The accused will be warned, and all witnesses duly required to attend.

The proceedings (of which only two copies required) will be forwarded to—

‡Signed this …… day …… of ……

* Instruction.- Convening order must be signed by the convening officer or "for" him by a staff officer.

**Any opinion of the convening officer with respect to the composition of the court* [*see* Rule 31 (2) should be added here, thus:–

"In the opinion of the convening officer it is not practicable to appoint officers of different crops or unit" or

In the opinion of the convening officers of equal or superior rank to the accused are not, having due regard to the public service, available."

† Add here any order regarding Counsel–See Rule 82.

FIELD GENERAL

(*See* combined form for assembly and proceedings below)

Form of Declaration for suspension of Rules under Rule 26.

In my opinion [*] military exigencies, namely (state them) render it ([†] impossible) to observe the provisions of Rules[‡] .... on the trial of .... by .....Court Martial assembled pursuant to the order of the ..... Signed at ..... this ..... day of .....

A. B.

(Instruction–*This declaration must be signed by the officer whose opinion is given, and will be annexed to the proceedings. It should not be included in the convening order but should be a separate document).*

[§]*FORMS OF PROCEEDINGS OF COURTS MARTIAL*

Form of Proceedings of a General (or District) Court Martial (including some of the incidents which may occur to vary the ordinary course of procedure, with instructions for the guidance of the court)

Proceedings of a ..... Court Martial, held at ..... on the ..... day of ..... 20 ..... by order of ..... Commanding ..... dated the ..... day of ..... 20.

President

Rank.....Name.....Regiment

Members

Rank.....Name.....Regiment

Judge-Advocate

Interpreter

Trial of[**]

The order convening the Court, the charge-sheet, and the summary (or abstract) of evidence are laid before the court.

(Instruction.– *All documents relating to the court, or the matters before it, which are intended to form part of the proceedings (such as an order respecting military exigencies, or a letter answering any question referred to the convening officer) at whatever period of the trial they are received should be read in open Court, marked so as to identify them, signed by the president (judge-advocate), and attached to the proceedings).*

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[*] (The necessities of disciplines)

[†] (or Inexpedient).

[‡] State the rule or rules which cannot be observed. *See* Rule 26.

[§] All printed matter not applicable to the particular Court being held should be struck out and initialed by the president.

[**] *Here insert Number, Rank, Name, Regiment, and appointment (if any).*

The Court satisfy themselves that …… is not available to serve owing to* …… † …… waiting member takes his place as a member of the Court.

The courts satisfy themselves as provided by Rules 32 and 33.

NOTE.–*Before certifying that the court satisfied themselves as provided by Rules 32 and 33 the president will, in every case where a Court of Inquiry has been held respecting a matter upon which a charge against the accused is founded, insert an asterisk after the words "Rules 32 and 33", and enter and sign a footnote at the bottom of the first page of the proceedings, to the following effect:–*

I have satisfied myself that none of the officers detailed as members of this court has previously served upon any Court of Inquiry respecting the matters forming the subject of the charge (charges) before this Court Martial.

(Signature of President)

The accused is brought before the Court.

Prosecutor‡

Counsel or§ defending officer**

At ..... o'clock the trial commences.

The order convening the Court is read and is marked …… ……, signed by the president and attached to the proceedings.

The names of the president and members of the Court are read over in the hearing of the accused, and they severally answer to their names.

Question by the president to the accused–

Do you object to be tried by me as president, or by any of the officers whose names you heard read over?

Answer by Accused–

Instruction:– (*The questions are to be numbered throughout consecutively in a single series. The letters Q. and A. in the margin may stand for Question and Answer respectively).*

VARIATION

Answer.–I object to

Question to accused.–Do you object to any other person?

(The question must be repeated until all the objections are ascertained.)

Answer.–

(If the president is objected to, that objection will be dealt with first, otherwise the objection to the junior officer will be disposed of first).

---

* *Here insert reason.*

† *Here insert Rank, Name and Regiment (if any).*

‡ *Here state Rank, Name and Regiment (if any).*

§ *Qualification to be stated*

** *Here state Rank, Name and Regiment (if any).*

Objection to the President

Question to accused.— What is your objection to me as president?

The accused in support of his objection to the president make the following statement (*set out)* [and calls…… who…… states (*set out*)].

The court is closed to consider the objection.

Decision.–The Court disallow the objection.

The Court is reopened and the above decision is made known to the accused.

or,

Decision.–The Court allow the objection.

(The Court is reopened and the above decision is made known to the accused, and the court adjourn).

Objection to member

Question to accused.– What is your objection to …… …… (*the junior officer objected to)*

The accused in support of his objection to..... makes the following statement (*set out)*……

[and calls ..... who states

(*set out)]*

The court is closed to consider the objection.

Decision.–The Court disallow the objection.

The Court is reopened and the above decision is made known to the accused.

or,

Decision.–The Court allow the objection.

The Court is reopened and the above decision is made known to the accused.

..... retires.

Fresh Member–* ..... takes his place as a member of the Court.

(This only applies in the case of there being a waiting member of the Court).

He appears to the Court to be eligible and not disqualified to serve on this court martial.

Question to accused.– Do you object to be tried by .... *the fresh member)?*

Answer.–

(If he objects, the objection will be dealt with in the same manner as the former objection.)

---

* *Insert Rank, Name and Regiment.*

Question to the accused.– What is your objection to …… …… (*the junior officers objected to)?*

(This objection will be dealt with in the same manner as the former objection.)

The Court adjourn for the purpose of fresh members being appointed.

or,

The Court is of the opinion that in the interests of justice and for the good of the service, it is inexpedient to adjourn for the purpose of fresh members being appointed, because (*here state the reasons).*

At ..... o'clock on ..... the court resume their proceedings, and an order appointing another president or fresh officers, is read, marked ....., and attached to the proceedings.

The court satisfy themselves with respect to such fresh president or officers as provided by Rule. 32.

(Instruction.–*The procedure as to challenging fresh president or officers and the procedure, if any objection is allowed, will be the same above).*

The president and members of the court, as constituted after the above proceedings, are as follows:–

PRESIDENT

Rank	Name	Regiment

MEMBERS

Rank	Name	Regiment

The president, members, and judge advocate are duly sworn (or affirmed) (also any officer under instruction).

[Instruction.– (1) *The witnesses if in court, other than the prosecutor should be ordered out of the court at this stage of the proceedings.*

(2) *Also any interpreter and shorthand writer should be now sworn.*

(3) *A member of the court appointed interpreter must take the interpreter's oath in addition to the oath administered to him as a member of the court].*

Question to the accused.– Do you object to .... as interpreter?

A.–

Q.– Do you object to ..... as shorthand writer?

A.–

(Instruction.–*In case of objection the same procedure will be followed as in the case of an objection to a member of the court).*

Charge-sheet

The charge-sheet is signed by the president (Judge-advocate) marked ..... and annexed to the proceedings.

The accused is arraigned upon each charge in the above mentioned charge-sheet.

Question to the accused.– Are you guilty or not guilty of the (*first*) charge against you, which you have heard read?

A.–

[Instruction.– *When there is more than one charge the foregoing question will be asked after each charge (whether alternative or not) is read, the number of the charge being stated*].

[Instruction.– *If the accused pleads guilty to any charge, the provisions of Rule 44 (2) must be complied with, and the fact they have been complied with must be recorded. Where there are alternative charges and the accused pleads guilty to the less serious charge, the court, if they decide to proceed upon the more serious charge, will enter after the plea as recorded: "The court proceed as though the accused had not pleaded guilty to any charge"*].

VARIATIONS

The accused objects to the charge on the ground that (*set out*).

The court is closed to consider their decision.

The court disallow the objection (*or,* the court allow the objection, and agree to report to the convening authority).

The court is reopened, and the above decision is made known to the accused.

The court proceed with the trial (*or,* adjourn).

Amendment of Charge (Rule 40)

The court, being satisfied that the name (*or,* description) of the accused is and not as stated in the charge-sheet, amend the charge-sheet accordingly.

The court being satisfied that the word(s) ..... in the charge-sheet in respect of the ..... charge(s) is (are) attributable to (a) clerical error(s) for the word (s) ..... amend the charge-sheet accordingly.

or,

The court, before they close for the consideration of their finding on the charge, consider that, in the interests of justice, the following addition to [*or* omission from or alteration in the ..... charge is required (*set out*), and adjourn to report their opinion to the convening authority.

***Plea to the Jurisdiction* (*Rule 41*)**

The accused pleads to the general jurisdiction or the court on the ground that *(set out*).

Question to the accused.–

Do you wish to produce any evidence in support of your plea?

Answer.–

Witness is examined on oath (*or* affirmation).

(Instruction.– *The examination, etc., of the witnesses called by the accused and of any witnesses called by the prosecutor to reply, will proceed as directed below in the case of witnesses to the facts at the trial. The prosecutor will be entitled to reply after the all evidence is given).*

The court is closed to consider their decision.

The court (*a*) overrule the plea and decide to proceed with the trial;

or (b) allow the plea and decide to report to the convening authority, and adjourn;

or (c) are in doubt as to validity of the plea and decide to refer the matter to the convening authority and adjourn [*or* make the following special decision (*set out*) and decide to proceed with the trial].

The court is reopened and the above decision is made known to the accused.

The court proceed with the trial (*or* adjourn).

Plea in bar of trial (Rule 43)

Accused, besides the plea of guilty (*or not guilty*), offers a plea in bar of trial.

Question to the Accused.–

What are the grounds of your plea?

Answer.–

Question.– Do you wish to produce any evidence in support of your plea?

Answer.–

Witness is examined on oath (*or affirmation).*

(Instruction.– *The examination, etc., of the witnesses called by the accused and of any witnesses called by the prosecutor in reply, will proceed as directed below in the case of witnesses to the facts at the trial. The prosecutor will be entitled to reply after all the evidence is given).*

The court is closed to consider their decision.

The court allow the plea and resolve to adjourn (*or* to proceed with trial on another charge) (*or* the Court over-rule the plea).

The court is reopened, and the above decision is made known to the accused.

The court adjourn (*or* proceed with the trial or another charge) (*or* proceed with the trial).

Refusal to plead [Rule 42 (1)]

As the accused does not plead intelligibly (*or* refuses to plead) to the above charge, the court enter a plea of not guilty.

The accused having pleaded guilty to the ..... charge the provisions of Rule 42 (2) are here complied with.

INSANITY

The Court find that accused (Number.....Rank ……..Name.....Regiment.....) is, by reason of unsoundness of mind, incapable of making his defence.

Signed at ..... this ..... day of 20

Judge-advocate President

PROCEEDINGS ON PLEA OF GUILTY

*[The court having been reopened, the accused is again brought before it, and the charge (charges) to which he has pleaded guilty is (are) read to him again].

The accused (N*umber....., Rank ..... Name.....Regiment.....)* is found guilty of the charge (*all the charges)*

or,

is found guilty of the.....charge, and is found not guilty of the..... charge.

(Instruction.–*If the trial proceeds upon any charge to which there is a plea of not guilty, the court will not proceed upon the record of the plea of guilty, until after the finding on that other charge; and in that case the case the court will be reopened and the charge on which the record is guilty must be read to the accused again.)*

The accused may, in accordance with Rule 44 (2), make any statement he wishes in reference to the charge.

The summary (or abstract) of evidence is read (orally translated) marked....., signed by the president (Judge-advocate), and attached to the proceedings.

[Instruction.– *If there is no summary (or abstract) of evidence, sufficient evidence to enable the Court to determine the sentence, and to enable the confirming officer to know all the circumstances connected with the case will be taken on a separate sheet as on a plea of not guilty.*]

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* *To be struck out in case no plea of "not guilty" has been proceeded with.*

Question to the Accused.–

Do you wish to make any statement in mitigation of punishment ?

Answer.–

The accused in mitigation of punishment says [*or, if the statement is in writing,* hands in a written statement, which is read (orally translated), marked.....signed by the president (judge-advocate), and attached to the proceedings].

(Instruction.– *If the statement of accused is not in writing, the material portion should be taken down in the first person, and as nearly as possible in his own words.*

If counsel or defending officer addresses the court on behalf of the accused the material portions of his address should be recorded.

In any case any matter which is requested by or on behalf of the accused to be recorded should be recorded, and care must be taken, whether a request is made or not, to record every point brought forward in mitigation of punishment.

VARIATIONS

Alteration of plea [*Rule 44* (4)]

The court being satisfied from the statement of the accused (*or* the summary of evidence, *or otherwise*), that the accused did not understand the effect of the plea of "guilty" enters in the proceedings: The court consider that the accused does not understand the effect of his plea of "guilty", alter the record, and enter a plea of "not guilty".

(Instruction.–*The court will then proceed in respect of the charge as on a plea of not guilty).*

Witnesses for defence on plea of guilty [*Rule* 44 (6)]

The court give permission to the accused to call witnesses to prove his above statement that (*here specify the statement which is to be proved*).

(Instruction.–*The examination, etc., of witnesses called in pursuance of this permission will proceed in the same manner as on a plea of not guilty*).

Question to the Accused.–

Do you wish to call any witnesses as to character?

Answer.–

(Instruction.– T*he examination, etc., of witnesses as to character will proceed as in the case of a witness giving evidence as to the facts of the case*).

PROCEEDINGS ON PLEA OF NOT GUILTY

Question to accused.– Do you wish to apply for adjournment on the ground that any of the rules relating to procedure before the trial have not been complied with, and that you have been prejudiced thereby, or on the ground that you have not had sufficient opportunity for preparing your defence?

(Instruction.– *If accused desires to make an application for an adjournment, the court will hear any statement or evidence which he may desire to adduce in support thereof, and any statement of the prosecutor or evidence in answer thereto. Such statement or evidence will be recorded, together with the decision of the court on a separate sheet of paper, attached to the proceedings and signed by the president of the court or judge-advocate.)*

The prosecutor makes an opening address, (*or* hands in a written address), which is read, (orally translated), marked …… …… signed by the president (judge-advocate), and attached to the proceedings.

(Instruction.–*Where the address of the prosecutor is not in writing, the court should record so much as appears to them material, and the record should be attached to the proceedings*).

The prosecutor proceeds to call witnesses.

First witness for prosecution *.....being duly sworn (affirmed) is examined by the prosecutor.

Cross-examined by the Accused (*or* by counsel, *or* defending Officer).

Re-examined by the Prosecutor

Questioned by the Court

[Instruction.–(1) *The fact that Rule* 124 (2), (3) *and* (4) *has been complied with must be recorded at the conclusion of the evidence of each witness.*

*(*2) *If the accused, or his counsel, or defending officer declines to cross-examine a witness that fact must be recorded*].

VARIATIONS

Postponement of Cross-Examination (*Rule*-118)

The court, at the request of the accused, allow the cross-examination of the witness to be postponed.

Objection to evidence or procedure (Rule 74)

The accused (or counsel or defending officer *or* the prosecutor) objects to the following question on the ground that (*set out*).

The Court is closed to consider their decision.

---

* *Here insert his number, rank, name, regiment and appointment (if any) or other description.*

The court overrule (*or* allow) the objection, and the Court is reopened and the decision announced and the court proceed with the trial.

Explanation or correction of evidence [Rule 124 (2)]

The witness, on his evidence being read to him, makes the following explanation *or* correction (*set out*).

Examined by the prosecutor as to the above explanation or correction.

Examined by (*or* on behalf of) the accused as to the above explanation or correction.

The prosecutor and accused (*or* counsel *or* defending officer) declines to examine him respecting the above explanation *or* correction.

Second witness for prosecution ..... begin duly sworn (affirmed) is examined by the prosecutor.

(*The examination etc., of this and every other witness proceeds as in the case of the first witness.)*

VARIATION

Adjournment

At …… o'clock the court adjourn until …… o'clock on the …… of …… 20 ……

On the…… of …… 20……, at…… o'clock, the court reassemble, pursuant to adjournment; present the same members as on the…… of……

[Instruction.– (1) *If upon reassembly a member is absent, and his absence will reduce the court below the legal minimum, and it appears to the members present that the absent member cannot attend within a reasonable time the president or senior member present will thereupon report the case to the convening authority.*

(2) *If either the president or the judge-advocate is absent, and cannot attend within a reasonable time, the court will adjourn, and the president or senior member present will thereupon report the case to the convening authority.* (*See Rules 69 and* 70)

ABSENCE OF MEMBER.

(r*ank*.....*name*.....*regiment*) being absent.

A medical certificate (*or* letter, or as the case may be) is produced, read, marked ……, and attached to the proceedings.

The court adjourn until

or,

There being present …… (*not less than the legal minimum)* members, the trial is proceeded with.

An order bearing date ..... appointing president of the court martial in the place of ..... is read, marked .....signed by the president (judge-advocate) and attached to the proceedings.

The trial is proceeded with…….. Examination (cross-examination) of ..... continued.

The prosecution is closed.

DEFENCE

Question to the Accused.–

Do you intend to call any witness in your defence?

Answer.–

Question.–

Is he a witness as to character only?

Answer.–

Instruction to the Court

(1) *When the answers to the above question have been recorded the court will follow the provisions of Rules 47 and 48 respecting the order of evidence and addresses which is applicable to the circumstance of the case.*

(2) *All addresses by prosecutor, accused, counsel or defending officer, whether recorded by the court or handed in writing, will be attached to the proceedings in the order in which they are made. Written addresses will be read to the Court, marked and signed by the president.*

If any person who is entitled to make an address declines to do so, a record will be made to that effect.

(*Where any evidence is given for the defence*).

The evidence of the witness for the defence (including witnesses as to character) is recorded on a separate page.

Question to the Accused.–

Have you anything to say in your defence?

Answer.–

The accused in his defence says [*See Instruction* (1) *below*] [*or* hands in a written address, which is read (orally translated) marked signed by the president (*or* judge-advocate) and attached to the proceedings].

[Instruction.–(1) *in this space will be recorded any oral statement or address made by the accused in his defence. (For any additional address which he is entitled to make. See instructions to the Court above.*)

(2) *If the statement of the accused is not in writing, and is delivered by himself, the material portions should be taken down in the first person and as nearly as possible in his own words.*

Any matter which is requested by or on behalf of the accused to be recorded should be recorded, and care must be taken, whether a request is made or not, to record every point brought forward in the defence or in mitigation of punishment.]

[Instruction— *All evidence given upon oath (or affirmation) will be recorded in the following form]:–*

First witness for the defence	*.....	being duly sworn (affirmed) is examined by the accused (*or* counsel *or* defending officer)

Cross-examined by the Prosecutor

Re-examined

Questioned by the Court

[Instruction.–(1) *The fact that Rule* 124 (2), (3) *and* (4) *has been complied with should be recorded.*

(2) *If the prosecutor declines to cross-examine, that fact must be recorded.*

(3) *The evidence of witnesses to character will be taken in the same manner as that of witness to the facts.*]

VARIATIONS

Adjournment to prepare Defence

The court at the request of accused (*or* counsel *or* defending officer) adjourn until ..... in order to enable him to prepare his defence.

Recalling witnesses (Rule 126)

(1) At the request of the prosecutor (*or* of the accused) ..... ……. is recalled and examined on his former oath (or affirmation) through the president (*or* judge-advocate) and states as follows (*set out*);

or,

(2) The prosecutor with the leave of the Court calls (*or* recalls) …… for the purpose of rebutting a material statement made by a witness for the defence. The witness being duly sworn (*or* on his former oath) being examined by the Prosecutor states as follows (*set out with any cross-examination, re-examination, etc.);*

---

* *Here insert his number, rank, name, regiment and appointment (if any) or other description.*

or,

(3) The prosecutor calls (*or* re-calls) in reply to the witness(es) as to character called by the accused. The witness being duly sworn or affirmed (*or* on his former oath or affirmation) being examined by the prosecutor states as follows (*set out with any cross-examination, re-examination, etc.);*

or,

(4) The court in accordance with Rule 126(4) calls (*or* recalls) ..... who being duly sworn or affirmed (*or* on his former oath or affirmation) states in reply to the president (*or* judge-advocate) as follows (*set out*).

[Instruction.– *In* (1), (2) *and* (3) *witness must be called or recalled before the closing address of or on behalf of the accused. In* (4) *witnesses may be called by the Court at any time before the finding; in this case the accused or counsel or defending officer should be given the opportunity of asking further questions through the court*].

Adjournment to prepare Addresses, etc.

The court, at the request of the accused (counsel *or* defending officer) adjourn until …… to enable the accused (counsel *or* defending officer) to prepare his address.

The court, at the request of the prosecutor adjourn until …… to enable the prosecutor to prepare his reply.

The court at the request of the judge-advocate, adjourn to enable him to prepare his summing-up.

The accused (counsel *or* defending officer) makes the following closing address (*or* hands in a written closing address) which is read (orally translated) marked ……, signed by the president (*or* judge-advocate), and attached to the proceedings,

or,

The accused (counsel *or* defending officer) declines to make a closing address.

The prosecutor makes the following reply (*or* hands in a written reply) which is read (orally translated) marked .....signed by the president (*or* judge-advocate) and attached to the proceedings,

or,

The prosecutor declines to reply.

Summing-up

The judge-advocate hands in a written summing up, which is read (orally translated), marked …… signed by the president, and attached to the proceedings,

or,

The judge-advocate and the Court think a summing-up unnecessary.

[Instruction.–(1) *The occasions when the prosecutor's closing address must precede that of the accused (counsel or defending officer) are given in Rule 47* (2) (*i*) (c) *and 47(2)* (*ii*) (*d*).

(2) *Where the address of the prosecutor (or counsel or the defending officer) is not in writing, the court should record as much as appears to them material, and so much as the prosecutor (or counsel or the defending officer) requires to be recorded.*

Care must be taken, whether a request is made or not, to record every point brought forward in the defence or in mitigation of punishment.

If the address of the accused is not in writing and is delivered by himself, the material portions should be taken down in the first person, and as nearly as possible in his own words.]

FINDING

*The court is closed for the consideration of the finding.

(1) *Acquittal on all charges.*

The court find that the accused (N*umber..... Rank ....., Name ....., Regiment .....)* is not guilty of the charge (or, all the charges) (and honorably acquit him of the same);

Signed at ..... this ..... day of ..... 20.....,

(Judge-Advocate) (President).

(2) *Acquittal on some but not all charges.*

Is not guilty of the .....charge(s) (and honorably acquit him of the same) but is guilty of the …… charge(s);

(3) *Conviction on all charges.*

Is guilty of the charge (or, all the charges);

(4) *Special Findings.*

(a) Is guilty of the ..... charge(s) and guilty of the ..... charge with the exception of the words (*set out*) [*or*, with the exception that (*set out*)].

or,

(b) Is not guilty of (desertion) but is guilty of (absence without leave).

[Instruction.–*Any special finding permitted by Rule 51 (4) will be framed as far as possible in accordance with* (*a*). *Any special finding allowed by section* 111 *of the Army Act may be expressed in accordance with* (b)].

(5) *Reference to confirming authority* [*Rule* 51 (3)].

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* *To be struck out except in cases where trial has taken place on a plea of 'not guilty'.*

The court find as regards the .....charge that the accused did (*set out facts which the court find to be proved*), but doubt whether the facts proved show the accused to be guilty of the offence charged [or of the offence of (*any offence of which the accused might under the Act legally be found guilty on the charge as laid*)]. They, therefore, refer to the confirming authority for opinion and adjourn.

or,

(5) Rule 51 (7)

(**NOTE**.–This applies only to alternative charges).

The court find that the accused did (set out such particulars of the charges as the court find to be proved), but doubt whether such facts constitute in law the offence stated in the .....charge or in the ..... charge.

They, therefore, refer to the confirming authority for an opinion and adjourn.

(*in either case*)

The court reassemble on the ..... day of..... 20……. The opinion of the confirming authority is read, marked ..... signed by the president and attached to the proceedings.

The court now find the accused (Number …….., Rank ....., Name ....., Regiment…….....) is *(the findings to be recorded in the usual manner).*

(6) *Insanity.*

The court find that the accused (Number. ..... , Rank ..... , Name ..... , Regiment .....) committed the (acts) alleged as constituting the offence (offences) specified in the charge (charges) but was by reason of unsoundness of mind incapable of knowing the nature of that act (those acts) (or but was by reason of unsoundness of mind incapable of knowing that that act was wrong) (those acts were) (or contrary to law).

Signed at ..... this ..... day of 20

(Signature) (Signature)

Judge-Advocate President

PROCEEDINGS ON CONVICTION

Before sentence

*The court being reopened the accused is again brought before it. (Rank ....., Name ....., Regiment .....) is duly sworn (or affirmed).

* *Where the court is already open this sentence will be struck out.*

Question by President.–

What record have you to produce in proof of former convictions against accused and of his character?

Answer by witness.–

I produce a statement certified under the hand of the officer having custody of the service (*or other official*) records.

The statement is read (orally translated), marked ..... signed by the president (judge-advocate), and attached to the proceedings.

Question.–

Is the accused the person named in the statement you have heard read ?

Answer.–

Question.–

Have you compared the contents of the above statement with the service (or other official) records?

Answer.–

Questions.–

Are they true extract from the service (*or other official*) records and is the statement of entries in the defaulter sheet a fair and true summary of those entries?

Answer.–

Cross-examined by the accused (*or* by counsel *or* defending officer).

Re-examined

or,

The accused declines to cross-examine this witness.

[Instruction.– (1) *If any evidence, other than documentary, is given, the fact that Rule* 124 (2), (3) *and* (4) *has been complied with will be recorded.*

(2) *Any further question will be put and any evidence produced which the court require as to any point respecting the character and service of the accused on which the court desire to have information for the purpose of their sentence.*

(3) *At the request of the accused, or by the direction of the court, the service or other official books, or a certified copy of the material entries therein, must be produced for the purpose of comparison with the statement.*

The accused is entitled to call the attention of the court to any entries in the service or other official books, or in the certified copy above mentioned, and to show that they are inconsistent with the statement.

When all the evidence on the above matters has been given the accused may address the court thereon.

(4) *If by reason of the nature of the service of the accused, the finding of the court renders him liable to any exceptional punishment, in addition to that to be awarded by the court, the prosecutor must call the attention of the court to the fact, and the court must inquire into the nature and amount of that additional punishment*].

Question to the Accused.–

Do you wish to address the court?

Answer.–

The court is closed for the consideration of the sentence.

SENTENCE

(Instruction.–*The provision of Sections* 60 *to* 62 *and* 98 *of the Army Act must be carefully attended to by the Court in passing sentence.)*

Sentence	The court sentence the accused (Number ....., Rank ....., Name ..... , Regiment .....) (Instruction.–*The sentence is to be marginally noted in every case*).

In the case of an officer:–

Death.	(*a*) to suffer death by being hanged by the neck until he be dead, or to suffer death by being shot to death.
Transportation for.	(*b*) to suffer transportation for the term of …… years (or for life).
Rigorous Imprisonment for.	(*c*) to suffer rigorous imprisonment for ……...
Dismissal	(*d*) to be dismissed from the service. (Instruction.–*A sentence of dismissal should precede a sentence of imprisonment or transportation.)*
Forfeiture of seniority of rank.	(*e*) to take rank and precedence as if his appointments as bore date the .....day of ..... *or,* to take precedence in the rank held by him, as if his name had appeared …… *(a specified number of) places lower in the Bangladesh Army List.*
Forfeiture of service of promotion	(f) to forfeit..... service for the purpose of promotion. (Instruction.–This applies only in the case of an officer whose promotion depends upon length of service, and a sentence, can be inflicted in respect of all or any part of his service).

Severe reprimand or reprimand.

(*g*) to be severely reprimanded (*or* reprimanded);

Forfeiture.

(*h*) to forfeit (all or ..... years, or ..... months past service for the purpose of .....

(*i*) to forfeit all arrears of pay and allowances and other public money due to him at the time of his dismissal.

(*j*) (*If on active service*) to forfeit pay and allowances for a period of.

Stoppages.

(*k*) To be put under stoppages of pay and allowances until he has made good the sum of..... in respect of *or* (and) until he has made good the value of the following articles, *viz.;*

value,…….. value,…… etc.

In the case of junior commissioned officers and other persons subject to the Army Act:–

Death

(l) To suffer death by being hanged by the neck until he be dead, or to suffer death by being shot to death.

Transportation for.

(*m*) To suffer transportation for a term of ..... year (*or* for life).

Rigorous Imprisonment for

(*n*) To suffer rigorous imprisonment for .....

Dismissal.

(*o*) To be dismissed from the service.

Field punishment number for

(*p*) (*If under the rank of Warrant Officer, and on active service)* to suffer field punishment. Number. ..... for .....

Detention

(*q*) (*If under the rank of Warrant Officer*) to suffer detention for ……

(Instruction.– In the case of non-commissioned officer, a sentence of reduction to the ranks should precede a sentence of transportation, imprisonment, detention, dismissal or field punishment, although those sentences necessarily involve a reduction to the ranks.)

Reduction to.

(r) (If non-commissioned officer),

(1) To be reduced to the ranks; or,

(2) To be reduced to (a lower rank).

Forfeiture of seniority

(s) (If a junior commissioned officer or a non-commissioned officer),

(1) to take and precedence as if his appointment to the rank of …… bore date .....;

or,

Forfeiture of service for promotion

to forfeit ..... service for the purpose of promotion.

(Instruction.–*This applies only in the case of a junior commissioned officer or a non-commissioned officer whose promotion depends upon length of service).*

Severe reprimand or reprimand

(2) to be severely reprimanded (*or* reprimanded);

Forfeiture

(t) to forfeit (all *or* ..... years, *or* …….. months) past service for the purpose of .....;

(u) to forfeit all arrears of pay and allowances and other public money due to him at time of his dismissal;

(*v*) (*If on active service*) to forfeit pay and allowances for a period of ;

Stoppages.

(*w*) to be put under stoppages of pay and allowances until he has made good the sum of.....in respect of ..... *or* (and) until he has made good the value of the following articles, *viz.,*……value……, value…….., etc.

[Instruction.–*In the case of warrant officer, a court-martial must use one of the following forms either in lieu of, or in addition to, such of the foregoing forms (t),* (*u*), (*v*) *and* (*w*) *as relate to forfeitures and stoppages,* see *Army Act Section 98 ; a general court-martial may use them in lieu of, or in addition to, the foregoing forms.*]

(x) to be dismissed from the service ;

or,

(y) to be reduced to (*a lower grade*)

or,

to be reduced to an inferior class of warrant officer; that is to say, to .....

or,

(*z*) to be reduced in the list of his rank as if his appointment thereto bore date the ..... day of .....

or,

to take rank and precedence as if his appointment to the rank of bore date .....

or,

to forfeit ..... service for promotion;

or,

(zz) to be severely reprimanded (*or* reprimanded).

RECOMMENDATION TO MERCY

The Court recommend the accused to mercy on the ground that (set out).

Signature.

Signed at….....this.....day of ..... 20.

(Signature) (Signature)

Judge-Advocate *President*

REVISION

At ....., on the ..... day of ..... at.....o'clock, the court re-assemble by order of..... .....for the purpose of reconsidering their..... present, the same members as on the.....

[Instruction.– *If a member is absent and the absence will reduce the court below the required minimum, or if he is the president, and it appears to the members present that such absent member cannot attend within a reasonable time, the present, or, in his absence, the senior member present, shall thereupon report the case to the convening authority.*]

The letter (order *or* memorandum) directing the re-assembly of the court for the revision, and giving the reasons of the confirming authority for requiring a revision of the finding (finding and sentence) (*or* sentence) is read, marked……....., signed by the president (judge-advocate), and attached to the proceedings.

(Instruction.– *If the confirming authority so orders, additional evidence may be taken on revision*).

The court having attentively considered the observations of the confirming authority, and the whole of the proceedings;

(*a*) do now revoke their finding and sentence, and find and sentence accused to

or,

(*b*) do now revoke their sentence, and now sentence the accused, etc., etc.,

or,

(*c*) do now respectfully adhere to their (*or* finding and sentence)

Signed at....., this..... day of..... 20.

Judge-Advocate President

CONFIRMATION

Confirmed.

or,

Confirmed. I direct that the sentence of rigorous imprisonment shall be carried by confinement in military custody;

or,

I vary the sentence so that it shall be as follow..... .....and confirm the finding and the sentence so varied;

or,

I confirm the finding and sentence of the court, but mitigate (remit *or* commute.....);

or,

(*Where the confirming officer desires partly to reserve his confirmation*).

I confirm the finding of the Court on the.....and..... charges and reserve for confirmation by superior authority the finding on the.....and.....charges, and the sentence;

or,

I confirm the findings of the court but reserve the sentence for confirmation by superior authority;

or,

I confirm the findings of the court, and the sentence of the court as to....., and reserve the sentence so far as it…… for confirmation by the superior authority;

or,

(*Where the finding is not confirmed*)

Not confirmed *(the reason for non-confirmation may be stated);*

or,

(*Where a plea in bar of trial had been offered under Rule* 43).

The finding of the court that the plea in bar of trial is proved (*or* not proved) is confirmed (*or* not confirmed).

(*Where the court find that the accused is of unsound mind and consequently incapable of making his defence or that he committed the act alleged but was by reason of unsoundness of mind incapable of knowing the nature of the act or that it was wrong or contrary to law*).

Confirmed (*or* not confirmed).

Signed at ....., this ..... day of ..... 20.....

(Signature of confirming authority)

(Instruction.– *Any remarks of the confirming authority should be separate from and form no part of the proceedings).*

PROMULGATION

Promulgated and extracts taken at.....this day of ..... 20.....

(Signature of officer in charge of documents)

(Instruction.– *Proceedings which are not confirmed must be promulgated*).

FORM OF PROCEEDINGS OF A SUMMARY COURT MARTIAL

Proceedings of a summary court martial held at..... on the.....day of.....20....., by……..... commanding the.....for the trial of all such accused persons as he may duly has brought before him,

Present

Commanding the

Attending the trial

Interpreter

(1) The Officer assemble at the.....and the trial commences at.....o'clock.....M.

The accused number..... of the.....is marched into the court....., the court is duly sworn (affirmed).....is duly sworn (affirmed) as Interpreter.

(Instruction.–*If the commanding officer of the accused (i.e., the court) acts as interpreter, he must take the interpreter's oath in addition to the oath prescribed for the court.)*

All witness are directed to withdraw from the court.

The charge-sheet is read, (translated) and explained to the accused, marked....., signed by the court and attached to the proceedings.

(Instruction.–*The sanction of superior authority for trial by summary court-martial should be entered, with the date and signature of the staff officer, at the foot of the charge-sheet, when such sanction is necessary. S*ee *Army Act, Section* 99)

ARRAIGNMENT

Question to accused.–

By the court.– How say you.....are you guilty, or not guilty of the.....charge preferred against you?

Answer.—

Question.—

Are you guilty or not guilty of the ..... charge?

Answer.—

[Instruction.–*If the accused pleads "Guilty" adopt* (2*) and omit* (3), (4) *and* (5)*; if he pleads "Not Guilty" adopt* (3) *and* (4) *and omit* (2)*; if he pleads "Guilty" to some charge or charges and "Not Guilty" to others (not alternative) adopt* (3), (4)*, or (5) and* (2)].

PROCEEDINGS ON PLEA OF GUILTY

(2) The accused (N*umber*....., *Rank*..... *Name*....., *Regiment*….....) is found guilty of the charge (all the charges);

or,

is found guilty of the.....charge, and is found not guilty of the.....charge.

(Instruction.–*If the trial proceeds upon any charge to which there is a plea of not guilty, the court will not proceed upon the record of the plea of guilty until after the finding on those other charges; and in that case the charge on which the record is guilty must be read to the accused again*).

The summary of evidence is read (translated), explained, marked .....signed by the court and attached to the proceedings.

[Instruction.—*If there is no summary of evidence sufficient evidence to enable the court to determine the sentence and to enable the reviewing officer to know all the circumstances connected with the case will be taken as in paragraph (3). No address will be allowed*].

VARIATION

The court being satisfied from the statement of the accused *or* the summary of evidence (*or otherwise*) that the accused did not understand the effect of the plea of "guilty" alters the record and enters a plea of "not guilty".

[Instruction.–*The court will then proceed in respect of this charge as in paragraph* (3)].

Question to accused.—

Do you wish to make any statement in reference to the charge or in mitigation of punishment?

Answer.—

The accused says

Question to accused.—

Do you wish to call any witnesses as to character?

Answer.—

[Instruction.– (1) *The examination of witnesses as to character will proceed as in paragraph* (3).

(2) *Evidence as to character and particulars of service will be taken as in paragraph* (6)].

PROCEEDINGS ON PLEA OF NOT GUILTY

Prosecution

Prosecution 1st witness.

(3) ..... being sworn (affirmed) is examined by the Court.

Cross-examined by the accused.

Re-examined by the Court.

[Instruction.–(1) *The fact that Rule* 124 (2), (3) *and* (4) *has been complied with must be recorded at the conclusion of the evidence of each witness.*

(2) *If the accused declines to cross-examine a witness the fact must be recorded].*

VARIATION

Postponement of Cross-Examination (Rule 118)

The court, at the request of the accused, allow the cross-examination of the witness to be postponed.

The prosecution is closed.

Question to accused.–

Do you intend to call any witnesses in your defence?

Answer.–

DEFENCE

The accused is called upon for his defence and states:–

Defence 1st witness.

.....being duly sworn (affirmed) is examined by the accused.

Cross-examined by the Court.

Re-examined by the accused.

[Instruction.–*The fact that Rule* 124 (2), (3) *and* (4) *has been complied with must be recorded at the conclusion of the evidence of each witness*].

The defence is closed.

Reply

Reply 1st witness.

.....*being duly sworn* (affirmed) is examined by the court.

Question.–

Answer.–

Verdict of the Court

Acquittal on all charges

(4) I am of the opinion on the evidence before me that the accused No.....is not guilty of the charge, (*or* all the charges) (and honourably acquit him of the same).

The verdict is read out and the accused released. He is to return to his duty.

Signed at .....this.....day of..... 20.

Commanding the
holding the trial.

The trial closes at .....o'clock.....M.

Acquittal on some but not all charges

(5) I am of the opinion on the evidence before me that the accused Number.....of the.....is not guilty of the.....charge(s) (and honourably acquit him of the same) but is guilty of the.....charge(s).

Conviction on all charges

is guilty of the charge (all the charges).

Special Findings (*Army Act Section* 111 *and Rule* 105)

is guilty of the.....charge(s) and guilty of the .....charge with the exception of the words (*set out*) is not guilty of (desertion) but is guilty of (absence without leave).

PROCEEDINGS BEFORE SENTENCE

(6) The following minutes by the Court are read and explained.

[Instruction.–*If the court does not record the accused person's convictions and character of its own knowledge, evidence as to these matters will be taken as in the form of proceedings for a general (or district) court martial*].

It is within my own knowledge, from the records of the..... .....that the accused.....has been previously convicted by court martial or criminal court (A separate statement giving full particulars of any previous conviction to be annexed when necessary).

That the following is a fair and true summary of the entries in his defaulter's sheet exclusive of convictions by a court martial or a criminal court.

Within last Since

12 Months Enrolment

For.....times.....times

That he is at present undergoing……..... sentence.

That, irrespectively of this trial, his general character has been

That his age is years months days

his service is years months days

and his rank is years months days

that he has been in arrest (confinement) for.....days.

That he is in possession of the following military decorations and rewards:—

(*Any recognised acts of gallantry or distinguished conduct should also be entered here*).

SENTENCE BY THE COURT

Taking all these matters into consideration, I now sentence the accused Number.....of the.....

Rigorous imprisonment. (a) to suffer rigorous imprisonment for……..... .....and I direct that the sentence of rigorous imprisonment shall be carried out by confinement in military custody.

Dismissal (b) to be dismissed from the service.

Field Punishment number for (c) (I*f on active service*) to suffer field punishment number..... for.....

Detention. (d) to suffer detention for .....

Reduction (e) (I*f a non-commissioned officer*)—

(1) to be reduced to the ranks,

or,

(2) to be reduced to (a lower rank),

or,

(3) to take rank and precedence as if his appointment to the rank of

bore date

Forfeiture of seniority. (4) to forfeit.....service for the purpose of promotion.

(Instruction.—*This applies only to the case of a non-commissioned officer whose promotion depends upon length of service).*

Severe reprimand or reprimand. (f) to be severely reprimanded (*or* reprimanded).

Forfeitures. (g) to forfeit…….....past service for the purpose of.....; to forfeit all arrears of pay and allowances and other public money due to him at the time of his dismissal;

(*if on active service*) to forfeit pay and allowances for a period of.....

Stoppages (h) to be put under stoppages of pay and allowances until he has made good the sum of.....in respect of .....*or* (and) until he has made good the value of following article *viz.,*

value, value,

Signed at....., this.....day of.....20…….

Commanding the holding the trial

The trial closes at.....o'clock .....M.

Remarks by Reviewing Officer

(Army Act, Section 128)

FORMS OF SUMMONS TO WITNESSES

(a) In the case of a Summary of Evidence

To

Whereas a charge of having committed an offence triable by court martial, has been preferred before me against (Number……....., Rank……....., Name....., Unit.....), and whereas I have directed a summary of the evidence to be taken in writing at (place) on the.....day of.....at.....o'clock in the .....noon; I do hereby summon and require you (name)....., to attend as a witness at the said place and hour (and to bring with you the documents hereinafter mentioned namely, ...).

Whereof you shall fail at your peril.

Given under my hand at .....on the..... day of .....20.....

(Signature)
Commanding Officer of the accused

(*b*) In the case of a Court Martial

To

Whereas a.....Court Martial has been ordered to assemble at.....on the..... day of.....20 for the trial of..... of the.....regiment, I do hereby summon and require you (Name)..... to attend, as a witness the sitting of the said court at..... .....on the.....day of..... at.....o'clock in the forenoon (and to bring with you the documents hereinafter mentioned, namely.....), and so to attend from day to day until you shall be duly discharged, whereof you shall fail at your peril.

Given under my hand at ..... on the ..... day of.....20.....

(Signature)
Convening Officer (*or* Judge-Advocate
or President of the Court *or*
Commanding Officer of the Accused)

FORM FOR ASSEMBLY AND PROCEEDINGS OF A FIELD GENERAL COURT MARTIAL

A.—ORDER CONVENING THE COURT

At (place).....this.....day of.....20……

*(1) *Beginning of Form in case falling under clause* (*a*) *of Section* 84 *of the Army Act.*

Whereas it appears to me.....an officer empowered in this behalf by an order of the Bangladesh Government/ Chief of the Army Staff that the person/persons named in the annexed schedule, and being subject to the Army Act, has/have committed the offence/offences in the said schedule mentioned;

†(2) *Beginning of Form in case falling under clause* (*b*) *of Section* 84 *of the Army Act.*

Whereas it appears to me……the officer commanding a portion of the Bangladesh Army on active service that the person/persons named in the annexed schedule, and being subject to the Army Act, has/have committed the offence/offences in the said schedule mentioned;

(3) *End of form applicable to all cases*

I hereby convene a field general court-martial to try said person/ persons and to consist of

*The members and waiting members (if any) may be appointed by name, or only their ranks and units may be mentioned. In the latter event, the ranks, names, etc., of the members of the court, as constituted will be recorded in the proceedings.

[*Here enter the special order* (*if any*) *under Rule* 144 *and any order under Section* 123 *of the Army Act*].

(*Signature of convening officer*)

B. — CERTIFICATE OF PRESIDENT AS TO PROCEEDINGS

I certify that the above court assembled on the..... day of.....20……., and duly tried the person/persons named in the said schedule, and that plea, finding and sentence in the case of such/each such person were as stated in the third and fourth columns of that schedule.

I further certify that the members of the court, the judge advocate, the witnesses and the interpreter were duly sworn or affirmed.

Signed at (place).....this.....day of….....20……...

(*Signature of President*)

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*Only one of these will be used, the one inapplicable being struck out.

†Only one of these will be used, the one inapplicable being struck out.

C. – CONFIRMATION

I have dealt with the finding/findings and sentence/sentences in the manner stated in the last column of the said schedule, and, subject to what I have there stated I hereby confirm the above finding/findings and sentence/sentences.

Signed at (place).....this.....day of….....20……...

(*Signature of confirming officer*)

D. – PROMULGATION

Promulgated and extracts taken at…….. this……day of……20……

(*Signature of officer-in-charge of documents*)

SCHEDULE

Date

Name of alleged offender[23]	Offence charged	Plea	Finding, and if convicted sentence[24]	How dealt with by confirming officer
1	2	3	4	5
Rahim Bakhsh(contractor)…	Theft of Government Property	Guilty	Guilty Rigorous imprisonment for……	Confirmed. I remit..... A……B……
262 Sainik Jahan Dad, ……Regiment.	Breaking into house for plunder.	Not Guilty	Guilty. Field punishment number. I for two months.	
564 Sainik Hussain Khan, ….....Regiment.	Sleeping on post on active service.	Not Guilty	Guilty. Rigorous imprisonment for six years. Recommended to mercy.	Confirmed, but commuted to field punishment number 1 for three months. A……B……
Person accompanying force (name unknown), white jacket and trousers, scar on right cheek.	Impeding Provost-marshal	Not Guilty	Not Guilty	Confirmed A……B……
Sainik in uniform of…… Regiment (name unknown).	Civil offence Rape.	Not Guilty	Guilty. Transportation for life.	Confirmed A.....B.....
A……B…… Convening Officer.				A……B…… President.

[23] *If the name of the person charged is unknown, he may be descried as unknown, with such addition as will identify him.*

[24] *Recommendation to mercy to be inserted in this column*

FOURTH APPENDIX

FORM A

Warrant committing to civil prison custody a person sentenced to death (Army Act, Rule 150).

To the Superintendent of the (a) …… Prison

Whereas at a (b)……Court Martial held at …….. on the.....day of.....20.....(Number, Rank and Name) of the.....Regiment was convicted of……..... offence to be briefly stated);

And whereas the said (b) ..... Court Martial, on the .....day of.....20....., passed sentence of death on the said……Name);

And whereas the said sentence has been confirmed by (c)…… as required by law;

This is to require and authorise you to receive and hold the said…… ……(Name) into your custody in the said prison as be law is required, together with this warrant, until such time as a further warrant in respect of the said……(Name) shall be issued to you.

Given under my hand at .....this the.....day of .....20……

Signature (d)

(a) Enter name of civil prison.

(b) General or Field General.

(c) Name and description of confirming authority.

(d) Signature of commanding officer of prisoner.

FORM B

Warrant to obtain person sentenced to death from civil prison custody in order to carry out such sentence (Army Act, Rule 151).

To the Superintendent of the (a)……..Prison.

Whereas…… (Number, Rank and Name) (late) of the .....Regiment having been sentenced to suffer death on the .....day of.....19.....by, a (b)……..... Court Martial held at..... is held in the said prison under a warrant issued by (c).....

And whereas, the said sentence having been duly confirmed by (d) .....as by law required, an order to carry out the said sentence has been issued to me (c).....(Name and Rank);

This is to require and authorise you to deliver forthwith the said…… ……(Name) to the officer/junior commissioned officer/non-commissioned officer bringing this warrant.

Given under my hand at.....this the..... day of .....20.....

Signature (f)

(a) Enter name of civil prison.
(b) General or Field General.
(c) Enter name or designation of officer who signed original warrant.
(d) Name and description of confirming authority.
(e) Name and designation of the officer to whom the order is issued.
(f) Signature of the officer by whom the order is issued.

FORM C

Warrant for use when the sentence of a person under sentence of death and committed to custody in a civil prison is commuted to a sentence of transportation (Army Act, Rule 152).

To the Superintendent of the (a) …… Prison

Whereas.....(Number, Rank and Name) (late) of the.....Regiment, is held in the (a) ..... prison under a warrant issued by (b)..... in pursuance of a sentence of death passed upon him by (c)……..... Court Martial held at…….....on.....and whereas (d)..... has, in exercise of the powers conferred upon him by the Army Act, 1952, passed the following order regarding the aforesaid sentence, that is to say:–(e).....
.....
……

This is to require and authorise you to keep the said…… (Name) in your custody together with this warrant, in the said prison as by law is required until he shall be delivered over by you with the said warrant to the proper authority and custody for the purpose of his undergoing the punishment of transportation, under the said order. And this is further to require and authorise you to return to me the original warrant of commitment in lieu whereof this warrant is issued. The period of such transportation will reckon from the (f)……

Given under my hand at.....this the.....day of .....20.....

Signature (g)

(a) Enter name of civil prison.
(b) Enter name or designation of officer who signed original warrant.
(c) General or Field General.
(d) Name and designation of authority commuting the sentence.
(e) Order to be set out in full.
(f) Enter date on which original sentence was signed.

(g) Signature of Commanding Officer.

FORM D

Warrant for use when the sentence of a person under sentence of death and committed to custody in a civil prison, is commuted to a sentence of rigorous imprisonment to be served in the same prison (Army Act, Rule 152).

To the Superintendent of the (a)……Prison.

Whereas……(Number, Rank and Name) (late) of the.....Regiment, is held in the (a)…….....prison under a warrant issued by (b)….....in pursuance of a sentence of death passed upon him by a (c).....Court Martial held at…….....on.....and whereas (d)..... has, in the exercise of the powers conferred upon him by the Army Act, 1952, passed the following order regarding the aforesaid sentence, that is to say :– (e) ……..……
……
……

This is to require and authorise you keep the said..... (Name) in your custody together with this warrant, and there to carry into execution the punishment of rigorous imprisonment under the said order according to law. And this is further to require and authorise you to return to me the original warrant of commitment in lieu whereof this warrant is issued. The period of such rigorous imprisonment will reckon from the (f).....

Given under my hand at.....this the.....day of .....20.....

Signature (g)

(a) Enter name of civil prison.

(b) Enter name or designation of officer who signed original warrant.

(c) General or Field General.

(d) Name and designation of authority commuting the sentence.

(e) Order to be set out in full.

(f) Enter date on which original sentence was signed.

(g) Signature of commanding officer.

FORM E

Warrant for use when a person who, after having been sentenced to death, has been committed to custody in civil prison is to be delivered into military custody for a purpose other than carrying out the sentence of death (Army Act, Rule 152).

To the Superintendent of the (a)..... Prison

Whereas..... (Number, Rank and Name) (late) of the .....Regiment, is held in the (a).....prison under

a warrant issued by (b)..... in pursuance of a sentence of death passed upon him by a (c)..... Court Martial held at.....on.....and whereas (d)..... has, in exercise of the powers conferred upon him by the Army Act, 1952, passed the following order regarding the aforesaid sentence, that is to say:–(e).....
.....
..

This is to require and authorise you to forthwith deliver the said..... .....(Name) to the officer/junior commissioned officer/non-commissioned officer bringing this warrant.

Given under my hand at.....this the ..... day of .....20.....

Signature (f)

(a) Enter name of civil prison.

(b) Enter name or designation of officer who signed original warrant.

(c) General or Field General.

(d) Name and designation of authority issuing order.

(e) Order to be set out in full.

(f) Signature of Commanding Officer.

WARRANTS UNDER SECTIONS 136 AND 141 OF
THE ARMY ACT, 1952

FORM F

Warrant of commitment for use when a prisoner is sentenced to transportation (Army Act, section 136).

To the Superintendent ..... of the (a) .....Prison.

Whereas at a (b)..... Court Martial, held at .... on the ..... day of ..... 20....., ...(Number, Rank, Name) ..... of the.....Regiment..... was convicted of (the offence to be briefly stated here, as "corresponding with the enemy", "joining in a mutiny" or as the case may be).

And whereas the said (b).....Court Martial on the .....day of.....20....., passed the following sentence upon the said (Name).....; that is to say:–

(Sentence to be entered in full, but without signature)

And whereas the said sentence has been duly confirmed by (c) as required by law. (d)

This is to require and authorise you to receive the said (Name) into your custody in the said prison as by law is required, together with this warrant, until he shall be delivered over by you with the said warrant to the proper authority and custody for the purpose of undergoing the aforesaid sentence of transportation. The aforesaid sentence has effect from the (e).....

Given under my hand at.....this the ..... day of .....20…….....

Signature (f)

(a) Enter name of civil prison.

(b) General or Field General.

(c) Name and description of confirming authority.

(d) Add if necessary "with a remission of".

(e) Enter date on which the original sentence was signed.

(f) Signature of Commanding Officer of prisoner or other prescribed officer. *See* Rule 153.

FORM G

Warrant of commitment for use when a prisoner is sentenced to imprisonment which is to be undergone in a civil prison (Army Act, Section 136).

To the Superintendent ..... of the (a) .....prison.

Whereas at a (b).....Court Martial, held at ....on the.....day of.....20..... .....(Number, Rank, Name).....of the.....Regiment.....was duly convicted of (the offence to be briefly stated here, as 'desertion', 'theft', 'receiving stolen goods', 'fraud', 'disobedience of lawful command' or as the case may be).

And whereas the said (b).....Court Martial on the .....day of.....20....., passed the following sentence upon the said (Name).....; that is to say:–

(Sentence to be entered in full, but without signature)

And whereas the said sentence.....

(c) <u>has been duly confirmed by (d) as required by law.</u> (e)

is by law valid without confirmation.

This is to require and authorise you to receive the said (Name) into your custody together with its warrant, and there carry the aforesaid sentence of rigorous imprisonment into execution according to law. The sentence has effect from the (f).....

Given under my hand at .....this the ..... day of .....20.....

Signature (g)

(a) Enter name of civil prison.
(b) General, District, Filed General or Summary.
(c) Strike out inapplicable words.
(d) Name and description of confirming authority.
(e) Add if necessary "with a remission of".
(f) Enter date on which the original sentence was signed.
(g) Signature of Commanding Officer of prisoner or other prescribed officer. *See* Rule 153.

FORM H

Warrant for use when a prisoner ~~is pardon~~ed or his trial set aside, or when the whole sentence, or the unexpired portion thereof, is remained (Army Act, section 141).

To the Superintendent ..... of the (a) .....prison.

Whereas (Number, Rank, Name) (late) ..... of the.....Regiment is confined in the (a) ..... prison under a warrant issued by (b).....in pursuance of sentence of (c)..... passed upon him by a (d)..... .....Court Martial held at.....on..... and whereas (e).....has, in the exercise of the powers conferred upon him by the Army Act, 1952, passed the following order regarding the aforesaid sentence; that is to say:–

(f) ……...
……

This is to require and authorise you to forthwith discharge the said (Name) from your custody unless he is liable to be detained for some other cause; and for your so discharging him this shall be your sufficient warrant.

Given under my hand at .....this the.....day of .....20.....

Signature (g)

(a) Enter name of civil prison.
(b) Enter name or designation of officer who signed original warrant.
(c) Enter original sentence (if this was reduced by the Confirming officer or other superior authority the sentence should be entered thus :–
"2 years' rigorous imprisonment reduced by confirming officer to 1 year")
(d) General, District, Field General or summary.
(e) Name and designation of authority pardoning prisoner, mitigating sentence of setting aside trial.
(f) Order to be set out in full.
(g) Signature of prescribed officer.-*See* Rule 154.

FORM I

Warrant for use when a sentence of transportation is reduced by superior authority to one of a shorter period of the same (Army Act, section 141).

To the superintendent.....of the (a) .....prison.

Whereas (Number, Rank, Name) (late) of the ....Regiment is confined in the (a) ..... prison under a warrant issued by (b).....in pursuance of a sentence of (c) ..... passed upon him by a (d)..... .....Court Martial held at ..... on ..... and whereas (e).....has, in the exercise of the powers conferred upon him by the Army Act, 1952, passed the following order regarding the aforesaid sentence ; that is to say:–

(f)……..…… …… …… ……

This is to require and authorise you to keep the said (Name) in your custody together with this warrant, in the said prison as by law is required until he shall be delivered over by you with the said warrant to the proper authority and custody for the purpose of his undergoing the punishment of transportation, under the said order. And this is further to require and authorise you to return to me the original warrant of commitment in lieu whereof this warrant is issued. The period of such transportation will reckon from the (g).

Given under my hand at.....this the ..... day of .....20.....

Signature (h)

(a) Enter name of civil prison.
(b) Enter name or designation of officer who signed original warrant.
(c) Enter original sentence (if this was reduced by the Confirming officer or other superior authority the sentence should be entered thus :–
"2 years' rigorous imprisonment reduced by confirming officer to 1 year")
(d) General, or Filed General.
(e) Name and designation of authority varying the sentence.
(f) Order to be set out in full.
(g) Enter date on which original sentence was signed.
(h) Signature of prescribed officer.-*See* Rule 154.

FORM J

Warrant for use when a sentence of imprisonment is reduced by superior authority or when one of transportation is reduced to one of imprisonment (Army Act, section 141).

To the Superintendent ..... of the (a) .....prison.

Whereas (Number, Rank, Name) (late) of the ....Regiment is confined in the (a)..... prison under a warrant issued by (b).....in pursuance of a sentence of (c) .....passed upon him by a (d).....Court Martial held at……..... on.....and whereas (e).....has, in the exercise of the powers conferred upon him by the Army Act, 1952, passed the following order regarding the aforesaid sentence; that is to say:–

(f)..... ....

This is to require and authorise you to keep the said (Name) in your custody together with this warrants, and there to carry into execution the punishment of rigorous imprisonment under the said order according to law. And this is further to require and authorise you to return to me the original warrant of commitment in lieu whereof this warrant is issued. The period of such imprisonment will reckon from the (g).

Given under my hand at.....this the..... day of.....20.....

Signature (h)

(a) Enter name of civil prison.

(b) Enter name or designation of officer who signed original warrant.

(c) Enter original sentence (if this was reduced by the Confirming officer or other superior authority the sentence should be entered thus:–
"2 years' rigorous imprisonment reduced by Confirming officer to 1 year")

(d) General, District, Field General of summary.

(e) Name and designation of authority varying the sentence.

(f) Order to be set out in full.

(g) Enter date on which original sentence was signed.

(h) Signature of prescribed officer.-*See* Rule 154.

FORM K

Warrant for use when prisoner is to be delivered into military custody (Army Act, section 141).

To the Superintendent ..... of the (a) .....prison.

Whereas (Number, Rank, Name) (late) of the ....Regiment is confined in the (a)..... prison under a warrant issued by (b).....in pursuance of a sentence of (c).....passed upon him by a (d)..... .....Court Martial held at..... on..... and whereas (e).....has, in the exercise of the powers conferred upon him by the Army Act, 1952, passed the following order regarding the aforesaid sentence; that is to say:–

(f)..... ....

This is to require and authorise you to forthwith deliver the said (Name) to the officer/junior commissioned officer/non-commissioned officer bringing this warrant.

Given under my hand at.....this the ..... day of .....20.....

Signature (g)

(a) Enter name of civil prison.

(b) Enter name or designation of officer who signed original warrant.

(c) Enter original sentence (if this was reduced by the Confirming officer or other superior authority the sentence should be entered thus :– "2 years' rigorous imprisonment reduced by confirming officer to 1 year")

(d) General, District, Field General of summary.

(e) Name and designation of authority varying the sentence.

(f) Order to be set out in full.

(g) Enter date on which original sentence was signed.

(h) Signature of prescribed officer.-*See* Rule 154.

FIFTH APPENDIX

ABSTRACT OF EVIDENCE

Abstract of evidence (sub rule 13A) in the case of .....(Number, Rank, Name, Unit or other description) consisting of the..... (insert the number of statements) attached statements and..... (insert the number of précis) précis of evidence[25] or witness as for the prosecution and complied by me (the commanding officer or the accuser) (……[26]on the direction of the commanding officer of the accused).

Date.....20..... ……..

(Signature and rank)

CERTIFICATE TO BE ATTACHED TO ABSTRACT OF EVIDENCE AFTER A COPY THEREOF HAS BEEN HANDED OVER

TO THE ACCUSED

Certified that I……..... [27] .....today handed over to the accused….....[28]a copy of the abstract of evidence relating to him dated the.....day of ..... 20 .....and duly cautioned him in accordance with Army Act, Rule 13A(2) and that he (elected to make and sign the statement dated the .....day of 20.....which is marked..... and attached to this certificate) (did not make a statement).

……..

(Signature of certifying officer)

Dated.....20.....

---

[25] *Strike out any reference to statements or précis which are not applicable.*

[26] *Insert name rank of the officer making the abstract.*

[27] *Insert rank, make and unit of officer signing the certificate.*

[28] *Insert the number, rank, unit or other description of the accused.*

MEMORANDA FOR THE GUIDANCE OF OFFICERS CONCERNED WITH COURTS MARTIAL

The following memoranda as to courts martial are intended for the guidance of commanding and convening officers and others with a view to securing uniformity of practice and to avoiding some common mistakes.

These memoranda do not form part of the Appendices to the Army Act Rules.

Summary of Evidence

1. The officer detailed to record a summery of evidence should:

(a) Make himself acquitted with all the circumstances of the case and the testimony of the witnesses who gave evidence before the commanding officer, and carefully consider whether any additional evidence is relevant and necessary [*see* Army Act Rule 13 (4)].Intelligent and patient investigation will often result in the discovery of a missing link in the chain of evidence, of corroborating evidence or of evidence tending to exculpate the accuse. It may even save an unnecessary or abortive court martial.

(*b*) Before taking down the evidence:–

(i) Consider what offence or offences appear to have been committed.

(ii) Consider the essential elements of such offence, or of each offence.

(*iii*) Consider what facts and circumstances must be proved in order to establish not only the commission of an offence but also the commission of it by the accused, *i.e.,* what facts are relevant to the issue.

(*iv*) Consider what evidence should be adduced in order to prove each material fact; in other words, how it is proposed to prove each of the necessary facts by admissible evidence. He will generally find it convenient to ascertain from each witness roughly what evidence that witness can give before actually taking down the evidence.

(*c*) When reducing the evidence of witnesses to writing:–

(i) Take down the evidence on oath or affirmation and arrange it, both in the statements of witnesses and in the summary, as far as possible so that events are set out in chronological order and the court may have a connected story to consider.

A statement of evidence as to facts should commence by recording the place, date and time (if material) to which the evidence refers.

(ii) Ensure that only such evidence as is admissible in law is adduced, particularly eliminate all irrelevant and hearsay statements.

(iii) Avoid attempting to tell the story of the crime by recording conversations at which the accused was not present.

(iv) Ascertain that any document intended to be produced is legally admissible in evidence. Every document intended to be produced to the court must be produced by a witness and described and, where necessary, identified by a witness able to do so. For example, where a document has been acknowledged as correct or signed by an accused, evidence must be given to show that he has acknowledged it or his signature must be identified. Mark and number documents according to order of production.

(*v*) Arrange for the preparation, production and proof of plans where necessary [*See* Note to Rule 14(I)].

(vi) Record the evidence of witnesses as nearly as possible in their own words and expressions. When evidence is not given in English, it will be interpreted and recorded in English.

(vii) If the accused has to any person or at any time said anything by way of explanation or admission of any of the facts in issue, consider the circumstances in which the statement was made, and if it is admissible, let a witness be called to prove it.

(viii) Remember that, when it is proposed to tender evidence of an admission or confession, it is desirable that evidence

should first be adduced by the prosecution of the circumstances in which it was made to show that it was voluntary, though under law the onus lies upon the accused of showing that a confession made by him was not voluntary (*See Part I,* Chapter-V, paras. 28, *et seq*).

(ix) With regard to the attendance of witnesses, take advantage, where desirable, of the provisions of Rule 13(8). The written statements of such witnesses must be signed and certified as required by this rule.

(x) Remember that a civilian witness can be compelled to attend the taking of the summary [Army Act Section 109 and Rule 13 (9)].

(xi) At the close of the evidence of each witness, who is not cross-examined by the accused, make a not that "accused declines to cross-examine" [*See* Rule 13(5)].

(xii) Ensure that the evidence of each witness is signed by the witness [Rule 13 (6)].

(xiii) Ensure that the record of any statement made by the accused which shall be on oath or affirmation is prefaced by a note that he was formally "cautioned" [Rule 13 (6)].

(xiv) Enter at the end of the summary of evidence a statement that the requirements of Rule 13 (4), (5), (6) and (7) have been complied with, and sign the summary. The place and date should be stated.

2. Evidence in special cases:–

(*a*) Where the charge is for deficiency of kit, unless BAFD-918 is to be produced in evidence, the fact that the accused has been at some time previously in possession of a complete kit, or of the articles alleged to be deficient, the date and place of discovering any subsequent deficiencies, and that none of the articles have since been recovered, should be included in the summary of evidence. Any articles recovered will be omitted from the charge.

(*b*) Where a certified true copy of a record in any regimental book is to be produced [Army Act, Section 116 (4)] the copy should

show clearly that the record purports to have been signed by the commanding officer or by the officer whose duty it was to make the record [Army Act Section 166 (3)].

(*c*) Where the charge is for neglecting to obey a battalion or similar order, the order should be proved as provided in Army Act Section 116 (3) or (4) [*see* (b) above]. The order contravened or a certified copy where such copy is admissible [see Section 116 (4)] must be produced on oath.

(*d*) Where BAFD-918 is to be produced, it must be signed by the officer having the custody of the books from which it is compiled. The original declaration of the court of inquiry even if in existence, is not admissible in evidence. Nor is BAFD-918, unless the entry in the court martial book (of which it is a certified true copy) purports to have been signed by the officer in actual command of the accused's corps or unit, as required by Army Act Section 78.

(*e*) A certificate of surrender or apprehension under Army Act Section 116 (6) (BAFD-910) should only state the fact, date and place of the surrender or apprehension and is only admissible as evidence of those facts in cases of desertion or absence without leave. The circumstances of the surrender or apprehension must be proved by a witness. The certificate must be signed by a police officer not below the rank of an officer-in-charge of a police station. The commanding officer of the deserter or absentee should forward BAFD-910 without unnecessary delay to the officer-in-charge of the police station for completion and signature.

(*f*) Many cases depend on the identification of persons or things. Evidence should be recorded to show that each witness identifies the accused, and any other person or thing, mentioned in his evidence whose identity is relevant to the charge; e.g., on a charge for theft, the articles, the subject of the charge, must be produced and identified or their absence satisfactorily accounted for. Articles alleged to have been damaged should be produced and identified.

(*g*) Where the charge is for any offence which has occasioned any expense, loss, damage, or destruction, for which it is expedient to award compensation under Army Act Section 65 (1) (*d*) or (2) (*e*) or (*g*), values should be assessed and evidence taken as follows:–

(i) When an article which has an official value has been lost or rendered unserviceable, a witness is required, who can prove the value (inclusive of authorized departmental expenses) of the article at the date of loss, upon the basis of its age and, or condition, and by reference to the regulations, which should be produced for fixing the value of the article at that age or in that condition.

(*ii*) When the article has not official value, competent evidence is required to prove the approximate value.

(*iii*) When an article has been damaged but not rendered unserviceable, competent evidence is required to prove the pecuniary amount of the damage, which will be either the cost of repairing it, if it can be repaired, or the loss of value caused by the act of the accused, if it cannot be repaired, or the cost of repair *plus* any ultimate loss of value due to the act of the accused.

(iv) In the case of absence or desertion, the deficiencies to be alleged in a charge under Army Act Section 45 (a) are those ascertained when the soldier rejoins, not necessarily those found on the commencement of the absence or by a court of inquiry. Evidence should not be taken of the values of personal clothing and necessaries the property of the soldier, the value of which has not to be made good to the public.

(*h*) Where the charge is for misappropriating or losing by neglect money or stores, etc., the evidence should show:–

(i) the period during which the accused held office and was responsible for certain money or stores, etc.;

(*ii*) that at the opening of this period, the accounts and money, stores, etc., were correct;

(*iii*) receipts and expenditures of money, stores, etc., during this period;

(*iv*) that at the close of this period there was a specific deficiency of money or stores, etc.

Items (*ii*), (*iii*) and (*iv*) must, as a rule, be proved by the production by a sworn witness of the original account books, and vouchers, and evidence that they were kept or signed by the

accused. Witnesses should then give evidence explaining the deficiency, which is checked with the original books, etc. and recorded.

(i) In cases of attempts to commit suicide, medical evidence giving an opinion on the state of mind of the accused at the time of the commission of the alleged offence should be taken.

(*j*) In cases of self-maiming, the medical witness or witnesses should be asked whether the injury sustained by the accused will render him unfit for further service.

3. Where the accusation arises out of a complaint, made by an individual, who has not yet identified the person whose conduct is complained of, the complainant, and any other alleged eye-witness in the same circumstances, should have an opportunity of picking out from a group the man against whom they are prepared to give evidence. For this purpose an identification parade should be held in the presence of an officer before the witness or witnesses give evidence at the summary, or otherwise see the accused in circumstances which may suggest that they are expected to recognize one particular man as the offender. At such a parade a witness should not be permitted to see or hear anything which might induce him to take a cue from the behaviour of another witness.

4. If in any case two or more persons are suspected of complicity in an offence, and it is found necessary to call one of these as a witness for the prosecution against the other or others charged in connection with the offence, one of two courses must be taken. Either:–

(i) Proceedings against him must be abandoned and any charge therein already preferred against him dismissed. Before this action is taken an accomplice must be informed that proceedings against his I have been abandoned on the ground that he will come out with true facts, failing which he can still be prosecuted for the offence committed by him. This should be done writing; or

(*ii*) Steps must be taken to ensure that the case against him is disposed of summarily or tried by court martial before the trial of persons concerned against whom he is to give evidence; and that he is only tendered as a witness when he has already been acquitted or convicted, who is competent to grant pardon in such cases. All such cases should, however, be referred to the AJAG before any action is taken.

In all such cases the circumstances and the course proposed should be fully set out in a covering letter to the convening officer.

Commanding Officers

5. A commanding officer will take care that an accused person is not detained in custody beyond 48 hours without the charge being investigated, unless investigation is impracticable, in which case a report will be made to the officer to whom application to convene a general or district court martial would be made. *See* Army Act Sections 74 and 75 and Rule 14.

6. Before applying for the trial of an offender, a commanding officer should satisfy himself:

(*a*) that the accused is subject to the Army Act, and is charged with an offence, which is an offence against that Act;

(*b*) that the offender is not exempted from trial under the provisions of Army Act Sections 91 and 92.

(*c*) that the offence is not one which he should dispose of himself summarily or, one which he should and can try by summary court martial without reference (Army Act Section 99) or, if it is one of those offences, that from its gravity, or from the previous character of the accused, he ought not to deal with it on account of the inadequacy of his powers of punishment;

(*d*) that the summary of evidence is properly recorded (*see* paras 1 and 2 *ante*);

(*e*) that the evidence justifies the trial of the offender on the charge;

(*f*) that the charge is properly framed under the appropriate section (*see* Army Act Rules 19 to 21 and Notes), and forms of charges given in this Manual; and

(*g*) that an officer has given the accused a copy of the summary or abstract of evidence as soon as practicable after he had been remanded for trial and that his rights as to preparing his defence and of being assisted or represented at the trial have been explained to him by that officer [Rule 23 (2)].

7. When making application for the trial of the offender, the commanding officer should satisfy himself that the following provisions are complied with:–

(*a*) The application for trial (AFB-116) must be accompanied by all necessary documents as therein specified; and the medical officer's certificate at the foot completed; the application should ordinarily be submitted within 36 hours after the accused has been remanded for trial [Note to Rule 14 (2)];

(*b*) The name of the officer to act as prosecutor should be stated on the application;

(*c*) The convening officer must be informed whether or not the accused desires to have a defending officer, assigned to represent him at the trial;

(*d*) The information required as to officers who have investigated the case, or sat on a court of inquiry, must be given with great care;

(*e*) The charge-sheet must be signed by the officer in actual command of the unit to which the accused belongs, and should state the place and date of signature;

(*f*) Sufficient space should be left at the foot of the charge-sheet for the orders of the convening officer, or officer sanctioning trial under Army Act Section 99 to be entered. The place and date should be entered by the officer signing such orders;

(*g*) The section of the Act, under which each charge is framed, should be entered in the margin (in red ink), opposite the charge to which it refers;

(*h*) When it is intended to prove any facts in respect of which any deduction from the pay and allowances (*i.e.,* stoppages) of the accused can be awarded, in consequence of the offence charged, those facts must be clearly shown in the particulars of the charge and the sum of the loss or damage it is intended to be charged [*see* para. 2 (g) above];

(*i*) BAFD-905, by whomsoever produced, is to be signed by the officer having the custody of the books from which it is compiled; custody includes temporary custody for the purpose of the trial. In preparing this form, minor offences may be grouped as 'miscellaneous'; offences of the same class as that being charged should be shown in a separate group.

8. After trial has been ordered the commanding officer should satisfy himself that the following provisions are complied with:–

(*a*) The accused must be warned for trial not less than 24 hours before the court assembles; must be informed by an officer of every charge on which he is to be tried; must be given a copy of the charge-sheet and a vernacular translation of the same and of the summary of abstract of evidence, and notice of the intention to call witnesses whose evidence is not contained in the summary or abstract and an abstract of their evidence and (if he desires it) must be informed of the ranks, names and units of the officers, who are to form the court as well as of any waiting members (Rule 24).

(*b*) The accused must be informed that on his giving the names of any witnesses for the defence; reasonable steps will be taken to procure their attendance;

(*c*) The accused must be afforded proper opportunity for preparing his defence;

(*d*) The commanding officer must not detail, as a member of the court, an officer, who is ineligible or disqualified to serve under the provisions of Rule 30;

(*e*) The accused must be seen by a medical officer on the morning of each day the court is sitting for his trial and the medical officer's report should be produced to the court immediately after it opens. However, *see* Army Regulation (Rule) 351.

(*f*) In a case of a join trial, the accused persons should be informed of the intention to try them together and of their right to claim separate trials if the nature of the charge admits of it.

9. After confirmation (or refusal thereof), the commanding officer must see that the following provisions are complied with:–

(*a*) The proceedings must be promulgated as laid down in Part I, Chapter IV, para 85.

(*b*) The record of the promulgation must be entered on the proceedings in form shown, and extracts recorded in the regimental books;

(*c*) After promulgation the proceedings must be forwarded without delay to the proper authority.

Convening officer

10. The convening officer should satisfy himself as regards the matters mentioned in para 6 and 7 above; and in addition he will ensure:–

(*a*) That in all cases for trial by general court martial, and in all cases of indecency, fraud, theft (except ordinary theft), and civil offences, and in all other cases which present doubt or difficulty, the charge-sheet and summary or abstract of evidence are submitted to the Deputy Judge-Advocate-General before trial is ordered [*see* Army Regulations (Instruction) 292].

(*b*) That he holds the necessary court martial warrant, empowering him to convene the description of court martial, that he considers appropriate;

(*c*) That the court which he has decided to convene is properly composed in accordance with the Army Act; *see* also Rule 31. Any opinion of the convening officer with respect to the composition of the court under this rule should be stated in the convening order;

(*d*) That no officer is detailed to serve on the court who is ineligible or disqualified under Rule 30;

Note.– In the case of theft from an officer's mess, all the officers of that mess are regarded as interested, and are, therefore, disqualified.

(*e*) That application is made to the Deputy Judge Advocate General for the services of a Judge Advocate when the appointment of a Judge Advocate is legally required or is desirable (*see* Army Act Section 103 and Note);

(*f*) That the officers detailed to serve are stated in the convening order either by name or by the units from which they are to be drawn;

(*g*) That in trials by general court martial, and in complicated cases, a prosecutor is specially selected for his experience and knowledge of military law (*see* Note to Rule 34);

(*h*) That the order for trial at the foot of the charge-sheet is signed by him, of by an officer of his staff signing “for” him;

(*i*) That the convening order is signed by him or "for" him by an officer of his staff authorized by usage of the service to the sing his order.

11. Where the convening officer, or the senior officer on the spot considers that military exigencies or the necessities of discipline render it impossible or inexpedient to observe any of the Rules referred to in Rule 26, he must make on BAFD-920 a declaration to that effect specifying the nature of those exigencies or necessities.

12. The convening officer must ascertain whether the accused desires to have a defending officer assigned to assist him at his trial; and, if so, must endeavour to meet his wishes. Should no suitable officer be available, the convening officer must notify the president in writing [*see* Rule 81 (2)].

13. The convening officer must send to the president of the court martial the convening order, charge-sheet and summary or abstract of evidence, except in the case of a joint trial of two or more persons a separate copy of the convening order should be supplied in respect of every person to be tried.

General

14. The original convening order must be before the court, and the president must satisfy himself that the court is duly constituted according to its terms.

The court must not make any alteration or correction in the convening order, nor, save as allowed by Rule 40(1), in the charge-sheet.

15. In any case of doubt as to the constitution of the court, or any other matter affecting jurisdiction or validity of the charges, the president should consult the convening officer before the court assembles, or if the court has assembled, before proceeding with the trial.

16. When, in accordance with Rule 75, the court is sworn at one time in the presence of several accused persons, who are to be tried separately in succession, the time at which the convening order is read should be recorded on page "A" of each BAFD-906, as the time at which the trial of each of the accused commences. In such cases it is desirable that the time of arraignment of each such accused should be inserted on page "B" of each BAFD-906 before the words: "The accused in arraigned', etc.

17. The full name and description of the accused should be entered on the first page of the proceedings.

18. Care should be taken that, whenever a court of inquiry has been held, the relevant certificate (on the first page of the proceedings) is properly completed.

19. Any person addressing the court, or examining or cross-examining a witness, should always do so standing.

20. Every witness, including the officer producing BAFD-905, must be sworn or affirmed in the presence of the accused to whom his evidence refers; he must not be examined on a former oath taken in the presence of another accused person.

The prosecutor or other person producing documents must be sworn. By the custom of courts martial, however, the accused is allowed to hand in letters and certificates of character, purporting to be in the handwriting of absent officers or former employers, and unless there is reason to doubt their authenticity, they may be accepted.

21. The evidence will usually be taken down in narrative form. Questions and answers recorded verbatim will be numbered consecutively ("Q. 1", "A. 1", etc.) throughout.

22. When original documents are not retained by the court and copies are attached to the proceedings, it must be stated in the proceedings that the copies have been compared with the originals and found to be correct. As a rule, it is preferable to attach copies, and not original documents, to the proceedings (*see* Note to Rule 56).

23. In accepting Bangladesh Army Forms D-905, D-918, D-910 and certified copies of records in regimental books, attention should be given to paras 7(i), 2(*b*) and 2(*d*), 2(*e*) *ante*. Where these documents are given in evidence, it is sufficient to record upon the proceedings the mere fact of their production without setting out the facts which they purport to prove; but the record of the evidence should always show that a witness identified the accused as the person to whom the particular document relates.

24. A certified true copy of a record in a regimental book (*e.g.,* on BAFD-918 of an entry in the court martial book) is sufficient evidence thereof; it is not necessary for the court to compare the copy with the regimental book.

25. Where the value of arms, ammunition, equipment, or public clothing lost or damaged is proved, the accused, if conflicted should be sentenced to be put under stoppages, notwithstanding the fact that he may also be sentenced to be dismissed from the service, in case the latter part of the sentence should be remitted.

26. Arrears of pay and allowances forfeited by sentence of court martial under Army Act Section 60 (j) (i) cannot be applied as compensation for loss or damage. If, therefore, loss or damage has been averred and proved, stoppages should be awarded, even if the accused is also sentenced to forfeiture of arrears, so that compensation may first be paid and any balance remaining over forfeited.

27. Included in BAFD-906 are two sets of pages "C" and "D"–one for proceedings on a plea of "Not guilty" and one for proceedings on a plea of "Guilty". Where the pleas recorded are all "Not guilty", or all "Guilty", the set pertaining to the plea or pleas recorded is alone to be used, and the unused set should be removed from the proceedings.

When some of the plea are "Not guilty" and some "Guilty", both sets will be used, the court proceeding first on the plea or pleas of "Not guilty" up to and including the findings, and then on the plea or pleas of "Guilty". It is not necessary to insert before page "D" a separate sheet containing the findings of the court upon the plea or pleas of "Not guilty".

28. Where two or more persons are charged and tried jointly on a charge-sheet only one set of proceedings should normally be used, the relevant pages of BAFD-906 being adapted accordingly, and the replies of each of the accused to the questions set out therein being separately recorded. A separate sheet, however, should be used for the finding and proceedings on conviction and for the sentences, in each case.

29. Where trial proceeds on more than one charge-sheet, all printed matter on page "A" and the two printed lines at the top of page "B" should be struck out in the case of the second or any subsequent charge-sheet, the word "second", "third" (or as the case may be) being inserted before the word "charge-sheet" on page "B".

30. The charge-sheet is to be inserted in the proceedings after page "B"; all other documents are to be attached at the end of the proceedings in the order of their production to the court.

31. Every document attached to the proceedings should be signed by the President (*or* judge-advocate) and marked with a reference letter, preferably not one used in BAFD-906.

32. In case of a plea of "guilty", the summary of evidence is to be annexed to the proceedings. In case of a plea of "Not guilty", it will be annexed if it or any part of it has been put in evidence at the trial. In other cases, the summary will merely be enclosed with the proceedings when sent to the confirming officer.

33. All erasures of written or printed matter, and, all interlineations and corrections should be initialed by the President or judge advocate [*see* Note 1 to Rule 78].

34. Pages should be numbered consecutively up to the end of the proceedings after they have been put together in the order prescribed. In case of revision, the later proceedings are added at the end, and the numbering of pages carried on.

35. Care must be taken that the proceedings are both signed and dated by the president.

Duties of Prosecutor

36. For the general duties of a prosecutor, *see* Rule 64(1) and Notes.

37. (*a*) Duties before trial:–

The prosecutor should have previous knowledge of the subject-matter of the charge or charges. For that reason the officer detailed as prosecutor must make it his business to acquaint himself with the circumstances, and assure himself that the various rules relating to procedure before trial have been complied with (*see* Note to Rule 34). He will, as a rule, be the officer who recorded the summary of evidence.

The court will look to him for an explanation of any defect or omission apparent or alleged by the accused.

(*b*) On being detailed for duty he should–

(*i*) Obtain a copy of the charge-sheet and summary of evidence, and enquire whether there is any correspondence or other material relative to the case, which he should peruse and note.

(*ii*) If he thinks there is any legal defect, irregularity, or serious omission in either the charge-sheet or the summary of evidences, he should refer to the commanding officer of the accused's unit. The ability to detect irregularities connotes a working knowledge of the Rules under the Act, and of the laws of evidence.

(*iii*) Satisfy himself that Rules 23, 24 and in the case of joint trial Rule 25, have been complied with.

(*iv*) Satisfy himself that proper steps are being taken to secure the attendance of all necessary witnesses.

(*v*) Obtain or prepare a record of the accused's service (BAFD-905) for production at the trial if required. This form must be signed by the officer having the custody of the regimental books.

(*vi*) Consider whether an opening address is desirable, or is likely to be required from him by the court [Rule 46 (*ii*)]. If so, prepare such an opening address setting out in the form of a narrative the facts which are alleged against the accused, and the nature of the evidence by which those facts are to be proved. The opening address must be as impartial as he can make it, free from unnecessary comment, denunciation or prejudice. There must be no reference in it to any allegation which is not to be proved in evidence subsequently at the trial. An opening address is not ordinarily required in disciplinary cases of a simple character, but is valuable where accounts are involved, or the evidence is largely circumstantial.

(*vii*) On the morning of the trial take with him to the court a certificate by a medical officer, stating that he has examined the accused on that morning, and that he is fit for trial.

(*viii*) Assure himself that all witnesses and necessary exhibits are present.

38. Duties at the trial:–

(*a*) On the opening of the court the prosecutor presents the medical certificate to the president.

(*b*) If any material witness is absent, the prosecutor should inform the court at once, and if necessary apply for an adjournment (Rule 121).

(*c*) If a court of inquiry has been held respecting a matter upon which a charge against the accused is founded, the prosecutor should hand to the court a list of the names of the officers who sat on the court of inquiry. The written record of the proceedings of such court of inquiry must not be laid before the court martial [*see* Rule 32 (1)].

(*d*) As to the prosecutor's right to address the court and call witnesses in reply in the event of a special plea or plea in bar of trial *see* Rules 39, 41 and 43.

(*e*) Where the accused pleads "Guilty", the duties of the prosecutor are confined to calling such witnesses as may be necessary if the summary be insufficient [Rule 44(2)], and producing BAFD-905.

Note.– If the accused in a statement in mitigation says something, which is inconsistent with his plea, the prosecutor should call the attention of the court to Rule 44 (4), and prepare to call his witnesses as on a plea of "Not guilty".

(*f*) Where the accused pleads "Not guilty", the prosecutor makes his opening address, if any, and if it is in writing, hands it in, and calls his first witness.

(*g*) Before calling his witnesses, and as the case proceeds, the prosecutor must consider whether he should call all those whose evidence is in the summary or abstract of evidence, and whether it is his duty to call as a witness any person whose evidence is not contained in summary (Rules 117 and 118).

(*h*) As to accomplices as witnesses for the prosecution, *see* para 4 *ante*.

(*i*) After a witness for the prosecution has been sworn or affirmed, the prosecutor will ascertain the witness's number, rank, name, unit, station, address, occupation, etc., as may be material, and will elicit from the witness the relevant facts to which the witness can speak. This may be done by means of questions of a non-leading character (*see* Part I, Chapter V, paras 101-105), or by permitting the witness to tell his own story, questions being subsequently asked to make good any omissions. A series of short simple questions will generally assist the witness to recount facts in chronological order, and the president or judge-advocate in making the record.

(*j*) The rules which govern cross-examination are described in Part I, Chapter V, paras 106-112. The limits within which re-examination is permitted are set out in para 115. It may happen that a question in cross-examination has been so framed as to compel the witness to answer simply "Yes" or "No", whereas there is, within the prosecutor's knowledge an explanation which should in fairness be made. In such a case the

prosecutor may in re-examination refer the witness to that question and answer, and ask him if he has anything to add or explain.

The prosecutor should not dismiss a witness until he has ascertained whether the court desire to question him and until Rule 124(2), (3) and (4) has been complied with.

(*k*) The prosecutor must take care that each exhibit which he desires to put before the court is produced and identified by one of his witnesses. If an exhibit (*e.g.,* the property alleged to have been stolen) is to be referred to by more than one witness, each witness, who refers to it, must be invited to look at the exhibit, and say whether he identifies it. If the prosecutor is himself producing documents he should do so, after being sworn as a witness, before he calls his other witnesses [Rule 46 (*iv*) and Note]. Neither the prosecutor nor a witness may refer to the contents of a document which is not before the court, unless evidence is given accounting for its absence (*see* Part I, Chapter V, paras 76-77).

(*l*) The prosecutor having called his witnesses, the case for the prosecution is closed. The subsequent procedure depends upon the exercise by the accused of his rights, and is fully set out in Rules 47 and 48.

(*m*) If the accused calls any witnesses to the facts, it is the duty of the prosecutor to assist the court to test the value of their evidence by cross-examination. The result of omission to cross-examine is frequently that the evidence for the defence stands unchallenged, and the prosecutor cannot properly, in a subsequent address, characterise as untrue a defence which he has not attempted, by questions to the witnesses at the proper time, to impugn. Cross-examination is not limited to the matters dealt with in the examination-in-chief. It must, however, be confined to matters relevant, directly or indirectly, to the issue. Leading questions may be asked in cross-examination, but not questions which assume that facts have been given in evidence which have not been given (*see* Part I, Chapter V, para. 108). As to injurious questions, *see* para 109. As to calling witnesses in reply to the defence, *see* Rule 126 and Notes.

(*n*) The desirability of making a closing address at the appropriate time, as provided in Rules 47 and 48, is a matter for the

prosecutor's discretion. If there is any evidence or argument put forward by the defence which he thinks might seriously mislead the court, he should comment on it. He is entitled to sum up the evidence generally and to point out any weakness in the defence, and to suggest the inferences which the court may draw from the facts proved, but he must state nothing as a fact which has not been proved in evidence (*see* Notes to Rule 47).

(*o*) If the accused is convicted on any charge, the prosecutor, or some other person in a position to do so, is sworn (if he has not already been sworn as witness in the case) and produces evidence (BAFD-905) of the character, age, service, rank, etc., of the accused (*see* Rule 53 and Notes).

Duties of Defending Officer

39. Duties before trial:–

(*a*) The defending officer, like the prosecutor, requires a working knowledge of the Rules under the Act, and of the laws of evidence. He must also make himself acquainted with the details of the case.

(*b*) The proper preparation of the defence (Note to Rule 81) includes:–

(*i*) Study of the charge-sheet and summary of evidence, and consideration of legal points which he may raise, or which may arise upon them, *e.g.,* objection to a charge, plea to the jurisdiction, plea in bar of trial, admissibility of a confession or of other evidence.

(*ii*) Ascertaining from the accused what is his answer, if any, to each charge.

(*iii*) Communication with possible witnesses for the defence, to ascertain if they are able to give evidence in support of the accused's case and the taking of appropriate steps to secure their attendance at the trial [Rule 24 (1) and Note and Rule 119].

Note.– He is not entitled to interview witnesses for the prosecution without special authority.

(*c*) The defending officer must bear in mind that the ultimate responsibility for the decision on the plea, which is to be offered on each charge, must rest upon the accused himself. He may

properly advise on this point, but should put no pressure on the accused except to dissuade him from pleading guilty, where he appears to have an answer, however slight, to the charge. The defending officer's duty at the trial will be to present the accused's defence in the best possible light. He may properly prepare arguments on fact or law, which his own reason or ingenuity may suggest; but it would be improper for him to advise or suggest to the accused an account of the facts, other than that which the accused himself desire to give.

(*d*) The defending officer is not called upon to judge the truth or otherwise of the accused's defence, nor is he permitted to express his own opinion or belief (Rule 86). To avoid, however, giving countenance to a line of defence which is incompatible with his duty as an officer, he should apply, though his commanding officer, to the convening officer for permission to withdraw from the case.

40. Duties at the trial:–

(*a*) Having the rights, duties, and obligations of counsel, the defending officer must himself conduct the case as representing the accused *i.e.,* he will himself cross-examine witnesses for the prosecution, take any objections, made any submissions and address the court on the accused's behalf.

(*b*) The defending officer has the right to make an application for adjournment [*see* Rule 24 (4)], and to address the court in support of it. It should not be made on the ground of a technical irregularity or omission, merely as a protest, where no benefit can accrue to the presentation of the defence from the postponement of the trial. *See* also Rule 46(*i*).

(*c*) It is the defending officer's duty to question each witness for the prosecution on any matter which is to be alleged in defence in so far as this matter is or should be within the witness's knowledge (*see* Part I, Chapter V, paras 106–112). As to injurious questions, *see* para 109.

(*d*) The defending officer may take objection to any question put by the prosecutor to a witness for the prosecution on one of the following grounds; the objection should be made if possible before the witness answers [Rule 124(1)]:-

(*i*) That it is a leading question.

(*ii*) That it invites hearsay, or an account of an involuntary confession, or evidence of the accused's bad character, when that character has not been put in issue, etc. (Part I, Chapter V, para 60).

(*e*) At the close of the case for the prosecution, the defending officer may submit that the accused has no case to answer, and, therefore, should not be called upon for his defence, because the prosecution have not produced evidence in support of one or more essentials in the charge (Note 1 to Rule 47. Note to Rule 74).

Note.– This submission must be to the effect that there is no evidence at all on the point or points, and not that the evidence is untrustworthy.

(*f*) Where a witness (not on the summary of evidence) is called by the prosecutor, the defending officer may apply for an adjournment, or postponement of cross-examination (Rule 118).

(*g*) The defending officer is entitled to consult the judge advocate, if one has been appointed, on any question of law or procedure relative to the charge or trial [Rule 89 (1)].

(*h*) The defending officer must throughout the proceedings treat the court with respect and candour.

APPENDIX

ILLUSTRATION OF CHARGE-SHEET

Note.–The following is an illustration of a complete charge-sheet, with statement of offence and particulars, as it would be placed before a General/ District Court martial.

The form of this specimen should invariably be followed when framing a charge-Sheet.

CHARGE-SHEET

The accused, number 124689 Sainik Rukun Uddin, 19 East Bengal Regiment, is charged with:—

First charge Army Act Section 33(2)

Disobeying the lawful command of his superior officer, knowing him to be such,

in that he,

at Dhaka, on the 29th January, 1982, disobeyed the lawful command of his superior officer, Warrant Officer Nurul Islam of the same regiment, to turn out for Commanding Officer's parade, by not turning out.

Second Charge Army Act Section 32(2) (b)

Being grossly insubordinate to his superior officer, knowing him to be such,

in that he,

at Dhaka, on the 28th January, 1982, when confined by Warrant Officer Nurul Islam of the same regiment, on the first charge, said to him "I am a better man than you and will not go to the guard-room by order", or words to that effect.

Place: Dhaka Cantonment

ACK ACK,
Lieutenant Colonel
Commanding Officer
19 East Bengal Regiment

Dated: 31st January, 1982

[29]To be tried by a General/ District Court Martial.

Place : Dhaka Cantonment

T. G.
Brigadier
Commander
46 Independent Infantry Brigade

OR

[30]Staff officer (who should sign for Officer Commanding
46 Independent Infantry Brigade

Dated : 01st February 1982

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[29] *When the sanction is accorded for the trial of grave offence by Summary Court Martial (Army Act, Section 99, proviso) a similar entry should be made on the charge-sheet.*

[30] *The officer who signs for Brigade Commander must show his appointment e.g., Staff Captain or Deputy Assistant Adjutant General etc.*

NOTE AS TO USE OF FORMS OF CHARGES

This note does not form part of the Appendices to the Army Act Rules.

(1) Every charge-sheet will begin as shown in the form in Part I of the Second Appendix (forms of charges), which are given as examples.

The description of a Bangladesh Commissioned Officer, Junior Commissioned Officer, Warrant Officer or person enrolled under the Act by his rank and corps is a sufficient averment that he is an officer, warrant officer or such a person and that he is amenable to military law. In other cases, words must be added to show that the person is amenable to military law (*See* Rule 20).

(2) The commencement of the charge-sheet (according to the form in Part I) will be followed by the charge or charges.

(3) Each charge will consist of two parts; a statement of the offence and a statement of the particulars (*see* Rule 21).

(4) The statement of the offence will be in one of the forms in Second Appendix to Army Act Rules.

(5) Where two or more words or expressions occur in Part II of the Second Appendix bracketed together one under the other, the particular word, or expression, should be used which most accurately describes the offence which appears to the officer framing the charge to be capable of proof by legal evidence.

(6) Where the officer framing the charge is doubtful whether the offence so capable of being proved by legal evidence is more accurately described by one word or expression, or by another, he may frame two or more alternative charges, each charge containing one of the words or expressions which appear to the officer to be applicable to the facts as capable of proof.

(7) Where two or more of the words or expressions bracketed together appear, when coupled together with the word “and” accurately to describe the offence, the charge may couple together such words or expressions; but in no case must the charge couple with the word “or” two or more of the words or expressions bracketed together [*See* Rule 21 (1)].

(8) For example, a person may be charged with losing by neglect arms, ammunition and equipment being Government property issued to him for his use; but a charge for losing by neglect, arms, ammunition *or* equipment, will be a bad charge.

(9) In a few cases, shown in italics bracketed thus ( ) words may be inserted in the charge which are not in the Act. In these cases, the Act contains a general expression such as “other place” or “other person”, or “other means” and the officer framing the charge must omit these words and insert a description of the place, person, or means.

(10) The statement of the offence in each charge will be followed by the appropriate statement of the particulars, commencing with the word “in that he”, etc., or “in having”, etc., and stating in brief ordinary language what the accused is alleged to have done.

(11) The words “in that he” will be followed by verb in the past tense; the words “in having” will be followed by the past participle. The sentence stating the particulars will be framed more easily sometimes in the one form, sometimes in the other.

(12) In the case of several charges, the particulars in one charge may refer to the particulars in another [Rule 21 (4)], as, for example “in having done the acts alleged in the particulars to the first charge”, or “in that, at the place and time aforesaid, he was deficient of the equipment above mentioned in the second charge, which it was his duty to have”. If the accused is acquitted on any charge in which full particulars were set out, and is convicted on a charge which referred to those particulars, the particulars referred to must be treated as having been set out in full in the charge on which the accused is convicted, and must be set out in full in any record of conviction in which the particulars are set out.

(13) The statement of particulars should specify all the ingredients necessary to constitute the offence; for example if the charge is one for disobeying a lawful command, the “particulars” must state the command, and show that it was given by a superior officer, and also how the accused disobeyed the command.

(14) The “particulars” should always give a general description of the place where he offence was committed, such as the station or town, or “the line of march”, and if it is material to the charge and is known, the exact place. The prepositions “near” or “between” may be used (for instance “at or near” “between”) to assist in describing a place not exactly known, but they must never be used where the exact place is of the essence of the offence.

(15) The “particulars” should always state the date on which the offence was committed. If the exact date or time is unknown, the offence may be stated as having been committed “on or about” a particular day or time. This must never be done where the time is of the essence of the offence, as, for example, in the case of absence without leave, or being asleep on a post.

(16) In some cases the offence may be stated with the most accuracy as having been committed between two days or between two times as for instance, in the case of absence without lave, or of quitting post. In other cases “between” may be used in consequence of the exact day or exact time not being known.

(17) The words “or near” and ”or about” and “between” should never be used it is impossible to express the exact place or time, or the exact place or time is clearly unimportant, or unless the word “between” is the most accurate expression of the place or time.

(18) In many cases, as for instance, where the defence is an *alibi*, the time and place may be of the utmost importance in proving that *alibi*, although it is not the essence of the offence.

(19) There must be added at the end of the “particulars” a statement of any expenses, loss or damage in respect of which the court martial will be asked to award compensation under Section 60 (*j*) of the Act. For example, there may be added to the “particulars” in the case of a charge under Section 45(b) that the accused thereby damaged…… property to the value of……..and other statements may be made according to the facts.

(20) If, however, the expenses, loss or damage were caused by an act or neglect which constitutes another offence, separately specified in the Act, that act or neglect should be charged as a separate offence; for example, if a man deserts and is deficient in his clothing he should be charged in a separate charge for loss by neglect of his clothing. It would not be proper to state it as a consequence of the desertion, or to award compensation for it upon a conviction for desertion only.

No. 1
CHARGE-SHEET
[Section 24(a)]

The accused, number..... Warrant Officer. ....., …….Regiment, is charged with:–

Shamefully abandoning a post committed to his charge, which it

was his duty to defend,

in that he on.....shamefully abandoned a post which was in his charge and which it was his duty to defend at (brief description of locality) by withdrawing his platoon from the said locality without orders or other good cause.

No. 2
CHARGE-SHEET
[Section 24(b)]

The accused, number.....,Sainik....., Regiment, is charged with:–

In the presence of the enemy shamefully casting away his arms, in that, he, at.....on…….....,, when on outlying picquet and attacked by the enemy, shamefully cast away his rifle, left his picquet, and ran away.

No. 3
CHARGE-SHEET
[Section 24(b)]

The accused, number..... Sainik....., ……...Regiment, is charged with:–

In the presence of the enemy misbehaving in such a manner as to show cowardice,

in that he, at....., on.....during an attack on….....,, and when under the enemy's fire, fell out of the ranks, ran away and secreted himself under a bank.

No. 4
CHARGE-SHEET
[Section 24(b)]

The accused, number..... Sainik....., ……..Regiment, is charged with:–

In the presence of the enemy misbehaving in such a manner as to show cowardice,

in that he, at.....on....., when a member of a crew of an anti-aircraft gun misbehaved before the enemy in such a manner as to show cowardice by hiding in a dug-out during an air raid and, when ordered to return to his post, did not do so, but ran away from his section calling out to the other soldiers "it's every man for himself" or words to that effect.

No. 5

CHARGE-SHEET

[Section 24(g)]

The accused, number..... Sainik....., ……..Regiment, is charged with:–

In time of war intentionally occasioning a false alarm in camp, in

that he, at cap ....., ...Field Force, on.....by discharging his rifle, intentionally caused a false alarm in the said camp.

No. 6

CHARGE-SHEET

[Section 24(h)]

The accused, number....., Sainik....., ……...Regiment, is charged with:–

In time of action quitting his picquet without leave, in that he, at

.....Field Force, on..... between 5 and 6 P.M., when on outlying picquet Number..... quitted the said picquet without leave.

No. 7

CHARGE-SHEET

[Section 24(i)]

The accused, number....., Sainik…....., ……...Regiment, is charged with:–

Having been made a prisoner of war voluntarily aiding the enemy, in that he,

at.....and elsewhere between ..... and .....having been made a prisoner of war voluntarily aided the enemy by carrying out work for the enemy in connection with enemy wireless propaganda.

No. 8

CHARGE-SHEET

[Section 24(i)]

The accused, number…....., Sainik....., ……....Regiment, is charged with:–

Having been made a prisoner of war voluntarily serving with the enemy, in that he,

at..... and elsewhere between..... and.....having been made a prisoner of war voluntarily served with the enemy, that is to say in the.....Corps, part of the enemy armed forces.

No. 9

CHARGE-SHEET

[Section 24 (j)]

The accused, number....., Sainik ....., ……...Regiment, is charged with :–

When on active service, knowing doing an act calculated to imperil the success of the Bangladesh Forces,

in that he, at ....., on....., when on active service knowing drove away to the rear a loaded ammunition truck from the area occupied by .....(unit) an act which, as he well knew, was calculated to imperil the success of the Bangladesh Forces.

No. 10

CHARGE-SHEET

[Section 25 (a)]

The accused, number…....., Sainik.....,....., ……. Regiment, is charged with:–

When on active service, without orders from his superior officer, leaving the ranks on pretence of taking wounded men to the rear,

in that he, at ....., on..... when on active service, when in the ranks, and during an attack upon ..... left the ranks without orders from his superior officer, on pretence of taking to the rear Lieutenant ..... who was wounded.

No. 11

CHARGE-SHEET

[Section 25 (b)]

The accused, number.....Sainik....., ……...Regiment, is charged with :–

When on active service, without orders from his superior officer, willfully destroying property,

in that he, when encamped near the village of ....., on..... when on active service, without orders from his superior officer, willfully set fire to a dwelling house, situated in the said village.

No. 12

CHARGE-SHEET

[Section 25 (e)]

The accused, number....., Sainik....., ……...Regiment, is charged with:–

When on active service by word of mouth spreading reports calculated to create despondency,

in that he, at ....., on..... when on active service, by word of mouth spread reports that a battalion of ...., had been bombed while in transports at Sea and that only ten men of the said battalion had survived.

No. 13

CHARGE-SHEET
[Section 26]

The accused, number....., Sergeant....., ……...Regiment, is charged with :–

Treacherously making known the parole to a person not entitled to receive it,

in that he, at ....., on....., treacherously made known the parole, to wit,....., to..... a person not entitled to receive it.

No. 14

CHARGE-SHEET
[Section 27]

The accused, number…....., Sainik....., ……Regiment, is charged with :–

When on active service committing an offence against the person of an inhabitant of the country in which he was serving,

in that he, at....., on....., when on active service, committed rape on....., of.....

No. 15

CHARGE-SHEET
[Section 28 (a)]

The accused, number....., Sainik....., ……..Regiment, is charged with :–

When acting as a sentry sleeping on his post,

in that he, at ....., on ....., between 1 and 2 p.m. when sentry on Number.....Post ..... Guard, was asleep.

No. 16

CHARGE-SHEET
[Section 28 (b)]

The accused, number....., Sainik....., ... Regiment, is charged with :–

When acting as a guard plundering property placed under his charged,

in that he, at....., on ....., when on guard over the canteen of the ..... Regiment, plundered ..... drams of rum, value.....or thereabout, form a cask of rum which had been placed under his charged.

No. 17

CHARGE-SHEET
[Section 28 (c)]

The accused, number....., Sainik....., ……..Regiment, is charged with :–

Forcing any safeguard,

in that he, at..... on ....., in..... forced his way past Sergeant....., into a house in .....Street, at....., in which, by orders of the General Officer Commanding the said Sergeant ..... had been placed as a safeguard, for the protection of the occupants and the property therein.

No. 18

CHARGE-SHEET
[Section 28 (c)]

The accused, number....., Sainik....., ……..Regiment, is charged with :–

Forcing any sentry,

in that he, at....., on....., after being warned by the sentry on Number.....Post..... Guard, not to pass, passed the said sentry.

No. 19

CHARGE-SHEET
[Section 28 (d)]

The accused, number....., Sainik..... ……..Regiment, is charged with:–

Without orders from his superior officer leaving his guard,

in that he, at .....on ....., when a member of the battalion quarter guard without orders form his superior officer left his guard.

No. 20

CHARGE-SHEET
[Section 29 (a)]

The accused, number....., Sainik..... ……...Regiment, is charged with :–

Breaking into a house in search of plunder.

in that he, at ....., on....., broke into a house Number.....in..... Street, and entered it in search of plunder.

No. 21
CHARGE-SHEET
[Section 29 (b)]

The accused, number....., Sainik....., ……..Regiment, is charged with :–

By discharging firearms, intentionally occasioning a false alarm,

in that he, at....., on ....., when on the march with his battalion between.....and ..... by intentionally discharging his rifle occasioned a false alarm.

No. 22
CHARGE-SHEET
[Section 31 (a)]

The accused, number....., Warrant Officer ....., ……..Regiment, is charged with :–

Causing a mutiny in the military forces of Bangladesh.

in that he, at....., on....., in his barrack room addressed Sergeant....., Sainik.....and other soldiers..... Regiment, there assembled, in mutinous language, by advising them not to turn out at commanding officer's parade at 10 o'clock next day, in consequence of which language they, the said Sergeant....., Sainik..... and other solders of the said battalion, did not turn out for the said parade.

No. 23
CHARGE-SHEET
(Joint Trial)
[Section 31 (a)]

The accused persons, number....., Sergeant ..... , ……..Regiment and number..... Sainik..... Regiment, (etc.), are charged with :–

Joining in a mutiny in the military forces of Bangladesh,

in that they together, at.....on....., in company with a number of other Sainik's of the..... Company ..... Regiment, in a mutinous spirit marched to the orderly room of the said regiment with the object of making a combined representation on a matter of supposed grievence to their Commanding Officer, and them and there, they, with the exception of Sergeant ....., on seeing the said Sergeant marched out of the orderly room in custody, insubordinately look off their belts and threw them on the ground.

No. 24
CHARGE-SHEET
(Joint Trial)
[Section 31 (a)]

The accused person, number.....,□Corporal....., number.....Sainik (Lance/Corporal) …….....,and number .....Sainik.....all of the..... Regiment, are charged with :– ...

Conspiring with any other person to cause a mutiny in the military forces of Bangladesh.

in that they, at....., on....., agreed together and with Sainik.....Regiment (and certain other person unknown) to cause a mutiny in.....Company .....Regiment, to wit, to cause the said Company to refuse to march on the.....to .....to which place the said Company was under orders to march.

No. 25
CHARGE-SHEET
[Section 31 (a)]

Inciting a mutiny in the Military forces of Bangladesh.

in that he, at.....on .....incited men of the .....Regiment, to take part in a mutiny involving the use of violence by saying to them "Come and attack the guard room and break open the doors of the cells and et the chaps out", or words to that effect.

No. 26
CHARGE-SHEET
[Section 31 (c)]

The accused, number.....,Sainik ....., ……...Regiment, is charged with :–

Knowing the existence of a mutiny in the military forces of Bangladesh, and not without reasonable delay giving information thereof to his commanding or other superior officer,

in that he, at.....on....., having been present when Corporal....., Driver .....,and other solders of the .....Battery in his hearing, agreed to cut up and destroy the harness belonging to the said battery, failed to give information thereof to his commanding or other superior officer.

No. 27

CHARGE-SHEET

[Section 32 (1)]

The accused, number.....,Sainik ....., ……..Regiment, is charged with :–

Using criminal force to his superior officer, being in the execution of his office, knowing him to be such,

in that he, at ....., on ....., struck with his fist on the head Sergeant .....of the same regiment who was at the time in command of an escort taking soldiers in custody to guard room.

No. 28

CHARGE-SHEET

[Section 32 (2) (a)]

The accused, number....., Sainik ....., ……..Regiment, is charged with :–

Using criminal force to his superior officer, knowing him to be such,

in that he, at ....., on ..... struck with his fist in the face Number.....Corporal....., of the same regiment.

No. 29

CHARGE-SHEET

[Section 32 (2) (a)]

The accused, number....., Sainik....., ...Regiment, is charged with :–

Attempting to use criminal force to his superior officer knowing him to be such ,

in that he, at ....., on.....threw a stone at Sergeant ....., of the same regiment which missed the said Sergeant.

No. 30

CHARGE-SHEET

[Section 32 (2) (a)]

The accused, number....., Sainik ....., ... Regiment, is charged with :–

Committing an assault on his superior officer having reason to believe him to be such ,

in that he, at ....., on....., when ordered by Sergeant ....., Regiment, to leave the lines of the said Regiment, picked up a stone and threatened to throw it at the said Sergeant whom he had reason to believe was his superior officer.

No. 31

CHARGE-SHEET

[Section 32 (2) (b)]

The accused, number....., Sainik ....., ...Regiment, is charged with :–

Being grossly insubordinate to his superior officer knowing him to be such,

in that he, at .....,on ....., said to Sergeant ....., of the same regiment, who had ordered him to be confined, "I am as good a man as you and will fight you any day you like," or word to that effect.

No. 32

CHARGE-SHEET

[Section 32 (2) (c)]

The accused, number.....,Sainik ....., ...Regiment, is charged with :–

Impeding a person lawfully acting on behalf of Provost-Marshal,

in that he, at ....., on ....., when Sergeant ....., of the Military Police, a non-commissioned officer legally exercising authority under the provost-marshal, was endeavouring to arrest a soldier, impeded the said Sergeant by tripping him.

No. 33

CHARGE-SHEET

[Section 32 (2) (c)]

The accused, number....., Sainik ....., ...Regiment, is charged with :–

Refusing, when called upon to assist in the execution of his duty a Provost-Marshal,

in the he, at ....., on ....., when called on by Captain .....Provost-Marshal of the .....Field Force, to assist him in arresting an offender, refused to do so.

No. 34

CHARGE-SHEET

[Section 33 (1)]

The accused, number....., Sainik ....., ...Regiment, is charged with :–

Disobeying in such a manner as to show wilful defiance of authority a lawful command given personally by his superior officer, knowing him to be such,

in that he, at .....on....., when personally ordered by Captain ....., of the same Regiment, upon Commanding officer's parade, to take up his rifle and fall in did not do so, divesting himself at the same time of waist-belt, and saying, "I'll soldier no more, you may do what you please".

No. 35

CHARGE-SHEET

[Section 33 (2)]

The accused, number....., Sainik ....., ...Regiment, is charged with :–

Disobeying the lawful command of his superior officer,

knowing him to be such,

in that he, at ....., on ....., when ordered by Number ....., Corporal ..... of the same regiment to fall in for fatigue, did not do so.

No. 36

CHARGE-SHEET

[Section 34]

The accused, number....., Sergeant ....., ...Regiment, is charged with :–

Neglecting to obey regimental orders,

in that he, at ....., on .....neglected to obey Regimental Order Number ....., date ..... which requires the non-commissioned officer-in-charged of ammunition to return all fired cases to the magazine immediately on his return from the Range, by failing to return the fired cases of the casuals of ..... Company until four hours or thereabouts after his return.

No. 37

CHARGE-SHEET

[Section 35 (a)]

The accused, number....., Sainik....., ...Regiment, is charged with :–

Being concerned in a quarrel refusing to obey an officer who ordered him into arrest,

in that he, on ....., in the ante-room of the officers mess at ....., after having quarrelled with and struck Lieutenant.....Regiment, on being ordered into arrest by Lieutenant ....., Regiment ....., refused to obey the order.

No. 38

CHARGE-SHEET

[Section 35 (b)]

The accused, number....., Sainik....., ...Regiment, is charged with :–

Using criminal force to a person in whose custody he was placed,

in that he, at ....., on .....when placed by Sergeant ....., Regiment ....., in the custody of Police Constable ....., struck the side police constable.

No. 39

CHARGE-SHEET

[Section 35 (c)]

The accused, number....., Sainik....., ...Regiment, is charged with :–

Regiment an escort whose duty it was to have him in his charge,

in that he, at ....., on ....., while under escort of Sainik.....and Sainik ....Regiment, resisted the escort by kicking and struggling.

No. 40

CHARGE-SHEET

[First Charge, Section 36 (1)]

The accused, number....., Sainik....., ...Regiment, is charged with :–

Deserting the service,

in that he, at ....., on ....., absented himself from .....Regiment, until apprehended by the Civil Power at ....., on …….....,

[Second Charge, Section 40 (a)]

Committing theft of property belonging to Government,

in that he, when absenting himself from his regiment at the place and date afore-said committed theft by dishonestly taking with him one rifle value .....and twenty rounds of ball ammunition value ....., the property of Government.

Note 1.–As a rule, proof of the date and circumstances in which the period of absence terminated is necessary to enable the court to decide whether the absence constituted desertion or merely absence without leave. Occasionally, however, these facts are not material, and proof of them cannot be obtained without inconvenience to the public service and great delay. In such case they need not be proved, and should, therefore, not be averred in the particular of the charged. See Charged-Sheet No. 42 below;

Note 2.–It is immaterial whether the rifle is the soldier's own or a comrade's. See Bangladesh Penal Code, Section 27, and illustration (d) to section 378.

No. 41

CHARGE-SHEET

[First Charge, Section 36 (1)]

The accused, number....., Sainik....., ...Regiment, is charged with :–

Deserting the service,

in that he, at ....., on ....., absented himself from Regiment, until apprehended by the Civil Power at ....., on .....

[Second Charge, Section 45 (a)]

Losing by neglect clothing being Government property

issued to him for his use,

in that he, at ....., on ....., was deficient of one great coat (Value.....) one flannel shirt (Value.....), Government property issued to him for his use.

Note :–See note 1 to charged-sheet No. 40.

No. 42

CHARGE-SHEET

[Section 36 (1)]

The accused, number....., Sainik....., ...Regiment, is charged with :–

Deserting the service,

in that he, at ....., deserting form the Regiment.

Note.–This from may be used when the date and circumstances of the termination of the absence are not material facts, and, proof of them cannot be obtained without an unreasonable amount of delay or expense. See Note 1 to Charged-Sheet No. 40.

No. 43

CHARGE-SHEET

[Section 36 (1)]

The accused, number....., Sainik....., ...Regiment, is charged with :–

Deserting the service,

in that he, at....., on ....., when under orders for embarkation (for active service) absented himself from ..... Regiment, from ....., until .....of ....., with intent to avoid such embarkation.

Note.*–This charged is applicable only to cases where actual orders for embarkation have been issued and brought to the notice of the accused. Where "held in readiness" orders only can be proved to have been issued and brought to the accused's notice and/or the accused has signed a "warning certificate" the charged should be laid as under.*

No. 44

CHARGE-SHEET

[Section 36 (1)]

Deserting the service,

in that he, at ....., after having been warned to proceed for service (overseas or as the case may be), with intent to avoid so proceeding, absented himself without leave from the ..... Regiment, from ..... until.....

No. 45

CHARGE-SHEET

[Section 36 (1)]

The accused, number....., Sainik ....., ...Regiment, is charged with :–

Deserting the service,

in that he, at ....., on ....., having been placed under orders for active service and having been granted leave of absence from .....to.....to proceed to .....did not rejoin at .....on the expiry of the said leave but absented himself with intent to avoid such active service.

***NOTE**.–It will often be advisable to frame to an alternative charge for "without sufficient cause overstaying leave granted to him." See Charged-Sheet No. 49. With respect to a case in which the accused has been apprehended by the civil police, See Note 1 to Charge-Sheet No. 40.*

No. 46

CHARGE-SHEET

[Section 36 (1)]

The accused, number....., Sainik ....., ...Regiment, is charged with :–

Attempting to desert the service,

in that he, at ....., on .....attempted to desert the service by attempting to quit the lines of the ..... Regiment, disguised as a woman, with the intention of deserting from the said Regiment.

No. 47

CHARGE-SHEET

[Section 36 (2)]

The accused, number....., Sainik ....., ...Regiment, is charged with :–

Knowingly harbouring a deserter from military forces of

Bangladesh,

in that he, at ....., on ....., concealed in his house Sainik .....Regiment, whom he knew to be a deserter from the said Regiment.

No. 48

CHARGE-SHEET

[Section 37 (a)]

The accused, number....., Sainik ....., ...Regiment, is charged with :–

Absenting himself without leave,

in that he, at ....., absented himself without leave from tattoo roll call on ....., till 0700 hours on .....

No. 49

CHARGE-SHEET

[Section 37 (b)]

The accused, number....., Sainik ....., ...Regiment, is charged with :–

Without sufficient cause overstaying leave granted to him, in that he, having been granted leave of absence from .....to ....to proceed to ..... failed without sufficient cause, to rejoin at .....on the expiry of the said leave.

No. 50

CHARGE-SHEET

[Section 37 (c)]

The accused, number....., Sainik ....., ...Regiment, is charged with :–

Being on leave of absence and having received information from proper authority that the unit to which he belongs has been ordered on active service and failing without sufficient cause to rejoin without delay,

in that he, on .....while on leave of absence at ....., having received information from .....that the ....Regiment had been ordered on active service, failed , without sufficient cause, to rejoin the said Regiment without delay.

No. 51

CHARGE-SHEET

[Section 37 (d)]

The accused, number....., Sainik ....., ...Regiment, is charged with :–

Without sufficient cause falling to appear at the time fixed at the place appointed for duty,

in that he, at ....., on .....failed without sufficient cause to appear at .....a. m. at ....., the place appointed for Commanding Officer's parade.

No. 52

CHARGE-SHEET

[Section 37 (c)]

The accused, number ....., Sainik ....., ...Regiment, is charged with :–

Quitting line of march without leave from his superior Officer,

in that he, at ....., on .....,when on the line of march from .....to ....., fell out without leave from the officer commanding his company.

No. 53

CHARGE-SHEET

[Section 38 (a)]

The accused, number ....., Sainik ....., ...Regiment, is charged with :–

Without obtaining a regular discharged from the Corps to which he belonged enrolling in other Corps,

in that he, at....., on ....., without having first obtained a regular discharged from the.....Regiment, enrolled himself in the .....Regiment.

No. 54

CHARGE-SHEET

[Section 39]

The accused, number....., Sainik ....., ...Regiment, is charged with :–

Making a wilfully false answer to a question set forth in the prescribed form of enrollment which was put to him by the enrolling officer before whom he appeared for the purpose of being enrolled,

in that he, at ....., on ....., when he appeared before Major A .....B ....., an Enrolling Officer, for the purpose of being enrolled for service in the ..... regiment, to the question put to him, "Have you ever served in Bangladesh Armed Force ?" answered "No" whereas he had served, as he well knew, in the .....Regiment.

No. 55

CHARGE-SHEET

[First Charge, Section 40 (a)]

The accused, number ....., Sergeant....., ...Regiment, is charged with :–

Dishonestly misappropriating property belonging to Government, in that he, at ....., on ..... dishonestly misappropriated twenty rounds of ball ammunition, the property of the Government, value .....,

[(Second Charge, Section 55 (Alternative)]

Neglect to the prejudice of good order and Military discipline,

in that he, ..., on ....., through neglect lost twenty rounds of ball ammunition, the property of the Government, value .....,

No. 56

CHARGE-SHEET

[Section 40 (a)]

The accused, number....., Sainik ....., ...Regiment, is charged with :–

Committing theft of property of a person subject to the Army Act, 1952,

in that he, at ....., on ....., committed theft in respect of a watch, the property of Number ..... (Name) ....., Sainik in the same Regiment.

No. 57

CHARGE-SHEET

[Section 40 (a)]

The accused, number ....., Sainik ....., ...Regiment, is charged with :–

Committing theft of property belonging to Government,

in that he, at ....., on ....., committed theft in respect of one M. L. E. Rifle, Value ....., the property of the Government.

No. 58

CHARGE-SHEET

[1st Charge, Section 40 (b)]

Dishonestly retaining property belonging to Government knowing it to have been stolen,

in that he, at ....., on....., was in unlawful possession of twenty fired rifle cartridge cases, the property of the Government, which he knew to have been stolen.

[2nd Charge, Section 55 (Alternative)]

An act to the prejudice of good order and military discipline,

in that he, at ....., on ....., was in unauthorised possession of twenty fired rifle cartridge cases, the property of the Government.

No. 59

CHARGE-SHEET

[Section 40 (c)]

The accused, number....., Sainik ....., ...Regiment, is charged with :–

Doing an act with intent to defraud,

in that he, at ....., on ....., with intent to defraud, obtained from ....., a shopkeeper, three tins of Gold Flake Cigarettes, Value .....falsely pretending that he, the accused, was an orderly to Captain .....Regiment and that he, the accused, had been sent by the said Captain.....for the said Cigarettes.

No. 60

CHARGE-SHEET

[Section 40 (c)]

The accused, number ....., Sainik (Lance/Corporal)....., ...Regiment, is charged with :–

Doing an act with intent to cause wrongful loss to a person,

in that he, at ....., on ....., having received from Number ....., Sainik ....., of the same Regiment, the Sum of Taka ten (Taka. 10) for purpose of despatching a money order, did not despatch the money-order, but with intent to cause wrongful loss to the said Sainik .....converted the Taka ten to his own use.

No. 61

CHARGE-SHEET

[Section 40 (c)]

The accused, number .....,Sergeant ....., ...Regiment, is charged with :–

Doing an act with intent to cause wrongful loss to a person,

in that he, at ....., on ....., with intent to cause wrongful loss to Sainik ....., debited the said Sainik in the acquittance roll for .....of ..... Company, ...Regiment, with a deduction of Taka ..... on account of clothing, which deduction he did not credit to the said Sainik's clothing account.

No. 62

CHARGE-SHEET

[Section 40 (c)]

The accused, number ....., Sergeant ....., ...Regiment, is charged with :–

Doing an act with intent to defraud,

in that he, at....., on ....., having received from Lieutenant A, ...Regiment, a cheque for Taka ..... payable to the Mess President ..... Regiment, irregularly cashed the same at the Regimental Treasure Chest, ...Regiment, and fraudulently misappropriated the proceeds namely, Taka ....

No. 63

CHARGE-SHEET

[Section 40 (c)]

The accused, number....., Sainik (Clerk)....., ...Regiment, is charged with :–

Doing an act with intent to defraud,

in that he, at....., on ....., with intent to defraud, forged the name of Captain....., to a post office order for Taka thirty, and thereby obtained the sum of Taka thirty.

No. 64

CHARGE-SHEET

[Section 41 (a)]

The accused, number....., Sainik....., ...Regiment, is charged with :–

Malingering,

in that he, at....., on ....., (between.....and.....) with the intention of evading his duties as a soldier counterfeited dumbness.

No. 65

CHARGE-SHEET

[Section 41 (a)]

The accused, number ....., Sainik....., ...Regiment, is charged with :–

Feigning disease in himself,

in that he, at....., on ....., pretended to Captain .....Regiment, that he was suffering violent pains in the head and down his, back, whereas he was not so suffering.

No. 66

CHARGE-SHEET

[Section 41 (a)]

The accused, number ....., Sainik....., ...Regiment, is charged with :–

Intentionally delaying his cure,

in that he, at....., on ....., when under medical treatment for a wound in his leg, removed the bandages from the said wound with intent thereby to delay his cure and did thereby delay his cure.

No. 67

CHARGE-SHEET

[Section 41 (a)]

The accused, number ....., Sainik....., ...Regiment, is charged with :–

Voluntarily causing hurt to himself with intent to render himself unfit for service,

in that he, at ....., on ....., when on guard duty, short himself through the I ft calf with a rifle, with intent to render himself unfit for service.

No. 68

CHARGE-SHEET

[Section 41 (c)]

The accused, number ....., Warrant Officer ....., ...Regiment, is charged with :–

Disgraceful conduct of an indecent kind,

in that he, at....., on ....., with indecent intent got into bed with Number .....Sainik ....., of the same Regiment.

No. 69

CHARGE-SHEET

[Section 41 (c)]

The accused, number ....., *Sainik*....., ...Regiment, is charged with :–

Disgraceful conduct of an unnatural kind,

in that he, at....., on ....., attempted to have carnal knowledge of a pony mare, in the Transport lines of ..... Regiment.

No. 70

CHARGE-SHEET

[Section 41 (b)]

The accused, number....., *Sainik*..... ....Regiment, is charged with :–

Voluntarily causing hurt to a person subject to the Bangladesh Army Act with intent to render that person unfit for service,

in that he, at....., on ....., at the request of Sainik ....., cut off the trigger finger of the said Sainik with intent to render him unfit for service.

No. 71

CHARGE SHEET

[Section 41(b)]

The accused, number ……., Sainik……, ……. Regiment, is charged with:–

Feigning infirmity in himself,

in that he, at ……, on …….., pretended to the Medical officer-in-charge of troops that he was suffering from stiff knee which he could not bend, whereas, as he well knew, he was not so suffering.

No. 72
CHARGE SHEET
[Section 41 (c)]

The accused, number……, Sainik……, ……. Regiment is charged with :–

Disgraceful conduct of a cruel kind,

in that he, at ……, on ……..……., threw a cat against a wall.

No. 73
CHARGE SHEET
[Section 42]

The accused, number……, Warrant Officer……, ……. Regiment is charged with :–

Accepting for himself a gratification other than legal remuneration as reward for showing favour to a person in relation to service affairs,

in that he, at……..……, on…...……, accepted for himself a gratification of Taka …… other than legal remuneration, from number …… Corporal…… Regiment as a reward for showing favour in procuring the promotion of the said Corporal ……. to the rank of Sergeant.

No. 74
CHARGE SHEET
[Section 44 (1)]

The accused, number……, Sainik …..……, ……. Regiment, is charged with :–

Without authority and wilfully releasing a person placed in service custody,

in that he, at……, on……, when posted as a sentry over A ……B……, a person placed in service custody without authority and wilfully released the said A……B…….. to escape.

No. 75
CHARGE SHEET
[Section 44 (2) (a)]

The accused, number……, Sergeant ……, ……. Regiment, is charged with:–

Negligently allowing a person placed in his charge to escape,

in that he, at ……, on……, when in command of an escort conducting Sainik ……., Regiment, a person placed in his charge to ……negligently allowed the said person to escape.

No. 76
CHARGE SHEET
[Section 44 (2) (a)]

The accused, number……., Sergeant ..……, ……. Regiment, is charged with :–

Without reasonable excuse allowing a person placed in his charge to escape,

in that he, at…….., on……., when conducting to his battalion, Sainik ……Regiment, a person placed in his charge allowed crowd to assemble around the said person without taking reasonable means to prevent, and thus permitted the escape of the said person.

No. 77
CHARGE SHEET
[Section 44 (2) (b)]

The accused, number……., Senior Warrant Officer……, ……. Regiment, is charged with :–

Being in lawful custody leaving such custody before being set at liberty by proper authority,

in that he, at…….., on…….., when under close arrest in his quarters, went to the bazar.

No. 78
CHARGE SHEET
[Section 45 (a)]

The accused, number……., Sainik …..……, ……. Regiment, is charged with :–

Losing by neglect, arms, ammunition and equipment, being Government property, issued to him for his use,

in that he, at…….., on ……., lost by neglect on rifle, value ……, five .303 rounds ball ammunition, value……..…. and scabbard, value…… the property of Government, issued to him for his use.

No. 79
CHARGE SHEET
[Section 45 (a)]

The accused, number……., Sainik …..……, ……. Regiment, is charged with :–

Losing by neglect equipment, and clothing, being Government property issued to him for his use,

in that he, at……, on……..lost by neglect on Mosquito Net, value ……..one great coat value …….one Durrie, on Badge cap, one shirt cellular, the property of the Government issued to him for his use.

No. 80
CHARGE SHEET
[Section 45 (b)]

The accused, number……, Sainik …..……, ……. Regiment, is charged with :–

Wilfully injuring Government property,

in that he, at…….., on…….., wilfully injured the windows of his cell, Government property.

No. 81
CHARGE SHEET
[Section 46 (a)]

The accused, number……, Sainik …..……, ……. Regiment, is charged with :–

Making a false accusation against a person subject to the Army Act, 1952, knowing such accusation to be false.

in that he, at…….., on…….., when appearing before Captain ……, Regiment, used language to the following effect ; "The Company Sergeant Major is not fair in taking men for duty, and no one in the company can get on if he does not give him a bribe", meaning thereby the Company Sergeant Major of his, the accused's Company, well knowing the said statement to be false.

No. 82
CHARGE SHEET
[Section 47 (a) (i)]

The accused, number……., Sergeant..……, ……. Regiment, is charged with :–

In an Official document of the contents of which it was his duty to ascertain the accuracy knowingly making fraudulent statement,

in that he, at……., on (or about)…….., when acting as Pay Sergeant of……Company …….Battalion……..Regiment, in the Acquittance Roll of the said Company for the month of ……..of the contents of which it was his duty to ascertain the accuracy made an entry purporting to show that on …….a casual payment of Taka……had been made to Number…….., Sainik……Battalion, ……. Regiment, well knowing that such payment had not been made and with intent to defraud.

No. 83
CHARGE SHEET
[Section 47 (a) (i)]

The accused, number……, Sergeant..……, ……. Regiment, is charged with :–

In a report signed by him knowingly making false statement,

in that he, at…….., on…….., in the orderly officer's report signed by him stated that he had turned out the guard at……., on……, well knowing that he had not in fact turned out the guard at that time.

No. 84
CHARGE SHEET
[Section 47 (a) (ii)]

The accused, number……, Sergeant..……,
……. Regiment, is charged with :–

In a book made by him knowingly making an omission with intent to defraud,

in that he, at…….., on (or about)…….., when caterer of the Non-Commissioned Officers' mess of ……Regiment, with intent to defraud, omitted to make an entry in the caterer's daily stock-book made by him recording the receipt into the stock of the said Mess of eighteen lbs. Of Ghee Vegetable delivered by Messrs……on……

No. 85
CHARGE SHEET
[Section 47 (b)]

The accused, number……, Sergeant..……,
……. Regiment, is charged with :–

Knowingly and with intent to defraud, making away with an official document which it was his duty to preserve,

in that he, at…….., on (or about)…….., with intent to defraud, burned the Acquittance Roll of ……Company ……Regiment, for the month of ……19…… an official document which it was his duty to preserve.

No. 86
CHARGE SHEET
[Section 47 (b)]

The accused, number……, Sergeant..……,
……. Regiment, is charged with :–

Knowingly and with intent to defraud altering an official document which it was his duty to preserve,

in that he, at…….., on (or about)……..…….., when Company Quartermaster Sergeant of..……..…Company,……Battalion ……Regiment, in the acquittance roll for the month of …….., an official document which it was his duty to preserve, with intent to defraud, altered the figures "Taka. 2/-" in the first payment column of the said form set against the several names of Lance Corporal…… and Sainik……, and changed the said figure in each case in "Taka. 3/-".

No. 87
CHARGE SHEET
[Section 49 (a)]

The accused, number……, Sainik…..……, ……. Regiment, is charged with :–

Refusing to be affirmed when duly required by a court-martial to be affirmed,

in that he, at……., on ……., refused to be affirmed as a witness, when duly required to do so by a district court-martial trying Number…….Sainik……, Regiment…….

No. 88
CHARGE SHEET
[Section 50]

The accused, number……, Sainik…..……, ……. Regiment, is charged with :–

Having been duly affirmed before a court-martial, making a false statement which he which he knew to be false,

in that he, at……., on……., having been duly affirmed as a witness at the trial, by court-martial of Number. 1234 Sainik Khan Mohd., ……..Regiment, stated, when giving evidence at the said trial, that he had seen the said Sainik Khan Mohd, in the unit lines at 1400 hours. in ……, a statement which he (the accused) knew to be false.

No. 89
CHARGE SHEET
[Section 52]

The accused, number……, Lieutenant……, ……. Regiment, a P. C. O., is charged with :–

Behaving in a manner unbecoming his position and the character expected of him,

in that he, at……., on……., in payment of his mess account, gave to Major ……., the mess president, a cheque for Taka One hundred (Taka. 100/-) on the Bangladesh Bank (……..Branch) which was dishonoured when presented, well knowing that he had not sufficient funds in the said Branch to meet the said cheque, and having no reasonable grounds for supposing that the said cheque would be honoured when presented.

No. 90
CHARGE SHEET
[Section 52]

The accused, number……, Captain...……, ……. Regiment, a P. C. O., is charged with :–

Behaving in a manner unbecoming his position and the character expected of him,

in that he, at……., on……., when orderly officer of the day, when it was reported to him that Sainik A……B…… had armed himself with a rifle and ammunition, and run amok defying any one to arrest him, did not go to the spot, nor take any prompt or adequate measures to capture, disarm or shoot down,

or cause to be captured, disarmed or shot down the said A……, B……either on receiving the report, or even subsequently when he became aware that the aforesaid A……, B…….. had fired at and wounded Lieutenants C……, D…….. of the same Regiment.

No. 91
CHARGE SHEET
[Section 53]

The accused, number……, Warrant Officer……, ……. Regiment, is charged with :–

Ill-treating a person subject to the Army Act, 1952, being his subordinate in rank.

in that he, at…….., on …….., ill-treated Number……, Sainik…….., Regiment ……. by making him catch his own ears through his legs.

No. 92
CHARGE SHEET
[Section 53]

The accused, number……, Sergeant...……, ……. Regiment, is charged with :–

Striking a person subject to the Army Act, 1952, being his subordinate in rank,

in that he, at…….., on …….., when drilling a squad of recruits, struck Sainik……, of the same Regiment on the shoulder with a pace stick.

No. 93
CHARGE SHEET
[Section 54]

The accused, number……, Major……, Regiment a P. C. O., is charged with :–

After receiving the pay of a person subject to the Army Act, 1952, unlawfully detaining the same, when due.

in that he, at……., on ……, an officer commanding ……, Company…….., Battalion……. Regiment having received Taka……..for disbursement as pay of the other ranks in his platoon for the month of ……unlawfully detained with himself Taka ……on account of the pay on Number……. Sainik……..…… and did not pay the amount to the said Sainik when demanded by him on ……

No. 94
CHARGE SHEET
[*First Charge,* Section 55]

The accused, number……., Warrant Officer..……, ……. Regiment, is charged with :–

An act to the prejudice of good order and military discipline,

in that he, at…….., on …….., when superintendent at the butts during the repetition of Musketry practice Number… ……..……., by certain casuals of his regiment, wilfully caused it to be signalled to the firing point that four fair hits had been made on Number. 3 target, whereas actually only one fair hit and one ricochet had been made on the said target, as he well knew.

[*Second Charge,* Section 55 (alternative)]

Neglect to the prejudice of good order and military discipline,

in that he, at ……..on …… when superintendent at the butts on the occasion mentioned in the first charge, neglected to exercise proper care in checking the targets, and thereby caused it to be signalled to the firing point that four fair hits had been made on Number. 3 target, whereas actually only one fair hit and one ricochet had been made on the said target.

No. 95
CHARGE SHEET
[Section 55]

The accused, number……., Sergeant……,Regiment is charged with :–

An act to the prejudice of good order and military discipline,

in that he, at……., on or about ….……., improperly wrote and sent to his commanding officer, Lieutenant Colonel ……, Regiment, an anonymous letter in which he made use of the following, words–*(set out).*

No. 96
CHARGE SHEET
[Section 55]

The accused, number……... , Sainik…..……..……, Regiment is charged with :–

Conduct to the prejudice of good order and military discipline,

in that he, at…….., on ……, was improperly in possession of a pair of boots, the property of Number….……., Sainik……, Battalion, ……..Regiment.

No. 97
CHARGE SHEET
[Section 55]

The accused, number……... Sainik…….……, Regiment is charged with :–

An act to the prejudice of good order and military discipline,

in that he, at……, on ……..……,struck Sainik ……, of the same Regiment on the shoulder and head with a stick.

No. 98
CHARGE SHEET
[Section 55]

The accused, number……., Driver……..……, Regiment is charged with :–

Neglect to the prejudice of good order and military discipline,

in that he, at……., on ……, so negligently rove motor lorry Number..……, the property of Government, as to cause the said lorry to be damaged to the amount of Taka. ……

No. 99
CHARGE SHEET
[Section 55]

The accused, Captain…….……..…….……..…, Regiment a P. C. O., is charged with :–

Neglect to the prejudice of good order and military discipline,

in that he, at……..……..., between…..……, and ….……, while the officer commanding ……..Company ……Regiment, he was concerned in the care of public money, so negligently performed his duties as to be unable to account for Taka…….., part of the said money.

No. 100
CHARGE SHEET
[Section 55]

The accused, Captain…….……, Regiment a P. C. O., is charged with :–

Neglect to the prejudice of good order and military discipline,

in that he, at……..... on or about ……..……, having as President of the Officers' Mess, ……, Regiment, received from Captain ……, the sum of Taka……for and on account of the said Mess,

neglected to pay the said sum to the credit of the said Mess, and thereby caused a loss of Taka…….to the said Mess.

No. 101
CHARGE SHEET
[Section 55]

The accused, number……..Warrant Officer…….……, Regiment is charged with :–

Neglect to the prejudice of good order and military discipline,

in that he, at……..., between ……..……and when in charge of the Military Grass Farm ……., neglected to exercise a proper supervision over the operations of stacking and the issue of bhoosa at the said Farm and thereby caused a loss to the Government of Taka…… or thereabouts.

No. 102
CHARGE SHEET
[Section 55]

The accused, number……Corporal…….……..…, Regiment is charged with :–

Neglect to the prejudice of good order and military discipline,

in that he, at……..., on……..……, after being duly warned by Sergeant……, to parade the defaulters at ……..p. m. on that day, neglected to do so.

Note.–This form of charge is applicable when wilful disobedience is not imputed.

No. 103
CHARGE SHEET
[Section 55]

The accused, number……Sainik…….……..……..…, Regiment is charged with :–

Conduct to the prejudice of good order and military discipline,

in that he, at……..., on……(or about)…..……..……, sent to his Commanding Officer a document purporting to be a certificate by a Dr……., of…….to the effect that he, the accused, was unfit to travel, well knowing that the said document was false.

No. 104
CHARGE SHEET
[Section 55]

The accused, number……Sainik……..……, Regiment is charged with :–

Conduct to the prejudice of good order and military discipline,

in that he, at……..., on……, improperly created a disturbance in……street, by shouting and fighting with other person.

No. 105
CHARGE SHEET
[Section 55]

The accused, number……..……, Regiment, is charged with :–

Neglect to the prejudice of good order and military discipline,

in that he, at……..……..., on……, so negligently handled a rifle as to cause it to be discharged and to injure his left foot in a manner rendering him temporarily unfit for service.

No. 106
CHARGE SHEET
[Section 55]

The accused, number……Warrant Officer……, Regiment, is charged with :–

Conduct to the prejudice of good order and military discipline,

in that he, at……..., on……, improperly used for his own private purposes Government vehicle Number……., [thereby occasioning damage to the said vehicle to the extent of Taka…….] and [improperly consuming…….gallons of petrol Government property of the value of Taka…….].

No. 107
CHARGE SHEET
[Section 55]

The accused, number……Sainik……..……, Regiment, is charged with :–

Conduct to the prejudice of good order and military discipline,

in that he, at……..., on……, when on duty as telephone operator at……Headquarters, was asleep when his duty required him to be awake.

No. 108
CHARGE SHEET
[Section 55]

The accused, number……Sainik……..……, Regiment, is charged with :–

Conduct to the prejudice of good order and military discipline,

in that he, at……..., on……, made use of a document dated…….purporting to be a genuine leave pass, well knowing that it was false.

No. 109
CHARGE SHEET
[Section 55]

The accused, number……..…… Regiment, is charged with :–

Conduct to the prejudice of good order and military discipline,

in that he, at……..., on……, (in exchange for cash) (in payment of an indebtedness) having given to ……, a cheque for Taka. ……., drawn by him, the accused, on…… Bank, …… Branch, without reasonable excuse failed either to ensure that he had sufficient funds in the hands of the said bank to meet the said cheque when presented or to make arrangements for the said cheque to be honoured when presented.

No. 110
CHARGE SHEET
[Section 56 (a)]

The accused, number……..……Lieutenant……, Regiment, a P. C. O., is charged with :–

Negligently damaging service aircraft,

in that he, in the vicinity of……..., on…… when pilot of service aircraft (*type*)……, Number…….. so negligently performed his duties as pilot as to cause the said aircraft to collide, with the ground thereby causing damage to the said aircraft.

No. 111
CHARGE SHEET
[Section 56 (b)]

The accused, number……Lieutenant…….……..……, Regiment, a P. C. O., is charged with :–

An omission likely to cause damage to service aircraft,

in that he, at……..., on……, being in charge of glider Number……, parked on the ground in a wind likely to cause damage thereto, omitted to ensure as it was his duty to do, that the said glider was properly secured to the ground, which omission was likely to cause damage to the said glider.

No. 112
CHARGE SHEET
[Section 56 (c)]

The accused, number……. Sainik…….…….……..……, Regiment, is charged with :–

Without due authority disposing of service aircraft material,

in that he, at……..., on……, without due authority sold to……., a civilian, magneto……Number……. *(type)*……service aircraft material, value ……Taka…….

No. 113
CHARGE SHEET
[Section 56 (d)]

The accused, number…….., Sainik…...…….……..……, Regiment, is charged with :–

An omission in relation to aircraft which was likely to cause loss of life,
in that he,……..., on……..……, when assisting to service aircraft *(type)*……..……, Number……..omitted to secure properly the aileron controls of the said aircraft, and thereby endangered the life of……, the pilot of the said aircraft.

No. 114
CHARGE SHEET
[Section 57 read with 31 (a)]

The accused, number……Lance Corporal…….……..……, Regiment, is charged with :–

Attempting to incite a mutiny in the military forces of Bangladesh and doing an act towards the commission of the same,

in that he, at……..., on……, attempted to incite the non-commissioned officers and men of ……,Troop, …….….. Squadron, …… Regiment, to combine together and refuse to eat their rations next day and to demand from Lieutenant Colonel……..commanding the said regiment that Warrant Officer …….be removed from his employment as Officer in charge of ration issue and to this end in the lines of the said troop addressed Corporal ……., Sainik ……and about ten other men belonging to the said troop in language to the effect following that is to say ……. *(set forth the language used in the endeavour to incite mutiny).*

No. 115
CHARGE SHEET
[A. A. Section 58]

The accused, number……..Sainik…….……..……, Regiment, …….. is charged with :–

Abetment within the meaning of the Penal Code of an offence punishable under section 40 (a) of the Army Act, 1952,

in that he, at……..., on……, when sentry over the Fort Magazine Guard between 3 A. M. and 4 A. M., by omitting to keep on the alert, intentionally aided Sainik……, of the same regiment to steal one box of ammunition, value …….., the property of Government, and thereby abetted within the meaning of the Penal Code an offence punishable under section 40 (a) of the Army Act.

Note.–If there is any doubt as to the assistance being intentional, an alternative charge under section 55 may be added.

No. 116
CHARGE SHEET
[Section 59]

The accused, number……..…, Sergeant…….…..……, Regiment, is charged with :–

Committing a civil offence, that is to say, sedition,

in that he, at……..., on……, by saying in the presence of Corporal…….……, Lance Corporal……and other non-commissioned officers and men of the……Regiment present in the regimental mosque *"(set out the words used)"*, or words to that effect attempted to excite

disaffection towards the Government established by law in the Capital of the Bangladesh.

No. 117
CHARGE SHEET
[*First charge Section 59*]

The accused, number……..…, Sainik…….……..……, Regiment, is charged with :–

Committing a civil offence, that is to say, rioting,

in that he, at…….…, on…….……, was a member of an unlawful assembly, which, in prosecution of the common object of such assembly to use criminal force to the civil police, beat the civil police with lathis, thereby committing the offence of rioting.

(Second charge, Section 59 (alternative to first charge))
Committing a civil offence, that is to say, being a member of an unlawful assembly,

in that he, at the place and on the day aforesaid, was a member of an unlawful assembly, the common object of which was to use criminal force to the civil police.

No. 118
CHARGE SHEET
[Section 59]

The accused, number……..…, Sainik…….……..……, Regiment, is charged with :–

Committing a civil offence, that is to say, attempt to murder,

in that he, at…….…, on……, fired two shots from a rifle at Captain ……, ……..Regiment, with intent to kill him, and thereby wounded the said Captain……in the right breast and left thigh.

No. 119
CHARGE SHEET
[Section 59]

The accused, number……..…, Sainik…..……..……, Regiment, is charged with :–

Committing a civil offence, that is to say, voluntarily causing grievous hurt,

in that he, at…….…, on……, voluntarily caused grievous hurt to ……, by fracturing his arm with a heavy stick.

No. 120
CHARGE SHEET
[Section 59]

The accused, number……..…, Sainik…..……..……, Regiment, is charged with :–

Committing a civil offence, that is to say, theft,

in that he, at…….…, on……, committed theft in respect of a tin of ghee, value……, from the shop of …… in the Suddar Bazar, the property of the said……..

No. 121
CHARGE SHEET
[Section 59]

The accused, number……..…, Sainik……..……, Regiment, is charged with :–

Committing a civil offence, that is to say, murder,

in that he, at……..., on……, by causing intentionally the death of Major……, ……..Regiment, committed murder.

No. 122
CHARGE SHEET
[Section 59]

The accused, number……..…, Sainik…..……..……, Regiment, is charged with :–

In a Frontier Post specified by the Government by notification under section 59 of the Army Act, 1952, committing a civil offence, that is to say, culpable homicide not amounting to murder,

in that he, at……..., on……, by causing the death of a man named ……., committed culpable homicide not amounting to murder.

No. 123
CHARGE SHEET
[Section 59]

The accused, number……..…, Driver…..……..……, Regiment, is charged with :–

Committing a civil offence, that is to say, causing death by a rash or negligent act not amounting to culpable homicide,

in that he, near……..., on……, by rashly or negligently driving a motor lorry caused the death of one……., a syce.

No. 124
CHARGE SHEET
[Section 59]

The accused, number……..…, Sainik…..……..……, Regiment, is charged with :–

Committing a civil offence, that is to say, attempting to commit suicide and doing an act towards the commission of the same,

in that he, at……..., on……., attempted to commit suicide by taking strychnine.

THE ARMED FORCES NURSING SERVICE ACT, 1952

ACT No. XXXVI of 1952

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THE ARMED FORCES NURSING SERVICE RULES, 1969

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THE ARMED FORCES NURSI NG SERVICE ACT, 1952

ACT No. XXXVI of 1952

An Act to constitute a force to be called the Bangladesh Armed Forces Nursing Service and to provide for its discipline.

WHEREAS it is expedient to constitute a force to be called the Bangladesh Armed Forces Nursing Service, as a part of the Armed Forces of Bangladesh, and to provide for its discipline;

It is hereby enacted as follows: -

1. Short title, application and commencement.— (1) This Act may be called the Armed Forces Nursing Service Act, 1952.

(2) It applies to the members of the Bangladesh Armed Forces Nursing Service wherever they may be.

(3) It shall come into force at once and shall be deemed to have taken effect on the tenth day of May, 1951.

2. Definitions.— In this Act, unless there is anything repugnant in the subject or context: -

(a) "prescribed" means prescribed by rules made under this Act;

(b) "regulations" means regulations made under this Act.

3. Constitution for Bangladesh Armed Forces Nursing Service.— There shall be raised and maintained, in the manner hereinafter provided, as part of the Armed Forces of Bangladesh a force which shall be designated the Bangladesh Armed Forces Nursing Service.

4. Liability for service of members of the Bangladesh Armed Forces Nursing Service.— The members of the Bangladesh Armed Forces Nursing Service shall be liable for service with the force or persons subject to the Army Act, 1952, the Air Force Act, 1953 or the Navy Ordinance, 1961.

5. Members to be of commissioned rank.— All members of the Bangladesh Armed Forces Nursing Service shall be of commissioned rank and shall be appointed as officers of the Bangladesh Armed Forces Nursing Service, by the Government, by notification in the official Gazette.

6. Eligibility for appointment.— (1) Any female citizen shall be eligible for appointment as an officer in the Bangladesh Armed Forces Nursing Service and, if she satisfies the prescribed conditions, may be appointed thereto in the manner laid down in section 5 of this Act:

Provided that a woman who is not a citizen of Bangladesh but who otherwise fulfils the conditions laid down by, or under this section for a citizen of Bangladesh, may, with the consent of the Government, signified in writing be appointed as an officer in the Bangladesh Armed Forces Nursing Service.

(2) Every person so appointed shall be subject to this Act and to the rules and regulations made thereunder.

7. Dismissal from the Bangladesh Armed Forces Nursing Service.— The Government or any authority empowered by the Government in this behalf, may dismiss, remove, release, or cause of retirement of, any officer from the Bangladesh Armed Forces Nursing Service.

8. Liability to undergo training and perform duties.— Subject to the provisions of this Act, an officer of the Bangladesh Armed Forces Nursing Service shall be bound to undergo such training and in such manner and to perform such duties in connection with the forces and persons subject to any of the enactments referred to in Section 4 as may be laid down by regulations.

9. Application of the Army Act, 1952, the Air Force Act, 1953, and the Navy Ordinance, 1961, to members of the Bangladesh Armed Forces Nursing Service.— (1) The provisions of the Army Act, 1952 (XXXIX of 1952), shall, to such extent and subject to such adaptations and modifications as may be prescribed, apply to officers of the Bangladesh Armed Forces Nursing Service, who may be serving with forces and persons subject to the Act as those provisions apply to officers of the Bangladesh Army.

(2) The provisions of the Air Force Act, 1953, (VI of 1953), shall, to such extent and subject to such adaptations and modifications as may be prescribed, apply to officers of the Bangladesh Armed Forces Nursing Service, who may be serving with forces and persons subject to that Act as those provisions apply to officers of the Bangladesh Air Force.

(3) The provisions of the Navy Ordinance, 1961, (XXXV of 1961) shall, to such extent and subject to such adaptations and modifications as may be prescribed, apply to officers of the Bangladesh Armed Forces Nursing Service, who may be serving with forces and persons subject to that Ordinance as those provisions apply to officers of the Bangladesh Navy.

10. Power to make rules.— (1) The Government may, by notification in the official Gazette, make rules to carry out the purposes of this Act.

(2) In particular and without prejudice to the generality of the foregoing power, rules may be made under this section, -

(a) providing for the medical examination of persons offering themselves for appointment in the Bangladesh Armed Forces Nursing Service; and

(b) providing for any matter which under this Act is to be or may be prescribed.

11. Power to make regulations.— Any officer or authority empowered in this behalf by the Government may make regulations not inconsistent with this Act and rules made thereunder, providing for all matters to be laid down by regulations and generally for all details connected with the organization, pay, allowances, duties, discipline, training, clothing, equipment and leave of members of the Bangladesh Armed Forces Nursing Service.

THE ARMED FORCES NURSING SERVICE RULES, 1969

S.R.O. 1683 (K)/69 : DATED August 15.1969

In exercise of the powers conferred by section 10 of the Armed Forces Nursing Service Act, 1952 (XXXVI of 1952), the Government is pleased to make the following rules, namely: -

1. Short title and commencement.— (1) These rules may be called the Armed Forces Nursing Service Rules, 1969.

(2) They shall come into force at once.

2. Interpretation.— In these rules, unless there is anything repugnant in the subject or context: -

(a) "Act" means the Armed Forces Nursing Service Act, 1952 (XXXVI of 1952); and

(b) "Nursing Service" means the Bangladesh Armed Forces Nursing Service raised and maintained under section 3 of the Act.

3. Application of certain provisions of the Army Act, 1952 (XXXIX of 1952).— (1) Subject to sub-rule (2), the provisions of Sections 37 and 55 of the Army Act, 1952 (XXXIX of 1952), and the Provisions of that Act relating to a field general court martial shall apply to an officer of the Nursing Service who may be serving with forces and persons subject to that Act as they apply to officers of the Bangladesh Army.

(2) In their application to the officers of the Nursing Service, the provisions of the Army Act, 1952 (XXXIX of 1952), mentioned in sub-rule (1) shall have effect subject to the following adaptations and modifications, namely:-

(a) reference in that Act to "commanding officer" shall be construed as reference to the officer in command of the hospital or other unit in which the officer of the Nursing Service is serving or to which she is attached;

(b) reference in that Act to a court martial of whatever description shall be construed as reference to a field general court martial;

(c) Section 37 of that Act shall have effect as if it read as follows:-

"37. An officer who absents herself without leave commits an offence against this Act."; and

(d) Section 55 of that Act shall have effect as if it read as follows:-

"55. An officer who is guilty of any act, conduct, disorder or neglect to the prejudice of good order and of military discipline commits an offence against this Act".

4. Application of certain provisions of the Navy Ordinance, 1961 (XXXV of 1961).— (1) Subject to sub-rule (2), the provisions of Sections 47 and 75 of the Navy Ordinance, 1961 (XXXV of 1961), and the provisions of that Ordinance relating to a summary general court martial shall apply to an officer of the Nursing Service who may be serving with forces and persons subject to that Ordinance as they apply to officers of the Bangladesh Navy.

(2) In their application to the officers of the Nursing Service, the provisions of the Navy Ordinance, 1961 (XXXV of 1961), mentioned in sub-rule (1) shall have effect subject to the following adaptations and modifications, namely:—

(a) reference in that Ordinance to "commanding officer" shall be construed as reference to the officer in command of the hospital or unit in which the officer of the Nursing Service is serving or to which she is attached;

(b) reference in that Ordinance to a court martial of whatever description shall be construed as reference to a summary general court martial ;

(c) Section 47 of that Ordinance shall have effect as if it read as follows:-

"47. An officer who absents herself without leave commits an offence against this Ordinance."; and

(d) Section 75 of that ordinance shall have effect as if it read as follows :-

"75. An officer who is guilty of any act, disorder or neglect to the prejudice of good order and naval discipline commits an offence against this Ordinance."

5. Application of certain provisions of the Air Force Act, 1953 (VI of 1953).— (1) Subject to sub-rule (2), the provisions of Section 39 and 65 of the Air Force Act, 1953 (VI of 1953), and the provisions of that Act, relating to a field general court martial shall apply to an officer of the Nursing Service who may be serving with Forces and persons subject to that Act as they apply to officers of the Bangladesh Air Force.

(2) In their application to the officers of the Nursing Service, the provisions of the Air Force Act, 1953 (VI of 1953), mentioned in sub-rule (1) shall have effect subject to the following adaptations and modifications, namely: -

(a) reference in that Act to "commanding officer" shall be construed as reference to the officer in command of the hospital or unit in which the officer of the Nursing Service is serving or to which she is attached;

(b) reference in that Act to a court martial of whatever description shall be construed as reference to a field general court martial;

(c) Section 39 of that Act shall have effect as if it read as follows:-

"39. An officer who absents herself without leave commits an offence against this Act."; and

(d) Section 65 of that Act shall have effect as if it read as follows:-

"65. An officer who is guilty of any act or omission prejudicial to good order and Air Force discipline commits an offence against this Act."

6. Punishments.— An officer of the Nursing Service guilty of an offence mentioned in rules 3, 4 or 5 shall be liable to any one or more punishments according to the following scale, namely:-

(a) dismissal from service;

(b) forfeiture of seniority of rank in the Nursing Service or, in the case of an officer whose promotion depends upon the length of service, forfeiture of all or any part of her service for the purpose of promotion;

(c) severe reprimand;

(d) reprimand; and

(e) stoppages.

7. Summary punishments.— An officer of the Nursing Service may be dealt with summarily in the manner provided by or under the Act or Ordinance with the forces and persons subject to which she may for the time being be serving and may be awarded any one or more of the punishments specified in clauses (b) to (e) of Rule 6.

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8. Court Martial.— (1) An officer of the Nursing Service accused of an offence who is not dealt with summarily in accordance with Rule 7 shall be tried, -

(a) if she is for the time being serving with forces and persons subject to the Army Act, 1952 (XXXIX of 1952), by a field general court martial;

(b) if she is for the time being serving with forces and persons subject to the Navy Ordinance, 1961 (XXXV of 1961), by a summary general court martial; and

(c) if she is for the time being serving with forces and persons subject to the Air Force Act, 1953 (VI of 1953), by a field general court martial

(2) A field general court martial or, as the case may be a summary general court martial, convened for the trial of an officer of the Nursing Service shall consist of not less than one officer of the Nursing Service, unless in the opinion of the convening officer recorded in the convening order, no officer of the Nursing Service is available because of the exigencies of the public service.

9. Medical examination.— Before appointment, the medical examination of each member of the Nursing Service shall be carried out by such Board of Medical Officers as is convened for the medical examination of the candidates for grant of commission in the Bangladesh Army, Bangladesh Navy or Bangladesh Air Force, as the case may be. The medical fitness of each member will be decided upon according to such standards as may be laid down by the DGMS from time to time.

10. Repeal of the Armed Forces Nursing Service Rules, 1956.— The Armed Forces Nursing Service Rules, 1956, are hereby repealed.

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OFFICIAL SECRETS ACT, 1923

ACT No. XIX of 1923

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OFFICIAL SECRETS ACT

ACT No. XIX of 1923

An Act to consolidate and amend the law in Bangladesh relating to official secrets.

Whereas it is expedient that the law relating to official secrets in Bangladesh should be consolidated and amended;

It is hereby enacted as follows:

1. Short title, extent and application.— (1) This Act may be called the Official Secrets Act, 1923.

(2) It extends to the whole of Bangladesh and applies also to all citizens of Bangladesh and persons in the service of the Republic wherever they may be.

2. Definitions.—In this Act, unless there is anything repugnant in the subject of context,—

(1) any reference to a place belonging to the Government includes a place occupied by any department of the Government, whether the place is or is not actually vested in the Government;

(2) expressions referring to communicating or receiving include any communicating or receiving, whether in whole or in part, and whether the sketch, plan, model, article, note, document, or information itself or the substance, effect or description thereof only be communicated or received; expressions referring to obtaining or retaining any sketch, plan, model, article, note or document include the copying or causing to be copied of the whole or any part of any sketch, plan, model, article, note, or document; and expressions referring to the communication of any sketch, plan, model, article, note or document include the transfer or transmission of the sketch, plan, model, article, note or document;

(3) "document" includes part of a document;

(4) "model" includes design, pattern and specimen;

(5) "munitions of war" includes the whole or any part of any ship, submarine, aircraft, tank or similar engine, arms and ammunition, torpedo, or mine intended or adapted for use in war, and any other article, material, or device, whether actual or proposed, intended for such use;

(6) "Office under Government" includes any office or employment in or under any department of the Government;

(7) "photograph" includes an undeveloped film or plate;

(8) "Prohibited place" means —

(a) any work of defence, arsenal, naval, military or air force establishment or station, mine, minefield, camp, ship or aircraft belonging to, or occupied by or on behalf of, the Government, any military telegraph or telephone so belonging or occupied, any wireless or signal station or office so belonging or occupied and any factory, dockyard or other place so belonging or occupied and used for the purpose of building, repairing, making or storing any munitions of war, or any sketches, plans, models or documents relating thereto, or for the purpose of getting any metals, oil or minerals, of use in time of war;

(b) any place not belonging to the Government where any munitions of war of any sketches, models, plans or documents relating thereto, are being made, repaired, gotten, or stored under contract with, or with any person on behalf of, the Government or otherwise on behalf of the Government.

(c) any place belonging to or used for the purpose of the Government which is for the time being declared by the Government by notification in the official Gazette, to be a prohibited place for the purposes of this Act on the ground that information with respect thereto, or damage thereto, would be useful to an enemy, and to which a copy of the notification in respect thereof has been affixed in English and in Bengali.

(d) any railway, road, way or channel, or other means of communication by land or water (including any works of structures being part thereof of connected therewith) or any place used for gas, water or electricity works or other works for purposes of a public character, or any place where any munitions of war or any sketches, models, plans, or documents relating thereto, are being made, repaired or stored otherwise than on behalf of the Government which is for the time being declared by the Government, by

notification in the official Gazette, to be a prohibited place for the purposes of this Act on the ground that information with respect thereto, or the destruction or obstruction thereof, or interference therewith, would be useful to an enemy, and to which a copy of the notification in respect thereof has been affixed in English and Bengali.

Provided that where for declaring a prohibited place under sub-clause (c) of sub-clause (d) a notification in the official Gazette is not considered desirable in the interest of the security of the State, such declaration may be made by an order a copy or notice of which shall be prominently displayed at the point of entry to, or at conspicuous place near, the prohibited place;

(9) "Sketch" includes any photograph or other mode of representing any place or thing; and

(10) "Superintendent of Police" includes any police officer of a like or superior rank, and any person upon whom the powers of a Superintendent of Police are for the purposes of this Act conferred by the Government.

3. Penalties for spying.—(1) If any person for any purpose prejudicial to the safety or interests of the State—

(a) approaches, inspects, passes over or is in the vicinity of, or enters, any prohibited place ; or

(b) makes any sketch, plan, model, or note which is calculated to be or might be or is intended to be, directly or indirectly, useful to an enemy; or

(c) obtains, collects, records or publishes or communicates to any other person any secret official code or password, or any sketch, plan, model, article or note or other document or information which is calculated to be or might be or is intended to be, directly or indirectly, useful to an enemy,

he shall be guilty of an offence under this section.

(2) On a prosecution for an offence punishable under this section with imprisonment for a term which may extend to fourteen years, it shall not be necessary to show that the accused person was guilty of any particular act tending to show a purpose prejudicial to the safety or interest of the State, and, notwithstanding that no such act is proved

against him, he may be convicted if, from the circumstances or the case or his conduct or his known character as proved, it appears that his purpose was a purpose prejudicial to the safety or interest of the State; and if any sketch, plan, model article, note, document, or information relating to or used in any prohibited place, or relating to any thing in such a place, or any secret official code or password is made, obtained, collected, recorded, published or communicated by any person other than a person acting under lawful authority, and from the circumstances of the case or his conduct or his known character as proved it appears that his purpose was a purpose prejudicial to the safety or interests of the State, such sketch, plan, model, article, note, document or information shall be presumed to have been made, obtained, collected, recorded, published or communicated for a purpose prejudicial to the safety or interests of the Sate.

(3) A person guilty of any offence under this section shall be punishable:—

(a) where the offence committed is intended or calculated to be, directly or indirectly, in the interest or for the benefit of a foreign power, or in relation to any work or defence, arsenal, naval, military of air force establishment or station, mine, minefield, factory, dockyard, camp, ship or aircraft or otherwise in relation to the naval, military or air force affairs of Bangladesh or in relation to any secret official code, with death, or with imprisonment for a term which may extend to fourteen years; and

(b) in any other case, with imprisonment for a term which may extend to three years.

3A. Restriction against photographs, sketches, etc., of prohibited and notified areas:—(1) No person shall except under the authority of a written permit granted by or on behalf of the Government make any photograph, sketch, plan, model, note or representation of any kind of any prohibited place or of any other place or area, notified by the Government as a place or area with regard to which such restriction appears to the Government to be expedient in the interest of the security of Bangladesh or of any part of or object in any such place or area.

(2) The Government may, by general or special order, make provision for securing that no photograph, sketch, plan, model, note or representation of any king made under the authority of a permit granted in pursuance of sub-section (1) shall be published unless and until the same

has been submitted to and approved by such authority or person as may be specified in the order, and may retain or destroy or otherwise dispose of anything so submitted.

(3) If any person contravenes any of the provisions of this section, he shall be punished with imprisonment for a term which may extend to three years or with fine or with both.

4. Communications with foreign agents to be evidence of commission of certain offences.— (1) In any proceedings against a person for an offence under section 3, the fact that he has been in communication with, or attempted to communicate with, a foreign agent, whether within or without Bangladesh, shall be relevant for the purpose of proving that he has, for a purpose prejudicial to the safety or interests of the State, obtained or attempted to obtain information which is calculated to be or might be, or is intended to be, directly or indirectly, useful to an enemy.

(2) For the purpose of this section, but without prejudice to the generality of the foregoing provision:—

(a) a person may be presumed to have been in communication with a foreign if—

(i) he has, either within or without Bangladesh, visited the address of a foreign agent or consorted or associated with a foreign agent, or

(ii) either within or without Bangladesh, the name or address of, or any other information regarding, a foreign agent has been found in his possession, or has been obtained by him from any other person;

(b) the expression "foreign agent" includes any person who is or has been or in respect of whom it appears that there are reasonable grounds for suspecting him of being or having been employed by a foreign power, either directly or indirectly, for the purpose of committing an act, either within or without Bangladesh, prejudicial to the safety or interests of the State, or who has or is reasonably suspected of having, either within or without Bangladesh, committed, or attempted to commit, such an act in the interests of a foreign power;

(c) any address, whether within or without Bangladesh, in respect of which it appears that there are reasonable grounds of suspecting it of being an address used for the receipt of communications intended for a foreign agent, or any address at which a foreign agent resides, or to which he resorts for the purpose of giving or receiving communications, or at which he carries on any business, may be presumed to be the address of a foreign agent, and communications addressed to such an address to be communications with a foreign agent.

5. Wrongful communication, etc., of information.— (1) If any person having in his possession or control any secret official code or password or any sketch, plan, model, article, note, document or information which relates to or is used in a prohibited place or relates to anything in such a place, or which has been made or obtained in contravention of this Act, or which has been entrusted in confidence to him by any person holding office under Government, or which he has obtained or to which he has had access owing to his position as a person who holds or has held office under Government, or as a person who holds or has held a contract made on behalf of the Government, or as a person who is or has been employed under a person who holds or has held such an office or contract—

(a) wilfully communicates the code or password, sketch, plan, model, article, note, document or information to any person other than a person to whom he is authorised to communicate it, or a Court of Justice or a person to whom it is, in the interests of the State, his duty to communicate it; or

(b) uses the information in his possession for the benefit of any foreign power or in any other manner prejudicial to the safety of the State; or

(c) retains the sketch, plan, model, article, note or document in his possession or control when he has no right to retain it, or when it is contrary to his duty to retain it, or wilfully fails to comply with all directions issued by lawful authority with regard to the return or disposal thereof; or

(d) fails to take reasonable's care of, or so conducts himself as to endanger the safety of, the sketch, plan, model, article, note, document, secret official code or password or information;

he shall be guilty of an offence under this section.

(2) If any person voluntarily receives any secret official code or password or any sketch, plan, model, article, note, document or information knowing or having reasonable ground to believe, at the time when he receives it, that the code, password, sketch, plan, model, article, note, document or information is communicated in contravention of this Act, he shall be guilty of an offence under this section.

(3) A person guilty of an offence under this section shall be punishable:

(a) where the offence committed is a contravention of clause (a) of sub-section (1) and intended or calculated to be directly or indirectly, in the interest or for the benefit of a foreign power, or is in relation to any work of defence, arsenal, naval, military or air force establishment or station, mine, minefield, factory, dockyard, camp, ship or aircraft or otherwise in relation to the naval, military or air force affairs of Bangladesh or in relation to any secret official code, with death, or with imprisonment for a term which may extend to fourteen years, and

(b) in any other case, with imprisonment for a term which may extend to two years, or with fine, or with both.

6. Unauthorised use of uniforms.— falsification of reports, forgery, personation and false documents:—(1) If any person for the purpose of gaining admission or of assisting any other person to gain admission to a prohibited place or for any other purpose prejudicial to the safety of the State—

(a) uses or wears, without lawful authority, any naval, military, air force, police or other official uniform or any uniform so nearly resembling the same as to be calculated to deceive, or falsely represents himself to be a person who is or has been entitled to use or wear any such uniforms; or

(b) orally, or in writing in any declaration or application, or in any document signed by him or on his behalf, knowingly makes or connives at the making of any false statement or any omission; or

(b) forges, alters, or tampers with any passport or any naval, military, air force, police, or official password, permit, certificate, licence, or other document of a similar character

(hereinafter in this section referred to as an official document) or knowingly uses or has in his possession any such forged, altered, or irregular official document; or

(d) personates, or falsely represents himself to be, person holding, or in the employment of a person holding, office under the Government, or to be or not to be a person to whom an official document or secret official code or password has been duly issued or communicated, or with intent to obtain a official document, secret official code or password; whether for himself or any other person, knowingly makes any false statement; or

(e) uses, or has in his possession or under his control, without the authority of the department of the Government or the authority concerned, any die, seal or stamp of or belonging to, or used, made or provided by, any department of the Government, or by any diplomatic, naval, military, or air force authority appointed by or acting under the authority of the Government, or any die, seal or stamp so nearly resembling any such die, seal or stamp as to be calculated to deceive, or counterfeits any such die, seal or stamp, or knowingly uses, or has in his possession or under his control, any such counterfeited die, seal or stamp,

he shall be guilty of an offence under this section.

(2) If any person for any purpose prejudicial to the safety of the State—

(a) retains any official document, whether or not completed or issued for use, when he has no right to retain it, or when it is contrary to his duty to retain it, or wilfully fails to comply with any direction issued by any department of the Government or any person authorised by such department with regard to the return or disposal thereof; or

(b) allows any other person to have possession of any official document issued for his use alone, or communicates any secret official code or password so issued, or, without lawful authority or excuse, has in his possession any official document or secret official code or password issued for the use of some person other than himself, or, on obtaining possession of any official document by finding or otherwise, wilfully fails to restore it to the person or authority by whom or for whose use it was issued, or to a police officer; or

(c) without lawful authority or excuse, manufactures or sells, or has in his possession for sale, any such die, seal or stamp as aforesaid,

he shall be guilty of an offence under this section.

(3) A person guilty an offence under this section shall be punishable with imprisonment for a term which may extend to two years, or with fine, or with both.

(4) The provisions of sub-section (2) of section 3 shall apply, for the purpose of proving a purpose prejudicial to the safety of the State, to any prosecution for an offence under this section relating to the naval, military or air force affairs of the Government, or to any secret official code in like manner as they apply, for the purpose of proving a purpose prejudicial to the safety or interests of the State, to prosecutions for offences punishable under that section with imprisonment for a term which may extend to fourteen years.

7. Interfering with officers of the police or members of the Armed Forces of Bangladesh.—(1) No person in the vicinity of any prohibited place shall obstruct, knowingly mislead or otherwise interfere with or impede, any police officer, or any member of the Armed Forces of Bangladesh engaged on guard, sentry, patrol, or other similar duty in relation to the prohibited place.

(2) If any person acts in contravention of the provisions of this section, he shall be punishable with imprisonment which may extend to two years, or with fine, or with both.

8. Duty of giving information as to commission of offences.—(1) It shall be the duty of every person to give on demand to a Superintendent of Police, or other police officer not below the rank of Inspector, empowered by the Inspector General of Police or, in a Metropolitan area, the Police Commissioner in this behalf, or to any member of the armed forces of Bangladesh engaged on guard, sentry, patrol or other similar duty, any information in his power relating to an offence or suspected offence under section 3, or under section 3 read with section 9, and, if so required, and upon tender of his reasonable expenses, to attend at such reasonable time and place as may be specified for the purpose of furnishing such information.

(2) If any person fails to give any such information or to attend as aforesaid, he shall be punishable with imprisonment which may extend to two years, or with fine, or with both.

9. Attempts, incitements, etc.— Any person who attempts to commit or abets the commission of an offence under this Act shall be punishable with the same punishment, and be liable to be proceeded against in the same manner as if he had committed such offence.

10. Penalty for harbouring spies.— (1) If any person knowingly harbours any person whom he knows or has reasonable grounds for supposing to be a person who is about to commit or who has committed an offence under section 3, or under section 3 read with section 9, or knowingly permits to meet or assemble in any premises in his occupation or under his control any such persons, he shall be guilty of an offence under this section.

(2) It shall be the duty of every person having harboured any such person as aforesaid or permitted to meet or assemble in any premises in his occupation or under his control any such person as aforesaid, to give on demand to a Superintendent of Police or other police officer not below the rank of Inspector empowered by the Inspector-General in this behalf, any information in his power relating to any such person or persons, and if any person fails to give any such information, he shall be guilty of an offence under this section.

(3) A person guilty of an offence under this section shall be punishable with imprisonment for a term which may extend to one year, or with fine, or with both.

11. Search warrants.— (1) If a Magistrate of the first class or Upazila Magistrate is satisfied by information on oath that there is reasonable ground for suspecting that an offence under this Act has been or is about to be committed, he may grant a search warrant authorising any police officer named therein, not being below the rank of an officer in charge of a police station, to enter at any time any premises or place named in the warrant, if necessary, by force, and to search the premises or place and every person found therein, and to seize any sketch, plan, model, article, note or document, or anything of a like nature, or anything which is evidence of an offence under this Act having been or being about to be committed which he may find on the premises or place of any such persons, and with regard to or in connection with which he has reasonable ground for suspecting that an offence under this Act has been or is about to be committed.

(2) Where it appears to a police officer, not being below the rank of Superintendent, that the case is one of great emergency, and that in the

interests of the State immediate action is necessary, he may by a written order under his hand give to any police officer the like authority as may be given by the warrant of a Magistrate under this section.

(3) Where action has been taken by a police officer under sub-section (2) he shall, as soon as may be, report such action to the District of Sub-Divisional Magistrate.

12. Power to arrest.— Notwithstanding anything in the Code of Criminal Procedure, 1898 —

(a) cause (a) omitted by Act VIII of 1966

(b) an office under this Act, other than an offence Punishable with imprisonment for a term with may stoned to fortune years, shall be cognisably and bilabial offend; and

(c) any member of the armed forces of Bangladesh may, without an order from a magistrate and without a warrant, arrest, in or in the vicinity of a prohibited place, any person who has been concerned in an offence under section 3, or under section 3 read with section 9, or under clause (a) of sub-section (1) of section 6, or against whom a responsible complaint has been made or credible information has been received, or a responsible suspicion exists of his having been so concerned, and shall without unnecessary delay take or send the person arrested before a Magistrate having Jurisdiction in the case or before an officer in charge of a police-station, and thereupon the provision of the said Code applicable in respect of a person who, having been arrested without warrant, has been taken or sent before a Magistrate or before an officer in charge of a police-station shall apply to him.

13. Restriction on trial of offences.— (1) No Court (other than that of a Magistrate of the first class specially empowered in this behalf by the Government) which is inferior to that of a District Magistrate shall try any offence under this Act.

(2) If any person under trial before a Magistrate for an offence under this Act at any time before charge is framed claims to be tried by the Court of Session, the Magistrate shall, if he does not discharge the accused, commit the case for trial by that Court, notwithstanding that it is not a case exclusively triable by that Court.

(3) No Court shall take cognizance of any offence under this Act unless upon complaint made by order of, or under authority from, the Government or some officer empowered by the Government in this behalf:

Provided that a person charged with such an offence may be arrested, or a warrant for his arrest may be issued and executed, and any such person may be remanded in custody or on bail, notwithstanding that such complaint has not been made, but no further or other proceedings shall be taken until such complaint has been made.

(4) For the purposes of the trial of a person for an offence under this Act, the offence may be deemed to have been committed either at the place in which the same actually was committed or at any place in Bangladesh in which the offender may be found.

(5) Clause (5) omitted by Amending Order, 1964.

(6) The Government may, if it thinks fit, by general or special order direct that the procedure for the trial of an offence under section 3 read with section 9, or under clause (a) or clause (b) of sub-section (1) of section 5, or under clause (a) of sub-section (1) of section 6 shall be that prescribed for offences under the Enemy Agents Ordinance, 1943, or under the Criminal Law Amendment Act, 1958 (XL of 1958).

14. Exclusion of public from proceedings.— In addition and without prejudice to any powers which a Court may possess to order the exclusion of the public from any proceedings if, in the course of proceedings before a Court against any person for an offence under this Act or the proceedings on appeal, or in the course of the trial of a person under this Act, application is made by the prosecution, on the ground that the publication of any evidence to be given or of any statement to be made in the course of the proceedings would be prejudicial to the safety of the State, that all or any portion of the public shall be excluded during any part of the hearing, the Court may make an order to that effect, but the passing of sentence shall in any case take place in public.

15. Offences by companies, etc.— Where the person guilty of an offence under this Act is a company or corporation, every director and officer of the company or corporation with whose knowledge and consent the offence was committed shall be guilty of the like offence,

16. Repeals.— Rep. by the Repealing Act, 1927 (XII of 1927), section 2 and Schedule.

THE NATIONAL GUARD ACT, 1950

ACT No. LXIII OF 1950

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THE NATIONAL GUARD ACT, 1950

ACT No. LXIII OF 1950

An Act to provide for the constitution and discipline of a National Guard for Bangladesh

WHEREAS it is necessary to provide for the constitution and discipline of a National Guard for Bangladesh

It is hereby enacted as follows:–

1. Short title, extent and commencement.— (1) This Act may be called the National Guard Act, 1950.

(2) It extends to the whole of Bangladesh and applies to all persons enrolled in the National Guard wherever they may be.

(3) It shall come into force at once.

2. Definitions. —In this Act, unless there is anything repugnant in the subject or context,—

(a) "district" means a revenue district of Bangladesh.

(b) "enrolled" means enrolled in the National Guard under this Act;

(c) "non-commissioned officer" means a person holding a non-commissioned rank in the National Guard, and includes an acting non-commissioned officer;

(d) "officer" means an officer of either of the two classes specified in section 5; and

(e) "prescribed" means prescribed by rules made under this Act.

3. Constitution of the National Guard.— There may be raised and maintained in the manner hereinafter provided a force to be designated the National Guard.

4. Constitution and disbandment of units.–The Chief of Army Staff, Bangladesh Army, may, subject to the control of the Government,

constitute for any district one or more units of the National Guard to be recruited from persons residing in such district or in the Capital and may disband or reconstitute any unit so constituted provided that where, in his opinion, it is not for any reason practicable to recruit a unit from the Capital, or the district for which it has been constituted, he may, by order in writing, authorise its recruitment from persons residing in any other district.

5. Personnel of the National Guard.–(1) There shall be the following classes of officers in the National Guard namely:–

(i) Senior officer holding commission in the National Guard granted by the President with designation of rank corresponding to those of officers of the Bangladesh Army, and

(ii) Junior officers holding commission in the National Guard granted by the President with designation of rank corresponding to those of Junior Commissioned Officers of the Bangladesh Army.

(2) An officer shall be deemed to be enrolled in the National Guard for so long as he holds a commission therein.

6. Conditions of enrolment.—(1) Any person domiciled in Bangladesh offer himself for enrolment in the National Guard and any such person who satisfies the prescribed conditions may be enrolled for the prescribed period and in the prescribed manner.

(2) An applicant for enrolment residing in a district, may apply to be enrolled for service in any unit constituted for the Capital or, as the case may be, for the district.

(3) Where, in pursuance of the proviso to section 4, the Chief of Army Staff, Bangladesh Army authorise the recruitment of a unit from persons belonging to a district other than that for which the unit was constitute, an applicant for enrolment may, not withstanding anything contained in sub-section (2), apply to be enrolled in any unit so recruited.

7. Appointment to a unit.— Every person enrolled and residing in a district shall without unnecessary delay, be appointed to a unit constituted under section 4 for the Capital or, as the case may be, for the district or if he applied for enrolment in a unit other than unit constituted for the Capital or the district in which he resides to such other unit.

8. Transfer and attachment.— (1) Any person appointed to a unit constituted under section 4 may be transferred whether on disbandment of the unit, or otherwise, to another unit of the National Guard in such manner as may be prescribed.

(2) Nothing in sub-section (1) shall be deemed to authorise the transfer without his own consent of any person enrolled any unit other than the unit to which he was appointed under section 7.

(3) Any person enrolled may be attached at his own request to any unit of the National Guard.

9. Change of residence.— (1) Any person enrolled who changes his place of residence and thereby leaves the Capital if the unit in which he is serving, is constituted for the Capital or a district, if the said unit is constituted for that district shall—

(a) if he does not intend to return to the Capital or to that district as the case may be, inform the prescribed authority of his new place of residence; or

(b) if, having intended to return, he does not return within a period of three months, inform the prescribed authority as aforesaid immediately on the expiry of that period.

(2) The prescribed authority on being informed of a change of address under sub-section (1) may, subject to the provisions of section 7, transfer the aforesaid person from the unit in which he is serving to another unit.

10. Discharge.— (1) Every person enrolled shall be entitled to receive his discharge from the National Guard on the expiration of the period for which he was enrolled and may, before the expiration of that period, be discharged from the force by such authority and subject to such conditions as may be prescribed:

Provided that no person enrolled who is for the time being engaged in military service shall be entitled to receive his discharge before the termination of such service.

(2) Every person enrolled shall on becoming entitled to his discharge be discharged with all convenient speed.

11. Liability to serve and perform military service.— (1) Every person enrolled shall, subject to such conditions as may be prescribed,

be bound to serve in any unit of the National Guard to which he has been appointed or transferred or is for the time being attached, and shall be subject to all rules and regulations that may be made under this Act relating to such unit.

(2) Every person enrolled shall be liable to perform military service—

(*a*) When called out with any portion of the National Guard by an order of the Senior Officer of the Bangladesh Army present, either to act in support of the civil power or to provide guards which in the opinion of such officer, are essential; or,

(c) when the unit to which he belongs has been embodied to support or supplement the Bangladesh Army in the event of an emergency by a notification directing such embodiment issued by the Government and published in the official Gazette.

(3) No person enrolled shall be required to perform military service beyond the limits of Bangladesh save under a general or special order of the Government.

12. Application of the Army Act, 1952 (XXXIX of 1952).— (1) Every officer of the National Guard when doing duty as such officer shall be subject to the provisions of the Army Act, 1952, and the rules and regulations made thereunder, in the same manner and to the same extent as if such officer held the same rank in the Bangladesh Army as he holds for the time being in the National Guard but subject to the terms of his commission and to any order of the President made in this behalf.

(2) Every non-commissioned officer and man of the National Guard–

(*a*) When called out or embodied for military service under section 11, or

(*b*) when embodied for, or otherwise undergoing military training in the prescribed manner, shall be subject to the Army Act 1952 (XXXIX of 1952), and the rules and regulations made thereunder, and the said Act, rules and regulations shall apply to him subject to any order of the

President made in this behalf as if he held the same rank in the Bangladesh Army as he holds for the time being in the National Guard:

Provided that the said Act, rules and regulations shall in their application to such non-commissioned officers and men when embodied for, or otherwise undergoing military training be modified to such extent and in such manner as may be prescribed.

(3) When any offence punishable under the Army Act, 1952, (XXXIX of 1952), has been committed by any person while subject to that Act under the provisions of this section such person may, notwithstanding that he may have ceased to be so subject, be taken into and kept in military custody and tried and punished for such offence as aforesaid in like manner as if he had not ceased to be so subject.

13. Summary trial and punishment.— In addition to, or in substitution for, any punishment to which he may be liable under the Army Act, 1952, any person enrolled other than an officer may be punished by a court of competent criminal jurisdiction, or summarily by order of the prescribed authority, for any offence under that Act or for the contravention of any provision of this Act or of any rule made thereunder with fine which may extent to one hundred taka to be recovered in such manner and by such authority as may be prescribed:

Provided that no fine shall be summarily inflicted by an order of the prescribed authority in any case in which the accused claims to be tried by a criminal court:

Provided further, that no court inferior to that of a magistrate of the first class shall try any offence, made punishable by or under this Act.

14. Presumption as to certain documents.— When any person enrolled other than an officer, is required by or in pursuance of any rule or order made under this Act to attend at any place, a certificate purporting to be signed by the prescribed officer stating that the person so required to attend has failed to attend in accordance with such requirement shall, without proof of the signature or appointment of such officer be evidence of the matter stated therein.

15. Persons subject to the Act to be deemed part of the Bangladesh Army.— For the purposes of sections 128, 130 and 131 of the code of Criminal Procedure, 1898 (V of 1898), all officers, non-commissioned officers and men of the National Guard who have been

appointed to a unit shall be deemed to be officers, non-commissioned officers and soldiers respectively of the Bangladesh Army.

16. Exemption from local taxation.— No person shall be liable to pay any municipal or other tax in respect of any horse, bicycle, motor bicycle, motor car or other conveyance which he is required or authorised by a general or special order of the Chief of Army Staff, Bangladesh Army, to maintain in his capacity as a person enrolled in or as a person otherwise connected with the National Guard.

17. Power to make rules.— (1) The Government may by notification in the Official Gazette make such rules as appear to it to be necessary for carrying into effect the provisions of this Act.

(2) In particular, and without prejudice to the generality of the foregoing power, such rules may —

(*a*) prescribe the conditions subject to which, the period for which and the manner in which, persons may be enrolled under section 6 ;

(*b*) prescribe the manner in which a person enrolled may be transferred under section 8 ;

(*c*) prescribe the authorities by whom and the conditions subject to which persons enrolled may be discharged under section 10 ;

(*d*) prescribe the authorities by which offences under this Act may be punished and the manner in which fine inflicted may be recovered ;

(*e*) prescribe the military training compulsory or voluntary, for any person or class of persons enrolled and to provide for the embodiment of any unit for that purpose ;

(*f*) prescribe the extent to which and the manner in which the provisions of the Army Act, 1952 shall be modified in their application to non-commissioned officers and men of the National Guard when embodied for or otherwise undergoing military training.

(*g*) provide for and regulate the remuneration, allowances, gratuities or compensation (if any) to be paid to any person or class of persons enrolled or to their dependants;

(*h*) prescribe the officers by whom certificates may be signed under section 14 ;

(*i*) provide for the medical examination of persons offering themselves for enrolment under section 5 ; and

(*j*) provide for any other matter which under this Act is to be or may be prescribed.

18. Power to make regulation.— (1) The Government may make regulations not inconsistent with this Act and the rules made thereunder providing generally for all details connected with the organisation and personnel of the National Guard and for the duties, military training clothing equipment, allowance and leave of persons enrolled.

(2) In particular and without prejudice to the generality of the foregoing power, such regulations may specify the courses of training or instruction to be followed by any person or class of persons enrolled.

THE NATIONAL GUARD RULES

No. 973/51.— In exercise of the powers conferred by sub-section (1) of section 17 of the National Guard Act, 1950 (LXIII of 1950), the Government is pleased to make the following rules:—

1. ***Short title.—*** These rules, may be called the National Guard Rules, 1951.

2. ***Definitions.—*** In these rules, unless these is anything repugnant in the subject or context,–

(*a*) "the Act" means the National Guard Act, 1950 (LXIII of 1950);

(*b*) the expression "Brigade Commander" means the officer in command of a Brigade, or an equivalent formation in whose territorial jurisdiction the Headquarters of a unit constituted under the Act are situated;

(*c*) "regulation" means regulations made under Section 17;

(*d*) "Schedule" means a schedule to these rules;

(*e*) "Section" means a section of the Act;

(*f*) the expression "training year" means a period of twelve months beginning on the first day of July and ending on the thirteenth day of June.

3. ***Grant of commission as Senior officer.—*** A candidate for commission as senior officer shall satisfy the conditions for enrolment in the National Guard laid down in section 6 and in clauses (a), (b), (c), (d) and (f) of rule 8 and shall—

(i) in the case of person who desires to serve otherwise than as a medical officer–

(*a*) be between twenty-two and thirty-five years of age at the time of applying for a commission; and

(*b*) have passed the S.S.C. or equivalent examination of a recognised university:

Provided that the upper age limit specified in clause (a) or the educational qualifications specified in clause (b) may be relaxed at the discretion of the General Officer Commanding the Division or the Sub-Area Commander;

(ii) in the case of a person who desires to serve as a medical officer–

(*a*) be in possession of a medical qualification recognised under the Medical Council Act, 1933 (XXVII of 1933) :

and

(*b*) be under forty-five years of age on the date of acceptance for commission;

PROVIDED THAT THE AGE LIMIT SPECIFIED IN THIS CLAUSE MAY BE RELAXED AT THE DISCRETION OF THE DIRECTOR GENERAL, MEDICAL SERVICES.

4. Application for commission as senior officer other than medical officer.— (1) An application for commission as senior officer other than a medical officer shall be submitted on the form specified for the purpose to the commanding officer of the unit in which the candidate desires to serve.

(2) The commanding officer shall, if there is a vacancy to which the Candidate can be appointed.

(*a*) personally interview the candidate;

(*b*) satisfy himself that the candidate is suitable in all respects to hold the commission and fulfils the conditions laid down in rule 3;

(*c*) obtain the recommendations of the Deputy Commissioner or the Superintendent of Police of the District to which the candidate belongs or in which he is for the time being residing; and

(*d*) initiate and forward through the proper channel, to the General Officer Commanding the Division or the Sub-Area in which the Headquarters of the unit which he commands are situated, a recommendation for the grant to the candidate of commission as senior officer together with all the relevant papers.

(3) On receipt of the recommendation under sub-rule (2), the General Officer Commanding the Division or the Sub-Area shall personally interview the Candidate and if he considers the candidate suitable for the grant of commission forward a recommendation to that effect to the Adjutant General, Bangladesh Army, who shall obtain the orders of the President.

4A. Application for commission as senior officer medical.— (1) An application for commission as senior officer (Medical) shall be submitted, on the form specified for the purpose, to the commanding of the unit in which the applicant desires to serve, and shall be accompanied by the following documents:–

(*i*) degree or diploma;

(*ii*) medical registration certificate;

(*iii*) age certificate;

(*iv*) three passport size photographs;

(*v*) character certificate by two respectable persons who are citizens of Bangladesh;

(*vi*) verification roll; and

(*vii*) in the case of a candidate who is civilian Government servant, a certificate that the Head of Department will be prepared to relieve the candidate of his duties whenever he is embodied for military training or service under the Act.

(2) The commanding officer shall, if there is a vacancy to which the candidate can be appointed satisfy himself that he fulfils the conditions laid down in rule 3 and then forward the application to the Assistant Director of Medical Services concerned.

(3) On receipt of the application the Assistant Director of medical services shall, if he is satisfied that the candidate fulfils the conditions laid down in rule 3, call him up for personal interview in order to determine his suitability for a commission in the National Guard and shall then forward the application to the Director General Medical Services, Headquarters, Dhaka.

(4) The Director General shall, if he considers the candidate suitable for the grant of a commission, submit a recommendation to that effect to the President.

5. Grant of commissions as junior officers.— Junior Officers of the National Guard shall ordinarily be selected from the ranks, but subject to the provisions of rules 6 and 7 suitable individuals may be given direct commission as junior officer.

6. Direct commission as junior officers.— A candidate for direct commission as Jemadar must satisfy the conditions for enrolment in the National Guard laid down in section 6 and clause, (a), (b), (c), (d), and (f) of rule 3 and must,–

(*a*) be between twenty-two years and forty-five years of age;
(*b*) possess educational qualifications and military attainments up to the standard of Junior Officers selected from the ranks of the unit in which he desires to serve :

Provided that—

(*i*) the upper age limit specified in clause (a) may, at the discretion of the Brigade Commander, be expended to fifty-two years' in the case of ex junior commissioned officers of the regular army who have an exceptionally good physique and record of service; and

(*ii*) the qualification specified in clause (b) may be relaxed at the discretion of the Brigade Commander in any case.

7. Applications for Commission as junior officers.— (1) Application for a commission as Jemadar shall be submitted on an appropriate from to the commanding officer of the unit in which the candidate desires to serve.

(2) The commanding officer shall, if there is a vacancy to which the candidate can be appointed:–

(a) personally interview the candidate;

(*b*) satisfy himself that the candidate is suitable in all respects to hold the commission and fulfils the conditions laid down in rule 6;

(*c*) obtain the recommendations of the Deputy Commissioner or the Superintendent of Police of the District which the candidate belongs or in which he is for the time being residing ; and

(*d*) initiate and forward to the Brigade Commander a recommendation for the grant to the candidate of commission as Jemader.

(3) On receipt of the recommendation under sub-rule (2), the Brigade Commander shall personally interview the candidate and if he considers the candidate suitable for the commission forward through the proper channel a recommendation to effect to the Adjutant General, Bangladesh Army, who shall obtain the orders of the President.

PART II. — ENROLMENT

8. Conditions of enrolment.— Every person offering himself for enrolment shall fulfil the following conditions:—

(*a*) he shall not be a person who is a member of any criminal tribe within the meaning of the Criminal Tribes Act, 1924 (VI of 1924), or who has at any time been sentenced to a term of transportation or imprisonment or whipping who has been ordered under the provisions of the Code of Criminal Procedure, 1898 (V of 1898), to furnish a security for his good behaviour, such sentence or order not having been subsequently reversed or remitted or the offender pardoned;

(b) he shall not be a person who has been dismissed from any of the Bangladesh forces or from any of the Armed Forces of Bangladesh or from the National Guard;

(c) he shall, if a civilian Government servant have obtained the permission in writing of the head of the department, and shall also have obtained a certificate to the effect that his services will be immediately made available to perform military training or service when required;

(d) he shall be good character;

(e) he shall have attained the age of 17 years and shall not have attained the age of 35 years;

Provided that this condition may be relaxed at the discretion of the Brigade Commander;

(f) he shall have such height, chest measurement, and standard of physical fitness as may be required by regulations.

9. Application for enrolment.— (1) A person desirous of enrolment shall apply to the officer commanding the unit in which he desires to be enrolled, or to a person who is a recruiting officer or assistant recruiting officer for the purpose of enrolment of persons under Army Act, 1952 (XXXIX of 1952).

(2) The officer commanding or the recruiting or assistant recruiting officer to whom an application under sub-rule (1) is made shall cause the applicant to fill up and sign in his presence answers to questions set forth in Form I of Schedule I.

(3) Where an application for enrolment is made to a recruiting or assistant recruiting officer, he shall forward the application together with the Form referred to in sub-rule (2) to the commanding officer of the unit in which the applicant desires to be enrolled.

10. *Verifications.—* COMMANDING OFFICER TO SATISFY HIMSELF THAT APPLICANT FULFIL CONDITIONS OF ENROLMENT.— When an application under rule 9 is made to, or is received by the officer commanding a unit, that officer shall satisfy himself that the applicant fulfils the conditions of enrolment specified in rule 8 and is otherwise suitable for enrolment in the unit concerned.

11. Medical examination.— If the commanding officer is satisfied that the application is in order and that the applicant fulfils the conditions of enrolment and is suitable for enrolment in the unit of his choice, he shall cause the applicant to be served with a notice requiring him to present himself for medical examination at a time and place specified in the notice.

12. Rejection.— If the commanding officer is not satisfied that the application is in order or that the applicant fulfils the conditions of enrolment, or that he is suitable to be enrolled in the unit of his choice, or if the applicant, fails to comply with the notice served on him under rule 11 or is reported to be medically unfit for service in the National Guard, the commanding officer shall reject the application and inform the applicant accordingly :

Provided that the Brigade Commander shall have power to review any case of rejection and order enrolment.

13. Method of enrolment.— (1) If the commanding officer does not reject the application in accordance with rule 12, the applicant shall be accepted for enrolment, and shall be required to sign the declaration at the foot of Form I of Schedule I.

(2) If the commanding officer is satisfied that the applicant understands the questions put to him and consents to the conditions of service, he shall sign a certificate to that effect on the Form referred to in sub-rule (1), and the applicant shall thereupon be deemed to be enrolled.

14. Attestation.— (1) Every person enrolled shall be attested by the commanding officer of the unit into which he has been enrolled and for this purpose an oath or solemn affirmation shall be administered to him in one of the forms specified in Form II of Schedule I or in such other form to the same purport as the commanding officer ascertaining to be in accordance with the religion of the person to be attested or to be otherwise binding on his conscience.

(2) An entry of the fact that the person enrolled has taken the oath or affirmation directed by this rule shall be endorsed on the enrolment form signed by him and shall be authenticated by the signature of the commanding officer.

15. Period of enrolment.— Every person accepted for enrolment shall be enrolled for a period of seven years from the date of his attestation under rule 14:

Provided that on the completion of the initial period of enrolment, an enrolled person may be allowed to extend for a further period of two years at a time so as to complete a total period of fifteen years from the date of his attestation under rule 14.

PART III.— TRANSFER

16. Prescribed authority for purposes of section 9.— The prescribed authority for the purposes of section 9 shall be the Brigade Commander.

17. Transfer.— (1) The transfer of a person who has been appointed to a unit shall be authorised by the Brigade Commander:

Provided that where the proposed transfer is to a unit the headquarters of which are situated outside the jurisdiction of such Brigade Commander the transfer shall not be effected without the concurrence of the Brigade Commander within whose jurisdiction the headquarters of the new unit are situated.

(2) A person who is desirous of transfer to another unit on change of residence, shall submit his application in writing through his commanding officer, and shall in the application state his reasons for desiring the transfer and the unit to which he desires to be transferred.

PART IV.—DISCHARGES

18. Discharge.— (1) Every person enrolled shall, on becoming entitled to receive his discharge under the Act and these rules, be so discharged with all convenient speed.

(2) Any such person may be discharged as hereinafter provided on any of the following grounds, namely:—

(a) that he has been convicted by a criminal or military court of an offence punishable with transportation or imprisonment.

(b) that he has, in filing up any form prescribed by these rules or otherwise for the purpose of joining the National Guard made any statement which was false and which he knew to be false or did not believe to be true;

(c) that his services are no longer required;

(d) that he is medically unfit for service.

(e) that in the case of an officer, other than a medical officer, he has attained the age of fifty-two years and in the case of a medical officer the age of fifty years, or, in either case, has completed twenty years service;

(f) that, in the case of an officer, he has been permitted to resign his commission.

19. Discharging authority.— (1) The authority competent to authorise the discharge of an officer or other enrolled person under each of the provisions specified in column 1 of the annexed table shall, subject to the provisions of sub-rule (2), be the authority specified in the corresponding entry in column 2 or 3 thereof as the case may be.

TABLE

Provisions under which discharge authorised	Authority competent to authorise discharge of officer	Authority competent to authorise discharge of other enrolled persons
Sub-rule (1) of rule	Chief of Army Staff	Officer Commanding the unit ...
Clause (a) of sub-rule (2) of rule 18	Government	Brigade Commander.—
Clause (b) of sub-rule (2) of rule 18.	Do.	Do.
Clause (c) of sub-rule (2) of rule 18.	Do.	Do.
Clause (d) of sub-rule (2) of rule 18.	General Officer Commanding the Division/Sub Area on the recommendation of a medical board of at least two medical officers.	Commanding Officer of the unit on the recommendation of a medical officer.
Clause (e) of sub-rule (2) of rule 18.	Chief of Army Staff.	
Clause (f) of sub-rule (2) of rule 18.	Government.	

(2) Any power conferred by sub-rule (1) on any authority other than the Government may be exercised by any higher authority, or by the Government.

(3) A discharge duly authorised shall be carried out by the officer commanding the unit with all convenient speed.

20. Discharge on application.— (1) Any enrolled person, other than an officer, who is not entitled to his discharge under the Act or these rules and who is desirous of being discharged prior to the expiration of the period for which he was enrolled shall apply in writing to his commanding officer stating the reasons for his application.

(2) The commanding officer shall either grant such application or forward it with his recommendation thereon to the Brigade Commander who shall accept or reject the application.

21. Discharge certificate.— Every enrolled person who is discharged from the National Guard shall be furnished by his commanding officer with a certificate in the English language and in the mother tongue of such person setting forth :—-

(*a*) the authority who authorised his discharge;

(*b*) the cause of his discharge;

(*c*) the full period of his service in the National Guard ; and

(*d*) his character on discharge.

PART V.—TRAINING

22. Embodiment for training.— (1) Every person enrolled shall be liable, for the purpose of undergoing training to be called up for training when the unit to which he belongs has been embodied under the orders of the General Officer Commanding the Division or the Sub-Area in whose territorial jurisdiction the headquarters of his unit are situated, for a period or periods not exceeding in the aggregate thirty days.

Explanation.— For the purposes of this sub-rule, a day shall be deemed to consist of four hours of actual military drill or instruction, and may be made up of fractions of a day not more than four in number.

(2) The officer commanding any unit may exempt, either wholly or in part, from liability to undergo training any person who has, in his opinion, undergone adequate military training in some other capacity.

23. Voluntary training.— An enrolled person may be permitted to undergo, by attachment to a regular unit or otherwise, military training for such periods as may from time to time be sanctioned by the Government, in addition to the training prescribed by rule 22.

24. Embodiment.— For the purposes of sub rule (1) of rule 22, a person shall be deemed to be called up for and to be undergoing training with effect from the date specified for the embodiment of his unit in the order issued under rule 22.

PART VI—DISCIPLINE

25. Application of the Army Act, 1952.— The Army Act, 1952 (XXXIX of 1952), and the rules made there under in their application to non-commissioned officers and men of the National Guard; when embodied for or otherwise undergoing training shall be modified to the extent and in the manner specified in Schedule II.

26. Authority for award of summary punishments under section 13.— The authority competent to award summary punishments to a person enrolled other than an officer shall be the officer commanding the unit to which the accused belongs.

27. Recovery of fines.— A fine inflicted under section 13 may be recovered in the following manner, that is to say:

(a) the officer inflicting the fine may send a certified copy of his order to the District Magistrate having jurisdiction in the area in which the fine has been inflicted; and

(b) on receipt of the copy, the District Magistrate shall recover the fine in accordance with the provisions of the Code of Criminal Procedure, 1898 (V of 1898), as if it has been inflicted by him, and shall remit the amount recovered to the officer concerned.

28. Prescribed officer under section 14.— The certificate referred to in section 14 shall be signed by the officer commanding the unit to which the person concerned belongs,

PART VII - PAY, ALLOWANCES, GRATUITIES, PENSIONS AND COMPENSATION

29. Pay, Allowances, gratuities, pension and compensation.— Members of the National Guard shall be entitled to such pay, allowances, gratuities, pensions and compensation as are specified in Schedule III.

SCHEDULE I
FORM 1
ENROLMENT FORM
(APPLICATION FOR ENROLMENT)

Questions	Answers
Questions to be put before Enrolment	Names should be hand-printed
1. What is your name ?	1.
2. WTAHT IS YOUR FATHER'S NAME AND ADDRESS?	2.
3. Are you domiciled in Bangladesh? ...	3.
4. What is your Village/ Mohalla, thana, and District?	4.
5. What is your post office ?	5.
6. What is your telegraph office ?	6.
7. What is your railway station ?	7.
8. What is your present trade, profession or occupation?	8.
9. What is your religion ?	9.
10. Where are you employed ?	10.
11. What is your educational qualification?	11.
12. What is your age?	12.
13. Have you ever been convicted by a court-martial or a criminal court, and if so, in what circumstances and what was the sentence?	13.
14. Do you now belong to any of the Bangladesh Forces or their Reserves, the Territorial Force, or to any Police Force of Bangladesh.	14.
15. Have you ever served in any of the Bangladesh Forces, or their reserves, the Territorial Force, the civil armed Forces? if so, state in which, the period of service and cause of your dismissal or discharge ?	15.
16. Are you willing to be enrolled under the National Guard Act, 1950?	16
17. In which unit do you desire to be enrolled?	17.
18. Are you willing to undergo military training and to perform military service as specified in the National Guard Act and Rules and not to allow any caste usage to interfere with your military duty?	18.

Questions	Answers
Questions to be put before Enrolment	Names should be hand-printed
19. Are you willing to serve until you have completed the minimum service required or been discharged as provided in the Rules.	19.
20. Have you ever previously applied for enrolment under these Rules, and, if so, with what result?	20.
21. Have you been dismissed from the National Guard?	21.
22. Are you willing to be vaccinated or re-vaccinated, inoculated or reinoculated?	22.

Signature or Thumb Impression of the Applicant.

DATE.....

Place.....

(Signed in the presence of .....)
(Signature with Rank and Designation).

Note.— All entries above this line to be completed on application to enrol.

DECLARATION ON ACCEPTANCE FOR ENROLMENT

I solemnly declare that the answers I have given to the questions in this form are true, and that no part of them is false and that I am willing to fulfil the engagement made.

Signature of Thumb Impression.
Date.

CERTIFIED THAT THE APPLICANT UNDERSTANDS AND AGREES TO THE CONDITIONS OF ENROLMENT.

Signature and Rank of the Enrolling Officer.
Date and Place of Enrolment.

FORM II

FORM OF OATH

I,

.....
son of ..... do swear that I will be faithful and bear true allegiance to the Constitution and the Government of the People's Republic of Bangladesh and that I will, as in duty bound, honestly and faithfully serve in the National Guard and go wherever I may be ordered by land, air or sea and I will observe and obey all lawful commands of any officer set over me even to the peril of my life.

Signature of Thumb Impression.

Place .....
Date .....

SIGNATURE AND RANK OF ATTESTING OFFICER.
(Designation)

FORM OF AFFIRMATION

I,
.....
son of ....., do solemnly affirm that I will be faithful and bear true allegiance to the Constitution and the Government of the Peoples' Republic of Bangladesh and that I will, as in duty bound, honestly and faithfully serve in the National Guard and go wherever I may be ordered by land, air or sea and will observe all lawful commands of any officer set over me even to the peril of my life.

Signature or Thumb Impression.

Place.....
DATE .....

SIGNATURE AND RANK OF ATTESTING OFFICER.
(Designation).

SCHEDULE III

PAY, ALLOWANCES, GRATUITIES, PENSIONS AND COMPENSATION

(*See* Rule 29)

(A).— Officers other than Junior Officers. —

(1) When called out or embodied for military service or embodied for military training.— An officer of the National Guard shall, when:—

(a) called out or embodied for military service under sub-section (2) of section 11 or

(b) embodied for military training under rule 22, be eligible for the same pay and allowances as may be admissible to the equivalent ranks of the Regular Army. Qualification pay, Kit Allowance, disturbance pay, Command/Staff/Charge pay and reduction in rent, electricity and water charges sanctioned for officers of the Regular Army with effect from 1st April 1951 will not, however, be admissible to officers of the National Guard.

Permanent civilian Government employees who join the National Guard will, however, be allowed the alternative of drawing civil rates of pay instead of military rates.

2. When under training but not embodied.— Officers of the National Guard shall, when undergoing voluntary military training under rule 23 by attachment to a regular unit or otherwise shall be entitled to Tk. 5 per day to cover messing and reasonable unavoidable out of pocket expenses.

3. Outfit Allowance.— On embodiment, National Guard Officer will receive an outfit allowance of Tk. 800. National Guard Officers are liable to refund an appropriate portion of outfit allowance in accordance with the existing rules in case they cease to serve before completing three years continuous (embodied and non-embodied) service, which will commence from the date they become entitled to the outfit allowance on first embodiment. The outfit allowance will be drawn only once by a National Guard Officer.

4. Retaining Fee.— An officer will be allowed retaining fee of Tk. 120 *per year*.

5. Travelling Allowance and Daily Allowance and other Concessions.—

(a) **When embodied.—** Officer will receive Travelling Allowance and Daily Allowance rations, accommodation, travelling concessions, amenities and leave as for corresponding ranks of the regular army.

(b) When under training but not embodied.— When an officer of the National Guard is attached to a regular unit or an Army School for training and is not embodied, he will be entitled to the following concession:—

(c) Travelling Allowance and Daily Allowance.—

(*i*) When travelling to and from Regimental Centre/Battalion on training or to attend a course or when ordered to attend a conference at General or Division or Sub-Area Headquarter an officer of the National Guard will be entitled to travel under the ordinary rules applicable to corresponding ranks of the regular army.

(*ii*) The Commanding Officers of National Guard Battalions will draw a fixed Travelling Allowance at Tk. 75 per month to cover their transport expenses within their Recruiting Areas. This allowance will be admissible only when Government transport is not provided or is not utilized for causes beyond the Commanding Officer's control and when their claims are certified to this effect by the Brigade Commander concerned. Where these facilities are not provided officers will be entitled to Tk. 2 per day in lieu thereof.

6. Gratuities.— (1) An officer of the National Guard shall, on the conclusions of military service performed under clause (b) of sub-section (2) of section 11, be entitled to receive a gratuity equivalent to on month's pay for each whole year of military service. Where such officer performs military service for a lesser period than a year, he shall be entitled to receive a gratuity equivalent to one day's pay for every twelve days of service completed.

(2) For the purpose of computing the gratuity admissible under sub-rule (1), the following rules shall be adopted:

(i) the term "pay" shall include all emoluments appertaining to the appointment held by the officer;

(ii) gratuity will be equivalent to the average of the officer's pay from the date of embodiment for military service, to the date of its conclusion, or the average pay drawn during the last six months of military service whichever is greater;

(iii) pay, during furlough if any, will be calculated at full rates of pay admissible;

(iv) gratuity in the case of officer, who, were, before being embodied for military service, in civil Government service, or were employees of private firms, will be calculated on the basis of military pay of their rank and not on the actual pay drawn during the period.

(3) An officer whose service are terminated on account of misconduct or inefficiency shall not be entitled to any gratuity under this rule.

7. Disability Persons.— An officer of the National Guard who incur a disability.—

(*a*) when called out or embodied for military service under sub-section (2) of section 11, or

(*b*) when embodied for, or otherwise undergoing military training, under rule 22 or 23 shall be entitled to disability pension under the same conditions and at the same rates as are applicable to officers of the Bangladesh Army holding corresponding ranks.

8. Family Pensions and Gratuities.— Wives and legitimate children of officer, who die.—

(*a*) when called out or embodied for service under sub-section (2) of section 11, or

(*b*) when embodied for otherwise undergoing military training under rule 22 or 23, shall be entitled to pension, gratuity,

compensation and educational allowances under the same conditions or at the same rates as may be applicable to officers of the Bangladesh Army holding corresponding ranks.

(B) — *Pay and Allowances– Junior Officers, Non-Commissioned Officers and Men—*

9. (a) Junior officers, non-commissioned officers or men shall when —

(i) called out or embodied for military service under sub-section (2) of section 11; or

(ii) embodied for military training under rule 22, be entitled, to the same pay and allowances as are admissible to corresponding ranks of the Bangladesh Army:

Provided that, so long as a man has not attained the qualifications, required of a trained soldier of the army he will be restricted to the young soldier's rates of pay and allowances.

(b) Junior officers and other ranks of the National Guard when called up for voluntary training including the period, if any, for which they remain in hospital during the said period of training be entitled to receive out-of-pocket expenses to cover all incidental expenses (*e.g.*, Barber and Dhobi etc.) as follows :—

JOs	...	...	...	Tk. 1/8 p.d.
OR	...	...	...	Tk. -/8/ p.d.

(c) Pay and allowances of *ex*-junior commissioned officers, *ex*-non-commissioned officers and ex-other ranks of the regular army when serving with embodied National Guard Battalions will be governed by the same rules as are applicable to re-employed personnel of the Bangladesh Army.

10. Disability Pension, Junior Officers, Non-Commissioned Officers and Men.— A junior officer, non-commissioned officer or man, who incurs a disability.

(a) when called out or embodied for military service under sub-section (2) of section 11; or

(b) when embodied for, or otherwise undergoing military training, under rule 22 or rule 23, shall be entitled to disability pension under the same conditions and at the same rates as are applicable to persons holding corresponding ranks in the Bangladesh Army.

Permanent civilian Government employees who join the Bangladesh National Guard will, however, be allowed the alternative of drawing civil rates of pay instead of military rates.

Other concessions.— When embodied, junior commissioned officers and other Ranks of the National Guard will be eligible for the same concessions, *e.g.,* rations, accommodation, clothing, travelling concessions, Medical attendance and treatment in military hospitals, amenities and leave as are admissible to members of equivalent ranks of the Regular Army.

11. Family Pensions and Gratuities— Junior Officers, Non-Commissioned Officers and Men.— Wives and legitimate children of junior officers, non-commissioned officers and men who die—

(b) when embodied for or otherwise undergoing military training under rule 22 or rule 23 shall be entitled to pension, gratuity, compassionate and educational allowances under the same conditions and at the same rates as are applicable to persons holding corresponding ranks in the Bangladesh Army.

THE (ARMY AND AIR FORCE) RESERVES ACT, 1950

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THE (ARMY AND AIR FORCE) RESERVES ACT, 1950

(ACT No. XLVII OF 1950)

An Act to provide for the constitution and discipline of the Bangladesh Army and Air Force Reserves

WHEREAS it is expedient to consolidate and amend the law relating to the government and discipline of the Bangladesh Army and Air Force Reserves;

It is hereby enacted as follows:—

1. Short title and commencement.— This act may be called the (Army and Air Force) Reserves Act, 1950.

2. Definitions— In this Act, unless there is anything repugnant in the subject or context.—...

"prescribed" means prescribed by rules made under this Act;

"Reserves" means the reserves of the Bangladesh Army or of the Bangladesh Air Force;

"reservist" means a member of the Reserves.

3. Division of Reserve Forces.— (1) The Reserves shall consist of the categories specified in the Schedule to this Act.

(2) The Government may, by notification in the official Gazette, add to, amend or vary the Schedule to this Act.

4. Liability of reservist to military or air force law.— An Army reservist shall be subject to the Army Act, 1952 (VIII of 1911) and the rules and regulations made there under and an Air Force reservist shall be subject to the Air Force Act, 1932 (XIV of 1932), the Air Force Act, 1953 and the rules and regulations made thereunder, in such manner and to such extent as may be prescribed.

5. Extent of liability for service.— A reservist shall be liable to serve without the limits of Bangladesh as well as within those limits.

6. Power to make rules.— (1) The Government may make rules to carry out the purposes of this Act.

(2) In particular and without prejudice to the generality of the foregoing power such rules may:—

(*a*) provide for the constitution of, and the appointment or transfer of any person as a reservist to, the reserves;

(*b*) prescribe the service obligations to which reservists shall be liable;

(*c*) prescribe periodical training for any category of reservists;

(*d*) provide for and regulate the pay and allowances of reservists;

(*e*) prescribe the authorities by whom and the conditions subject to which the services of reservists may be terminated;

(*f*) provide for and regulate the gratuities or compensation, if any, to be paid to reservists or any category of reservists or to any dependents of reservists; and

(*g*) provide for any other matter which under this Act is to be or may be prescribed.

(3) All rules made under this Act shall be published in the official Gazette and on such publication shall have effect as if enacted in this Act.

7. Power to make regulations:— The Government may make regulations for all or any of the purposes of this Act, other than those specified in section 6.

THE SCHEDULE

A— The Bangladesh Army–

(i) The Bangladesh Army Regular Reserve of Officers,

(ii) The Bangladesh Army Regular Reserve of Junior Commissioned Officers,

(iii) The Bangladesh Army Supplementary Reserve of Officers,

(iv) The Bangladesh Army Supplementary Reserve of Junior Commissioned Officers and Other Ranks,

(v) The Regular Reserves of Other Ranks.

B— The Bangladesh Air Force–

(i) The Bangladesh Air Force Regular Reserve.

(ii) The Bangladesh Air Force Volunteer Reserve.

ARMY RESERVE FORCES RULES

Rules (1953) under the Army and Air Force Reserves, Act 1950 (XLVII of 1950)

In exercise of the powers conferred by sub-section (1) of section 6 of the Bangladesh (Army and Air Force) Reserves Act, 1950 (XLVII of 1950), and in supersession of the Reserve Forces Rules, 1925, the Government is pleased to make the following rules in respect of the Army Reserve, namely:—

PART I

1. Short title.— (1) These rules may be called the Army Reserves Rules, 1953.

(2) These rules shall be deemed to have come into force on and from the 19th day of April 1950.

2. Definitions.— In these rules, unless there is anything repugnant in the subject or context,—

(a) "the Act" means the Army and Air Force Reserves Act,1950;

(b) "C.A.S." means the C.A.S of the Army;

(c) "Commanding Officer" means the Officer in Command of a Regiment/Corps Centre;

(d) "Regular Reserve of Officers" means the Army Regular Reserve of Officers;

(e) "Regular Reserve of Junior Commissioned Officers" means the Army Regular Reserve of Junior Commissioned Officers;

(f) "Supplementary Reserve of Officers" means the Army Supplementary Reserve of Officers;

(g) "Supplementary Reserve of Junior Commissioned Officers and Other Ranks" means the Bangladesh Army Supplementary Reserve of Junior Commissioned Officers and Other Ranks;

(h) "Regular Reserve of Other Ranks" means the Bangladesh Army Regular Reserve of Other Ranks;

(j) "regulations" means regulations made by the C.A.S. under section 7 of the Act;

(k) "Schedule" means a schedule to these rules;

(l) "training year" means a period of twelve months beginning on the 1st day of April and ending on 31st day of March.

PART II

REGULAR RESERVE OF OFFICERS

3. Constitution of the Regular Reserve of Officers.— The Regular Reserve of Officers shall consist of officers of the Bangladesh Army, who on retirement or release from the Army with a pension or gratuity, are transferred to that reserve and who are liable to recall to army service, as hereinafter provided. The liability to be transferred to the reserve shall be at the time of retirement and shall be expressed in the order of the retirement.

4. Recall to Army service.— (1) An officer of the Regular Reserve of Officer shall be liable for recall to army service, by a general or special order of the Government when the Government consider that a state of emergency has arisen or is imminent, until he reached the age limit specified against his category and rank in the following table:–

Rank	Age limit	
	AMC/ADC, Vety and AEC Officer	Other officers.
Subaltern	50 years	50 years
Capt/Maj	58 ,,	51 ,,
Lt-Col.	60 ,,	54 ,,
Col/Brig.	60 ,,	58 ,,
Maj-Gen/Lt-Gen ...	63 ,,	63 ,,

(2) Nothing in sub-rule (1) shall apply to an officer who retires or is released on account of mental or physical incapacity, certified by a medical authority, or on account of misconduct, or who may have been called upon to retire or to resign his commission for reasons other than misconduct.

(3) An officer of the Regular Reserve of Officers may, with his own consent and the sanction of the C.A.S., be employed in army service at any time.

5. Rank.— An officer of the Regular Reserve of Officers shall hold in the reserve the substantive or substantive temporary rank which he held on retirement or release from the army;

Provided that where an officer cannot, for any reason, be granted such rank he may, under the orders of the C.A.S. and with his own consent, be appointed at the reserve in any lower rank.

Note :-- During the period of training (Sub rule 6 below) officers may wear badges of honorary ranks held by them. This will, however, be without any effect on pay and allowances or employment or recall to service which will be on sub/subs. temp. Rank.

6. Periodical training.— Officers of the Regular Reserve of Officers shall be liable to be called up for training, under the orders, in the case of officers of the Infantry and the General List, of the Military Secretary and in the case of other officers, of the Director of the Arm or Service concerned at General Headquarters, for a period not exceeding one month in each training year, provided that C.A.S. may in any training year increase the period of training to two months.

7. Pay and allowances.— While re-call to army service under rule 4 or called up for training under rule 6, an officer of the Regular Reserve of Officers shall not be entitled to his pension but shall be entitled to the same pay and allowances as are admissible to an officer of the regular army holding corresponding rank and –

(*a*) if he retired with the maximum pension, after rendering not less than twenty-five years pensionable service shall be entitled to draw in addition an amount equal to twenty per cent of such pay and allowances or twenty-five per cent of his pension, whichever is greater;

(*b*) if he retired with a pension less than the maximum pension, specified in clause (a), after rendering less than twenty-five years pensionable service, shall be entitled:–

(*i*) to draw in addition an amount equal to twenty per cent of such pay and allowances or fifty per cent of his pension, whichever is greater,

or

(*ii*) to count his recalled Army service and the period for which he is called up for training towards enhancement of his pension provided they forego this pension during such service.

(*c*) if he retired or was released with gratuity only, shall be allowed to count the whole period of his recalled army service and the period for which he is called up for training for purposes of earning a pension, provided that he refunds the whole amount of such gratuity and shall be granted a retaining fee for the period during which he is not recalled to army service, or the period during which he is not called up for training, at such rates as may be sanctioned by the Government from time to time.

Provided that, in respect of a person recalled to army service after the thirtieth day of April 1965, or called up for training after that day.

8. Disability pension.— An officer of the Regular Reserve of Officers when recalled to army service or called up for training shall be eligible for disability pension under the same rules as may, for the time being, be applicable to serving officers of the regular army;

Provided that officer who holds a substantive civil appointment under the Government shall be governed by such rules as may be issued by the Government of Bangladesh from time to time.

9. Family pensions.— Wives and children of officers of the Regular Reserve of Officers who die while recalled for army Service or called up for training in circumstances which may be regarded as attributable to military service under the rules applicable to regular officers of the Bangladesh Army will be granted pension, gratuity and compassionate and educational allowances at such rate and under such conditions as may, for the time being, be applicable to officers of the regular army.

PART III

REGULAR SERVICE OF JUNIOR COMMISSIONED OFFICERS

10. Constitution of the Regular Reserve of Junior Commissioned officers.— The Regular Reserve of Junior Commissioned Officers shall consist of junior commissioned officers of the Bangladesh Army who have been discharged from the service, with a pension or gratuity provided they are considered suitable and remain liable to recall to army service under rule 11.

11. Recall to army service.— (1) A junior commissioned officer of the Regular Reserve of Junior Commissioned Officers shall be liable to recall to army service by a general or special order of the Government

when the Government consider that an emergency has arisen or is imminent, and shall remain so liable until he attains the age limits specified below:–

Jemadar ... ...50 years.

Subedar/Risaldar ... ...54 years.

(2) A junior commissioned officer of the Regular Reserve of Junior Commissioned Officers may, with his own consent and with the sanction of the Director of Organization, G.H.Q. be employed in army service at any time.

12. Rank.— A junior commissioned officer who is transferred to the regular Reserve of junior Commissioned Officers under rule 10 shall hold in the reserve the substantive or substantive temporary rank which he held on discharge from the army and which he was permitted to retain:

Provided that when a junior commissioned officer cannot for any reason, be granted such rank, he may, under the orders of an officer having power not less than that of a Divisional Commander, be appointed to the reserve in any lower rank.

13. Training.— A junior commissioned officer of the Regular Reserve of Junior Commissioned Officers shall be liable to be called up for training by order of the Commanding Officer for such period, not exceeding sixty days in each training year, as the Director of the arm concerned at General Headquarters may specify.

14. Pay and allowances.— While recalled to army service under rule 11, or called up for training under rule 13, a junior commissioned officer of the Regular Reserve of Junior Commissioned Officers shall be entitled to the same pay and allowances as are admissible to a junior commissioned officer of the regular army holding corresponding rank and–

(a) if he retired with the pension rules after rendering not less than, in the case of a Subedar twenty-eight years and in the case of a Jemadar twenty-four years service, shall be entitled to draw the whole of such pension in addition;

(b) if he retired with a pension less than the pension specified in clause (a) shall either be entitled to draw such pension in addition, or shall surrender his pension and be allowed to count half the period of his reserve service and the whole period of his

recalled army service and the period for which called up for training towards increase of pension;

(c) if he retired or was released with a gratuity only, shall be allowed to count half the period of his reserve service and the whole period of his recalled army service and the period for which called up for training towards pension, provided that he agrees to refund the whole amount of such gratuity; and shall be granted a retaining fee for the period during which he is not recalled to army service, or period during which he is not called up for training, at such rates as may be sanctioned by the Government from time to time.

15. Disability and family pension.— A member of Regular Reserve of Junior Commissioned Officers shall be eligible, when recalled for army service or called up for training, for the grant of disability and family pensions at the rates, in the circumstances and under the rules applicable for time being, to a person holding corresponding rank in the regular army.

PART IV

SUPPLEMENTARY RESERVE OF OFFICERS

16. Constitution of the Supplementary Reserve of Officers:—

(1) The Supplementary Reserve of Officers shall consist of gentlemen who, being citizens of Bangladesh and not being liable to perform military, naval or air force service in any other capacity are granted commissions in that Reserve: Provided that—

(a) a gentleman who holds a Substantive civil appointment under the Government shall not be eligible to apply for a commission in the said Reserve without permission in writing of the Government or of such officer as the Government may appoint in this behalf.

(b) a gentleman who is in private employ shall not be eligible to apply without the permission of his private employer.

(2) Gentlemen commissioned in the Supplementary Reserve of Officers shall be assigned to one of the arms or services lists specified in the following table according to their technical and other qualifications and according to the needs of each arm or service list but except in the case of Medical, Dental and Nursing

officers, they shall be liable for general service in any other corps, provided that an officer may at his own request, be transferred from one arm or service to another if a vacancy exists and the exigencies of service permit:

TABLE

(1) The Armored Corps.

(2) The Bangladesh Artillery.

(3) The Corps of Engineers.

(4) The Corps of Signals.

(5) The Infantry.

(6) The Army Service Corps.

(7) The Army Medical Corps.

(8) The Army Dental Corps.

(9) The Military Nursing Service.

(10) The Remount, Veterinary and Farms Corps.

(11) The Army Ordnance Corps.

(12) The Electrical and Mechanical Engineers.

(13) The Army Educational Corps.

(14) Provost Staff.

(15) General List:

(a) Staff

(b) Intelligence.

(c) Censorship.

(d) Movement Control.

(e) Recruiting.

(f) Miscellaneous.

17. Liability for army service.— (1) Officers of the Supplementary Reserve of Officers shall be liable to be called up for army service by a general or special order of the Government when the Government consider that an emergency has arisen or is imminent:

Provided that an officer, who does not hold a substantive civil appointment under the Government [substituted *vide* S.R.O No. 136-L(81)] may be called up for army service by the Chief of Army Staff at any time for such period as may be necessary to meet shortage of officers of the regular army.

(2) A calling up notice shall be issued to each officer who is liable to perform army service under sub-rule (1) by the Military Secretary in case of infantry and General List Officers and in other cases by the Director of the Arm or Service concerned at General Headquarters.

(2-A) A call up notice shall be issued by the military secretary to each officer who is liable to perform army service under sub-rule (1).

18. Periodical training.— Officers of the Supplementary Reserve of Officers shall be liable to undergo training not exceeding a period of one month in each training year, under the orders, in the case of Infantry and the General List of the Military Secretary and in the case of others of the Director of Arm or Service concerned at General Headquarters.

19. Pay and allowances during training.— When called up for training, under rule 18 an officer of the Supplementary Reserve of Officers shall, from, the date of his joining for such training to the date of his completion thereof be entitled to the same pay and allowances as are admissible to an officer of the Regular Army holding corresponding status and rank in the arm or service to which he belongs:

Provided that an officer of the supplementary Reserve of Officers who holds a civil appointment under the Government shall when called up for training also receive his civil pay at the following rates:–

(i) When he proceeds for training from civil duty, pay and allowances which he would have drawn if he had not been called up for training.

(ii) When he proceeds for training from leave, civil pay and allowances which he would have drawn during such leave, if he had not been called up for training.

20. Pay during service.— When called up for army service under rule 17 an officer of the Supplementary Reserve of Officers, other than an officer holding a substantive civil appointment under the Government shall be entitled to the same pay and allowances as are admissible to regular officers of the corresponding ranking his arm or service to which he belongs:

Provided that an officer of the Supplementary Reserve of Officers who has no corresponding arm or service in the regular army shall be treated as Infantry Officer for this purpose of pay and allowances.

(2) An officer of the Supplementary Reserve of Officers who is holding a substantive civil appointment under the Government shall receive pay and allowances as under:—

(a) When not serving in a field service area, civil pay of substantive civil appointment or an amount equal to pay and allowances, appropriate to his military rank and appointment, whichever is greater;

(b) When serving in a field service area,

(i) civil pay of substantive civil appointment *plus* a compensatory allowance equal to one-fifth of civil pay, or Taka ten per day, whichever is less; or

(ii) an amount equal to pay and allowances appropriate to his military rank or appointment whichever is greater:

Provided that the expression "civil pay" used in this sub-para shall be deemed to include increments of civil pay which the officer may earn under the civil rules.

21. Outfit allowance.— (1) An outfit allowance of Taka four hundred shall be granted to an officer who is granted a commission in the supplementary Reserve of Officers and a further amount of Taka four hundred only shall be paid to him on being called up for army service for the first time:

Provided that an officer who is commissioned in this Reserve after release from the regular army shall, if a period of less than three years, has elapsed since his release from the regular army, be paid only the cost, not exceeding Taka four hundred, of necessary authorized alterations to the uniform actually in his possession.

(2) The outfit allowance payable under sub-rule (1) on the grant of Commission in the Supplementary Reserve of officers shall be paid on the production of a personal certificate of possession of the articles of clothing and equipment specified in the regulations and the further amount payable under that sub-rule on being called up for any service for the first time shall be paid only when such certificate has been duly countersigned by the commanding officer concerned. [substitute *vides* amdt. No. 7/111/67.]

(3) If an officer resigns his commission or if his services are terminated for misconduct within three years of his being commissioned in the Supplementary Reserve of Officers he may be called upon to refund the whole or proportionate part of the outfit allowance drawn by him under sub-rule (1).

22. Age limits for service in the Supplementary Reserve of Officers.— The maximum age limits for retention in service of officers of the Supplementary Reserve of Officers shall be as follows:–

Rank	Age limit	
	AMC/ADC, Vety. and AEC Officer	Other officers
Subaltern	50 years.	50 years
Capt/Maj	58 years.	51 years
Lt-Col.	60 years.	54 years.

23. Gratuity.— (1) A officer of the Supplementary Reserve of Officers, who is called to army service shall, on release from such service, receive a gratuity equal to one month's pay for twelve month's army service completed. Gratuity in respect of periods less than twelve months shall be paid at the rate of one day's pay for every twelve days of army service completed.

(2) For the purpose of sub-rule (1) all service between the date on which an officer reports for army service on being called up and the date on which he is released therefrom, including any periods of leave granted by competent authority, shall count as army service.

(3) For the purpose of sub-rule (1), the term “pay” means the total of all emoluments (excluding dearness allowance) appertaining to the rank and appointment held by the officer and gratuity payable under that sub-rule shall be computed on the average of such pay from the date on which the officer reported for army service to the date of release therefrom or on the average of such pay for the last six months of army service whichever is greater :

Provided that pay during furlough, if any, shall be calculated at full duty rates of pay:

Provided further that, in the case of an officer who holds a substantive civil appointment under the Government or military pay alone shall be taken into account.

(4) No gratuity shall be admissible, if the service of an officer are terminated on account of misconduct or inefficiency or in discreditable circumstances.

24. Disability pension.— An officer or the Supplementary Reserve of Officer shall, while recalled for army service or called up for training be eligible for a disability pension under the same rules as may, for the time being, be applicable to officers of the regular army:

Provided that officers who hold substantive civil appointments under the Government shall be governed by such rules as may issued by the Government from time to time.

25. Family Pension.— Wives and children of officers of the supplementary Reserve of Officers who die while recalled for army service or called up for training in circumstances which may be regarded as attributable to military service under the rules applicable to regular officers will be granted pensions, gratuities and compassionate and educational allowances at such rates and under such conditions as may, for the time being, be applicable to officers of the regular army.

PART V

SUPPLEMENTARY RESERVE OF JUNIOR COMMISSIONED OFFICERS AND OTHER RANKS

26. Composition of the Supplementary Reserve of Junior Commissioned Officers and Other Ranks.— The Supplementary Reserve of Junior Commissioned Officers and Other Ranks shall consist of:

(a) junior commissioned officers, commissioned in the Supplementary Reserve of Junior Commissioned Officers and Other Ranks under rule 27.

(b) persons enrolled under rule 28 for service in the aforesaid reserve.

27. Grant of commissions in the reserve.— Commissions in the Supplementary Reserve of Junior Commissioned Officers and Other

Ranks may be granted to persons holding non-commissioned rank in the Supplementary Reserve and civilian gentlemen who being citizens of Bangladesh and not being liable to perform military, naval or Air force service in any other capacity, are below thirty years of age and are medically fit for service; provided that, in special cases the President may, on the recommendation of the Chief of Army Staff concerned grant commission to a person whose age does not exceed thirty-five years.

28. Enrolment in the reserve.— (1) Any citizen of Bangladesh who is desirous of enrolment in the Supplementary Reserve of Junior Commissioned Officers and Other Ranks and is not below twenty years and above thirty years of age may be enrolled in the reserve in the manner hereinafter:

Provided that, in a special case, the Brigade or equivalent commander concerned may authorize the enrolment of a person not exceeding thirty-five years of age.

(2) Enrolment shall be carried out on from of enrolment prescribed for combatants enrolled under the Army Act, 1952 (XXXIX of 1952) or under any enactment which replaced that Act.

(3) Enrolment shall be for an initial period of ten years, which may at the discretion of the commanding officer and with the consent of the individual concerned and subject to his being fit for service be extended by one year at a time.

28A. Age limits for service in the Supplementary Reserve of Junior Commissioned Officers and Other Ranks.–The Maximum age limits for retention in service of JCOs and ORs of the Supplementary Reserve of JCOs and ORs shall be as follows:–

ORs (all arms except Corps of Engineers)..... 48 years.

ORs (Corps of Engineers) ..... 45 years.

Jemadar ..... 50 years.

Subedar/Risaldar ..... 54 years.

29. Liability for army service.— A member of the Supplementary Reserve of Junior Commissioned Officers and other Ranks shall be liable to come up for army service, when required to do so, by an order of his commanding officer.

30. Training.— A member of the Army Supplementary Reserve of Junior Commissioned Officers and Other Ranks shall be liable to come up for training, for a period not exceeding two months, under the order of his commanding officer; such training being, during the first year, carried out with the Training Centre of the arm of service concerned and during the subsequent years with an active unit.

31. Skilled entry rate of pay for Other Ranks.— On enrolment under rule 24, an Other Rank of the "Supplementary Reserve of Junior Commissioned Officers and Other Ranks" shall be entitled to the skilled entry rate of pay as is admissible to the class of the category to which he is mustered:

Provided that–

(a) he possesses the necessary technical qualifications or passes the trade tests laid down for the relevant category and class;

(b) he possesses the requisite civil or military educational qualifications except that the condition of the requisite map reading standard for the relevant category or class will not apply to him at the time of enrolment.

Provided further that, in exceptional cases, civilians with higher technical qualifications, may at the discretion of commanding officer, be mustered in class 2 if there are vacancies in that class of the category and the individual concerned possesses the requisite technical and civil or military educational qualification except map reading.

The condition regarding service in Class below and total service will not be applicable in such cases.

32. Pay and allowances of Junior Commissioned Officers and Other Ranks when called up for training or service.— When called for army service or called up for training a member of the Supplementary Reserve of Junior Commissioned Officers and Other Ranks shall be entitled to the same pay and allowances as are admissible to and equivalent rank of the regular army who belongs to the same class and group.

Provided that–

(a) Supplementary Reserve Service shall be reckonable towards the period of service laid down for entitlement to higher rates of pay;

(b) a reservist who holds a substantive civil appointment under the Government may elect to be paid at the rates of pay admissible to him for such civil appointment, and

(c) deferred pay for the period of training shall be paid on completion of such training.

33. Disability and family pension.— A member of the Supplementary Reserve of Junior Commissioned Officers and other Ranks shall, when called for army service or called up for training, be eligible for the grant of disability and family pensions at the rates, in the circumstances and under the rules applicable, for the time being, to a person holding corresponding rank in the regular army.

34. Gratuity.— A member of the Supplementary Reserve of Junior Commissioned Officers and Other Ranks shall, for the period during which he is called up for army service, receives gratuity at the same rate and under the same conditions as applicable to a person holding corresponding rank in the regular army.

PART VI

REGULAR RESERVE OF OTHER RANKS

35. Composition.— The Regular Reserve of Other Ranks shall consist of persons enrolled under the Army Act 1911 (VIII of 1911) or any enactment which replaces that Act, who are transferred to the Reserve of the Arm or Service specified in the following table, in accordance with the terms of their enrolment:

Provided that–

(a) no one shall be transferred to the reserve unless he has completed at least three years' service with the colours irrespective of the fact whether he has reserve liability or not;

(b) no individual whose terms of service do not include liability to serve in the reserve, shall be transferred to the reserve without his own consent;

(c) no individual whose terms of service do include liability to serve in the reserve, shall be transferred to the reserve before completion of his minimum period of colour service for which

engaged unless he is so willing and in case no specific period of colour service is mentioned in his terms of enrolment, the individual shall be liable for transfer to the reserve on termination of his service with the colours:

Provided further that nothing in clause (a) to the first proviso shall apply to a re-enrolled Ex-service man who, not having less than two years services with the colours in transferred to the reserve without completing two years service with the colours in his re-enrolled engagement.

TABLE

Bangladesh Armoured Corps.
Bangladesh Artillery.
Bangladesh Engineers.
Bangladesh Signal Corps.
Infantry.
Corps of Bangladesh Military Police.
Bangladesh Army Service Corps.
Bangladesh Army Medical Corps.
Bangladesh Army Ordnance Corps.
Bangladesh Electrical and Mechanical Engineers.
Bangladesh Remount, Veterinary and Farms Corps.
Bangladesh Army Corps of Clerks.

36. Liability for recall to Army Service.— A member of the Regular Re-service of Other Ranks shall be liable to recall to army service by his commanding officer until he completes the service limits specified below:

Havildar/Dafadar	24 years	combined colour and reserve service.
Naik	23 years	Do.
Sepoy (Incl paid Lance/Naiks) ...	18 years	Do.

37. Liability for training.— A member of the Regular Reserve of Other Ranks shall, when required to do so by his commanding officer, come up for training for a period not exceeding two months:

Provided that no reservist shall be called up for training within a period of twelve months from the date of his transfer to the reserve, or during the last twelve months of his service in the reserve:

Provided further that a reservist who is serving in the Posts and Telegraphs Department shall not be called up for training more than twice during the entire period of his reserve service:

Except where commander-in-chief decides otherwise in case of any reservist. (Added vide Amdt. No. 24/111/65)

38. Pay and allowances.— While recalled to army service under rule 36 or for training under rule 37, an Other Rank of "the Regular Reserve of Other Ranks" shall be entitled to the same pay and allowances as are admissible to a person holding corresponding rank in the regular army and–

(a) if he was transferred to the reserve with the Pension admissible under the normal rules, after rendering–

(i) in the case of Havildar, twenty-one years service;

(ii) in the case of Naik, eighteen years service;

(iii) in the case of a Sepoy, sixteen years service, shall be entitled to draw his full pension in addition;

(b) if he was transferred to the reserve with a pension less than the pension specified in clause (a) shall be entitled to draw such pension in addition, or if he surrenders such pension shall be allowed to count half the period of his service in the reserve and the whole period of recalled army service and the period for which he was called up for training, towards increase of pension;

(c) if he retired or was released with gratuity only, shall be allowed to count half the period of his reserve service and the whole period of his recalled army service and the period for which called up for training, towards pension provided he aggress to refund the whole amount of such gratuity and shall be granted a retaining fee for the period during which he is not recalled to army service, or period during which he is not called up for training, at such rates as may be sanctioned by the Government from time to time.

39. Re-transfer from the reserve to colour service.— A member of the Regular Reserve of Other Ranks may, during his first three years of his reserve service, be transferred to colour service at his own request

and with the concurrence of his commanding officer provided that the reserve is full and that his place in the reserve can be filled immediately.

40. Disability and family pensions.— A member of the Regular Reserve of Other Ranks shall be eligible, while recalled for army service or called up for training, for the grant of disability and family pensions at the rates, in the circumstances and under the rules applicable from time to time to a person holding corresponding rank in the regular army.

PART VII

41. Definitions.— In this chapter unless there is anything repugnant in the subject or context:—

(a) "junior commissioned officer" means a junior commissioned officer of the Regular Reserve of Junior Commissioned Officers or of the Supplementary Reserve of Junior Commissioned Officers and other Ranks:

(b) "officers" means an officer of the Regular Reserve of Officers or the Supplementary Reserve of Officers; and

(c) "reservist" means an officer, junior commissioned officer or other rank of any of the reserve constituted under the Act.

42. Liability to military law.— (1) All reservists, other than those specified in sub-rule (2) shall be subject to the Army Act, 1952 or to any enactment which replaces that Act, and the Rules and Regulations thereunder only when called up by competent authority for army service, or for training.

(2) Members of the Regular Reserve of other Ranks shall remain subject to the Army Act 1952 (XXXIX of 1952) or to any enactment which replaces that Act and the Rules and regulations thereunder until their services are terminated.

(3) For the purpose of sub-rule (1) subjection to the Army Act, 1952 (XXXIX of 1952) or any enactment which replaces that Act and the Rules and Regulations thereunder shall commence from the date on which a reservist is required to report himself for army service or for training to the authority and at the place specified in the order.

(4) Notwithstanding anything contained in section 78 of the Army Act, 1952 (XXXIX of 1952) or the corresponding section of any enactment which replaces that Act, it shall not be necessary to assemble a court of inquiry under that section merely because a reservist has failed to attend for service or training, though the commanding officer at his discretion order such a court where necessary.

43. Precedence and status:

(a) on being called up for training reservist officers shall take precedence below all serving officers on the same rank, but that seniority amongst themselves from the dates of their first commission.

(b) On being recalled for army service reservist officers shall take seniority in the rank in which recalled, from the dates of their first commission, retarded by the period they have served in the reserve.

44. Address.—(1) Officers shall report themselves to Military Secretary in writing and shall forthwith inform him of any change of address from time to time.

(a) MS in the case of all Officers except those belonging to AMC and ADC.

(b) DGMS in case of AMC and ADC officers.

(2) A reservist, other than an officer, shall inform the Commanding Officer of his reserve Centre, of any change of the address from time to time.

45. Reservist not to leave Bangladesh Except with permission.— No reservist shall leave Bangladesh Except with permission in writing, in the case of an officer, of the Permission in writing in the case of an officer, of the Military Secretary, Headquarters, Bangladesh Army & in the case of reservist other than officer, of his commanding officer of reserve centre. This permission will not be normally refused except in cases where reservist officer/JCO/OR concerned is likely to be called to Army Service or called up for training. If a reservist officer/JCO/OR, leaves the country without prior permission of the competent authority his pension/retaining fee/bounty shall be stopped.

46. Pay admissible on disability/sickness during training:

(a) Full Pay and allowances will be admissible to a reservist for any period up to a maximum of double the length of training period during which he is detained sick in hospital, when called up for training for disability/sickness/other than v. d. for which see sub-rule (c) below. For any period in excess of this retaining fee/bounty will be admissible.

(b) A reservist, who is found permanently medically unfit on first reporting for training and is detained in hospital for treatment/ observation will receive full pay & allowances up to the date of discharge, which will be carried out expeditiously subject to the condition that the period of full pay and allowances will not in any case, exceed the authorised period of training. For any period in excess of this retaining fee/bounty will be admissible up to the date of discharge or becoming non-effective.

(c) A reservist who is found to be suffering from V. D. which requires his admission into hospital, will receive pay as follows:–(i) If found permanently medically unfit, he will receive full pay and allowances for the authorised period of training, whether he under– goes any training or not and retaining fee/bounty, if any, up to the date of discharge (ii) if found Temporarily medically unfit, he will receive retaining fee/bounty receive full pay and allowances for any period of training performed.

(d) The penal Deduction required by rule 255, pay & allowances Regulations volume ii, will be made only for the period during which a reservist draws full pay and allowances (Substitute vide Amdt. No. 10/III/67).

47. Accommodation, etc.— reservist called up for service or training will be entitled to such accommodation and such other concessions as are admissible to a person holding the same rank in the regular army.

48. Termination of service.—(1) The Government may terminate the service of any reservist at any time for inefficient or misconduct or on medical grounds or for any other service reasons.

(2) The Chief of Army Staff or Divisional Commander may terminate the services of any reservist, other than an officer, at any time, for inefficiency or misconduct or on medical grounds.

(3) An officer, not below the rank of Brigade Commander, may terminate the services of any reservist, other than an officer or junior commissioned officer, at any time, for inefficiency or misconduct, or on medical grounds.

(4) The termination of an officer's service under this rule shall be notified in the official Gazette.

49. Retirement–Officer.— The retirement of an officer–

(a) on attaining the age limits for his retention, specified in rule 4 to 22;

(b) on compassionate grounds before attaining the age limit specified in rule 4 to 22;

(c) on medical grounds on the recommendation of an invalidating board consisting of three officers;

(d) on ceasing to reside in Bangladesh;

shall be authorised by the Government and notified in the official Gazette;

Provided that an officer shall not be retired from the service under clause (a), or (b) during an emergency or if an emergency is imminent.

50. Discharge.— The causes of discharge of persons other than officers, the authorities empowered to authorise their discharge and the special instructions to be observed in each case are set out in the following table, but any power conferred by this sub-rule on any authority may be exercised by any higher authority in the chain of command, or by the Government.

TABLE

Category	Cause of discharge	Authority competent to auto discharge	Special instructions, if any
1	2	3	4
REGULAR RESERVES			
JCOs. I. (i)	On attaining the age limits specified in rule 11.	Commanding Officer	The Commanding Officer may refuse a discharge under this item during an emergency or if an emergency is imminent. The Corps/Div/ Indep Bde/ L of C Sub Area Comd may refuse a discharge under this items during an emergency or if an emergency is imminent or when the strength of the reserve is unduly affected.
(ii)	At his own request before attaining the age limits specified in rule 11.	Corps/Div/Indep Bde/L of C Sub Area Comd	
(iii)	At his own request on obtaining permanent civil employment.	Do	The Corps/Div/Indep Bde/Line of Comm Sub area comd may refuse a discharge under this item during an emergency or if an emergency is imminent.
(iv)	On medical grounds.	Commanding Officer	To be carried out on the recommendation of a medical officer that is RMO/OC military hospital, who would do so after consulting the specialist concerned.

1	2			3	4
		(v)	His service being no longer required (specifying the particular cause of discharge)	Corps/Div/Indep Bde/ L of C Sub Area comd.	
Other Ranks	II.	(i)	On completion of service limits at specified in rule 36 or on completion of the period for which he was transferred to reserve according to his terms of svc.	Commanding Officer.	The Commanding Officer may refuse discharge under this item during an emergency or if an emergency is imminent.
		(ii)	At his own request before :–	Brigade Commander	The Pde comd shall not exercise his power during an emergency or if an emergency is imminent or when the strength of the reserve is unduly affected.
		(a)	Completion of his svc limits as specified in rule 36, or	Brigade Commander	
		(b)	Completion of the period for which he was transferred to serve according to his terms of service.		

1	2			3	4
		(iii)	At his own request on obtaining permanent civil employment	Brigade Commander	The Bde Comd may refuse a discharge under this item during an emergency or if an emergency is imminent.
		(iv)	On med grounds	Commanding Officer	The Commanding Officer shall exercise his power only on the recommendation of a med officer, that is RMO/OC a military hosp, who would do so after consulting the specialist/concerned.
		(v)	His services being no longer required (specifying the particular cause of discharge).	Brigade Commander	
			SUPPLEMENTARY RESERVE		
JOCs	III.	(i)	On attaining the age limits specified in rule 28-A.	Commanding Officer	The Commanding Officer may refuse a discharge under this item during an emergency is imminent.
		(ii)	At his own request before attaining the age limits specified in rule 28-A.	Corps/Div/Indep Bde/L of C sub area commander	The Corps/Div/Indep Bde/L of C sub area comd may refuse a discharge under this item during an emergency or if an emergency is imminent.
		(iii)	At his own request before attaining the age limits specified in rule 28-A, for enrolment in any of the regular forces.	Do.	

1	2			3	4
		(iv)	On medical grounds	Commanding Officer	The Co shall exercise his power under this item only on the recommendation of a med officer, that is RMO/CO military hosp, who would do so after consulting the specialist concerned.
		(v)	His service being no longer required (specifying the particular cause of discharge).	Do.	
Other Ranks	IV.	(i)	On fulfilling the conditions of his enrolment or on attaining the age limits as specified in rule 28-A.	Commanding Officer	The Commanding Officer may refuse a discharge under this item during an emergency or if an emergency is imminent.
		(ii)	At his own request before fulfilling the conditions of his enrolment or before attaining the age limits specified in rule 28-A.	Brigade Comd	Bde comd may refuse a discharge under this item during an emergency or if an emergency is imminent or when the str of reserve is unduly affected.
		(iii)	At his own request for enrolment in any of the regular forces.	Bde Comd	

1	2	3	4
	(iv) On med grounds	Co	The Co shall exercise his power under this item only on the recommendations of a med officer that is, RMO/OC mil hosp, who would do so after consulting the specialist concerned.
	(v) His svc being no longer required (specifying the particular cause of discharge).	Bde Comd	
	(vi) Not likely to become an efficient soldier.	Co	This will apply to recruits until such time they are attested.

(Substituted Vide Amdt. No 2/IV/67)

51. Discharge Certificate.— A reservist, other than an officer whose services are terminated under rule 48 or who is discharged under rule 50 shall be furnished by his commanding officer with a discharge certificate, in the English language and in such other language as he understands setting forth:

(a) the authority who terminated his services or authorised his discharge;
(b) the cause of the termination of his service or discharge;
(c) the full period of service in the reserve to which he belonged.

Territorial Force Act, 1950

ACT No. L of 1950

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TERRITORIAL FORCE ACT

ACT No. L of 1950.

AN ACT TO CONSTITUTE A BANGLADESH TERRITORIAL FORCE.

WHEREAS, it is expedient to provide for the constitution of a Bangladesh Territorial Force and for its administration and discipline;

It is hereby enacted as follows:-

1. **Short title, extent and commencement.—** (1) This Act may be called the Territorial Force Act, 1950.

(2) It extends to the whole of Bangladesh, and applies to persons enrolled in the Bangladesh Territorial Force wherever they may be.

(3) It shall come into force at once.

2. Definitions.— In this Act, unless there is anything repugnant in the subject or context,–

"Defence services" means the Bangladesh Army, Bangladesh Air Force and the Bangladesh Navy;

"Defence service Law" means the Army Act, 1952 (XXXIX OF 1952), The Air Force Act, 1953 (VI of 1953), or the Navy Ordnance, 1961 (XXXV of 1961), as the case may be;

"enrolled" means enrolled or re-enrolled in the Bangladesh Territorial Force under this Act;

"non-commissioned officer" means a person holding non-commissioned rank in the Bangladesh Territorial Force, and includes an acting "non-commissioned officer".

"officer" means a commissioned officer or a junior commissioned officer ;

"prescribed" means prescribed by rules made under this Act.

3. Constitution of Bangladesh Territorial Force.— There shall be raised and maintained in the manner hereinafter provided a force to be designated the Bangladesh Territorial Force:

Provided that the Government shall establish all or any of the branches of the Force as circumstances may permit from time to time.

4. Constitution and disbandment of units.— The Government may constitute any corps or unit of the Bangladesh Territorial Force and may disband or reconstitute any corps or unit so constituted.

5. Classes of officers.— (1) There shall be the following classes of officers in the Bangladesh Territorial Force, namely :

(a) commissioned officers, and
(b) Junior commissioned officers.

(2) An officer shall be deemed to be enrolled in the Bangladesh Territorial Force for so long as he holds a commission in that Force.

6. Enrolment.— (1) Any person who is a citizen of, or is domiciled in Bangladesh may offer himself for enrolment in the Bangladesh Force, and any such person who satisfies the prescribed conditions may be enrolled in the prescribed manner for such period, not exceeding six years, as may be prescribed.

(2) An applicant for enrolment may apply to be enrolled for service in any particular branch, corps or unit.

7. Appointment to corps or unit.— (1) Every person enrolled shall without unnecessary delay be appointed in the prescribed manner to a corps or unit constituted under section 4.

(2) Any person who has been enrolled for service in any particular branch, corps or unit shall be appointed to a corps or unit of that branch or to that corps or unit, as the case may be.

8. Transfer and attachment.— (1) Any person appointed to a corps or unit under section 7 may be transferred, whether on disbandment of the corps or unit or otherwise to another corps or unit of the same branch of the Bangladesh Territorial Force, in such manner as may be prescribed.

(2) Any person enrolled may be attached at his own request to any corps or unit of the Bangladesh Territorial Force or to any unit of the Defence Services.

9. Change of residence.— (1) Any enrolled person who changes his residence otherwise than temporarily shall inform the prescribed authority of his new residence.

(2) The prescribed authority on being so informed may, subject to the provisions of section 8, transfer such person from the corps or unit in which he is serving to another corps or unit.

10. Discharge.— Every person enrolled shall be entitled to receive his discharge from the Bangladesh Territorial Force on the expiration of the period for which he was enrolled and any such person may, before the expiration of that period, be discharged from the said Force by such authority and subject to such conditions as may be prescribed, and shall be so discharged on a recommendation of the officer commanding the unit in this behalf;

Provided that no person enrolled who is for the time being engaged in military service under the provisions of this Act shall be entitled to receive his discharge before the termination of such service.

11. Liability to serve and perform military service.— (1) Every person enrolled shall, subject to such conditions as may be prescribed, be bound to serve in any corps or unit of the Bangladesh Territorial Force to which he has been appointed or transferred, or is for the time being attached, and shall be subject to all rules and regulations that may be made under this Act relating to such corps or unit.

(2) Every person enrolled in a corps or unit shall be liable to perform military service—

(a) When called out with any portion of the Bangladesh Territorial Force by an order of the senior military officer present either to act in support of the civil power or to provide guards, which in the opinion of such officer, are essential; or

(b) When any portion of the Territorial Force to which he belongs has been embodied to support or supplement the Defence Services in the event of an emergency by a notification directing such embodiment issued by the Government and published in the official Gazette; or

(c) when attached at his own request to any unit of the Defence Services.

12. Territorial limits of liability to and duration of military service.— No person embodied under section 11 shall be required to perform military service beyond the limits of Bangladesh save under a general or special order of the Government.

13. Application of Act XXXIX of 1952.— (1) Every officer of the Bangladesh Territorial Force, when doing duty as such officer, shall subject to the terms of his commission and the orders of the president, be subject to the respective defence service law and the rules and regulations made thereunder, the said law, rules and regulations shall apply to him as if he held the same rank in the concerned unit of the defence services as he holds for the time being in the said Forces.

(2) Every non-commissioned officer and man of the Bangladesh Territorial Force,—

(a) when called out or embodied for military service under section 11, or

(b) When attached to, or otherwise acting as part of, or with, any unit of the Bangladesh Army, or

(c) when embodied for, or otherwise undergoing, military training in the prescribed manner,

shall, subject to the orders of the President be subject to the respective defence service law and the rules and regulations made there under, and the said law, rules and regulations shall apply to him as if he held the same rank in the Bangladesh Army as he holds for the time being in the said Force:

Provided that the said law, rules and regulations shall, in their application to such non-commissioned officers and men when embodied for or otherwise undergoing military training, be modified to such extend and in such manner as may be prescribed:

(3) Where an offence punishable under any defence service law or, as the case may be, under that law as modified under sub-section (2), has been committed by any person whilst subject to that law under the provisions of this section, such person may be taken into and kept in military custody and tried and punished for such offence, although he has ceased to be so subject as aforesaid, in like manner as he might have been taken into and kept in military custody, tried or punished if he had continued to be so subject:

Provided that no such person shall be kept in military custody after he has ceased to belong to the Bangladesh Territorial Force, unless he has been taken into or kept in military custody on account of the offence before the date on which he ceased so to belong; nor shall he be kept in military custody or be tried or punished for the offence after the expiry of two months from that date, unless his trial has already commenced before such expiry.

14. Summary trial and punishments.— In addition to, or in substitution for, any punishment to which he may be liable under the respective defence service law, a junior commissioned officer, non-commissioned officer or man of the Bangladesh Territorial force may be punished either by a criminal court or summarily by order of the prescribed authority for any offence under that law, or for the contravention of any rule or regulation under this Act, with fine which may extend to fifty Taka, to be recovered in such manner and by such authority as may be prescribed:

Provided that no court inferior to that of a magistrate of the first class shall try any offence made punishable by or under this Act.

15. Presumption as to certain documents.— Where a Junior Commissioned officer, non-commissioned officer or man of the Bangladesh Territorial Force is required by or in pursuance of any rule, regulation or order made under this Act to attend at any place, a certificate purporting to be signed by the prescribed officer, stating that the person so required to attend failed to do so in accordance with such requirement, shall without proof of the signature or appointment of such officer, be evidence of the matters stated therein.

16. Power to make rules.— (1) The Government may make rules to carry out the purposes of this Act.

(2) In particular and without prejudice to the generality of the foregoing powers, such rules may—

(a) prescribed the manner in which, the period for which and the conditions subject to which, persons may be enrolled under section 6;

(b) prescribed the manner in which persons enrolled may be appointed to corps and units under section 7 or transferred under section 8 or section 9;

(c) prescribed the authorities by which and the condition subject to which persons enrolled may be discharged under section 10;

(d) prescribe preliminary and periodical military training, compulsory and voluntary, for any person or class of persons enrolled and provide for the embodiment of any corps or unit for that purpose;

(f) provide the medical examination of persons offering themselves for enrolment under section 6;

(g) provide for and regulate the remuneration, allowances, gratuities or compensations (if any) to be paid to any person or class of persons enrolled or to their dependants; and

(h) provide for any other matter which under this Act, is to be or may be prescribed.

(3) All rules made under this Act, shall be published in the official Gazette, and on such publication shall have effect as if enacted in this Act.

17. Power to make regulations.— (1) The Government of Bangladesh may make regulations not inconsistent with this Act, and the rules made thereunder, providing generally for all details connected with the organisation and personnel of the Bangladesh Territorial Force and for the duties, military training, clothing, equipment, allowances and leave of persons enrolled.

(2) In particular and without prejudice to the generality of the foregoing power, such regulations may specify the courses of training or instruction to be followed by any person or class of persons enrolled.

18. Certain persons subject to this Act to be deemed part of defence services for certain purposes.— For the purposes of section 128, 130 and 131 of the Code of Criminal Procedure, 1898 (V of 1898), all officers, non-commissioned officers and men of the Bangladesh Territorial Force who have been appointed to a corps or unit shall be deemed to be officers, non-commissioned officers and soldiers or airmen or sailors, as the case may be of the respective defence service.

19. Exemption from local taxation.— No person shall be liable to pay any Municipal or other tax in respect of any horse, bicycle, motor-bicycle, motor, car, or other means of conveyance which, he is authorised by regulations made under section 16 to maintain in his capacity as a person enrolled or otherwise connected with the Bangladesh Territorial Force.

ACT No. II OF 1901

THE TOLLS (ARMY AND AIR FORCE) ACT, 1901.

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ISSUED UNDER THE TOLLS (ARMY AND AIR FORCE) ACT, 1901 (II of 1901)

SCHEDULE 719

ACT No. II OF 1901

THE TOLLS (ARMY AND AIR FORCE) ACT, 1901.

AN ACT TO AMEND THE LAW RELATING TO THE EXEMPTION FROM TOLLS OF PERSONS AND PROPERTY BELONGING TO THE ARMY OR AIR FORCE.

WHEREAS it is necessary to provide for the exemption from the payment of certain duties or tolls of certain officers, soldiers, airmen and other persons, and certain animals, baggage and carriages belonging or attached to the Bangladesh Army, or to the Bangladesh Air Force;

It is hereby enacted as follows:—

1. Short title, extent and commencement.— (1) This Act may be called the Tolls (Army and Air Force) Act 1901.

(2) It extends to the whole of Bangladesh.

(3) It shall come into force on the first day of April, 1901.

2. Definitions.— In this Act, unless there is anything repugnant in the subject or context,—

(a) the expression "authorised followers" means persons other than officers, soldiers or airmen, who are employed by, or are in the service of, the Forces, or Corps concerned, or are in the service of any officer, soldier, or airman of such Forces, or Corps;

(b) "carriage" means a vehicle for carriage or haulage other than one specially constructed for use on rails;

(c) "ferry" includes every bridge and other thing which is a ferry within the meaning of any enactment authorising the levy of tolls on ferries, but does not include any ferry or other thing which is included into the definition of "railway" in section 3 of the Railways Act, 1890 (IX of 1890);

(d) the expressions "the Bangladesh Army" and "the Bangladesh Air Force" include the Reserves respectively, of the Bangladesh Army and the Bangladesh Air Force, when subject to military or air force law, as the case may be;

(e) "horse" includes a mule and any beast of whatever description which is used for burden or draught or for carrying persons;

(f) the expression "Irregular Corps" means any force (other than the Territorial Force or the National Guard) raised and maintained in Bangladesh under the authority of the Government or any other force which may be specified in this behalf by a notification published in the official Gazette;

(g) the expression "Reserve Force" means the forces constituted under the Bangladesh (Army and Air Force) Reserve Act, 1950 (XLV of 1950).

(h) "landing-place" includes a pier, wharf, quay, jetty and a stage, whether fixed or floating;

(i) “public authority” means the Government, or a local authority, so far as regards tolls levied by a railway company, under section 51 of the railways Act, 1890 (IX of 1890) includes such a company;

(j) “tolls” includes duties, dues, rates, rents, fees and charges, but does not include customs duties levied under the Tariff Act, 1934 (XXXII of 1934) octroi duties or, town duties on the import of goods or fares paid for the conveyance of passengers on a tramway.

3. Exemption from tolls.— The following persons and property, namely:–

(a) all officers, soldiers and airmen of —

(i) the Bangladesh Army and the Bangladesh Air Force,

(ii) any Irregular Corps, or

(iii) [Omitted vide ref. Bangladesh Laws (Revision and Declaration) Act, 1973].

(b) [Omitted]

(c) all officers, soldiers and airmen of the Bangladesh Reserve Forces when proceeding from their place of residence on being called out for service, training, or muster or when proceeding back to their place of residence after such service, training or muster;

(d) all authorised followers of–

(i) the Bangladesh Army and the Bangladesh Air Force;

(ii) *[Omitted]*

(iii) any irregular Corps; or

(iv) [Omitted vide ref. Bangladesh Laws (Revision and Declaration) Act, 1973].

(e) all members of the families of officers, soldiers, airmen or authorised followers of–

(i) the Bangladesh Army or the Bangladesh Air Force, or

(ii) any irregular Corps,

when accompanying any body of troops, or any officer, soldier, airman or authorised follower thereof on duty or on the march,

(f) all prisoners under military or air force escort,

(g) the carriages, horses, and baggage, and the persons (if any) employed in driving the carriages or in carrying the baggage, of any persons exempted under any of the foregoing clauses when such carriages, horses, baggage's, or persons accompany the persons so exempted under the circumstances mentioned in those clauses respectively,

(h) all carriages and horses belonging to the Government or employed in military or air force service and all persons in charge of or accompanying the same, when conveying any such person as herein before in this section mentioned, or when conveying baggage or stores, or when returning unladen from conveying such persons, baggage or stores.

(i) all carriages and horses, when moving under the orders of military or air force authority for the purpose of being employed in military or air service,

(j) all animals accompanying any body of troops which are intended to be slaughtered for food or kept for any purpose connected with the provisioning of such troops, and

(k) all persons in charge of any carriage, horse or animal exempted under any of the foregoing clauses when accompanying the same under the circumstances mentioned in those clauses respectively,

shall be exempted from payment of any tolls–

(i) on embarking or disembarking, or on being shipped or landed from or upon any landing-place, or

(ii) in passing along or over any turnpike or other road or bridge, or

(iii) on being carried by means of any ferry,

otherwise demandable by virtue of any Act, Ordinance, Regulation, order or direction of any legislature or other public authority in Bangladesh:

Provided that nothing in this section shall exempt any boats, barges or other vessels employed in conveying the said persons or property along any canal from payment of tolls in like manner as other boats, barges and vessels.

Explanation.— The persons or property exempted under clauses (d), (e), (g) and (j) shall be deemed to accompany the Forces, Corps, Guard, persons property concerned when the move of the former is the direct result of, or is connected with, the move of the latter, irrespective of the interval of space and time between the two moves.

4. Tolls on vessels transporting troops and baggage, etc. of troops embarked or disembarked.— (1) No tolls shall be liveable by any local authority in respect of :—

(a) any vessel employed by the Government solely for the transport of troops, or

(b) the horses, baggage or other effects of any troops embarking or disembarking at any port, or

(c) carriages belonging to the Government or employed in military or air force service embarking or disembarking at any port.

(2) In respect of all such vessels or troops, their families, their horses, baggage and their effects, or any such carriages as aforesaid, the local authority concerned shall, in addition to its duties in the embarking

and disembarking of the same, perform and supply all such reasonable services and accommodation as may, from time to time, be required by the Government, and shall receive payment, for all such services and accommodation on such terms and for such period as may, from time to time, be determined by the Government in consultation with such local authority.

5. Penalty.— Any person who demands and receives any toll in contravention of the provisions of section 3 or section 4, shall be punishable with fine which may extend to fifty taka.

6. Compensation.— (1) If any owner or lessee, or and company, railway administration or local authority claims compensation for any loss alleged to have been incurred owing to the operation of this Act, the claim shall be submitted to the Government.

(2) On receiving any such claim, the Government, shall pass such order thereon as justice requires, and shall give all necessary directions for the purpose of ascertaining the facts of the case and of assessing the compensation if any, to be paid.

7. Rules.— The Government may make rules to carry out the purposes and objects of this Act.

(2) In particular and without prejudice to the generality of the foregoing power, the Government, may make rules providing for the form of passes to be given to persons or bodies of persons or in respect of property entitled to exemption from the payment of tolls under this Act.

(3) The power to make rules under this section is subject to the condition of the rules being made after previous publication.

(4) All rules made under this section, shall published in the Official Gazette, and, on such publication, shall have effect as if enacted by this Act.

8. (Section 8 repealed.)

No. 624/57*[Gazette of Pakistan, 28 June 1957 (Min of Def.)]***.—** In exercise of the powers conferred by subsections (1) and (2) of section 7 of the Tolls (Army and Air Force)Act, 1901 (II of 1901), and in supersession of the Notification of the late Government of India in the War Department, No. 1580, dated 3rd October 1942, the Government is pleased to make the following rules, the same having been previously published as required by sub-section (3) of the said section, namely ;—

RULES

1. Short title.— These rules may be called the Tolls (Army and Air Force) Rules, 1957.

2. Presentation of Pass for Exemption from Tolls.— Save as hereinafter otherwise provided in rule 3, where exemption from payment of tolls is claimed under the Tolls (Army and Air Force) Act, 1901 (II of 1901), in respect of any person or body of persons or any property, a pass in the form annexed to these rules shall be presented on the demand of the person authorised to demand the tolls.

3. Exemption from Production of Pass.— (1) No passes shall be required in the case of:—

(a) Officers, soldiers and airmen of:—

(i) the Bangladesh Army and the Bangladesh Air Force, or

(ii) Any irregular Corps:

(b) [Omitted]

(c) Officers, soldiers and airmen of the Bangladesh Reserve Forces in uniform when proceeding from their place of residence on being called out for service, training or muster or when returning to their place of residence after such service, training or muster;

(d) authorised followers of:—

(i) the Bangladesh Army or the Bangladesh Air Force,

(ii) any Irregular Corps,

When they accompany any body of such Forces, Corps or Guard on the march;

(e) members of the families of officers, soldiers, airmen or authorised followers of:—

(i) the Bangladesh Army or the Bangladesh Air Force,

(ii) any Irregular Corps,

when accompanying anybody of troops, on duty or on the march;

(f) prisoners under military or air force escort in uniform;

(g) the carriages, horses and baggage, and the persons (if any) employed in driving the carriages or in carrying the baggage of any persons exempted under any of the foregoing clauses, when such carriages, horses, baggage, or persons accompany the persons so exempted under the circumstances mentioned in those clauses, respectively;

(h) carriages and horses belonging to the Government or employed in military or air force service and all persons in charge of or accompanying the same when conveying any such persons as herein before in this rule mentioned, or when conveying baggage or stores;

(i) animals accompanying anybody of troops which are intended to be slaughtered for food or kept for any purpose connected with the provisioning of such troops; and

(j) persons in charge of any carriage, horse or animal exempted under any of the foregoing clauses when accompanying the same under the circumstances mentioned in those clauses, respectively.

(2) No passes shall be required in the case of officers of,--l

(i) The Bangladesh Army or the Bangladesh Air Force,

(ii) *Omitted* (Vide S.R.O. No. 135–181).

(iii) Irregular Corps.

when travelling on duty, though not in uniform;

Provided that the officer so travelling shall furnish in writing to the persons authorised to demand toll his name, rank and a statement that he is travelling on duty.

4. Signing of passes.— Every pass shall be signed by the commanding officer of the regiment, corps, unit or detachment concerned, or by a station staff officer.

FORM OF PASS

(See Rule 2)

ISSUED UNDER THE TOLLS (ARMY AND AIR FORCE) ACT, 1901 (II of 1901)

This pass is issued subject to the rules on the reverse in respect of the persons and property specified in the annexed schedule, and exempt from the payment of tolls on the occasion of:—

Embarking or being shipped at

Disembarking or being landed at

Proceeding from to

It will remain in force from upto the 19

SCHEDULE

	Number	Name of Corps or Unit	Remarks
PART I PERSONS			
Officers			
Soldiers			
Airmen			
Authorised followers of Forces of corps			
Members of families of officers, soldiers, airmen or authorised followers			
Persons in charge of carriage, horses slaughter animals or baggage			
Prisoners			
PART II PROPERTY			
Horses, as defined in the Act*			
Carriages			
Slaughter animals			
Baggage			

* "Horse" includes a mule and any beast of whatever description which is used for burden or draught or for carrying persons, *See* clause (c) of Section 2.

Place..... Signature.....

Date..... Rank.....

Commanding Officer.....

Station Staff officer at.....

Endorsement.

(Here enter rules 2 to 4).

THE SOLDIERS (LITIGATION) ACT, 1925.

ACT No. IV OF 1925.

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ACT No. IV OF 1925.

The soldiers (Litigation) Act, 1925.

An Act to consolidate and amend the law to provide for the special protection in respect of civil and revenue litigation of soldiers serving under special conditions.

Whereas it is expedient to consolidate and amend the law to provide for the special protection in respect of civil and revenue litigation of soldiers serving under special conditions; It is hereby enacted as follows:–

1. Short title, extend and commencement.— (1) This Act may be called the Soldiers (Litigation) Act, 1925.

(2) It extends to the Whole of Bangladesh.

(3) It shall come into force on the first day of April, 1925.

2. Definitions.— In this Act, unless there is anything repugnant in the subject or context:–

(a) "Court" means a Civil or Revenue Court;

(b) "soldier" means any person subject to the Army Act, 1952 (XXXIX of 1952)

(c) "prescribed" means prescribed by rules made under this Act; and

(d) "proceeding" includes any suit, appeal or application.

3. Circumstances in which a soldier shall be deemed to be serving under special conditions.— For the purposes of this act, a soldier shall be deemed to be or, as the case may be, to have been serving**.—**

(a) under special conditions**—** when he is or has been, serving under war conditions, or overseas, or with any unit the headquarters of which are situated at any place which is more than fifty miles distant by road from the nearest railway station; and

(b) under war conditions— when he is or has been, at any time during the continuance of any hostilities declared by the Government by notification in the official Gazette to constitute a state of war for the purposes of this Act or at any time during a period of six months thereafter,—

(i) serving out of Bangladesh,

(ii) under orders to proceed on field service,

(iii) serving with any unit which is for the time being mobilised, or

(iv) serving under conditions which, in the opinion of the prescribe authority, preclude him from obtaining leave of absence to unable him to attend a Court as a party to any proceeding, or when he is or has been at any other time serving under conditions service under which has been declared by the Government by notification in the official Gazette to be service under war conditions; and

(c) overseas—

(i) When he is or has been serving in any place outside Bangladesh the Journey between which and Bangladesh is ordinarily undertaken wholly or in part by sea or air, or

(ii) [Omitted].

Explanation.— For the purposes of this section and with effect from the 3rd day of September, 1939, a soldier who is or has been a prisoner of war shall be deemed to be or have been serving under war conditions.

NOTE (b) (iv).— Prescribed authority. See Rule 3 of the Soldiers (Litigation) Rules, 1938.

4. Particulars to be furnished in plaints, applications or appeals to Court.— If any person presenting any plaint, application or appeal to any court has reason to believe that any adverse party is a soldier who is serving under special conditions, he shall state the fact in his plaint, application or appeal.

5. Power of Collector to intervene in case of unrepresented soldier.— If any Collector has reason to believe that any soldier, who ordinarily resides or has property in his district and who is a party to any proceeding pending before any Court, is unable to appear therein, the Collector may certify the facts in the prescribed manner to the Court.

NOTE.— Prescribed manner. See Rule 5 of the Soldiers (Litigation) Rules 1938, and Form A of the Schedule annexed thereof.

6. Notice to be given in case of unrepresented soldier.— (1) If a Collector has certified under section 5 or if the Court has reason to believe, that a soldier who is a party to any proceeding pending before it, is unable to appear therein, and if the soldier is not represented by any person duly authorised to appear, plead or act on his behalf, the Court shall suspend the proceeding, and shall give notice in the prescribed manner to the prescribed authority:

Provided that the Court may refrain from suspending the proceeding and issuing the notice if—

(a) the proceeding is a suit, appeal or application instituted or made by the soldier, along or conjointly with others with the object of enforcing a right of pre-emption, or

(b) the interests of the soldier in the proceeding are, in the opinion of the Court, either identical with those of any other party to the proceeding and adequately represented by such other party or merely of a formal nature.

NOTE.— Prescribed manner. See Rule 5 of the Soldiers (Litigation) Rules, 1938, and Form B of the Schedule annexed thereto.
Prescribed authority. See Rule 3 ibid.

(2) If it appears to the Court before which any proceeding is ending that a soldier though not a party to the proceeding is materially concerned in the outcome of the proceeding, and that his interests are likely to be prejudiced by his inability to attend, the Court may suspend the proceeding and shall give notice thereof in the prescribed manner to the prescribed authority.

7. Postponement of proceedings.— If, on receipt of a notice under section 6, the prescribed authority certifies in the prescribed manner to the Court in which the proceeding is pending that the soldier in respect of whom the notice was given is serving under special conditions, and that a postponement of the proceeding in respect of the soldier is necessary in the interests of justice, the Court shall thereupon postpone the proceeding in respect of the soldier for the prescribed period, or, if no period has been prescribed, for such period as it thinks fit.

NOTE.— Prescribed authority. See Rule 3 of the Soldiers (Litigation) Rules, 1938, Prescribed manner. See Rule 5 ibid. and Form C of the Schedule annexed thereto.

Prescribed period. See Rule 7 ibid.,

8. Court may proceed when no certificate received.— If, after issue of a notice under section 6, the prescribed authority either certifies that the soldier is not serving under special conditions or that such postponement is not necessary, or fails to certify, in the case of a soldier resident in the district in which the Court is situate, within two months or, in any other case, within three months from the date of the issue of the notice that such postponement is necessary, the Court may, if it thinks fit, continue the proceeding.

NOTE.— Prescribed authority. See Rule 3 of the Soldiers (Litigation) Rules, 1938.

9. Postponement of proceedings against soldier on leave.— When any document purporting to be signed by the Commanding Officer of a soldier who is a party to any proceeding is produced by or on behalf of the soldier before the Court in which the proceeding is pending and is to the effect that the soldier:—

(a) is on leave of absence for a period not exceeding two months, and is on the expiration of his leave to proceed on service under special conditions, or

(b) is on sick leave for a period not exceeding three months, and is on the expiration of his leave to rejoin his unit with a view to proceeding on service under special conditions,

the proceeding in respect of such soldier may, in any case such as is referred to in the proviso to sub-section (1) of section 6, and shall, in any other case, be postponed in the manner provided in section 7.

10. Power to set aside decrees and orders passed against a soldier serving under war or special conditions.— (1) In any proceeding before a Court in which a decree or order has been passed against any soldier whilst he was serving under any special conditions, the soldier, or, if he is dead, his legal representative may apply to the Court, which passed the decree or order for an order to set aside the same, and, if the Court, after giving an opportunity to the opposite party of being heard, is satisfied that the interests of justice require that the decree or order should be set aside as against the soldier, the Court shall, subject to such conditions, if any, as it thinks fit to impose, make an order accordingly.

(2) The period of limitation for an application under sub-section (1) shall be ninety days from the date of the decree or order, or, where the summons or notice was not duly served on the soldier in the proceeding

in which the decree or order was passed, from the date on which the applicant had knowledge of the decree or order; and the provisions of Section 5 of the Limitation Act. 1908 shall apply to such applications.

(3) When the decree or order in respect of which an application under sub-section (1) is made is of such a nature that it cannot be set aside as against the soldier only, it may be set aside as against all or any of the parties against whom it has been made.

(4) Where a Court sets aside a decree or order under this section, it shall appoint a day for proceeding with the suit, appeal or application, as the case may be.

11. Modification of law limitation where a soldier or his legal representative is a party.— In computing the period of limitation prescribed by sub-section (2) of section 10 of this Act, the Limitation Act, 1908, or any other law for the time being in force, for any suit, appeal or application to a Court, any party to which is or has been a soldier or is the legal representative of a soldier, the period during which the soldier has been serving under any special conditions, and, if the soldier has died while so serving, the period from the date of his death to the date on which official intimation thereof was sent to his next of kin by the authorities in Bangladesh, shall be excluded:

Provided that this section shall not apply in the case of any suit, appeal or application instituted or made with the object of enforcing a right of pre-emption except where the said right accrues in such circumstances, and is in respect of agricultural land and village immovable property situated in any such area, as the Government may, by notification in the official Gazette, specify in this behalf.

12. Power of Court to refer questions to prescribed authorities.— If any Court is in doubt whether, for the purposes of Section 10 or Section 11, a soldier is or was at any particular time serving under special conditions, or has died while so serving, or as to the date of such death or as to the date on which official intimation of such death was sent to his next of kin by the authorities in Bangladesh, the Court may refer the point for the decision of the prescribed authority, and the certificate of that authority shall be conclusive evidence on the point.

13. Rule-making Power.— The Government, after consulting the High Court Division of the Supreme Court, may, by notification in the local official Gazette, make rules to provide for all or any of the following matters, namely:–

(a) the manner and form in which any notice or certificate under this Act shall be given;

(b) the period for which proceedings or any class of proceedings shall be postponed under section 7;

(c) the persons who shall be the prescribed authorities for the purposes of this Act;

(d) any other matter which is to be or may be prescribed; and

(e) generally, any matters incidental to the purposes of this Act,

Note.—The Rule framed by the Government under this section were published in Defence Department Notification No. 455, dated the 14th May 1938.

14. Power to apply the provisions of the Act to other persons in the service of the Government.— (1) As respects the Public Services, or the Government, may, by notification in the Gazette direct that all or any of the provisions of this Act shall apply to any other class of persons in the service of the Government in such notification in the same manner as they apply to soldiers.

(2) Where, under this section, the Government has directed that all or any of the provisions of this Act shall apply to any class of persons in the service of the Government, the powers vested in the Government by Section 3 and Section 13 shall be exercised in respect of that class of persons by the Government.

15. (Section 15 repealed).

The Soldier (Litigation) Rules, 1938

14th March, 1938.

No. 455.— In exercise of the powers conferred by Section 13 of the Soldiers (Litigation) Act, 1925, (IV of 1925), the Government, after consulting the High Courts concerned, is pleased to make the following rules, namely :-

1. (1) These rules may be called the Soldiers (Litigation) Rules, 1938.

(2) They extend to whole of Bangladesh.

2. (1) In these rules, "the Act" means the Soldiers (Litigation) Act, 1925, (IV of 1925).

(2) All words used herein and defined in the Act shall be deemed to have the meanings respectively attributed to them by the Act.

3. The prescribed authority for the purposes of Sub-clause (iv) of clause (b) of Section 3 and Sections 6, 7 and 8 of the Act shall be the Officer Commanding the unit or the Depot of the unit to which the soldier belongs.

4. The certificate given by a Collector under Section 5 of the Act shall be in Form A of the Schedule.

5. The notice given by the court under Section 6 of the Act shall be in Form B of the Schedule and shall be sent to the prescribed authority care of,—

(a) in the case of a person subject to the Army Act, 1952 (XXXIX of 1952), the General Officer Commanding the Division or the Command are of the Line of Communication Area of Sub-Area in which the court is situated, and

(b) in the case of a persons subject to the Air Force Act, 1953 (VI of 1953), the Commander-in-Chief of Bangladesh Air Force.

and the certificate of the prescribed authority under section 7 of the Act, shall be in Form C of the Schedule.

6. If at any time it appears to the prescribed authority that the circumstances in which he certified to the Court under Section 7 of the Act, that a postponement of the proceeding was necessary in the interests of justice, no longer exist, he shall forthwith certify to the Court to that effect in Form D of the Schedule.

7. On receipt of a certificate from the prescribed authority under Section 7 of the Act that a postponement of the proceedings is necessary in the interest of justice, the Court shall postpone the proceedings until the receipt of a certificate in Form D from the prescribed authority, or until the soldier is represented in the proceedings by some person duly authorised to appear, plead or act in his behalf.

8. The prescribed authority for the purposes of Section 12 of the Act shall be,—

(a) in the case of a person subject to the Army Act, 1952 (XXXIX of 1952), the General Officer Commanding the Division or the Commander of the Line of Communication Area of Sub-Area in which the court is situated, and

(b) in the case of a person subject to the Air Froce Act, 1953 (XI of 1953), the Chief of the Air Staff, Bangladesh Air Force.

SCHEDULE

FORM A.

(See rule 4.)

Collector's certificate under section 5 of the Soldiers (Litigation) Act, 1925.

From

The collector,

District_____

_____

To _____

_____

_____

*In re*_____ No._____ of 19_____

_____

versus

_____

No. dated

Sir,

I have the honour to certify under Section 5 of the Soldiers (Litigation) Act, 1925 (IV of 1925), that have reason to I believe that_____ _____ Son of, _____ ordinarily residing who is soldier _____ in my district and who is a party in the above having property mentioned (enter suit, appeal, application or other proceedings), now pending in (enter name of court), is unable to appear therein.

Your obedient servant
Collector,

NOTES.— (1) This certificate should be sent by port in a registered cover or by hand and an acknowledgement should obtained for it.

(2) It should be addressed, in the case of a High Court, to the Registrar of the Court, or in the case of a Board of Revenue to the Secretary of such Board, or in case of a Financial Commissioner, to the clerk of the Court, or in other cases to the Presiding Officer of the Court.

FORM B.

(See rule 5.)

Notice under section 6 of the Soldiers (Litigation) Act, 1925.

In the_____

No. _____ of _____

_____

versus

_____

To

The officer Commanding (enter name of _____unit_____).
depot of unit

Care of the General Officer Commanding-in-Chief.

Command.

Please take notice that [upon the certificate of the Collector of _____ _____under section 5 of the Soldiers (Litigation) Act 1925 (IV of 1925) (having had reason to believe)]* that_____ son of _____, a soldier, who is a party in the above-mentioned proceeding now pending in this Court and is not represented by any person duly authorised to appear, plead or act, on his behalf, is unable to appear therein, this Court has, under section 6 of the said Act/suspended the proceeding. If, within the period prescribed in section 8 of the said Act, no certificate is received from you under section 7 thereof, the Court will, if it thinks fit, continue the proceeding.

Given under my hand and the seal of the Court, this the _____day _____ 20____.

Presiding officer of the Court.

_____

Registrar.

NOTE.— This notice should be sent by post in a registered cover, or by hand, and an acknowledgement should be obtained for it.

-- ---------- ---------- ---------- ---------- ---------- ----------
-

*One of two portions within the square brackets should, according to the circumstances of each case, be penned through.

FORM C.

(See rule 5.)

Certificate under section 7 of the Soldiers (Litigation) Act, 1925.

From
The Officer Commanding
unit
(enter name of_____)
depot of unit.

To
_____
_____
_____ No. _____ of 20_____.

_____
versus
_____

No. dated.

Sir,

I have the honour to acknowledge receipt of your notice, dated_____ _____, under Section 6 of the Soldiers (Litigation) Act, 1925 (IV of 1925), in the above-mentioned proceeding, and to certify under Section 7 of the said Act that_____ _____ son of_____ _____in respect of whom the above-mentioned notice has been given, is serving under special conditions and that a postponement of the proceeding in respect of that soldier is necessary in the interests of justice.

Your obedient servant,
Officer Commanding.

NOTES.— (1) This certificate should be sent by post in a registered cover, or by hand and an acknowledgement should be obtained for it.

(2) It should be addressed in the case of a High Court, Supreme Court division to the Registrar of the Court, or in the case of a Board of Land

Administration, to the Secretary of such Board, or in other cases, to the Presiding Officer of the Court.

FORM D.

(See rule 6.)

Certificate under rule 6 of the Soldiers (Litigation) Rules, 1925.

From

_____

_____

_____

To

_____

_____

In re_____No._____ of 20_,

_____

versus

_____

No. dated.

Sir,

I have the honour to invite a reference to my letter No._____, dated _____,and to certify under Rule 6 of the Soldiers (Litigation) Rules, 1938, that circumstances no longer exist for the postponement of the above-mentioned (enter suit, appeal, application or other proceeding), now pending in (enter name of court), wherein _____ _____son of _____, soldier, is a party.

Your obedient servant,

Officer Commanding

NOTES.—(1) This certificate should be sent by post in a registered cover, or by hand and an acknowledgement should be obtained for it.

(2) It should be addressed, in the case of a High Court, Supreme Court Division, to the Registrar of the Court, or in the case of a Board of Land Administration, to the Secretary of such Board, Court, or in other cases, to the Presiding Officer of the Court.

THE PENAL CODE

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ACT No. XLV OF 1860

CHAPTER I

INTRODUCTION

Preamble.— WHEREAS it is expedient to provide a general Penal Code for Bangladesh; It is enacted as follows :-

1. Title and extent of operation of the Code.— This Act shall be called the Penal Code, and shall take effect throughout Bangladesh.

2. Punishment of offences committed within Bangladesh.— Every person shall be liable to punishment under this Code and not otherwise for every act or omission contrary to the provisions thereof, of which he shall be guilty within Bangladesh.

3. Punishment of offences committed beyond, but which by law may be tried within, Bangladesh.— Any person liable, by any Bangladesh Law, to be tried for an offence committed beyond Bangladesh shall be dealt with according to the provisions of this Code for any act committed beyond Bangladesh in the same manner as if such act had been committed within Bangladesh.

4. Extension of Code to extra territorial offences.— The provisions of this Code apply also to any offence committed by—

(1) any citizen of Bangladesh in any place without and beyond Bangladesh;

(2) [Omitted]

(3) [Omitted]

(4) any person on any ship or aircraft registered in Bangladesh whatever it may be.

Explanation.— In this section the word "offence" includes every act committed outside Bangladesh which, if committed in Bangladesh, would be punishable under this Code.

Illustrations

(a) A, a Bangladesh subject, commits a murder in Uganda. He can be tried and convicted of murder in any place in Bangladesh in which he may be found.

(b) B, a European British Subject, commits a murder in Rangpur. He can be tried and convicted of murder in any place in Bangladesh in which he may be found.

(c) C, a foreigner who is in the service of the Bangladesh Government, commits a murder in Khulna. He can be tried and convicted of murder at any place in Bangladesh in which he may be found.

(d) D, a British subject living in Khulna, instigates E to commit a murder in Chittagong. D is guilty of abetting murder.

5. Certain laws not to be affected by this Act.— Nothing in this Act is intended to repeal, vary, suspend, or affect any of the provisions of any Act for punishing muting and desertion of officers, soldiers, sailors or airmen in the service of the Republic, or of any special or local law.

CHAPTER II

GENERAL EXPLANATIONS

6. Definitions in the Code to be understood subject to exceptions.— Throughout this Code every definition of an offence, every penal provision and every illustration of every such definition or penal provision, shall be understood subject to the exceptions contained in the chapter entitled "General Exceptions," though those exceptions are not repeated in such definition, penal provision or illustration.

Illustrations

(a) The sections in this Code, which contain definitions of offences, do not express that a child under seven years of age cannot commit such offences; but the definitions are to be understood subject to the general exception which provides that nothing shall be an offence which is done by a child under seven years of age.

(b) A, a police officer, without warrant, apprehends Z who has committed murder. Here A is not guilty of the offence of wrongful confinement; for he was bound by law to apprehend Z, and therefore, the case falls within the general exception which provides that "nothing is an offence which is done by a person who is bound by law to do it."

7. Sense of expression once explained.— Every expression which is explained in any part of this Code, is used in every part of this Code in conformity with the explanation.

8. Gender.— The pronoun "he" and its derivatives are used of any person, whether male or female.

9. Number.— Unless the contrary appears from the context, words importing the singular number include the plural number, and words importing the plural number include the singular number.

10. "Man", "Woman".— The word "man" denotes a male human being of any age; the word "woman" denotes a female human being of any age.

11. "Persons".— The word "person" includes any Company or Association, or body of persons, whether incorporated or not.

12. "Public"— The word "Public" includes any class of the public or any community.

13. *[Definition of "Queen."] Omitted.* by A. O., 1961, Art. 2 and sch. *(with effect from the 23rd March, 1956).*

14. "Servant of the State".— The word "servant of the state" denote all officers or servant, continued, appointed or employed in Bangladesh by or under the authority of the Government.

15. *[Definition of "British India"] Repealed by A. O. 1937.*

16. *[Definition of "Government of India"] Repealed by A. O. 1937.*

17. "**Government".—** The word "Government" denotes the person or persons authorized by law to administer executive Government in Bangladesh, or in any part thereof.

18. *[Definition of "Presidency"] Repealed by A.O. 1937.*

19. "Judge".— The word "Judge" denotes not only every person who is officially designated as a Judge, but also every person,—

Who is empowered by law to give, in any legal proceeding civil or criminal, a definitive judgement, or a judgement which, if not appealed against, would be definitive, or a judgement which, if confirmed by some other authority, would be definitive, or

who is one of a body of persons, which body of persons is empowered by law to give such a judgement.

Illustrations

(a) A collector exercising jurisdiction in a suit under Act X of 1859, is a Judge.

(b) A Magistrate exercising jurisdiction in respect of a charge on which he has power to sentence to fine or imprisonment with or without appeal, is a Judge.

(c) (Omitted)

(*d)* A Magistrate exercising jurisdiction in respect of a charge on which he has power only to commit for trial to another Court, is not a Judge.

20. "Court of Justice".— The words "Court of Justice" denote a Judge who is empowered by law to act judicially alone, or a body of

Judges which is empowered by law to act judicially as a body, when such Judge or body of Judges is acting judicially.

21. "Public servant".— The words "public servant" denote a person falling under any of the descriptions hereinafter following, namely :—

First— (Omitted)

Second.— Every Commissioned Officer in the Military, Naval or Air Forces of Bangladesh ;

Third.— Every Judge including any person empowered by any law to perform, whether by himself or as a member of any body of persons, any adjudictory function;

Fourth.— Every Officer of a Court of Justice whose duty it is, as such officer, to investigate or report on any matter of law or fact, or to make, authenticate, or keep any document, or to take charge or dispose of any property, or to execute any judicial process, or to administer any oath, or to interpret, or to preserve order in the Court; and every person specially authorised by a Court of Justice to perform any of such duties;

Fifth.— Every juryman, assessor, or member of a *panchayat* assisting a Court of Justice or public servant;

Sixth.— Every arbitrator or other person to whom any cause or matter has been referred for decision or report by any Court of Justice, or by any other competent public authority;

Seventh.— Every person who holds any office by virtue of which he is empowered to place or keep any person in confinement;

Eighth.— Every officer of the Government whose duty it is, as such officer, to prevent offences, to give information of offences, to bring offenders to justice, or to protect the public health, safety or convenience;

Ninth.— Every officer whose duty it is, as such officer to take, receive, keep or expend any property on behalf of the Government, or to make any survey, assessment or contract on behalf of the Government, or to execute any revenue–process, or to investigate, or to report, on any matter affecting the pecuniary interests of the Government, or to make, authenticate or keep any document relating to the pecuniary interests of the Government, or to prevent the infraction of any law for the protection of the pecuniary interests of the Government.

Tenth.— Every officer whose duty it is, as such officer, to take, receive, keep or expend any property, to make any survey or assessment or to levy any rate or tax for any secular common purpose of any village, town or district, or to make, authenticate or keep any document for the ascertaining of the rights of the people of any village, town or district;

Eleventh.— Every person who holds any office in virtue of which he is empowered to prepare, publish, maintain or revise an electoral roll or to conduct an election or part of an election;

Illustration

A Municipal Commissioner is a public servant.

Twelfth.— Every person —

(a) in the service or Pay of the Government or remunerated by the Government by fees or commission for the performance of any public duty;

(b) in the service or pay of a local authority or of a corporation, body or authority established by or under any law or of a firm or company in which any part of the interest or share capital is held by, or vested in, the government.

Explanation 1.— Persons falling under any of the above descriptions are public servants, whether appointed by the Government or not.

Explanation 2.— Wherever the words "public servant" occur, they shall be understood of every person who is in actual possession of the situation of a public servant, whatever legal defect there may be in his right to hold that situation.

Explanation 3.— The word "election" denotes an election for the purpose of selecting members of any legislative, municipal or other public authority, of whatever character, the method of selection to which is by, or under any law prescribed as by election.

22. "Moveable property".— The words "Moveable property" are intended to include corporeal property of every description, except land and thing attached to the earth or permanently fastened to anything which is attached to the earth.

23. "Wrongful gain".— "Wrongful gain" is gain by unlawful means of property to which the person gaining is not legally entitled.

"Wrongful loss".— "Wrongful loss" is the loss by unlawful means of property to which the person losing it is legally entitled.

Gaining wrongfully. Losing wrongfully.— A person is said to gain wrongfully when such person retains wrongfully, as well as when such person acquires wrongfully, A person is said to loss wrongfully when such person is wrongfully kept out of any property, as well as when such person is wrongfully deprived of property.

24. "Dishonestly".— Whoever does anything with the intention of causing wrongful gain to one person or wrongful loss to another person, is said to do that thing "dishonestly".

25. "Fraudulently".— A person is said to do a thing fraudulently if he does that thing with intent to defraud but not otherwise.

26. "Reason to believe".— A person is said to have "reason to believe" a thing if he has sufficient cause to believe that thing but not otherwise.

27. Property in possession of wife, clerk or servant.— When property is in the possession of a person's wife, clerk or servant, on account of that person, it is in that person's possession within the meaning of this Code.

Explanation.— A person employed temporarily or on a particular occasion in the capacity of a clerk or servant, is a clerk or servant within the meaning of this section.

28. "Counterfeit".— A person is said to "counterfeit" who causes one thing to resemble another thing intending by means of that resemblance to practise deception, or knowing it to be likely that deception will thereby be practised.

Explanation 1.— It is not essential to counterfeiting that the imitation should be exact.

Explanation 2.— When a person causes one thing to resemble another thing, and the resemblance is such that a person might be deceived thereby, it shall be presumed, until the contrary is proved, that the person so causing the one thing to resemble the other thing intended by means of that resemblance to practise deception or knew it to be likely that deception would thereby be practised.

29. "Document".— The word "document" denotes any matter expressed or described upon any substance by means of letters, figures or marks, or by more than one of those means, intended to be used, or which may be used, as evidence of that matter.

Explanation 1.— It is immaterial by what means or upon what substance the letters, figures or marks are formed, or whether the evidence is intended for, or may be used in, a Court of Justice, or not.

Illustrations

A writing expressing the terms of a contract which may be used as evidence of the contract, is a document.

A cheque upon a banker is a document.

A Power–of–Attorney is a document.

A map or plan which is intended to be used or which may be used as evidence, is a document.

A writing containing directions or instructions is a document.

Explanation 2.— Whatever is expressed by means of letters, figures or marks as explained by mercantile or other usage, shall be deemed to be expressed by such letters, figures, or marks within the meaning of this section, although the same may not be actually expressed.

Illustration

A writes his name on the back of a bill of exchange payable to his order. The meaning of the endorsement, as explained by mercantile usage, is that the bill is to be paid to the holder. The endorsement is a document, and must be construed in the same manner as if the words "pay to the holder" or words to that effect had been written over the signature.

30. "Valuable security".— The words "valuable security" denote a document which is, or purports to be, a document whereby any legal right is created, extended, transferred, restricted, extinguished or released, or whereby any person acknowledges that he lies under legal liability, or has not a certain legal right.

Illustration

A writes his name on the back of a bill of exchange. As the effect of this endorsement is to transfer the right to the bill to any person who may become the lawful holder of it, the endorsement is a "valuable security".

31. "A will."— The words "a will" denote any testamentary document.

32. Words referring to acts include illegal omissions.— In every part of this Code, except where a contrary intention appears from the context, words which refer to acts done extend also to illegal omissions.

33. "Act." "Omission."— The word "act" denotes as well a series of acts as a single act: the word "omission" denotes as well a series of omissions as a single omission.

34. Acts done by several persons in furtherance of common intention.— When a criminal act is done by several persons, in furtherance of the common intention of all, each of such persons is liable for that act in the same manner as if it were done by him alone.

35. When such an Act is criminal by reason of its being done with a criminal knowledge or intention.— Whenever an act, which is criminal only by reason of its being done with a criminal knowledge or intention, is done by several persons, each of such persons who joins in the act with such knowledge or intention is liable for the act in the same manner as if the act were done by him alone with that knowledge or intention.

36. Effect caused partly by act and partly by omissions.— Wherever the causing of a certain effect, or an attempt to cause that effect, by an act or by an omission, is an offence, it is to be understood that the causing of that effect partly by an act and partly by an omission is the same offence.

Illustration

A intentionally causes Z's death, partly by illegally omitting to give Z food, and partly by beating Z. A has committed murder.

37. Co-operation by doing one of several acts constituting an offence.— When an offence is committed by means of several acts,

whoever intentionally co-operates in the commission of that offence by doing any one of those acts, either singly or jointly with any other person, commits that offence.

Illustrations

(a) A and B agree to murder Z by severally and at different times giving him small doses of poison. A and B administer the poison according to the agreement with intent to murder Z. Z dies from the effect of several doses of poison so administered to him. Here A and B intentionally co-operate in the commission of murder and as each of them does an act by which the death is caused, they are both guilty of the offence though their acts are separate.

(b) A and B are joint jailors, and as such, have the charge of Z, a prisoner, alternately for six hours at a time. A and B, intending to cause Z's death, knowingly co-operate in causing that effect by illegally omitting, each during the time of his attendance, to furnish Z with food supplied to them for that purpose. Z dies of hunger. Both A and B are guilty of the murder of Z.

(c) A, a jailor, has the charge of Z, a prisoner. A intending to cause Z's death, illegally omits to supply Z with food; in consequence of which Z is much reduced in strength. But the starvation is not sufficient to cause his death. A is dismissed from his office, and B succeeds him. B without collusion or co-operation with A, illegally omits to supply Z with food knowing that he is likely thereby to cause Z's death. Z dies of hunger B is guilty of murder, but, as A did not co-operate with B, A is guilty only of an attempt to commit murder.

38. Persons concerned in criminal act may be guilty of different offences.— Where several persons are engaged or concerned in the commission of a criminal act, they may be guilty of different offences by means of that act.

Illustration

A attacks Z under such circumstances of grave provocation that his killing of Z would be only culpable homicide not amounting to murder. B having ill–will towards Z an intending to kill him, and not having been subject to the provocation, assists A in killing Z. Here, though A and B are both engaged in causing Z's death, B is guilty of murder, and A is guilty only of culpable homicide.

39. "Voluntarily".— A person is said to cause an effect "voluntarily" when he causes it by means whereby he intended to cause

it, or by means which, at the time of employing those means, he knew or had reason to believe to be likely to cause it.

Illustration

A sets fire, by night, to an inhabited house in a large town, for the purpose of facilitating robbery and thus causes the death of a person. Here, A may not have intended to cause death, and may even be sorry that death has been caused by his act; yet, if he knew that he was likely to cause death, he has caused death voluntarily.

40. "Offence".— Except in the chapters and sections mentioned in clauses 2 and 3 of this section, the word "offence" denotes a thing made punishable by this Code.

In Chapter IV, Chapter VA and in the following sections, namely, Sections 64, 65, 66, 67, 71, 109, 110, 112, 114, 115, 116, 117, 187, 194, 195, 203, 211, 213, 214, 221, 222, 223, 224, 225, 327, 328, 329, 330, 331, 347, 348, 388, 389, and 445, the word "offence" denotes a thing punishable under this Code, or under any special or local law as hereinafter defined.

And in sections 141, 176, 177, 201, 202, 212, 216 and 441, the word "offence" has the same meaning when the thing punishable under the special or local law is punishable under such law with imprisonment for a term of six months or upwards, whether with or without fine.

41. "Special law".— A "special law" is a law applicable to a particular subject.

42. "Local law".— A "local law" is a law applicable only to a particular part of the territories comprised in Bangladesh.

43. "Illegal." "Legally bound to do."— The word "illegal" is applicable to everything which is an offence or which is prohibited by law, or which furnishes ground for a civil action: and a person is said to be "legally bound to do" whatever it is illegal in him to omit.

44. "Injury."— The word "injury" denotes any harm whatever illegally caused to any person, in body, mind, reputation or property.

45. "Life."— The word "life" denotes the life of a human being, unless the contrary appears from the context.

46. "Death."— The word "death" denotes the death of a human being, unless the contrary appears from the context.

47. "Animal."— The word "animal" denotes any living creature, other than a human being.

48. "Vessel."— The word "vessel" denotes anything made for the conveyance by water of human beings or of property.

49. "Year." "Month."— Wherever the word "year" or the word "month" is used, it is to be understood that the year or the month is to be reckoned according to the British calendar.

50. "Section."— The word "section" denotes one of those portions of a chapter of this Code which are distinguished by prefixed numeral figures.

51. "Oath."— The word "oath" includes a solemn affirmation substituted by law for an oath, and any declaration required or authorised by law to be made before a public servant or to be used for the purpose of proof, whether in a Court of Justice or not.

52. "Good faith."— Nothing is said to be done or believed in "good faith" which is done or believed without due care and attention.

52A. "Harbour."— Except in Section 157, and in Section 130 in the case in which the harbour is given by the wife or husband of the person harboured, the word "harbour" includes the supplying a person with shelter, food, drink, money, clothes, arms, ammunition or means of conveyance, or the assisting a person by any means, whether of the same kind as those enumerated in this section or not, to evade apprehension.

CHAPTER III

OF PUNISHMENTS

53. "Punishments."— The punishments to which offenders are liable under the provisions of this Code are,—

First.— Death;

Secondly.—Imprisonment for life;

Thirdly.—

Fourthly.—Imprisonment, which is of two descriptions, namely:—

(1) Rigorous, that is, with hard labour;
(2) Simple;

Fifthly.— Forfeiture of property;

Sixthly,— Fine.

53A. Construction of reference to transportation.— (1) Subject to the provisions of sub-sections (2), any reference to "transportation for life" in any other law for the time being in force shall be construed as a reference to "imprisonment for life".

(2) Any reference to transportation for a term of to transportation for a shorter term (by whatever name called) in any other law for the time being in force shall be deemed to have *omitted*.

(3) Any reference to " transportation" in any other law for the time being in force shall–

(a) if the expression means transportation for life, be construed as a reference to imprisonment for life;

(b) if the expression means transportation for any shorter term, be deemed to have been *omitted*.

54. Commutation of sentence of death.— In every case in which sentence of death shall have been passed, the Government may, without the consent of the offender, commute the punishment for any other punishment provided by this Code.

55. Commutation of sentence of imprisonment for life.— In every case in which sentence of imprisonment for life shall have been passed, the Government may, without the consent of the offender, commute the punishment of imprisonment of either description for a term not exceeding twenty years.

55A. Saving for president prerogative.— Nothing in section fifty-four or section fifty-five shall derogate from the right of the President to grant pardons, reprieves, respites or remissions of punishment.

56. [*Sentence of Europeans and Americans to penal servitude.] Rep. by the Criminal Law (Extinction of Discriminatory privileges) Act, 1949 (II of 1950), Schedule.*

57. Fractions of terms of punishment.— In calculating fractions of terms of punishment, imprisonment for life shall be reckoned as equivalent to rigorous imprisonment for thirty of years.

58. [Omitted].

59. [Omitted].

60. Sentence may be (in certain cases of imprisonment) wholly or partly rigorous or simple.— In every case in which an offender is punishable with imprisonment which may be of either description, it shall be competent to the Court which sentences such offender to direct in the sentence that such imprisonment shall be wholly rigorous, or that such imprisonment shall be wholly simple, or that any part of such imprisonment shall be rigorous and the rest simple.

61. [*Sentence of forfeiture of property.] Rep. by the Indian Penal Code (Amendment) Act, 1921 (XVI of 1921), s. 4.*

62. [*Forfeiture of property, in respect of offenders punishable with death, transportation or imprisonment.] Rep. by the Indian Penal Code (Amendment) Act, (XVI of 1921), s. 4.*

63. Amount of fine.— Where no sum is expressed to which a fine may extend, the amount of fine to which the offender is liable is unlimited, but shall not be excessive.

64. Sentence of imprisonment for non-payment of fine.— In every case of an offence punishable with imprisonment as well as fine, in which the offender is sentenced to a fine, whether with or without imprisonment,

and in every case of an offence punishable with imprisonment or fine, or with fine only, in which the offender is sentenced to a fine,

it shall be competent to the Court which sentences such offender to direct by the sentence that, in default of payment of the fine, the offender shall suffer imprisonment for a certain term, which imprisonment shall be in excess of any other imprisonment to which he may have been sentenced or to which he may be liable under a commutation of a sentence.

65. Limit to imprisonment for non-payment of fine, when imprisonment and fine awardable.— The term for which the Court directs the offender to be imprisoned in default of payment of a fine shall not exceed one-fourth of the term of imprisonment which is the maximum fixed for the offence, if the offence be punishable with imprisonment as well as fine.

66. Description of imprisonment for non-payment of fine.— The imprisonment which the Court imposes in default of payment of a fine may be of any description to which the offender might have been sentenced for the offence.

67. Imprisonment for non-payment of fine, when offence punishable with fine only.— If the offence be punishable with fine only, the imprisonment which the Court imposes in default of payment of the fine shall be simple, and the term for which the Court directs the offender to be imprisoned, in default of payment of fine, shall not exceed the following scale, that is to say, for any term not exceeding two months when the amount of the fine shall not exceed fifty taka, and for any term not exceeding four months when the amount shall not exceed one hundred taka, and for any term not exceeding six months in any other case.

68. Imprisonment to terminate on payment of fine.— The imprisonment which is imposed in default of payment of a fine shall terminate whenever that fine is either paid or levied by process of law.

69. Termination of imprisonment on payment of proportional part of fine.— If, before the expiration of the term of imprisonment fixed in default of payment, such a proportion of the fine be paid or levied that the term of imprisonment suffered in default of payment is not less than proportional to the part of the fine still unpaid, the imprisonment shall terminate.

Illustration

A is sentenced to a fine of one hundred taka and to four months' imprisonment in default of payment. Here, if seventy-five taka of the fine be paid or levied before the expiration of one month of the imprisonment, A will be discharged as soon as the first month has expired. If seventy-five taka be paid or levied at the time of the expiration of the first month, or at any later time while A continues in imprisonment, A will be immediately discharged. If fifty taka of the fine be paid or levied before the expiration of two months of the imprisonment's. A will be discharged as soon as the two months are completed. If fifty taka be paid or levied at the time of the expiration of those two months, or at any later time while A continues in imprisonment, A will be immediately discharged.

70. Fine liveable within six years, or during imprisonment. Death not to discharge Property from liability.— The fine, or any part thereof which remains unpaid may be levied at any time within six years after the passing of the sentence, and if, under the sentence, the offender be liable to imprisonment for a longer period than six years then at any time previous to the expiration of that period:, and the death of the offender does not discharge from the liability any property which would, after his death, be legally liable for his debts.

71. Limit of punishment of offence made up of Several offences.— Where anything which is an offence is made up of parts, any of which parts is itself an offence, the offender shall not be punished with the punishment of more than one of such his offences, unless it be so expressly provided.

Where anything is an offence falling within two or more separate definitions of any law in force for the time being by which offences are defined or published, or

Where several acts, of which one or more than one would by itself or themselves constitute an offence, constitute, when combined, a different offence.

the offender shall not be punished with a more severe punishment than the Court which tries him could award for any one of such offences.

Illustrations

(a) A gives Z fifty strokes with a stick. Here A may have committed the offence of voluntarily causing hurt to Z by the whole beating, and also

by each of the blows which make up the whole beating. If A were liable to punishment for every blow, he might be imprisoned for fifty years, one for each blow. But he is liable only to one punishment for the whole beating.

(b) But if, while A is beating Z, Y interferes, and A intentionally strikes Y, here, as the blow given to Y, is no part of the act whereby A voluntarily causes hurt to Z, A is liable to one punishment for voluntarily causing hurt to Z, and to another for the blow given to Y.

72. Punishment of person guilty of one of several offences, the judgement stating that it is doubtful of which.— In all cases in which judgement is given that a person is guilty of one of several offences specified in the judgement, but that it is doubtful of which of these offences he is guilty, the offender shall be punished for the offence for which the lowest punishment is provided if the same punishment is not provided for all.

73. Solitary confinement.— Whenever any person is convicted of an offence for which under this Code the Court has power to sentence him to rigorous imprisonment, the Court may, by its sentence, order that the offender shall be kept in solitary confinement for any portion or portions of the imprisonment to which he is sentenced, not exceeding three months in the whole, according to the following scale, that is to say—

a time not exceeding one month if the term of imprisonment shall not exceed six months:

a time not exceeding two months if the term of imprisonment shall exceed six months and shall not exceed one year:

a time not exceeding three months if term of imprisonment shall exceed one year.

74. Limit of solitary confinement.— In executing a sentence of solitary confinement, such confinement shall in no case exceed fourteen days at a time, with intervals between the periods of solitary confinement of not less duration than such periods, and when the imprisonment awarded shall exceed three months, the solitary confinement shall not exceed seven days in any one month of the whole imprisonment awarded, with intervals between the periods of solitary confinement of not less duration than such periods.

75. Enhanced punishment for certain offences under Chapter XII or Chapter XVII after previous conviction.— Whoever, having been convicted—

(a) by a Court in Bangladesh or an offence punishable under Chapter XII or Chapter XVII of this Code with imprisonment of either description for a term of three years or upwards,

shall be guilty of any offence punishable under either of those Chapters with like imprisonment for the like term, shall be subject for every such subsequent offence to imprisonment for life, or to imprisonment of either description for a term which may extend to ten years.

CHAPTER IV

GENERAL EXCEPTIONS

76. Act done by a person bound, or by mistake of fact believing himself bound, by law.— Nothing is an offence which is done by a person who is, or who by reason of a mistake of fact and not by reason of a mistake of law in good faith believes himself to be, bound by law to do it.

Illustrations

(a) A, a soldier, fires on a mob by the order of his superior officer, in conformity with the commands of the law. A has committed no offence.

(b) A, an officer of a Court of justice, being ordered by the Court to arrest Y, and, after due enquiry, believing Z to be Y, arrests Z. A has committed no offence.

77. Act of Judge when acting judicially.— Nothing is an offence which is done by a Judge when acting judicially in the exercise of any power which is, or which in good faith he believes to be, given to him by law.

78. Act done pursuant to the judgement or order of Court.— Nothing which is done in pursuance of, or which is warranted by the Judgement or order of, a Court of Justice, if done whilst such judgement or order remains in force, is an offence, notwithstanding the Court may have had no jurisdiction to pass such judgement or order, provided the person doing the act in good faith believes that the Court had such jurisdiction.

79. Act done by a person justified, or by mistake of fact believing himself justified, by law.— Nothing is an offence which is done by any person who is justified by law, or who by reason of a mistake of fact and not by reason of a mistake of law in good faith, believes himself to be justified by law, in doing it.

Illustration

A sees Z commit what appears to A to be a murder. A, in the exercise, to the best of his judgement, exerted in good faith of the power which the law gives to all persons of apprehending murderers in the act, seizes Z, in order to bring Z before the proper authorities. A has committed no offence, though it may turn out that Z was acting in self-defence.

80. Accident in doing a lawful act.— Nothing is an offence which is done by accident or misfortune, and without any criminal intention or knowledge in the doing of a lawful act in a lawful manner by lawful means and with proper care and caution.

Illustration

A is at work with a hatchet; the head flies off and kills a man who is standing by. Here if there was no want of proper caution on the part of A, his act is excusable and not an offence.

81. Act likely to cause harm, but done without criminal intent, and to prevent other harm.— Nothing is an offence merely by reason of its being done with the knowledge that it is likely to cause harm, if it be done without any criminal intention to cause harm, and in good faith for the purpose of preventing or avoiding other harm to person or property.

Explanation.— It is a question of fact in such a case whether the harm to be prevented or avoided was of such a nature and so imminent as to justify or excuse the risk of doing the act with the knowledge that it was likely to cause harm.

Illustration

(a) A, the captain of a steam vessel, suddenly and without any fault or negligence on his part, finds himself in such a position that, before he can stop his vessel, he must inevitably run down a boat B, with twenty or thirty passengers on board, unless he changes he course of his vessel, and that, by changing his course, he must incur risk of running down a boat C with only two passengers on board, which he may possibly clear. Here, if A alters his course without any intention to run down the boat C and in good faith for the purpose of avoiding the danger to the passengers in the boat B, he is not guilty of an offence, though he may run down the boat C by doing an act which he knew was likely to cause that effect, if it be found as a matter of fact that the danger which he intended to avoid was such as to excuse him incurring the risk of running down C.

(b) A, in a great fire, pulls down houses in order to prevent the conflagration from spreading. He does this with the intention in good faith of saving human life, or property. Here, if it be found that the harm to be prevented was of such a nature and so imminent as to excuse A's act, A is not guilty of the offence.

82. Act of a child under nine years of age.— Nothing is an offence which is done by a child under nine years of age.

83. Act of a child above nine and under twelve of immature understanding.— Nothing is an offence which is done by a child above nine years of age and under twelve, who has not attained sufficient maturity of understanding to judge of the nature and consequences of his conduct on that occasion.

84. Act of a person of unsound mind.— Nothing is an offence which is done by a person who, at the time of doing it, by reason of unsoundness of mind, is incapable of knowing the nature of the act, or that he is doing what is either wrong or contrary to law.

85. Act of a person incapable of judgement by reason of intoxication caused against his will.— Nothing is an offence which is done by a person who, at the time of doing it, is, by reason of intoxication, incapable of knowing the nature of the act, or that he is doing what is either wrong, or contrary to law: Provided that the thing which intoxicated him was administered to him without his knowledge or against his will.

86. Offence requiring a particular intent or knowledge committed by one who is intoxicated.— In cases where an act done is not an offence unless done with a particular knowledge or intent, a person who does the act in a state of intoxication shall be liable to be dealt with as if he had the same knowledge as he would have had if he had not been intoxicated, unless the thing which intoxicated him was administered to him without his knowledge or against his will.

87. Act not intended and not known to be likely to cause death or grievous hurt, done by consent.— Nothing which is not intended to cause death, or grievous hurt, and which is not known by the doer to be likely to cause death, or grievous hurt, is an offence by reason of any harm which it may cause, or be intended by the doer to cause, to any person, above eighteen years of age, who has given consent, whether express or implied, to suffer that harm; or by reason of any harm which it may be known by the doer to be likely to cause to any such person who has consented to take the risk of that harm.

Illustration

A and Z agree to fence with each other for amusement. This agreement implies the consent of each to suffer any harm which in the

course of such fencing, may be caused without foul play; and if A while playing fairly, hurts Z, A commits no offence.

88. Act not intended to cause death done by consent in good faith for person's benefit.— Nothing, which is not intended to cause death, is an offence by reason of any harm which it may cause, or be intended by the doer to cause, or be known by the doer to be likely to cause, to any person for whose benefit it is done in good faith, and who has given a consent, whether express or implied, to suffer harm, that or to take the risk of that harm.

Illustration

A, a surgeon, knowing that a particular operation is likely to cause the death of Z who suffers under the painful complaint, but not intending to cause Z's death, and intending, in good faith Z's benefit, performs that operation on Z, with Z's consent. A has committed no offence.

89. Act done in good faith for benefit of child or insane person, by or by consent of guardian.— Nothing which is done in good faith for the benefit of a person under twelve years of age, or of unsound mind, by or by consent, either express or implied, of the guardian or other person having lawful charge of that person, is an offence by reason of any harm which it may cause, or be intended by the doer to cause or be known by the doer to be likely to cause to that person :

Provide—

First.— ***Provisos.—*** That this exception shall not extend to the intentional causing of death, or to the attempting to cause death;

Secondly.— That this exception shall not extend to the doing of anything which the person doing it knows to be likely to cause death, for any purpose other than the preventing of death or grievous hurt; or the curing of any grievous disease or infirmity;

Thirdly.— That this exception shall not extend to the voluntary causing of grievous hurt, or to the attempting to cause grievous hurt, unless it be for the purpose of preventing death or grievous hurt, or the curing of any grievous disease or infirmity;

Fourthly.— That this exception shall not extend to the abutment of any offence, to the committing of which offence it would not extend.

Illustration

A, in good faith, for his child's benefit without his child's consent, has his child cut for the stone by a surgeon, knowing it to be likely that the operation will cause the child's death, but not intending to cause the child's death. A is within the exception, inasmuch as his object was the cure of the child.

90. Consent known to be given under fear or misconception.— A consent is not such a consent as is intended by any section of this Code, if the consent is given by a person under fear of injury, or under a misconception of fact, and if the person doing the act knows, or has reason to believe, that the consent was given in consequence of such fear or misconception; or

Consent of insane person.— If the consent is given by a person who, from unsoundness of mind or intoxication, is unable to understand the nature and consequence of that to which he gives his consent; or

Consent of child.— Unless the contrary appears from the context, if the consent is given by a person who is under twelve years of age.

91. Exclusion of acts which are offence independently of harm caused.— The exceptions in Sections 87, 88 and 89 do not extend to acts which are offences independently of any harm which they may cause, or be intended to cause, or be known to be likely to cause, to the person giving the consent, or on whose behalf the consent is given.

Illustration

Causing miscarriage (unless caused in good faith for the purpose of saving the life of the woman) is an offence independently of any harm which it may cause or be intended to cause to the woman. Therefore, it is not an offence "by reason of such harm"; and the consent of the woman or of her guardian to the causing of such miscarriage does not justify the act.

92. Act done in good faith for benefit of a person without consent.— Nothing is an offence by reason of any harm which it may cause to a person for whose benefit it is done in good faith, even without that person's consent, if the circumstances are such that it is impossible for that person to signify consent, or if that person is incapable of giving consent, and has no guardian or other person in lawful charge of him from whom it is possible to obtain consent in time for the thing to be done with benefit; Provided—

First.— That this exception shall not extend to the intentional causing of death, or the attempting to cause death;

Secondly.— That this exception shall not extend to the doing of anything which the person doing it knows to be likely to cause death, for any purpose other than the preventing of death or grievous hurt, or the curing of any grievous disease or infirmity;

Thirdly.— That this exception shall not extend to the voluntary causing of hurt, or to the attempting to cause hurt, for any purpose other than the preventing of death or hurt;

Fourthly.— That this exception shall not extend to the abetment of any offence, to the committing of which offence it would not extend.

Illustration

(a) Z is thrown from his horse, and insensible. A, a surgeon, finds that Z requires to be trepanned. A not intending Z's death but in good faith for Z's benefit, performs the trepan before Z recovers his power of judging for himself. A has committed no offence.

(b) Z is carried off by a tiger. A fires at the tiger knowing it to be likely that the shot may kill Z, but not intending to kill Z, and in good faith intending Z's benefit. A's ball gives Z a mortal wound. A has committed no offence.

(c) A, a surgeon, sees a child suffer an accident which is likely to prove fatal unless an operation be immediately performed. There is no time to apply to the child's guardian. A performs the operation in spite of the entreaties of the child, intending in good faith, the child's benefit. A has committed no offence.

(d) A is in a house which is on fire, with Z, a child. People below hold out a blanket. A drops the child from the housetop, knowing it to be likely that the fall may kill the child, but not intending to kill the child, and intending, in good faith, the child benefit. Here even if the child is killed by the fall, A has committed no offence.

Explanation.— Mere pecuniary benefit is not benefit within the meaning of Sections 88, 89 and 92.

93. Communication made in good faith.— No communication made in good faith is an offence by reason of any harm to the person to whom it is made, if it is made for the benefit of that person.

Illustration

A, a surgeon, in good faith, communicates to a patient his opinion that he cannot live. The patient dies in consequence of the shock. A has committed no offence, though he knew it to be likely that the communication might cause the patient's death.

94. Act to which a person is compelled by threats.— Except murder, and offences against the State punishable with death, nothing is an offence which is done by a person who is compelled to do it by threats, which, at the time of doing it, reasonably cause the apprehension that instant death to that person will otherwise be the consequence: Provided the person doing the act did not of his own accord, or from a reasonable apprehension of harm to himself short of instant death, place himself in the situation by which he became subject to such constraint.

Explanation 1.— A person who, of his own accord, or by reason of a threat of being beaten, joins a gang of dacoits, knowing their character, is not entitled to the benefit of this exception, on the ground of his having been compelled by his associates to do anything that is an offence by law.

Explanation 2.— A person seized by a gang of dacoits, and forced by threat of instant death to do a thing which is an offence by law; for example, a smith compelled to take his tools and to force the door of a house for the dacoits to enter and plunder it, is entitled to the benefit of this exception.

95. Act causing slight harm.— Nothing is an offence by reason that it causes, or that it is intended to cause, or that it is known to be likely to cause, any harm, if that harm is so slight that no person of ordinary sense and temper would complain of such harm.

Of the Right of the Private Defence

96. Things done in private defence.— Nothing is an offence which is done in the exercise of the right of private defence.

97. Right of private defence of the body and of property.— Every person has a right, subject to the restrictions contained in Section 99, to defend—

First.— His own body, and the body of any other person, against any offence affecting the human body;

Secondly.— The property, whether moveable or immovable, of himself or of any other person, against any act which is an offence falling under the definition of theft, robbery, mischief or criminal trespass, or which is an attempt to commit theft, robbery, mischief or criminal trespass.

98. Right of private defence against the act of a person of unsound mind, etc.— When an act, which would otherwise be a certain offence is not that offence, by reason of the youth, the want of maturity of understanding, the unsoundness of mind or the intoxication of the person doing that act, or by reason of any misconception on the part of that person, every person has the same right of private defence against that act which he would have if the act were that offence.

Illustration

(a) Z, under the influence of madness, attempts to kill A; Z is guilty of no offence. But A has the same right of private defence which he would have if Z were same.

(b) A enters by night a house which he is legally entitled to enter Z, in good faith, taking A for a house-breaker, attacks A. Here Z, by attacking A under this misconception, commits no offence. But A has the same right of private defence against Z, which he would have if Z, were not acting under that misconception.

99. Acts against which there is no right of private defence.— There is no right of private defence against an act which does reasonably cause the apprehension of death or of grievous hurt, if done, or attempted to be done by a public servant acting in good faith under colour of his office, though that act may not be strictly justifiable by law.

There is no right of private defence against an act which does not reasonably cause the apprehension of death or of grievous hurt, it done, or attempted to be done, by the direction of a public servant acting in good faith under colour of his office, though that direction may not be strictly justifiable by law.

There is no right of private defence in cases in which there is time to have recourse to the protection of the public authorities.

Extend to which the right may be exercised.— The right of private defence in no case extends to the inflicting of more harm than it is necessary to inflict for the purpose of defence.

Explanation 1.— A person is not deprived of the right of private defence against an act done, or attempted to be done, by a public servant, as such, unless he knows, or has reason to believe, that the person doing the act is such public servant.

Explanation 2.**—** A person is not deprived of the right of private defence against an act done, or attempted to be done, by the direction of a public servant, unless he knows, or has reason to believe, that the person doing the act is acting by such direction, or unless such person states the authority under which he acts, or if he has authority in writing, unless he produces such authority, if demanded.

100. When the right of private defence of the body extends to causing death.— The right of private defence of the body extends, under the restrictions mentioned in the last preceding section, to the voluntary causing of death or of any other harm to the assailant, if the offence which occasions the exercise of the right be of any of the descriptions hereinafter enumerated, namely:—

First.— Such an assault as may reasonably cause the apprehension that death will otherwise be the consequence of such assault;

Secondly.— Such an assault as may reasonably cause the apprehension that grievous hurt will otherwise be the consequence of such assault;

Thirdly.— An assault with the intention of committing rape;

Fourthly.— An assault with the intention of gratifying unnatural lust;

Fifthly.— An assault with the intention of kidnapping or abducting;

Sixthly.— An assault with the intention of wrongfully confining a person, under circumstances which may reasonably cause him to apprehend that he will be unable to have recourse to the public authorities for his release.

101. When such right extends to causing any harm other than death.— If the offence be not of any of the descriptions enumerated in the last proceeding section, the right of private defence of the body does not extend to the voluntary causing of death to the assailant, but does extend, under the restrictions mentioned in Section 99 to the voluntary causing to the assailant of any harm other than death.

102. Commencement and continuance of the right of private defence of the body.— The right of private defence of the body commences as soon as a reasonable apprehension of danger to the body arises from an attempt or threat to commit the offence though the offence may not have been committed; and it continues as long as such, apprehension of danger to the body continues.

103. When the right of private defence of property extends to causing death.— The right of private defence of property extends, under the restrictions mentioned in Section 99, to the voluntary causing of death or of any other harm to the wrong-doer, if the offence, the committing of which or the attempting to commit which, occasions the exercise of the right, be an offence of any of the descriptions hereinafter enumerated, namely:—

First.— Robbery;

Secondly,— House-breaking by night;

Thirdly.— Mischief by fire committed on any building, tent or vessel, which building, tent or vessel is used as a human dwelling or as a place for the custody of property;

Fourthly.— Theft, mischief or house-trespass, under such circumstances as may reasonably cause apprehension that death or grievous hurt will be the consequence, if such right of private defence is not exercised.

104.— When such right extends to causing any harm other than death.— If the offence, the committing of which, or the attempting to commit which, occasions the exercise of the right of private defence, be theft, mischief, or criminal trespass, not of any of the descriptions enumerated in the last preceding section, that right does not extend to the voluntary causing of death, but does extend, subject to the restrictions mentioned in Section 99, to the voluntary causing to the wrong-doer of any harm other than death.

105. Commencement and continuance of the right of private defence of property.— The right of private defence of property commences when a reasonable apprehension of danger to the property commences.

The right of private defence of property against theft continues till the offender has affected his retreat with the property or either the assistance of the public authorities is obtained, or the property has been recovered.

The right of private defence of property against robbery continues as long as the offender causes or attempts to cause to any person death or hurt or wrongful restraint or as long as the fear of instant death or of instant hurt or of instant personal restraint continues.

The right of private defence of property against criminal trespass or mischief continues as long as the offender continues in the commission of criminal trespass or mischief.

The right of private defence of property against housebreaking by night continues as long as the houses-trespass which has been begun by such housebreaking continues.

106. Right of private defence against deadly assault when there is risk of harm to innocent person.— If in the exercise of the right of private defence against an assault which reasonably causes the apprehension of death, the defender be so situated that he cannot effectually exercise that right without risk of harm to an innocent person, his right of private defence extends to the running of that risk.

Illustration

A is attacked by a mob who attempt to murder him. He cannot effectually exercise his right of private defence without firing on the mob, and he cannot fire without risk of harming young children who are mingled with the mob. A commits no offence if by so firing he harms any of the children.

CHAPTER V

OF ABETMENT

107. Abutment of thing.— A person abets the doing of a thing, who—

First.— Instigates any person to do that thing; or,

Secondly.— Engages with one or more other person or persons in any conspiracy for the doing of that thing, if an act or illegal omission takes place in pursuance of that conspiracy, and in order to the doing of that thing; or,

Thirdly.— Intentionally aids, by any act or illegal omission, the doing of that thing.

Explanation 1.— A person who, by wilful misrepresentation, or by wilful concealment of a material fact which he is bound to disclose, voluntarily causes or procures, or attempts to cause or procure, a thing to be done, is said to instigate the doing of that thing.

Illustration

A, a public, officer, is authorised by a warrant from a Court of Justice to apprehend Z. B, knowing that fact and also that C is not Z, wilfully represents to A that C is Z, and thereby intentionally causes A to apprehend C. Here B abets by instigation the apprehension of C.

Explanation 2.— Whoever, either prior to or at the time of the commission of an act, does anything in order to facilitate the commission of that act, and thereby facilitates the commission thereof, is said to aid the doing of that act.

108. Abettor.— A person abets an offence, who abets either the commission of an offence, or the commission of an act which would be an offence, if committed by a person capable by law of committing an offence with the same intention or knowledge as that of the abettor.

Explanation 1— The abutment of the illegal omission of an act may amount to an offence although the abettor may not himself be bound to do that act.

Explanation 2.— To constitute the offence of abutment it is not necessary that the act abetted should be committed, or that the effect requisite to constitute the offence should be caused.

Illustrations

(a) A instigates B to murder C. B refuses to do so. A is guilty of abetting B to commit murder.

(b) A instigates B to murder D. B in pursuance of the instigation stabs D. D recovers from the wound. A is guilty of instigating B to commit murder.

Explanation 3.— It is not necessary that the person abetted should be capable by law of committing an offence, or that he should have the same guilty intention or knowledge as that or the abettor, or any guilty intention or knowledge.

Illustrations

(a) A, with a guilty intention, abets a child or a lunatic to commit an act which would be an offence, if committed by a person capable by law of committing an offence, and having the same intention as A. Here A, whether the act be committed or not, is guilty of abetting an offence.

(b) A, with the intention of murdering Z, instigates B, a, child under seven years of age, to do an act which causes Z's death. B, in consequence of the abutment, does the act in the absence of A and thereby causes Z's death. Here, though B was not capable by law of committing an offence, A is liable to be punished in the same manner as if B had been capable by law of committing an offence, and had committed murder, and he is therefore, subject to the punishment of death.

(c) A instigates B to set fire to a dwelling–house. B, in consequence of the unsoundness of his mind, being incapable of knowing the nature of the act, or that he is doing what is wrong or contrary to law, sets fire to the house in consequence of A's instigation. B has committed no offence, but A is guilty of abetting the offence of setting fire to a dwelling-house, and is liable to the punishment provided for that offence.

(d) A, intending to cause a theft to be committed, instigates B to take property belonging to Z out of Z's possession. A induces B to believe that the property belongs to A. B takes the property out of Z's possession, in good faith, believing it to be A's property. B, acting under this misconception, does not take dishonestly, and therefore does not commit theft. But A is guilty of abetting theft, and is liable to the same punishment as if B had committed theft.

Explanation 4.— The abetment of an offence being an offence, the abetment of such an abetment is also an offence.

Illustration

A instigates B to instigate C to murder Z. B accordingly instigates C to murder Z, and C commits that offence in consequence of B's instigation. B is liable to be punished for his offence with the punishment for murder; and, as A instigated B to commit the offence, A is also liable to the same punishment.

Explanation 5.— It is not necessary to the commission of the offence of abetment by conspiracy that the abettor should concert the offence with the person who commits it. It is sufficient if he engages in the conspiracy in pursuance of which the offence is committed.

Illustration

A concerts with B a plan for poisoning Z. It is agreed that A shall administer the poison. B then explains the plan to C, mentioning that a third person is to administer the poison, but without mentioning A's name C agrees to procure the poison, and procures and delivers it to B for the purpose of its being used in the manner explained. A administers the poison; Z dies in consequence. Here, though A and C have not conspired together, yet C has been engaged in the conspiracy in pursuance of which Z has been murdered. C has therefore committed the offence defined in this section and is liable to the punishment for murder.

108A. Abetment in Bangladesh of offences outside it.— A person abets an offence within the meaning of this Code who, in Bangladesh, abets the commission of any act without and beyond Bangladesh which would constitute an offence if committed in Bangladesh.

Illustration

A, in Bangladesh, instigates B, a foreigner in Goa, to commit a murder in Goa. A is guilty of abetting murder.

109. Punishment of abetment if the act abetted is committed consequence and where no express provision is made for its punishment.— Whoever abets any offence shall, if the act abetted is

committed in consequence of the abetment, and no express provision is made by this Code for the punishment of such abetment, be punished with the punishment provided for the offence.

Explanation.— An act or offence is said to be committed in consequence of abetment, when it is committed in consequence of the instigation, or in pursuance of the conspiracy, or with the aid which constitutes the abetment.

Illustrations

(a) A offers a bribe to B, a public servant, as a reward for showing A some favour in the exercise of B's official functions. B accepts the bribe. A has abetted the offence defined in section 161.

(b) A instigates B to give false evidence. B, in consequence of the instigation commits that offence. A is guilty of abetting that offence and is liable to the same punishment as B.

(c) A and B conspire to poison Z. A, in pursuance of the conspiracy, procures the poison and delivers it to B in order that he may administer it to Z. B, in pursuance of the conspiracy, administers the poison to Z in A's absence and thereby causes Z's death. Here B is guilty of murder. A is guilty of abetting that offence by conspiracy, and is liable to the punishment for murder.

110. Punishment of abetment if person abetted does act with different intention from that of abettor.— Whoever abets the commission of an offence shall, if the person abetted does the act with a different intention or knowledge from that of the abettor, be punished with the punishment provided for the offence which would have been committed if the act had been done with the intention or knowledge of the abettor and with no other.

111. Liability of abettor when one act abetted and different act done.— When an act is abetted and a different act is done, the abettor is liable for the act done, in the same manner and to the same extent as if he had directly abetted it;

Proviso.— Provided the act done was a probable consequence of the abetment, and was committed under the influence of the instigation, or with the aid or in pursuance of the conspiracy which constituted the abetment.

Illustrations

(a) A instigates a child to put poison into the food of Z, and gives him poison for that purpose. The child, in consequence of the instigation, by mistake puts the poison into the food of Y, which is by the side of that Z. Here if child was acting under the influence of A's instigation, and the act done was under the circumstances a probable consequence of the abetment, A is liable in the same manner and to the same extent as if he had instigated the child to put the poison into the food of Y.

(b) A instigates B to burn Z's house. B sets fire to the house and at the same time commits theft of property there. A, though guilty of abetting the burning of the house, is not guilty of abetting the theft; for the theft was a distinct act, and not a probable consequence of the burning.

(c) A instigates B and C to break into an inhabited house at midnight for the purpose of robbery, and provides them with arms for that purpose. B and C break into the house, and being resisted by Z, one of the inmates, murders Z. Here, if that murder was the probable consequence of the abetment, A is liable to the punishment provided for murder.

112. Abettor when liable to cumulative punishment for act abetted and for act done.— If the act for which the abettor is liable under the last proceeding section is committed in addition to the act abetted, and constitutes a distinct offence, the abettor is liable to punishment for each of the offences.

Illustration

A instigates B to resist by force a distress made by a public servant. B, in consequence, resists that distress. In offering the resistance, B voluntarily causes grievous hurt to the officer executing the distress. As B has committed both the offence of resisting the distress, and the offence of voluntarily causing grievous hurt, B is liable to punishment for both these offences; and, if A knew that B was likely voluntarily to cause grievous hurt in resisting the distress A will also be liable to punishment for each of the offences.

113. Liable of abettor for an effect caused by the act abetted different from that intended by the abettor.— When an act is abetted with the intention on the part of the abettor of causing a particular effect, and an act for which the abettor is liable in consequence of the abetment, causes a different effect from that intended by the abettor, the abettor is liable for the effect caused, in the

same manner and to the same extent as if he had abetted the act with the intention of causing that effect, provided he knew that the act abetted was likely to cause that effect.

Illustration

A instigates B to cause grievous hurt to Z. B, in consequence of the instigation, causes grievous hurt to Z. Z dies in consequence. Here, if A knew that the grievous hurt abetted was likely to cause death, A is liable to be punished with the punishment provided for murder.

114. Abettor present when offence is committed.— Whenever any person, who if absent would be liable to be punished as an abettor, is present which the act or offence for which he would be punishable in consequence of the abetment is committed, he shall be deemed to have committed such act or offence.

115. Abetment of offence punishable with death or imprisonment for life if offence not committed.— Whoever abets the commission of an offence punishable with death or imprisonment for life, shall, if that offence be not committed in consequence of the abetment, and no express provision is made by this Code for the punishment of such abetment, be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine;

If act causing harm be done in consequence.— and if any act for which the abettor is liable in consequence of the abetment, and which causes hurt to any person, is done, the abettor shall be liable to imprisonment of either description for a term which may extend to fourteen years, and shall also be liable to fine.

Illustration

A instigates B to murder Z. The offence is not committed. If B had murdered Z, he would have been subject to the punishment of death or imprisonment for life. Therefore A is liable to imprisonment for a term which may extend to seven years and also to a fine; and, if any hurt be done to Z in consequence of the abetment, he will be liable to imprisonment for a term which may extend to fourteen years, and to fine.

116. Abetment of offence punishable with imprisonment— if offence be not committed.— Whoever abets an offence punishable with imprisonment shall, if that offence be not committed in consequence of

the abetment, and no express provision is made by this Code for the punishment of such abetment, be punished with imprisonment of any description provided for that offence for a term which may extend to one-fourth part of the longest term provided for that offence; or with such fine as is provided for that offence, or with both;

if abettor or person abetted be a public servant whose duty it is to prevent offence.— and if the abettor or the person abetted is a public servant, whose duty it is to prevent the commission of such offence, the abettor shall be punished with imprisonment of any description provided for that offence, for a term which may extend to one-half of the longest term provided for that offence, or with such fine as is provided for the offence, or with both.

Illustrations

(a) A offers a bribe to B, a public servant, as a reward for showing A some favour in the exercise of B's official functions. B refuses to accept the bribe. A is punishable under this section.

(b) A instigates B to give false evidence. Here, if B does not give false evidence, A has nevertheless committed the offence defined in this section, and is punishable accordingly.

(c) A, a police-officer, whose duty it is to prevent robbery, abets the commission of robbery. Here though the robbery be not committed, A is liable to one-half of the longest term of imprisonment provided for that offence, and also to fine.

(d) B abets the commission of a robbery by A, a police-officer, whose duty it is to prevent that offence. Here though the robbery be not committed, B is liable to one-half of the longest term of imprisonment provided for the offence of robbery, and also to fine.

117. Abetting commission of offence by the public or by more than ten persons.—Whoever abets the commission of an offence by the public generally or by any number or class of persons exceeding ten, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

Illustration

A affixes in a public place a placard instigating a sect consisting of more than ten members to meet at a certain time and place, for the

purpose of attacking the members of an adverse sect, while engaged in a procession. A has committed the offence defined in this section.

118. Concealing design to commit offence punishable with death or imprisonment for life.—Whoever intending to facilitate or knowing it to be likely that he will thereby facilitate the commission of an offence punishable with death or imprisonment for life,

voluntarily conceals, by any act or illegal omission, the existence of a design to commit such offence or makes any representation which he knows to be false respecting such design,

if offence be committed; if offence be not committed.—shall, if that offence be committed, be punished with imprisonment of either description for a term which may extend to seven years, or, if the offence be not committed, with imprisonment of either description for a term which may extend to three years; and in either case shall also be liable to fine.

Illustration

A, knowing that dacoity is about to be committed at B, falsely informs the Magistrate that a dacoity is about to be committed at C, a place in an opposite direction, and thereby misleads the magistrate with intent to facilitate the commission of the offence. The dacoity is committed at B in pursuance of the design. A is punishable under this section.

119. Public servant concealing design to commit offence which it is his duty to prevent.—Whoever, being a public servant intending to facilitate or knowing it to be likely that he will thereby facilitate the commission of an offence which it is his duty as such public servant to prevent.

voluntarily conceals, by any act or illegal omission, the existence of a design to commit such offence, or makes any representation which he knows to be false respecting, such design.

If offence be committed;— shall, if the offence be committed, be punished with imprisonment of any description provided for the offence, for a term which may extend to one-half of the longest term of such imprisonment, or with such fine as is provided for that offence, or with both;

if offence be punishable with death, etc. ;— or, if the offence be punishable with death or imprisonment for life, with imprisonment of either description for a term which may extend to ten years;

if offence be not committed;— or, if the offence be not committed, shall be punished with imprisonment of any description provided for the offence for a term which may extend to one-fourth part of the longest term of such imprisonment or with such fine as is provided for the offence, or with both.

Illustration

A, an officer of police, being legally bound to give information of all designs to commit robbery which may come to his knowledge, and knowing that B designs to commit robbery, omits to give such information, with intent to facilitate the commission of that offence. Here A has by an illegal omission concealed the existence of B's design, and is liable to punishment according to the provision of this section.

120. Concealing design to commit offence punishable with imprisonment.— Whoever, intending to facilitate or knowing it to be likely that he will thereby facilitate the commission of an offence punishable with imprisonment,

voluntarily conceals, by any act or illegal omission, the existence of a design to commit such offence, or makes any representation which he knows to be false respecting such design.

If offence be committed: if offence be not committed;— shall, if the offence be committed, be punished with imprisonment of the description provided for the offence, for a term which may extend to one-fourth, and if the offence be not committed to one-eighth, of the longest term of such imprisonment, or with such fine as is provided for the offence, or with both.

CHAPTER VA

CRIMINAL CONSPIRACY

120A. Definition of criminal conspiracy.—When two more persons agree to do, or cause to be done,—

(1) an illegal act, or

(2) an act which is not illegal by illegal means, such an agreement is designated a criminal conspiracy:

Provided that no agreement except an agreement to commit an offence shall amount to a criminal conspiracy unless some act besides the agreement is done by one or more parties to such agreement in pursuance thereof.

Explanation.—It is immaterial whether the illegal act is the ultimate object of such agreement, or is merely incidental to that object.

120B. Punishment of criminal conspiracy.—(1) Whoever is a party to a criminal conspiracy to commit an offence punishable with death, imprisonment for life or rigorous imprisonment for a term of two years or upwards, shall, where no express provision is made in this Code for the punishment of such a conspiracy, be punished in the same manner as if he had abetted such offence.

(2) Whoever is a party to a criminal conspiracy other than a criminal conspiracy to commit an offence punishable as aforesaid shall be punished with imprisonment of either description for a term not exceeding six months, or with fine or with both.

CHAPTER VI

OF OFFENCES AGAINST THE STATE

121. Waging or attempting to wage war or abetting waging of war against Bangladesh.—Whoever wages war against Bangladesh, or attempts to wage such war, or abets the waging of such war, shall be punished with death, or imprisonment for life and shall also be liable to fine.

Illustration

A joins an insurrection against Bangladesh. A has committed the offence defined in this section.

121A. Conspiracy to commit offences punishable by section 121.—Whoever within or without Bangladesh conspires to commit any of the offences punishable by section 121, or to deprive Bangladesh of the sovereignty of her territories or of any part thereof, or conspires to overawe, by means of criminal force or the show of criminal force, the Government shall be punished with imprisonment for life or with imprisonment of either description which may extend to ten years, and shall also be liable to fine.

Explanation.—To constitute a conspiracy under this section it is not necessary that any act or illegal omission shall take place in pursuance thereof.

122. Collecting arms, etc., with intention of waging war against Bangladesh.—Whoever collects men, arms or ammunition or otherwise prepares to wage war with the intention of either waging or being prepared to wage war against Bangladesh, shall be punished with imprisonment for life or imprisonment of either description for a term not exceeding ten years, and shall also be liable to fine.

123. Concealing with intent to facilitate design to wage war.—Whoever, by any act, or by any illegal omission, conceals the existence of a design to wage war against Bangladesh, intending by such concealment to facilitate, or knowing it to be likely that such concealment will facilitate the waging of such war, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall be liable to fine.

123A. Condemnation of the creation of the State and advocacy of abolition of its sovereignty.—(1) Whoever, within or without Bangladesh, with intent to influence, or knowing it to be likely that he will

influence, any person or the whole or any section of the public, in a manner likely to be prejudicial to the safety of Bangladesh, or to endanger the sovereignty of Bangladesh in respect of all or any of the territories lying within its borders, shall by words, spoken or written, or by signs or visible representation, condemn the creation of Bangladesh in pursuance of the proclamation of Independence on the twenty-sixth day of March, 1971, or advocate the curtailment or abolition of the sovereignty of Bangladesh in respect of all or any of the territories lying within its borders, whether by amalgamation with the territories of neighbouring States or otherwise, shall be punished with rigorous imprisonment which may extend to ten years and shall also be liable to fine

(2) Notwithstanding anything contained in any other law for the time being in force, when any person is proceeded against under this section, it shall be lawful or any Court before which he may be produced in the course of the investigation or trial, to make such order as it may think fit in respect of his movements, of his association or communication with other persons, and of his activities in regard to dissemination of news, propagation of opinions, until such time as the case is finally decided.

(3) Any Court which is a Court of appeal or of revision in relation to the Court mentioned in sub-section (2) may also make an order under that sub-section.

124. Assaulting president, Government, etc. with intent to compel or restrain the exercise of any lawful power.—Whoever, with the intention of inducing or compelling the President of Bangladesh, or the government to exercise or restrain from exercising any of the lawful powers of the President, or the Government,

assaults, or wrongfully restrains, or attempts wrongfully to restrain, or overawes, by means of criminal force or the show of criminal force, or attempts so to overawe, the President.

shall be punished with imprisonment of either description for a term which may extend to seven years, and shall be liable to fine.

124A. Sedition.—Whoever by words, either spoken or written, or by signs, or by visible representation, or otherwise, brings or attempts to bring into hatred or contempt, or excites or attempts to excite disaffection towards the Government established by law shall be punished with imprisonment for life

to which fine may be added, or with imprisonment which may extend to three years, to which fine may be added, or with fine.

Explanation 1.—The expression "disaffection" includes disloyalty and all feelings of enmity.

Explanation 2.—Comments expressing disapprobation of the measures of the Government with a view to obtain their alteration by lawful means, without exciting or attempting to excite hatred, contempt or disaffection, do not constitute an offence under this section.

Explanation 3.— Comments expressing disapprobation of the administrative or other action of the Government without exciting or attempting to excite hatred, contempt or disaffection, do not constitute an offence under this section.

125. Waging War against any Asiatic Power in aliance with Bangladesh.— Whoever wages war against the Government of any Asiatic Power in alliance or at peace with Bangladesh or attempts to wage such war, or abets the waging of such war, shall be punished with imprisonment for life, to which fine may be added, or with imprisonment of either description for a term which may extend to seven years, to which fine may be added, or with fine.

126. Committing depredation on territories of Power at peace with Bangladesh.— Whoever commit depredation, or makes preparations to commit depredation, on the territories of any Power in alliance or at peace with Bangladesh, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall be liable to fine and to forfeiture of any property used or intended to be used in committing such depredation, or acquired by such depredation.

127. Receiving property taken by war or depredation mentioned in Sections 125 and 126.—Whoever receives any property knowing the same to have been taken in the commission of any of the offences mentioned in Sections 125 and 126, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine and to forfeiture of the property so received.

128. Public servant voluntarily allowing prisoner of State or war to escape.—Whoever, being a public servant and having the custody of any State prisoner or prisoner of war, voluntarily allows such prisoner to escape from any place in which such prisoner is confined, shall be punished with

imprisonment for life, or imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

129. Public servant negligently suffering such prisoner to escape.–Whoever, being a public servant and having the custody of any State prisoner or prisoner of War, negligently suffers such prisoner to escape from any place or confinement in which such prisoner is confined, shall be punished with simple imprisonment for a term which may extend to three years, and shall also be liable to fine.

130. Aiding escape of, rescuing or harbouring such prisoner.— Whoever knowingly aids or assists any State prisoner or prisoner of war in escaping from lawful custody, or rescues or attempts to rescue any such prisoner, or harbours or conceals any such prisoner who has escaped from lawful custody, or offers or attempts to offer any resistance to the recapture of such prisoner shall be punished with imprisonment for life, or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

Explanation.—A State prisoner or prisoner of war, who is permitted to be at large on his parole within certain limits in Bangladesh, is said to escape from lawful custody if he goes beyond the limits within which he is allowed to be at large.

CHAPTER VII

OF OFFENCES RELATING TO THE ARMY, NAVY AND AIR FORCE

131. Abetting mutiny, or attempting to seduce a soldier, sailor or airman from his duty.—Whoever, abets the committing of mutiny by an officer, soldier, sailor or airman, in the army, Navy or Air Force of Bangladesh, or attempts to seduce any such officer, soldier, sailor or airman from his allegiance or his duty, shall be punished with imprisonment for life, or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

Explanation.— In this section the words "officer" "soldier", "sailor" and "airman" include any person subject to Army Act, 1952, the Naval Ordinance, 1961, that or the Air force Act, 1953, as the case may be.

132. Abetment of mutiny, if mutiny is committed in consequence thereof.— Whoever, abets the committing of mutiny by an officer, soldier, sailor or airman, in the Army, Navy, or Air Force of the Bangladesh, shall, if mutiny be committed in consequence of that abetment, be punished with death or with imprisonment for life, or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

133. Abetment of assault by soldier, sailor or airman on his superior Officer, when in execution of his office.— Whoever, abets an assault by an officer, soldier, sailor or airman, in the Army, Navy or Air Force of Bangladesh, on any superior officer being in the execution of his office, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine.

134. Abetment of such assault if the assault is committed.— Whoever, abets an assault by an officer, soldier, sailor or airman, in the Army, Navy or Air Force of Bangladesh on any superior officer being in the execution of his office, shall, if such assault be committed in consequence of that abetment be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

135. Abetment of desertion of soldier, sailor or airman.— Whoever, abets the desertion of any officer, soldier, sailor or airman, in the Army, Navy or Air Force of Bangladesh shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

136. Harbouring deserter.— Whoever, except as hereinafter excepted, knowing or having reason to believe that an officer, soldier, sailor or airman, in the Army, Navy or Air Force of Bangladesh has deserted, harbours such officer, soldier, sailor or airman, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

Exception.–This provision dose not extend to the case in which the harbour is given by wife to her husband.

137. Deserter concealed on board merchant vessel through negligence of master.— The master or person in-charge of a merchant vessel, on board of which any deserter from the Army, Navy or Air Force of Bangladesh is concealed, shall, though ignorant of such concealment, be liable to a penalty not exceeding five hundred taka, if he might have known of such concealment but for some neglect of his duty as such master or person in charge, or but for some want of discipline on board of the vessel.

138. Abetment of act of insubordination by soldiers, sailor or airman.– Whoever abets what he knows to be an act of insubordination by an officer, soldier, sailor or airman in the Army, Navy or Air Force of Bangladesh, shall, if such act of insubordination be committed in consequence of that abetment be punished with imprisonment of either description for a term which may extend to six months, or with fine, or with both.

138A. Application of foregoing sections to the Indian Marine Service. Rep. by the Amending Act, 1943 (XXXV of 1943), s. 2 and Sch.

139. Persons subject to certain Acts.— No person subject to the Army Act, 1952, the Navy Ordinance 1961, the Air Force Act 1953 is subject to punishment under this Code for any of the offences defined in this Chapter.

140. Wearing garb or carrying token used by soldier, sailor or airman.— Whoever, not being a soldier, sailor or airman in the Military, Naval or Air service of Bangladesh, wears any garb or carries any token resembling any garb or token used by such a soldier, sailor or airman, with the intention that it may be believed that he is such a soldier, sailor or airman, shall be punished with imprisonment of either description for a term which may extend to three months or with fine which may extend to five hundred taka or with both.

CHAPTER VIII

OF OFFENCES AGAINST THE PUBLIC TRANQUILLITY

141. Unlawful assembly.— An assembly of five or more persons is designated an "unlawful assembly," if the common object of the persons composing that assembly is–

First.— To overawe by criminal force, or show of criminal force, Government or Legislature or any public servant in the exercise of the lawful power of such public servant ; or

Second.— To resist the execution of any law, or of any legal process ; or

Third.— To commit any mischief, criminal trespass or other offence ; or

Fourth.— By means of criminal force, or show of criminal force, to any person to take or obtain possession of any property or to deprive any person of the enjoyment of a right of way, or of the use of water or other incorporeal right of which he is in possession or enjoyment, or to enforce any right or supposed right ; or

Fifth.— By means of criminal force, or show of criminal force, to compel any person to do what he is not legally bound to do, or to omit to do what he is legally entitled to do.

Explanation.— An assembly which was not unlawful when it assembled, may subsequently become an unlawful assembly.

142. Being member of unlawful assembly— Whoever, being aware of facts which render any assembly an unlawful assembly, intentionally joins that assembly, or continues in it, is said to be a member of an unlawful assembly.

143. Punishment.— Whoever, is a member of an unlawful assembly, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine, or with both.

144. Joining unlawful assembly armed with deadly weapon.— Whoever, being armed with any deadly weapon, or with anything which, used as a weapon of offence, is likely to cause death, is a member of an unlawful assembly, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

145. Joining or continuing in unlawful assembly, knowing it has been commanded to disperse.— Whoever joins or continues in an unlawful assembly, knowing that such unlawful assembly has been commanded in the manner prescribed by law to disperse, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

146. Rioting.— Whenever force or violence is used by an unlawful assembly, or by any member thereof, in prosecution of the common object of such assembly, every member of such assembly is guilty of the offence of rioting.

147. Punishment of rioting.— Whoever is guilty of rioting, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

148. Rioting, armed with deadly weapon.— Whoever is guilty of rioting, being armed with a deadly weapon or with anything which, used as a weapon of offence is likely to cause death, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

149. Every member of unlawful assembly guilty of offence committed in prosecution of common object.— If an offence is committed by any member of an unlawful assembly in prosecution of the common object of that assembly, or such as the members of that assembly knew to be likely to be committed in prosecution of that object, every person who, at the time of the committing of that offence, is a member of the same assembly, is guilty of that offence.

150. Hiring, or conniving at hiring, of persons to join unlawful assembly.— Whoever hires or engages, or employs, or promotes, or connives at the hiring, engagement or employment of any person to join or become a member of any unlawful assembly, shall be punishable as a member of such unlawful assembly, and for any offence which may be committed by any such person as a member of such unlawful assembly in pursuance of such hiring, engagement or employment, in the same manner as if he had been a member of such unlawful assembly, or himself had committed such offence.

151. Knowingly joining or continuing in assembly of five or more persons after it has been commanded to disperse.— Whoever knowingly joins or continues in any assembly of five or more persons likely to cause a disturbance of the public peace, after such assembly has

been lawfully commanded to disperse, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine, or with both.

Explanation.— If the assembly is an unlawful assembly within the meaning of section 141, the offender will be punishable under section 145.

152. Assaulting or obstructing public servant when suppressing riot, etc.— Whoever assaults or threatens to assault, or obstructs or attempts to obstruct, any public servant in the discharge of his duty as such public servant, in endeavouring to disperse an unlawful assembly, or to suppress a riot or affray, or uses, or threatens, or attempts to use criminal force to such public servant, shall be punished with imprisonment of either description for a term which may extend to three years or with fine, or with both.

153. Wantonly giving provocation with intent to cause riot–if rioting be committed; if not committed.— Whoever malignantly, or wantonly, by doing anything which is illegal, gives provocation to any person intending or knowing it to be likely that such provocation will cause the offence of rioting to be committed, shall, if the offence of rioting be committed in consequence of such provocation, be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both ; and if the offence of rioting be not committed, with imprisonment of either description for a term which may extend to six months or with fine, or with both.

153A. Promoting enmity between classes.— Whoever, by words, either spoken or written, or by sings, or by visible representations, or otherwise, promotes or attempts to promote feelings of enmity or hatred between different classes of the citizens of Bangladesh, shall be punished with imprisonment which may extend to two years, or with fine, or with both.

Explanation.— It does not amount to an offence within the meaning of this section to point out, without malicious intention and with an honest view to their removal, matters which are producing or have a tendency to produce, feelings of enmity or hatred between different classes of the citizens of Bangladesh.

153B. Inducing students, etc., to take part in political activity.— Whoever by words, either spoken, or written or by signs, or by visible representations, or otherwise, induce or attempts to induce any student,

or any classes of students, or any institution interested in or connected with students, to take part in any political activity which disturbs or undermines, or is likely to disturb or undermine, the public order shall be punished with imprisonment which may extend to two years or with fine, or with both.

154. Owner or occupier of land on which an unlawful assembly is held.— Whenever any unlawful assembly or riot takes place, the owner or occupier of the land upon which such unlawful assembly is held, or such riot is committed, and any person having or claiming an interest in such land, shall be punishable with fine not exceeding one thousand taka, if he or his agent or manager, knowing that such offence is being or has been committed, or having reason to believe it is likely to be committed, do not give the earliest notice thereof in his or their power to the principal officer at the nearest police station, and do not, in the case of his or their having reason to believe that it was about to be committed, use all lawful means in his or their power to prevent it and, in the event of its taking place, do not use all lawful means in his or their power to disperse or suppress the riot or unlawful assembly.

155. Liability of person for whose benefit riot is committed.— Whenever a riot is committed for the benefit or on behalf of any person who is the owner or occupier of any land respecting which such riot takes place or who claims any interest in such land, or in the subject of any dispute which gave rise to the riot, or who has accepted or derived any benefit therefrom such person shall be punishable with fine, if he or his agent or manager, having reason to believe that such riot was likely to be committed, or that the unlawful assembly by which such riot was committed was likely to be held, shall not respectively use all lawful means in his or their power to prevent such assembly or riot from taking place, and for suppressing and dispersing the same.

156. Liability of agent of owner or occupier for whose benefit riot is committed.— Whenever a riot is committed for the benefit or on behalf of any person who is the owner or occupier of any land respecting which such riot takes place, or who claims any interest in such land, or in the subject or any dispute which gave rise to the riot, or who has accepted or derived any benefit therefrom,

the agent or manager of such person shall be punishable with fine, if such agent or manager, having reason to believe that such riot was likely to be committed, or that the unlawful assembly by which such riot was committed was likely to be held, shall not use all lawful means in his power to prevent such riot or assembly from taking place and for suppressing and dispersing the same.

157. Harbouring person hired for an unlawful assembly.— Whoever harbours, receives, or assembles, in any house or premises in his occupation or charge, or under his control, any person, knowing that such persons have been hired, engaged or employed, or are about to be hired, engaged or employed, to join or become members of an unlawful assembly, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine, or with both.

158. Being hired to taka part in an unlawful assembly or riot.— Whoever is engaged or hired, or offers or attempts to be hired or engaged, to do or assist in doing any of the acts specified in section 141, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine, or with both,

or to go armed.— and whoever, being so engaged or hired as aforesaid, goes armed, or engages or offers; to go armed, with any deadly weapon or with anything which used as a weapon of offence is likely to cause death, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

159. Affray.— When two or more persons, by fighting in a public place, disturb the public peace, they are said to "commit an affray".

160. Punishment for committing affray.— Whoever commits an affray, shall be punished with imprisonment of either description for a term which may extend to one month, or with fine which may extend to one hundred taka, or with both.

CHAPTER IX

OF OFFENCES BY OR RELATING TO PUBLIC SERVANTS

161. Public servant taking gratification other than legal remuneration in respect of an official act.— Whoever, being or expecting to be a public servant, accepts or obtains, or agrees to accept, or attempts to obtain from any person, for himself or for any other person, any gratification whatever, other than legal remuneration, as a motive or reward for doing or forbearing to do any official act or for showing or for bearing to show, in the exercise of his official functions, favour or disfavour to any person, or for rendering or attempting to render any service or disservice to any person, with the Government or Legislature, or with any public servant, as such, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

Explanations.— "Expecting to be a public servant." It a person not expecting to be in office obtains a gratification by deceiving others into a belief that he is about to be in office, and that he will than serve them, he may be guilty of cheating, but he is not guilty of the offence defined in this section.

"Gratification". The word "gratification" is not restricted to pecuniary gratifications, or to gratifications estimable in money.

"**Legal remuneration**". The words "legal remuneration" are not restricted to remuneration which a public servant can lawfully demand, but include all remuneration which he is permitted by the authority by which he is employed, to accept.

"A motive or reward for doing". A person who receives a gratification as a motive for doing, what he dose not intend to do, or as a reward for doing what he has not done, comes within these words.

Illustrations

(a) A, a munsif, obtains from Z, a banker, a situation in Z's bank for A's brother, as a reward to A for deciding a cause in favour of Z. A has committed the offence defined in this section.

(b) A, holding the office of Resident at the Court of a subsidiary Power, accepts a lakh of taka from the Minister of that Power. It does not

appear that A accepted this sum as a motive or reward for doing or forbearing to do any particular official act, or for rendering or attempting to render any particular service to that Power with the Government of Bangladesh. But it does appear that A accepted the sum as a motive or reward for generally showing favour in the exercise of his official functions to that Power. A has committed the offence defined in this section.

(c) A, a public servant, induces Z erroneously to believe that A's influence with the Government has obtained a title for Z, and thus induces Z to give A money as a reward for this service. A has committed the offence defined in this section.

162. Taking gratification, in order, by corrupt or illegal means, to influence public servant.— Whoever accepts or obtains, or agrees to accept, or attempts to obtain, from any person, for himself or for any other person, any gratification whatever as a motive or reward for inducing, by corrupt or illegal means, any public servant to do or to for bear to do any official act, or in the exercise of the official functions of such public servant to show favour or disfavour to any person, or to render or attempt to render any service or disservice to any person with the Government or Legislature, or with any public servant, as such, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

163. Taking gratification, for exercise of personal influence with public servant.— Whoever accepts or obtains, or agrees to accept or attempts to obtain, from any person, for himself or for any other person, any gratification whatever, as a motive or reward for inducing, by the exercise of personal influence, any public servant to do or to forbear to do any official act, or in the exercise of the official functions of such public servant to show favour or disfavour to any person, or to render or attempt to render any service or disservice to any person with the Government or Legislature, or with any public servant, as such, shall be punished with simple imprisonment for a term which may extend to one year, or with fine, or with both.

Illustration

An advocate who receives a fee for arguing a case before a Judge; a person who receives pay for arranging and correcting a memorial addressed to Government, setting forth the services and claims of the memorialist; a paid agent for a condemned criminal, who lays before the

Government statements tending to show that the condemnation was unjust,–are not within the section, inasmuch as they do not exercise or profess to exercise personal influence.

164. Punishment for abetment by public servant of offences defined in section 162 or 163.— Whoever, being a public servant, in respect of whom either of the offences defined in the last two preceding sections is committed, abets the offence, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

Illustration

A is a public servant, B, A's wife, receives a present as a motive for soliciting A to give as office to a particular person. A abets her doing so. B is punishable with imprisonment for a term not exceeding one year, or with fine, or with both. A is punishable with imprisonment for a term which may extend to three years, or with fine, or with both.

165. Public servant obtaining valuable thing, without consideration from person concerned in proceeding or business transacted by such public servant.— Whoever, being a public servant, accepts or obtains, or agrees to accept or attempts to obtain, for himself, or for any other person, any valuable thing without consideration, or for a Consideration which he knows to be inadequate,

from any person whom he knows to have been, or to be, or to be likely to be concerned in any proceeding or business transacted or about to be transacted by such public servant, or having any connection with the official functions, of himself or of any public servant to whom he is subordinate,

or from any person whom he knows to be interested in or related to the person so concerned,

shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

Illustrations

(a) A, a Collector, hires a house of Z, who has a settlement case pending before him. It is agreed that A shall pay fifty taka a month, the house being such that, if the bargain were made in good faith. A would be required to

pay two hundred taka a month. A has obtained a valuable thing from Z without adequate consideration.

(b) A, a Judge, buys of Z, who has a case pending in A's Court, Government Promissory notes at a discount, when they are selling in the market at a premium. A has obtained a valuable thing from Z without adequate consideration.

(c) Z's brother is apprehended and taken before A, a Magistrate, on a charge of perjury. A sells to Z shares in a bank at premium, when they are selling in the market at a discount. Z pays A for the shares accordingly. The money so obtained by A is a valuable thing obtained by him without adequate consideration.

165A. Punishment for abetment of offences defined in sections 161 and 165.— Whoever, abets any offence punishable under section 161 or section 165 shall, whether the offence abetted is or is not committed in consequence of the abetment, be punished with the punishment provided for the offence.

165B. Certain abettors excepted.— A person shall be deemed not to abet an offence publishable under section 161 or section 165 if he is induced, compelled, coerced, or intimidated to offer or give any such gratification, as is referred to in section 161 for any of the purposes mentioned therein, or any valuable thing without consideration, or for an inadequate consideration, to any such public servant as is referred to in section 165.

166. Public servant disobeying law with intent to cause injury to any person.— Whoever, being a public servant, knowingly disobeys any direction of the law as to the way in which he is to conduct himself as such public servant, intending to cause, or knowing it to be likely that he will, by such disobedience, cause injury to any person, shall be punished with simple imprisonment for a term which may extend to one year, or with fine, or with both.

Illustration

A, being an officer directed by law to take property in execution, in order to satisfy a decree pronounced in Z's favour by a Court of Justice, knowingly disobeys that direction of law, with the knowledge that he is likely thereby to cause injury to Z. A has committed the offence defined in this section.

167. Public servant framing an incorrect document with intent to cause injury.— Whoever, being a public servant, and being, as such

public servant, charged with the preparation or translation of any document, frames or translates that document in a manner which he knows or believes to be incorrect, intending thereby to cause or knowing it to be likely that he may thereby cause injury to any person, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

168. Public servant unlawfully engaging in trade.— Whoever, being a public servant, and being legally bound as such public servant not to engage in trade, engages in trade, shall be punished with simple imprisonment for a term which may extend to one year or with fine, or with both.

169. Public servant unlawfully buying or bidding for property.— Whoever, being a public servant and being legally bound as such public servant not to purchase or bid for certain property, purchase or bids for that property, either in his own name or in the name of another, or jointly, or in shares with others, shall be punished with simple imprisonment for a term which may extend to two years, or with fine, or with both; and the property, if purchased, shall be confiscated.

170. Personating a public servant.— Whoever pretends to hold any particular office as a public servant, knowing that he does not hold such office or falsely personates any other person holding such office, and in such assumed character does or attempts to do any act under colour of such office shall be punished with imprisonment of either description, for a term which may extend to two years, or with fine, or with both.

171. Wearing garb or carrying token used by public servant with fraudulent intent.— Whoever, not belonging to a certain class of public servants, wears any garb or carries any token resembling any garb or token used by that class of public servants, with the intention that it may be believed, or with the knowledge that it is likely to be believed, that he belongs to that class of public servants, shall be punished with imprisonment of either description, for a term which may extend to three months, or with fine which may extend to two hundred taka, or with both.

HAPTER IXA

OF OFFENCES RELATING TO ELECTIONS

171A. "Candidate", "Electoral right" defined.–For the purposes of this Chapter—

(a) "candidate" means a person who has been nominated as a candidate at any election and includes a person who, when an election is in contemplation, holds himself out as a prospective candidate there at; provided that he is subsequently nominated as a candidate at such election;

(b) "electoral right" means the right of a person to stand, or not to stand as, or to withdraw from being, a candidate or to vote or refrain from voting at an election.

171B. Bribery.— (1) Whoever–

(i) gives a gratification to any person with the object of inducing him or any other person to exercise any electoral right or of rewarding any person for having exercised any such right; or

(ii) accepts either for himself or for any other person any gratification as a reward for exercising any such right or for inducing or attempting to induce any other person to exercise any such right,

commits the offence of bribery:

Provided that a declaration of public policy or a promise of public action shall not be an offence under this section.

(2) A person who offers, or agrees to give, or offers or attempts to procure, a gratification shall be deemed to give a gratification.

(3) A person who obtains or agrees to accept or attempts to obtain a gratification shall be deemed to accept a gratification, and a person who accepts a gratification as a motive for doing what he dose not intend to do, or as a reward for doing what he has not done, shall be deemed to have accepted the gratification as a reward.

171C. Undue influence at election.— (1) Whoever voluntarily interferes or attempts to interfere with the free exercise of any electoral right commits the offence of undue influence at an election.

(2) Without prejudice to the generality of the provisions of sub-section (1), whoever—

(a) threatens any candidate or voter, or any person in whom a candidate or voter is interested, with injury of any kind, or

(b) induces or attempts to induce a candidate or voter to believe that he or any person in whom he is interested will become or will be rendered an object of Divine displeasure of spiritual censure,

shall be deemed to interfere with the free exercise of the electoral right of such candidate or voter, within the meaning of sub-section (1).

(3) A declaration of public policy or a promise of public action, or the mere exercise of legal right without intent to interfere with an electoral right, shall not be deemed to be interference within the meaning of this section.

171D. Personation at elections.— Whoever at an election applies for a voting paper or votes in the name of any other person, whether, living or dead, or in a fictitious name, or who having vote once at such election applies at the same election for a voting paper in his own name, and whoever abets, procures or attempts to procure the voting by any person in any such way, commits the offence of personation at an election.

171E. Punishment for bribery.— Whoever commits the offence of bribery shall be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both:

Provided that bribery by treating shall be punished with fine only.

Explanation.— 'Treating' means that form of bribery where the gratification consists in food, drink, entertainment, or provision.

171F. Punishment for undue influence or personation at an election.— Whoever commits the offence of undue influence or personation at an election shall be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both.

171G. False statement in connection with an election.— Whoever with intent to affect the result of an election makes or publishes any statement purporting to be a statement of fact which is false and which he either knows or believes to be false or dose not believe to be true, in relation to the personal character or conduct of any candidate shall be punished with fine.

171H. Illegal payments in connection with an election.— Whoever without the general or special authority in writing of a candidate incurs or authorises expenses on account of the holding of any public meeting, or upon any advertisement, circular or publication, or in any other way whatsoever for the purpose of promoting or procuring the election of such candidate, shall be punished with fine which may extend to five hundred taka :

Provided that if any person having incurred any such expenses not exceeding the amount of ten taka without authority obtains within ten days from the date on which such expenses were incurred the approval in writing of the candidate, he shall be deemed to have incurred such expenses with the authority of the candidate.

171I. Failure to keep election accounts.— Whoever being required by any law for the time being in force or any rule having the force of law to keep accounts of expenses incurred at or in connection with an election fails to keep such accounts shall be punished with fine which may extend to five hundred taka.

CHAPTER X

OF CONTEMPTS OF THE LAWFUL AUTHORITY OF PUBLIC SERVANTS

172. Absconding so avoid service of summons or other proceeding.— Whoever absconds in order to avoid being served with a summons, notice or order proceeding from any public servant legally competent, as such public servant, to issue such summons, notice or order, shall be punished with simple imprisonment for a term which may extend to one month, or with fine which may extend to five hundred taka, or with both;

or, if the summons or notice or order is to attend in persons or by agent, or to produce a document in a Court of Justice, with simple imprisonment for a term which may extend to six months, or with fine which may extend to one thousand taka, or with both.

173. Preventing service of summons or other proceeding or preventing publication thereof.— Whoever in any manner intentionally prevents the serving on himself, or on any other person, of any summons, notice or order proceeding from any public servant legally competent, as such public servant, to issue such summons, notice or order,

or intentionally prevents the lawful affixing to any place of any such summons, notice or order,

or intentionally removes any such summons, notice or order from any place to which it is lawfully affixed,

or intentionally prevents the lawful making of any proclamation, under the authority of any public servant legally competent, as such public servant, to direct such proclamation to be made,

shall be punished with simple imprisonment for a term which may extend to one month, or with fine which may extend to five hundred taka, or with both,

or, if the summons, notice, order or proclamation is to attend in person or by agent, or to produce a document in a Court of Justice, with simple imprisonment for a term which may extend to six months, or with fine which may extend to one thousand taka, or with both.

174. Non-attendance in obedience to an order from public servant.— Whoever, being legally bound to attend in person or by an agent at a certain place and time in obedience to a summons, notice,

order or proclamation proceeding from any public servant legally competent, as such public servant, to issue the same.

intentionally omits to attend at that place or time, or departs from the place where he is bound to attend before the time at which it is lawful for him to depart.

shall be punished with simple imprisonment for a term which may extend to one month, or with fine which may extend to five hundred taka, or with both;

or, if the summons, notice, order or proclamation is to attend in person or by agent in a Court of Justice, with simple imprisonment for a term which may extend to six months, or with fine which may extend to one thousand taka, or with both.

Illustrations

(a) A, being legally bound to appear before the Supreme Court of Bangladesh in obedience to a subpoena issuing from that Court, intentionally omits to appear. A has committed the offence defined in this section.

(b) A, being legally bound to appear before a Zila Judge, as a witness, in obedience to a summons issued by that Zila Judge, intentionally omits to appear. A has committed the offence defined in this section.

175. Omission to produce document to public servant by person legally bound to produce it.— Whoever, being legally bound to produce or deliver up any document to any public servant, as such, intentionally omits so to produce or to deliver up the same, shall be punished with simple imprisonment for a term which may extend to one month, or with fine which may extend to five hundred taka, or with both;

or, if the document is to be produced or delivered up to a Court of Justice, with simple imprisonment for a term which may extend to six months, or with fine which may extend to one thousand taka, or with both.

Illustration

A, being legally bound to produce a document before a Zila Court intentionally omits to produce the same. A has committed the offence defined in this section.

176. Omission to give notice or information to public servant by person legally bound to give it— Whoever, being legally bound to give any notice or to furnish information on any subject to any public servant, as such, intentionally omits to give such notice or to furnish such information in the manner and at the time required by law, shall be punish with simple imprisonment for a term which may extend to one month, or with fine which may extend to five hundred taka, or with both;

or, if the notice or information required to be given respects the commission of an offence, or is required for the purpose of preventing the commission of an offence, or in order to the apprehension of an offender, with simple imprisonment for a term which may extend to six months, or with fine which may extend to one thousand taka, or with both.

or, if the notice or information required to be given is required by an order passed under sub-section (1) of section 565 of the Code of Criminal Procedure, 1898, with imprisonment of either description for a term which may extend to six months, or with fine which may extend to one thousand taka, or with both.

177. Furnishing false information.— Whoever, being legally bound to furnish information on any subject to any public servant, as such, furnishes, as true information on the subject which he knows or has reason to believe to be false, shall be punished with simple imprisonment for a term which may extend to six months, or with fine which may extend to one thousand taka, or with both;

or, if the information which he is legally bound to give respects the commission of an offence, or is required for the purpose of preventing the commission of an offence, or in order to the apprehension of an offender, with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

Illustrations

(a) A, a landholder, knowing of the commission of a murder within the limits of his estate, wilfully misinforms the Magistrate of the district that the death has occurred by accident in consequence of the bite of a snake. A is guilty of offence defined in this section.

(b) A, a village watchmen, knowing that a considerable body of strangers has passed through his village in order to commit a dacoity in the house of Z, a wealthy merchant residing in a neighbouring place, and being, bound, under any law for the time being in force, to give early and

punctual information of above fact, to the officer of the nearest police station, wilfully misinforms the police-officer that a body of suspicious characters passed through the village with a view to commit dacoity in a certain distant place in a different direction. Here A is guilty of the offence defined in the latter part of this section.

Explanation.— In section 176 and in this section the word "offence" includes any act committed at any place out of Bangladesh which, if committed in Bangladesh, would be punishable under any of the following sections, namely 302, 304, 382, 392, 393, 394, 395, 396, 397, 398, 399, 402, 435, 436, 449, 450, 457, 458, 459, and 460; and the word offender" includes any person who is alleged to have been guilty of any such act.

178. Refusing oath or affirmation when duly required by public servant to make it.— Whoever refuses to bind himself by an oath or affirmation to state the truth, when required so to bind himself by a public servant legally competent to require that he shall so bind himself, shall be punished with simple imprisonment for a term which may extend six months, or with find which may extend to one thousand taka, or with both.

179. Refusing to answer public servant authorised to question.— Whoever, being legally bound to state the truth on any subject to any public servant, refuses to answer and question demanded of him touching that subject by such public servant, in the exercise of the legal powers of such public servant, shall be punished with simple imprisonment for a term which may extend to six months, or with fine which may extend to one thousand taka, or with both.

180. Refusing to sign statement.— Whoever refuses to sign any statement made by him, when required to sign that statement by a public servant, legally competent to require that he shall sign that statement, shall be punished with simple imprisonment for a term which may extend three months, or with fine which may extend to five hundred taka, or with both.

181. False statement on oath or affirmation to public servant or person authorised to administer an oath or affirmation.— Whoever being legally bound by an oath or affirmation to state the truth on any subject to any public servant or other person authorized by law to administer such oath or affirmation, makes, to such public servant or other person as aforesaid, touching that subject, any statement which is false, and which he either knows or believes to be false or does not believe to be true, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine.

182. False information with intent to cause public servant to use his lawful power to the injury of another person.— Whoever gives to any public servant any information which he knows or believes to be false, intending thereby to cause, or knowing it to be likely that he will thereby cause, such public servant–

(a) to do or omit anything which such public servant ought not to do or omit if the true state of facts respecting which such information is given were known by him, or

(b) to use the lawful power of such public servant to the injury or annoyance of any person, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to one thousand taka, or with both.

Illustrations

(a) A informs a Magistrate that Z, a police-officer, subordinate to such Magistrate, has been guilty of neglect of duty or misconduct knowing such information to be false, and knowing it to be likely that the information will cause the Magistrate to dismiss Z. A has committed the offence defined in this section.

(b) A falsely informs a public servant that Z has contraband salt in a secret place, knowing such information to be false and knowing that it is likely that the consequence of the information will be a search of Z's premises, attended with annoyance to Z, A has committed the offence defined in this section.

(c) A falsely informs a policeman that he has been assaulted and robbed in the neighbourhood of a particular village. He dose not mention the name of any person as one of his assailants, but knows it to be likely that in consequence of this information the police will make enquiries and institute searches in the village to the annoyance of the villagers or some of them. A has committed an offence under this section.

183. Resistance to the taking of property by the lawful authority of a public servant.— Whoever offers any resistance to the taking of any property by the lawful authority of any public servant, knowing or having reason to believe that he is such public servant, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to one thousand taka, or with both.

184. Obstructing sale of property offered for sale by authority of public servant.— Whoever intentionally obstructs any sale of property offered for sale by the lawful authority of any public servant, as such, shall be punished with imprisonment of either description for a term which may extend to one month, or with fine which may extend to five hundred taka, or with both.

185. Illegal purchase or bid for Property offered for sale by authority of public servant.— Whoever, at any sale of property held by the lawful authority of a public servant, as such, purchases or bids for any property on account of any person, whether himself or any other, whom he knows to be under a legal incapacity to purchase that property at that sale, or bids for such property not intending to perform the obligations under which he lays himself by such bidding, shall be punished with imprisonment of either description for a term which may extend to one month, or with fine which may extend to two hundred taka, or with both.

186. Obstructing public servant in discharge of public functions.— Whoever voluntary obstructs any public servant in the discharge of his public functions, shall be punished with imprisonment of either description for a term which may extend to three months, or with fine which may extend to five hundred taka, or with both.

187. Omission to assist public servant when bound by law to give assistance.— Whoever, being bounded by law to render or furnish assistance to any public servant in the execution of his public duty, intentionally omits to give such assistance, shall be punished with simple imprisonment for a term which may extend to one month, or with fine which may extend to two hundred taka, or with both;

and if such assistance be demanded of him by a public servant legally competent to make such demand for the purposes of executing any process lawfully issued by a Court of Justice, or of preventing the commission of an offence, or of suppressing a riot, or affray, or of apprehending a person charged with or guilty an offence, or of having escaped from lawful custody, shall be punished with simple imprisonment for a term which may extend to six months, or with fine which may extend to five hundred taka, or with both.

188. Disobedience to order duly promulgated by public servant.— Whoever, knowing that, by an order promulgated by a public servant lawfully empowered to promulgate such order, he is directed to abstain from a certain act, or to take certain order with certain property in his possession or under his management, disobeys such direction,

shall, if such disobedience causes or tends to cause obstruction, annoyance or injury, or risk of obstruction, annoyance or injury, to any person lawfully employed, be punished with simple imprisonment for a term which may extend to one month, or with fine which may extend to two hundred taka, or with both;

and if such disobedience causes or tends to cause danger to human life, health or safety, or causes or tends to cause a riot or affray, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to one thousand taka, or with both.

Explanation.— It is not necessary that the offender should intend to produce harm, or contemplate his disobedience as likely to produce harm. It is sufficient that he knows of the order which he disobeys, and that his disobedience produces, or is likely to produce, harm.

Illustration

An order is promulgated by a public servant lawfully empowered to promulgate such order, directing that a religious procession shall not pass down a certain street. A knowingly disobeys the order, and thereby causes danger of riot. A has committed the offence defined in this section.

189. Threat of injury to public servant.— Whoever holds out any threat of injury to any public servant, or to any person in whom he believes that public servant to be interested, for the purpose of inducing that public servant to do any act, or to forbear or delay to do any act, connected with the exercise of the public functions of such public servant, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

190. Threat of injury to induce person to refrain from applying for protection to public servant.— Whoever holds out any threat of injury to any person for the purpose of inducing that person to refrain or desist from making a legal application for protection against any injury to any public servant legally empower as such to give such protection, or to cause such protection to be given, shall be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both.

CHAPTER XI

OF FALSE EVIDENCE AND OFFENCES AGAINST PUBLIC JUSTICE

191. Giving false evidence.— Whoever being legally bound by an oath or by an express provision of law to state the truth, or being bound by law to make a declaration upon any subject, makes any statement which is false, and which he either knows or believes to be false or does not believe to be true, is said to give false evidence.

Explanation 1.— A statement is within the meaning of this section, whether it is made verbally or otherwise.

Explanation 2.— A false statement as to the belief of the person attesting is within the meaning of this section, and a person may be guilty of giving false evidence by stating that he believes a thing which he dose not believe, as well as by stating that he knows a thing which he dose not know.

Illustrations

(a) A, in support of a just claim which B has against Z for one thousand taka, falsely swears on a trial that he heard Z admit the justice of B's claim, A has give false evidence.

(b) A, being bound by an oath to state the truth, states that he believes a certain signature to be the handwriting of Z, when he does not believe it to be the handwriting of Z. Here A states that which he knows to be false, and therefore gives false evidence.

(c) A, knowing the general character of Z's handwriting, states that he believes a certain signature to be the handwriting of Z; A in good faith believing it to be so. Here A's statement is merely as to his belief, and is true as to his belief, and therefore, although the signature may not be the handwriting of Z, A has not given false evidence.

(d) A, being bound by an oath to state the truth, states that he knows that Z was at a particular place on a particular day, not knowing anything upon the subject. A gives false evidence whether Z was at that place on day the named or not.

(e) A, an interpreter or translator, gives or certifies as a true interpretation or translation of a statement or document, which he is bound by oath to interpret or translate truly, that which is not and which he does not believe to be true interpretation or translation. A has given false evidence.

192. Fabricating false evidence.— Whoever causes any circumstance to exist or makes any false entry in any book or record, or makes any document containing a false statement, intending that such circumstance, false entry or false statement may appear in evidence in a judicial proceeding, or in a proceeding taken by law before a public servant as such, or before an arbitrator, and that such circumstance, false entry or false statement, so appearing in evidence, may cause any person who in such proceeding is to form an opinion upon the evidence, to entertain an erroneous opinion touching any point material to the result of such proceeding, is said "to fabricate false evidence".

Illustrations

(a) A puts jewels into a box belonging to Z, with the intention that they may be found in that box, and that this circumstance may cause Z to be convicted of theft. A has fabricated false evidence.

(b) A makes a false entry in his shop-book for purpose of using it as corroborative evidence in a Court of Justice. A has fabricated false evidence.

(c) A, with the intention of causing Z to be convicted of a criminal conspiracy, writes a letter in imitation of Z's handwriting, purporting to be addressed to an accomplice in such criminal conspiracy, and puts the letter in a place which he knows that the officers of the Police are likely to search. A has fabricated false evidence.

193. Punishment for false evidence.— Whoever intentionally gives false evidence in any stage of a judicial proceeding, or fabricates false evidence for the purpose of being used in any stage of a judicial proceeding, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine ;

and whoever intentionally gives or fabricates false evidence in any other case, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine.

Explanation 1.— A trial before a Court-martial is a judicial proceeding.

Explanation 2.— An investigation directed by law preliminary to a proceeding before a Court of Justice, is a stage of a Judicial proceeding, though that investigation may not take place before a Court of Justice.

Illustrations

A, in an enquiry before a Magistrate for the purpose of ascertaining whether Z ought to be committed for trial, makes on oath a statement which he knows to be false. As this enquiry is a stage of a judicial proceeding, A has given false evidence.

Explanation 3.— An investigation directed by a Court of Justice according to law, and conducted under the authority of a Court of Justice, is a stage of a judicial proceeding, though that investigation may not take place before a Court of Justice.

Illustration

A, in an enquiry before an officer deputed by a Court of Justice to ascertain on the spot the boundaries of land, makes on oath statement which he knows to be false. As this enquiry is a stage of judicial proceeding. A has given false evidence.

194. Giving or fabricating false evidence with intent to procure conviction of capital offence;— Whoever gives or fabricates false evidence, intending thereby to cause, or knowing it to be likely that he will thereby cause, any person to be convicted of an offence which is capital by any law for the time being in force, shall be punished with transportation for life, or with rigorous imprisonment for a term which may extend to ten years, and shall also be liable to fine ;

If innocent person be thereby convicted and executed.— and if an innocent person be convicted and executed in consequence of such false evidence, the person who gives such false evidence shall be punished either with death or the punishment here in before described.

195. Giving or fabricating false evidence with intent to procure conviction of offence punishable with transportation or imprisonment.—Whoever gives or fabricates false evidence intending thereby to cause, or knowing it to be likely that he will thereby cause, any person to be convicted of an offence which by any law for the time being in force is not capital, but punishable with transportation for life, or imprisonment for a term of seven years or upwards, shall be punished as a person convicted of that offence would be liable to be punished.

Illustration

A gives false evidence before a Court of Justice, intending thereby to cause Z to be convicted of a dacoity. The punishment of dacoity is

transportation for life, or rigorous imprisonment for a term which may extend to ten years, with or without fine. A, therefore, is liable to such transportation or imprisonment, with or without fine.

196. Using evidence known to be false.— Whoever corruptly uses or attempts to use as true or genuine evidence any evidence which he knows to be false or fabricated, shall be punished in the same manner as if he gave or fabricated false evidence.

197. Issuing or signing false certificate.— Whoever issues or signs any certificate required by law to be given or signed, or relating to any fact of which such certificate is by law admissible in evidence, knowing or believing that such certificate is false in any material point, shall be punished in the same manner as it he gave false evidence.

198. Using as true a certificate known to be false.— Whoever corruptly uses or attempts to use any such certificate as a true certificate, knowing the same to be false in any material point, shall be punished in the same manner as if he gave false evidence.

199. False statement made in declaration which is by law receivable as evidence.— Whoever, in any declaration made or subscribed by him, which declaration any Court of Justice, or any public servant or other person, is bound or authorised by law to receive as evidence of any fact, makes any statement which is false, and which he either knows or believes to be false or dose not believe to be true, touching any point material to the object for which the declaration is made or used, shall be punished in the same manner as if he gave false evidence.

200. Using as true such declaration knowing it to be false.— Whoever corruptly uses or attempts to use as true any such declaration, knowing the same to be false in any material point, shall be punished in the same manner as if he gave false evidence.

Explanation.– A declaration which is inadmissible merely upon the ground of some informality, is a declaration within the meaning of sections 199 and 200.

201. Causing disappearance of evidence or offence, or giving false information to screen offender.— Whoever, knowing or having reason to believe that an offence has been committed, causes any evidence of the commission of that offence to disappear, with the

intention of screening the offender from legal punishment, or with that intention gives any information respecting the offence which he knows or believes to be false,

If a capital Offence,— shall, if the offence which he knows or believes to have been committed is punishable with death, be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine ;

If punishable with transportation of life.— and if the offence is punishable with transportation for life, or with imprisonment which may extend to ten years, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine ;

If punishable with less than ten years' imprisonment.— and if the offence is punishable with imprisonment for any term no extending to ten years, shall be punished with imprisonment of the description provided for the offence, for a term which may extend to one-forth part of the longest term of the imprisonment provided for the offence, or with fine, or with both.

Illustration

A, knowing that B has murdered Z, assists B to hide the body with the intention of screening B from punishment. A is liable to imprisonment of either description for seven years, and also to fine.

202. Intentional omission to give information of offence by person bound to inform.— Whoever, knowing or having reason to believe that an offence has been committed, intentionally omits to give any information respecting that offence which he is legally bound to give, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine, or with both.

203. Giving false information respecting an offence committed.— Whoever, knowing or having reason to believe that an offence has been committed, gives any information respecting that offence which he knows or believes to be false, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

Explanation.— In sections 201 and 202 and in this section the word "offence" includes any act committed at any place out of Bangladesh, which, if committed in Bangladesh would be punishable under any of the

following sections, namely, 302, 304, 382, 392, 393, 394, 395, 396, 397, 398, 399, 402, 402, 435, 436, 449, 450, 457, 458, 459 and 460.

204. Distraction of document to prevent its production as evidence.— Whoever secrets or destroys any document which he may be lawfully compelled to produce as evidence in a Court of Justice, or in any proceeding lawfully held before a public servant, as such, or obliterates or renders illegible the whole or any part of such document with the intention of preventing the same from being produced or used as evidence before such Court or public servant as aforesaid, or after he shall have been lawfully summoned or required to produce the same for that purpose, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

205. False personation for purpose of act or proceeding in suit or prosecution.— Whoever falsely personates another, and in such assumed character makes any admission or statement, or confesses judgement, or causes any process to be issued or becomes bail or security, or any other act in any suit or criminal prosecution, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

206. Fraudulent removal or concealment of property to prevent its seizure as forfeited or in execution.— Whoever fraudulently removes, conceals, transfers or delivers to any person any property or any interest therein, intending thereby to prevent that property or interest therein from being taken as a forfeiture or in satisfaction of a fine, under a sentence which has been pronounced, or which he knows to be likely to be pronounced, by a Court of Justice or other competent authority, or from being taken in execution of a decree or order which has been made, or which he knows to be likely to be made by a Court of Justice in a civil suit, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

207. Fraudulent claim to property to prevent its seizure as forfeited or in execution.— Whoever fraudulently accepts, receives or claims any property or any interest therein, knowing that he has no right or rightful claim to such property or interest, or practices any deception touching any right to any property or any interest therein, intending thereby to prevent that property or interest therein from being taken as a forfeiture or in satisfaction of a fine, under a sentence which has been pronounced, or which he knows to be likely to be pronounced by a Court of Justice or other competent authority, or from being taken in execution of a decree or order which has been made, or which he knows to be likely

to be made by a Court of Justice in a civil suit, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

208. Fraudulently suffering decree for sum not due.— Whoever fraudulently causes or suffers a decree or order to be passed against him at the suit of any person for a sum not due, or for a larger sum than is due to such person or for any property or interest in property to which such person is not entitled, or fraudulently causes or suffers a decree or order to be executed against him after it has been satisfied, or for anything in respect of which it has been satisfied, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

Illustration

A institutes a suit against Z. Z, knowing that A is likely to obtain a decree against him fraudulently suffers a judgement to pass against him for a larger amount at the suit of B, who has no just claim against him, in order that B, either on his own account or for the benefit of Z, may share in the proceeds of any sale of Z's property which may be made under A's decree. Z has committed an offence under this section.

209. Dishonestly making false claim in Court.— Whoever fraudulently or dishonestly, or with intent to injure or annoy any person, makes in a Court of Justice any claim which he knows to be false, shall be punished with imprisonment of either description for a term which may extend to two years, and shall also be liable to fine.

210. Fraudulently obtaining decree for sum not due.— Whoever fraudulently obtains a decree or order against any person for a sum not due, or for a larger sum than is due, or for any property or interest in property to which he is not entitled, or fraudulently causes a decree or order to be executed against any person after it has been satisfied or for anything respect of which it has been satisfied, or fraudulently suffers or permits any such act to be done in his name, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

211. False charge or offence made with intent to injure.— Whoever, with intent to cause injury to any person, institutes or causes to be instituted any criminal proceeding against that person, or falsely charges any person with having committed an offence, knowing there is

no just or lawful ground for such proceeding or charge against that person, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

and if such criminal proceeding be instituted on a false charge of an offence punishable with death, transportation for life, or imprisonment for seven years or upwards, shall be punishable with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

212. Harbouring offender.— Whenever an offence has been committed, whoever harbours or conceals a person whom he knows or has reason to believe to be the offender, with the intention of screening him from legal punishment,

If a capital offence.— shall, if the offence is punishable with death, be punished with imprisonment of either description for a term which may extend to five years, and shall also be liable to fine ;

If punishable with transportation for life, or with imprisonment.— and if the offence is punishable with transportation for life or with imprisonment which may extend to ten years, shall be punished with imprisonment of either description for term which may extend to three years, and shall also be liable to fine ;

and if the offence is punishable with imprisonment which may extend to one year, and not to ten years, shall be punished with imprisonment of the description provided for the offence for a term which may extend to one-forth part of them longest term of imprisonment provided for the offence, or with fine, or with both.

"Offence" in this section includes any act committed at any place out of Bangladesh, which if committed in Bangladesh, would be punishable under any of the following sections, namely, 302, 304, 382, 392, 393, 394, 395, 396, 397, 398, 399, 402, 435, 436, 449 450, 457, 458, 459 and 460 ; and every such act shall, for the purposes of this section, be deemed to be punishable as if the accused person had been guilty of it in the country.

Exception.— This provision shall not extend to any case in which the harbour or concealment is by the husband or wife of the offender.

Illustration

A, knowing that B has committed dacoity, knowingly conceals B in order to screen him from legal punishment. Here, as B is liable to transportation for life, A is liable to imprisonment of either description for a term not exceeding three years, and is also liable to fine.

213. Taking gift etc., to screen an offender from punishment— Whoever accepts or attempts to obtain, or agrees to accept, any gratification for himself or any other person, or any restitution of property to himself or any other person, in consideration of his concealing an offence or of his screening any person from legal punishment for any offence, or of his not proceeding against any person for the purpose of bringing him to legal punishment,

If a capital offence;— shall, if the offence is punishable with death, be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine ;

If punishable with transportation for life or with imprisonment.— and if the offence is punishable with transportation for life, or with imprisonment which may extend to ten years, shall be punished with imprisonment of either description for a term which may extend to three years and shall also be liable to fine ;

and if the offence is punishable with imprisonment not extending to ten years, shall be punished with imprisonment of the description provided for the offence for a term which may extend to one-fourth part of the longest term of imprisonment provided for the offence, or with fine or with both.

214. Offering gift or restoration of property in consideration of screening offender.— Whoever gives or causes, or offers or agrees to give or cause, any gratification to any person, or to restore or cause the restoration of any property to any person, in consideration of the person's concealing an offence, or of his screening any person from legal punishment for any offence, or of his not proceeding against any person for the purpose of bringing him to legal punishment,

If a capital offence.— shall, if the offence is punishable with death, be punished with imprisonment of either description for a term which may be extend to seven years and shall also be liable to fine ;

If punishable with transportation for life or with imprisonment.— and if the offence is punishable with transportation for life, or with imprisonment which may extend to ten years, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine ;

and if the offence is punishable with imprisonment not extending to ten years, shall be punished with imprisonment of the description provided for the offence for a term which may extend to one-fourth part of the longest term of imprisonment provided for the offence, or with fine, or with both.

Exception.— The provisions of sections 213 and 214 do not extend to any case in which the offence, may lawfully be compounded.

215. Taking gift to help to recover stolen property etc.— Whoever takes or agrees or consents to take any gratification under pretence or on account of helping any person to recover any moveable property of which he shall have been deprived by any offence punishable under this Code, shall unless he uses all means in his power to cause the offender to be apprehended and convicted of the offence, be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

216. Harbouring offender who has escaped from custody or whose apprehension has been ordered.— Whenever any person convicted of or charged with an offence, being in lawful custody for that offence, escapes from such custody,

or, whenever a public servant, in the exercise of the lawful powers of such public servant, orders a certain person to be apprehended for an offence, whoever knowing of such escape or order for apprehension, harbours or conceals that person with the intention of preventing him from being apprehended, shall be punished in the manner following, that is to say,

If a capital offence;— if the offence for which the person was in custody or is ordered to be apprehended is punishable with death, he shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine ;

If punishable with transportation for life or with imprisonment.— If the offence is punishable with transportation for life, or imprisonment for ten years, he shall be punished with imprisonment of either description for a term which may extend to three years, with or without fine ;

and if the offence is punishable with imprisonment which may extend to one year and not to ten years, he shall be punished with imprisonment of the description provided for the offence for a term which may extend to one-fourth part of the longest term of the imprisonment provided for such offence or with fine, or with both.

"Offence" in this section includes also any act or omission of which a person is alleged to have been guilty out of Bangladesh which, if he had been guilty of it in Bangladesh, would have been punishable as an offence, and for which he is, under any law relating to extradition, or under the Fugitive offenders Act, 1881, or otherwise, liable to be apprehended or detained in custody in Bangladesh, and every such act or omission shall, for the purposes of this section, be deemed to be punishable as if the accused person had been guilty of it in Bangladesh.

Exception.— This provision does not extend to the case in which the harbour or concealment is by the husband or wife of the person to be apprehended.

216A. Penalty for harbouring robbers or dacoits.— Whoever, knowing or having reason to believe that any persons are about to commit or have recently committed robbery or dacoity, harbours them or any of them, with the intention of facilitating the commission of such robbery or dacoity, or of screening them or any of them from punishment, shall be punished with rigorous imprisonment for a term which may extend to seven years, and shall also be liable to fine.

Explanation.— For the purposes of this section it is immaterial whether the robbery or dacoity is intended to be committed, or has been committed, within or outside Bangladesh.

Exception.— This provision does not extend to the case in which the harbour is by the husband or wife of the offender.

217. Public servant disobeying direction of law with intent to save person from punishment or property from forfeiture.— Whoever, being a public servant, knowingly disobeys any direction of the law as to the way in which he is to conduct himself as such public servant, intending thereby to save, or knowing it to be likely that he will thereby save, any person from legal punishment, or subject him to a less punishment than that to which he is liable or with intent to save, or knowing that he is likely thereby to save, any property from forfeiture or any charge to which it is liable by law, shall be punished with imprisonment of either

description for a term which may extend to two years, or with fine, or with both.

218. Public servant framing incorrect record or writing with intent to save person from punishment or property from forfeiture.— Whoever, being a public servant, and being as such public servant, charged with the preparation of any record or other writing, frames that record or writing in a manner which he knows to be incorrect, with intent to cause, or knowing it to be likely that he will thereby cause, loss or injury to the public or to any person, or with intent thereby to save, or knowing it to be likely that he will thereby save, any person from legal punishment, or with intent to save, or knowing that he is likely thereby to save, any property from forfeiture or other change to which it is liable by law, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

219. Public servant in judicial proceeding corruptly making report, etc., contrary to law.— Whoever, being a public servant, corruptly or maliciously makes or pronounces in any stage of a judicial proceeding, any report, order, verdict, or decision which he knows to be contrary to law, shall be punished with imprisonment of either description for a term which may extend to seven years, or with fine, or with both.

220. Commitment for trial or confinement by person having authority who knows that he is acting contrary to law.— Whoever, being in any office which gives him legal authority to commit persons for trial or to confinement, or to keep persons in confinement, corruptly or maliciously commits any person for trial or confinement, or keeps any person in confinement, in the exercise of that authority, knowing that in so doing he is acting contrary to law, shall be punished with imprisonment of either description for a term which may extend to seven years, or with fine, or with both.

221. Intentional omission to apprehend on the part of public servant bound to apprehend.— Whoever, being a public servant, legally bound as such public servant to apprehend or to keep in confinement any person charged with or liable to be apprehended for an offence, intentionally omits to apprehend such person, or intentionally suffers such person to escape, or intentionally aids such person in escaping or attempting to escape from such confinement, shall be punished as follows, that is to say :–

with imprisonment of either description for a term which may extend to seven years, with or without fine, if the person in confinement, or who ought to have been apprehended, was charged with, or liable to be apprehended for an offence punishable with death ; or

with imprisonment of either description for a term which may extend to three years, with or without fine, if the person in confinement, or who ought to have been apprehended, was charged with, or liable to be apprehended for, an offence punishable with transportation for life or imprisonment for a term which may extend to ten years ; or

with imprisonment of either description for a term which may extend to two years, with or without fine, if the person in confinement, or who ought to have been apprehended, was charged with, or liable to be apprehended for, an offence punishable with imprisonment for a term less than ten years.

222. Intentional omission to apprehend on the part of public servant bound to apprehend person under sentence or lawfully committed.— Whoever, being a pubic servant, legally bound as such public servant to apprehend or to keep in confinement any person under sentence of a Court of Justice for any offence, or lawfully committed to custody, intentionally omits to apprehend such person, or intentionally suffers such person to escape, or intentionally aids such person in escaping or attempting to escape form such confinement, shall be punished as follows that is to say :–

With transportation for life or with imprisonment of either description for a term which may extend to fourteen years, with or without fine, if the person in confinement, or who ought to have been apprehended, is under sentence of death ; or

with imprisonment of either description for a term which may extend to seven years, with or without fine, if the person in confinement, or who ought to have been apprehended, is subject, by a sentence of a Court of Justice, or by virtue of a commutation of such sentence, to transportation for life or to transportation or imprisonment for a term of ten years or upwards ; or

with imprisonment of either description for a term which may extend to three years, or with fine, or with both, if the person in confinement, or who ought to have been apprehended is subject, by sentence of a Court of Justice, to imprisonment for a term not extending to ten years or if the person was lawfully committed to custody.

223. Escape from confinement or custody negligently suffered by public servant.— Whoever, being a public servant, legally bound as such public servant to keep in confinement any person charged with or

convicted of any offence or lawfully committed to custody, negligently suffers such person to escape form confinement, shall be punished with simple imprisonment for a term which may extend to two years, or with fine, or with both.

224. Resistance or obstruction by a person to his lawful apprehension.— Whoever intentionally offers any resistance or illegal obstruction to the lawful apprehension of himself for any offence, with which he is charged or of which he has been convicted, or escapes or attempts to escape from any custody in which he is lawfully detained for any such offence shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

Explanation.— The punishment in this section is in addition to the punishment for which the person to be apprehended or detained in custody was liable for the offence with which he was charged, or of which he was convicted.

225. Resistance or obstruction to lawful apprehension of another person.— Whoever intentionally offers any resistance or illegal obstruction to the lawful apprehension of any other person for any offence, or rescues or attempts to rescue any other person from for any custody in which that person is lawfully detained for an offence, shall be punished with imprisonment of either description for term which may extend to two years, or with fine, or with both ;

or, if the person to be apprehended, or the person rescued or attempted to be rescued, is charged with or liable to be apprehended for an offence punishable with transportation for life or imprisonment for a term which may extend to ten years, and shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine ;

or, if the person to be apprehended or rescued, or attempted to be rescued, is charged with or liable to be apprehended for an offence punishable with death, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine ;

or, if the person to be apprehended or rescued, or attempted to be rescued is liable under the sentence of a Court of Justice or by virtue of a commutation of such a sentence, to transportation for life, or to transportation, or imprisonment, for a term of ten years or upwards, shall

be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine ;

or, if the person to be apprehended or rescued, or attempted to be rescued, is under sentence of death, shall be punished with transportation for life or imprisonment of either description for a term not exceeding ten years, and shall also be liable to fine.

225A. Omission to apprehend, or sufferance to escape, on part of public servant, in cases not otherwise provided for.— Whoever, being a public servant legally bound as such public servant to apprehend, or to keep in confinement, any person in any case not provided for in section 221, or section 222 or section 223, or in any other law for the time being in force, omits to apprehend that person of suffers him to escape from confinement, shall be punished–

(a) if he dose so intentionally, with imprisonment of either description for a term which may extend to three years, or with fine or with both ; and

(b) if he does so negligently, with simple imprisonment for a term which may extend to two years, or with fine, or with both.

225B. Resistance or obstruction to lawful apprehension, or escape or rescue in cases not otherwise provided for.— Whoever, in any case not provided for in section 224 or section 225 or in any other law for the time being in force, intentionally offers any resistance or illegal obstruction to the lawful apprehension of himself or of any other person, or escapes or attempts to escape from any custody in which he is lawfully detained, or rescues or attempts to rescue any other person from any custody in which that person is lawfully detained, shall be punished with imprisonment of either description for a term which may extend to six months, or with both.

226. Unlawful return from transportation.— Whoever, having been lawfully transported, returns from such transportation, the term of such transportation not having expired, and his punishment not having been remitted, shall be punished with transportation for life, and shall also be liable to fine, and to be imprisoned with rigorous imprisonment for a term not exceeding three years before he is so transported.

227. Violation of condition of remission of punishment.— Whoever, having accepted any conditional remission of punishment, knowingly violates any condition on which such remission was granted,

shall be punished with the punishment to which he was originally sentenced, if he has already suffered no part of that punishment, and if he has suffered any part of that punishment, then with so much of that punishment as he has not already suffered.

228. Intentional insult or interruption to public servant sitting in judicial proceeding.— Whoever intentionally offers any insult, or causes any interruption to any public servant, while such public servant is sitting in any stage of a judicial proceeding, shall be punished with simple imprisonment for a term which may extend to six month, to with fine, which may extend to one thousand taka, or with both.

229. Personation of a juror or assessor.— Whoever, by personation or otherwise, shall intentionally cause, or knowingly suffer himself to be returned, empanelled of sworn as a juryman or assessor in any case in which he knows that he is not entitled by law to be so returned, empanelled or sworn, or knowing himself to have been so returned, empanelled or sworn contrary to law, shall voluntarily serve on such jury or as such assessor, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

CHAPTER XII

OF OFFENCES RELATING TO COIN AND GOVERNMENT STAMPS.

230. "Coin" defined. — Coin is metal used for the time being as money, and stamped and issued by the authority of some State or Sovereign Power in order to be so used.

Bangladesh Coin. — Bangladesh coin is metal stamped and issued by the authority of the Government in order to be used as money ; and metal which has been so stamped and issued shall continue to be Bangladesh coin for the purposes of this Chapter, notwithstanding that it may have ceased to be used as money.

Illustrations

(a) Cowries are not coin.

(b) Lumps of unstamped copper, though used as money, are not coin.

(c) Medals are not coin, inasmuch as they are not intended to be used as money.

(d) The coin denominated as the Company's taka is the Queen's coin.

(e) The "Farukhabad" taka which was formerly used as money under the authority of the Government of India, is Bangladesh coin although it is no longer so used.

231. Counterfeiting coin. — Whoever counterfeits or knowingly performs any part of the process of counterfeiting coin, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

Explanation — A person commits this offence who intending to practise deception, or knowing it to be likely that deception will thereby be practised, causes a genuine coin to appear like a different coin.

232. Counterfeiting Bangladesh coin. — Whoever counterfeits, or knowingly performs any part of the process of counterfeiting Bangladesh coin, shall be punished with imprisonment for life, or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

233. Making or selling instrument for counterfeiting coin. — Whoever makes or mends, or performs any part of the process of making

or mending, or buys, sells or disposes of, any die or instrument, for the purpose of being used, or knowing or having reason to believe that it is intended to be used, for the purpose of counterfeiting coin, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine.

234. Making or selling instrument for counterfeiting Bangladesh coin.— Whoever makes or mends, or performs any part of the process of making or mending or buys, sells or disposes of any die or instrument, for the purpose of being used, or knowing or having reason to believe than it is intended to be used, for the purpose of counterfeiting Bangladesh coin, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

235. Possession of instrument or material for the purpose of using the same for counterfeiting coins. — Whoever is in possession of any instrument or material, for the purpose of using the same for counterfeiting coin, or knowing or having reason to believe that the same is intended to be used for that purpose, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine ;

If Bangladesh coin— and if the coin to be counterfeited is Bangladesh coin shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

236. Abetting in Bangladesh the counterfeiting out of Bangladesh coin.— Whoever, being within Bangladesh abets the counterfeiting of coin out of Bangladesh shall be punished in the same manner as if he abetted the counterfeiting of such coin within Bangladesh.

237. Import or export of counterfeit coin.— Whoever, imports into Bangladesh or exports there from, any counterfeit coin, knowingly or having reason to believe that the same is counterfeit, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine.

238. Import or export of counterfeits of Bangladesh coin.— Whoever imports into Bangladesh or exports there from, any counterfeit coin which he knows or has reason to believe to be a counterfeit of Bangladesh coin, shall be punished with imprisonment for life, or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

239. Delivery of coin, possessed with knowledge that it is counterfeit.— Whoever, having any counterfeit coin, which at the time when he became possessed of it, he knew to be counterfeit, fraudulently or with intent that fraud may by committed, delivers the same to any person, or attempts to induce any person to receive it, shall be punished with imprisonment of either description for a term which may extend to five years, and shall also be liable to fine.

240. Delivery of Bangladesh coin possessed with knowledge that it is counter feit.— Whoever, having any counterfeit coin, which is a counterfeit of Bangladesh coin, and which, at the time when he became possessed of it, he knew to be a counterfeit of Bangladesh coin, fraudulently or with intent that fraud may be committed, delivers the same to any person, or attempts to induce any person to receive it, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

241. Delivery of coin as genuine, which, when first possessed, the deliverer did not know to be counterfeit.— Whoever delivers to any other person as genuine, or attempts to induce any other person to receive as genuine, any counterfeit coin which he knows to be counterfeit, but which he did not know to be counterfeit at the time when he took it into his possession, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine to an amount which may extend to ten times the value of the coin counterfeited, or with both.

Illustration

A, a coiner, delivers counterfeit Company's taka to his accomplice B, for the purpose of uttering them. **B** sells the taka to **C,** another, utterer, who buys them knowing them to be counterfeit. **C** pays away the taka for goods to **D,** who receives them, not knowing them to be counterfeit. **D,** after receiving the taka, discovers that they are counterfeit and pays them away as if they were good. Here **D** is punishable only under this section, but **B** and **C** are punishable under Section 239 or 240, as the case may be.

242. Possession of counterfeit coin by person who knew it to be counterfeit when he became possessed thereof.— Whoever, fraudulently or with intent that fraud may be committed, is in possession of counterfeit coin, having known at the time when he became possessed thereof, that such coin was counterfeit, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine.

243. Possession of Bangladesh coin by person who knew it to be counterfeit when he became possessed thereof.— Whoever, fraudulently or with intent that fraud may be committed, is in possession of counterfeit coin, which is counterfeit of Bangladesh coin, having known at the time when he became possessed of it that it was counterfeit, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

244. Person employed in mint causing coin to be of different weight or composition from that fixed by law.— Whoever, being employed in any mint lawfully established in Bangladesh, does any act, or omits what he is legally bound to do, with the intention of causing any coin issued from that mint to be of a different weight or composition from the weight or composition fixed by law, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

245. Unlawfully taking coining instrument from mint. — Whoever, without lawful authority, takes out of any mint, lawfully established in Bangladesh, any coining tool or instrument, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

246. Fraudulently or dishonestly diminishing weight or altering composition of coin. — Whoever, fraudulently or dishonestly performs on any coin any operation which diminishes the weight or alters the composition of that coin, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine.

Explanation — A person who scoops out part of the coin and puts anything else into the cavity alters the composition of that coin.

247. Fraudulently or dishonestly diminishing weight or altering composition of Bangladesh coin. — Whoever fraudulently or dishonestly performs on any Bangladesh coin, any operation which diminishes the weight or alters the composition of that coin, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

248. Altering appearance of coin with intent that it shall pass as coin of different description.— Whoever performs on any coin any operation which alters the appearance of the coin, with the intention that

the said coin shall pass as a coin of a different description, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine.

249. Altering appearance of Bangladesh coin with intent that it shall pass as coin of different description.— Whoever performs on any Bangladesh coin any operation which alters the appearance of that coin, with the intention that the said coin shall pass as a coin of a different description, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

250. Delivery of coin, possessed with knowledge that it is altered.— Whoever, having coin in his possession with respect to which the offence defined in Section 246 or 248 has been committed, and having known at the time when he became possessed of such coin that such offence had been committed, with respect to it, fraudulently or with intent that fraud may be committed, delivers such coin to any other person, or attempts to induce any other person to receive the same, shall be punished with imprisonment of either description for a term which may extend to five years, and shall also be liable to fine.

251. Delivery of Bangladesh coin possessed with knowledge that it is altered.— Whoever, having coin in his possession with respect to which the offence defined in Section 247 or 249 has been committed, and having known at the time when became possessed of such coin that such offence had been committed with respect to it, fraudulently or with intent that fraud may be committed, delivers such coin to any other person, or attempts to induce any other person to receive the same, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

252.Possession of coin by person who knew it to be altered when he became possessed thereof.— Whoever fraudulently or with intent that fraud may be committed, is in possession of coin with respect to which the offence defined in either of the Section 246 or 248 has been committed, having known at the time of becoming possessed thereof that such offence had been committed with respect to such coin, shall be punished with imprisonment of either description for a term which may extend to three years, and shall be liable to fine.

253. Possession of Bangladesh coin by person who knew it to be altered when he became possessed thereof.— Whoever, fraudulently or with intent that fraud may be committed, is in possession of coin with respect to which the offence defined in either of the Section 247

or 249 has been committed, having known at the time of becoming possessed thereof, that such offence had been committed with respect to such coin, shall be punished with imprisonment of either description for a term which may extend to five years, and shall also be liable to fine.

254. Delivery of coin as genuine which, when first possessed the deliverer did not know to be altered.— Whoever delivers to any other person as genuine or as a coin of a different description from what it is, or attempts to induce any person to receive as genuine, or as a different coin from what it is, any coin in respect of which he knows that any such operations as that mentioned in Section 246, 247, 248 or 249 has been performed, but in respect of which he did not, at the time when he took it into his possession, know that such operation had been performed, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine to an amount which may extend to ten times the value of the coin for which the altered coin is passed, or attempted to be passed.

255. Counterfeiting Government stamp.— Whoever counterfeits, or knowingly performs any part of the process of counterfeiting, any stamp issued by Government for the purpose of revenue, shall be punished with imprisonment for life or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

Explanation — A person commits this offence who counterfeits by causing a genuine stamp of one denomination to appear like a genuine stamp of a different denomination.

256. Having possession of instrument or material for counterfeiting Government stamp.— Whoever has in his possession any instrument of material for the purpose of being used, or knowing or having reason to believe that it is intended to be used, for the purpose of counterfeiting any stamp issued by Government for the purpose of revenue, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

257. Making or selling instrument for counterfeiting Government stamp.— Whoever makes or performs any part of the process of making, or buys, or sells, or disposes of, any instrument for the purpose of being used, or knowing or having reason to believe that it is intended to be used, for the purpose of counterfeiting any stamp issued by Government for the purpose of revenue, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

258. Sale of counterfeit Government stamp.— Whoever sells, or offers for sale, any stamp which he knows or has reason to believe to be a counterfeit of any stamp issued by Government for the purpose of revenue, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

259. Having possession of counterfeit Government stamp.— Whoever has in his possession any stamp which he knows to be a counterfeit of any stamp issued by Government for the purpose of revenue, intending to use, or dispose of the same as a genuine stamp, or in order that it may be used as a genuine stamp, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

260. Using as genuine a Government stamp known to be counterfeit.— Whoever uses as genuine any stamp, knowing it to be a counterfeit of any stamp issued by Government for the purpose of revenue, shall be punished with imprisonment of either description for a term which may extend to seven years, or with fine, or with both.

261. Effacing writing from substance bearing Government stamp, or removing from document a stamp used for it, with intent to cause loss to Government.— Whoever fraudulently or with intent to cause loss to the Government, removes or effaces from any substance, bearing any stamp issued by Government for the purpose of revenue, any writing or document for which such stamp has been used, or removes from any writing or document a stamp which has been used for such writing or document, in order that such stamp may be used for a different writing or document, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

262. Using Government stamp known to have been before used.— Whoever fraudulently or with intent to cause loss to the Government, uses for any purpose a stamp issued by Government for the purpose of revenue, which he knows to have been before used, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

263. Erasure of mark denoting that stamp has been used.— Whoever fraudulently or with intent to cause loss to Government, erases or removes from a stamp issued by Government for the purpose of revenue, any mark, put or impressed

upon such stamp for the purpose of denoting that the same has been used, or knowingly has in his possession or sells or disposes of any such stamp from which such mark has been erased or removed, or sells or disposes of any such stamp which he knows to have been used, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

263A. Prohibition of fictitious stamps.— (1) Whoever—

(*a*) makes, knowingly utters, deals in or sells any fictitious, stamp, or knowingly uses for any postal purpose any fictitious stamp, or

(*b*) has in his possession, without lawful excuse, any fictitious stamp, or

(*c*) makes or, without lawful excuse, has in his possession any die, plate, instrument or materials for making any fictitious stamp,

shall be punished with fine which may extend to two hundred taka.

(2) Any such stamp, die, plate, instrument or materials in the possession of any person for making any fictitious stamp may be seized and shall be forfeited.

(3) In this section "fictitious stamp" means any stamp falsely purporting to be issued by Government for the purpose of denoting a rate of postage or any *facsimile* or imitation or representation, whether on paper or otherwise, of any stamp issued by Government for that purpose.

(4) In this Section and also in sections 255 to 263 both inclusive, the word "Government" when used in connection with, or in reference to, any stamp issued for the purpose of denoting a rate of postage, shall, notwithstanding anything in Section 17, be deemed to include the person or persons authorised by law to administer executive government in any part of Bangladesh, and also in any part of Her Majesty's dominions or in any foreign country.

CHAPTER XIII

OF OFFENCES RELATING TO WEIGHTS AND MEASURES

264. Fraudulent use of false instrument for weighing.— Whoever fraudulently uses any instrument for weighing which he knows to be false, shall be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both.

265. Fraudulent use of false weight or measure.— Whoever fraudulently uses any false weight or false measure of length or capacity, or fraudulently uses any weight or any measure of length or capacity as a different weight or measure from what it is, shall be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both.

266. Being in possession of false weight or measure.— Whoever is in possession of any instrument for weighing, or of any weight, or of any measure of length or capacity, which he knows to be false, and intending that the same may be fraudulently used, shall be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both.

267. Making or selling false weight or measure.— Whoever makes, sells or disposes of any instrument for weighing, or any weight, or any measure of length or capacity which he knows to be false, in order that the same may be used as true, or knowing that the same is likely to be used as true, shall be punished with imprisonment of either description for a term which may extend to one year, or with fine or with both.

CHAPTER XIV

OF OFFENCES AFFECTING THE PUBLIC HEALTH, SAFETY, CONVENIENCE, DECENCY AND MORALS

268. Public nuisance.— A person is guilty of a public nuisance who does any act or is guilty of an illegal omission which causes any common injury, danger or annoyance to the public or to the people in general who dwell or occupy property in the vicinity, or which must necessarily cause injury, obstruction, danger or annoyance to persons who may have occasion to use any public right.

A common nuisance is not excused on the ground that it causes some convenience or advantage.

269. Negligent act likely to spread infection of disease dangerous to life.— Whoever unlawfully or negligently does any act which is, and which he knows or has reason to believe to be, likely to spread the infection of any disease dangerous to life, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine, or with both.

270. Malignant act likely to spread infection of disease dangerous to life.— Whoever malignantly does any act which is, and which he knows or has reason to believe to be, likely to spread the infection of any disease dangerous to life, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

271. Disobedience to quarantine rule.— Whoever knowingly disobeys any rule made and promulgated by the Government for putting any vessel into a state of quarantine, or for regulating the intercourse of vessels in state of quarantine with the shore or with other vessels, or for regulating the intercourse between places where an infectious disease prevails and other places, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine, or with both.

272. Adulteration of food or drink intended for sale.— Whoever adulterates any article of food or drink so as to make such article noxious as food or drink, intending to sell such article as food or drink, or knowing it to be likely that the same will be sold as food or drink, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to one thousand taka, or with both.

273. Sale of noxious food or drink.— Whoever sells, or offers or exposes for sale, as food or drink, any article which has been rendered or has become noxious, or is in a state unfit for food or drink, knowing or having reason to believe that the same is noxious as food or drink, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to one thousand taka, or with both.

274. Adulteration of drugs.— Whoever adulterates any drug or medical preparation in such a manner as to lessen the efficacy or change the operation of such drug or medical preparation, or to make it noxious, intending that it shall be sold or used for, or knowing it to be likely that it will be sold or used for, any medicinal purpose, as if it had not undergone such adulteration, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to one thousand taka, or with both.

275. Sale of adulterated drugs.— Whoever, knowing any drug or medical preparation to have been adulterated in such a manner as to lessen its efficacy, to change its operation, or to render it noxious, sells the same, or offers or exposes it for sale, or issues it from any dispensary for medicinal purposes as unadulterated, or causes it to be used for medicinal purposes by any person not knowing of the adulteration, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to one thousand taka, or with both.

276. Sale of drug as a different drug or preparation.— Whoever knowingly sells, or offers or exposes for sale, or issues from a dispensary for medicinal purposes, any drug or medicinal preparation, as a different drug or medical preparation, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to one thousand taka, or with both.

277. Fouling water of public spring or reservoir.— Whoever, voluntarily corrupts or fouls the water of any public spring or reservoir, so as to render it less fit for the purpose for which it is ordinarily used, shall be punished with imprisonment of either description for a term which may extend to three months, or with fine which may extend to five hundred taka, or with both.

278. Making atmosphere noxious to health.— Whoever voluntarily vitiates the atmosphere in any place so as to make it noxious to the health of persons in general dwelling or carrying on business in the

neighbourhood or passing along a public way, shall be punished with fine which may extend to five hundred taka.

279. Rash driving or riding on a public way.— Whoever drives any vehicle or rides, on any public way in a manner so rash or negligent as to endanger human life, or to be likely to cause hurt or injury to any other person, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine which may, subject to the minimum of one thousand taka, extend to five thousand taka or with both.

Explanation.— Any person driving any vehicle, or riding, on any public way, in a speed which exceeds the limit prescribed in this behalf by or under any law for the time being in force shall, for the purpose of this section, be deemed to have been driven so rashly or negligently as to endanger human life, or cause hurt or injury to any other person.

280. Rash Navigation of vessel.— Whoever navigates any vessel in a manner so rash or negligent as to endanger human life, or to be likely to cause hurt or injury to any other person, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to one thousand taka, or with both.

281. Exhibition of false light, mark or buoy.— Whoever exhibits any false light, mark or buoy, intending or knowing it to be likely that such exhibition will mislead any navigator, shall be punished with imprisonment of either description for a term which may extend to seven years, or with fine, or with both.

282. Conveying person by water for hire in unsafe or overloaded vessel.— Whoever knowingly or negligently conveys, or causes to be conveyed for hire, any person by water in any vessel, when that vessel is in such a state or so loaded as to endanger that life of that person, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to one thousand taka, or with both.

283. Danger or obstruction in public way or line of navigation.— Whoever, by doing any act, or by omitting to take order with any property in his possession or under his charge, causes danger, obstruction or injury to any person in public way or public line of navigation, shall be punished with fine which may extend to two hundred taka.

284. Negligent conduct with respect to poisonous substance.— Whoever does, with any poisonous substance, any act in a manner so rash or negligent as to endanger human life, or to be likely to cause hurt or injury to any person,

or knowingly or negligently omits to take such order with any poisonous substance in his possession as is sufficient to guard against probable danger to human life from such poisonous substance,

shall be punished with imprisonment of either description for a term which may extend to six months, or with fine, which may extend to one thousand taka, or with both.

285. Negligent conduct with respect to fire or combustible matter.— Whoever does, with fire or any combustible matter, any act so rashly or negligently as to endanger human life, or to be likely to cause hurt or injury to any other person,

or knowingly or negligently omits to take such order with any fire or any combustible matter in his possession as is sufficient to guard against any probable danger to human life from such fire or combustible matter,

shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to one thousand taka, or with both.

286. Negligent conduct with respect to explosive substance.— Whoever does, with any explosive substance, any act so rashly or negligently as to endanger human life, or to be likely to cause hurt or injury to any other person,

or knowingly or negligently omits to take such order with any explosive substance in his possession as is sufficient to guard against any probable danger to human life from that substance,

shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to one thousand taka, or with both.

287. Negligent conduct with respect to machinery.— Whoever does, with any machinery, any act so rashly or negligently as to endanger human life or to be likely to cause hurt or injury to any other person,

or knowingly or negligently omits to take such order with any machinery in his possession or under his care as is sufficient to guard against any probable danger to human life from such machinery,

shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to one thousand taka, or with both.

288. Negligent conduct with respect to pulling down or repairing buildings.— Whoever, in pulling down or repairing any building, knowingly or negligently omits to take such order with that building as is sufficient to guard against any probable danger to human life from the fall of that building, or of any part thereof, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to one thousand taka, or with both.

289. Negligent conduct with respect to animal.— Whoever knowingly or negligently omits to take such order with any animal in his possession as is sufficient to guard against any probable danger to human life, or any probable danger of grievous hurt from such animal, shall be punished with imprisonment of either description for a term which may extend to six month, or with fine which may extend to one thousand taka, or with both.

290. Punishment for public nuisance in cases not otherwise provided for.— Whoever commits a public nuisance in any case not otherwise punishable by this Code, shall be punished with fine which may extend to two hundred taka.

291. Continuance of nuisance after injunction to discontinue.— Whoever repeats or continues a public nuisance, having been enjoined by any public servant who has lawful authority to issue such injunction not to repeat or continue such nuisance, shall be punished with simple imprisonment for a term which may extend to six months, or with fine, or with both.

292. Sale, etc., of obscene books, etc.— Whoever**—**

(*a*) sells, lets to hire, distributes, publicly exhibits or in any manner puts into circulation, or for purposes of sale, hire, distribution, public exhibition or circulation, makes, produces or has in his possession any obscene book, pamphlet, paper, drawing, painting, representation or figure or any other obscene object whatsoever, or

(*b*) imports, exports or conveys any obscene object for any of the purposes aforesaid, or knowing or having reason to believe that such object will be sold, let to hire, distributed or publicly exhibited or in any manner put into circulation, or

(*c*) takes part in or receives profits from any business in the course of which he knows or has reason to believe that any such obscene objects are, for any of the purposes aforesaid, made, produced, purchased, kept, imported, exported, conveyed, publicly exhibited or in any manner put into circulation, or

(*d*) advertises or makes known by any means whatsoever that any person is engaged or is ready to engage in any act which is an offence under this section, or that any such obscene object can be procured from or through any person, or

(*e*) offers or attempts to do any act which is an offence under this section,

shall be punished with imprisonment of either description for a term which may extend to three months, or with fine, or with both.

Exception.— This section does not extend to and book, pamphlet, writing, drawing or printing kept or used *bona fide* for religious purposes or any representation sculptured, engraved, painted or otherwise represented on or in any temple, or on any car used for the conveyance of idols, or kept or used for any religious purpose.

293. Sale, etc., of obscene objects to young person.— Whoever sells, lets to hire, distributes, exhibits or circulates to any person under the age of twenty years any such obscene object as is referred to in the last preceding section, or offers or attempts so to do, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine, or with both.

294. Obscene acts and songs.— Whoever, to the annoyance of others,

(*a*) does any obscene act in any public place, or

(*b*) sings, recites or utters any obscene songs, ballad or words, in or near any public place,

shall be punished with imprisonment of either description for a term which may extend to three months, or with fine, or with both.

294A. Keeping lottery office.— Whoever keeps any office or place for the purpose of drawing any lottery not being a State lottery or a

lottery authorised by the Government shall be punished with imprisonment of either description for a term which may extend to six months, or with fine, or with both.

And whoever publishes any proposal to pay any sum, or to deliver any goods, or to do or forbear doing anything for the benefit of any person, on any event or contingency relative or applicable to the drawing of any ticket lot, number or figure in any such lottery shall be punished with fine which may extend to one thousand taka.

294B. Offering of prize in connection with trade, etc.— Whoever offers, or undertakes to offer, in connection with any trade or business or sale of any commodity, any prize, reward or other similar consideration, by whatever

name called, whether in money or kind, against any coupon, ticket, number or figure, or any other device, as an inducement or encouragement to trade or business or to the buying of any commodity or for the purpose of advertisement or popularising any commodity, and whoever publishes any such offer, shall be punishable with imprisonment of either description for a term which may extend to six months, or with fine, or with both.

CHAPTER XV

OF OFFENCES RELATING TO RELIGION

295. Injuring or defiling place of worship, with intent to insult the religion of any class.— Whoever destroys, damages or defiles any place of worship, or any object held sacred by any class of persons with the intention of thereby insulting the religion of any class of persons or with the knowledge that any class of person is likely to consider such destruction, damage or defilement as an insult to their religion, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

295A. Deliberate and malicious acts intended to outrage religious feelings of any class by insulting its religion or religious beliefs.— Whoever, with deliberate and malicious intention of outraging the religious feelings of any class of the citizens of Bangladesh, by words, either spoken or written, or by visible representations, insults or attempts to insult the religion or the religious beliefs of that class, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

296. Disturbing religious assembly.— Whoever voluntarily causes disturbance to any assembly lawfully engaged in the performance of religious worship, or religious ceremonies, shall be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both.

297. Trespassing on burial places, etc.— Whoever, with the intention of wounding the feelings of any person, or of insulting the religion of any person, or with the knowledge that the feelings of any person are likely to be wounded, or that the religion of any person is likely to be insulted thereby,

commits any trespass in any place of worship or on any place of sepulchre, or any place set apart for the performance of funeral rites or as a depository for the remains of the dead, or offers any indignity to any human corpse, or causes disturbance to any persons assembled for the performance of funeral ceremonies,

Shall be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both.

298. Uttering words, etc., with deliberate intent to wound religious feelings.— Whoever, with the deliberate intention of wounding the religious feelings of any person, utters any word or makes any sound in the hearing of that person or makes any gesture in the sight of that person or places any object in the sight of that person, shall be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both.

CHAPTER XVI
OF OFFENCES AFFECTING THE HUMAN BODY

Of Offences affecting Life

299. Culpable homicide.— Whoever causes death by doing an act with the intention of causing death, or with the intention of causing such bodily injury as is likely to cause death, or with the knowledge that he is likely by such act to cause death, commits the offence of culpable homicide.

Illustrations

(*a*) A lays sticks and turf over a pit, with the intention of thereby causing death, or with the knowledge that death is likely to be thereby caused. **Z,** believing the ground to be firm, treads on it, falls in and is killed. A has committed the offence of culpable homicide.

(*b*) A knows Z to be behind a bush. B does not know it. A, intending to cause, or knowing it to be likely to cause Z's death induces B to fire at the bush. B fires and kills Z. Here B may be guilty of no offence; but A has committed the offence of culpable homicide.

(*c*) A, by shooting at a fowl with intent to kill and steal it, kills B, who is behind a bush, A not knowing that he was there. Here, although A was doing an unlawful act, he was not guilty of culpable homicide, as he did not intend to kill B or cause death by doing an act that he knew was likely to cause death.

Explanation 1.— A person who causes bodily injury to another who is labouring under a disorder, disease or bodily infirmity, and thereby accelerates the death of that other, shall be deemed to have caused his death.

Explanation 2.— Where death is caused by bodily injury, the person who causes such bodily injury shall be deemed to have caused the death, although by resorting to proper remedies and skilful treatment the death might have been prevented.

Explanation 3.— The causing of the death of a child in the mother's womb is not homicide. But it may amount to culpable homicide to cause the death of a living child, if any part of that child has been brought forth, though the child may not have breathed or been completely born.

300. Murder.— Except in the cases hereinafter excepted, culpable homicide is murder, if the act by which the death is caused is done with the intention of causing death, or–

Secondly.— If it is done with the intention of causing such bodily injury as the offender knows to be likely to cause the death of the person to whom the harm is caused, or

Thirdly.— If it is done with the intention of causing bodily injury to any person and the bodily injury intended to be inflicted is sufficient in the ordinary course of nature to cause death, or

Fourthly.— If the person committing the act knows that it is so imminently dangerous that it must, in all probability, cause death, or such bodily injury as is likely to cause death, and commits such act without any excuse for incurring the risk of causing death or such injury as aforesaid.

Illustrations

(*a*) A shoots Z with the intention of killing him. Z dies in consequence. A commits murder.

(*b*) A, knowing that Z is labouring under such a disease that a blow is likely to cause his death, strikes him with the intention of causing bodily injury. Z dies in consequence of the blow. A is guilty of murder, although the blow might not have been sufficient in the ordinary course of nature to cause the death of a person in a sound state of health. But if A, not knowing that Z is labouring under any disease, gives him such a blow as would not in the ordinary course of nature kill a person in a sound state of health, here A, although he may intend to cause bodily injury, is not guilty of murder, if he did not intend to cause death or such bodily injury as in the ordinary course of nature would cause death.

(*c*) A intentionally gives Z a sword-cut or club-wound sufficient to cause the death of a man in the ordinary course of nature. Z dies in consequence. Here A is guilty of murder, although he may not have intended to cause Z's death.

(*d*) A without any excuse fires a loaded canon into a crowd of persons and kills one of them. A is guilty of murder, although he may not have had a premeditated design to kill any particular individuals.

When culpable homicide is not murder— Exception 1.— Culpable homicide is not murder if the offender, whilst deprived of the power of self-control by grave and sudden provocation, causes the death of the person who gave the provocation or causes the death of any other person by mistake or accident.

The above exception is subject to the following provisos :–

First— That the provocation is not sought or voluntarily provoked by the offender as an excuse for killing or doing harm to any person.

Secondly.— That the provocation is not given by anything done in obedience to the law, or by a public servant in the lawful exercise of the powers of such public servant.

Thirdly.— That the provocation is not given by anything done in the lawful exercise of the right of private defence.

Explanation.— Whether the provocation was grave and sudden enough to prevent the offence from amounting to murder is a question of fact.

Illustrations

(a) A, under the influence of passion excited by a provocation given by Z, intentionally kills Y, Z's child. This is murder, inasmuch as the provocation was not given by the child, and the death of the child was not caused by accident or misfortune in doing an act caused by the provocation.

(*b*) Y gives grave and sudden provocation to A. A, on this provocation fires a pistol at Y, neither intending nor knowing himself to be likely to kill Z, who is near him, but out of sight. A kills Z. Here A has not committed murder, but merely culpable homicide.

(*c*) A is lawfully arrested by Z, a bailiff. A is excited to sudden and violent passion by the arrest, and kills Z. This is murder, inasmuch as the provocation was given by a thing done by a public servant in the exercise of his powers.

(*d*) A appears as a witness before Z; a Magistrate. Z says that he does not believe a word of A's deposition, and that A has perjured himself, A is moved to sudden passion by these words, and kills Z. This is murder.

(*e*) A attempts to pull Z's nose. Z in the exercise of the right of private defence, lays hold of A to prevent him from doing so. A is moved to sudden and violent passion in consequence, and kills Z, This is murder, inasmuch as the provocation was given by a thing done in the exercise of the right of private defence,

(*f*) Z strikes B. B is by this provocation excited to violent rage. A, a bystander, intending to take advantage of B's rage, and to cause him to kill Z, puts a knife into B's hand for that purpose. B kills Z with the knife. Here B may have committed only culpable homicide, but A is guilty of murder.

Exception 2.— Culpable homicide is not murder if the offender, in the exercise in good faith of the right of private defence of person or property, exceeds the power given to him by law and causes the death of the person against whom he is exercising such right of defence without premeditation, and without any intention of doing more harm than is necessary for the purpose of such defence.

Illustration

Z attempts to horsewhip A, not in such manner as to cause grievous hurt to A. A draws out a pistol. Z persists in the assault. A believing in good faith that he can by no other means prevent himself from being horsewhipped shoots Z dead. A has not committed murder, but only culpable homicide.

Exception 3.— Culpable homicide is not murder if the offender, being a public servant or aiding a public servant acting for the advancement of public

justice, exceeds the powers given to him by law, and causes death by doing an act which he, in good faith, believes to be lawful and necessary for the due discharge of his duty as such public servant and without ill-will towards the person whose death is caused.

Exception 4.— Culpable homicide is not murder if it is committed without premeditation in a sudden fight in the heat of passion upon a sudden quarrel and without the offender's having taken undue advantage or acted in a cruel or unusual manner.

Explanation.— It is immaterial in such cases which party offers the provocation or commits the first assault.

Exception 5.— Culpable homicide is not murder when the person whose death is caused, being above the age of eighteen years, suffers death or takes the risk of death with his own consent.

Illustration

A, by instigation, voluntarily causes Z, a person under eighteen years of age, to commit suicide. Here, on account of Z's youth, he was incapable of giving consent to his own death; A has therefore abetted murder.

301. Culpable homicide by causing death of person other than person whose death was intended.— If a person, by doing anything which he intends or knows to be likely to cause death, commits culpable homicide by causing the death of any person, whose death he neither intends nor knows himself to be likely to cause, the culpable homicide committed by the offender is of the description of which it would have been if he had caused the death of the person whose death he intended or knew himself to be likely to cause.

302. Punishment for murder.— Whoever commits murder shall be punished with death, or imprisonment for life, and shall also be liable to fine.

303. Punishment for murder by life-convict.— Whoever, being under sentence of transportation for life, commits murder, shall be punished with death.

304. Punishment for culpable homicide not amounting to murder.— Whoever commits culpable homicide not amounting to murder, shall be punished with imprisonment for life, or imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine, if the act by which the death is caused is done with the intention of causing death, or of causing such bodily injury as is likely to cause death ;

or with imprisonment of either description for a term which may extend to ten years, or with fine, or with both, if the act is done with the knowledge that it is likely to cause death, but without any intention to cause death or to cause such bodily injury as is likely to cause death.

304A. Causing death by negligence.— Whoever causes the death of any person by doing any rash or negligent act not amounting to culpable homicide shall be punished with imprisonment of either description for a term which may extend to 7 years, or with fine, or with both.

304B. Causing death by rash driving or riding on a public way.— Whoever causes the death of any person by rash or negligent driving of any vehicle or riding on any public way not amounting to culpable homicide shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

305. Abetment of suicide of child or insane person.— If any person under eighteen years of age, any insane person, any delirious person, any idiot, or any person in a state of intoxication commits suicide, whoever abets the commission of such suicide, shall be punished with death or imprisonment for life, or imprisonment for a term not exceeding ten years, and shall also be liable to fine.

306. Abetment of suicide.— If any person commits suicide, whoever abets the commission of such suicide, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

307. Attempt to murder.— Whoever does any act with such intention or knowledge, and under such circumstances that, if he by that act caused death, he would be guilty of murder, shall be punished with imprisonment of either description for a term which may extend to ten

years, and shall also be liable to fine ; and, if hurt is caused to any person by such act, the offender shall be liable either to imprisonment for life, or to such punishment as is herein before mentioned.

Attempts by life-convicts.— When any person offending under this section is under sentence of imprisonment for life, he may, if hurt is caused, be punished with death.

Illustrations

(*a*) A shoots at Z with intention to kill him, under such circumstances that if death ensued, A would be guilty of murder. A is liable to punishment under this section.

(*b*) A with the intention of causing the death of a child of tender years exposes it in a desert place. A has committed the offence defined by this section, though the death of the child does not ensue.

(*c*) A, intending to murder Z, buys a gun and loads it. A has not yet committed the offence. A fires the gun at Z. He has committed the offence defined in this section, and, if by such firing he wounds Z, he is liable to the punishment provided by the latter part of the first paragraph of this section.

(*d*) A, intending to murder Z, by poison, purchases poison and mixes the same with food which remains in A's keeping; A has not yet committed the offence in the section. A places the food on Z's table or delivers it to Z's servants to place it on Z's table. A has committed the offence defined in this section.

308. Attempt to commit culpable homicide.— Whoever does any act with such intention or knowledge and under such circumstances that, if he by that act caused death, he would be guilty of culpable homicide not amounting to murder, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both; and, if hurt is caused to any person by such act, shall be punished with imprisonment of either description for a term which may extend to seven years, or with fine, or with both.

Illustration

A, on grave and sudden provocation, fires a pistol at Z, under such circumstances that if he thereby caused death he would be guilty of culpable homicide not amounting to murder. A has committed the offence defined in this section.

309. Attempt to commit suicide.— Whoever attempts to commit suicide and does any act towards the commission of such offence, shall be punished with simple imprisonment for a term which may extend to one year, or with fine, or with both.

310. Thug.— Whoever, at any time after the passing of this Act, shall have been habitually associated with any other or others for the purpose of committing robbery or child-stealing by means of or accompanied with murder is a thug.

311. Punishment.— Whoever is a thug, shall be punished with imprisonment for life, and shall also be liable to fine.

Of the Causing of Miscarriage, of Injuries to unborn Children, of the Exposure of Infants, and of the Concealment of Births.

312. Causing miscarriage.— Whoever voluntarily causes a woman with child to miscarry, shall, if such miscarriage be not caused in good faith for the purpose of saving the life of the woman, be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both; and, if the woman be quick with child, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

Explanation.— A woman who causes herself to miscarry, is within the meaning of this section.

313. Causing miscarriage without woman's consent.— Whoever commits the offence defined in the last preceding section without the consent of the woman, whether the woman is quick with child or not, shall be punished with imprisonment for life, or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

314. Death caused by Act done with intent to cause.— Whoever, with intent to cause the miscarriage of a woman with child, does any act which causes the death of such woman, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine;

If act done without woman's consent.— and if the act is done without the consent of the woman, shall be punished either with imprisonment for life, or with the punishment above-mentioned.

Explanation.— It is not essential to this offence that the offender should know that the act is likely to cause death.

315. Act done with intent to prevent child being born alive or to cause it to die after birth.— Whoever before the birth of any child does any act with the intention of thereby preventing that child from being born alive or causing it to die after its birth, and does by such act prevent that child from being born alive, or causes it to die after its birth, shall, if such act be not caused in good faith for the purpose of saving the life of the mother, be punished with imprisonment of either description for a term which may extend to ten years, or with fine, or with both.

316. Causing death of quick unborn child by act amounting to culpable homicide.— Whoever does any act under such circumstances, that if he thereby caused death he would be guilty of culpable homicide, and does by such act cause the death of a quick unborn child, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

Illustration

A, knowing that he is likely to cause the death of a pregnant woman, does an act which, if it caused the death of the woman, would amount to culpable homicide. The woman is injured but does not die; but the death of an unborn quick child with which she is pregnant is thereby caused. A is guilty of the offence defined in this section.

317. Exposure and abandonment of child under twelve years, by parent or person having care of it.— Whoever being the father or mother of a child under the age of twelve years, or having the care of such child, shall

expose or leave such child in any place with the intention of wholly abandoning such child, shall be punished with imprisonment of either description for a term which may extend to seven years, or with fine, or with both.

Explanation.— This section is not intended to prevent the trial of the offender for murder or culpable homicide, as the case may be, if the child die in consequence of the exposure.

318. Concealment of birth by secret disposal of dead body.— Whoever, by secretly burying or otherwise disposing of the dead body of a child whether such child die before or after or during its birth, intentionally conceals or endeavours to conceal the birth of such child, shall be punished with imprisonment of either description for a term which any extend to two years, or with fine, or with both.

Of Hurt.

319. Hurt.— Whoever causes bodily pain, disease or infirmity to any person is said to cause hurt.

320. Grievous hurt.— The following kinds of hurt only are designated as "grievous":–

First.— Emasculation.

Secondly.— Permanent privation of the sight of either eye.

Thirdly.— Permanent privation of the hearing of either ear.

Fourthly.— Privation of any member or joint.

Fifthly.— Destruction or permanent impairing of the powers of any members or joint.

Sixthly.— Permanent disfiguration of the head or face.

Seventhly.— Fracture or dislocation of a bone or tooth.

Eighthly.— Any hurt which endangers life or which causes the sufferer to be during the space of twenty days in severe bodily pain, or unable to follow his ordinary pursuits.

321. Voluntarily causing hurt.— Whoever does any act with the intention of thereby causing hurt to any person or with the knowledge that he is likely thereby to cause hurt to any person, and does thereby cause hurt to any person, is said "voluntarily to cause hurt".

322. Voluntarily causing grievous hurt.— Whoever voluntarily causes hurt, if the hurt which he intends to cause or knows himself to be likely to cause is grievous hurt, and if the hurt which he causes is grievous hurt, is said "voluntarily to cause grievous hurt".

Explanation.— A person is not said—voluntarily to cause grievous hurt except when he both causes grievous hurt and intends or knows himself to be likely to cause grievous hurt. But he is said voluntarily to cause grievous hurt, if intending or knowing himself to be likely to cause grievous hurt of one kind, he actually causes grievous hurt, of another kind.

Illustration

A, intending or knowing himself to be likely permanently to disfigure Z's face, gives Z a blow which does not permanently disfigure Z's face, but which cases Z to suffer severe bodily pain for the space of twenty days. A has voluntarily caused grievous hurt.

323. Punishment for voluntarily causing hurt.— Whoever, except in the case provided for by Section 334, voluntarily causes hurt, shall be punished with imprisonment of either description for a term which may extend to one year, or with fine which may extend to one thousand taka, or with both.

324. Voluntarily causing hurt by dangerous weapons or means.— Whoever, except in the case provided for by section 334, voluntarily causes hurt by means of any instrument for shooting, stabbing or cutting, or any instrument which, used as weapon of offence, is likely to cause death, or by means of fire or any heated substance, or by means of any poison or any corrosive substance, or by means of any explosive substance or by means of any substance which it is deleterious to the human body to inhale, to swallow, or to receive into the blood, or by means of animal, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

325. Punishment for voluntarily causing grievous hurt.— Whoever, except in the case provided for by Section 335, voluntarily causes grievous hurt, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

326. Voluntarily causing grievous hurt by dangerous weapons or means.— Whoever, except in the case provided for by Section 335, voluntarily causes grievous hurt by means of any instrument for shooting, stabbing or cutting, or any instrument which, used as a weapon of offence, is likely to cause death, or by means of fire or any heated substance, or by means of any poison or any corrosive substance, or by means of or any explosive substance, or by means of any substance which it is deleterious to the human body to inhale, to swallow, or to receive into the blood, or by means of any animal, shall be punished with transportation for life or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

326A. Voluntarily causing grievous hurt in respect of both eyes, head or face by means of corrosive substance, etc.— Whoever, except in the case provided for by Section 335, voluntarily causes grievous hurt of the kind mentioned in–

(a) clause secondly of Section 320 in respect of both the eyes either by gouging out the same or by means of any corrosive substance; or

(b) clause sixthly of Section 320 by means of any corrosive substance,

shall be punished with death, or imprisonment for life and shall also be liable to fine.

327. Voluntarily causing hurt to extort property, or to constrain illegal act.— Whoever voluntarily causes hurt, for the purpose of exporting from the sufferer, or from any person interested in the sufferer, any property or valuable security, or of constraining the sufferer, or any person interested in such sufferer to do anything which is illegal or which may facilitate the commission of an offence, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

328. Causing hurt by means of poison, etc., with intent to commit an offence.— Whoever administers to or causes to be taken by any person any poison or any stupefying, intoxicating or unwholesome drug, or other thing with intent to cause hurt to such person, or with intent to commit or to facilitate the commission of an offence or knowing it to be likely that he will thereby cause hurt, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

329. Voluntarily causing grievous hurt to extort property, or to constrain to an illegal act.— Whoever voluntarily causes grievous hurt for the purpose of extorting from the sufferer or from any person interested in the sufferer any property or valuable security, or constraining the sufferer or any person interested in such sufferer to do anything that is illegal or which may facilitate the commission of an offence, shall be punished with imprisonment for life, or imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

330. Voluntarily causing hurt to extort confession, or to compel restoration of property.— Whoever voluntarily causes hurt, for the purpose of extorting from the sufferer or any person interested in the sufferer, any confession or any information which may lead to the detection of an offence or misconduct, or for the purpose of constraining the sufferer or any person interested in the sufferer to restore or to cause the restoration of any property or valuable security or to satisfy any claim or demand, or to give information which may lead to the restoration of any property or valuable security, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

Illustrations

(a) A, a police-officer tortures Z in order to induce Z to confess that he committed a crime. A is guilty of an offence under this section.

(b) A, a police-officer, tortures B to induce him to point out where certain stolen property is deposited. A is guilty of an offence under this section.

(c) A, a revenue-officer, tortures Z in order to compel him to pay certain arrears of revenue due from Z. A is guilty of an offence under this section.

(d) A, a zamindar, tortures a raiyat in order to compel him to pay his rent. A is guilty of an offence under this section.

331. Voluntarily causing grievous hurt to extort confession or to compel restoration of property.— Whoever voluntarily causes grievous hurt for the purpose of extorting from the sufferer or any person interested in the sufferer any confession or any information which may lead to the detection of offence or misconduct, or for the purpose of constraining the sufferer or any person interested in the sufferer to restore or to cause the restoration of any property or valuable security, or to satisfy any claim or demand or to give information which may lead to the restoration of any property or valuable security shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

332. Voluntarily causing hurt to deter public servant from his duty.— Whoever voluntarily causes hurt to any person being a public servant in the discharge of his duty as such public servant, or with intent to prevent or deter that person or any other public servant from discharging his duty as such public servant, or in consequence of anything done or attempted to be done by that person in the lawful discharge of his duty as such public servant, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

333.Voluntarily causing grievous hurt to deter public servant from his duty.— Whoever voluntarily causes grievous hurt to any person being a public servant in the discharge of his duty as such public servant, or with intent to prevent or deter that person or any other public servant from discharging his duty as such public servant,

or in consequence of anything done or attempted to be done by that person in the lawful discharge of his duty as such public servant, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

334. Voluntarily causing hurt on provocation.— Whoever voluntarily causes hurt on grave and sudden provocation, if he neither intends nor knows himself to be likely to cause hurt to any person other the person who gave the provocation shall be punished with imprisonment of either description for a term which may extend to one month, or with fine which may extend to five hundred taka, or with both.

335. Voluntarily causing grievous hurt on provocation.— Whoever voluntarily causes grievous hurt on grave and sudden provocation, if he neither intends nor knows himself to be likely to cause grievous hurt to any person other than the person who gave the provocation shall be punished with imprisonment of either description for a term which may extend to four years, or with fine which may extend to two thousand taka, or with both.

Explanation.— The last two sections are subject to the same provisos as exception 1, section 300.

336. Act endangering life or personal safety of others.— Whoever does any act rashly or negligently as to endanger human life or the personal safety of others shall be punished with imprisonment of either description for a term which may extend to three months, or with fine which may extend to two hundred and fifty taka or with both.

337. Causing hurt by act endangering life or personal safety of others.— Whoever, causes hurt to any person by doing any act so rashly or negligently as to endanger human life, or the personal safety of others, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to five hundred Taka, or with both.

338. Causing grievous hurt by act endangering life or personal safety of others.— Whoever causes grievous hurt to any person by doing any act so rashly or negligently as to endanger human life, or the personal safety of others, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine which may extend to five thousand taka, or with both.

338A. Causing grievous hurt by rash driving or riding on a public way.— Whoever causes grievous hurt to any person by driving any vehicle or riding on any public way so rashly or negligently as to endanger human life, or the personal safety of others, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

Of Wrongful Restraint and Wrongful Confinement

339. Wrongful restraint.— Whoever voluntarily obstructs any person so as to prevent that person from proceeding in any direction in which that person has a right to proceed, is said wrongfully to restrain that person.

Exception.— The obstruction of a private way over land or water which a person in good faith believes himself to have a lawful right to obstruct, is not an offence within the meaning of this section.

Illustration

A, obstructs a path along which Z has a right to pass, A not believing in good faith that he has a right to stop the path. Z is thereby prevented from passing. A wrongfully restrains Z.

340. Wrongful confinement.— Whoever wrongfully restrains any person in such a manner as to prevent that person from proceeding beyond certain circumscribing limits, is said "wrongfully to confine" that person.

Illustrations

(a) A causes Z to go within a walled space, and locks Z in. Z is thus prevented from proceeding in any direction beyond the circumscribing line of wall. A wrongfully confines Z.

(b) A places men with fire arms at the outlets of a building, and tells Z that they will fire at Z, if Z attempts to leave the building. A wrongfully confines Z.

341. Punishment for wrongful restraint.— Whoever wrongfully restrains any person, shall be punished with simple imprisonment for a term which may extend to one month, or with fine which may extend to five hundred taka, or with both.

342. Punishment for wrongful confinement.— Whoever wrongfully confines any person, shall be punished with imprisonment of

either description for a term which may extend to one year, or with fine which may extend to one thousand taka, or with both.

343. Wrongful confinement for three or more days.— Whoever wrongfully confines any person for three days or more, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

344. Wrongful confinement for ten or more days.— Whoever wrongfully confines any person for ten days, or more, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine.

345. Wrongful confinement of person for whose liberation writ has been issued.— Whoever keeps any person in wrongful confinement, knowing that a writ for the liberation of that person has been duly issued, shall be punished with imprisonment of either description for a term which may extend to two years in addition to any term of imprisonment which he may be liable under any other section of this chapter.

346. Wrongful confinement in secret.— Whoever wrongfully confines any person in such manner as to indicate an intention that the confinement of such person may not be known to any person interested in the person so confined, or to any public servant, or that the place of such confinement may not be known to or discovered by any such person or public servant as herein before mentioned, shall be punished with imprisonment of either description for a term which may extend to two years in addition to any other punishment to which he may be liable for such wrongful confinement.

347. Wrongful confinement to extort property or constrain to illegal act.— Whoever wrongfully confines any person for the purpose of extorting from the person confined, or from any person interested in the person confined, any property or valuable security or of constraining the person confined or any person interested in such person to do anything illegal or to give any information which may facilitate the commission of an offence, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine.

348. Wrongful confinement to extort confession or compel restoration of property.— Whoever wrongfully confines any person for the purpose of extorting from the person confined or any person interested in the person confined any confession or any information which may lead

to the detection of an offence or misconduct, or for the purpose of constraining the person confined or any person interested in the person confined to restore or to cause the restoration of any property or valuable security or to satisfy any claim or demand, or to give information which may lead to the restoration of any property or valuable security, shall be punished with imprisonment of either description for a term, which may extend to three years, and shall also be liable to fine.

Of Criminal Force and Assault

349. Force.— A person is said to use force to another if he causes motion, change of motion, or cessation of motion to that other, or if he causes to any substance such motion, or change of motion, or cessation of motion as brings that substance into contact with any part of that other's body, or with anything which that other is wearing or carrying, or with anything so situated that such contact affects that other's sense of feeling :

Provided that the person causing the motion, or change of motion, or cessation of motion, causes that motion, change of motion, or cessation of motion in one of the three ways hereinafter described :–

First.— By his own bodily power.

Secondly.— By disposing any substance in such a manner that the motion or change or cessation of motion takes place without any further act on his part, or on the part of any other person.

Thirdly.— By inducing any animal to move, to change its motion, or to cease to move.

350. Criminal force.— Whoever intentionally uses force to any person, without that person's consent, in order to the committing of any offence, or intending by the use of such force to cause, or knowing it to be likely that by the use of such force he will cause injury, fear or annoyance to the person to whom the force is used, is said to use criminal force to that other.

Illustrations

(a) Z is sitting in a moored boat on a river. A unfastens the moorings, and thus intentionally causes the boat to drift down the stream. Here A intentionally causes motion to Z, and he does this by disposing substances in such a manner that the motion is produced without any other action on any person's part. A has, therefore intentionally used force

to Z ; and if he has done so without Z's consent, in order to the committing of any offence, or intending or knowing it to be likely that this use of force will cause injury, fear or annoyance to Z, A has used criminal force to Z.

(b) Z is riding in a chariot. A lashes Z's horses, and thereby causes them to quicken their pace. Here A has caused change of motion to Z by inducing the animals to change their motion, A has therefore, used force to Z ; and if A has done this without Z's consent, intending or knowing it to be likely that he may thereby injure, frighten or annoy Z, A has used criminal force to Z.

(c) Z is riding in a palanquin. A, intending to rob Z, seizes the pole and stops the palanquin. Here A has caused cessation of motion to Z, and he has done ; this by his own bodily power. A has therefore used force to Z ; and as A has acted thus intentionally, without Z's consent, in order to the commission of an offence. A has used criminal force to Z.

(d) A intentionally pushes against Z in the street. Here A has by his own bodily power moved his own person so as to bring it into contact with Z. He has therefore intentionally used force to Z ; and if he has done so without Z's consent, intending or knowing it to be likely that he may thereby injure, frighten or annoy Z, he has used criminal force to Z.

(e) A throws a stone, intending or knowing it to be likely that the stone will be thus brought in to contact with Z, or with Z's clothes, or with something carried by Z, or that it will strike water, and dash up the water against Z's clothes or something carried by Z. Here if the throwing of the stone produce the effect of causing any substance to come into contact with Z, or Z's clothes A has used force to Z ; and if he did so without Z's consent intending thereby to injure, frighten or annoy Z, he has used criminal force to Z.

(f) A intentionally pulls up a woman's veil. Here A intentionally used force to her, and if he does so without her consent intending or knowing it to be likely that he may thereby injure, frighten or annoy her, he has used criminal force to her.

(g) Z is bathing, A pours into the bath water which he knows to be boiling. Here A intentionally by his own bodily power causes such motion in the boiling water as brings that water into contact with Z, or with other water so situated that such contact must effect Z's sense of feeling ; A has therefore intentionally used force to Z; and if he has done this without Z's consent intending or knowing it to be likely that he may thereby cause injury, fear or annoyance to Z, A has used criminal force.

(h) A incites a dog to spring upon Z, without Z's consent. Here, if A intends to cause injury, fear or annoyance to Z, he uses criminal force to Z.

351. Assault.— Whoever makes any gesture, or any preparation intending or knowing it to be likely that such gesture or preparation will cause any person present to apprehend that he who makes that gesture or preparation is about to use criminal force to that person, is said to commit an assault.

Explanation.— Mere words do not amount to an assault. But the words which a person uses may give to his gestures or preparation such a meaning as may make those gestures or preparations amount to an assault.

Illustrations

(a) A shakes his fist at Z, intending or knowing it to be likely that he may thereby cause Z to believe that A is about to strike Z. A has committed an assault.

(b) A begins to unloose the muzzle of a ferocious dog, intending or knowing it to be likely that he may thereby cause Z to believe that he is about to cause the dog to attack Z. A has committed an assault upon Z.

(c) A takes up a stick, saying to Z, "I will give you a beating." Here, though the words used by A could in no case amount to an assault, and though the mere gesture, unaccompanied by any other circumstance, might not amount to an assault, the gesture explained by the words may amount to an assault.

352. Punishment for assault or criminal force otherwise than on grave provocation.— Whoever assaults or uses criminal force to any person otherwise than on grave and sudden provocation given by that person, shall be punished with imprisonment of either description for a term which may extend to three months, or with fine which may extend to five hundred taka or with both.

Explanation.— Grave and sudden provocation will not mitigate the punishment for an offence under this section, if the provocation is sought or voluntarily provoked by the offender as an excuse for the offence, or

If the provocation is given by anything done in obedience to the law, or by a public servant, in the lawful exercise of the powers of such public servant, or

if the provocation is given by anything done in the lawful exercise of the right of private defence.

Whether, the provocation was grave and sudden enough to mitigate the offence, is a question of fact.

353. Assault or criminal force to deter public servant form discharge of his duty.— Whoever assaults or uses criminal force to any person being a public servant in the execution of his duty as such public servant, or with intent to prevent or deter that person from discharging his duty as such public servant or in consequence of anything done or attempted to be done by such person in the lawful discharge of his duty as such public servant, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

354. Assault or criminal force to woman with intent to outrage her modesty.— Whoever assaults or uses criminal force to any women, intending to outrage or knowing it to be likely that he will thereby outrage her modesty, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine or with both.

355. Assault or criminal force with intent to dishonour person, otherwise than on grave provocation.— Whoever assaults or uses criminal force to any person, intending thereby to dishonour that person, otherwise than on grave and sudden provocation given by that person, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

356. Assault or criminal force in attempt to commit theft of property carried by a person.— Whoever assaults or uses criminal force to any person in attempting to commit theft of any property which that person is then wearing or carrying shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

357. Assault or criminal force in attempt wrongfully to confine a person.— Whoever assaults or uses criminal force to any person, in attempting wrongfully to confine that person, shall be punished with imprisonment of either description for a term which may extend to one year, or with fine which may extend to one thousand taka, or with both.

358. Assault or criminal force on grave provocation.— Whoever assaults or uses criminal force to any person on grave and sudden provocation given by that person, shall be punished with simple

imprisonment for a term which may extend to one month or with fine which may extend to two hundred taka or with both.

Explanation.— The last section is subject to the same explanation as section 352.

Of Kidnapping, Abduction, Slavery and Forced Labour

359. Kidnapping.— Kidnapping is of two kinds ; kidnapping from Bangladesh and kidnapping from lawful guardianship,

360. Kidnapping from Bangladesh.— Whoever conveys any person beyond the limits of Bangladesh without the consent of that person, or of some person legally authorised to consent on behalf of that person, is said to kidnap that person from Bangladesh.

361. Kidnapping from lawful guardianship.— Whoever takes or entices any minor under fourteen years of age if a male, or under sixteen years of age if a female, or any person of unsound mind, out of the keeping of the lawful guardian of such minor or person of unsound mind, without the consent of such guardian, is said to kidnap such minor or person from lawful guardianship.

Explanation.— The words 'lawful guardian' in this section include any person lawfully entrusted with the care or custody of such minor or other person.

Exception.— This section does not extend to the act of any person who in good faith believes himself to be the father of an illegitimate child, or who in good faith believes himself to be entitled to the lawful custody of such child, unless such act is committed for an immoral or unlawful purpose.

362. Abduction.— Whoever by force compels, or by any deceitful means induces, any person to go from any place, is said to abduct that person.

363. Punishments for Kidnapping.— Whoever kidnaps any person from Bangladesh or from lawful guardianship, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

364. Kidnapping or abducting in order to murder.— Whoever kidnaps or abducts any person in order that such person may be

murdered or may be so disposed of as to be put in danger of being murdered, shall be punished with imprisonment for life or rigorous imprisonment for a term which may extend to ten years, and shall also be liable to fine.

Illustrations

(a) A kidnaps Z from Bangladesh intending or knowing it to be likely that Z may be sacrificed to an idol. A has committed the offence defined in this section.

(b) A forcibly carries or entices B away from his home in order that B may be murdered. A has committed the offence defined in this section.

364A. "Kidnapping or Abducting a Person under the age of ten.— Whoever kidnaps or abducts any person under the age of ten, in order that such person may be murdered or subjected to grievous hurt, or slavery, or to the last of any person or may be so disposed of as to be put in danger of being murdered or subjected to grievous hurt, or slavery, or to the last of any person shall be punished with death or with imprisonment for life or with rigorous imprisonment for a term which may extend to fourteen years and shall not be less than seven years.

365. Kidnapping or abducting with intent secretly and wrongfully to confine person.— Whoever kidnaps or abducts any person with intent to cause that person to secretly and wrongfully confined, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

366. Kidnapping, abducting or Inducing woman to compel her marriage, etc.— Whoever kidnaps or abducts any woman with intent that she may be compelled, or knowing it to be likely that she will be compelled, to marry and person against her will, or in order that she may be forced or seduced to illicit intercourse, or knowing it to be likely that she will be forced or seduced to illicit intercourse, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine ;

and whoever, by means of criminal intimidation as defined in this Code or of abuse of authority or any other method of compulsion, induces any woman to go from any place with intent that she may be, or knowing that it is likely that she will be, forced or seduced to illicit intercourse with another person shall also be punishable as aforesaid.

366A. Procuration of minor girl.— Whoever, by any means whatsoever, induces any minor girl under the age of eighteen years to go from any place or to do any act with intent that such girl may be, or knowing that it is likely that she will be, forced or seduced to illicit intercourse with another person shall be punishable with imprisonment which may extend to ten years and shall also be liable to fine.

366B. Importation of girl from foreign country.— Whoever imports into Bangladesh from any country outside Bangladesh any girl under the age of twenty-one years with intent that she may be, or knowing it to be likely that she will be, forced or seduced to illicit intercourse with another person, shall be punishable with imprisonment which may extend to ten years and shall also be liable to fine.

367. Kidnapping or abducting in order to subject person to grievous hurt, slavery, etc.— Whoever kidnaps or abducts any person in order that such person may be subjected, or may be so disposed of as to be put in danger of being subjected to grievous hurt, or slavery, or to the unnatural last of any person, or knowing it to be likely that such person will be so subjected or disposed of, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

368.Wrongfully concealing or keeping in confinement, kidnapped or abducted person.— Whoever, knowing that any person has been kidnapped or has been abducted, wrongfully conceals or confines such person, shall be punished in the same manner as if he had kidnapped or abducted such person with the same intention or knowledge, or for the same purpose as that with or for which he conceals or detains such person in confinement.

369. Kidnapping or abducting child under ten years with intent to steal from its person.— Whoever kidnaps or abducts any child under the age of ten years with the intention of taking dishonestly any moveable property form the person of such child, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

370. Buying or disposing of any person as a slave.— Whoever, imports, exports, removes, buys, sells or disposes of any person as a slave, or accepts, receives or detains against his will any person as a slave, shall be punished with imprisonment of either description for term which may extend to seven years, and shall also be liable to fine.

371. Habitual dealing in slaves.— Whoever, habitually imports, exports, removes, buys, sells, traffics or deals in slaves, shall be punished with transportation for life, or with imprisonment of either description for a term not exceeding ten years and shall also be liable to fine.

372. Selling minor for purposes on prostitution. etc.— Whoever sells, lets to hire, or otherwise disposes of any person under the age of eighteen years with intent that such person shall at any age be employed or used for the purpose of prostitution or illicit intercourse with any person or for any unlawful and immoral purpose, or knowing it to be likely that such person will at any age be employed or used for any such purpose, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

Explanation I.— When a female under the age of eighteen years is sold, let for hire, or otherwise disposed of to a prostitute or to any person who keeps or manages a brothel, the person so disposing of such female shall, until the contrary is proved, be presumed to have disposed of her with the intent that she shall be used for the purpose of prostitution.

Explanation II.— For the purposes of this section "illicit intercourse" means sexual intercourse between persons not united by marriage or by any union or tie which, though not amounting to a marriage, is recognised by the personal law or custom of the community to which they belong or, where they belong to different communities, of both such communities, as constituting between them a *quasi*-marital relation.

373. Buying minor for purposes of prostitution, etc.— Whoever buys, hires or otherwise obtains possession of any person under the age of eighteen years with intent that such person shall at any age be employed or used for the purpose of prostitution or illicit intercourse with any person or for any unlawful and immoral purpose, or knowing it to be likely that such person will at any age be employed or used for any such purpose, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

Explanation I.— Any prostitute or any person keeping or managing a brothel, who buys, hires or otherwise obtains possession of a female under the age of eighteen years shall, until the contrary is proved, be presumed to have obtained possession of such female with the intent that she shall be used for the purpose of prostitution.

Explanation II.–"Illicit intercourse" has the same meaning as in section 372.

374. (1) **Unlawful compulsory labour.—** Whoever unlawfully compels any person to labour against the will of that person, shall be punished with Imprisonment of either description for a term which may extend to one year, or with fine, or with both.

(2) Whoever compels a prisoner of war or a protected person to serve in the armed forces of Bangladesh shall be punished with imprisonment of either description for a term which may extend to one year.

Explanation :- In this section the expressions "prisoner of war" and "protected person" shall have the same meaning as have been assigned to them respectively by Article 4 of the Geneva Convention Relative to the Treatment of Prisoners of War of August 12, 1949, and Article 4 of the Geneva Convention Relative to the Protection of Civilian Persons in time of war of August 12, 1949,

OF RAPE

375. Rape.— A man is said to commit "rape" who except in the case hereinafter excepted, has sexual intercourse with a woman under circumstances falling under any of the five following descriptions :–

First.— Against her will.

Secondly.— Without her consent.

Thirdly.— With her consent, when her consent has been obtained by putting her in fear of death, or of hurt.

Fourthly.— With her consent, when the man knows that he is not her husband, and that her consent is given because she believes that he is another man to whom she is or believes herself to be lawfully married.

Fifthly.— With or without her consent, when she is under fourteen years of age.

Explanation.— Penetration is sufficient to constitute the sexual intercourse necessary to the offence of rape.

Exception.— Sexual intercourse by a man with his own wife, the wife not being under thirteen years of age, is not rape.

376. Punishment for rape.— Whoever commits rape shall be punished with imprisonment for life or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine, unless the woman raped is his own wife and is not under twelve years of age, in which case he shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

Of Unnatural Offences

377. Unnatural offences.— Whoever voluntarily has carnal intercourse against the order of nature with any man, woman or animal, shall be punished with imprisonment for life, or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

Explanation.— Penetration is sufficient to constitute the carnal intercourse necessary to the offence described in this section.

CHAPTER XVII

OF OFFENCES AGAINST PROPERTY

Of Theft

378. Theft.— Whoever, intending to take dishonestly any moveable property out of the possession of any person without that person's consent, moves that property in order to such taking, is said to commit theft.

Explanation 1.— A thing so long as it is attached to the same earth, not being moveable property, is not the subject of theft but it becomes capable of being the subject of theft as soon as it is severed from the earth.

Explanation 2.— A moving effected by the same act which effects the severance may be a theft.

Explanation 3.— A person is said to cause a thing to move by removing an obstacle which presented it from moving or by separating it from any other thing, as well as by actually moving it.

Explanation 4.— A person, who by any means causes an animal to move, is said to move that animal, and to move everything which, in consequence of the motion so caused, is moved by that animal.

Explanation 5.— The consent mentioned in the definition may be express or implied, and may be given either by the person in possession, or by any person having for that purpose authority either express or implied.

Illustrations

(a) A cuts down a tree on Z's ground, with the intention of dishonestly taking the tree out of Z's possession with Z's consent. Here, as soon as A has severed the tree in order to such taking, he has committed theft.

(b) A puts a bait for dogs in his pocket, and thus induce Z's dog to follow it. Here, if A's intention be dishonestly to take the dogs out of Z's possession without Z's consent, A has committed theft as soon as Z's dog has begun to follow A.

(c) A meets a bullock carrying a box of treasure. He drives the bullock in a certain direction, in order that he may dishonestly take the

treasure. As soon as the bullock begins to move, A has committed theft of the treasure.

(d) A being Z's servant, and entrusted by Z with the care of Z's plate, dishonestly runs away with the plate, without Z's consent. A has committed theft.

(e) Z, going on a journey, entrusts his plate to A the keeper of a warehouse, till Z shall return. A carries the plate to a goldsmith and sells it. Here the plate was not in Z's possession. It could not therefore be taken out of Z's possession, and A has not committed theft, though he may have committed criminal breach of trust.

(f) A finds ring belonging to Z on a table in the house which Z occupies. Here the ring is in Z's possession, and if A dishonestly removes it, A commits theft.

(g) A finds a ring lying on the high-road, not in the possession of any person. A, by taking it, commits no theft, though he may commit criminal misappropriation of property.

(h) A sees a ring belonging to Z lying on a table in Z's house. Not venturing to misappropriate the ring immediately for fear of search and detection, A hides the ring in a place where it is highly improbable that it will ever be found by Z, with the intention of taking the ring from the hiding place and selling it when the loss is forgotten. Here A, at the time of first moving the ring commits theft.

(i) A delivers his watch to Z, a jeweller, to be regulated. Z carried it to his shop. A, not owing to the jeweller any debt for which the jeweller might lawfully detain the watch as a security, enters the shop openly, takes his watch by force out of Z's hand, and carries it away. Here A, though he may have committed criminal trespass and assault, has not committed theft, inasmuch as what he did was not done dishonestly.

(j) If A owes money to Z for repairing the watch, and if retains the watch lawfully as a security for the debts, and A takes the watch out of Z's possession, with the intention of depriving Z of the property as a security for his debt, he commits theft, inasmuch as he takes it dishonestly.

(k) Again, if A, having pawned his watch to Z, takes it out of Z's possession without Z's consent, not having paid what he borrowed on the watch, he commits theft, though the watch is his won property inasmuch as takes it dishonestly.

(l) A takes an article belonging to Z out of Z's possession without Z's consent, with the intention of keeping it until he obtains money from Z

as a reward for its restoration. Here A takes dishonestly ; A has, therefore committed theft.

(m) A, being on friendly terms with Z, goes into Z's library in Z's absence, and takes away a book without Z's express consent for the purpose merely of reading it, and with the intention of returning it. Here it is probably that A may have conceived that he had Z's implied consent to use Z's book. If this was A's impression, A has not committed theft.

(n) A asks charity form Z's wife. She gives A money, food and clothes, which A knows to belong to Z her husband. Here it is probable that A may conceive that Z's wife is authorised to give away alms. If this was A's impression, A has not committed theft.

(o) A is the paramour of Z's wife. She gives a valuable property, which A knows to belong to her husband Z, and to be such property as she has not authority from Z to give. If A takes the property dishonestly, he commits theft.

(p) A, in good faith, believing property belonging to be A's own property, takes that property out of B's possession. Here, as A does not take dishonestly, he does not commit theft.

379. Punishment for theft.— Whoever commits theft shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

380. Theft in dwelling-house, etc.— Whoever, commits theft in any building, tent or vessel, which building, tent or vessel is used as a human dwelling, or used for the custody of property, shall be punished with imprisonment of either description for a term which may extend to seven years and shall also be liable to fine.

381. Theft by clerk or servant of property in possession of master.— Whoever being a clerk or servant, or being employed in the capacity of a clerk or servant, commits theft in respect of any property in the possession of his master or employer, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

382. Theft after preparation made for causing death, hurt or restraint in order to the committing of the theft.— Whoever commits theft, having made preparation for causing death, or hurt, or restraint, or fear of death, or of hurt, or of restraint, to any person, in order to the committing of such theft, or in order to the effecting of his escape after the

committing of such theft, or in order to the retaining of property taken by such theft, shall be punished with rigorous imprisonment for a term which may extend to ten years, and shall also be liable to fine.

Illustrations.

(a) A commits theft on property in Z's possession ; and while committing this theft, he has a loaded pistol under his garment having provided this pistol for the purpose of hurting Z in case Z should resist. A has committed the offence defined in this section.

(b) A picks Z's pocket, having posted several of his companions near him, in order that they may restrain Z, if Z should perceive what is passing and should resist, or should attempt to apprehend A. A has committed the offence defined in this section.

OF EXTORTION

383. Extortion.— Whoever intentionally puts any person in fear of any injury to that person, or to any other, and thereby dishonestly induces the person so put in fear to give donation or subscription of any kind or to deliver to any person any property or valuable security or anything signed or sealed which may be converted into a valuable security, Commits "extortion".

Illustrations.

(a) A threatens to publish a defamatory libel concerning Z unless Z gives him money. He thus induces Z to give him money. A has committed extortion.

(b) A threatens Z that he will keep Z's child in wrongful confinement, unless Z will sign and deliver to A a promissory note binding Z to pay certain money to A. Z signs and delivers the note. A has committed extortion.

(c) A threatens to send club-men to plough up Z's field unless Z will sign and deliver to B a bond binding Z under a penalty to deliver certain produce to B, thereby induces Z to sign and deliver the bond. A has committed extortion.

(d) A, by putting Z in fear of grievous hurt, dishonestly induces Z to sign or affix his seal to a blank paper and deliver it to A. Z signs and delivers the paper to A. Here, as the paper so signed may be converted into a valuable security, A has committed extortion.

384. Punishment for extortion.— Whoever commits extortion shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

385. Putting person in fear of injury in order to commit extortion.— Whoever, in order to the committing of extortion, puts any person in fear, or attempts to put any person in fear, of any injury, shall be punished with imprisonment of either description for a term which may extend to fourteen years and shall not be less than five years, or with fine, or with both.

386. Extortion by putting a person in fear of death or grievous hurt.— Whoever commits extortion by putting any person in fear of death or of grievous hurt to that person or to any other, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

387. Putting person in fear of death or of grievous hurt, in order to commit extortion.— Whoever, in order to the committing of extortion, puts or attempts to put any person in fear of death or of grievous hurt to that person or to any other, shall be punished with imprisonment for life and shall not be less than seven years, and shall also be liable to fine.

388. Extortion by threat of accusation of an offence punishable with death or imprisonment for life, etc.— Whoever commits extortion by putting any person in fear of an accusation against that person of any others, of having committed or attempted to commit any offence punishable with death, or with imprisonment for life, or with imprisonment for a term which may extend to ten years, or of having attempted to induce any other person to commit such offence, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine ; and , if the offence be one punishable under section 377 of this Code, may be punished with imprisonment for life.

389. Putting person in fear of accusation of offence, in order to commit extortion..— Whoever, in order to the committing of extortion, puts or attempts to put any person in fear of an accusation, against that person or any other, of having committed, or attempted to commit, an offence punishable with death or with imprisonment for life, or with imprisonment for a term which may extend to ten years, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine ; and, if the offence be punishable under section 377 of this Code, may be punished with imprisonment for life.

Of Robbery and Dacoity

390. Robbery.— In all robbery there is either theft or extortion.

When theft is robbery.— Theft is "robbery" if, in order to the committing of the theft, or in committing the theft, or in carrying away or attempting to carry away property obtained by the theft, the offender, for that end, voluntarily causes or attempts to cause to any person death or hurt or wrongful restraint, or fear of instant death or of instant hurt, or of instant wrongful restraint.

When extortion is robbery.— Extortion is "robbery" if the offender, at the time of committing the extortion, is in the presence of the person put in fear, and commits the extortion by putting that person in fear of instant death, of instant hurt, or of instant wrongful restraint to that person, or to some other person, and, by so putting in fear, induces the person so put in fear then and there to deliver up the thing extorted.

Explanation.— The offender is said to be present if he is sufficiently near to put the other person in fear of instant death, of instant hurt, or of instant wrongful restraint.

Illustrations

(a) A holds Z down and fraudulently takes Z's money and jewels from Z's clothes, without Z's consent. Here A has committed theft, and, in order to the committing of that theft, has voluntarily caused wrongful restraint to Z, A has therefore committed robbery.

(b) A meets Z on the high-road, shows a pistol, and demands Z's purse, Z, in consequence, surrenders his purse. Here A has extorted the purse from Z by putting him in fear of instant hurt, and being at the time of committing the extortion in his presence. A has therefore committed robbery.

(c) A meets Z and Z's child on the high-road. A takes the child, and threatens to fling it down a precipice, unless Z deliver his purse. Z, in consequence, delivers his purse. Here A has extorted the purse from Z, by causing Z to be in fear of instance hurt to the child who is there present. A has therefore committed robbery on Z.

(d) A obtains property from Z by saying–"Your child is in the hands of my gang, and will be put to death unless you send us ten thousand taka. This is extortion, and punishable as such : but it is not robbery, unless Z is put in fear of the instant death of his child.

391. Dacoity.— When five or more persons conjointly commit or attempt to commit a robbery, or where the whole number of persons

conjointly committing or attempting to commit a robbery, and persons present and aiding such commission or attempt, amount to five or more, every person so committing attempting or aiding, is said to commit "dacoity."

392. Punishment for robbery.— Whoever commits robbery shall be punished with rigorous imprisonment for a term which may extend to ten years, and shall also be liable to fine ; and, if the robbery be committed on the highway between sunset and sunrise, the imprisonment may be extended to fourteen years.

393. Attempt to commit robbery.— Whoever attempts to commit robbery shall be punished with rigorous imprisonment for a term which may extend to seven years, and shall also be liable to fine.

394. Voluntarily causing hurt in committing robbery.— If any person, in committing or in attempting to commit robbery, voluntarily causes hurt, such person, and any other person jointly concerned in committing or attempting to commit such robbery, shall be punished with imprisonment for life, or with rigorous imprisonment for a term which may extend to ten years, and shall also be liable to fine.

395. Punishment for dacoity.— Whoever commits dacoity shall be punished with imprisonment for life, or with rigorous imprisonment for a term which may extend to ten years, and shall also be liable to fine.

396. Dacoity with murder.— If any one of five or more persons, who are conjointly committing dacoity, commits murder in so committing dacoity, every one of those persons shall be punished with death, or imprisonment for life, or rigorous imprisonment for a term which may extend to ten years, and shall also be liable to fine.

397. Robbery or dacoity, with attempt to cause death or grievous hurt.— If, at the time of committing robbery or dacoity, the offender uses any deadly weapon, or causes grievous hurt to any person, or attempts to cause death or grievous hurt to any person, the imprisonment with which such offender shall be punished shall not be less than seven years.

398. Attempt to commit robbery or dacoity when armed with deadly weapon.— If, at the time of attempting to commit robbery or dacoity, the offender is armed with any deadly weapon, the imprisonment with which such offender shall be punished shall not be less than seven years.

399. Making preparation to commit dacoity.— Whoever makes any preparation for committing dacoity, shall be punished with rigorous imprisonment for a term which may extend to ten years, and shall also be liable to fine.

400. Punishment for belonging to gang of dacoits.— Whoever, at any time after the passing of this Act, shall belong to a gang of persons associated for the purpose of habitually committing dacoity, shall be punished with imprisonment for life, or with rigorous imprisonment for a term which may extend to ten years, and shall also be liable to fine.

401. Punishment for belonging to gang of thieves.— Whoever, at any time after the passing of this Act shall belong to a any wandering or other gang of persons associated for the purpose of habitually committing theft or robbery, and not being a gang of thugs or dacoits, shall be punished with rigorous imprisonment for a term which may extend to seven years, and shall also be liable to fine.

402.Assembling for purpose of committing dacoity.— Whoever, at any time after the passing of this Act, shall be one of five or more persons assembled for the purpose of committing dacoity, shall be punished with rigorous imprisonment for a term which may extend to seven years, and shall also be liable to fine.

Of Criminal Misappropriation of Property.

403. Dishonest misappropriation of property.— Whoever dishonestly misappropriates or converts to his own use any moveable property, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

Illustrations

(a) A takes property belonging to Z out of Z's possession in good faith, believing, at the time when he takes it, that property belongs to himself, A is not guilty of theft, but

if A, after discovering his mistake, dishonestly appropriates the property to his own use, he is guilty of an offence under this section.

(b) A being on friendly terms with Z. goes into Z's library in Z's absence, and takes away a book without Z's express consent. Here, if A was under the impression that he had Z's implied consent to take the book for the purpose of reading it, A has not committed theft. But if A afterwards sells the book for his own benefit, he is guilty of an offence under this section.

(c) A and B, being joint owners of a horse, A takes the horse out of B's possession, intending to use it. Here, as A has a right to use the horse, he does not dishonestly misappropriate it. But, if A sells the horse and appropriates the whole proceeds to his own use, he is guilty of an offence under this section.

Explanation 1.— A dishonest misappropriation for a time only is a misappropriation within the meaning of this section.

Illustration.

A finds a Government promissory note belonging to Z, bearing a blank endorsement A, knowing that the note belongs to Z, pledges it with a banker as a security for a loan intending at a future time to restore it to Z. A has committed an offence under this section.

Explanation 2.— A person who finds property not in the possession of any other person, and takes such property for the purpose of protecting it for, or of restoring it to, the owner, does not take or misappropriate it dishonestly, and is not guilty of an offence ; but he is guilty of the offence above defined, if he appropriates it to his own use when he knows or has the means of discovering the owner, or before he has used reasonable means to discover and give notice to the owner and has kept the property a reasonable time to enable the owner to claim it.

What are reasonable means or what is a reasonable time in such a case, is a question or fact.

It is not necessary that the finder should know who is the owner of the property, or that any particular person is the owner of it : it is sufficient if, at the time of appropriating it, he does not believe it to be his own property, or in good faith believes that the real owner cannot be found.

Illustrations.

(a) A finds a taka on the high-road, not knowing to whom the taka belongs. A picks up the taka. Here A has not committed the offence defined in this section.

(b) A finds a letter on the road, containing a bank note. From the direction and contents of the letter he learns whom the note belongs. He appropriates the note. He is guilty of an offence under this section.

(c) A finds a cheque payable to bearer. He can form no conjecture as to the person who has lost the cheque. But the name of the person, who has drawn the cheque appears. A knows that this person can direct him to the person on whose favour the cheque was drawn. A appropriates the cheque without attempting to discover the owner. He is guilty of an offence under this section.

(d) A sees Z drop his purse with money in it. A picks up the purse with the intention of restoring it to Z, but afterwards appropriates it to this own use. A has committed an offence under this section.

(e) A finds a purse with money, not knowing to whom it belongs ; he afterwards discovers that it belongs to Z, and appropriates it to his own use. A is guilty of an offence under this section.

(f) A finds a valuable ring, not knowing to whom it belongs. A sells it immediately without attempting to discover the owner. A is guilty of an offence under this section.

404. Dishonest misappropriation of property possessed by deceased person at the time of his death.— Whoever, dishonestly misappropriates or converts to his own use property, knowing that such property was in the possession of a deceased person at the time of that person's decease and has not since been in the possession of any person legally entitled to such possession, shall be punished with imprisonment of either description for a term which may extend to three years and shall also be liable to fine; and if the offender at the time of such person's decease was employed by him as a clerk or servant, the imprisonment may extend to seven years.

Illustration

Z dies in possession of furniture and money. His servant A, before the money comes into the possession of any person entitled to such possession, dishonestly misappropriates it. A has committed the offence defined in this section.

Of Criminal Breach of Trust

405. Criminal breach of trust.— Whoever, being in any manner entrusted with property, or with any dominion over property, dishonestly misappropriates or converts to his own use that property, or dishonestly uses or disposes of that property in violation of any direction of law prescribing the mode in which such trust is to be discharged, or of any legal contract, express or implied, which he has made touching the discharge of such trust, or wilfully suffers any other person so to do, commits "criminal breach of trust".

Illustrations.

(a) A, being executor to the will of a deceased person, dishonestly disobeys the law which directs him to divide the effects according to the will, and appropriates them to his own use. A has committed criminal breach of trust.

(b) A is a warehouse-keeper. Z, going on a journey, entrusts his furniture to A, under a contract that it shall be returned on payment of a stipulated sum for warehouse-room. A dishonestly sells the goods. A has committed criminal breach of trust.

(c) A, residing in Dhaka, is agent for Z, residing at Chittagong. There is an express or implied contract between A and Z, that all sums remitted by Z to A shall be invested by A. according to Z's direction. Z remits a lakh of taka to A, with directions to A to invest the same in Company's paper. A dishonestly disobeys the directions and employs the money in his own business. A has committed criminal breach of trust.

(d) But if A, in the last illustration, not dishonestly but in good faith, believing that it will be more for Z's advantage to hold shares in the Bank of Bengal disobeys Z's directions, and buys shares in the Bank of Bengal, for Z, instead of buying Company's paper, here, though Z should suffer loss, and should be entitled to bring a civil action against A, on account of that loss, yet **A**, not having acted dishonestly, has not committed criminal breach of trust.

(e) A, a revenue-officer, is entrusted with public money and is either directed by law, or bound by a contract, express or implied, with the Government, to pay into a certain treasury all the public money which he holds. A dishonestly appropriates the money. A has committed criminal breach of trust.

(f) A, a carrier, is entrusted by Z with property to be carried by land or by water. A dishonestly misappropriates the property. A has committed criminal breach of trust.

406. Punishment for criminal breach of trust.— Whoever commits criminal breach of trust shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

407. Criminal breach of trust by carrier, etc.— Whoever, being entrusted with property as a carrier, wharfinger or warehouse-keeper commits criminal breach of trust in respect of such property, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

408. Criminal breach of trust by clerk or servant.— Whoever, being a clerk or servant or employed as a clerk or servant, and being in any manner entrusted in such capacity with property, or with any dominion over property, commits criminal breach of trust in respect of that property,

shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

409. Criminal breach of trust by public servant, or by banker, merchant or agent.— Whoever, being in any manner entrusted with property, or with any dominion over property in his capacity of a public servant or in the way of his business as a banker, merchant, factor, broker, attorney or agent, commits criminal breach of trust in respect of that property, shall be punished with imprisonment for life, or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

Of the Receiving of Stolen Property

410. Stolen property.— Property, the possession whereof has been transferred by theft, or by extortion, or by robbery, and property which has been criminally misappropriated or in respect of which criminal breach of trust has been committed, is designated as "stolen property", whether the transfer has been made, or the misappropriation or breach of trust has been committed, within or without Bangladesh. But, if such property subsequently comes into the possession of a person legally entitled to the possession thereof, it then cases to be stolen property.

411. Dishonestly receiving stolen property.— Whoever dishonestly receives or retains any stolen property knowing or having reason to believe the same to be stolen property, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

412. Dishonestly receiving property stolen in the commission of a dacoity.— Whoever dishonestly receives or retains any stolen property, the possession whereof he knows or has reason to believe to have been transferred by the commission of dacoity, or dishonestly receives from a person, whom he knows or has reason to believe to belong or to have belonged to a gang of dacoits, property which he knows or has reason to believe to have been stolen, shall be punished with imprisonment for life, or with rigorous imprisonment for a term which may extend to ten years, and shall also be liable to fine.

413. Habitually dealing in stolen property.— Whoever, habitually receives or deals in property which he knows or has reason to believe to be stolen property, shall be punished with imprisonment for life, or with

imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

414. Assisting in concealment of stolen property.— Whoever voluntarily assists in concealing or disposing of or making away with property which he knows or has reason to believe to be stolen property, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

Of Cheating.

415. Cheating.— Whoever, by deceiving any person, fraudulently or dishonestly induces the person so deceived to deliver any property to any person, or to consent that any person shall retain any property, or intentionally induces the person so deceived to do or omit to do anything which he would not do or omit if he were not so deceived, and which act or omission causes or is likely to cause damage or harm to that person in body, mind, reputation or property, is said to "cheat".

Explanation.— A dishonest concealment of facts is a deception within the meaning of this section.

Illustrations

(a) **A**, by falsely pretending to be in the Civil Service, intentionally deceives **Z**, and thus dishonestly induces **Z** to let him have on credit goods for which he does not mean. to pay. **A** cheats.

(b) **A**, by putting a counterfeit mark on an article, intentionally deceives **Z** into a belief that this article was made by a certain celebrated manufacturer, and thus dishonestly induces **Z** to buy and pay for the article. **A** cheats.

(c) **A**, by exhibiting to **Z** a false sample of an article, intentionally deceives **Z** into believing that the article corresponds with the sample, and thereby dishonestly induces **Z** to buy and pay for the article. **A** cheats.

(d) **A**, by tendering in payment for an article a bill on a house with which **A** keeps no money, and by which **A** expects that the bill will be dishonoured, intentionally deceives **Z**, and thereby dishonestly induces **Z** to deliver the article, intending not to pay for it. **A** cheats.

(e) **A**, by pledging as diamonds articles which he knows are not diamonds, intentionally deceives **Z**, and thereby dishonestly induces **Z** to lend money. **A** cheats.

(f) **A** intentionally deceives **Z** into a belief that **A** means to repay any money that **Z** may lend to him and thereby dishonestly induces **Z** to lend him money, **A** not intending to repay it. **A** cheats.

(g) **A** intentionally deceives **Z** into a belief that **A** means to deliver to **Z** a certain quantity of indigo plant which he does not intend to deliver, and thereby dishonestly induces **Z** to advance money upon the faith of such delivery. **A** cheats ; but if **A**, at the time of obtaining the money, intends to deliver the indigo plant and afterwards break his contract and does not deliver it, he does not cheat, but is liable only to a civil action for breach of contract.

(h) **A** intentionally deceives **Z** into a belief that **A** has performed **A**'s part of a contract made with **Z**, which he has not performed, and thereby dishonestly induces **Z** to pay money. **A** cheats.

(i) **A** sells and conveys an estate to **B**. **A**, knowing that in consequence of such sale he has no right to the property, sells or mortgages the same to **Z**, without disclosing the fact of the previous sale and conveyance to **B**, and receives the purchase or mortgages money from **Z**. **A** cheats.

416. Cheating by personation.— A person is said to "cheat by personation" if he cheats by pretending to be some other person, or by knowingly substituting one person for another, or representing that he or any other person is a person other than he or such other person really is.

Explanation.–The offence is committed whether the individual personated is a real or imaginary person.

Illustrations

(a) **A** cheats by pretending to be a certain rich banker or the same name. **A** cheats by personation.

(b) **A** cheats by pretending to **B**, a person who is deceased. **A** cheats by personation.

417. Punishment for cheating.— Whoever cheats shall be punished with imprisonment of either description for a term which may extend to one year, or with fine or with both.

418. Cheating with knowledge that wrongful loss may ensue to person whose interest offender is bound to protect.— Whoever cheats with the knowledge that he is likely thereby to cause wrongful loss to a person whose interest in the transaction to which the cheating relates, he was bound either by law, or by a legal contact, to protect, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

419. Punishment for cheating by personation.–Whoever cheats by personation shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

420. Cheating and dishonestly inducing delivery of property.–Whoever cheats and thereby dishonestly induces the person deceived to deliver any property to any person, or to make, alter or destroy the whole or any part of a valuable security, or anything which is signed or sealed, and which is capable of being converted into a valuable security, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

Of Fraudulent Deeds and Dispositions of Property

421. Dishonest or fraudulent removal or concealment of property to prevent distribution among creditors.— Whoever dishonestly or fraudulently removes, conceals or delivers to any person, or transfers or causes to be transferred to any person, without adequate consideration, any property, intending thereby to prevent, or knowing it to be likely that he will thereby prevent, the distribution of that property according to law among his creditors or

the creditors of any other person, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

422. Dishonestly or fraudulently preventing debt bring available for creditors.— Whoever dishonestly or fraudulently prevents any debt or demand due to himself or to any other person from being made available according to law for payment of his debts or the debts of such other person, shall be punished with imprisonment of either description for a term which may extend to two years or with fine, or with both.

423. Dishonest or fraudulent execution of deed or transfer containing false statement of consideration.— Whoever, dishonestly or fraudulently signs, executes or becomes a party to any deed or instrument which purports to transfer or subject to any charge any property, or any interest therein, and which contains any false statement

relating to the consideration for such transfer or charge, or relating to the person or persons for whose use or benefit it is really intended to operate, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine or with both.

424. Dishonest or fraudulent removal or concealment of property.— Whoever dishonestly or fraudulently conceals or removes any property of himself or any other person, or dishonestly or fraudulently assist in the concealment or removal thereof, or dishonestly releases any demand or claim to which he is entitled, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

Of Mischief

425. Mischief.— Whoever, with intent to cause, or knowing that he is likely to cause, wrongful loss or damage to the public or to any person, causes the destruction of any property, or any such change in any property or in the situation thereof as destroys or diminishes its value or utility, or affects it injuriously, commits "mischief".

Explanation. 1.— It is not essential to the offence of mischief that the offender should intend to cause loss or damage to the owner of the property injured or destroyed. It is sufficient if he intends to cause, or knows that he is likely to cause, wrongful loss or damage to any person by injuring any property, whether it belongs to that person or not.

Explanation 2.— Mischief may be committed by an act affecting property belonging to the person who commits the act, or to that person and others jointly.

Illustrations.

(a) **A**, voluntarily burns a valuable security belonging to **Z**, intending to cause wrongful loss to **Z**. **A** has committed mischief.

(b) **A**, introduces water into an ice-house belonging to **Z** and thus causes the ice to melt, intending wrongful loss to **Z**. **A** has committed mischief.

(c) **A**, voluntarily throws into a river a ring belonging to **Z**, with the intention of thereby causing wrongful loss to **Z**. **A** has committed mischief.

(d) **A**, knowing that his effects are about to be taken in execution in order to satisfy a debt due from him to **Z**, destroys those effects, with the

intention of thereby preventing **Z** from obtaining satisfaction of the debt, and of thus causing damage to **Z**. **A** has committed mischief.

(e) **A** having insured a ship, voluntarily causes the same to be cast away, with the intention of causing damage to the underwriters. **A** has committed mischief.

(f) **A,** causes a ship to be cast away, intending thereby to cause damage to **Z** who has lent money on bottomry on the ship. **A** has committed mischief.

(g) **A,** having joint property with **Z** in a horse ; shoots the horse, intending thereby to cause wrongful loss to **Z**. **A** has committed mischief.

(h) **A** causes cattle to enter upon a field belonging to **Z**, intending to cause and knowing that he is likely to cause damage to **Z**'s crop. A has committed mischief.

426. Punishment.— Whoever commits mischief shall be punished with imprisonment of either description for a term which may extend to three months, or with fine, or with both.

427. Mischief causing damage to the amount of fifty taka.— Whoever commits mischief and thereby causes loss or damage to the amount of fifty taka or upwards, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

428. Mischief by killing or maiming animal of the value of ten taka.–Whoever commits mischief by killing, poisoning, maiming or rendering useless any animal or animals of the value of ten taka or upwards, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

429. Mischief by killing or maiming cattle. etc., of any value or any animal of the value of fifty taka.— Whoever commits mischief by killing, poisoning, maiming, or rendering useless, any elephant, camel, horse, mule, buffalo, bull, cow or ox, whatever may be the value thereof, or any other animal of the value of fifty taka or upwards, shall be punished with imprisonment of either description for a term which may extend to five years, or with fine, or with both.

430. Mischief by injury to works of irrigation or by wrongfully diverting water.— Whoever commits mischief by doing any act which

causes, or which he knows to be likely to cause, a diminution of the supply of water for agricultural purposes, or for food or drink for human beings or for animals which are property, or for cleanliness or for carrying on any manufacture, shall be punished with imprisonment of either description for a term which may extend to five years, or with fine, or with both.

431. Mischief by injury to public road, bridge, river or channel.— Whoever commits mischief by doing any act which renders or which he knows to be likely to render any public road, bridge, navigable river or navigable channel, natural or artificial, impassable or less safe for travelling or conveying property, shall be punished with imprisonment of either description for a term which may extend to five years, or with fine, or with both.

432. Mischief by causing inundation obstruction to public drainage attended with damage.— Whoever commits mischief by doing any act which causes or which he knows to be likely to cause an inundation or an obstruction to any public drainage attended with injury or damage, shall be punished with imprisonment of either description for a term which may extend to five years, or with fine, or with both.

433. Mischief by destroying, moving or rendering less useful a light-house or sea-mark.— Whoever commits mischief by destroying or moving any light-house or other light used as a sea-mark, or any sea-mark or buoy or other thing placed as a guide for navigators, or by any act which renders any such light-house, sea-mark, buoy or other such thing as aforesaid less useful as a guide for navigators, shall be punished with imprisonment of either description for a term which may extend to seven years, or with fine, or with both.

434. Mischief by destroying or moving, etc., a land-mark fixed by public authority.— Whoever commits mischief by destroying or moving any landmark fixed by the authority of a public servant, or by any act which renders such land-mark less useful as such, shall be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both.

435. Mischief by fire or explosive substance with intent to cause damage to amount of one hundred or (in case of agricultural produce) ten taka.— Whoever commits mischief by fire or any explosive

substance, intending to cause, or knowing it to be likely that he will thereby cause, damage to any property to the amount of one hundred

taka or upwards or (where the property is agricultural produce) ten taka or upwards, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

436. Mischief by fire or explosive substance with intent to destroy house, etc.— Whoever commits mischief by fire or any explosive substance, intending to cause, or knowing it to be likely that he will thereby cause, the destruction of any building which is ordinarily used as a place of worship or as a human dwelling or as a place for the custody of property, shall be punished with imprisonment for life, or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

437. Mischief with intent to destroy or make unsafe a decked vessel or one of twenty tons burden.— Whoever commits mischief to any decked vessel or any vessel of a burden of twenty tons or upwards, intending to destroy or render unsafe, or knowing it to be likely that he will thereby destroy or render unsafe, that vessel, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

438.Punishment for the mischief described in section 437 committed by fire or explosive substance.— Whoever commits, or attempts to commit, by fire or any explosive substance, such mischief as is described in the last preceding section, shall be punished with imprisonment for life, or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

439. Punishment for intentionally running vessel aground or ashore with intent to commit theft, etc.— Whoever, intentionally runs any vessel aground or ashore, intending to commit theft of any property contained therein or to dishonestly misappropriate any such property, or with intent that such theft or misappropriation of property may be committed, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

440. Mischief committed after preparation made for causing death or hurt.— Whoever commits mischief, having made preparation for causing to any person death, or hurt, or wrongful restraint, or fear of death, or of hurt or of wrongful restraint, shall be punished with imprisonment of either description for a term which may extend to five years, and shall also be liable to fine.

OF CRIMINAL TRESPASS

441. Criminal trespass.— Whoever enters into or upon property in the possession of another with intent to commit an offence or to intimidate, insult or annoy any person in possession of such property,

or, having lawfully entered into or upon such property, unlawfully remains there with intent thereby to intimidate, insult or annoy any such person, or with intent to commit an offence, is said to commit "criminal trespass".

442. House-trespass.— Whoever commits criminal trespass by entering into or remaining in any building, tent or vessel used as a human dwelling or any building used as a place for worship, or as a place for the custody of property, is said to commit house-trespass."

Explanation.— The introduction of any part of the criminal trespasser's body is entering sufficient to constitute house-trespass.

443. Lurking house-trespass.— Whoever commits house-trespass having taken precautions to conceal such house trespass from some person who has a right to exclude or eject the trespasser from the building, tent or vessel which is the subject of the trespass is said to commit "lurking house-trespass".

444. Lurking house-trespass by night.— Whoever commits lurking-house-trespass after sunset and before sunrise, is said to commit "lurking house-trespass by night".

445. House-breaking.— A person is said to commit "house-breaking" who commits house-trespass if he effects his entrance into the house or any part of it any of the six ways hereinafter described ; or if, being in the house or any part of it for the purpose of committing an offence, or, having committed an offence therein he quits the house or any part of it in any of such six ways, that is to say :–

First.— If he enters or quits through a passage made by himself, or by any abettor of the house-trespass, in order to the committing of the house-trespass.

Secondly.— If he enters or quits through any passage not intended by any person, other than himself or an abettor of the offence, for human entrance; or through any passage to which he has obtained access by scaling or climbing over any wall or building.

Thirdly.— If he enters or quits through any passage which he or any abettor of the house-trespass has opened, in order to committing of the house-trespass by any means by which that passage was not intended by the occupier of the house to be opened.

Fourthly.— If he enters or quits by opening any lock in order to the committing of the house-trespass, or in order to the quitting of the house after a house-trespass.

Fifthly.— If he effects his entrance or departure by using criminal force or committing an assault or by threatening any person with assault.

Sixthly.— If he enters or quits by any passage which he knows to have been fastened against such entrance or departure, and to have been unfastened by himself or by an abettor of the house-trespass.

Explanation.— Any out-house or building occupied with a house, and between which and such house there is an immediate internal communication, is part of the house within the meaning of this section.

Illustrations.

(a) **A** commits house-trespass by making a hole through the wall of **Z**'s house, and putting his hand through the aperture. This is house-breaking.

(b) **A** commits house-trespass by creeping into a ship at a port-hole between decks. This is house-breaking.

(c) **A** commits house-trespass by entering **Z**'s house through a window. This is house-breaking.

(d) **A** commits house-trespass by entering **Z**'s house through the door, having opened a door which was fastened. This is house-breaking.

(e) **A** commits house-trespass entering **Z**'s house through the door, having lifted a latch by putting a wire through a hole in the door. This is house-breaking.

(f) **A** finds the key of **Z**'s house door, which **Z** had lost, and commits house-trespass by entering **Z**'s house having opened the door with that key. This is house-breaking.

(g) **Z** is standing in his doorway. **A** forces a passage by knocking **Z** down, and commits house-trespass by entering the house. This is house-breaking.

(h) **Z**, the door-keeper of **Y**, is standing in **Y**'s doorway. **A** commits house-trespass by entering the house, having deterred **Z** from opposing him by threatening to beat him. This is house-breaking.

446. House-breaking by night.— Whoever commits house-breaking after sunset and before sunrise, is said to commit "house-breaking by night".

447. Punishment for criminal trespass.— Whoever commits criminal trespass shall be punished with imprisonment of either description for a term which may extend to three months, or with fine which may extend to five hundred taka or with both.

448. Punishment for house-trespass.— Whoever commits house-trespass shall be punished with imprisonment of either description for a term which may extend to one year, or with fine which may extend to one thousand taka, or with both.

449. House-trespass in order to commit offence punishable with death.— Whoever commits house-trespass in order to the committing of any offence punishable with death, shall be punished with imprisonment for life, or with rigorous imprisonment for a term not exceeding ten years, and also be liable to fine.

450. House-trespass in order to commit offence punishable with imprisonment for life.— Whoever commits house-trespass in order to the committing of any offence punishable with imprisonment for life, shall be punished with imprisonment of either description for a term not exceeding ten years, and shall also be liable to fine.

451. House-trespass in order to commit offence punishable with imprisonment.— Whoever commits house-trespass in order to the committing of any offence punishable with imprisonment, shall be punished with imprisonment of either description for a term which may extend to two years, and shall also be liable to fine ; and if the offence intended to be committed is theft, the term of the imprisonment may be extended to seven years.

452. House-trespass after preparation for hurt, assault or wrongful restraint.— Whoever commits house-trespass, having made preparation for causing hurt to any person or for assaulting any person, or for wrongfully restraining any person, or for putting any person in fear of hurt, or of assault, or of wrongful restraint, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

453. Punishment for lurking house-trespass or house-breaking.— Whoever commits lurking house-trespass or house-breaking, shall be punished with imprisonment of either description for a term which may extend to two years, and shall also be liable to fine.

454. Lurking-house trespass or breaking in order to commit offence punishable with imprisonment.— Whoever commits lurking house-trespass or house-breaking, in order to the committing of any offence punishable with imprisonment, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine ; and if the offence intended to be committed is theft, the term of the imprisonment may be extended to ten years.

455. Lurking house-trespass or house-breaking after preparation for hurt, assault or wrongful restraint.— Whoever commits lurking house-trespass, or house breaking, having made preparation for causing hurt to any person, or for assaulting any person, or for wrongfully restraining any person, or for putting any person in fear of hurt or of assault or of wrongful restraint, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

456. Punishment for lurking house-trespass or house-breaking by night.— Whoever commits lurking house-trespass by night, or house-breaking by night, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine.

457. Lurking house-trespass or house-breaking by night in order to commit offence punishable with imprisonment.— Whoever commits lurking house-trespass by night, or house-breaking by night, in order to the committing of any offence punishable with imprisonment, shall be punished with imprisonment of either description for a term which may extend to five years, and shall also be liable to fine ; and, if the offence intended to be committed is theft, term of the imprisonment may be extended to fourteen years.

458. Lurking house-trespass or house-breaking by night after preparation for hurt, assault or wrongful restraint.— Whoever commits lurking house-trespass by night or house-breaking by night, having made preparation for causing hurt to any person or for assaulting

any person, or for wrongfully restraining any person, or for putting any person in fear of hurt, or of assault, or of wrongful restraint, shall be punished with imprisonment of either description for a term which may extend to fourteen years, and shall also be liable to fine.

459. Grievous hurt caused whilst committing lurking house-trespass or house-breaking.— Whoever, whilst committing lurking house-trespass or house breaking, causes grievous hurt to any person or attempt to cause death or grievous hurt to any person, shall be punished with imprisonment for life, or imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

460. All persons jointly concerned in lurking house-trespass or house-breaking by night punishable where death or grievous hurt cause by one of them.— If, at the time of the committing of lurking house-trespass by night or house-breaking by night, any person guilty of such offence shall voluntarily cause or attempt to cause death or grievous hurt to any person, every person jointly concerned in committing such lurking house-trespass by night or house-breaking by night, shall be punished with imprisonment for life, or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

461. Dishonestly breaking open receptacle containing property.— Whoever dishonestly or with intent to commit mischief breaks open or unfastens any closed receptacle which contains or which he believes to contain property, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

462. Punishment for same offence when committed by person entrusted with custody.— Whoever, being entrusted with any closed receptacle which contains or which he believes to contain property, without having authority to open the same, dishonestly, or with intent to commit mischief, breaks open or unfastens that receptacle, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

462A. Penalty for negligent conduct of bank officers and employees.

462B. Penalty for defrauding banking company.

CHAPTER XVIII

OF OFFENCES RELATING TO DOCUMENTS AND TO TRADE OR PROPERTY MARKS

463. Forgery.— Whoever makes any false document or part of a document, with intent to cause damage or injury, to the public or to any person, or to support any claim or title, or to cause any person to part with property, or to enter into any express or implied contract, or with intent to commit fraud or that fraud may be committed, commits forgery.

464. Making a false document.— A person is said to make a false document–

First.— Who dishonestly or fraudulently makes, signs, seals or executes a document or part of a document, or makes any mark denoting the execution of a document, with the intention of causing it to be believed that such document or part of a document was made, signed, sealed or executed by or by the authority of a person by whom or by whose authority he knows that it was not made, signed, sealed or executed, or at a time at which he knows that it was not made, signed, sealed or executed ; or

Secondly.— Who, without lawful authority, dishonestly or fraudulently, by cancellation or otherwise, alters a document in any material part thereof, after it has been made or executed either by himself or by any other person, whether such person be living or dead at the time of such alteration ; or

Thirdly.— Who dishonestly or fraudulently causes any person to sign, seal, execute or alter a document, knowing that such person by reason of unsoundness of mind or intoxication cannot, or that by reason of deception practiced upon him, he does not know the contents of the document of the nature of the alteration.

Illustrations

(*a*) A has a letter of credit upon B for taka 10,000, written by Z. A, in order to defraud B, adds a cipher to the 10,000 and makes the sum 1,00,000, intending that it may be believed by B that Z so wrote the letter. A has Committed forgery.

(*b*) A, without Z's authority, affixes Z's seal to a document purporting to be a conveyance of a estate from Z to A, with the intention of selling the estate to B and thereby of obtaining from B the purchase-money. A has committed forgery.

(*c*) A picks up a cheque on a banker signed by B, payable to bearer, but without any sum having been inserted in the cheque. A fraudulently fills up the cheque by inserting the sum of ten thousand taka. A commits forgery.

(*d*) A leaves with B, his agent, a cheque on a banker, signed by A, without inserting the sum payable and authorizes B to fill up the cheque by inserting a sum not exceeding ten thousand taka for the purpose of making certain payments. B fraudulently fills up the cheque by inserting the sum of twenty thousand taka. B commits forgery.

(*e*) A draws a bill of exchange on himself in the name of B without B's authority, intending to discount it as a genuine bill with a banker and intending to take up the bill on its maturity. Here, as A draws the bill with intent to deceive the banker by leading him to suppose that he had the security of B, and thereby to discount the bill. A is guilty of forgery.

(*f*) Z's will contains these word–"I direct that all by remaining property be equally divided between A, B and C." A dishonestly scratches out B's name, intending that it may be believed that the whole was left to himself and C. A has committed forgery.

(*g*) A endorses a Government promissory note and makes it payable to Z or his order by writing on bill the words "Pay to Z or his order" and signing the endorsement. B dishonestly erases the words "Pay to Z or his order" and thereby converts the special endorsement into a blank endorsement. B commits forgery.

(*h*) A sells and conveys an estate to Z. A afterwards in order to defraud Z of his estate executes a conveyance of the same estate to B, dated six months earlier than the date of the conveyance to Z, intending it to be believed that he had conveyed the estate to B before he conveyed it to Z. A has committed forgery.

(*i*) Z dictates his will to A, A intentionally writes down a different legatee from the legatee named by Z, and by representing to Z that he has prepared the will according to his instructions, induces Z to sign the will. A has committed forgery.

(*j*) A writes a letter and sings it with B's name without B's authority, certifying that A is a man of good character and in distressed circumstances from unforeseen misfortune, intending by means of such letter to obtain aims from Z and other persons. Here, as A made a false document in order to induce Z to part with property. A has committed forgery.

(*k*) A without B's authority writes a letter and signs it in B's name certifying to A's character, intending thereby to obtain employment under Z. A has committed forgery in as much as he intended to deceive Z by the forged certificate, and thereby to induce Z to enter into an express or implied contract for service.

Explanation 1.— A man's signature of his own name may amount to forgery.

Illustrations

(*a*) A signs his own name to a bill of exchange, intending that it may be believed that the bill was drawn by another person of the same name. A has committed forgery.

(*b*) A writes the word "accepted" on a place of paper and signs it with Z's name, in order that B may afterwards write on the paper a bill of exchange drawn by B upon Z, and negotiate the bill as though it had been accepted by Z. A is guilty of forgery ; and if B, knowing the fact, draws the bill upon the paper pursuant to A's intention, B is also guilty of forgery.

(*c*) A picks, up a bill of exchange payable to the order of a different person of the same name. A endorses the bill in his own name, intending to cause it to be believed that it was endorsed by the person to whose order it was payable, here A has committed forgery.

(*d*) A purchases an estate sold under execution of a decree against B. B after the seizure of the estate, in collusion with Z, executes a lease of the estate, to Z at a nominal rent and for a long period and dates the lease six months prior to the seizure, with intent to defraud A, and to cause it to be believed that the lease was granted before the seizure. B, though he executes the lease in his own name, commits forgery by antedating it.

(*e*) A, a trader, in anticipation of insolvency, lodges effects with B for A's benefit, and with intent to defraud his creditors ; and in order to give a colour to the transaction, writes a promissory note binding himself to pay to B a sum for value received, and antedates the note, intending that it may be believed to have been made before A was on the point of insolvency. A has committed forgery under first head of the definition.

Explanation 2— The making of a false document in the name of a fictitious person, intending it to be believed that the document was made by a real person, or in the name of a deceased person, intending it to be believed that the document was made by the person in his lifetime, may amount to forgery.

Illustration

(*a*) A draws a bill of exchange upon a fictitious person, and fraudulently accepts the bill in the name of such fictitious person with intent to negotiate it. A commits forgery.

465. Punishment for forgery.— Whoever commits forgery shall be punished with imprisonment of either description for a term which may extend to two years, or with fine or with both.

466. Fery of eocogrrdr of Court or of public register etc.— Whoever forges a document, purporting to be a record or proceeding of or in a Court of Justice, or a register of birth, baptism, marriage or burial, or a register kept by a public servant as such, or a certificate or document purporting to be made by a public servant in his official capacity, or an authority to institute or defend a suit, or to take any proceedings therein, or to confess judgment, or a power of attorney, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

467. Forgery of valuable security, will, etc.— Whoever forges a document which purports to be a valuable security or a will, or an authority to adopt a son, or which purports to give authority to any person to make or transfer any valuable security, or to receive the principal, interest or dividends thereon, or to receive or deliver any money, movable property, or valuable security or any document purporting to be an acquittance or receipt acknowledging the payment of money, or an acquittance or receipt for the delivery of any moveable property or valuable security, shall be punished with imprisonment for life, or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

468. Forgery for purpose of cheating.— Whoever commits forgery, intending that the document forged shall be used for the purpose of cheating shall be punished with imprisonment of either description for a term which may extend to seven years, and shall be liable to fine.

469. Forgery for purpose of harming reputation.— Whoever commits forgery, intending that the document forged shall harm the reputation of any party, or knowing that it is likely to be used for that purpose, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine.

470. Forged document.— A false document made wholly or in part by forgery is designated "a forged document".

471. Using as genuine a forged document.— Whoever fraudulently or dishonestly uses as genuine any document which he knows or has reason to believe to be a forged document, shall be punished in the same manner as if he had forged such document.

472. Making or possessing counterfeit seal, etc., with intent to commit forgery punishable under section 467.— Whoever makes or counterfeits any seal, plate or other instrument for making an impression, intending that the same shall be used for the purpose of committing any forgery which would be punishable under section 467 of this Code, or, with such intent, has in his possession any such seal, plate or other instrument, knowing th e same to be counterfeit, shall be punishable with imprisonment for life, or with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

473. Making or possessing counterfeit seal, etc., with intent to commit forgery punishable otherwise.— Whoever makes or counterfeits any seal, plate or other instrument for making an impression, intending that the same shall be used for the purpose of committing any forgery which would be punishable under any section of this chapter other than section 467, or with such intent, has in his possession any such seal, plate or other instrument, knowing the same to be counterfeit, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

474. Having possession of document described in section 466 or 467, knowing it to be forged and intending to use it as genuine.— Whoever has in his possession any document, knowing the same to be forged, and intending that the same shall fraudulently or dishonestly be used as genuine, shall, if the document is one of description mentioned in section 466 of this Code, be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine ; and if the document is one of the description mentioned in section 467, shall be punished with imprisonment for life, or with imprisonment of either description, for a term which may extend to seven years, and shall also be liable to fine.

475. Counterfeiting device or mark used for authenticating documents described in section 467, or possessing counterfeit marked material.— Whoever counterfeits upon, or in the substance of, any material any device or mark used for the purpose of authenticating any document described in section 467 of this Code, intending that such

device or mark shall be used for the purpose of giving the appearance of authenticity to any document then forged or thereafter to be forged on such material, or who, with such intent, has in his possession any material upon or in the substance of which any such device or mark has been counterfeited, shall be punished with imprisonment for life, or with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

476. Counterfeiting device or mark used for authenticating documents other than those described in section 467, or possessing counterfeit marked material.— Whoever counterfeits upon, or in the substance of, any material, any device or mark used for the purpose of authenticating any document other than the documents described in section 467 of this Code, intending that such device or mark shall be used for the purpose of giving the appearance of authenticity to any document then forged or thereafter to be forged on such material, or who, with such intent, has in his possession any material upon or in the substance of which any such device or mark has been counterfeited, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

477. Fraudulent cancellation, destruction, etc., of will, authority to adopt, or valuable security.— Whoever fraudulently or dishonestly, or with intent to cause damage or injury to the public or to any person, cancels, destroys or defaces, or attempts to cancel, destroy or deface, or secrets or attempt so secret any document which is or purports to be a will, or an authority to adopt a son, or any valuable security, or commits mischief in respect to such document, shall be punished with imprisonment for life, or with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

477A. Falsification of accounts.— Whoever, being a clerk, officer or servant, or employed or acting in the capacity of a clerk, officer or servant, willfully, and with intent to defraud, destroys, alters, mutilates or falsifies any book, paper, writing, valuable security or account which belongs to or is in the possession of his employer, or has been received by him for or on behalf of his employer, or willfully, and with intent to defraud, makes or abets, the making of any false entry in, or omits or alters or abets the omission or alteration of any material particular from or in, any such book, paper, writing valuable security or account, shall be punished with imprisonment of either description for a term which may extend to seven years, or with fine, or with both.

Explanation.— It shall be sufficient in any charge under this section to allege a general intent to defraud without naming any particular person intended to be defrauded or specifying any particular sum of money intended to be the subject of the fraud, or any particular day on which the offence was committed.

OF TRADE, PROPERTY AND OTHER MARKS

478. Trade Mark.— A mark used for denoting that goods are the manufacture or merchandise of a particular person is called a trade mark, and for the purposes of this Code the expression "trade mark" includes any trade mark which is registered in the register of trade marks kept under the Patents, Designs and Trade Marks Act, 1883, and any trade marks which, either with or without registration, is protected by law in any British possession or Foreign State to which the provisions of the one hundred and third section of the Patents, Designs and Trade Marks Act, 1883, are under Order-in-Council, for the time being applicable.

479. Property mark.— A mark used for denoting that moveable property belongs to a particular person is called a property mark.

480. Using a false trade mark.— Whoever marks any goods or any case, package or other receptacle containing goods, or uses any case, package or other receptacle with any mark thereon, in a manner reasonably calculated to cause it to be believed that the goods so marked, or any goods contained in any such receptacle so marked, are the manufacture or merchandise of a person whose manufacture or merchandise they are not, is said to use a false trade mark.

481. Using a false property mark.— Whoever marks any moveable property or goods or any case, package or other receptacle containing moveable property or goods, or uses any case, package or other receptacle having any mark thereon, in a manner reasonably calculated to cause it to be believed that the property or goods so marked, or any property or goods contained in any such receptacle so marked, belong to a person to whom they do not belong, is said to use a false property mark.

482. Punishment for using a false trade mark or property mark.— Whoever uses any false trade mark or any false property mark shall, unless he proves that he acted without intent to defraud, be punished with imprisonment of either description for a term which may extend to one year, or with fine or with both.

483. Counterfeiting a trade mark or property mark used by another.— Whoever counterfeits any trade mark or property mark used by any other person shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

484. Counterfeiting a mark used by a public servant.— Whoever counterfeits any property mark used by a public servant, or any mark used by a public servant to denote that any property has been manufactured by a particular person or at a particular time or place, or that the property is of a particular quality or has passed through a particular office, or that it is entitled to any exemption, or uses as genuine any such mark knowing the same to be counterfeit, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine.

485. Making or possession of any instrument for counterfeiting a trade mark or property mark.— Whoever makes or has in his possession any die, plate or other instrument for the purpose of counterfeiting a trade mark or property mark, or has in his possession a trade mark or property mark for the purpose of denoting that any goods are the manufacture or merchandise of a person whose manufacture or merchandise they are not, or that they belong to a person to whom they do not belong, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

486. Selling goods marked with a counterfeit trade mark or property mark.— Whoever sells, or exposes, or has in possession for sale or any purposes of trade or manufacture, any goods or things with a counterfeit trade mark or property mark affixed to or impressed upon the same or to or upon any case, package or other receptacle in which such goods are contained, shall unless he proves–

(*a*) that, having taken all reasonable precautions against committing an offence against this section, he had at the time of the commission of the alleged offence no reason to suspect the genuineness of the trade mark, and

(*b*) that on demand made by or on behalf of the prosecutor, he gave all the information in his power with respect to the persons from whom he obtained such goods or things, or

(*c*) that otherwise he had acted innocently. be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both.

487. Making a false mark upon any receptacle containing goods.— Whoever makes any false mark upon any case, package or other receptacle containing goods, in a manner reasonably calculated to cause any public servant or any other person to believe that such receptacle contains goods which it does not contain or that it does not contain goods which it does contain, or that the goods contained in such receptacle are of a nature or quality different from the real nature or quality thereof, shall, unless he proves that he acted without intent to defraud, be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

488. Punishment for making use of any such false mark.— Whoever makes use of any such false mark in any manner prohibited by the last foregoing section shall, unless he proves that he acted without intent to defraud, be punished as if he had committed an offence against that section.

489. Tampering with property mark with intent to cause injury.— Whoever removes, destroys, defaces or adds to any property mark, intending or knowing it to be likely that he may thereby cause injury to any person, shall be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both.

OF CURRENCY-NOTES AND BANK-NOTES

489A. Counterfeiting currency-notes or bank-notes.— Whoever counterfeits, or knowingly performs any part of the process of counterfeiting, any currency-note or bank-note, shall be punished with imprisonment for life, or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

Explanation.— For the purpose of this section and of sections 489B, 489C, and 489D, the expression "bank-note" means a promissory note or engagement for the payment of money to bearer on demand issued by any person carrying on the business of banking in any part of the world, or issued by or under the authority of any State or Sovereign power, and intended to be used as equivalent to, or as a substitute for, money.

489B. Using as genuine, forged or counterfeit currency-notes or bank-notes.— Whoever sells to, or buys or receives from, any other person, or otherwise traffics in or uses as genuine, any forged or counterfeit currency-note or bank-note, knowing or having reason to believe the same to be forged or counterfeit, shall be punished with imprisonment for life, or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

489C. Possession of forged or counterfeit currency-notes or bank-notes.— Whoever has in his possession any forged or counterfeit currency-note or bank-note, knowing or having reason to believe the same to be forged or counterfeit and intending to use the same as genuine or that it may be used as genuine, shall be punished with imprisonment of either description for a term which may extend to seven years, or with fine , or with both.

489D. Making or possessing instruments or materials for forging or counterfeiting currency-notes or bank-notes.— Whoever makes, or performs any part of the process of making, or buys or sells or disposes of, or has in his possession, any machinery, instrument or material for the purpose of being used, or knowing or having reason to believe that it is intended to be used, for forging or counterfeiting any currency-note or bank-note, shall be punished with imprisonment for life, or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

489E. Making or using documents resembling currency-notes or bank-notes.— (1) Whoever makes, or causes to be made, or uses for any purpose whatsoever, or delivers to any person, any document purporting to be, or in anyway resembling, or so nearly resembling as to be calculated to deceive, any currency-note or bank-note shall be punished with fine which may extend to one hundred taka.

(2) If any person, whose name appears on a document the making of which is an offence under sub-section (1), refuses, without lawful excuse, to disclose to a police-officer on being so required the name and address of the person by whom it was printed or otherwise made, he shall be punished with fine which may extend to two hundred taka.

(3) Where the name of any person appears on any document in respect of which any person is charged with an offence under sub-section (1) or on any other document used or distributed in connection with that document it may, until the contrary is proved, be presumed that person caused that the document to be made.

CHAPTER XIX

OF CRIMINAL BREACH OF CONTRACTS OF SERVICE

490. (*Repealed*).

491. Breach of contract to attend on and supply wants of helpless person.— Whoever, being bound by a lawful contract to attend on or to supply the wants of any person who, by reason of youth, or of unsoundness of mind, or of a disease or bodily weakness, is helpless or incapable of providing for his own safety or of supplying his own wants, voluntarily omits so to do, shall be punished with imprisonment of either description for a term which may extend to three months, or with fine which may extend to two hundred taka or with both.

492. (*Repealed*).

CHAPTER XX

OF OFFENCES RELATING TO MARRIAGE

493. Cohabitation caused by a man deceitfully inducing a belief of lawful marriage.— Every man who by deceit causes any woman is not lawfully married to him to believe that she is lawfully married to him and to cohabit or have sexual intercourse with him in that belief, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

494. Marrying again during lifetime of husband or wife.— Whoever, having a husband or wife living, marries in any case in which such marriage is void by reason of its taking place during the life of such husband or wife shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

Exception.— This section does not extend to any person whose marriage with such husband or wife has been declared void by a Court of competent jurisdiction,

nor to any person who contracts a marriage during the life of a former husband or wife, if such husband or wife, at the time of the subsequent marriage, shall have been continually absent from such person for the space of seven years, and shall not have been heard of by such person as being alive within that time provided the person contracting such subsequent marriage shall, before such marriage takes place, inform the person with whom such marriage is contracted of the real state of facts so far as the same are within his or her knowledge.

495. Same offence with concealment of former marriage from person with whom subsequent marriage is contracted.— Whoever commits the offence defined in the last preceding section having concealed from the person with whom the subsequent marriage is contracted, the fact of former marriage, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

496. Marriage ceremony fraudulently gone through without lawful marriage.— Whoever, dishonestly or with a fraudulent intention, goes through the ceremony of being married, knowing that he is not

thereby lawfully married, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

497. Adultery.— Whoever has sexual intercourse with a person who is and whom he knows or has reason to believe to be the wife of another man, without the consent or connivance of that man, such sexual intercourse not amounting to the offence of rape, is guilty of the offence of adultery, and shall be punished with imprisonment of either description for a term which may extend to five years, or with fine, or with both. In such cash, the wife shall not be punishable as an abettor.

498. Enticing or taking away or detaining with Criminal intent a married woman.— Whoever takes or entices away any woman who is and whom he knows or has reason to believe to be the wife of any other man, from that man, or from any person having the care of her on behalf of that man, with intent that she may have illicit intercourse with any person, or conceals or detains with that intent any such woman, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

CHAPTER XXI

OF DEFAMATION

499. Defamation.— Whoever by words either spoken or intended to be read, or by signs or by visible representations, makes or publishes any imputation concerning any person intending to harm, or knowing or having reason to believe that such imputation will harm, the reputation of such person, is said, except in the cases hereinafter excepted, to defame that person.

Explanation 1.— It may amount to defamation to impute anything to a deceased person, if the imputation would harm the reputation of that person if living, and is intended to be hurtful to the feelings of his family or other near relatives.

Explanation 2.— It may amount to defamation to make and imputation concerning a company or an association or collection or person as such.

Explanation 3.— An imputation in the form of an alternative or expressed Ironically, may amount to defamation.

Explanation 4.— No imputation is said to harm a person's reputation, unless that imputation directly or indirectly, in the estimation of others, lowers the moral or intellectual character of that person, or lowers the character of that person, in respect of his caste of his calling, or lowers the credit of that person, or causes it to be believed that the body of that person is in a loathsome state, or in a state generally considered as disgraceful.

Illustrations

(*a*) A says— "Z is an honest man ; he never stole B's watch": intending to cause it to be believed that Z did steal B's watch. This is defamation, unless it fall within one of the exceptions.

(*b*) A is asked who stole B's watch. A points to Z, intending to cause it to be believed that Z stole B's watch. This is defamation, unless it fall within one of the exceptions.

(*c*) A draws a picture of Z running away with B's watch, intending it to be believed that Z stole B's watch. This is defamation, unless it fall within one of the exceptions.

Imputation of truth which public good requires to be made or published.–

First Exception.— It is not defamation to impute anything which is true concerning any person, if it be for the public good that the imputation should be made or published. Whether or not it is for the public good is a question of fact.

Public conduct of public servants.— *Second Exception.*— It is not defamation to express in good faith any opinion whatever respecting the conduct of a public servant in the discharge of his public functions, or respecting his character, so far as his character appears in that conduct, and no further.

Conduct of any person touching any public question.— *Third Exception.*— It is not defamation to express in good faith any opinion whatever respecting the conduct of any person touching any public question, and respecting his character, so far as his character appears in that conduct, and no further.

Illustration

It is not defamation in A to express in good faith any opinion whatever respecting Z's conduct in petitioning Government on a public question, in signing a requisition for a meeting on a public question, in presiding or attending as such meeting, in forming or joining any society which invites the public support, in voting or canvassing for a particular candidate for any situation in the efficient discharge of the duties of which the public is interested.

Publication of reports of proceedings of Courts.— *Fourth Exception.*— It is not defamation to publish a substantially true report of the proceedings of a Court of Justice, or of the result of any such proceedings.

Explanation.— A Justice of the Peace or other officer holding an enquiry in open Court preliminary to a trial in a Court of Justice, is a Court within the meaning of the above section.

Merits of case decided in Court or conduct of witnesses and others concerned.— *Fifth Exception.*— It is not defamation to express in good faith any opinion whatever respecting the merits of any case, civil or criminal, which has been decided by a Court of Justice, or respecting the conduct of any person as party, witness or agent, in any such case, or respecting the character of such person, as far as his character appears in that conduct, and no further.

Illustrations

(*a*) A says–"I think Z's evidence on that trial is so contradictory that he must be stupid or dishonest". A is within this exception if he says this in good faith, inasmuch as the opinion which he expresses respects Z's character as it appears in Z's conduct as a witness, and no further.

(*b*) But if A says–"I do not believe what Z asserted at that trial because I know him to be a man without veracity", A is not within this exception, inasmuch as the opinion which he expresses of Z's character, is an opinion not founded on Z's conduct as a witness.

Merits of public performance.— *Sixth Exception.—* It is not defamation to express in good faith any opinion respecting the merits of any performance which its author has submitted to the Judgment of the public, or respecting the character of the author so far as his character appears in such performance, and no further.

Explanation. A performance may be submitted to the judgment of the public expressly or by acts on the part of the author which imply such submission to the judgment of the public.

Illustrations

(*a*) A person who publishes a book, submits that book to the judgment of the public.

(*b*) A person who makes a speech in public, submits that speech to the judgment of the public.

(*c*) An actor or singer who appears on a public stage, submits his acting or singing to the judgment of the public.

(*d*) A says of a book published by Z–"Z's book is foolish ; Z must be a weak man. Z's book is indecent : Z must be a man of impure mind". A is within this exception, if he says this in good faith, inasmuch as the opinion which he expresses of Z respects Z's character only so far as it appears in Z's book, and no further.

(*e*) But if A says–"I am not surprised that Z's book is foolish and indecent, for he is a weak man and a libertine," A is not within this exception, inasmuch as the opinion which he expresses of Z's character is an opinion not founded on Z's book.

Censure passed in good faith by person having lawful authority over another.— *Seventh Exception.*— It is not defamation in a person having over another authority, either conferred by law or arising out of a lawful contract made with that other, to pass in good faith any censure on the conduct of that other in matters to which such lawful authority relates.

Illustration.

A Judge censuring in good faith the conduct of a witness, or of an officer of the Court ; a head of a department censuring in good faith those who are under his orders ; a parent censuring in good faith a child in the presence of other children ; a school master, whose authority is derived from a parent, censuring in good faith a pupil in the presence of other pupils ; a master censuring a servant in good faith for remissness in service ; a banker censuring in good faith the cashier of his bank for the conduct of such cashier as such cashier–are within this exception.

Accusation preferred in good faith to authorized person.—

Eighth Exception.— It is not defamation to prefer in good faith an accusation against any person to any of those who have lawful authority over that person with respect to the subject-matter of accusation.

Illustration.

If A in good faith accuses Z before a Magistrate ; if A in good faith complains of the conduct of Z, a servant, to Z's master ; if A in good faith complains of the conduct of Z, a child, to Z's father–A is within this exception.

Imputation made in good faith by person for production of his or other's Interests.— *Ninth Exception.*– It is not defamation to make an imputation on the character of another, provided that the imputation be made in good faith for the protection of the interest of the person making it, or of any other person, or for the public good.

Illustration.

(a) A, a shopkeeper says to B, who manager his business–"Sell nothing to Z unless he pays you ready money, for I have no opinion of his honesty." A is within the exception, if he has made this imputation on Z in good faith for the protection of own interests.

(b) A, a Magistrate, in making a report to his own superior officer, casts an imputation on the character of Z. Here, if the imputation is made in good faith, and for the public good, A is within the exception.

Caution intended for good of person to whom conveyed or for public good.— *Tenth Exception.*— It is not defamation to convey a caution, in good faith, to one person against another, provided that such caution be intended for the good of the person to whom it is conveyed, or of some person in whom that person is interested, or for the public good.

500. Punishment for defamation.— Whoever defames another shall be punished with simple imprisonment for a term which may extend to two years, or with fine, or with both.

501. Printing or engraving matter known to be defamatory.— Whoever prints or engraves any matter, knowing or having good reason to believe that such matter is defamatory of any person, shall be punished with simple imprisonment for a term which may extend to two years, or with fine, or with both.

502. Sale of printed or engraved substance containing defamatory matter.— Whoever sells or offers for sale any printed or engraved substance containing defamatory matter, knowing that it contains such matter, shall be punished with simple imprisonment for a term which may extend to two years, or with fine, or with both.

CHAPTER XXII.

OF CRIMINAL INTIMIDATION, INSULT AND ANNOYANCE.

503. Criminal Intimidation.— Whoever threatens another with any injury to his person, Reputation or property, or to the person or reputation of any one in whom that person is interested, with intent to cause alarm to that person, or to cause that person to do any act which he is not legally bound to do, or to omit to do any act which that person is legally entitled to do, as the means of avoiding the execution of such threat, commits criminal intimidation.

Explanation.— A threat to injure the reputation of any deceased person in whom the person threatened is interested, is within this section.

Illustration.

A, for the purpose of including B to desist from prosecuting a civil suit, threatens to burn B's house, A is guilty of criminal intimidation.

504. Intentional Insult with Intent to provoke breach of the peace.— Whoever intentionally insult, and thereby gives provocation to any person, intending or knowing it to be likely that such provocation will cause him to break the public peace, or to commit any other offence, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

505. Statements conducing to public mischief.— Whoever makes, publishes or circulates any statement, rumour or report,–

(*a*) with intent to cause, or which is likely to cause, any officer, soldier, sailor or airman in the Army, Navy or Air Force of Bangladesh to mutiny or otherwise disregard or fail in his duty as such ; or

(b) with intent to cause, or which is likely to cause, fear or alarm to the public or to any section of the public whereby any person may be induced to commit an offence against the state or against the public tranquility; or

(c) with intent to incite, or which is likely to incite, any class or community of persons to commit any offence against any other class or community; or

(d) with intent to create or promote, or which is likely to create or promote, feelings of enmity, hatred or ill-will between different communities, classes or sections of people.

shall be punished with imprisonment which may extend to two years, or with fine, or with both.

Exception.— It does not amount to an offence, within the meaning of this section, when the person making, publishing or circulating any such statement, rumour or report, has reasonable grounds for believing that such statement, rumour or report is true and makes, publishes or circulates it without any such intent as aforesaid.

505A. Prejudicial act by words, etc.— Whoever–

(*a*) by words, either spoken or written, or by signs or by visible representation or otherwise does anything, or

(b) makes, publishes or circulates any statement, rumour or report.

which is, or which is likely to be prejudicial to the interests or the security of Bangladesh or public order, or to the maintenance of friendly relations of Bangladesh with foreign states or to the maintenance of supplies and services essential to the community, shall be punished with imprisonment for the term which may extend to seven years, or with fine, or with both.

506. Punishment for criminal intimidation.— Whoever commits the offence of criminal intimidation shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both ;

If threat be to cause death or grievous hurt, etc.,— and if the threat be to cause death or grievous hurt, or to cause the destruction of any property by fire, or to cause an offence punishable with death or imprisonment for life, or with imprisonment for a term which may extend to seven years, or to impute unchastely to a woman, shall be punished with imprisonment of either description for a term which may extend to seven years, or with fine, or with both.

507. Criminal intimidation by an anonymous communication.— Whoever commits the offence of criminal intimidation by an anonymous communication, or having taken precaution to conceal the name or abode of the person from whom the threat comes, shall be punished with

imprisonment of either description for a term which may extend to two years, in addition to the punishment provided for the offence by the last preceding section.

508. Act caused by inducing person to believe that he will be rendered an object of the Diving displeasure.— Whoever voluntarily cause or attempts to cause any person to do anything which that person is not legally bound to do, or to omit to do anything which he is legally entitled to do, by inducing or attempting to induce that person to believe that he or any person in whom he is interested will become or will be rendered by some act of the offender an object of Divine displeasure if he does not do the thing which it is the object of the offender to cause him to do, or if he does the thing which it is the object of the offenders to cause him to omit, shall be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both.

Illustrations

(a) A sits dhurna at Z's door with the intention of causing it to be believed that, by so sitting, he renders Z an object of Divine displeasure. A has committed the offence defined in this section.

(*b)* A threatens Z that, unless Z performs a certain act, A will kill one of A's own children, under such circumstances that the Killing would be believed to render Z an object of Divine displeasure. A has committed the offence defined in this section.

509. Words, gesture or Act intended to insult the modesty of a woman.— Whoever, intending to insult the modesty of any woman, utters any word, makes any sound or gesture, or exhibits any object, intending that such word or sound shall be heard, or that such gesture or object shall be seen, by such woman, or intrudes upon the privacy of such woman, shall be punished with simple imprisonment for a term which may extend to one year, or with fine, or with both.

510. Misconduct in public by a drunken person.— Whoever, in a state of intoxication appears in any public place, or in any place which it is trespass in him to enter, and there conducts himself in such a manner as to cause annoyance to any person, shall be punished with simple imprisonment for a term which may extend to twenty-four hours, or with fine which may extend to ten taka, or with both.

CHAPTER XXIII

OF ATTEMPTS TO COMMIT OFFENCES

511. Punishment for attempting to commit offences punishable with transportation or imprisonment.— Whoever attempts to commit an offence punishable by this Code with transportation, or imprisonment, or to cause such an offence to be committed, and in such attempt does any act towards the commission of the offence, shall, where no express provision is made by this Code for the punishment of such attempt, be punished with transportation or imprisonment of any description provided for the offence, for a term which may extend to one-half of the longest term of imprisonment provided for that offence, or with such fine as is provided for the offence, or with both.

Illustrations

(a) A makes attempt to steal some jewels by breaking open a box, and finds after so opening the box, that there is no jewel in it. He has done an act towards the commission of theft, and therefore is guilty under this section.

(b) A makes an attempt to pick the pocket of Z by thrusting his hand into Z's pocket. A fails in the attempt in consequence of Z's having nothing in his pocket. A is guilty under this section.

THE EVIDENCE ACT, 1872

PREAMBLE

PART I

RELEVANCY OF FACTS

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THE EVIDENCE ACT, 1872
ACT No. I of 1872

[*15th March, 1872*]

PREAMBLE. WHEREAS it is expedient to consolidate, define and amend the Law of Evidence; It is hereby enacted as follows :–

PART I
RELEVANCY OF FACTS
CHAPTER I
PRELIMINARY

1. Short Title.— This Act may be called the Evidence Act, 1872.

Extent.– It extends to the whole of Bangladesh and applies to all judicial proceedings in or before any Court, including Courts Martial, other than Courts Martial convened under the Army Act, 1952, the Naval Discipline Ordinance, 1961 or the Air Force Act, 1963.

But not to affidavits presented to any Court or officer, or to proceedings before an arbitrator;

Commencement of Act.— And it shall come into force on the first day of September, 1872.

2. *[Repealed of enactments.]*

3. Interpretation clause.— In this Act the following words and expressions are used in the following senses, unless a contrary intention appears from the context:–

"Court".— "Court" includes all Judges and Magistrates and all persons, except arbitrators, legally authorized to take evidence

"Fact".— "Fact" means and includes–

(1) anything, state of things, or relation of things capable of being perceived by the senses;

(2) any mental condition of which any person is conscious.

Illustrations

(*a*) That there are certain objects arranged in a certain order in a certain place, is a fact.

(*b*) That a man heard or saw something, is a fact.

(*c*) That a man said certain words, is a fact.

(*d*) That a man holds a certain opinion, has a certain intention, acts in good faith or fraudulently, or uses a particular word in a particular sense, or is or was at a specified time conscious of a particular sensation, is a fact.

(*e*) That a man has a certain reputation, is a fact.

"Relevant".— One fact is said to be relevant to another when the one is connected with the other in any of the ways referred to in the provisions of this Act relating to the relevancy of facts.

"Facts in issue".— The expression "facts in issue" means and includes— any fact from which, either by itself or in connection with other facts, the existence, non-existence, nature or extent of any right; liability, or disability, asserted or denied in any suit or proceeding, necessarily follows.

*Explanation.***—** Whenever, under the provisions of the law for the time being in force relating to Civil Procedure any Court records an issue of fact. The fact to be asserted or denied in the answer to such issue is a fact in issue.

Illustrations.

A is accused of the murder of B.

At his trial the following facts may be in issue :–

that A caused B's death ;

that A intended to cause B's death ;

that A had received grave and sudden provocation from B ;

that A, at the time of doing the act which caused B's death, was, by reason of unsoundness of mind, incapable of knowing its nature.

"Document".– "Document" means any matter expressed or described upon any substance by means of letters, figures or marks, or by more than one of those means, intend to be used, or which may be used, for the purpose of recording that matter.

Illustrations.

A writing is a document :

Words printed, lithographed or photographed are documents :

A map or plan is a document :

An inscription on a metal plate or stone is a document :

A caricature is a document :

"Evidence."– "Evidence." means and includes–

(1) all statements which the Court permits or require to be made before it by witnesses, in relation to matters of fact under inquiry :

such statements are called oral evidence.

(2) all documents produced for the inspection of the Court, such documents are called documentary evidence.

"Proved".– A fact is said to be proved when, after considering the matters before it, the Court either believes it to exist, or considers its existence so probable that a prudent man ought, under the circumstances of the particular case, to act upon the supposition that it exists.

"Disproved". – A fact is said to be disproved when, after considering the matters before it, the Court either believes that it does not exist, or considers its non-existence so probable that a prudent man ought, under the circumstances of the particular case, to act upon the supposition that it does not exist.

"Not proved".–A fact is said not to be proved when it is neither proved nor disproved.

4. 'May presume'.– Whenever it is provided by this Act that the Court may presume a fact, it may either regard such fact as proved, unless and until it is disproved, or may call for proof of it:

"Shall presume".– Whenever it is directed by this Act that the Court shall presume a fact, it shall regard such fact as proved, unless and until it is disproved:

"Conclusive proof".– When one fact is declared by this Act to be conclusive proof of another, the Court shall, on proof of the one fact, regard the other as proved, and shall not allow evidence to be given for the purpose of disproving it.

CHAPTER II.

OF THE RELEVANCY OF FACTS.

5. Evidence may be given of facts in issue and relevant facts.— Evidence may be given in any suit or proceeding of the existence or non-existence of every fact in issue and of such other facts as are hereinafter declared to be relevant, and of no others.

Explanation.— This section shall not enable any person to give evidence of a fact which he is disentitled to prove by any provision of the law for the time being in force relation to Civil procedure.

Illustrations

(*a*) A is tried for the murder of B by beating him with a club with the intention of causing his death.

At A's trial the following facts are in issue:–

A's beating B with the club;

A's causing B's death by such beating;

A's intention to cause B's death.

(b) A suitor dose not bring with him, and have in readiness for production at the first hearing of the case, a bond on which he relies. This section does not enable him to produce the bond or prove its contents at a subsequent stage of the proceedings, otherwise then in accordance with the conditions prescribed by the Code of Civil procedure.

6. Relevancy of facts forming part of same transaction.— Facts which, though not in issue, are so connected with a fact in issue as to form part of the same transaction, are relevant, whether they occurred at the same time and place or at different times and places.

Illustrations

(a) A is accused of the murder of B by beating him. Whatever was said or done by A or B or the by-standers at the beating, or so shortly before or after it as to form part of the transaction, is a relevant fact.

(b) A is accused of waging war against the Government by taking part in an armed insurrection in which property is destroyed, troops are attacked, and gaols are broken open. The occurrence of these facts is

relevant, as forming part of the general transaction, though A may not have been present at all of them.

(c) A sues B for a libel contained in a letter forming part of a correspondence. Letters between the parties relating to the subject out of which the libel arose, and forming part of the correspondence in which it is contained are relevant facts, though they do not contain the libel itself.

(d) The question is, whether certain goods ordered from B were delivered to A. The goods were delivered to several intermediate persons successively. Each delivery is a relevant fact.

7. Facts which are the occasion, cause or effect of facts in issue.— Facts which are the occasion, cause or effect, immediate or otherwise, of relevant facts, or facts in issue, or which constitute the state of things under which they happened, or which afforded an opportunity for their occurrence or transaction, are relevant.

Illustrations

(a) The question is, whether A robbed, B.

The facts that, shortly before the robbery, B went to a fair with money in his possession, and that he showed it or mentioned the fact that he had it, to third persons, are relevant.

(b) The question is, whether A murdered B.

Marks on the ground, produced by a struggle at or near the place where the murder was committed, are relevant facts.

(c) The question is, whether A poisoned B.

The state of B's health before the symptoms ascribed to poison, and habits of B, knows to A, which afforded an opportunity for the administration of poison, are relevant facts.

8. Motive, preparation and previous or subsequent conduct.— Any fact is relevant which shows or constitutes a motive or preparation for any fact in issue or relevant fact.

The conduct of any party, or of any agent to any party, to any suit or proceeding, in reference to such suit or proceeding, or in reference to any fact in issue therein or relevant thereto, and the conduct of any person an

offence against whom is the subject of any proceeding, is relevant, if such conduct in fluencies or is influenced by any fact, in issue or relevant fact, and whether it was previous or subsequent thereto.

Explanation 1.— The word "conduct" in this section does not include statements, unless those statements accompany and explain acts other than statements ; but this explanation is not to affect the relevancy of statements under any other section of this Act.

Explanation 2.— When the "conduct" of any person is relevant, any statement made to him or in his presence and hearing, which affects such conduct, is relevant.

Illustrations

(*a*) A is tried for the murder of B.

The facts that A murdered C, that B, knew that A had murdered C, and that B had tried to extort money from A by threatening to make his knowledge public, are relevant.

(*b*) A sues B upon a bond for the payment of money. B denies the making of the bond.

The fact that, at the time when the bond was alleged to be made, B required money for a particular purpose, is relevant.

(*c*) A is tried for the murder of B by poison.

The fact that, before the death of B, A procured poison similar to that which was administered to B, is relevant.

(*d*) The question is whether a certain document is the will of A.

The facts, that not long before the date of the alleged will A made inquiry into matters to which the provisions of the alleged will relate, that he consulted vakils in reference to making the will, and that he caused drafts of other will to be prepared of which he did not approve, are relevant.

(*e*) A is accused of a crime.

The facts that, either before or at the time of, or after the alleged crime, A provided evidence which would tend to give to the facts of the case an appearance favourable to himself, or that he destroyed or

concealed evidence, or prevented the presence or procured the absence of persons who might have been witnesses, or suborned persons to give false evidence respecting it, are relevant.

(*f*) The question is whether A robbed B.

The facts that, after B was robbed, C said in A's presence– "the police are coming to look for the man who robbed B," and that immediately afterwards A ran away, are relevant.

(*g*) The question is, whether A owes B taka 10,000.

The facts that, A asked C to lend him money, and that D said to C in A's presence and hearing– "I advise you not to trust A, for he owes B 10,000 taka" and that A went away without making any answer are relevant facts.

(*h*) The question is, whether A committed a crime.

The fact that A absconded after receiving a letter warning him that inquiry was being made for the criminal, and the contents of the letter are relevant.

(*i*) A is accused of a crime.

The fact that, after the commission of the alleged crime, he absconded, or was in possession of property or the proceeds of property acquired by the crime, or attempted to conceal things which were or might have been used in committing it, are relevant.

(*j*) The question is whether A was ravished.

The facts that, shortly after the alleged rape, she made a complaint relating to the crime, the circumstances under which, and the terms in which, the complaint was made, are relevant.

The fact that, without making a complaint, she said that she had been ravished is not relevant as conduct under this section, though it may be relevant as a dying declaration under section 32, clause (1), or as corroborative evidence under section 157.

(*k*) The question is, whether A was robbed.

The fact that, soon after the alleged robbery, he made a complaint relating to the offence, the circumstances under which, and the terms in which, the complaint was made, are relevant.

The fact that he said he had been robbed without making any complaint, is not relevant, as conduct under this section, though it may be relevant as a dying declaration under section 32, clause (1), or as corroborative evidence under section 157.

9. Facts necessary to explain or introduce relevant facts.— Facts necessary to explain or introduce a fact in issue or relevant fact, or which support or rebut an inference suggested by a fact in issue or relevant fact, or which establish the identity of anything or person whose identity is relevant, or fix the time or place at which any fact in issue or relevant fact happened or which show the relation of parties by whom any such fact was transacted, are relevant in so far as they are necessary for that purpose.

Illustrations

(*a*) The question is, whether a given document is the will of A.

The state of A's property and of his family at the date of the alleged will may be relevant facts.

(*b*) A sues B for a libel imputing disgraceful conduct to A; B affirms that matter alleged to be libelious is true.

The position and relations of the parties at the time when the libel was published may be relevant facts as introductory to the facts in issue.

The particulars of a dispute between A and B about a matter unconnected with the alleged libel are irrelevant, though the fact that there was a dispute may be relevant if it affected the relations between A and B.

(*c*) A is accused of a crime.

The fact that, soon after the commission of the crime, A absconded from his house, is relevant under section 8, as conduct subsequent to and affected by facts in issue.

The fact that at the time when he left home he had sudden and urgent business at the place to which he went, is relevant, as tending to explain the fact that he left home suddenly.

The details of the business on which he left are not relevant, except in so far as they are necessary to show that the business was sudden and urgent.

(*d*) A sues B for inducing C to break a contract of service made by him with A. C, on leaving A's service, says to A– "I am leaving you because B has made me a better offer." This statement is a relevant fact as explanatory of C's conduct, which is relevant as a fact in issue.

(*e*) A, accused of theft, is seen to give the stolen property to B, who is seen to give it to A's wife. B says as he delivers it– "A says you are to hide this". B's statement is relevant as explanatory of a fact which is part of the transaction.

(*f*) A is tried for a riot and is proved to have marched at the head of a mob. The cries of the mob are relevant as explanatory of the nature of the transaction.

10. Things said or done by conspirator in reference to common design.— Where there is reasonable ground to believe that two or more persons have conspired together to commit an offence or an actionable wrong, anything said, done or written by any one of such persons in reference to their common intention, after the time when such intention was first entertained by anyone of them, is a relevant fact as against each as of the person believed to be so conspiring, as well for the purpose of proving the existence of the conspiracy as for the purpose of showing that any such person was a party to it.

Illustrations

Reasonable ground exists for believing that A has joined in a conspiracy to wage war against the state.

The facts that B procured arms in Europe for the purpose of the conspiracy, C collected money in Calcutta for a like object, D persuaded persons to join the conspiracy in Bombay E published writings advocating the object in view at Agra, and F transmitted from Delhi, to G at Cabul the money which C had collected at Calcutta, and the contents of a letter written by H giving an account of the conspiracy, are each relevant, both to prove the existence of the conspiracy, and to prove A's complicity in it, although he may have been ignorant of all of them, and although the persons by whom they were done were strangers to him, and although they may have taken place before he joined the conspiracy or after he left it.

11. When facts not otherwise relevant become relevant.— Facts not otherwise relevant are relevant–

(1) If they are inconsistent with any fact in issue or relevant fact;

(2) If by themselves or in connection with other facts they make the existence or non-existence of any fact in issue or relevant fact highly probable or improbable,

Illustrations

(*a*) The question is whether A committed a crime at Calcutta on a certain day.

The fact that, on that day, A was at Lahore is relevant.

The fact that, near the time when the crime was committed, A was at a distance from the place where it was committed, which would render it highly improbable, though not impossible, that he committed it, is relevant.

(*b*) The question is, whether A committed a crime.

The circumstances are such that the crime must have been committed either A, B, C or D. Every fact which shows that the crime could have been committed by no one else and that it was not committed by either B, C or D, is relevant.

12. In suits for damages, facts tending to enable Court to determine amount are relevant.— In suits in which damages are claimed, any fact which will enable the Court to determine the amount of damages which ought to be awarded, is relevant.

13. Facts relevant when right or custom is in question.— Where the question is as to the existence of any right or custom, the following facts are relevant :–

(*a*) any transaction by which the right or custom in question was created, claimed, modified, recognized, asserted or denied, or which was inconsistent with its existence.

(*b*) particular instances in which the right or custom was claimed, recognized or exercised, or in which its exercise was disputed, asserted or departed from.

Illustrations

The question is whether A has a right to a fishery. A deed conferring the fishery on A's ancestors, a mortgage of the fishery by A's father, a subsequent grant of the fishery by A's father, irreconcilable with the mortgage, particular instances in which A's father exercised the right, or in which the exercise of the right was stopped by A's neighbours, are relevant facts.

14. Facts showing existence of state of mind, or of body, or bodily feeling.— Facts showing the existence of any state of mind, such as intention, knowledge, good faith, negligence, rashness, ill-will or good-will towards any particular person, or showing the existence of any such state of body or bodily feeling, are relevant when the existence of any such state of mind or body or bodily feeling is in issue or relevant.

Explanation 1.— A fact relevant as showing the existence of a relevant state of mind must show that the state of mind exists, not generally, but in reference to the particular matter in question.

Explanation 2.–But where, upon the trial of a person accused of an offence the previous commission by the accused of an offence is relevant within the meaning of this section, the previous conviction of such person shall also be a relevant fact.

Illustrations

(*a*) A is accused of receiving stolen goods knowing them to be stolen. It is proved that he was in possession of a particular stolen article.

The fact that, at the same time, he was in possession of many other stolen articles is relevant, as tending to show that he knew each and all of the articles of which he was in possession to be stolen.

(*b*) A is accused of fraudulently delivering to another person a counterfeit coin which, at the time when he delivered it, he knew to be counterfeit.

The fact that, at the time of its delivery, A was possessed of a number of other pieces of counterfeit coin is relevant.

The fact that A had been previously convicted of delivering to another person a genuine a counterfeit coin knowing it to be counterfeit is relevant.

(*c*) A sues B for damage done by a dog of B's, which B knew to be ferocious.

The facts that the dog had previously bitten X, Y and Z, and that they had made complaints to B, are relevant.

(*d*) The question is, whether A, the acceptor of a bill of exchange, knew that the name of the payee was fictitious.

The facts that A had accepted other bills drawn in the same manner before they could have been transmitted to him by the payee if the payee had been a real person, is relevant as showing that A knew that the payee was a fictitious person.

(*e*) A is accused of defaming B by publishing an imputation intended to harm the reputation of B.

The fact of previous publications by A respecting B, showing ill-will on the part of A towards B is relevant, as proving A's intention to harm B's reputation by the particular publications in question.

The facts that there was no previous quarrel between A and B, and that A repeated the matter complained of as he heard it, are relevant, as showing that A did not intend to harm the reputation of B.

(*f*) A is sued by B for fraudulently representing to B that C was solvent, whereby B, being induced to trust C, who was insolvent, suffered loss.

The fact that at the time when A represented C to be solvent, C was supposed to be solvent by his neighbours and by persons dealing with him, is relevant, as showing that A made the representation in good faith.
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(*g*) A is sued by B for the price of work done by B, upon a house of which A is owner, by the order of C, a contractor.

A's defence is that B's contract was with C.

The fact that A paid C for the work in question is relevant, as proving that A did, in good faith, make over to C the management of the work in question, so that C was in a position to contract with B on C's own account, and not as agent for A.

(*h*) A is accused of the dishonest misappropriation of property which he had found, and the question is whether, when he appropriated it, he believed in good faith that the real owner could not be found.

The fact that public notice of the loss of the property had been given in the place where A was, is relevant, as showing that A did not in good faith believe that the real owner of the property could not be found.

The fact that A knew, or had reason to believe, that the notice was given fraudulently by C, who had heard of the loss of the property and wished to set up a false claim to it, is relevant, as showing that the fact that A knew of the notice did not disprove A's good faith.

(*i*) A is charged with shooting at B with intent to kill him. In order to show A's intent the fact of A's having previously shot at B may be proved.

(*j*) A is charged with sending threatening letters to B. Threatening letter previously sent by A to B may be proved, as showing the intention of the letters.

(*k*) The question is, whether A has been guilty of cruelty to wards B, his wife.

Expressions of their feeling towards each other shortly before or after the alleged cruelty are relevant facts.

(*l*) The question is whether A's death was caused by poison.

Statements made by A during his illness as to his symptoms are relevant facts.

(*m*) The question is, what was the state of A's health at the time an assurance on his life was effected.

Statements made by A as to the state of his health at or near the time in question are relevant facts.

(*n*) A sues B for negligence in providing him with a carriage for hire not reasonably fit for use, whereby A was injured.

The fact that B's attention was drawn on other occasions to the defact of that particular carriage is relevant.

The fact that B was habitually negligent about the carriages which he let to hire is irrelevant.

(*o*) A is tried for the murder of B intentionally shooting him dead.

The fact that A on other occasions shot at B is relevant as showing his intention to shoot B.

The fact that A was in the habit of shooting at people with intent to murder them is irrelevant.

(*p*) A is tried for a crime.

The fact that he said something indicating an intention to commit that particular crime is relevant.

The fact that he said something indicating a general disposition to commit crimes of that class is irrelevant.

15. Fact bearing on question whether act was accident or intentional.— When there is a question whether an act was accidental or intentional, or done with a particular knowledge or intention, the fact that such act formed part of a series of similar occurrences, in each of which the person doing the act was concerned, is relevant.

Illustrations

(*a*) A is accused of burning down his house in order to obtain money for which it is insured.

The fact that A lived in several houses successively each of which he insured, in each of which a fire occurred, and after each of which fires A received payment from a different insurance office, are relevant, as tending to show that the fires were not accidental.

(*b*) A is, employed to receive money from the debtors of B. It is A's duty to make entries in a book showing the amounts received by him. He makes an entry showing that a particular occasion he received less than he really did receive.

The question is, whether this false entry was accidental or intentional.

The facts that other entries made by A in the same book are false, and that the false entry is in each case in favour of A, are relevant.

(*c*) A is accused of fraudulently delivering to B a counterfeit taka.

The question is, whether the delivery of the taka was accidental.

The facts that, soon before or soon after the delivery to B, A delivered counterfeit taka to C, D and E are relevant, as showing that the delivery to B was not accidental.

16. Existence of course of business when relevant.— When there is a question whether a particular act was done, the existence of any course of business according to which it naturally would have been done, is a relevant fact.

Illustrations

(*a*) The question is, whether a particular letter was despatched.

The fact that it was the ordinary course of business for all letters put in a certain place to be carried to the post, and that that particular letter was put in that place are relevant.

(*b*) The question is, whether a particular letter reached A. The facts that it was posted in due course, and was not returned through the Dead Letter Office, are relevant.

Admissions

17. Admission defined.— An admission is a statement, oral or documentary, which suggests any inference as to any fact in issue or relevant fact, and which is made by any of the persons, and under the circumstances, hereinafter mentioned.

18. Admission by party to proceeding or his agent;— Statements made by a party to the proceeding, or by an agent to any such party, whom the Court regards, under the circumstances of the case, as expressly or impliedly authorized by him to make them, are admissions.

by suitor in representative character;— Statements made by parties to suits suing or sued in a representative character, are not admissions, unless they were made while party making them, held that character.

Statements made by —

by party interested in subject-matter.— (1) Persons who have any proprietary or pecuniary interest in the subject-matter of the proceeding, and who make the statement in their character of persons so interested,

or

by person from whom interest derived.— (2) persons from whom the parties to the suit have derived their interest in the subject-matter of the suit,
are admissions, if they are made during the continuance of the persons making the statements.

19. Admissions by persons whose position must be proved as against party to suit.— Statements made by persons whose position or liability it is necessary to prove as against any party to the suit, are admissions, if such statements would be relevant as against such persons in relation to such position or liability in a suit brought by or against them, and if they are made whilst the person making them occupies such position or is subject to such liability.

Illustrations

A undertakes to collect rents for B.

B such A for not collecting rent due from C to B.

A denies that rent was due from C to B.

A statement by C that he owed B rent is an admission, and is a relevant fact as against A, if A denied that C did owe rent to B.

20. Admissions by persons expressly referred to by party to suit.— Statements made by persons to whom a party to the suit has expressly referred for information in reference to a matter in dispute are admissions.

Illustrations

The question is whether a horse sold by A to B is sound.

A says to B–"Go and ask C; C knows all about it". C's statement is an admission.

21. Proof of admissions, against persons making them, and by or on their behalf.— Admissions are relevant and may be proved as against the person who makes them, or his representative in interest; but they cannot be proved by or on behalf of the person who makes them or by his representative in interest, except in the following cases :–

(1) An admission may be proved by or on behalf of the person making it, when it is of such a nature that, if the person making it were dead, it would be relevant as between third persons under section 32.

(2) An admission may be proved by or on behalf of the person making it, when it consists of statement of the existence of any state of mind or body, relevant or in issue, made at or about the time when such state of mind or body existed, and is accompanied by conduct rendering its falsehood improbable.

(3) An admission may be proved by or on behalf of the person making it, if it is relevant otherwise then as an admission.

Illustrations

(*a*) The question between A and B is, whether a certain deed is or is not forged, A affirms that it is genuine, B that it is forged. A may prove a statement by B that the deed is genuine, and B may prove a statement by A that the deed is forged ; but A cannot prove a statement by himself that the deed is genuine, nor can B prove a statement by himself that the deed is forged.

(*b*) A, the captain of a ship, is tried for casting her away.

Evidence is given to show that the ship was taken out of her proper course.

A produces a book kept by him in the ordinary course of his business showing observations alleged to have been taken by him from day to day, and indicating that the ship was not taken out of her proper course. A may prove these statement, because they would be admissible between third parties, if he were dead, under section 32, clause (2).

(*c*) A is accused of a crime committed by him at Calcutta.

He produces a letter written by himself and dated at Lahore on that day, and bearing the Lahore post-mark of that day.

The statement in the date of the letter is admissible, because, if A were dead it would be admissible under section 23, clause (2).

(*d*) A is accused of receiving stolen goods knowing them to be stolen.

He offers to prove that he refused to sell them below their value.

A may prove these statement, though they are admissions, because they are explanatory of conduct influenced by facts in issue.

(*e*) A is accused of fraudulently having in his possession counterfeit coin which he knew to be counterfeit.

He offers to prove that he asked a skilful person to examine the coin as he doubted whether it was counterfeit or not, and that that person did examine it and told him it was genuine.

A may prove these facts for the reasons stated in the last preceding illustration.

22. When oral admissions as to contents of documents are relevant.— Oral admissions as to the contents of a document are not relevant, unless and until the party proposing to prove them shows that he is entitled to give secondary evidence of the contents of such document under the rules hereinafter contained, or unless the genuineness of a document produced is in question.

23. Admissions in civil cases when relevant.— In civil cases no admission is relevant, if it is made either upon an express condition that evidence of it is not to be given, or under circumstances from which the Court can infer that the parties agreed together that evidence of it should not be given.

Explanation.–Nothing in this section shall be taking to exempt any barrister, pleader, attorney or vakil from giving evidence of any matter of which he may be compelled to give evidence under section 126.

24. Confession caused by inducement, threat or promise, when irrelevant in criminal proceeding.— A confession made by an accused person is irrelevant in a criminal proceeding, if the making of the confession appears to the Court to have been caused by any inducement, threat or promise having reference to the charge against the accused person, proceeding from a person in authority and sufficient, in the opinion of the Court, to give the accused person grounds which would appear to him reasonable for supposing that by making it he would gain any advantage or avoid any evil of temporal nature in reference to the proceedings against him.

25. Confession to police-officer not to be proved.— No confession made to a police-officer shall be proved as against a person accused of any offence.

26. Confession by accused while in custody of police not to be proved against him.— No confession made by any person whilst he is in the custody of a police-officer, unless it be made in the immediate presence of a Magistrate, shall be proved as against such person.

Explanation.–In this section "Magistrate" does not include the head of a village discharging magisterial functions unless such headman is a Magistrate exercising the powers of a Magistrate under the Code of Criminal Procedure, 1882.

27. How much of information received from accused may be proved.— Provided that, when any fact is deposed to as discovered in consequence of information received from a person accused of any offence, in the custody of a police-officer, so much of such information, whether it amount to a confession or not, as relates distinctly to the fact thereby discovered, may be proved.

28. Confession made after removal of impression caused by inducement, threat or promise, relevant.— If such a confession as is referred to in section 24 is made after the impression caused by any such inducement, threat or promise has, in the opinion of the Court, fully removed, it is relevant.

29. Confession otherwise relevant not to become irrelevant because of promise of secrecy, etc— If such a confession is otherwise relevant, it dose not become irrelevant merely because it was made under a promise of secrecy, or in consequence of a deception practiced on the accused person for the purpose of obtaining it, or when he was drunk, or because it was made in answer to questions which he need not have answered, whatever may have been the form of those questions, or because he was not warned that he was not bound to make such confession, and that evidence of it might be given against him.

30. Consideration of proved confession affection person making it and other jointly under trial for some offence.— When more persons than one are being tried jointly for the same offence, and a confession made by one of such persons affecting himself and some other of such persons is proved, the Court may take into consideration such confession as against such other person as will as against the person who makes such confession.

Explanation.– "Offence," as used in this section, includes the abetment of, or attempt to commit, the offence.

Illustrations

(*a*) A and B are jointly tried for murder of C. It is proved that A said– "B and I murdered C". The Court may consider the effect of this confession as against B.

(*b*) A is on his trial for the murder of C. There is evidence to show that C was murdered by A and B, and that B said– "A and I murdered C."

This statement may not be taken into consideration by the Court against A, as B is not being jointly tried.

31. Admission are not conclusive proof but may estop.— Admissions are not conclusive proof of the matters admitted but they may operate as estoppels under the provisions hereinafter contained.

STATEMENTS BY PERSONS WHO CANNOT BE CALLED AS WITNESSES

32. Cases in which statement of relevant fact by person who is dead or cannot be found, etc., relevant.— Statements, written or verbal, of relevant facts made by a person who is dead, or who cannot be found, or who has become incapable of giving evidence, or whose attendance cannot be procured without an amount of delay or expense which under the circumstances of the case appears to the Court unreasonable, are themselves relevant facts in the following cases :–

When it relates to cause of death;— (1) When the statement is made by a person as to the cause of his death, or as to any of the circumstances of the transaction which resulted in his death, in cause in which the cause of that person's death comes into question. Such statements are relevant whether the person who made them was or was not, at the time when they were made, under expectation of death, and whatever may be the nature of the proceeding in which the cause of his death comes into question.

Or is made in course of business;— (2) When the statement was made by much person in the ordinary course of business, and in particular when it consists of an entry or memorandum made by him in books kept in the ordinary course of business, or in the discharge of professional duty ; or of an acknowledgement written or signed by him of the receipt of money, goods, securities or property of any kind ; or of a document used in commerce written or signed by him ; or of the date of a letter or other document usually dated, written or signed by him.

Or against interest of makers;— (3) When the statement is against the pecuniary or proprietary interest of the person making it, or when, if true, it would expose him or would have, exposed him to a criminal prosecution or to a suit for damages.

Or gives opinion as to public right or custom, or matters of general interest;— (4) When the statement gives the opinion of any such person, as to the existence of any public right or custom or matter of public or general interest, of the existence of which, if it existed, he would have been likely to be aware, and when such statement was made before any controversy as to such right, custom or matter has arisen.

Or relates to existence of relationship;— (5) When the statement relates to the existence of any relationship by blood, marriage or adoption between persons as to whose relationship by blood, marriage or adoption the person making the statement had special means of knowledge, and when the statement was made before the question in dispute was raised.

Or is made in will or deed relating to family affairs.— (6) When the statement relates to the existence of any relationship by blood, marriage or adoption between persons deceased, and is made in any will or deed relating to the affairs of the family to which any such deceased person belonged, or in any family pedigree or upon any tombstone, family portrait or other thing on which such statements are usually made, and when such statement was made before the question in dispute was raised.

Or in document relating to transaction mentioned in section 13, clause (a);–(7) When the statement is contained in any deed, will or other document which relates to any such transaction as is mentioned in section 13, clause (*a*).

Or is made by several persons and expresses feelings relevant to matter in questions.–(8) When the statement was made by a number of persons, and expressed feelings or impressions on their part relevant to the matter in question.

Illustrations

(*a*) The question is, whether A was murdered by B; or.

A dies of injuries received in a transaction in the course of which she was ravished. The question is whether she was ravished by B; or.

The question is whether A was killed by B under such circumstances that a suit would lie against B by A's widow.

Statements made by A as to the cause of his or her death, referring respectively to the murder, the rape and the actionable wrong under consideration are relevant facts.

(*b*) The question is as to the date of A's birth.

An entry in the diary of a deceased surgeon regularly kept in the course of business, stating that, on a given day he attended A's mother and delivered her of a son, is a relevant fact,

(*c*) The question is, whether A was in Calcutta on a given day.

A statement in the diary of a deceased solicitor, regularly kept in the course of business, that on a given day the solicitor attended A at a place mentioned, in Calcutta, for the purpose of conferring with him upon specified business, is a relevant fact.

(*d*) The question is, whether a ship sailed from Bombay harbour on a given day.

A letter written by a deceased member of a merchant's firm by which she was chartered to their correspondents in London, to whom the cargo was consigned, stating that the ship sailed on a given day from Bombay harbour, is a relevant fact.

(*e*) The question is, whether rant was paid to A for certain land.

A letter from A's deceased agent to A saying that he had received the rent on A's account and held it at A's orders, is a relevant fact.

(*f*) The question is, whether A and B were legally married.

The statement of a deceased clergyman that he married them under such circumstances that the celebration would be a crime, is relevant.

(*g*) The question is, whether A, a person who cannot be found, wrote a letter on a certain day. The fact that a letter written by him is dated on that day is relevant.

(*h*) The question is, what was the cause of the wreck of a ship.

A protest made by the Captain, whose attendance cannot be procured, is a relevant fact.

(*i*) The question is, whether a given road is a public way.

A statement by A, a deceased headman of the village, that the road was public, is a relevant fact.

(*j*) The question is, what was the price of grain on a certain day in a particular market. A statement of the price, made by a deceased in the banya ordinary course of his business, is a relevant fact.

(*k*) The question is, whether A, who is dead, was the father of B.

A statement by A that B was his son, is a relevant fact.

(*l*) The question is, what was the date of the birth of A.

A letter from A's deceased father to a friend, announcing the birth of A on a given day, is a relevant fact.

(*m*) The question is, whether, and when, A and B were married.

An entry in a memorandum-book by C, the deceased father of B, of his daughter's marriage with A on a given date, is a relevant fact.

(*n*) A sues B for a libel expressed in a painted caricature exposed in a shop window. The question is as to the similarity of the caricature and its libellous character. The remarks of a crowd of spectators on these points may be proved.

33. Relevancy of certain evidence for proving, in subsequent proceeding the truth of facts therein stated.— Evidence given by a witness in a judicial proceeding, or before any person authorized by law to take it, is relevant for the purpose of proving, in a subsequent judicial proceeding, or in a later stage of the same judicial proceeding, the truth of the facts which it states, when the witness is dead or cannot be found, or is incapable of giving evidence, or is kept out of the way by the adverse party, or if his presence cannot be obtained without an amount of delay or expense which, under the circumstances of the case, the Court considers unreasonable :

Provided :–

that the proceeding was between the same parties or their representatives in interest ;

that the adverse party in the first proceeding had the right and opportunity to cross-examine ;

that the question in issue were substantially the same in the first as in the second proceeding.

Explanation.–A criminal trial or inquiry shall be deemed to be a proceeding between the prosecutor and the accused within the meaning of this section.

STATEMENTS MADE UNDER SPECIAL CIRCUMSTANCES.

34. Entries in books of account when relevant.— Entries in books of account regularly kept in the course of business, are relevant whenever the

refer to a matter into which the Court has to inquire, but such statements shall not alone sufficient evidence to charge any person with liability.

Illustration

A sues B for Tk.1000, and shows entries in his account books showing B to be indebted to him to this amount. The entries are relevant, but are not sufficient, without other evidence, to prove the debt.

35. Relevancy of entry in public record made in performance of duty.— An entry in any public or other official book, register or record, stating a fact in issue or relevant fact, and made by a public servant in the discharge of his official duty, or by any other person in performance of a duty specially enjoyed by the law of the country in which such book, register or record is kept, is itself a relevant fact.

36. Relevancy of statements in maps, charts and plans.— Statement of facts in issue or relevant facts, made in published maps or charts generally offered for public sale, or in maps or plans made under the authority of the Government, as to matters usually represented or stated in such maps, charts or plans, are themselves relevant facts.

37. Relevancy of statements as to fact of public nature, contained in certain Acts or notifications.— When the Court has to form an opinion as to the existence of any fact of a public nature, any statement of it, made in a recital contained in any fact of Parliament of the United Kingdom, or in any Act of the Legistature or of any other legislative authority in Bangladesh constituted by any laws for the time being in force or in a Government notification or notification by the State Representative appearing in the Official Gazette or in any printed paper purporting to be the London Gazette or the Government Gazette of any or possesson of Bangladesh is a relevant fact.

38. Relevancy of statements as to any law contained in law-book.— When the Court has to form an opinion as to law of any country, any statement of such law contained in a book purporting to be printed or published under the authority of the Government of such country and to contain any such law, and any report of a ruling of the Courts of such country contained in a book purporting to be a report of such rulings, is relevant.

HOW MUCH OF A STATEMENT IS TO BE PROVED

39. What evidence to be given when statement forms part of a conversation document book or series of letters or papers.— When any

statement of which evidence is given forms part of a longer statement, or of a conversation or part of an isolated document, or is

contained in a document which forms part of a book, or of a connected series of letters or papers, evidence shall be given of so much and no more of the statement, conversation, document, book or series of letters or papers as the Court considers necessary in that particular case to the full understanding of the nature and effect of the statement, and of the circumstances under which it was made.

JUDGMENTS OF COURTS OF JUSTICE WHEN RELEVANT

40. Previous judgments relevant to bar a second suit or trial.— The existence of any judgment, order or decree which by law prevents any Court from taking cognizance of a suit or holding a trial, is a relevant fact when the question is whether such Court ought to take cognizance of such suit or to hold such trial.

41. Relevancy of certain judgments in Probate, etc., Jurisdiction.– A final judgment, order or decree of a competent Court, in the exercise of probate, matrimonial, admiralty or insolvency jurisdiction, which confers upon or takes away from any person any legal character, or which declares any person to be entitled to any such character, or to be entitled to any specific thing, not as against any specified person but absolutely, is relevant when the existence of any such legal character, or the title of any such person to any such thing, is relevant.

Such judgment, order or decree is conclusive proof–

that any legal character which it confers accrued at the time when such judgment, order or decree came into operation;

that any legal character, to which it declares any such person to be entitled, accrued to that person at the time when such judgment order or decree declares it to have accrued to that person;

that any legal character which it takes away from any such person ceased at the time from which such judgment, order or decree declared that it had ceased or should cease;

and that anything to which it declares any person to be so entitled was the property of that person at the time from which such judgment, order or decree declares that it had been or should be his property.

42. Relevancy and effect of judgments, orders or decrees, other then those mentioned in section 41.— Judgment, orders or decrees other than those mentioned in section 41 are relevant if they

relate to matters of a public nature relevant to the enquiry; but such judgment, orders or decrees are not conclusive proof of that which they state.

Illustrations

A sues B for trespass on his land. B alleges the existence of a public right of way over the land, which A denies.

The existence of a degree in favour of the defendant, in a suit by A against C for a trespass on the same land, in which C alleged the existence of the same right of way, is relevant, but it is not conclusive proof that the right of way exists.

43. Judgments, etc., other then those mentioned in sections 40 to 42, when relevant.— Judgments, orders or decrees, other than those mentioned in sections 40, 41, and 42, are irrelevant, unless the existence of such judgment order or decree is a fact in issue, or is relevant under some other provision of this Act.

Illustrations

(*a*) A and B separately sue C for a libel which reflects upon each of them. C in each case that the matter alleged to be libellous is true, and the circumstances are such that it is probably true in each case, or in neither.

A obtains a decree against C for damages on the ground that C failed to make out his justification. The fact is irrelevant as between B and C.

(*b*) A prosecutes B for adultery with C, A's wife.

B denies that C is A 's wife, but the Court convicts B of adultery.

Afterwards, C is prosecuted for bigamy in marrying B during A's lifetime. C says that she never was A's wife.

The judgment against B is irrelevant as against C.

(*c*) A prosecutes B for stealing a cow from him. B is convicted.

A afterwards sues C for the cow, which B had sold to him before his conviction. As between A and C, the judgment against B is irrelevant.

(*d*) A has obtained a decree for the possession of land against B. C, B's son, murders A in consequence.

The existence of the judgment is relevant, as showing motive for a crime.

(*e*) A is charged with theft and with having been previously convicted of theft. The previous conviction is relevant as a fact in issue.

(*f*) A is tried for the murder of B. The fact that B prosecuted A for libel and that A was convicted and sentenced is relevant under section 8 as showing the motive for the fact in issue.

44. Fraud or collusion in obtaining judgment, or incompetency of Court, may be proved.— Any party to a suit or other proceeding may show that any judgment, order or decree which is relevant under section 40, 41 or 42, and which has been proved by the adverse party, was delivered by a Court not competent to deliver it, or was obtained by fraud or collusion.

OPINIONS OF THIRD PERSONS WHEN RELEVANT

45. Opinions of experts.— When the Court has to form an opinion upon a point of foreign law, or of science, or art, or as to identity of handwriting or finger impressions, the opinions upon that point of persons specially skilled in such foreign law, science or art, or in question as to identity of handwriting or finger impressions are relevant fact.

Such persons are called experts.

Illustrations

(*a*) The question is, whether the death of A was caused by poison.

The opinions of experts as to the symptoms produced by the poison by which A is supposed to have died, are relevant.

(*b*) The question is, whether A, at the time of doing a certain act, was, by reason of unsoundness of mind, incapable of knowing the nature of the act, or that he was doing what was either wrong or contrary to law.

The opinions of experts upon the question whether the symptoms exhibited by A commonly show unsoundness of mind, and whether such unsoundness of mind usually renders persons incapable of knowing the nature of the acts which they do, or of knowing that what they do is either wrong or contrary to law, are relevant.

(*c*) The question is whether a certain document was written by A. Another document is produced which is proved or admitted to have been written by A.

The opinions of experts on the question whether the two documents were written by the same person or by different persons, are relevant.

46. Fact bearing upon opinions of experts.— Facts, not otherwise relevant, are relevant if they support or are inconsistent with the opinions of experts, when such opinions are relevant.

Illustrations

(*a*) The question is, whether A was poisoned by a certain poison.

The fact that other person, who were poisoned by that poison, exhibited certain symptoms which experts affirm or deny to be the symptoms of that poison, is relevant.

(*b*) The question is, whether an obstruction to a harbour is caused by a certain sea-will.

The fact that other harbours similarly situated in other respects, but where there were no such sea-walls, began to be obstructed at about the same time, is relevant.

47. Opinion as to handwriting when relevant.— When the Court has to form an opinion as to the person by whom any document was written or signed, the opinion of any person acquainted with the handwriting of the person by whom it is supposed to be written or signed that it was or was not written or signed by that person, is a relevant fact.

Explanation.— A person is said to be acquainted with the handwriting of another person when he has seen that person write, or when he has received documents purporting to be written by that person in answer to documents written by himself or under his authority and addressed to that person, or when in the, ordinary course of business, documents purporting to be written by that person have been habitually submitted to him.

Illustrations

The question is, whether a given letter is in the handwriting of A, a merchant in London.

B is a merchant in Calcutta, who has written letters addressed to A and received letters purporting to be written by him. C is B's clerk, whose duty it was to examine and file B's correspondence. D is B's broker, to whom B habitually submitted the letters purporting to be written by A for the purpose of advising with him thereon.

The opinions of B, C and D on the question whether the letter is in the handwriting of A are relevant, though neither B, C or D ever saw A write.

48. Opinion as to existence of right or custom, when relevant.— When the Court has to form an opinion as to the existence of any general custom or right, the opinions, as to the existence of such custom or right, of persons who would be likely to know of its existence if it existed, are relevant.

Explanation–The expression "general custom or right" includes customs or rights common to any considerable class of persons.

Illustration

The right of the villagers of a particular village to use the water of a particular well is a general right within the meaning of this section.

49. Opinion as to usages, tenets etc., when relevant.— When the Court has to form an opinion as to–

the usages and tenets of any body of men or family,

the constitution and government of any religious or charitable foundation or,

the meaning of words or terms used in particular districts or by particular classes of people,

the opinions of persons having special means of knowledge thereon, are relevant facts.

50. Opinion on relationship when relevant.— When the Court has to form an opinion as to the relationship of one person to another the opinion, expressed by conduct, as to the existence of such relationship, of any person who, as a member of the family or otherwise, has special means of knowledge on the subject, is a relevant fact :

Provided that such opinion shall not be sufficient to prove a marriage in proceedings under the Divorce Act or in prosecutions under section 494, 495, 497 or 498 of the Indian Penal Code.

Illustrations

(*a*) The question is, whether A and B were married.

The fact that they were usually received and treated by their friends as husband and wife, is relevant.

(*b*) The question is, whether A was the legitimate son of B. The fact A was always treated as such by members of the family, is relevant.

51. Grounds of opinion when relevant.— Whenever the opinion of any living person is relevant the grounds on which such opinion is based are also relevant.

Illustration

An expert may give an account of experiments performed by him for the purpose of forming his opinion.

CHARACTER WHEN RELEVANT

52. In civil cases character to prove conduct imputed irrelevant.— In civil cases the fact that the character of any person concerned is such as to render probable or improbable any conduct imputed to him is irrelevant, except in so far as such character appears from facts otherwise relevant.

53. In criminal cases previous good character relevant.— In criminal proceedings the fact that the person accused is of a good character is relevant.

54. Previous bad character not relevant, except in reply.— In criminal proceedings the fact that the accused person has a bad character is irrelevant, unless evidence has been given that he has a good character, in which case it becomes relevant.

Explanation 1.— This section dose not apply to cases in which the bad character of any person is itself a fact in issue.

Explanation 2.— A previous conviction is relevant as evidence of bad character.

55. Character as affecting damages.— In civil cases the fact that the character of any person is such as to affect the amount of damages which he ought to receive, is relevant.

Explanation.— In sections 52, 53, 54, and 55, the word "character" includes both reputation and disposition ; but, except as provided in section 54, evidence may be given only of general reputation and general disposition, and not of particular acts by which reputation or disposition were shown.

PART II

On proof

CHAPTER III
FACTS WHICH NEED NOT BE PROVED

56. Fact judicially noticeable need not be proved.— No fact of which the Court will take judicial notice need be proved.

57. Facts of which Court must take judicial notice.— The Court shall take judicial notice of the following facts :–

(1) All Bangladesh laws:

(2) All public Acts passed or here after to be passed by Parliament, and all local and personal Acts directed by Parliament to be judicially noticed;

(3) Articles of War for Bangladesh Army, Navy or Air Force;

(4) The course of proceeding of Parliament and of the legislature and any legislature established under any laws for the time being in force in Bangladesh.

Explanation.–The word "Parliament" in clauses (2) and (4) includes–

(1) the Parliament of the United Kingdom of Great Britain and Ireland ;

(2) the Parliament of Great Britain ;

(3) the Parliament of England ;

(4) the Parliament of Scotland ; and

(5) the Parliament of Ireland ;

(5) the accession and the sign manual of the Sovereign for the time being of the United Kingdom of Great Britain and Ireland ;

(6) all seals of which English Courts take judicial notice ; the seals of all the Courts in Bangladesh established by the authority of the Government or the Representative the seals of Courts of

Admiralty and maritime Jurisdiction and of Notaries Public, and all seals which any person is authorised to use by any Act of Parliament or other Act or Regulation having the force of law in Bangladesh.

(7) The accession to office, names, titles, functions and signatures of the person filling for the time being any public office in Bangladesh, if the fact of their appointment to such office is notified in any official Gazette:

(8) The existence, tile and national flag of every State or Sovereign recognized by the British Crown:

(9) The divisions of time, the geographical divisions of the world, and public festivals, fasts and holidays notified in the official Gazette:

(10) The territories under the dominion of the British Crown:

(11) The commencement, continuance and termination of hostilities between the British Crown and any other State or body of persons:

(12) The names of the members and officers of the court and of their deputies and subordinate officers and assistants, and also of all officers acting in execution of its process, and of all advocates, attorneys, proctors, vakils, pleaders and other persons authorized by law to appear or act before it:

(13) The rule of the road on land or at sea.

In all these cases and also on all matters of public history, literature, science or art, the Court may resort for its aid to appropriate books or documents of reference.

If the Court is called upon by any person to take judicial notice of any fact, it may refuse to do so unless and until such person produces any such book or document as it may consider necessary to enable it to do so.

58. Facts admitted need not be proved.— No fact need be proved in any proceeding which the parties thereto or their agents agree to admit at the hearing, or which, before the hearing, they agree to admit by any writing under their hands, or which by any rule or pleading in force at the time they are deemed to have admitted by their pleadings:

Provided that the Court may, in its discretion, require the facts admitted to be proved otherwise than by such admissions.

CHAPTER IV

OF ORAL EVIDENCE

59. Proof of facts by oral evidence.— All facts, except the contents of documents, may be proved by oral evidence.

60. Oral evidence must be direct.— Oral evidence must, in all cases whatever, be direct; that is to say–

if it refers to a fact which could be seen, it must be the evidence of a witness who says he saw it;

if it refers to a fact which could be heard, it must be the evidence of a witness who says he heard it;

if it refers to a fact which could be perceived by any other sense or in any other manner, it must be the evidence of a witness who says he perceived it by that sense or in that manner;

if it refers to an opinion or to the grounds on which that opinion is held, it must be the evidence of the person who holds that opinion on those grounds:

Provided that the opinions of experts expressed in any treatise commonly offered for sale, and the grounds on which such opinions are held, may be proved by the production of such treatises if the author is dead or cannot be found, or has become incapable of giving evidence, or cannot be called as a witness without an amount of delay or expense which the Court regards as unreasonable:

Provided also that, if oral evidence refers to the existence or condition of and material thing other than a document, the Court may, if it thinks fit, require the production of such material thing for its inspection.

PART III
THE EVIDENCE ACT

CHAPTER V
OF DOCUMENTARY EVIDENCE

61. Proof of contents of documents.— The contents of documents may be proved either by primary or by secondary evidence.

62. Primary evidence.– Primary evidence means the document it self produced for the inspection of the Court.

Explanation.– Where a document is executed in several parts, each part is primary evidence of the document.

Where a document is executed in counterpart, each counterpart being executed by one or some or the parties only, each counterpart is primary evidence as against the parties executing it.

Explanation 2.– Where a number of documents are all made by one uniform process, as in the case of printing, lithography or photography, each is primary evidence of the contents of the rest; but, where they are all copies of a common original, they are not primary evidence of the contents of the original.

Illustrations

A person is shown to have been in possession of a number of placards, all printed at one time from one original. Any one of the placards is primary evidence of the contents of any other, but no one of them is primary evidence of the contents of the original.

63. Secondary evidence.–Secondary evidence means and includes–

(1) certified copies given under the provisions hereinafter contained;

(2) copies made from the original by mechanical processes which in themselves insure the accuracy of the copy, and copies compared with such copies ;

(3) copies made from or compared with the original;

(4) counterparts of documents as against the parties who did not execute them ;

(5) oral accounts of the contents of a document given by some person who has himself seen it.

Illustrations

(a) A photograph of an original is secondary evidence of its contents, though the two have not been compared, if it is proved that the thing photographed was the original.

(b) A copy, compared with a copy of a letter made by a copying machine is secondary evidence of the contents of the letter, if it is shown that the copy made by the copying machine was made from the original.

(c) A copy transcribed from a copy, but afterwards compared with the original is secondary evidence; but the copy not so compared is not secondary evidence of the original, although the copy from which it was transcribed was compared with the original.

(d) Neither an oral account of a copy compared with the original, nor an oral account of a photograph or machine-copy of the original, is secondary evidence of the original.

64. Proof of documents by primary evidence.— Documents must be proved by primary evidence except in the cases hereinafter mentioned.

65. Cases in which secondary evidence relating to documents may be given.— Secondary evidence may be given of the existence, condition or contents of a document in the following cases :–

(a) when the original is shown or appears to be in the possession or power–

of the person against whom the document is sought to be proved, or of any person out of reach of, or not subject to, the process of the Court, or

of any person legally bound to produce it, and when, after the notice mentioned in section 66, such person does not produce it;

(b) when the existence, condition of contents of the original have been proved to be admitted in writing by the person against whom it is proved or by his representative in interest;

(c) when the original has been destroyed or lost, or when the party offering evidence of its contents cannot, for any other reason not arising from his own default or neglect, produce it in reasonable time;

(d) When the original is of such a nature as not to be easily moveable;

(e) When the original is a public document within the meaning of section 74;

(f) When the original is a document of which a certified copy is permitted by this Act, or by any other law in force in Bangladesh to be given in evidence;

(g) When the originals consist of numerous accounts or other documents which cannot conveniently be examined in Court, and the fact to be proved is the general result of the whole collection.

In cases (a), (c) and (d), any secondary evidence of the contents of the documents is admissible.

In case (b), the written admission is admissible.

In case (e) or (f), a certified copy of the document, but no other kind of secondary evidence, is admissible.

In case (g), evidence may be given as to the general result of the documents by any person who has examined them, and who is skilled in the examination of such documents.

66. Rules as to notice to produce.— Secondary evidence of the contents of the documents referred to in section 65, clause (a), shall not be given unless the party proposing to give such secondary evidence has previously given to the party in whose possession or power the document is, or to his attorney or pleader, such notice to produce it as is prescribed by law; and if no notice is prescribed by law, then such notice as the Court considers reasonable under the circumstances of the case:

Provided that such notice shall not be required in order to render secondary evidence admissible in any of the following cases, or in any other case in which the Court thinks fit to dispense with it :–

(1) when the document to be proved is itself a notice ;

(2) when, from the nature of the case, the adverse party must know that he will be required to produce it ;

(3) when it appears or is proved that the adverse party has obtained possession of the original by fraud or force ;

(4) when the adverse party or his agent has the original in Court ;

(5) when the adverse party or his agent has admitted the loss of the document ;

(6) when the person in possession of the document is out of reach, of or not subject to, the process of the Court.

67. Proof or signature and handwriting of person alleged to have signed or written document produced.— If a document is alleged to be signed or to have been written wholly or in part by any person, the signature or the handwriting of so much of the document as is alleged to be in that person's handwriting must be proved to be in his handwriting.

68. Proof of execution of document required by law to be attested.— If a document is required by law to be attested, it shall not be used as evidence until one attesting witness at least has been called for the purpose of proving its execution, if there be an attesting witness alive, and subject to the process of the Court and capable of giving evidence :

Provided that it shall not be necessary to call an attesting witness in proof of the execution of any document, not being a will which as been registered in accordance with the provisions of the Registration Act, 1908, unless its execution by the person by whom it purports to have been executed is specifically denied.

69. Proof where no attesting witness found.— If no such attesting witness can be found, or if the document purports to have been executed in the United Kingdom, it must be proved that the attestation of one attesting witness at least is in his handwriting, and that the signature of the person executing the document is in the handwriting of that person.

70. Admission of execution by party to attested document.— The admission of a party to an attested document of its execution by himself shall be sufficient proof of its execution as against him, though it be a document required by law to be attested.

71. Proof when attesting witness denies the execution.— If the attesting witness denies or does not recollect the execution of the document, its execution may be proved by other evidence.

72. Proof of document not required by law to be attested.— An attested document not required by law to be attested may be proved as if it was unattested.

73. Comparison of signature writing or seal with others admitted or proved.— In order to ascertain whether a signature, writing or seal is that of the person by whom it purports to have been written or made, any signature, writing or seal admitted or proved to the satisfaction of the Court to have been written or made by that person may be compared with the one which is to be proved, although that signature, writing or seal has not been produced or proved for any other purpose.

The Court may direct any person present in Court to write any words or figures for the purpose of enabling the Court to compare the words or figures so written with any words or figures alleged to have been written by such person.

This section applies also, with any necessary modifications, to finger impressions.

PUBLIC DOCUMENTS

74. Public documents.— The following documents are public documents:–

(1) documents forming the acts or records of the acts–

(i) of the sovereign authority,

(ii) of official bodies and tribunal, and

(iii) of public officers, legislative, judicial and executive, of any part of Bangladesh or of the commonwealth or of a foreign country;

(2) public records kept in Bangladesh of private documents.

75. Private documents.— All other documents are private.

76. Certified copies of public documents.— Every public officer having the custody of a public document, which any person has a right to inspect, shall give that person on demand a copy

of it on payment of the legal fees therefore, together with a certificate written at the foot of such copy that it is a true copy of such document or part thereof, as the case may be, and such certificate shall be dated and subscribed by such officer with his name and his official title. and shall be sealed, whenever such officer is authorized by law to make use of a seal, and such copies so certified shall be called certified copies.

Explanation.– Any officer who, by the ordinary course of official duty, is authorized to deliver such copies, shall be deemed to have the custody of such documents within the meaning of this section.

77. Proof of documents by production of certified copies.— Such certified copies may be produced in proof of the contents of the public documents or parts of the public documents of which they purport to be copies.

78. Proof of other official documents.— The following public documents may be proved as follows :–

(1) Acts, orders or notifications of the Government or any other Government that functioned within the territories now comprised in Bangladesh or, any departments thereof – by the records of the departments, certified by the heads of those departments, or by any document purporting to be printed by order of any such Government;

(2) the proceedings of the Legislatures,– which had power to legislate in respect of territories now comprised in Bangladesh, -

by the journals of those bodies respectively or by published Acts or abstracts, or by copies purporting to be printed by order of the Government:

(3) proclamations, orders or regulations issued by Government or by the Council, or by any department of the Government,–
by copies or extracts contained in the London Gazette, or purporting to be printed by the Bangladesh Printer :

(4) the Acts of the Executive or the proceedings of the Legislature of a foreign country,– by journals published by their authority, or commonly received in that country as such, or by a copy certified under the seal of the country of sovereign, or by recognition thereof in some Central Act;

(5) the proceedings of a municipal body in a district,–

by a copy of such proceedings, certified by the legal keeper thereof, or by a printed book purporting to be published by the authority of such body :

(6) public documents of any other class in a foreign country,–

by the original or by a copy certified by the legal keeper there of, with a certificate under the seal of a notary public, or of a Bangladesh Consul or diplomatic agent, that copy is duly certified by the officer having the legal custody of the original, and upon proof of the character of the document according to the law of the foreign country.

PRESUMPTIONS AS TO DOCUMENTS

79. Presumptions as to genuineness of certified copies.— The Court shall presume every document purporting to be a certificate, certified copy or other document, which is by law declared to be admissible as evidence of any particular fact and which purports to be duly certified by any officer of the Government to be genuine:

Provided that such document is substantially in the form and purports to be executed in the manner directed by law in that behalf.

The Court shall also presume that any officer by whom any such document purports to be signed or certified held when he signed it, the official character which he claims in such paper,

80. Presumption as to documents produced as record of evidence.— Whenever any document is produced before any Court, purporting to be a record or memorandum of the evidence, or of any part of the evidence, given by a witness in a judicial proceeding or before any officer authorized by law to take such evidence or to be a statement or confession by any prisoner or accused person, taken in accordance with law, and purporting to be signed by any Judge or Magistrate, or by any such officer as aforesaid, the Court shall presume–

that the document is genuine; that any statements as to the circumstances under which it was taken, purporting to be made by the person signing it, are true, and that such evidence, statement or confession was duly taken.

81. Presumption as to Gazettes, newspapers, private Acts of Parliament and other documents.— The Court shall presume the genuineness of every document purporting to be the London Gazette or any Official Gazette, dependency or possession or the Government or to be a newspaper or journal, or to be a copy of private Act of Parliament printed by the Government Printer, and of every document purporting to be a document directed by any law to be kept by any person, if such document is kept substantially in the from required by law and is produced from proper custody.

82. Presumption as to documents admissible in England without proof of seal or signature.— When any document is produced before any Court, purporting to be a document which, by the law in force for the time being in England and Ireland, would be admissible in proof of any particular in any Court of Justice in England or Ireland, without proof of the seal or stamp or signature authenticating it, or of the judicial or official character claimed by the person by whom it purports to be signed, the Court shall presume that such seal, stamp or signature is genuine, and that the person signing it held, at the time when he signed it, the judicial or official character which he claims,

and the document shall be admissible for the same purpose for which it would be admissible in England or Ireland.

83. Presumption as to maps or plants made by authority of Government.— The Court shall presume that maps or plans purporting to be made by the authority of the Government so made, and are accurate; but maps or plans made for the purposes of any cause must be proved to be accurate.

84. Presumption as to collections of laws and reports of decisions.— The Court shall presume the genuineness of every book purporting to be printed or published under the authority of the Government of any country, and to contain any of the laws of that country,

and of every book or Gazette purporting to contain reports of decisions of the Courts of such country.

85. Presumptions as to powers of Attorney.— The Court shall presume that every document purporting to be a power-of-attorney, and to have been executed before, and authenticated by, a notary public, or any Court, Judge, Magistrate, Bangladesh Consul or Vice-Consul, or representative of the State or of the Government, was so executed and authenticated.

86. Presumption as to certified copies of Foreign judicial records.— The Court may presume that any document purporting to be certified copy of any judicial record of any country not forming part of Bangladesh is genuine and accurate, if the document purports to be certified in any manner which is certified by any representative of the State or of the Government in or for such country to be the manner commonly in use in that country for the certification of copies of judicial records.

An officer who, with respect to any territory place not forming part of the state, is a Political Agent therefore, as defined in section 3, clause (40), of the General Clauses Act, 1897, shall for the purposes of this section, be deemed to be a representative of the Government in and for the country comprising that territory or place.

87. Presumption as to books, maps and charts.— The Court may presume that any book to which it may refer for information on matters of public or general interest, and that any published map or chart, the statements of which are relevant facts and which is produced for its inspection, was written and published by the person and at the time and place, by whom or at which it purports to have been written or published.

88. Presumption as to telegraphic messages.— The Court may presume that a message, forwarded from a telegraph office to the person to whom such message purports to be addressed, corresponds with a message delivered for transmission at the office from which the message purports to be sent ; but the Court shall not make any presumption as to the person by whom such message was delivered for transmission.

89. Presumption as to due execution, etc. of documents not produced.— The Court shall presume that every document, called for and not produced after notice to produce, was attested, stamped and executed in the manner required by law.

90. Presumptions as to documents thirty years old.— Where any document, purporting or proved to be thirty years old, is produced from any custody which the Court in the particular case considers proper, the Court may presume that the signature and every other part of such document, which purports to be in the handwriting of any particular person, is in that person's handwriting, and, in the case of a document executed or attested, that it was duly executed and attested by the person by whom it purports to be executed and attested.

Explanation.— Documents are said to be in proper custody if they are in the place in which, and under the care of the person with whom, they would naturally be ; but no custody is improper if it is proved to have had a legitimate origin, or if the circumstances of the particular case are such as to render such an origin probable.

This explanation applies also to section 81.

Illustrations

(a) A has been is possession of landed property for a long time. He produces from his custody deeds relating to the land, showing his titles to it. The custody is proper.

(b) A produces deeds relating to landed property of which he is the mortgage. The mortgagor in possession. The custody is proper.

(c) A, a connection of B, produces deeds relating to lands in B's possession which were deposited with him by B for safe custody. The custody is proper.

CHAPTER VI

OF THE EXCLUSION OF ORAL BY DOCUMENTARY EVIDENCE

91. Evidence of terms of contracts, grants and other dispositions of Property reduced to form of document.— When the term of a contract, or of a grant, or of any other disposition of property, have been reduced to the from of a document, and in all cases in which any matter is required by law to be reduced to the form of a document, no evidence shall be given in proof of the terms of such contract, grant or other disposition of property, or of such matter, except the document itself, or secondary evidence of its contents in cases in which secondary evidence is admissible under the provisions herein before contained.

Exception 1.— When a public officer is required by law to be appointed in writing, and when it is shown that any particular person has acted as such officer, the writing by which he is appointed need not be proved.

Exception 2.— Wills admitted to probate in Bangladesh may be proved by the probate.

Explanation 1.— This section applies equally to cases in which the contracts, grants or dispositions of property referred to are contained in one document and to cases in which they are contained in more documents than one.

Explanation 2.— Where there are more originals than one, one original only need be proved.

Explanation 3.— The statement, in any document whatever, of a fact other than the facts referred to in this section, shall not preclude the admission of oral evidence as to the same fact.

Illustrations

(a) If a contract be contained in several letters, all the letters in which it is contained must be proved.

(b) If a contract is contained in a bill of exchange, the bill of exchange must be proved.

(c) If a bill of exchange is drawn in a set of three, one only need be proved.

(d) **A** contracts, in writing, with **B** for the delivery of indigo upon certain terms. The contract mentions the fact that **B** had paid **A** the price of other indigo contracted for verbally on another occasion.

Oral evidence is offered that no payment was made for the other indigo. The evidence is admissible.

(f) **A,** gives **B** a receipt for money paid by **B**.

Oral evidence is offered of the payment.

The evidence is admissible.

92. Exclusion of evidence of oral agreement.— When the terms of any such contract, grant or other disposition of property, or any matter required by law to be reduced to the form of a document, have been proved according to the last section, no evidence of any oral agreement or statement shall be admitted, as between the parties to any such instrument or their representatives in interest, for the purpose of contradicting, varying, adding to, or subtracting from, its terms :

Proviso (1).— Any fact may be proved which would invalidate any document, or which would entitle any person to any decree or order relating thereto ; such as fraud, intimidation, illegality, want of due execution, want of capacity in any contracting party, want or failure of consideration, or mistake in fact or law.

Proviso (2).— The existence of any separate oral agreement as to any matter on which a document is silent, and which is not inconsistent with its terms, may be proved. In considering whether or not this proviso applies, the Court shall have regard to the degree of formality of the document.

Proviso (3).— The existence of any separate oral agreement, constituting a condition precedent to the attaching of any obligation under any such contract, grant or disposition of property, may be proved.

Proviso (4).— The existence of any distinct subsequent oral agreement to rescind or modify any such contract, grant or disposition of property, may be proved, except in cases in which such contract, grant or disposition of property, is by law required to be in writing, or has been registered according to the law in force for the time being as to the registration of documents.

Proviso (5).— Any usage or custom by which incidents not expressly mentioned in any contract are usually annexed to contracts of that description, may be proved :

Provided that the annexing of such incident would not be repugnant to, or inconsistent with, the express terms of the contract.

Proviso (6).— Any fact may be proved which shows in what manner the language of a document is related to existing facts.

Illustrations

(a) A policy of insurance is effected on goods "in ships from Calcutta to London", The goods are shipped in a particular ship which is lost. The fact that that particular ship was orally excepted from the policy cannot be proved.

(b) A agrees absolutely in writing to pay B Tk. 1,000 on the first March, 1873. The fact that, at the same time an oral agreement was made that the money should not be paid till the thirty-first March cannot be proved.

(c) An estate called "the Rampore tea estate" is sold by a deed which contains a map of the property sold. The fact that land not included in the map had always been regarded as part of the estate and was meant to pass by the deed cannot be proved.

(d) A enters into a written contract with B to work certain mines, the property of B, upon certain terms. A was induced to do so by a misrepresentation of B's as to their value. This fact may be proved.

(e) A institutes a suit against B for the specific performance of a contract, and also prays that the contract may be reformed as to one of its provisions, as that provision was inserted in it by mistake. A may prove that such a mistake was made as would by law entitle him to have the contract reformed.

(f) A orders goods of B by a letter in which nothing is said as to the time of payment, and accept the goods on delivery. B sues A for the price. A may show that the goods were supplied on credit for a term still unexpired.

(g) A sells B A a horse and verbally warrants him sound. A gives B a paper in these words: "Bought of A a horse for Tk. 500". B may prove the verbal warranty.

(h) A hires lodgings of **B**, and gives a card on which is written–"Rooms Tk. 200 a month." A may prove a verbal agreement that these terms were to include partial board.

A hires lodgings of B for a year, and a regularly stamped agreement, drawn up by an attorney, is made between them. It is silent on the subject of board. A may not prove that board was included in the term verbally.

(i) A applies to B for a debt due to A by sending a receipt for the money. B keeps the receipt and does not send the money. In a suit for the amount A may prove this.

(j) A and B make a contract in writing to take effect upon the happening of a certain contingency. The writing is left with B, who sues A upon it. A may show the circumstances under which it was delivered.

93. Exclusion of evidence to explain or amend ambiguous document.— When the language used in a document is, on its face, ambiguous or defective, evidence may not be given of facts which would show its meaning or supply its defects.

Illustrations

(a) A agrees, in writing, to sell a horse to B for Tk. 1000 or Tk. 1,500. Evidence cannot be given to show which price was to be given.

(b) A deed contains blanks. Evidence cannot be given of facts which would show how they were meant to be filled.

94. Exclusion of evidence against application of document to existing facts.— When language used in a document is plain in itself, and when it applies accurately to existing facts, evidence may not be given to show that it was not meant to apply to such facts.

Illustration

A sells to B, by deed, "my estate at Rangpur containing 100 bighas." A has an estate at Rangpur containing 100 bighas. Evidence may not be given of the fact that the estate meant to be sold was one situated at a different place and of a different size.

95. Evidence as to document unmeaning in reference to existing facts.— When language used in a document is plain in itself, but is unmeaning in reference to existing facts, evidence may be given to show that it was used in a peculiar sense.

Illustrations

A sells to B, by deed, "my house in Dhaka."

A had no house in Dhaka, but it appears that he had a house at Chittagong, of which B had been in possession since the execution of the deed.

These facts may be proved to show that the deed related to the house at Chittagong.

96. Evidence as to application of language which can apply to one only of several persons.— When the facts are such that the language used might have been meant to apply to any one, and could not have been meant to apply to more than one, of several persons or things, evidence may be given of facts which show which of those persons or things it was intended to apply to.

Illustrations

(a) A agrees to sell to B, for Tk. 1,000, "my white horse." A has two white horses. Evidence may be given of facts which show which of them was meant.

(b) A agrees to accompany B to Haidarabad. Evidence may be given of facts showing whether Haidarabad in the Dekkhan or Haidarabad in Sind was meant.

97. Evidence as to application of language to one of two sets of facts, to neither of which the whole correctly applies.— When the language used applies partly to one set of existing facts, and partly to another set of existing facts, but the whole of it does not apply correctly to either, evidence may be given to show to which of the two it was meant to apply.

Illustration

A agrees to sell to B "my land at X in the occupation of Y." A has land at X, but not in the occupation of Y, and he has land in the occupation of Y, but it is not at X. Evidence may be given of facts showing which he meant to sell.

98. Evidence as to meaning of illegible character, etc.— Evidence may be given to show the meaning of illegible or not commonly intelligible characters, of foreign, obsolete, technical and local provincial expressions, of abbreviations and of words used in a peculiar sense.

Illustration

A, a sculptor, agrees to sell to B, "all my mods". A has both models and modelling tools. Evidence may be given to show which he meant to sell.

99. Who may give evidence of agreement varying terms of document.— Persons who are not parties to a document, or their representatives in interest, may give evidence of any facts tending to show a contemporaneous agreement varying the terms of the document.

Illustration

A and B make a contract in writing that B shall sell A certain cotton, to be paid for on delivery. At the same time they make an oral agreement that three months' credit shall be given to A. This could not be shown as between A and B, but it might be shown by C, if it affected his interests.

100. Saving of provisions of Indian succession Act relating to wills.— Nothing in this Chapter contained shall be taken to affect any or the provisions of the Succession Act (X of 1865) as to the construction of wills.

PART III

PRODUCTION AND EFFECT OF EVIDENCE

CHAPTER VII

OF THE BURDEN OF PROOF

101. Burden of proof.— Whoever desires any Court to give judgment as to any legal right or liability dependent on the existence of facts which he asserts, must prove that those facts exist.

When a person is bound to prove the existence of any fact, it is said that the burden of Proof lies on that person.

Illustrations

(a) A desires a Court to give judgment that B shall be punished for a crime which A says B has committed.

A must prove that B has committed the crime.

(b) A desires a Court to give judgment that he is entitled to certain land in the possession of B, by reason of facts which he asserts, and which B denies, to be true.

A must prove the existence of those facts.

102. On whom burden of proof lies.— The burden of proof in a suit or proceeding lies on that person who would fail if no evidence at all were given on either side.

Illustrations

(a) A sues B for land of which B is in possession, and which, as A asserts, was left to A by the will of C, B's father.

If no evidence were given on either side, B would be entitled to retain his possession.

Therefore the burden of proof is on A.

(b) A sues B for money due on a bond.

The execution of the bond is admitted, but B says that it was obtained by fraud, which A denies.

If no evidence were given on either side, A would succeed as the bond is not disputed and the fraud is not proved.

Therefore the burden of proof is on B.

103. Burden of Proof as to particular fact.–The burden of proof as to any particular fact lies on that person who wishes the Court to believe in its existence, unless it is provided by any law that the proof of that fact shall lie on any particular person.

Illustrations

(a) A prosecutes B for theft, and wishes the Court to believe that B admitted the theft to C. A must prove the admission.

B wishes the Court to believe that, at the time in question, he was elsewhere. He must prove it.

104. Burden of proving fact to be proved to make evidence admissible.— The burden of proving any fact necessary to be proved in order to enable any person to give evidence of any other fact is on the person who wishes to give such evidence.

Illustrations

(a) A wishes to prove a dying declaration by B. A must prove B's death.

(b) A wishes to prove, by Secondary evidence, the contents of a lost document.

A must prove that the document has been lost.

105. Burden of proving that case of accused comes within exception.— When a person is accused of any offence, the burden of proving the existence of circumstances bringing the case within any of the General Exceptions in the Penal Code, or within any special exception or proviso contained in any other part of the same Code, or in any law defining the offence, is upon him, and the Court shall presume the absence of such circumstances.

Illustrations

(a) A, accused of murder, alleges that, by reason of unsoundness of mind, he did not know the nature of the act.

The burden of proof is on A.

(b) A, accused of murder, alleges that, by grave and sudden provocations, he was deprived of the power of self-control.

The burden of proof is on A.

(c) Section 325 of the Penal Code provides that whoever, except in the case provided for by section 335, voluntarily causes grievous hurt, shall be subject to certain punishments.

A is charged with voluntarily causing grievous hurt under section 325.

The burden of proving the circumstances bringing the case under section 335 lies on A.

106. Burden of Proving fact especially within knowledge.— When any fact is especially within the knowledge of any person, the burden of proving that fact is upon him.

Illustrations

(a) When a person does an act with some intention other than that which the character and circumstances of the act suggest, the burden of proving that intention is upon him.

(b) A is charged with travelling on a railway without a ticket. The burden of proving that he had a ticket is on him.

107. Burden of proving death of person known to have been alive within thirty years.— When the question is whether a man is alive or dead, and it is shown that he was alive within thirty years, the burden of proving that he is dead is on the person who affirms it.

108. Burden of proving that person is alive who has not been heard of for seven years.— Provided that when the question is whether a man is alive or dead, and it is proved that he has not been heard of for seven years by those who would naturally have heard of him if he had been alive, the burden of proving that he is alive is shifted to the person who affirms it.

109. Burden of proof as to relationship in the cases of partners, landlord and tenant, principal and agent.— When the question is whether persons are partners, landlord and tenant, or principal and agent, and it has been shown that they have been acting as such, the burden of proving that they do not stand, or have ceased to stand, to each other in those relationships respectively, is on the person who affirms it.

110. Burden of proof as to ownership.— When the question is whether any person is owner of anything of which he is shown to be in possession, the burden of proving that he is not the owner is on the person who affirms he is not the owner.

111. Proof of good faith in transactions where one party is in relation of active confidence.— Where there is a question as to the good faith of a transaction between parties, one of whom stands to the other in a position of active confidence, the burden of proving the good faith of the transaction is on the party who is in a position of active confidence.

Illustrations

(a) The good faith of a sale by a client to an attorney is in question in a suit brought by the client. The burden of proving the good faith of the transaction is on the attorney.

(b) The good faith of a sale by a son just come of age to a father is in question in a suit brought by the son. The burden of proving the good faith of the transaction is on the father.

112. Birth during marriage conclusive proof of legitimacy.— The fact that any person was born during the continuance of a valid marriage between his mother and any man, or within two hundred and eighty days after its dissolution, the mother remaining unmarried, shall be conclusive proof that he is the legitimate son of that man, unless it can be shown that the parties to the marriage had no access to each other at any time when he could have been begotten.

113. Proof of cession of territory.— A notification in the official Gazette that any portion of British territory has before the commencement of Part III of the Government of Act 1935 been ceded to any native State, Prince or Ruler[1] shall be conclusive proof that a valid cession of such territory took place at the date mentioned in such notification.

[1] *See,* for example, Gazette of India, 1873, Pt. I. P. 2.

114. Court may presume existence of certain facts.— The Court may presume the existence of any fact which it thinks likely to have happened, regard being had to the common course of natural events, human conduct and public and private business, in their relation to the facts of the particular case.

Illustrations

The Court may presume –

(a) that a man who is in possession of stolen goods soon after the theft, is either the thief or has received the goods knowing them to be stolen, unless he can account for his possession;

(b) that an accomplice is unworthy of credit, unless he is corroborated in material particulars;

(c) that a bill of exchange, accepted or endorsed, was accepted or endorsed for good consideration;

(d) that a thing or state of things which has been shown to be in existence within a period shorter than within which such things or states of things usually cease to exist, is still in existence;

(e) that judicial and official acts have been regularly performed;

(f) that the common course of business has been followed in particular cases;

(g) that evidence which could be and is not produced would, if produced, be unfavourable to the person who withholds it;

(h) that, if a man refuses to answer a question which he is not compelled to answer by law, the answer, if given, would be unfavourable to him;

(i) that when a document creating an obligation is in the hands of the obligor, the obligation has been discharged.

But the Court shall also have regards to such facts as the following, in considering whether such maximums do or do not apply to the particular case before it :–

as to illustration *(a)*– A shop-keeper has in his till a marked taka soon after it was stolen, and cannot account for its possession specially, but is continually receiving taka in the course of his business:

as to illustration *(b)*– **A,** a person of the highest character, is tried for causing a man's death by an act of negligence in arranging certain machinery. **B,** a person of equally good character, who also took part in the arrangement, describes precisely what was done, and admits and explains the common carelessness of **A** and himself :

as to illustration *(b)*–_a crime is committed by several persons. **A, B** and **C**, three of the criminals, are captured on the spot and kept apart from each other. Each given and account of the crime implicating D, and the accounts corroborate each other in such a manner as to render previous concert highly improbable:

as to illustration *(c)*— **A,** the drawer of a bill of exchange, was a man of business. **B,** the acceptor, was a young and ignorant person, completely under **A**'s influence:

as to illustration *(d)* — it is proved that a river ran in a certain course five years ago, but it is known that there have been floods since that time which might change its course:

as to illustration *(e)* — a judicial act, the regularity of which is in question, was performed under exceptional circumstances:

as to illustration *(f)* — the question is, whether a letter was received. It is shown to have been posted, but the usual course of the post was interrupted by disturbances:

as to illustration *(g)* — a man refuses to produce a document which would bear on a contract of small importance on which he is used, but which might also injure the feelings and reputation of his family:

as to illustration *(h)* — a man refuses to answer a question which he is not compelled by law to answer, but the answer to it might cause loss to him in matters unconnected with the matter in relation to which it is asked:

as to illustration *(i)* — a bond is in possession of the obligor, but the circumstances of the case are such that he may have stolen it.

CHAPTER VIII

ESTOPPEL

115. Estoppel.— When one person has, by his declaration, act or omission, intentionally caused or permitted another person to believe a thing to be true and to act upon such belief, neither he nor his representative shall be allowed, in any suit or proceeding between himself and such person or his representative, to deny the truth of that thing.

Illustrations

A intentionally and falsely leads **B** to believe that certain land belongs to **A**, and thereby induces **B** to buy and pay for it.

The land afterwards becomes the property of A, and A seeks to set aside the sale on the ground that, at the time of the sale, he had no title. He must not be allowed to prove his want of title.

116. Estoppel of tenant; and of license of person in possession.— No tenant of immovable property, or person claiming through such tenant, shall, during the continuance of the tenancy, be permitted to deny that the landlord of such tenant had at the beginning of the tenancy, a title to such immovable property; and no person who came upon any immovable property by the license of the person in possession thereof shall be permitted to deny that such person had a title to such possession at the time when such license was given.

117. Estoppel of acceptor of bill of exchange, bailee or licensee.— No acceptor of a bill of exchange shall be permitted to deny that the drawer had authority to draw such bill or to endorse it; nor shall any bailee or licensee be permitted to deny that his bailor or licensor had, at the time when the bailment or license commenced, authority to make such bailment or grant such license.

Explanation (1).— The acceptor of a bill of exchange may deny that the bill was really drawn by the person by whom it purports to have been drawn.

Explanation (2).— If a bailee delivers the goods bailed to a person other than the bailor, he may prove that such person had a right to them as against the bailor.

CHAPTER IX

OF WITNESSES

118. Who may testify.— All persons shall be competent to testify unless the Court considers that they are prevented from understanding the questions put to them, or from giving rational answers to those questions, by tender years, extreme old age, disease, whether of body or mind, or any other cause of the same kind.

Explanation.— A lunatic is not incompetent to testify, unless he is prevented by his lunacy from understanding the questions put to him and giving rational answers to them.

119. Dumb witnesses.— A witness who is unable to speak may give his evidence in any other manner in which he can make it intelligible, as by writing or by signs; but such writing must be written and the signs made in open Court, Evidence so given shall be deemed to be oral evidence.

120. Parties to civil suit, and their wives or husbands, husband or wife of person under criminal trial.— In all civil proceedings the parties to the suit, and the husband or wife of any party to the suit, shall be competent witnesses. In criminal proceedings against any person, the husband or wife of such person, respectively, shall be a competent witness.

121. Judges and Magistrates.— No Judge or Magistrate shall, except upon the special order of some Court to which he is subordinate, be compelled to answer any questions as to his own conduct in Court *as such* Judge or Magistrate, or as to anything which came to his knowledge in Court as such Judge or Magistrate: but he may be examined as to other matter which occurred in his presence whilst he was so acting.

Illustrations

(a) **A**, on his trial before the Court of Session, says that a deposition was improperly taken by **B**, the Magistrate. **B** cannot be compelled to answer questions as to this, except upon the special order of a superior Court.

(b) **A** is accused before the Court of Session of having given false evidence before **B**, a Magistrate. **B** cannot be asked what **A** said, except upon the special order of the superior Court.

(c) A is accused before the Court of Session of attempting to murder a police-officer whilst on his trial before B, a Sessions Judge. B may be examined as to what occurred.

122. Communications during marriage.— No person who is or has been married shall be compelled to disclose any communication made to him during marriage by any person to whom he is or has been married: nor shall he be permitted to disclose any such communication, unless the person who made it, or his representative in interests, consents, except in suits between married persons, or proceedings in which one married person is prosecuted for any crime committed against the other.

123. Evidence as to affairs of State.— No one shall be permitted to give any evidence derived from unpublished official records relating to any affairs of State, except with the permission of the officer at the head of the department concerned, who shall give or withhold such permission as he thinks fit.

124. Official communications.— No public officer shall be compelled to disclose communications made to him in official confidence, when he considers that the public interests would suffer by the disclosure.

125. Information's as to commission of offences.— No Magistrate or Police-officer shall be compelled to say whence he got any information as to the commission of any offence, and no Revenue-officer shall be compelled to say whence he got any information as to the commission of any offence against the public revenue.

Explanation.— "Revenue-officer" in this section means any officer employed in or about the business of any branch of the public revenue.

126. Professional communications.— No barrister, attorney, pleader or vakil shall at any time be permitted, unless with his client's express consent, to disclose any communication made to him in the course and for the purpose of his employment as such barrister, pleader, attorney or vakil by or on behalf of his client, or to state the contents or condition of any document with which he has become acquainted in the course and for the purpose of his professional employment, or to disclose any advice given by him to his client in the course and for the purpose of such employment:

Provided that nothing in this section shall protect from disclosure–

(1) any such communication made in furtherance of any illegal purpose;

(2) any fact observed by any barrister, pleader, attorney or vakil, in the course of his employment as such, showing that any crime or fraud has been committed since the commencement of his employment.

It is immaterial whether the attention of such barrister, pleader, attorney or vakil was or was not directed to such fact by or on behalf of his client.

Explanation.— The obligation stated in this section continues after the employment has ceased.

Illustrations

(a) A, a client, says to B, an attorney — "I have committed forgery and I wish you to defend me".

As the defence of a man known to be guilty is not a criminal purpose, this communication is protected from disclosure.

(b) A, a client, says to B, an attorney — "I wish to obtain possession of property by the use a forged deed on which I request you to sue".

The communication, being made in furtherance of a criminal purpose, is not protected from disclosure.

(c) A, being charged with embezzlement, retains B, an attorney, to defend him. In the course of the proceedings, B observes that an entry has been made in A's account Book, charging A with the sum said to have been embezzled, which entry was not in the book at the commencement of his employment.

This being a fact observed by B in the course of his employment, showing that a fraud has been committed since the commencement of the proceedings, it is not protected from disclosure.

127. Section 126 to apply to interpreters, etc.— The provisions of section 126 shall apply to interpreters and the clerks or servant of barristers, pleaders, attorneys and vakils.

128. Privilege not waived by volunteering evidence.— If any party to a suit gives evidence therein at his own instance or otherwise, he shall not be deemed to have consented thereby to such disclosure as is mentioned in section 126; and, if any party to a suit or proceedings calls any such barrister, pleader, attorney or vakil as a witness, he shall be deemed to have consented to such disclosure only if he questions such barrister, attorney or vakil on matters which, but for such question, he would not be at liberty to disclose.

129. Confidential communications with legal advisers.— No one shall be compelled to disclose to the Court any confidential communication which has taken place between him and his legal professional adviser, unless he offers himself as a witness, in which case he may be compelled to disclose any such communications as may appear to the Court necessary to be known in order to explain any evidence which he has given, but no others.

130. Production of title-deed of witness, not a party.— No witness who is not a party to a suit shall be compelled to produce his title-deeds to any property or any document in virtue of which he holds any property as pledge or mortgagee or any document the production of which might tend to criminate him, unless he has agreed in writing to produce them with the person seeking the production of such deeds or some person through whom he claims.

131. Production of documents which another person, having possession could refuse to produce.— No one shall be compelled to produce documents in his possession, which any other person would be entitled to refuse to produce if they were in his possession, unless such last-mentioned person consents to their production.

132. Witness not excused from answering on ground that answer will criminate.— A witness shall not be excused from answering any question as to any matter relevant to the matter in issue in any suit or in any civil or criminal proceeding, upon the ground that the answer to such question will criminate or may tend directly or indirectly to criminate such witness, or that it will expose, or tend directly or indirectly to expose, such witness to a penalty or forfeiture o any kind:

Proviso.— Provided that no such answer, which a witness shall be compelled to give, shall subject him to any arrest of prosecution, or be proved against him in any criminal proceeding, except a prosecution for giving false evidence by such answer.

133. Accomplice.— An accomplice shall be a competent witness against an accused person; and a conviction is not illegal merely because it proceeds upon the uncorroborated testimony of an accomplice.

134. Number of witnesses.— No particular number of witnesses shall in any case be required for the proof of any fact.

CHAPTER X.

OF THE EXAMINATION OF WITNESSES

135. Order of production and examination nation of witnesses.— The order in which witnesses are produced and examined shall be regulated by the law and practice for the time being relating to civil and criminal procedure respectively, and, in the absence of any such law, by the discretion of the Court.

136. Judge to decide as to admissibility of evidence.— When either party proposes to give evidence of any fact, the judge may ask the party proposing to give the evidence in what manner the alleged fact, if proved, would be relevant; and the Judge shall admit the evidence if he thinks that the fact, if proved, would be relevant and not otherwise.

If the fact proposed to be proved is one of which evidence is admissible only upon proof of some other fact, such last-mentioned fact must be proved before evidence is given of the fact first mentioned, unless the party undertakes to give proof of such fact, and the Court is satisfied with such undertaking.

If the relevancy of one alleged fact depends upon another alleged fact being first proved, the Judge may, in his discretion, either permit evidence of the first fact to be given before the second fact is proved, or require evidence to be given of the second fact before evidence is given of the first fact.

Illustrations

(a) It is proposed to prove a statement about a relevant fact by a person alleged to be dead, which statement is relevant under section 32.

The fact that the person is dead must be proved by the person proposing to prove the statement, before evidence is given of the statement.

(b) It is proposed to prove, by a copy, the contents of a document said to be lost.

The fact that the original is lost must be proved by the person proposing to produce the copy, before the copy is produced.

(c) A is accused of receiving stolen property knowing it to have been stolen.

It is proposed to prove that he denied the possession of the property.

The relevancy of the denial depends on the identity of the property. The Court may, in its discretion, either require the property to be identified before the denial of the possession is proved, or permit the denial of possession to be proved before the property is identified.

(d) It is proposed to prove a fact **(A)** which is said to have been the cause or effect of a fact in issue. There are several intermediate facts **(B**, **C** and **D)** which must be shown to exist before the fact **(A)** can be regarded as the cause or effect of the fact in issue. The Court may either permit **A** to be proved before **B**, **C** or **D** is proved, or may require proofs of **B**, **C** and **D** before permitting proof of **A.**

137. Examination-in-chief.— The examination of a witness by the part who calls him shall be called his examination-in-chief.

Cross-examination.— The examination of a witness by the adverse party shall be called his cross-examination.

Re-examination.— The examination of a witness, subsequent to the cross-examination by the party who called him, shall be called his re-examined.

138. Order of examination.— Witnesses shall be first examined-in-chief then (if the adverse party so desires) cross-examined, then (if the party calling him so desires) re-examined.

The examination and cross-examination must relate to relevant facts, but the cross-examination need not be confined to the facts to which the witness testified on his examination-in-chief.

Direction of re-examination.— The re-examination shall be directed to the explanation of matters referred to in cross-examination; and, if new matter is, by permission of the Court, introduced in re-examination, the adverse party may further cross-examine upon that matter.

139. Cross-examination of person called to produce a document.— A person summoned to produce a document does not become a witness by he mere fact that he produces it and cannot be cross-examined unless and until the is called as a witness.

140. Witnesses to character.— Witnesses to character may by cross-examined and re-examined.

141. Leading questions.— Any question suggesting the answer which the person putting it wishes or expects to receive is called a leading question.

142. When they must not be asked.— Leading questions must not, if objected to by the adverse party be asked in an examination-in-chief, or in a re-examination, except with the permission of the Court.

The Court shall permit leading questions as to matters which are introductory or undisputed, or which have, in its opinion, been already sufficiently proved.

143. When they may be asked.— Leading questions may be asked in cross-examination.

144. Evidence as to matters in writing.— Any witness may be asked, whilst under examination, whether any contract, grant or other disposition of property, as to which he is giving evidence, was not contained in a document, and if he says that it was, or if he is about to make any statement as to the contents of any document, which, in the opinion of the Court, ought to be produced, the adverse party may object to such evidence being given until such document is produced, or until facts have been proved which entitle the party who called the witness to give secondary evidence of it.

Explanation.— A witness may give oral evidence of statements made by other persons about the content of documents if such statements are in themselves relevant facts.

Illustration

The question is, whether A assaulted B.

C deposes that he heard A say to D –"B wrote a letter accusing me of theft, and I will be revenged on him." This statement is relevant, as showing A's motive for the assault, and evidence may be given of it, though no other evidence is given about the letter.

145. Cross-examination as to previous statements in writing.— A witness may be cross-examined as to previous statements made by him in writing or reduced into writing, and relevant to matters in question, without such writing being shown to him, or being proved; but if it is intended to contradict him by the writing, his attention must, before the writing can be proved, be called to those parts of it which are to be used for the purpose of contradicting him.

146. Questions lawful in cross-examination.— When a witness is cross-examined, he may, in addition to the questions herein before referred to, be asked any questions which tend–

(1) to test his veracity,

(2) to discover who he is and what is his position in life, or

(3) to shake his credit, by injuring his character, although the answer to such questions might tend directly or indirectly to criminate him or might expose or tend directly or indirectly to expose him to a penalty or forfeiture.

147. When witness to be compelled to answer.— If any such question relates to a matter relevant to the suit or proceedings, the provisions of section 132 shall apply thereto.

148. Court to decide when question shall be asked and when witness compelled to answer.— If any such question relates to a matter not relevant to the suit or proceeding, except in so far as it affects the credit of the witness by injuring his character, the Court shall decide whether or not the witness shall be compelled to answer it, and may, if it thinks fit, warn the witness that he is not obliged to answer it. It exercising its discretion, the Court shall have regard to the following considerations:–

(1) such questions are proper if they are of such of nature that the truth of the imputation conveyed by them would seriously affect the opinion of the Court as to the credibility of the witness on the matter to which he testifies:

(2) such questions are improper if the imputation which they convey relates to matters so remote in time, or of such a character, that the truth of the imputation would not affect, or would affect in a slight degree, the opinion of the Court as to the credibility of the witness on the matter to which he testifies:

(3) such questions are improper if there is a great disproportion between the importance of the imputation made against the witness's character and the importance of his evidence:

(4) the Court may, if it sees fit, draw, from the witness's refusal to answer, the inference that the answer if given would be unfavourable.

149. Question not to be asked without reasonable grounds.— No such question as is referred to in section 148 ought to be asked, unless the person asking it has reasonable grounds for thinking that the imputation which it conveys is well-founded.

Illustrations

(a) A barrister is instructed by an attorney or vakil that an important witness is a dakait. This is a reasonable ground for asking the witness whether he is a dakait.

(b) A pleader is informed by a person in Court that an important witness is a dakait. The informant, on being questioned by the pleader, gives satisfactory reasons for his statement. This is a reasonable ground for asking the witness whether he is a dakait.

(c) A witness, of whom nothing whatever is known, is asked at random whether he is a dakait. There are here no reasonable grounds for the question.

(d) A witness, of whom nothing whatever is known, being questioned as to his mode of life and means of living, gives unsatisfactory answers.

This may be a reasonable ground for asking him if he is a dakait.

150. Procedure of Court in case of question being asked without reasonable grounds.— If the Court is of opinion that any such question was asked without reasonable grounds, it may, if it was asked by any barrister, pleader, vakil or attorney report the circumstances of the case to the High Court Division or other authority to which such barrister, pleader, vakil or attorney is subject in the exercise of his profession.

151. Indecent and scandalous questions.— The Court may forbid any questions or inquiries which it regards as indecent or scandalous, although such questions or inquiries may have some bearing on the questions before the Court, unless they relate to facts in issue, or to matters necessary to be known in order to determine whether or not the facts in issue existed.

152. Questions intended to insult or annoy.— The Court shall forbid any question which appears to it to be intended to insult or annoy, or which, though proper in itself, appears to the Court needlessly offensive in form.

153. Exclusion of evidence to contradict answers to questions testing veracity.— When a witness has been asked and has answered any question which is relevant to the inquiry only in so far as it tends to shake his credit by injuring his character, no evidence shall be given to contradict him; but, if he answers falsely, he may afterwards be charged with giving false evidence.

Exception 1.— If a witness is asked whether he has been previously convicted or any crime and denies it, evidence may be given of his previous conviction.

Exception 2.— If a witness is asked any question tending to impeach his impartiality and answers it by denying the facts suggested, he may be contradicted.

Illustrations

(a) A claim against an underwriter is resisted on the ground of fraud.

The claimant is asked whether, in a former transaction, he had not made a fraudulent claim. He denies it.

Evidence is offered to show that he did make such a claim.

The evidence is inadmissible.

(b) A witness is asked whether he was not dismissed from a situation for dishonesty.
He denies it.

Evidence is offered to show that he was dismissed for dishonesty.

The evidence is not admissible.

(c) A affirms that on a certain day he saw B at Lahore.

A is asked whether he himself was not on that day at Calcutta. He dnies it.

Evidence is offered to show that A was on that day at Calcutta.

The evidence is admissible, not as contradicting **A** on a fact which affects his credit, but as contradicting the alleged fact that **B** was seen on the day in question in Lahore.

In each of these cases the witness might, if his denial was false, be charged with giving false evidence.

(d) A is asked whether his family has not had a blood feud with the family of **B** against whom he gives evidence.

He denies it. He may be contradicted on the ground that the question tends to impeach his impartiality.

154. Question by party to his own witness.— The Court may, in is discretion, permit the person who calls a witness to put any questions to him which might be put in cross-examination by the adverse party.

155. Impeaching credit of witness.–The credit of a witness may be impeached in the following ways by the adverse party, or, with the consent of the Court, by the party who calls him :–

(1) by the evidence of persons who testify that they, from their knowledge of the witness, believe him to be unworthy of credit;

(2) by proof that the witness has been bribed, or has accepted the offer of a bribe, or has received any other corrupt inducement to give his evidence;

(3) by proof of former statements inconsistent with any part of his evidence which is liable to be contradicted;

(4) when a man is prosecuted for rape or an attempt to ravish, it may be shown that the prosecutrix was of generally immoral character.

Explanation.— A witness declaring another witness to be unworthy of credit may not, upon his examination-in-chief, give reasons for his belief, but he my be asked his reasons in cross-examination, and the answers which he gives cannot be contradicted, though, if they are false, he may afterwards be charged with giving false evidence.

Illustrations

(a) **A** sues **B** for the price of goods sold and delivered to **B**. **C** says that **A** delivered the goods to **B.**

Evidence is offered to show that, on a previous occasion, he said that he had not delivered the goods to **B.**

The evidence is admissible.

(b) A is indicted for the murder of **B**.

C says that **B**, when dying, declared that **A** had given **B** the wound of which he died.

Evidence is offered to show that, on a previous occasion, **C** said that the wound was not given by **A** or in his presence. The evidence is admissible.

156. Questions intending to corroborate evidence of relevant fact admissible.— When a witness whom it is intended to corroborate gives evidence of any relevant fact, he may be questioned as to any other circumstances which he observed at or near to the time or place at which such relevant fact occurred, if the Court is of opinion that such circumstances, if proved, would corroborate the testimony of the witness as to the relevant fact which he testifies.

Illustration

A, an accomplice, gives an account of a robbery in which he took part. He describes various incidents unconnected with the robbery which occurred on his way to and from the place where it was committed.

Independent evidence of these facts may be given in order to corroborate his evidence as to the robbery itself.

157. Former statements of witness may be proved to corroborate latter testimony as to same fact.— In order to corroborate the testimony of a witness, any former statement made by such witness relating to the same fact at or about the time when the fact took place, or before any authority legally competent to investigate the fact, may be proved.

158. What matters may be proved in connection with proved statement relevant under section 32 or 33.— Whenever any statement, relevant under section 32 or 33, is proved, all matters may be proved either in order to contradict or to corroborate it, or in order to impeach or confirm the credit of the person by whom it was made, which might have been proved if that person had been called as a witness and had denied upon cross-examination the truth of the matter suggested.

159. Refreshing memory.— A witness may, while under examination, refresh his memory by referring to any, writing made by himself at the time of the transaction concerning which he is questioned, or so soon afterwards that the Court considers it likely that the transaction was at that time fresh in his memory.

The witness may also refer to any such writing made by any other person, and read by the witness within the time aforesaid, if when he read it he knew it to be correct.

When witness may use copy of document to refresh memory. — Whenever a witness may refresh his memory by reference to any document, he may, with the permission of the Court, refer to a copy of such document:

Provided the Court be satisfied that there is sufficient reason for the non-production of the original.

An expert may refresh his memory by reference to professional treatises.

160. Testimony to facts stated in document mentioned in section 159.— A witness may also testify to facts mentioned in any such document as is mentioned in section 159, although he has no specific recollection of the facts themselves, if he is sure that the facts were correctly recorded in the document.

Illustrations

A book-keeper may testify to facts recorded by him in books regularly kept in the course of business, if he knows that the books were correctly kept, although he has forgotten particular transactions entered.

161. Right of adverse party as to writing used to refresh memory.— Any writing referred to under the provisions of the two last preceding sections must by produce and shown to the adverse party if he requires it: such party may, if he pleases, cross-examine the witness thereupon.

162. Production of documents.—A witness summoned to produce a document shall, if it is in his possession or power, bring it to Court, notwithstanding any objection which there may be to its production or to its admissibility. The validity of any such objection shall be decided on the Court.

The Court, if it sees fit, may inspect the document, unless it refers to matters of State, or take other evidence to enable it to determine on its admissibility.

Translation of documents.— If for such a purpose it is necessary to cause any document to be translated, the Court may, if it thinks fit, direct the translator to keep the contents secret, unless the document is to be given in evidence: and, if the interpreter disobeys such direction, he shall be held to have committed an offence under section 166 of the Penal Code.

163. Giving, as evidence, of document called for and produced on notice.— When a party calls for a document which he has given the other party notice to produce, and such document is produced and inspected by the party calling for its production, he is bound to give it as evidence if the party producing it requires him to do so.

164. Using, as evidence, of document production of which was refused on notice.— When a party refuses to produce a document which he has had notice to produce, he cannot afterwards use the document as evidence without the consent of the other party or the order of the Court.

Illustration

A sues **B** on an agreement and gives **B** notice to produce it. At the trial **A** calls for the document and **B** refuses to produce it. **A** gives secondary evidence of its contents. **B** seeks to produce the document itself to contradict the secondary evidence given by **A**, or in order to show that the agreement is not stamped. He cannot do so.

165. Judge's power to put questions or order production.— The Judge may, in order to discover or to obtain proper proof of relevant facts, ask any question he pleases, in any form, at any time, of any witness, or of the parties about any fact relevant or irrelevant; and may order the production of any document or thing; and neither the parties nor their agents shall be entitled to make any objection to any such question or order, nor, without the leave of the Court, to cross-examine any witness upon any answer given in reply to any such question:

Provided that the judgment must be based upon facts declared by this Act to be relevant, and duly proved:

Provided also that this section shall not authorise any Judge to compel any witness to answer any question or to produce any document which such witness would be entitled to refuse to

answer or produce under sections 121 to 131, both inclusive, if the question were asked or the document were called for by the adverse party; nor shall the Judge ask any question which it would be improper for any other person to ask under section 148 or 149, nor shall he dispense with primary evidence of any document, except in the cases hereinbefore excepted.

166. Power of jury or assessors to put questions.— In cases tried by jury or with assessors, the jury or assessors may put any questions to the witness, through or by leave of the Judge, which the Judge himself might put and which he considers proper.

CHAPTER XI

OF IMPROPER ADMISSION AND REJECTION OF EVIDENCE

167. No new trial or improper admission or rejection of evidence.— The improper admission or rejection of evidence shall not be ground of itself for a new trial or reversal of any decision in any case, if it shall appear to the Court before which such objection is raised that, independently of the evidence objected to and admitted, there was sufficient evidence to justify the decision, or that, if the rejected evidence had been received, it ought not to have varied the decision.

PART III
THE COAD OF CRIMINAL PROCEDURE

ACT V OF 1898

EXTRACTS FROM THE CODE OF CRIMINAL PROCEDURE, 1898

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PART III
THE COAD OF CRIMINAL PROCEDURE

ACT V OF 1898

THE CODE OF CRIMINAL PROCEDURE, 1898

* * * *

4. Definition.—(1) In this Code the following words and expressions have the following meanings, unless a different intention appears from the subject or context:—

* * * *

"Bailable offence", "Non-bailable offence".—*(b)* "bailable offence" means an offence shown as bailable in the second schedule, or which is made bailable by any other law for the time being in force; and "non-bailable offence" means any other offence:

* * * *

"Cognizable offence", "Cognizable case".—*(f)* "cognizable offence" means an offence for, and "cognizable case" means a case in, which a police-officer, may, in accordance with the second schedule or under any law for the time being in force, arrest without warrant:

* * * *

"Complaint".—(h) "complaint" means the allegation made orally or in writing to a Magistrate, with a view to his taking action under this code, that some person whether known or unknown, has committed an offence, but it does not include the report of a police-officer:

* * * *

"Non-cognizable offence." "Non-cognizable case".—*(n)* "non-cognizable offence" means an offence for, and "non-cognizable case" means a case in, which a police-officer, may not arrest without warrant ;

A.—Classes of Criminal Courts

6. Classes of Criminal Courts.—Besides the High Courts and the Courts constituted under any law other than this Code for the time being in force, there shall be five classes of Criminal Courts in Bangladesh, namely:—

I.—Courts of Session:
II.—Metropolitan Magistrates:
III.—Magistrate of the first class:
IV.—Magistrate of the second class:
V.—Magistrate of the third class.

* * * *

42. Public when to assist Magistrate and police.—Every person is bound to assist a Magistrate or police-officer reasonably demanding his aid, whether within or without the presidency-towns,–

(a) in the taking or preventing the escape of any other person whom such Magistrate or police-officer is authorised to arrest;

(b) in the prevention or suppression of a breach of the peace, or in the prevention of any injury attempted to be committed to any railway, canal, telegraph or public property.

43. Aid to person, other than police officer, executing warrant.—When a warrant is directed to a person other than a police-officer, any other person may aid in the execution or such warrant, if the person to whom the warrant is directed be near at hand and acting in the execution of the warrant.

44. Public to give information of certain offences.–(1) Every person, aware of the commission of, or of the intention of any other person to commit any offence punishable under any of the following sections of the Penal Code (namely), 121, 121A, 122, 123, 124, 124A, 125, 126, 130, 143, 144, 145, 147, 148, 302, 303, 304, 382, 392, 393, 394, 395, 396, 397, 398, 399, 402, 435, 436, 449, 450, 456, 457, 458, 459, and 460, shall, in the absence of reasonable excuse, the burden of proving which shall lie upon the person so aware, forthwith give information to the nearest Magistrate or police-officer of such commission or intention.

(2) For the purpose of this section the term "offence" includes any act committed at any place out of Bangladesh which would constitute an offence if committed in Bangladesh.

* * * *

A.—Arrest generally

46. Arrest how made.—(1) In making an arrest the police-officer or other person making the same shall actually touch or confine the body of the person to be arrested, unless there be a submission to the custody by word or action.

Resisting endeavour to arrest.—(2) If such person forcibly resists the endeavour to arrest him, or attempts to evade the arrest, such police-officer or other person may use all means necessary to effect the arrest.

(3) Nothing in this section gives a right to cause the death of a person who is not accused of an offence punishable with death or with transportation for life.

47. Search of place entered by person sought to be arrested.—If any person acting under a warrant of arrest, or any police-officer having authority to arrest, has person to believe that the person to be arrested has entered into, or is within, any place, the person residing in, or being in charge of, such place shall, on demand of such person acting as aforesaid or such police-officer, allow him free ingress thereto, and afford all reasonable facilities for a search herein.

48. Procedure where ingress not obtainable.—If ingress to such place cannot be obtained under section 47 it shall be lawful in any case for a person acting under a warrant and in any case in which a warrant may issue, but cannot be obtained without affording the person to be arrested an opportunity of escape, for a police-officer to enter such place and search therein, and in order to effect an entrance into such place, to break open any outer or inner door or window of any house or place, whether that of the person to be arrested or of any other person, if after notification of his authority and purpose, and demand of admittance duly made, he cannot otherwise obtain admittance:

Breaking open zanana.—Provided that, if any such place is an apartment in the actual occupancy of a woman (not being the person to be arrested) who, according to custom, does not appear in public such person or police-officer shall, before entering such apartment, give notice to such woman that she is at liberty to withdraw and shall afford her every reasonable facility for withdrawing, and may then break open the apartment and enter it.

49. Power to break open doors and windows for purposes of liberation.—Any police-officer or other person authorised to make an arrest may break open any outer or inner door or window of any house or place in order to liberate himself or any other person who, having lawfully entered for the purpose of making an arrest, is detained therein.

50. No unnecessary restraint.—The person arrested shall not be subjected to more restraint than is necessary to prevent his escape.

51. Search of arrested persons.—Whenever a person is arrested by a police-officer under a warrant which does not provide for the taking of bail, or under a warrant which provides for the taking of bail but the person arrested cannot furnish bail, and

whenever a person is arrested without warrant, or by a private person under a warrant, and cannot legally be admitted to bail, or is unable to furnish bail,

the officer making the arrest or, when the arrest is made by a private person, the police-officer to whom he makes over the person arrested, may search such person, and place in safe custody all articles, other than necessary wearing-apparel, found upon him.

53. Powers to seize offensive weapons.—The officer or other person making any arrest under this Code may take from the person arrested any offensive weapons he has about his person, and shall deliver all weapons so taken to the Court or officer before which or whom the officer or person making the arrest is required by this Code to produce the person arrested.

* * * *

59. Arrest by private persons and procedure on such arrest.—(1) Any private person may arrest any person who in his views commits a non-bailable and cognizable offence, or any proclaimed offender, and without unnecessary delay, shall make over any person so arrested to a police-officer, or, in the absence of a police-officer, take such person or cause him to be taken in custody to the nearest police-station.

(2) If there is reason to believe that such person comes under the provisions of section 54, a police-officer shall re-arrest him.

(3) If there is reason to believe that he has committed a non-cognizable offence, and he refuses on the demand of a police-officer to give his name and residence, or gives a name or residence which such officer has reason to believe to be false, he shall be dealt with under the provisions of section 57. If there is no sufficient reason to believe that he has committed any offence, he shall be at once released.

* * * *

66. Power, on escape, to pursue and retake–If a person in lawful custody escapes or is rescued, the person from whose custody he escaped or was rescued may immediately pursue and arrest him in any place in Bangladesh.

For Penalty for unwarrantable personal violence by a police-officer to a person in his custody see, s. 29 of the Police Act, 1861 (V of 1861), General Acts, Vol. I.

As to disposal of such property, *see* s. 523.

67. Provisions of sections 47, 48 and 49 to apply to arrests under section 66.–The provisions of sections 47, 48, and 49 shall apply to arrest under section 66, although the person making any such arrest is not acting under a warrant and is not a police-officer having authority to arrest.

68. Form of summons.–(1) Every summons issued by a Court under this Code shall be in writing in duplicate, signed and sealed by the presiding officer of such Court, or by such other officer as the High Court may, from time to time, by rule, direct.

Summons by whom served–(2) Such summons shall be served by a police-officer or subject to such as the Government may prescribe in this behalf, by an officer of the Court issuing it or other public servant.

69. Summons how served.–(1) The summons shall, if practicable, be served personally on the person summoned, by delivering or tendering to him one of the duplicates of the summons.

Signature receipt of summons.–(2) Every person on whom a summons is so served shall if so required by the serving officer, sign a receipt therefor on the back of the other duplicate.

* * * *

72. Service on servant of Government of Railway Company.–(1) Where the person summoned is in the active service of the State or of Railway Company, the Court issuing the summons shall ordinarily send it in duplicate to the head of the office in which such person is employed; and such head shall thereupon cause the summons to be served in manner provided by section 69, and shall return it to the Court under his signature with the endorsement required by that section .

(2) Such signature shall be evidence of due service.

* * * *

94. Summons to produce document or other thing.–(1) Whenever any Court, or any officer in charge of a police-station considers that the production of any document or other thing is necessary or desirable for the purposes of any investigation, inquiry, trial or other proceeding under this Code by or before such Court or officer, such court may issue a summons, or such officer a written order, to the person in whose possession or power such document or thing is believed to be, requiring him to attend and produce it, or to produce it, at the time and place stated in the summons or order.

Provided that no such officer shall issue any such order requiring the production of any document or other thing which is in the custody of a bank or banker as defined in the Bankers' Books Evidence Act, 1891 (XVIII of 1891), and relates, or might disclose any information which relates, to the bank account of any person except,—

(a) for the purpose of investigating an offence under sections 403, 406, 408 and 409 and sections 421 to 424 (both inclusive) and sections 465 to 477A (both inclusive) of the Penal Code, with the prior permission in writing of a Sessions Judge; and

(b) in other case, with the prior permission in writing of the High Court Division.

(2) Any person required under this section merely to produce a document or other thing shall be deemed to have complied with the requisition if he causes such document or thing to be produced instead of attending personally to produce the same.

(3) Nothing in this section shall be deemed to affect the Evidence Act, 1872, sections 123 and 124, or to apply to a letter, postcard, telegram or other document or any parcel or thing in the custody of the postal or Telegraph authorities.

* * * *

127. Unlawful assembly to disperse on command of Magistrate or police-officer.–(1) Any Magistrate or officer in charge of a police station may command any unlawful assembly, or any assembly of five or more persons likely to cause a disturbance of the public peace, to disperse; and it shall thereupon be the duty of the members of such assembly to disperse accordingly.

128. Use of civil force to disperse.–If, upon being so commanded, any such assembly does not disperse, or if, without being so commanded, it conducts itself in such a manner as to show a determination not to disperse, any Magistrate or officer in charge of a police-station, may proceed to disperse such assembly by force, and man require the assistance of any male person, not being an officer, soldier, sailor, or airman in Bangladesh Army, Navy or Air Force or a volunteer enrolled under the volunteers Act, 1869 and acting as such, for the purpose of dispersing such assembly, and, if necessary, arresting and confining the persons who form part of it, in order to disperse such assembly or that they may be punished according to law.

See B. P. C. s. 141, for definition of an unlawful assembly.

129. Use of military force.–If any such assembly cannot be otherwise dispersed, and if it is necessary for the public security that it should be dispersed, the Magistrate of the highest rank who is present or the Police Commissioner in a Metropolitan Area may cause it to be dispersed by military force.

130. Duty of officer commanding troops required by Magistrate to disperse assembly.– (1) When a Magistrate or the Police Commissioner determines to disperse any such assembly by military force, he may require any commissioned or non-commissioned officer in command of any soldiers in the Bangladesh Army or of any volunteers enrolled under the Volunteers Act, 1869, to disperse such assembly by military force, and to arrest and confine such persons forming part of it as the Magistrate or the Police Commissioner may direct, or as it may be necessary to arrest and confine in order to disperse the assembly or to have them punished according to law.

(2) Every such officer shall obey such requisition in such manner as he thinks fit, but in so doing he shall use as little force, and do as little injury to person and property, as may be consistent with dispersing the assembly and arresting and detaining such persons.

131. Powers of commissioned military officers to disperse assembly.– When the public security is manifestly endangered by any such assembly, and when no Magistrate can be communicated with, any commissioned officer of Bangladesh Army may disperse such assembly by military force, and may arrest and confine any persons forming part of it, in order to disperse such assembly or that they may be punished according to law ; but if, while he is acting under this section, it becomes practicable for him to communicate with a Magistrate, he shall do so, and shall thenceforward obey the instructions of the Magistrate as to whether he shall or shall not continue such action.

132. Protection against prosecution for acts done under this Chapter.– No prosecution against any person for any act purporting to be done under this Chapter shall be instituted in any Criminal Court, except with the sanction of the Government; and–

---

1 Army includes Territorial Force. (*See ss.* 32 and 15 of the respective Acts.)

2 Army includes Territorial Force. (*See ss.* 32 and 15 of the respective Acts.)

(*a*) no Magistrate or police-officer acting under this Chapter in good faith,

(*b*) no officer acting under section 131 in good faith,

(*c*) no person doing any act in good faith, in compliance with a requisition under section 128 or section 130, and

(*d*) no inferior officer, or soldier, or volunteer, doing any act in obedience to any order which he was bound to obey,

shall be deemed to have thereby committed an offence:

Provided that no such prosecution shall be instituted in any Criminal Court against any officer or soldier in the Bangladesh Army except with the sanction of the Government.

* * * *

195. Prosecution for contempt of lawful authority of public servants. —

(1) No Court shall take cognizance —

(a) of any offence punishable under section 172 to 188 of the Penal Code, except on the complaint in writing of the public servant concerned, or of some other public servant to whom he is subordinate ;

(b) **Prosecution for certain offences against public justice.** of any offence punishable under any of the following sections of the same Code, namely, sections 193, 194, 195, 196, 199, 200, 205, 206, 207, 208, 209, 210, 211, and 228, when such offence is alleged to have been committed in, or in relation to, any proceeding in any Court, except on the complaint in writing of such Court or of some other Court to which such Court is subordinate; or

(c) * * * *

(2) * * * *

(3) * * * *

(4) The provisions of sub-section (1), with reference to the offences named therein, apply also to criminal conspiracies to commit such offences and to the abetment of such offences, and attempts to commit them.

(5) Where a complaint has been made under sub-section (1), clause (a), by a public servant, any authority to which such public servant is sub-ordinate may order the withdrawal of the complain and, if it does so, it shall forward a copy of such order to the Court and, upon receipt thereof by the Court, no further proceedings shall be taken on the complaint.

196. Prosecution for offences against the State.— No Court shall take cognizance of any offence punishable under Chapter VI or IXA of the Penal Code (except section 127), or punishable under section 108A, or section 153A, or section 294A, or section 295A, or section 505 of the same Code, unless upon complaint made by order of, or under authority from, the Government, or some officers empowered in this behalf by the Government.

* * * *

236. Where it is doubtful what offence has been committed.— If a single act or series of act is of such a nature that it is doubtful which of several offences the facts which can be proved will constitute, the accused may be charged with having committed all or any of such offences, and any number of such charges may be tried at once; or he may charged in the alternative with having committed some one of the said offences.

Illustrations

(a) A is accused of an act which may amount to theft, receiving stolen property, or criminal breach of trust or cheating. He may be charged with theft, receiving stolen property, criminal breach of trust and cheating, or he may be charged with having committed theft, or receiving stolen property, or criminal breach of trust or cheating.

(b) A states on oath before the Magistrate that he saw B hit C with a club. Before the Sessions Court A states on oath that B never hit C. A may be charged in the alternative and convicted of intentionally giving false evidence, although it cannot be proved which of these contradictory statements was false.

237. When a person is charged with one offence, he can be convicted of another.— (1) If, in the case mentioned in section 236, the accused is charged with one offence, and it appears in evidence that he committed a different offence for which he might have been charged under the provisions of that section, he may be convicted of the offence which he is shown to have committed, although he was not charged with it.

Illustration

A is charged with theft. It appears that he committed the offence of criminal breach of trust, or that of receiving stolen goods. He may be convicted of criminal breach of trust or of receiving stolen goods (as the case may be) though he was not charged with such offence.

238. When offence proved included in offence charged.— (1) When a person is charged with an offence consisting of several particulars, a combination of some only of which constitutes a complete minor offence, and such combination is proved, but the remaining particulars are not proved, he may be convicted of the minor offence, though he was not charged with it.

(2) When a person is charged with an offence and facts are proved which reduce it to a minor offence, he may be convicted of the minor offence, although he is not charged with it.

(2A) When a person is charged with an offence, he may be convicted of an attempt to commit such offence although the attempt is not separately charged.

(3) Nothing in this section shall be deemed to authorize a conviction of any offence refereed to in section 198 or section 199 when no complaint has been made as required by that section.

Illustrations

(a) A is charged, under section 407 of the Penal Code, with criminal breach of trust in respect of property entrusted to him as a carrier. It appears, that he did commit criminal breach of trust under section 406 in respect of the property, but that it was not entrusted to him as a carrier. He may be convicted of criminal breach of trust under section 406.

(b) A is charged, under section 325 of the Penal Code, with causing grievous hurt. He proves that he acted on grave and sudden provocation. He may be convicted under section 335 of that Code.

* * * *

476. Procedure in cases mentioned in section 195. — (1) When any Civil, Revenue or Criminal Court is, whether on application made to it in this behalf or otherwise, of opinion that it is expedient in the interests of justice that an enquiry should by made into any offence referred to in

section 195, sub-section (1), clause (b) or clause (c), which appears to have been committed in or in relation to a proceeding in that Court, such Court may, after such preliminary enquiry, if any, as it thinks necessary, record a finding to that effect and make a complaint thereof in writing signed by the presiding officer of the Court, and shall forward the same to a Magistrate of the first class having jurisdiction, and may take sufficient security for the appearance of the accused before such Magistrate or if the alleged offence is non-bailable may, if it thinks necessary so to do, send the accused in custody to such Magistrate, and may bind over army person to appear and give evidence before such Magistrate.

Provided that, where the Court making the complaint is High Court Division, the complaint may be signed by such officer of the Court as the Court may appoint.

For the purposes of this sub-section, a Metropolitan Magistrate shall be deemed to be a Magistrate of the first class.

(2) A Magistrate to whom a complaint is made under sub-section (1) or section 476A or section 476B shall, notwithstanding anything contained Chapter XVI, proceed, as far as may be, to deal with the case as if it were instituted on a police report.

(3) Where it is brought to the notice of such Magistrate or of any other Magistrate to whom the case may have been transferred, that an appeal is pending against the decision arrived at in the judicial proceeding out of which the matter has arisen, he may, if he thinks fit, at any stage adjourn the hearing of the case until such appeal is decided.

THE CRIMINAL PROCEDURE (MILITARY OFFENDERS)RULES, 1958

In exercise of the powers conferred by sub-section (1) of section 549 of the Code of Criminal Procedure, 1898 (Act V of 1898), and insuppression of the late Government of India, Home Department, Notification No. 102/35-Home-Judicial, dated the 12th March 1935, the Central Government is placed to make the following rules as tocases in which persons subject to military, naval or air force law shallbe tried by a Court to which the said Code applies, or by a Court-Martial, namely:-

Where a person subject to Military, Naval or Air Force Law is brought before a Magistrate, and Charged with an offence for which he is liable under the Army Act, the Naval Discipline Act as modified by the Pakistan Navy(Discipline) Act, 1934, or the Air Force Act (44 & 45 Vict.c.58 and 29 & 30 Vict.c.109), to be tried by a Court-martial, such Magistrate unless he is moved by the competent Military, Naval or Air Force authority to proceed against the accused under the Code of Criminal Procedure, 1898, shall before so proceeding given notice to the Commanding Officer of the accused, and until the expiry of a period of five days from the date of service of such notice, shall not-

(a) convict the accused under Section 243, acquit him under Section 247 or Section 248, or hear him in his defence under Section 244 of the Code, or

(b) frame a charge against the accused under Section 250c of the said code, or

(c) make an order committing the accused for trial by the High Court or the Court of Session under Section 213 of sub-section (1) of the section 446 of the said Code, or

(d) transfer the case for enquiry or trial under Section 192 of the Code, or

(e) issue an order under sub-section (1) of section 445 of the said Code for the case to be referred to a Bench.

Where within the period of five days mentioned in rule 2, or at any time thereafter before the Magistrate has done any act or issued any orders referred to in that rule, the Commanding Officer of the accused gives notice to the Magistrate that, in the opinion of competent military, naval or air force authority, as the case may be, the accused should be

tried by Court-Martial, the Magistrate shall stay proceedings, and, if the accused is in his power or under his control, shall deliver him with the statement prescribed by Section 549 of the said Code, to the authority specified in the said section.

Where a Magistrate has been moved by competent Military, Naval, or Air Force authority, as the case may be, under Rule (3) and the Commanding Officer of the accused subsequently gives notice to such Magistrate that in the opinion of such authority, the accused should be tried by a Court-Martial, such Magistrate, if he has not before receiving such notices, done any act or issued any order referred to in rule (2) shall stay proceedings, and if the accused is in his power or under his control, shall in the like manner deliver him, with the statement prescribed in section 549 of the said Code, to the authority specified in the said section.

Where an accused person, having been delivered by the Magistrate under rule (3) or (4) is not tried by a Court-Martial for the offence of which he is accused, or other effectual proceedings are not taken, or ordered to be taken, against him, the Magistrate shall report the circumstances to the Provincial Government.

In these rules "competent military authority" means the Senior British officer serving with the Pakistan Army, "competent naval authority' means the Commander-in-Chief Pakistan Navy, or in the case of persons subject to the Naval Discipline Act, the Senior British officer serving with the Pakistan Navy and "competent air force authority" means the senior Royal Air Force Officer Commanding Royal Air Force personnel serving with the Pakistan Air Force.

THE CRIMINAL PROCEDURE (MILITARY OFFENDERS)

RULES, 1970

(Published in the Gazette of Pakistan (Part-I) date 30 October 1970)

S.R.O. 1157 (k)/70, date 14 October, 1970.- in exercise of the powers conferred by sub-section (I) of Section 549 of the Code of Criminal Procedure, 1898 (Act V of 1898), the Government is pleased to make the following rules as to cases in which persons subject to Military, Naval or Air Force Law shall be tried by a Court to Which the said Code applies, or by court-martial, namely:-

1. These rules may be called the Criminal procedure (Military Offenders) Rules, 1970.

2. Where a person subject to Military, Naval or Air Force Law is brought before a Magistrate and Charged with an offence for which he is liable, under the Army Act, 1952 (XXXIX of 1952), the Navy Ordinance, 1961 (XXXV of 1961), or the Air Force Act, 1953 (VI of 1953) to be tried by a court-martial, such Magistrate, unless he is moved by the competent Military, Naval or Air Force authority, as the case may be, to proceed against the accused under the Code, shall before so proceeding give notice to such authority and, until the expiry of a period of fifteen days from the date of service of such notice, shall not-

(a) convict the accused under Section 243, acquit him under Section 247 or Section 248, or hear him in his defence under Section 244 of the Code, or

(b) frame a charge against the accused under Section 254 of the code, or

(c) make an order committing the accused for trial by the High Court or the Court of Session under Section 213 of the Code, or

(d) transfer the case for enquiry or trial under Section 192 of the Code.

3. Where, within the period of fifteen days mentioned in rule 2 or at any time thereafter before the Magistrate has done any act or issued any orders referred to in that rule, the competent Military, Naval or Air Force authority, as the case may be, gives notice to the Magistrate that the accused should be tried by court-martial, the Magistrate shall stay

proceedings and, if the accused is in his power or under his control, shall deliver him, with the statement prescribed by Section 549 of the Code, to the authority specified in the said section.

4. Where a Magistrate has been moved by competent Military, Naval or Air Force authority, as the case may be, under Rule 2, and such an authority subsequently gives notice to such Magistrate that, in the opinion of such authority, the accused should be tried by court-martial, such Magistrate, if he has not, before receiving such notices, done any act or issued any order referred to in Rule 2 shall stay proceedings, and, if the accused is in his power or under his control, shall in the like manner deliver him, with the statement prescribed in Section 549 of the Code, to the authority specified in the said section.

5. Where an accused person, having been delivered by the Magistrate under rule 3 or 4 is not tried by a court-martial for the offence of which he is accused, or other effectual proceedings are not taken, or ordered to be taken, against him, the Magistrate shall report the circumstances to the Government.

6. (1) Notwithstanding anything to the contrary contained in rule 2, 3 or 4, where it comes to the notice of Magistrate that a person subject to Military, Naval or Air Force Law has committed an offence proceedings in respect of which ought to be instituted before him, the Magistrate may by a written notice require the competent Military, Naval or Air Force authority, at the option of such authority, either to deliver such person, if in its custody, to the nearest Magistrate for being proceeded against according to law, or to stay the proceedings against such person before the court-martial, if since instituted, and to make a reference to the Government for determination as to the Court before which proceedings should be instituted.

(2) The competent Military, Naval or Air Force authority to whom a notice is issued under sub-rule (1) shall either deliver the offender in accordance with the notice or refer the question of the trial to the Government, whose order upon such a reference shall be final.

7. In these rules, unless there is anything repugnant in the subject or context,-

(a) "Code" means the Code of Criminal Procedure, 1898 (Act V of 1898);

(b) "Competent military authority" means an officer having power not less that those of an Independent Brigade or Line of

Communication Sub-Area Commander under whom, or the Officer Commanding the Station in which, the accused person is serving, provided that where death has resulted, the competent authority shall be an officer having powers not less than those of an Independent Brigade or Line of Communication Sub-Area Commander;

(c) "competent Naval authority" means the administrative authority under whose command the accused is serving or is attached or any superior authority, provided that where death has resulted, the competent authority shall be the Chief of the Army Staff;

(d) "competent Air Force authority" means the Officer Commanding the Station to which the accused person belongs or is attached, or any superior authority, provided that where death has resulted, the competent authority shall be the Chief of the Army Staff;

(e) "Court-martial" includes-

(i) an officer exercising authority under Section 23 of the Army Act, 1952 (XXXIX of 1952); or

(ii) a naval tribunal as defined in Section 95 of the Navy Ordinance, 1961 (XXXV of 1961); or

(iii) an officer exercising authority under Section 82 or Section 86 of the Air Force Act, 1953 (VI of 1953);

(f) "person subject to the Military, Naval or Air Force Law" includes a person not otherwise subject to any such law who is brought before a Magistrate and is accused of an offence mentioned in clause (d) of Section 2 of the Army Act 1952 (XXXIX of 1952), or sub-section (3) of Section 2 of the Navy Ordinance, 1961 (XXXV of 1961, or clause (dd) or Section 2 of the Air Force Act, 1953 (VI of 1953).

PART IV
NOTIFICATIONS, ORDERS OF THE CHIEF OF ARMY STAFF UNDER THE ARMY ACT.

NOTIFICATIONS

No. 1–*Commencement of the Act.*

(MINISTRY OF DEFENCE NOTIFICATION NO. 149/55 DATED 21ST FEBRUARY, 1955.)

No. 149/55.–In exercise of the powers conferred by sub-section (2) of Section 1 of the army Act, 1952 (XXXIX of 1952), the Government is pleased to appoint the 1st day of April, 1955 as the date on which the said Act shall come into force.

No.II.– Frontier Posts.

(MINISTRY OF DEFENCE NOTIFICATION NO. 151/55. DATED 21ST FEBRUARY, 1955.)

No. 151/55.–In pursuance of clause (c) of sub-section (1) of Section 2 and clause (c) of sub-section (2) of Section 59 of the Army Act, 1952 (XXXIX of 1952), and in supersession of the Notification of the late Government of India in the Army Department No. 281, dated the 13th May, 1933, the Government is pleased to specify the following frontier posts for the purposes of the said clauses, namely :–

(1) Chakdara.
(2) Chaman.
(3) Daragai.
(4) Fort Sandeman.
(5) Landikotal.
(6) Malakand.
(7) Thal.
(8) Jassar.
(9) Wagah.
(10) Hussainiwala.
(11) Sulaimanki.

No. III.– Relative Rank of Civil Officials

(MINISTRY OF DEFENCE NOTIFICATION NO. 150/55, DATED 21ST FEBRUARY, 1955.)

No. 150/55.–In exercise of the powers conferred by sub-section (1) of section 3 of the Army Act, 1952 (XXXIX of 1952), and in supersession of the Notification of the late Government of India in the Defence

Department No. 685, dated the 27th May, 1939 on the subject, the Government is pleased–

to direct that the classes of persons mentioned in the first column of the Schedule hereto annexed, when subject to the said Act under clause (c) of sub-section (1) of Section 2 thereof, shall be so subject as the class of persons mentioned in the corresponding entry in the second column of the said Schedule; and

(b) to authorise the officer commanding any force in the field to give a like direction with respect to any person accompanying such force, other than a Government servant, when subject to the said Act under clause (c) of sub-section (1) of Section 2 thereof, and to cancel such direction.

Schedule

1	2
All Civil gazetted officers of Government. All other Government servants whose current total monthly emoluments (excluding compensatory allowances) are more than Taka 500.	Officers
All Government servants, not being Gazetted officers, whose current total monthly emoluments (excluding compensatory allowances) are not more than Taka 500 and not less than Taka 140.	Junior Commissioned Officers
All Government servants whose current total monthly emoluments (excluding compensatory allowances) are less than Taka 140 but not less than Taka 80.	Warrant Officers.
All Government servants whose current total monthly emoluments (excluding compensatory allowances) are less than Taka 80 but not less than Taka 60.	Non-Commissioned Officers.

NO. IV.– PRESCRIBED AUTHORITIES FOR PURPOSES OF DISCHARGE.

(MINISTRY OF DEFENCE NOTIFICATION NO. 445/55, DATED 10TH JUNE, 1955.)

No. 445/55.–In exercise of the powers, conferred by clause (m) of sub-section 2 of Section 176 of the Army Act, 1952 (XXXIX of 1952), read with Section 18 thereof, the Government is pleased to prescribe the Commanders RPA., sectors and Southern Area as the officers by whom the powers to discharge from the service shall be exercised as regards persons enrolled under the said Act who have been attested and who are serving under the Command of the said Commanders.

No. V.– Orders of the Chief of Army Staff Prescribing Authorities Competent to Exercise Certain Powers under the Army Act.

(1) In pursuance of sub-section (2) of Section 17 of the Army Act, 1952 (XXXIX of 1952), the Chief of Army Staff of the Bangladesh Army is pleased to empower every officer not below the rank of brigadier commanding a line of communication sub-area or, on active service, commanding forces in the field to dismiss or remove from the servicing any person enrolled under the said Act who is serving under his command.

(2) In pursuance of sub-section (2) of Section 21 of the Army Act, 1952 (XXXIX of 1952), the Chief of Army Staff of the Bangladesh Army is pleased to empower every officer not below the rank of brigadier commanding a line of communication sub-area or, on active service, commanding forces in the field to reduce to a lower grade or rank or to the ranks any non-commissioned officer who is serving under his command.

(3) In pursuance of Section 127 of the Army Act, 1952 (XXXIX of 1952), the Chief of Army Staff of the Bangladesh Army is pleased to direct that a sentence awarded by an officer of less than five years' service holding a summary court martial shall not, except when the offender is on active service, be carried into effect until it has received the approval of an officer not below the rank of brigadier and having power not less than that of a brigade or a line of communication sub-area commander under whose command the offender was service.

(4) deleted.

(5) In pursuance of section 137 of the Army Act, 1952 (XXXIX of 1952), the Chief of Army Staff of the Bangladesh Army is pleased to empower every officer not below the rank of brigadier and having power not less than that of a brigade or log Area commander to direct that a sentence of imprisonment which cannot, for special reasons, be conveniently carried out in accordance with the provisions of section 136 of the said Act may be carried out by confinement in a civil prison or other fit place.

(6) In pursuance of sub-section (1) of section 175 of the Army Act, 1952 (XXXIX of 1952), the Chief of Army Staff of the Bangladesh Army is pleased to empower every officer not below the rank of brigadier having power not less than that of a brigade or line of communication sub-area commander under whose command the person tried by summary court martial was serving at the time of such trial, to give orders for the disposal, in accordance with the provisions of the said section, of the property regarding which an offence appears to have been committed or which has been used for the commission of the offence.

(7) In pursuance of section 143 of the Army Act, 1952 (XXXIX of 1952), the Chief of Army Staff of the Bangladesh Army is pleased to direct that the powers of pardons and remissions under the said section may be exercised:–

(a)	in the case of persons convicted on active service	by the officer not below the rank of brigadier Commanding the forces in the field.
(b)	in the case of all other persons	by an officer not below the rank of brigadier having power not less than that of a brigade or log Area commander, under whose command the offender was serving at the time of his conviction or within whose jurisdiction the offender is undergoing his sentence.

(8) In pursuance of sub-section (2) of section 17 of the Army Act, 1952 (XXXIX of 1952), the Chief of Army Staff of the Bangladesh Army is pleased to empower every officer not below the rank of brigadier commanding RPA, Sectors and Southern Area to dismiss or remove from the service any person enrolled under the said Act who is serving under his command.

(9) In pursuance of sub-section (2) of section 21 of the Army Act, 1952 (XXXIX of 1952) the Chief of Army Staff of the Bangladesh Army is pleased to empower every officer not below the rank of brigadier commanding RPA, Sectors and Southern Area, to reduce to a lower grade or rank or to the ranks any non-commissioned officers who is serving under his command.

(10) In pursuance of Section 127 of the Army Act 1952 (XXXIX of 1952), the Chief of Army Staff of the Bangladesh Army is pleased to direct that sentence awarded by an officer of less than 5 years' service holding a summary court martial shall not, except when the offender is on active service, be carried into effect until it has received the approval of an officer not below the rank of brigadier and having power not less than that of a Comd. RPA., Sectors, and Southern Area under whose command the offender was serving.

(11) deleted.

WARRANTS

A

WARRANT FOR CONVENING AND CONFIRMING GENERAL COURTS-MARTIAL UNDER THE BANGLADESH ARMY ACT.

To

The Officer, not being under the Rank of a Field Officer, Commanding the*

In pursuance of the provisions of the Bangladesh Army Act, I do hereby empower you, or the Officer on whom your command may devolve during your absence, not under the rank of Field Officer, from time to time, as occasion may require, to convene General Courts-Martial for the trial, in accordance with the said Act and the Rules made thereunder, of any person under your command who is subject to the said Act and is charged with any offence mentioned in the said Act, and is liable to be tried by a General Court-Martial.

And I do hereby empower you, or the Officer on whom your command may devolve under your absence such officer not being under the rank of Field Officer, to receive the proceedings of such Courts-Martial, and confirm the findings and sentence thereof, and to exercise, as respects these Courts and the persons tried by them, the powers created by the said Act in the confirming officer, in such manner as may be best for the good of the Service:

Provided always that if by the sentence of any General Court-Martial and person subject to the said Act has been sentenced to suffer Death and in the case of an Officer, Transportation or Imprisonment, or to be dismissed from the Service, you shall in such case, as also in the case of any other General Court-Martial in which you shall think fit so to do, withhold confirmation and transmit the proceedings to me.

And for so doing, this shall be, as well to you as all others whom it may concern, a sufficient warrant.

Given under my hand at this day of 19

General,

Adjutant General, Bangladesh Army. Chief of Army Staff, Bangladesh Army.

*This warrant is issued by the Chief of Army Staff, Bangladesh Army to officers commanding Divisions/Independent Brigades/Sub-Areas etc.

B

WARRANT FOR CONVENING AND CONFIRMING DISTRICT COURTS-MARTIAL UNDER THE BANGLADESH ARMY ACT.

To

The Officer, not being under the Rank of a field Officer,
commanding the*

WHEREAS I have power to convene General Courts-Martial under the Bangladesh Army Act, and whereas under that Act, any Officer having power to convene General Court-Martial may empower any Officer to convene a District Courts-Martial for the trial under that Act of any person under the command of such last-mentioned Officer who is subject to that Act.

Now, THEREFORE, by virtue of the said Act I do hereby empower you, or the Officer on whom your command may devolve during your absence, not under the rank of Field Officer, from time to time, as occasion may require, to convene District Courts-Martial for the trial in accordance with the said Act and the Rules made hereunder, of any person under your command, who is subject to that Act and is charged with any offence mentioned in the said Act, and is liable to be tried by a District Court-Martial.

And I do hereby empower you, or the Officer on whom your command may devolve during your absence, such Officer not being under the rank of Field Officer, to receive the proceedings of such Courts-Martial and confirm the findings and sentences thereof, and to exercise, as respects these Courts and the persons tried by them, the powers created by the said Act in the Confirming Officer, in such manner as may be best for the good of the Service.

And for so doing, this shall be, as well to you as to all others whom it may concern, a sufficient warrant.

Give under my hand at this day of 19

Signature of Officer having power to convene General Courts-Martial.

(Signature of Staff Officer)

*This warrant is issued to ordinary Brigade Commander by officer commanding the Division concerned.

The index to the Bangladesh Penal Code and Evidence Act will be found on pages 825–871 and 872–898. (WILL BE AMDT)

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Right of private defence when extends to causing –	
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Deleterious Substance –	
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defined	
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Omission to produce –when legally bound, punishable ...	
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Punishment for attempt to commit –by putting person in fear of death or grievous hurt.	
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Punishment for attempt to commit –by putting in fear of accusation of an offence.	
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Fabricating False Evidence –	
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Issuing, signing or using as true –; punishment for –	
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Subject	Section
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Instrument –	
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Intention –	
Effect of a criminal –where act is done by several persons ...	
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INUNDATION –	
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Subject	Section
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Land-mark –	
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Length –	
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Life –	
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Lighthouse –	
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Obstruction –; punishment for –	

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Act done to–for benefit, with consent of guardian, or in certain cases without consent, no offence.	
cannot "consent"	
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Causing a –to sign, seal or alter document, is forgery ...	
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Lurking House-Trespass –	
Definition of –	
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Lurking House-Trespass By Night –	
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Machinery –	
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Performing–again during lifetime of husband or wife with	
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Committing adultery with –	
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Medicine –	
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Adulteration of–and sale of adulterated–; punishment for – ...	
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Member or Joint –	
Privation of –is "grievous hurt"	
Destruction of permanent impairing of the powers of any –is	
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MERCHANT VESSEL –	
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Conveying coining tools out of –	
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of property found accidentally	
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Miscarriage –	
Woman Committing –on herself	
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Causing death in attempt to procure –	
Causing death in attempt to procure –if done without woman's consent.	
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Mischief –	
Definition of –	
Publication or circulation of statement, rumour or report conducing to –	
Punishment for –	
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by exhibiting false light, etc.	
by killing, maiming, etc., animal	
by diminishing water supply	
by injuring public road, etc.	
by causing inundation, etc.	
by destroying, removing or rendering useless light house, etc.	
by destroying etc., land mark	
by using fire or explosive substance	
by using fire or explosive substance with intent to destroy house.	
with intent to destroy or make unsafe a vessel of 20 tons burden	
committed after preparation for causing death or grievous hurt or wrongful restraint.	
Breaking open closed receptacle in order to commit – ...	
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MONTH –	
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Motive of Reward for doing –	
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Moveable Property –	
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Mule –	
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Municipal Commissioner –	
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Murder –	
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Punishment for –	
Attempt to commit –; punishment for –	
by life-convict	
Kidnapping or abducting in order to –; punishment for – ...	
Dacoity accompanied with –	
See ABDUCTION; DACOITY; KIDNAPPING.	
MUTINY –	
Abetment of –in Army, Navy or Air Force	
Circulating false report with intent to excite –in Army, Navy or Air Force.	
MUTINY ACTS –	
not affected by the Penal Code	
Persons subject to –are not punishable under Chap. VII of the Penal Code.	
NAVAL DISCIPLINE ACT –	
Persons subject to –not liable to punishment under Penal Code.	
NAVIGABLE –	
river or channel; destroying or injuring –	
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NAVIGATION –	
Obstructing public line of –	

NAVY –
Offences relating to and committed by persons belonging to –.

Subject	Section

NEGLIGENCE –
in driving or riding on public way ... ...
in omitting to prevent danger from animals ... ...
in causing death ... ...
in dealing with poison ... ...
in dealing with fire ... ...
in dealing with explosive substance ... ...
in dealing with machinery ... ...
NEGLIGENT ACT –
See RASH OR NEGLIGENT ACT.
Nuisance –
Public –defined ... ...
Punishment for public –not specially provided for ... ...
Continuance of –after injunction to discontinue ... ...
See INFECTIOUS DISEASE; PUBLIC NUISANCE.
Number –
defined ... ...
Oath –
defined ... ...
Oaths or Affirmations –
Refusal to take –; punishment for ... ...
False statement on –; punishment for – ... ...
Obscene Act and Songs –
Doing, singing, reciting or uttering –; penalty for – ... ...
OBSCENE BOOKS, ETC. –
Sale, distribution, importation, printing, public exhibition or possession of –; punishment for –. ... ...
OBSTRUCTING –
the taking of property by authority of public servant ... ...
the sale of property by public servant ... ...
Public servant in discharge of his duty ... ...
Penalty for –apprehension of oneself ... ...
Penalty for –apprehension of another ... ...
a public way of line of navigation ... ...
OCCUPIER –
of land not giving police information of riot, etc. ... ...
of land for whose benefit a riot is committed, liability of – ...
Agents of –when liable ... ...
OFFENCES –
defined ... ...
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Subject	Section
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Punishment of person found guilty of one of several	
Relating to elections	
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Acts or omissions which do not constitute an –	
Act of person bound by law, or believing himself bound to do it.	
Act of Judge when acring judicially	
Act done pursuant to judgement or order of a Court	
Act of person justified or believing himself to be justified in doing it.	
Accident in doing lawful act	
Act likely to cause harm, but done to prevent other harm ...	
Act of child under 7 years of age	
Act of child above 7, but under 12 and of immature under standing.	
Act of person of unsound mind	
Act of intoxicated persons	
Act done by consent, not intended or known to be likely to cause death or grievous hurt.	
Act not intended to cause death done by consent for benefit of a person.	
Act done for benefit of child or insane person, by or by consent of guardian.	
Act done for benefit of a person without consent	
Communication made in good faith	
Act to which a person is compelled by threats	
Act causing very slight harm	
Things done in private defence	
When right of private defence exists	
Subsequent to –committed in Bangladesh	
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OFFENDERS –	
Causing disappearance of evidence of offence or giving false if formation to screen –; punishment for –.	
Harbouring or taking or offering gift to screen –	
OFFICER –	
defined	
Falsification of account by –	
OMISSION –	
defined	
Illegal –when included in the word "act"	
Effect caused partly by –and partly by act	
to produce document or give information when bound to do so	
to assist public servant	
to apprehend on part of public servant	

Subject	Section
OWNER –	
Liability of –of land or his agent for riot held on his land or – for his benefit	
Liability of –for whose benefit riot is committed	
OX –	
Killing, poisoning, maiming or rendering useless by any – ...	
See MISCHIEF.	
Bangladesh Territory –	
Punishment of offences committed within	
Punishment of offences committed beyond	
Panchayat –	
Member of –when he is a Judge	
may be a Court of Justice	
Member of –assisting Court of Justice, etc., is a "Public servant".	
Peace –	
Provoking a breach of the –	
Penal Code –	
Local and special laws not affected by –	
Penal Servitude –	
one of the punishments under Penal Code	
Commutation of sentence of –without consent of convict ...	
awardable in the case of Europeans and Americans in substitution for transportation.	
See EUROPEAN OR AMERICAN.	
PERSON –	
defined	
Every –liable to punishment under Penal Code for offences committed within Bangladesh	
Every –who is liable to be tried in Bangladesh for an offence committed beyond its limits in subject to Penal Code	
Liability of every –for act done by several persons	
PERSONAL SAFETY –	
Rash or negligent act endangering life or –; punishment for –.	
Causing hurt or grievous hurt by act endangering life or – punishment for –	
PERSONATING –	
a soldier, sailor or airman	
any public servant	
another, for purpose of suit or prosecution	
a juror or assessor	

PLACE OF WORSHIP –
Injuring or defiling ... ...

Subject **Section**

PLAN –
See MAP OR PLAN.
See MAN OF PLAN.
POISON –
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Possession –
of property by person through wife, clerk or servant. ... ...
of obscene books, etc. prohibited ... ...
Theft by servant of property in –if master ... ...
Power-of-Attorney –
is a "document" ... ...
Preliminary Investigation –
is a "stage of a judicial proceeding" ... ...
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Enhancement of punishment on proof of –for certain offences relating to coin or property. ... ...

Printing –
or engraving defamatory matter ... ...
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PRISON –
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Escape from –; attempt to –; penalty for – ... ...
Escape from –; harbouring person on – ... ...
PRISONER –
Suffering or aiding escape of – ... ...
PRIVATE DEFENCE –
Act done in exercise of the right of –no offence ... ...
of property and person; right of – ... ...
When right of –exists ... ...
against act of public servant ... ...
of the body; when right of –extends to causing death of ...
of the body; when right of –extends to causing harm other than death. ... ...
of the body; how long the right of –continues ... ...
of property; when right of –extends to causing death ... ...
of property; when right of –extends to causing less harm ...
of property; how long the right of –continues ... ...
extends to injuries of innocent person, in the exercise of the

right of – … … … … … … … … …
When death caused in the exercise of the right of –does not
amount to murder. … … … … … … …

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Absconding to avoid or preventing service or publication of –, or non-attendance in obedience to –.	
PROPERTY –	
Private defence of – See PRIVATE DEFENCE.	
Resisting seizure and obstructing sale of, or illegally bidding for, –in contempt of lawful authority.	
Fraudulent removal of, or claim to, –to prevent seizure as a forfeiture or in execution of decree punishment for –	
Public servant disobeying direction of law or framing incorrect record in order to save person from forfeiture of –.	
Punishment for voluntarily causing hurt or grievous hurt to extort –or compel its restoration.	
Punishment enhanced for subsequent offence relating to ...	
Wrongful confinement to extort –or compel its restoration ...	
See CRIMINAL MISAPPROPRIATION; DEATH; FORFEITURE; FRAUDULENT DEEDS AND DISPOSITIONS OF PROPERTY; STOLEN PROPERTY.	
Property in possession of Wife, Clerk or Servant –	
explained	
Property-Mark –	
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Selling goods marked with false –	
Making or using false –goods, etc.	
Tempering with –with intent to injure	
Prostitution –	
Selling or buying minor for purposes of –; punishment for –;	
Provocation –	
Wantonly giving –with intent to cause riot	
When –reduces murder to culpable homicide	
Causing hurt or grievous hurt on grave and sudden – ...	
Assaulting or using criminal force otherwise than on grave –	
Assaulting or using criminal force on grave –	
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Public –	
defined	
Punishment for obseence acts and songs done in –	
PUBLIC DRAINAGE –	
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PUBLIC HEALTH –	
Offences relating to –by polluting atmosphere	
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Subject	Section
PUBLIC JUSTICE –	
Offences against –	
Public Nuisance –	
defined	
Various offences constituting –	
Punishment for –when not specially provided for	
Continuance of –after injunction to discontinue	
Public peace –	
Assembly likely to disturb –being a member of, after order to disperse.	
Public Road –	
Mischief by injuring –	
Public Servant –	
Who are included in the term –	
Defence against acts of –	
abetting an offence	
concealing design to commit offences which it is his duty to prevent.	
voluntarily and negligently allowing prisoner of State or war to escape.	
Assault, etc., on –while suppressing riot, etc.	
improperly taking gratifications etc.	
abetting the taking of bribe or gratification	
obtaining valuable thing for inadequate consideration ...	
disobeying direction of law	
framing incorrect document	
unlawfully engaging in trade	
unlawfully buying or bidding for property	
Personating a –	
Of contempt's of the lawful authority of –	
Absconding to avoid service of summons, etc. issued by – ...	
preventing service of summons, etc.	
Non-attendance in obedience to order from –or departure without leave of –, ...	
Omission to produce or deliver up document to –	
Omission to give notice or information to –	
Omission to give notice or information to –of an offence committed.	
Furnishing false information to –	
Furnishing false information to –respecting an offence committed.	
Refusing to be sworn by –	
Refusing to answer question of –	
Refusing to sign statement before –	

Subject	Section
PUBLIC SERVANT – Contd.	
Making false statement on oath before –	
Giving false information to make –use his power to injury of another.	
Resisting the taking of property by lawful authority of – ...	
Obstructing sale of property to lawful authority of –	
Illegal purchase of, or bid for, property offered for sale by – ...	
Obstructing in discharge of duty and omitting to assist ...	
Disobedience to orders of –duly promulgated	
Threat of injury to –	
Threat of injury to induce any persons to reframe or desist from applying to –for protection.	
disobeying directions of law in order to screen offender ...	
farming incorrect record or writing in order to screen offender.	
making order, etc., contrary to law	
keeping person in confinement contrary to law	
omitting to apprehend, etc., person accused or sentenced ...	
negligently suffering escape of person from confinement ...	
Omission to apprehend or sufferance of escape on part of –	
Insulting or interrupting a –during a judicial proceeding ...	
committing culpable homicide by exceeding his powers, is not guilty of murder ifacting bona fide.	
Causing hurt or grievous hurt to –to deter him from doing his duty.	
Using criminal force towards –	
Criminal breach of trust by –	
Destroying, etc., land-mark fixed by authority of –	
Counterfeiting a property-mark used by –	
Making false marks upon goods to deceive –	
Making use of a false mark to deceive –	
Public Spring or Reservoir –	
Punishment for fouling water of –	
Public Tranquillity –	
Offences against –, punishment for	
Public Way –	
Rash or negligent driving or riding on –; punishment for – ...	
Endangering or obstructing –; punishment for –	
Publication –	
of obscence books, etc., prohibited	
Punishment	
See REMISSION OF PUNISHMENTS.	
Purchase –	
See ILLEGAL PURCHASE OF BID.	
Quarantine –	
Disobedience to rules of –; punishment for –	

Subject	Section
QUEEN –	
defined	
Offences against – See STATE OFFENCES.	
Refusing to answer a –put by public servant when an offence.	
Question of Fact –	
Graveness and suddenness of provocation is –	
Rape –	
Definition of –, and punishment for –	
Rash and Negligent Act –	
in driving or riding	
in navigating vessel	
on public way	
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Causing death by –	
Endangering life or personal safety of others; punishment for –	
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Reason to Believe –	
defined	
Receiving Stolen Property –	
how punishable	
in the commission of a dacoity	
Habitually –or dealing with stolen property	
Record –	
Public servant framing incorrect –to save offender from punishment.	
Forgery of –	
Religion –	
Forging a –of birth, baptism, marriage of burial	
Register –	
Offences relating to –; punishment of –	
Religious Assembly –	
Punishment for disturbing	
Religious Feeling –	
Uttering words, etc., with intent to wound –	
Remission of Punishment –	
Violation of conditions of –	
Reputation –	
Forgery for the purpose of harming –	

Subject	Section
RESCUE –	
of prisoner of state or war	
of any person from lawful custody	
Reservoir –	
Fouling water of public spring or –	
Resistance.	
to taking of property by public servant. SEE PROPERTY; PUBLIC SERVANT –	
Resisting –	
apprehension of himself, punishment for –	
apprehension of another; punishment for –	
lawful apprehension	
Restraint –	
See WRONGFUL RESTRAINT	
Return –	
Unlawful –from transportation	
Riding –	
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Rioting –	
Definition of	
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Liability of person for whose benefit or on whose land –is committed.	
Penalty for harbouring or hiring or being hired as rioters. ...	
Punishment for causing a riot by disobeying orders of a public servant.	
River –	
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Road –	
Destroying or injuring a public –	
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Robbers –	
Penalty for harbouring –	
Robbery –	
Definition of –	
Punishment for simple –	
Punishment for attempts to commit –	
Punishment for causing hurt while committing or attempting to commit –.	
Punishment for –with attempt to cause death or grievous hurt.	
Punishment for attempt to commit –when armed with deadly weapons.	
Punishment for belonging to or being associated with a gang for the purpose of committing –	
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Subject	Section
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Safety –	
Public	
Sailor –	
Abetment of assault by –on superior officer	
Abetment of desertion of, and insubordination by –	
False personation of; punishment for	
Sale –	
of obscene books, etc., prohibited	
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Sea-mark –	
Exhibition false –	
Mischief by destroying, moving or rendering useful a – ...	
Seal –	
Making or counterfeiting a –or possessing counterfeit – ...	
with intent to commit forgery	
with intent to punishable otherwise	
Section –	
defined	
Sedition –	
Words or acts intended to cause –; punishable for –	
Seduction –	
Kidnapping or abducting woman with view to ...	
Sentence –	
Commutation of –	
Servant –	
Property in possession of –is in possession of master ...	
Theft by –of master's property	
Criminal breach of trust by –	
Falsification of accounts by –	
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Servant of the State.	
defined	
Service or Process –	
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Subject	Section
SEVERAL OFFENCES –	
Limit of punishment of –	
Shooting –	
with intent to kill	
Causing hurt or grievous hurt by –	
Ship –	
Rash navigation of –and conveying passengers for hire in overloaded or dangerous –	
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Slavery –	
Kidnapping or abducting in order to subject to –	
Dealing with persons as slaves	
Habitually dealing in slaves	
Slight Harm –	
Act causing –not an offence	
Soldier –	
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Abetment of desertion of, and insubordination by –	
False personation of –; punishment for –	
Solemn Affirmation –	
substituted by law for an oath ins included in the term "oath.	
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Rules regarding sentence of –, and execution of such sentence.	
Special Law –	
Meaning of term –	
is no affected by Penal Code	
Spring –	
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Stabbing –	
Causing hurt or grievous hurt by instrument for –	
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State Offences –	
What acts constitute –and punishment of –	
Circulating false report with intent to cause –	
State Prisoner –	
Allowing or aiding escape. or harbouring –; punishment for –	
Statement –	
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Subject	Section
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Penal Code	
Stolen Property –	
Offering or taking gift to help in restoration –of without using means to bring offender to justice.	
Definition of –	
Dishonestly receiving, habitually dealing in and assisting in concealment of –; punishment for –.	
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Stupefying Drug –	
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Subsequent offence –	
in certain cases	
Suicide –	
Abetment of –; punishment for –	
Attempt to commit –; penalty for –	
Summons –	
Absconding to avoid service of –	
Preventing service of –	
Disobedience to –	
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Testamentary Document –	
See WILL.	
Theft –	
Assault or criminal force in attempt to commit –from person.	
Definition of –	
Punishment for –	
Punishment for –in dwelling house, etc.	
Punishment for –by clerk or servant of property in possession of master.	
Punishment –after preparation for causing death or hurt ...	
When –amounts to robbery	
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Thieves –	
Punishment for belonging to a gang of –	
See GANG OF THIEVES.	
Threats –	
Acts done under –when no offence	
of injury to public servants or to induce person to refrain from applying to public servants.	
of injury or grievous hurt, or death or of accusation of an offence made to commit extortion.	
of Divine displeasure; including a person to do or omit anything by –.	
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Subject	Section
THUG –	
Definition of –	
Punishment for being a –	
Tooth –	
Fracture or dislocation of –is "grievous hurt"	
Torture –	
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to extort confession	
Trade –	
Public servant unlawfully engaging in –	
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Using false –	
Using false –; punishment for offences connected	
Trafficking in Slaves –	
Punishment for –	
Transportation –	
one of the punishments under Penal Code	
for life may be commuted	
European or American to be sentenced to penal servitude	
intend of –.	
Calculation of fraction of –	
Treatment of offenders sentenced to –until transported ...	
may be awarded instead of imprisonment	
Forfeiture of property in respect of offenders punishable with –	
for life, abetment of mutiny punishable with –	
for life; giving, etc., false evidence with intent to procure	
conviction of offence punishable with –	
for life; person counterfeiting coin punishable with –	
for life; murder punishable with –	
for life; culpable homicide not amounting to murder punishable	
with –.	
for life; house-trespass in order to commit offence punishable	
with –.	
Unlawful return from –; punishment for –	
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Trespass –	
Person committing –in state of intoxication; punishment for –.	
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Unborn Child –	
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Subject	Section
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Member of –; who is a –	
Member of –; punishment for being a –	
Punishment for rioting and –	
Every member of –guilty of offence committed in prosecution of common object.	
Hiring, etc., person to join in –	
Assaulting a public officer when suppressing an –	
Owner or occupier or agent of land bound to give police notice of –	
Harbouring persons hired for –	
Being hired to take in –	
When it becomes an affray	
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Unlawful Compulsory Labour –	
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Unlawful Return –	
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Unnatural Offences –	
Punishment for –	
Unsound Mind –	
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Unstamped Copper –	
is not coin, though used as money	
Unwholesome Drug –	
Valuable Security –	
defined	
Voluntarily causing hurt or grievous hurt to extort –or compel its restoration.	
Voluntarily causing wrongful enfinement to extort –or compel its restoration.	
Procuring the making etc., of –by cheating	
Forging a –	
Destroying, etc., a –	
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Vessel –	
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Conveying persons for hire in overloaded or unsafe – ...	
Casting away or destroying or attempting to destroy by fire or explosive substance any –.	
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Subject	Section
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VOLUNTARILY –	
defined	
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against the State and attempt, abetment, preparation for or concealment of design of –	
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Preparation for –	
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Receiving property taken in such –	
Wandering Gang of Thieves –	
Punishment for belonging to	
War –	
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Warehouse Keeper –	
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Pollution of –of spring or reservoir	
Mischief by divering –	
Weights and Measures –	
False and fraudulent use or possession of; punishment for –	
Making or selling false –	
Wharfinger –	
Criminal breach of trust by –in respect to property	
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harbouring husband commits no offence	
Sexual intercourse between husband, –if latter under 13, is rape.	
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denotes any testamentary documents	
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Witnesses –	
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Refusal of –to answer on examination	
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Subject	Section
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Causing miscarriage of –with or without consent	
Causing death or –by act intended to cause miscarriage ...	
Assaulting or using criminal force to –with intent to outrage her modesty.	
Kidnapping or abducting –to compel marriage on her being modesty.	
Kidnapping or abducting –to compel marriage on her being seduced.	
Enticing or taking away or detaining with criminal intent a married –.	
Word or gesture or act intended to insult modesty of – ...	
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Worship –	
Injuring or defiling place of –	
Disturbing assembly performing religious –	
Mischief by destroying place of –by fire	
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Writing –	
expressing the terms of a contract is a "document"	
containing directions or instructions is a "document"	
Wrongful Confinement –	
Definition of –	
Punishment for –	
Punishment for –when for 3 or more days	
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Punishment for –when liberation writ has issued	
Punishment for –when confinement is secret	
Punishment for –when it is for purposes of extortion of property	
Punishment for –when it is for purposes of extorting confession	
Assault or criminal force in attempt to commit –	
of person kidnapped or abducted	
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Wrongful Gain –	
defined	
See DISHONESTLY.	
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defined	
See DISHONESTLY.	
WRONGFUL RESTRAINT –	
Definition of –	
When –amounts to wrongful confinement	
Mischief committed after preparation made for causing – ...	
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Year –	
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Subject	Section
ABBREVIATIONS –	
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ABILITY –	
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ABSENCE –	
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ACCEPTOR –	
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Access –	
between married persons bearing on legitimacy	
Accession –	
of Sovereign of United Kingdom, judicially noticed	
to officers, etc., of public office, judicially noticed	
Accident –	
facts showing	
Accomplice –	
evidence of	
Account-books –	
relevancy of	
Accused –	
Conduct of, relevant	
confession by, when irrelevant	
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accidental	
of conspirators, how far relevant	
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Parliament, presumption as to copies of private	
Parliament, statements made in recitals of	
Proof of	
Admiralty jurisdiction –	
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Judge to decide	
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Subject	Section
ADMISSION – (contd.)	
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facts admitted need not be proved	
not allowed, when there is concition that its evidence shall not be given.	
not conclusive proof, but may estop	
of execution by party to attested document	
proof of, against persons making them	
proof of, by or on behalf of persons making them	
ADMITTED FACTS –	
need not be proved	
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of execution by party to attested document	
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ADOPTION –	
STATEMENT AS TO EXISTENCE	
Advocates –	
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Affairs of State –	
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Affirms –	
he who, must prove	
Agent –	
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conduct of	
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Ambiguous Document –	
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Amount of Damages –	
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Annoying questions –	
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Subject	Section
APPOINTMENTS –	
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to public offices, judicial notice of	
ARBITRATORS –	
Act not applicable to proceedings before	
ART –	
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ARTICLES OF WAR –	
judicially noticed	
Assessors –	
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SOME USEFUL TERMS COMMONLY USED IN LAW BOOKS

Term	Meaning
Prima facie	Based on the first impression.
Ibid	In the same book, passage, etc.
Ante	Before.
Infra	Below.
Et seq	And as follows.
Ab initio	Form the beginning
Inter alia	Among other things.
Mutatis mutandis	With necessary changes.
Modus operandi	The method of operation.
De novo	A fresh, beginning all over again.
Ipso facto	By that very fact.
Functus officio	Having fulfilled an office.
quod vide (q.v.)	which see.